



Andhra Pradesh Police Department

CHAPTERs

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CHAPTER 21

The First Information Report (F.I.R.) to the Police Station

409-1. Offences are classified as:-

A. Cognizable

B. Non-Cognizable

The Table -I attached to Schedule - I of Cr.P.C. shows the nature of offences in IPC as cognizable or non-cognizable. Table - II specifies the cognizable or non-cognizable nature relating to offences under special and local laws, if there is no specific mention in those acts.

2. Section 154 Cr.P.C. lays down that when an officer in charge of a police station receives information relating to commission of cognizable offence he shall record it verbatim and enter the same in a printed form. If the information is given orally, it should be reduced into writing by him or by his subordinate under his direction and secure the signature or thumb impression of the informant. The information so reduced shall be read over to the informant. After entering the information in the printed form it shall be registered First Information Report (FIR) under appropriate sections of law. A copy of the F.I.R. after registration shall be furnished to the informant free of cost. Refusal to register the information about a cognizable offence is punishable under section 217 IPC. The informant can send the information even by post to the SP of the District who shall register the same as an FIR himself or get it registered if he is satisfied that the contents show a cognizable offence and investigate or direct any subordinate to investigate. The SP also may cause an enquiry against the officer who refused to register and take appropriate action. The brief contents of the F.I.R. shall be entered in the General Diary (GD).

3. Information relating to the cognizable offences should be registered even if they are presented in a police station not having jurisdiction and such registration should not be refused on the point of jurisdiction. After registration it should be transferred to the concerned police station. This type of prompt action will save not only delay in the registration of F.I.R. but also prevent inconvenience to the informant. In addition, the police station where F.I.R. is registered, to begin with, can initiate action without loss of time.

4. The refusal to sign or to put the thumb impression as the case may be on the F.I.R. is an offence under section 180 IPC.

5. In case of oral complaint, care should be taken to ensure that the FIR contains all the essential facts to avoid contradictions by way of omission when the informant is examined in the court. In view of this when the SHO records the oral statement of the informant, he should put questions and elicit required information from the informant.

6. When ever a report relating to commission of non-cognizable offence is presented in a police station the SHO shall enter the substance in the G.D. and advise the informant to go to court and present it there as he is not competent to register and investigate such cases. But if one of the offences among the contents of the report is of cognizable nature it becomes a cognizable case and he must register and investigate the case.

7. Some times informants directly go to courts and present even cognizable report. If the court endorses such reports or endorses a non-cognizable report when presented to the court, such reports on endorsement shall be registered by the SHO and investigated. But when a non-cognizable report is endorsed by the court, the SHO shall not arrest the accused without the orders of the court.

8. Complaints made by telegrams or telephones need not be recorded immediately as F.I.R. unless authenticity is verified or a statement has been recorded or a written report obtained from the sender. The factum of receipt of telegram or telephonic information has to be noted in the station general dairy (GD).

9. A vague rumour should be distinguished from an oral report and should not be reduced into writing but entered in the G.D. When the information is well founded after immediate enquiry by the SHO about its authenticity, the report should be obtained and the case registered.

10. The SHO can register a cognizable offence on his own information also and need not wait till some body gives report.

FIR Book

410-1. All cognizable offences and reports forwarded by courts on endorsement including non-cognizable cases shall be registered in the FIR book.

2. For administrative reason the information pertaining to following may also be registered in the pro-forma of the FIR. However, the offences so registered will not be given FIR number, but details shall be recorded in special registers maintained for this purpose.

A. All cases of suicides and accidental deaths where inquest is conducted under Section 174 (3) Cr.P.C.

B. Accidental fires, missing of persons, missing cattle, etc.

C. Cases booked under sections 41, 107 to 110 and 102 Cr.P.C.

3. If the report is made at a police outpost, FIR should not be registered by the in charge, as he is not the SHO. He shall record the statement of the informant and send it immediately to the police station for registration after entering the substance in the outpost G.D. However if a written report is presented its gist will be entered in the outpost G.D. and the report will be sent to the police station for immediate registration. The in charge of the outpost shall then proceed to the scene of occurrence and shall take steps to preserve the scene and evidence, arrest the accused if warranted and recover weapon of offence or stolen property or take any other necessary step if any, pending arrival of SHO to conduct investigation.

4. If the officer in charge of police station receives a report during his tour, he should send it to the station with due endorsement for registration. In the meanwhile he can commence investigation.

5. Whenever statements are reduced into writing by SHO in property offences the description of stolen property should be incorporated in detail as far as possible. Similarly in cases of rioting the number of accused should be mentioned precisely and if possible they should be identified by name or description.

6. Though FIR is to be registered before investigation commences, it need not be taken always as a precondition. If a report of a serious crime is received by SHO he may leave post haste to the scene directing the next subordinate who is holding the charge of the SHO in the station to register a case. For example, if SHO is informed that a serious breach of peace is occurring in his jurisdiction or a murderous attack is taking place, it is the duty of the SHO to proceed to the scene at once.

FIR - Whom to be sent

411-1. The FIR in original shall be sent to the Magistrate having jurisdiction without delay. One copy of the FIR will be retained in the station and one copy each; will be sent along with the station house GD to the Inspector, the Sub-Divisional Officer and the SP. When the Magistrate having jurisdiction is not the local Magistrate, a copy will be sent to the latter also. Carbon or photocopying process or any other copying process may be used to make the copies of FIR. The original written complaint made by the complainant shall be attached to the original FIR meant for the Magistrate, but copies of it will be made and attached to the other copies of FIR. One copy of FIR shall invariably be given to the complainant free of cost, even if the complainant does not ask for it.

2. There are several laws both Central and State in which certain offences are cognizable. The officer in charge of the Police Station receiving information disclosing a cognizable offence under any of these laws shall take action to record the FIR. If the special Act is directly concerned to any department, a copy of the FIR may be marked to them for information. For example in cases under NDPS Act a copy of FIR should be sent to the Inspector of Narcotics Control Bureau or Central Excise Officers having jurisdiction. Similar procedure should be followed in respect of cases registered by the Police pertaining to Central Excise, Customs, State Excise and Prohibition departments.

3. There are certain cognizable offences under certain Special Acts where the police officials of certain ranks are only empowered to investigate, whereas in certain offences it is not the police but the officer of specified department and agencies are empowered to investigate. In such cases, any information disclosing cognizable offence received, should be registered and forwarded to the police officer competent to investigate such case or to an officer of any other department, competent to investigate.

Express Reports

412-1. In grave crimes listed in Order 52-7 and specially grave offences listed in Order 55-2 of Chapter 3, a telephonic/Fax/Radio message/e-mail should be sent to SP and SDPO and in latter category of cases, also to the District

Magistrate. FIRs shall be sent with a copy of such message sent already, by speed post or courier to SP, SDPO and the Magistrate having jurisdiction.

2. These reports are termed "Express Reports" and should be sent as quickly as possible by means of fax, telegram or through wireless. A copy of the FIR under this order need, however, be sent only by post and not by hand except in respect of local delivery.

3. An immediate report in respect of cases of specially grave nature (Order 55-2) should be sent to the SDPO and the SP by the quickest means possible as the SDPO/SP have to send information by fax, radio/telegram to the Government, DGP, Zonal IG/DIGP and the District Magistrate in respect of such cases. It will, however, be noted that where a copy of the FIR could be delivered through a messenger to the SDPO or SP before a telegram/RM/FAX could possibly reach, only an express report need be sent. Any additional information sought by the Government, DGP, Zonal IG/DIGP in these cases, should be furnished promptly.

4. In every case of use of fire arms by police in dealing with a riot or in self-defence, an express report or radiogram or telegram or fax or e-mail whichever is the quickest shall be sent to the District Magistrate. In this report, the number of persons killed or injured, if any, shall be stated with their identity, if known.

5. As regards reports of accident in connection with explosives or inflammable material, the procedure laid down in Order 300 should be followed.

Registration of cases reported at police stations other than the jurisdiction police station

413-1. When an offence committed within the railway police jurisdiction is reported to local Police Station in a district or vice versa, or when a crime committed in the jurisdiction of another police station within this state is reported to the SHO of a Police Station, the station which receives the report shall forthwith register FIR, enter the substance of FIR in GD and inform the police station having jurisdiction by telephone or radiogram or e-mail or telegram. This shall be followed by immediately despatch of the FIR by the speed post or any other reliable means, transferring the case. The police receiving the information first, should take all initial necessary steps, as they would, in a case occurring in their own jurisdiction.

2. If the place of occurrence is near and easily accessible from the police station, the SHO or the investigating team will at once proceed to the spot, take up investigation and continue till relieved by the police having jurisdiction. Simultaneously, action will be taken to send immediate intimation to the police station having jurisdiction. When the investigation is taken over by the latter, the FIR should be transferred.

3. If the place of occurrence is far away, immediate intimation should be sent to the police having jurisdiction by the quickest possible means and the FIR transferred to them simultaneously. Similarly if a report disclosing a cognizable offence that was committed outside the State is presented, it will be registered and the substance entered in the GD, and the FIR so registered shall be forwarded at the earliest to the concerned SHO and if not known, to the concerned Superintendent of Police or DGP of the state by any reliable means. If any of the persons, who are reasonably believed to have taken part in the offence, are found in the limits of the station where the offence is reported and if the offence alleged against them is of a serious nature and there is reasonable apprehension that they will abscond unless apprehended immediately they should be arrested and produced before the local Court having jurisdiction and intimation of their arrest should be promptly sent to the police station within the jurisdiction of which the offence has occurred.

Registration of cases when station limits of occurrence are doubtful

414. The police to whom a cognizable offence is first reported shall register the case and take up the investigation, where the offence has been committed close to a boundary between stations and it is at first doubtful in which station limits it has occurred. The Police Station, which should retain the investigation, should be subsequently settled. The police station, which first gets the information of the case, should register it, take it up for investigation and endeavour to detect it.

FIR – its value

415. The FIR is an important document. It is the earliest record made of an alleged offence before there is time for its particulars to be forgotten or embellished. It can be used to corroborate or impeach the testimony of the person filing it under sections 145, 157 and 158 of the Indian Evidence Act. It can also be used under clause (1) of section 32 and illustrations (j) and (k) under section 8 of the Indian Evidence Act. It is necessary that the drawing up of this document is done with utmost care and accuracy and with all available details.

Salient points to be remembered in registering and dispatching FIR

416. The following points shall be borne in mind when registering an offence.

1. Write the FIR immediately with all available details, and enter the fact, at once in the GD, mentioning the name of the complainant or informant, father's/husband's name, age, occupation and residence, the time of reporting at the police station and brief particulars of the report, including the crime number and section of law and indicating the action taken.
2. Obtain the signature or, if he is an illiterate, the thumb impression of the complainant or informant on all the pages of the statement.
3. Record all available facts of the case if complaint is made orally in unambiguous terms and make sure that no important point is omitted.
4. Use ballpoint pen with black ink used for document writing, for writing the FIR or print on a typewriter or on computer printer and make copies by carbon process or photocopying, as the case may be. The hand written typed complaint can even be scanned, if need be.
5. Do not make corrections, erasures, or over-writings. If a correction is necessary, strike out the word/words, leaving them still legible, and attest it.
6. Record on the original written statement report of the informant, the date and hour of its receipt and through whom it was received.
7. Ascertain and incorporate in the FIR the reasons for the delay, if any, in the receipt of the report or in the making of the complaint at the police station.
8. Register a case even if the information is from the accused.
9. In cases registered suo moto, satisfy yourself that the FIR contains a full and correct record of all facts and circumstances relating to the offence and the offenders, including the names of witnesses, if any.
10. Fill in the following columns of the FIR correctly:
 - A. Date and hour of occurrence (If the correct time is not known, give the approximate time and, if the exact date of occurrence is not known, place it between two dates).
 - B. Date and hour when reported
 - C. Place of occurrence and distance and direction from police station.
 - D. Date of despatch from the police station.
 - E. Name and residence of informant or complainant (The complainant's or informant's full name with aliases, if any, address and father's name).
 - F. Name and residence of the accused. (The full name of each of the accused with aliases, if any, address and father's name).
 - G. Brief description of the offence, with section and details of property stolen/taken away, if any. Note the section of law and modus operandi classification, and the details and value of stolen property. If the list of stolen property is lengthy, it must be made on a separate sheet of paper and attached to the FIR and the fact mentioned in this column. In such a case, the list should bear the signatures of both the complainant and the SHO.
 - H. Reason for any delay in recording information or lodging complaint.
 - I. Signature and designation of the recording officer should be on all the pages.
 - J. Use only the prescribed form and fill up all the columns accurately on the basis of available information using words and symbols prescribed, correctly in brief language, which brings out essential features of the crime. It is not advisable to use such words as "Nil" when information in particular column is not available at the moment.
11. The copy of FIR should be dispatched or made available to the following officer by the earliest possible means:
 - A. The area Magistrate (in original)
 - B. Superintendent of Police

C. Sub-Divisional Police Officer

D. Station file

E. The complainant or informant

F. To the concerned Police Station/Department if the crime reported pertains to their jurisdiction

12. Attach the original written complaint to the original copy of the FIR to be sent to the Magistrate.

13. Despatch the copies of the FIR to the Magistrate (in original) and other officers without any delay and enter the manner, the date and hour of despatch in the concerned records.

14. Satisfy yourself that the copies of the FIR are delivered promptly under proper acknowledgment, if sent through messenger. If sent by post, obtain a certificate of posting.

15. In grave cases and cases of specially grave nature send copies of FIR through courier or speed post or by express messengers, if delivery is local, or by fax or e-mail.

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CHAPTER 23

Collection of Oral Evidence

427-1. The investigating officer is empowered under Section 161 CrPC to examine orally any person (including a suspect) who is likely to be acquainted with the facts and circumstances of the case. He may reduce to writing the statement of each such person, and when he does so, he shall make a separate record of each such person whose statement he records. The person so examined shall be bound to answer all questions relating to such case put to him, other than the questions, answers to which would incriminate him to a criminal charge or to a penalty or forfeiture.

2. In order to examine a witness, the investigating officer should, as far as possible, contact him at his place, but may, if necessary, require the attendance before himself, of any person being in the limits of his own or adjoining police station. If a person so called intentionally fails to attend in spite of a written order served on him, he is liable to be prosecuted under section 174 IPC. However, under proviso to section 160 Cr.P.C. no male person under the age 15 years or woman shall be required to attend as a witness at any place other than the place in which such male person or woman resides.

3. When a police officer finds it necessary for the purpose of any police investigation to require any employee of any essential services such as railways, roadways, water supply and electricity, medical, civil supplies to leave his duties or otherwise to detain such employee from his duties, he shall give previous notice of the fact to the official concerned in order that the latter may take steps to replace the employee, and shall, at the same time, take all necessary measures to ensure that the object of the investigation is not thereby defeated.

4. The following classes of public servants of the essential services actually on duty at the time, shall not be required to leave their duty until they have been replaced:

A. Railways: (A) Station Masters and Assistant Station Masters (B) Cabin and lever-men (C) Signalers (D) Points men and Key men (E) Patrolmen (F) Individual gang men posted to show caution signals at weak bridges or other points requiring cautious working. (G) Shunting staff (H) Watchmen (I) Gatemen in-charge of level crossings (J) The actual running staff of train (Guards and Engine drivers) (K) More than half a gang of engineering gang men.

B. Roadways: Drivers and Conductors.

C. In respect of other services like Water Works and Sewerage, Electricity, Major Projects, those employees whose absence would jeopardize public safety, health, supply of essential commodities or result in damage to the installations.

Admission of police officers to visit jails on duty

428-1. The rules regulating admission of Police Officers to visit jails lay down that;

G.O.Ms. No. 1200 and 1201 Home (Pri. B) dated 19-6-1961.

A. Any police officer of a rank not lower than an Inspector shall, for any purpose connected with the discharge of his duty as such police officer be permitted to enter the jail at any time between unlocking in the morning and lock up in the evening.

B. He will be permitted to interview the prisoners only on a letter of authority to the Jail Superintendent from SP or superior Officers or District Magistrate. He may take other Police Officers and witnesses or informers with him for assistance.

C. Police officers of lower rank than an Inspector in uniform are permitted to enter the jail for the purpose of recognizing old offenders.

D. Any interview permitted as above shall take place in the presence of the Jailer or other proper officer of the jail, who shall, if required to do so, keep at such a distance that he may not hear the conversation that takes place.

E. The Superintendent of the Jail shall, produce any prisoner in his charge whom the police are authorized to interview and shall afford every reasonable facility for this purpose.

2. In case of remand of prisoners, no police officer shall be permitted, except under the authority and in the presence of a Magistrate, to enter a Sub-Jail /Jail for the purpose of interviewing or communicating with them.

Recording of statements of witnesses

429-1. Though a Police Officer is not bound to record the statement of witnesses as he examines them during the course of investigation, in terms of section 161(3) of CrPC it is desirable to reduce to writing the statements of all witnesses who are acquainted with the facts and circumstances of the case on the spot and who may have to be cited in the court as witnesses. The statement of each witness should be recorded separately, in direct form and as far as possible in his own language and with the full version of what he states. Section 173(5) of CrPC lays down a statutory obligation on the prosecution to furnish to the accused, copies of statements recorded under 161(3) of CrPC of all persons whom the Prosecution proposes to examine as its witnesses, before the commencement of inquiry. Hence sections 161(3) and 173(5) CrPC clearly indicate that separate statements of all persons whom the prosecution proposes to examine as its witnesses should be recorded and copies thereof must be furnished to the accused before the commencement of the inquiry. These are mandatory provisions for compliance.

2. The case diary is intended for recording such particulars as, the action taken by the investigating officer, the places where he went, the people he visited and the things he saw. The detailed statements of witnesses examined need not be written in the case diary Part I. It is a privileged document and is covered by sub-section (2) of Section 172 of CrPC. But statements of witnesses if recorded in the case diary are covered by sections 161 and 162 of Cr.P.C. and the privilege assigned to the case diary does not extend to the statements of the witnesses recorded therein. Hence, the diary should be written in two distinct parts in the prescribed forms, one for recording the particulars mentioned in section 172 (1) of Cr.P.C. and the other for recording the statements under section 161 of Cr.P.C which should be in a separate part and serially numbered. Details of case diary are discussed in Chapter 27.

3. It is important and necessary for an investigating officer to record the statement of an accused person, more so, if it contains lengthy details in a complicated case, so that these details may not be forgotten or overlooked in the course of enquiries for their verification. The statement may sometimes disclose his line of defence and may also at times indicate sources from which independent evidence may be available and provide clues for further investigation. Verification of all details given by the accused is a vital exercise in investigation and should be diligently done and entered in case diary from day to day.

Dying declaration

430-1. The statement given by a dying person is called dying declaration. Whether the statement is given expecting death or not, it is valid. Out of the entire statement the following only are relevant.

- A. That portion showing to the cause of person's death or
- B. To the circumstances of the transaction resulting in that person's death.

2. The declaration may be recorded by any person, but it should preferably be recorded by a Magistrate, if readily available. Where this is not practicable, the doctor or if he is not available the investigating officer may record it, preferably in the presence of a witness. Even if the declaration is made to a police officer, it is admissible in evidence and its use is not barred by section 162 of the Cr.P.C. Even if it has been made orally in the presence of any person, it may be proved in court by the oral evidence of that person. The declaration becomes admissible, only if the declarant subsequently dies. If he survives, it will be useful, if made before a Magistrate or any one other than a police officer, to corroborate his oral evidence as a witness in court. If it was made before a police officer, it will be treated as a statement u/s 161 Cr.P.C.

3. The declaration must, as far as possible, be complete by itself. The person making the declaration must be speaking from personal knowledge of the facts. If reduced to writing, the declaration should be in the form of questions and answers and in the very words of the declarant. The signature of the declarant should invariably be taken on the dying declaration wherever possible. If the declarant is an illiterate or is incapacitated from signing for any reason, his thumb impression should be taken. When a declarant dies while giving a statement, the declaration is valid even though he does not put his signature or thumb impression. A note should be made in the dying declaration giving reasons why the signature of the declarant was not taken.

4. When the declarant, being in a serious condition and unable to speak, makes signs by hand or head, the person recording the dying declaration must record the precise nature of the signs which the declarant made.

5. Before taking down the declaration the persons recording the dying declaration should also ask the declarant whether he is mentally capable of making a declaration. He should obtain whenever possible a certificate from the Medical Officer as to the mental condition of the declarant.

6. Incomplete dying declarations are not by themselves inadmissible in law. Though a dying declaration is incomplete by reason of the deceased not being able to answer further questions in his condition then, yet the statement to that extent is admissible provided it is proved that he has given it consciously and the statement is not vague.
7. An FIR can also be a dying declaration.

Recording of statements of witnesses and confessions of accused by a Magistrate

431-1. In important cases, witnesses may be produced before Judicial Magistrate; competent to record such statements under section 164 Cr.P.C. Such statements can be used to contradict the statements given by the same person during the course of enquiry or trial. If he retracts later he can be prosecuted for giving false evidence.

2. If an accused person, on being arrested, expresses his willingness to make a confession, his confession may be got recorded under section 164 of CrPC by the competent Magistrate. As far as possible he must be taken before a magistrate other than the one who has jurisdiction to try the case.

Confessional statements made to the police

432. Though confession made to police officers are inadmissible, under section 27 of Indian Evidence Act, if a statement is given by an accused to a police officer while in custody and that

G.O.Ms.No.115, Home (Police-F) Dept, dt.25-4-2002

statement reveals the discovery of any material fact and in consequence of that statement if that material fact is discovered, that statement is admissible to the extent of such discovery. However under A.P. Control of Organised Act 2001 and Prevention of Terrorism Act (POTA) 2002, confessional statements made to police officer not below the rank of the Superintendent of Police and recorded by such police officer either in writing or on any mechanical devices like cassettes, tapes or sound tracks from which sounds or images can be admissible in the trial of such person or co-accused, abettor or conspirator provided that, the co-accused, abettor or conspirator is charged and tried in the same case together with the accused. The confession should be recorded in a free atmosphere in the same language in which the person is examined and as narrated by him. Such confessions should be recorded only by the competent and authorized police officers and should be sent forthwith to the Chief Metropolitan Magistrate or Chief Judicial Magistrate having jurisdiction over the area in which such confession has been recorded. The person from whom a confession has been recorded shall also be produced before Chief Judicial Magistrate/Chief Metropolitan Magistrate along with the original statement of confession written or recorded on mechanical device without unreasonable delay. The following points should be observed by the concerned police officers in recording confession.

Do's and Don'ts while recording confession of accused U/s 18 of the A.P. Control of Organised Crime Act, 2001 and Prevention of Terrorism Act 2002.

1. Disclose your identity as Superintendent of Police to the accused before starting recording of the confession.
2. Note time of commencement and time of conclusion of recording the confession, in the proceedings itself.
3. Elicit full name with surname and also alias names if any of the accused.
4. Elicit the identity of the accused i.e. his father's name, age and address of the accused.
5. Inform the accused before hand that he is not bound by law to make any confession.
6. Inform the accused that in case he gives a confession, it may be used in evidence against him in any trial or proceed in a court of law.
7. Elicit from the accused whether he proposes to make confession on any threat or coercion or influence or inducement or promise from any police officer or any other person.
8. Before starting recording of confession, record a finding in your own handwriting that the accused proposed to make confession voluntarily.
9. Record the proceedings in the same language in which the accused is examined and as narrated by him.
10. After recording the confession, obtain either signature or thumb impression of the accused at the end of the confessional statement.

11. Append a certificate at the end to the affect that you recorded the confession after personally satisfying yourself of the voluntary character / nature of the same.
12. Put your signature under the certificate with date and time.
13. Send the recorded confession forthwith to the Chief Metropolitan Magistrate/Chief Judicial Magistrate along with the accused person without any unreasonable delay.
14. Record the confession i) in writing, or ii) on any mechanical devices like cassettes (video or audio), tapes (video or audio) or sound tracks.
15. Do not get the confession recorded in writing by your subordinates though in your presence; it has to be recorded by you in person individually.
16. Recording confession by way of typing is not provided; and so do not employ typewriters or computer printers etc.
17. In case of recording confession by videography, see that the entire proceedings of confession from the beginning till the end are recorded continuously without any break i.e. without stopping the video camera in the middle and restarting subsequently.
18. See that the video is taken covering the entire surroundings inside the place of recording the confession.
19. In case the confession is recorded on audiocassette or tape or sound track, ensure that the entire proceedings are recorded continuously without any break and without omitting any portion.
20. Ensure that video or audiocassette or tape or sound track is not edited or that there is no possibility of editing the same, least it would give rise to suspicion that some inconvenient portions are omitted or edited.
21. In case of recording confession on mechanical devises like cassettes, tapes or sound tracks, enclose to it the certificate in writing that you were personally satisfied of the voluntary character of such confession, putting your signature underneath it with date and time.

Panchanamas of property recovered as a result of the confession made to the police

433-1. As soon as it appears to the investigating officer that an accused is likely to make a confession leading to the discovery of a fact, the investigating officer should secure the presence of two respectable and independent witnesses of the locality and in their presence record the confessional statement himself, obtaining the signatures of the witnesses on the record. Stock witnesses or those who figure as panch witnesses in previous cases should not be taken. If it is not possible to secure the presence of witnesses, the investigating officer should himself record the confessional statement and afterwards when he is able to secure the presence of witnesses, he should read over the statement to the accused before the witnesses and, if it is agreed to by the accused as correct, note this fact on the record and obtain the signatures of the witnesses on it. The statement of the accused should be in the first person and in the very words of the accused. When a discovery is made as the result of the statement of the accused, a separate panchanama should be drawn up for the discovery. Giving information and recovery that follows it are two different transactions and a separate panchanama should be recorded for each of them. The information given by an accused person should not be mixed up in the panchanama drawn up for the recovery made in consequence of such information. It is the information given by an accused person that determines his knowledge about that fact discovered and that has a direct bearing on his guilt.

2. When one of several accused persons who have taken part in an act, for example, the burial of property at a certain place, offers to point out the place and the property is found in consequence, his confessional statement is relevant against him under section 27 of the Indian Evidence Act. But if other accused persons suspected to have taken part in burying the property at the place also give the same information subsequently the discovery cannot be attributed to second person. These confessional statements cannot be said to have led to the discovery of the property which has already been discovered and are not, therefore, relevant under that section. Though there is nothing objectionable in the investigating officer trying to see for his moral satisfaction whether such persons point out the same place as the one previously shown by one of them, no attempt should be made to utilise that evidence against subsequent persons. If two or more accused give statements under section 27 of Evidence Act, simultaneously, it is inadmissible, as it cannot be attributed to any single person.

3. Where the place of recovery is a public place accessible to all and sundry a discovery from such a place cannot entirely be attributed to the exclusive knowledge of the accused and therefore much reliance cannot be placed.

4. The accused must be in custody of Police for a confession to come under purview of section 27 of Evidence Act. Even a man released on bail and giving information leading to discovery of a fact can be deemed to be in Police custody within meaning of section 27. Arrest and custody are not synonymous. A person can be in custody without being formally arrested.

Tendering of pardon

434-1. In cases where it is otherwise impossible to establish the guilt of the accused from other evidence, conditional pardon can be tendered to an accomplice in a crime with a view to securing the evidence of such a person and bringing home the guilt of the other accused.

2. Tendering of pardon can be given in the following cases

- A. All offences triable by sessions court
- B. Offences under Prevention of Corruption Act
- C. Offences which are punishable with 7 years or more

3. Tender of pardon is given where the investigation has to establish the guilt of the accused by independent evidence. In such cases participant who played a minor role in the offence is taken into confidence with a view to prove the case against the other accused. The accused to whom the tender of pardon is granted is an accomplice witness

4. The pardon tendered to a person under section 306/307 of Cr.P.C., as already stated, is conditional that he should make a true and full disclosure of the whole of the circumstances within his knowledge relating to the offence. If such person either willfully conceals anything essential or gives false evidence and thus does not comply with the conditions on which the pardon was tendered, he may be tried for the offence in respect of which the pardon was tendered later.

5. During the course of investigation the chief judicial magistrate and during the course of enquiry or trial the presiding magistrate or judge are competent to grant pardon.

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CHAPTER 24

Collection of Documentary Evidence, Property and Material Objects

Directions to produce a document or thing

435-1. Whenever any Officer in-charge of a Police Station or Officer entrusted with the investigation of a case considers that the production of any document or other thing is necessary for the purpose of investigation, such Officer may issue a written requisition to the person in whose possession or power such document or thing is believed to be, requiring him to attend and produce it or cause to produce it at a time and place stated in the order (Section 91 of CrPC).

2. If the statement of the person in whose possession the document or this is, to be recorded, he should be directed to appear in person and produce such document or thing. If his statement is unnecessary, such person can be asked to cause the document or thing produced on his behalf by any other person.

3. If the document or thing is in the possession of an accused, an order for its production shall not be issued as it contravenes clause (iii) of Article 20 of the Constitution of India. It should be seized after conducting a search of a place where such document or thing is kept.

436-1. For documents required from bankers, the procedure given in Bankers Books Evidence Act 1891 should be followed.

2. According to section 4 of Bankers Books Evidence Act 1891 a certified copy (with prescribed certificate at the end) of any entry in a bankers book shall in all legal proceedings be received as prima facie evidence of the existence of such entry and shall be admitted as evidence of the matters, transactions and accounts therein.

3. In cases where bank employees are involved in offences like misappropriation, forgery etc., or other bank frauds, financial or any other offences, the original records are required for examination by the hand writing expert. The relevant original records may be requisitioned by making out copies. The copies so made can be retained by them for banking purposes. Where the examination by hand writing expert is not needed, and the records are required only for investigation, requisition should be confined to certified copies of entries which are admissible as prima facie evidence.

4. Section 8 of the Bankers Book Evidence Act 1891 authorizes the officers not below the rank of Superintendent of Police specified by the Government under this section to requisition records or entries which are needed for investigation into any offence. This requisition should be in Form 56.

Procedure regarding articles/documents in the custody of Postal or Telecom Departments both Private and Government

437-1. If any document, letter, telegram, parcel or thing in the custody of Postal or Telegraph authorities is required, for the purpose of investigation, the Investigating Officer shall make an application to the District Magistrate or Chief Judicial Magistrate or Court of Session, and request for orders to the Postal or Telegraph authorities to deliver such document, letter, telegram, parcel or thing to the Investigating Officer (Section 92(1) of CrPC). The reference to Posts and Telegraphs authorities in this section may be interpreted to include Bharat Sanchar Nigam Limited (BSNL) and any other basic telephone (including WiLL) service provider or cellular operator whether Private or Government.

2. If any such document, parcel or thing, in the possession of Postal or BSNL authorities in the opinion of Commissioner of Police or Superintendent of Police, is wanted for the purposes of investigation, he may require the concerned, to trace and detain such document, parcel or thing, pending the orders from the District Magistrate or Chief Judicial Magistrate as mentioned in the sub-order (1) (Section 92(2) of CrPC).

3. Instructions in the P&T Manual 1982, volume V regarding production of records in the custody of the post office are reproduced below:

Production of records before police or excise officer

4. Records of a Post Office or mail office should be produced, and information available in them should be given on the written order of any Police Officer who is making an investigation under the CrPC, or of any Excise Officer empowered by a local government or administration to investigate offences under any Excise Act, but only those entries in the records should be disclosed which relate to the person or persons charged with the offence under investigation or which are relevant to that offence. In any other case, the official in-charge of the office should, without delay, refer for orders to the Head of the Circle, who will decide whether under Section 124 of the Indian Evidence Act, the information asked for should be withheld or not.

Note 1: This rule does not authorize the Post Office to hand over the records unless an order under section 95 of CrPC is obtained by the Police Officer from the District Magistrate, Chief Metropolitan Magistrate, Court of Sessions or High Court.

Note 2: The Inspector General, Delhi Police, Special Establishment and his staff are authorized by law to inspect all official and secret records during a preliminary enquiry and also at subsequent stages. All records required by them for the purpose of investigation for production in court, except those in the custody of Audit Officers, should be made available to them.

5. When the information asked for by a Police or an Excise Officer is not available in the records of the Office concerned, the Police or the Excise Officer should be informed accordingly, irrespective of the question whether the information, if available, might or might not be given.

Exception: This rule does not apply to the production of telegraph message drafts which should only be produced under the rules on the subject in the Posts and Telegraphs Manual, Volume XI. (If the production of such documents is required, the procedure prescribed in Section 92 of CrPC, will have to be followed).

Inspection of Records of Criminal Courts by the Police

438. Rules 204 to 208 of the Criminal Rules of practice issued by the High Court of Andhra Pradesh during 1990 for inspection of Records of Criminal Courts are reproduced below for guidance of Police Officers:

1. Rule 204: Inspection by Officers of the Police or the Excise Department and Public Prosecutor: Whenever it appears to any officer of the police or the Excise Department not below the rank of Sub-Inspector, that an inspection of the records of any criminal trial or appeal will facilitate detection or prevention of any crime or it is desired for examination of the conduct of Officers connected with the case or whenever the inspection of such records is desired by the Public Prosecutor or Assistant Public Prosecutor, in the exercise of his duty as such Officer or Prosecutor as the case may be, he may apply to the Sessions Judge or Presiding Officer of the Court in which the records are lodged for permission to inspect the same.

2. Rule 205: Procedure on application: The application referred to in the preceding rule shall be made in writing and shall contain a description of the records and shall state the purpose for which the inspection is sought, and the Sessions Judge or Magistrate may grant or refuse the application, recording the reasons for refusal and shall communicate a copy thereof to the Officer concerned, or to the Public Prosecutor, as the case may be. If the application is granted the Sessions Judge or Magistrate shall make arrangements for permitting the inspection to be conducted in accordance with Rule 206.

3. Rule 206: Conduct of Inspection: Every inspection of records under these rules shall be conducted by an Officer of the Police or the Excise Department not below the rank of Sub-Inspector, or, if the inspection is granted on the application of a Public Prosecutor or Assistant Public Prosecutor, then by the Public Prosecutor or Assistant Public Prosecutor himself. It shall take place within the precincts of the Court in which the records are lodged and in the presence of an Officer of the Court who shall be deputed by the Sessions Judge or Magistrate for the purpose, and no record or part of a record shall be removed by the inspecting Officer from the precincts of the Court.

4. Rule 207: Inspection by Public Prosecutor, Andhra Pradesh: The Public Prosecutor, Andhra Pradesh, if he wishes to inspect the original records of Criminal Courts should request the High Court through the Registrar.

5. Rule 209: Taking extracts: An Officer inspecting records under these rules can take extracts therefrom, if he considers it necessary to do so.

Inspection and obtaining of documents in the custody of audit (including Posts and BSNL) offices

439-1. Investigating Police Officer will be given all facilities to inspect within the respective offices the original documents in the custody of audit offices. They will also have facilities to take out copies of such documents (including photostat copies).

Even where an original document has to be shown to a witness during the process of investigation, it will be possible in many cases to have this carried out at the audit office.

G.O.Ms.No. 3771, Home, dt 25.9.1951, 3083, Home, dated 22.8.1951 and 2527, Home (Pol.A), dated 29.9.1955; Govt. Endtt. 3797/56-1, Home, dated 31.8.1956; 69/56-1, Home, (Pol.A), dt 21.11.1956 and 47807/57-1, Home, (Pol.A), dated 25.5.1957

2. Where the investigating Officer inspects the original documents, he shall sign and record the date of his perusal or inspection on the record so inspected or perused and thereafter request for the photo copies. The photo copies can be used in the investigation. He shall also handover a letter to the head of the office to have the original documents in his custody under lock and seal. The expenses for taking out the photo copies will be met by the concerned office.
3. In a case where an investigating officer finds it necessary to have the original documents in the possession of an audit office examined by the handwriting or fingerprint expert, the Director General of Police will request the Accountant-General to hand over the documents, in original, directly to the investigating officer, who may use them for identification purposes and also have them examined by the Director, APFSL/Director, Finger Print Bureau.
4. The above orders also apply to documents, in the possession of the audit offices of the Posts or Telecom Department.
5. Police officers are strictly forbidden to resort to the use of Sections 91 and 92 of CrPC, to secure original documents from audit offices.

Points to be borne in mind while making search

440-1. Ordinarily search of closed places is to be made with a warrant.

2. Searches without warrant may be made only in urgent cases and that too during investigation.
3. The procedure laid down in section 100 Cr.P.C. should be strictly followed while making searches of closed places with or without warrant. Otherwise the searches may become illegal.
4. As far as possible independent witnesses of that locality should be taken in searches. In case of deviation, reasons must be stated.
5. Every decency must be observed while making searches.
6. Before making a search the I.O. and the witnesses should search themselves to ensure that nothing is brought with them to implant.
7. Females should be employed to search the persons of females.
8. The seizures made from the persons should be listed separately from the seizures made from the place.
9. A copy of the list of seizures should be furnished to the person present at the place under acknowledgment.
10. Whenever a subordinate is deputed for search, the authorization must be in writing.
11. Whenever a search is to be made in other jurisdiction, and by the SHO there, the requisition should be by SHO or police officer not below the rank of SI.
12. The search proceedings shall be rendered in Form 57 and seizures list prepared in Form 58 & 59.

Search for wrongfully confined persons

441. In case of wrongful confinement, the Police Officers do not have powers for conducting search of the confined place without search warrant. The Police Officers have to obtain a search warrant under section 97 CrPC. So is the case in respect of a woman or a female child under the age of 18 years, kidnapped or abducted for any unlawful purposes. Search warrant has to be obtained under section 98 CrPC to search and secure her presence. The Commissioner of Hyderabad, u/s 49 of the Hyderabad City Police Act may issue a search warrant to search a place in Hyderabad and Secunderabad limits where a person is wrongfully confined. The person rescued from wrongful confinement shall be produced before Magistrate.

Disposal of the Property coming into the hands of the Police

442. Form 60 should be used for sending property to the Magistrate. Three copies of the form should be prepared by means of carbon paper. The triplicate should be retained in the station and the remaining two copies sent to the Magistrate with the property. When the duplicate copy is received back from the Magistrate, with his orders thereon, it should be pasted in the book. The Investigating Officer shall write a case diary for despatch of the property to the court and for the endorsement made by the Magistrate on the duplicate copy of Form 60.

443. The instructions regarding the panchnama for the recovery of the property as a result of the confession made to the Police by the accused and the property found in consequence of a confessional statement made to the police by one of several accused is given in Order 433.

Recovery of stolen property otherwise than on house search - record of material facts

444. When any property is recovered by a Police Officer otherwise than on a formal search of premises, a contemporaneous record of the facts relating to such recovery may be prepared by him in Form 60 and attested by witnesses present at the time of such recovery. This record shall be sent to the Magistrate without any delay. The record so made is admissible in evidence to corroborate the testimony of the police officer who prepared it or may be used to refresh his memory. The signature of the attesting witnesses may be used in evidence only to corroborate the statement of the Police Officer that they were present at the time of the recovery of the property and attested the record prepared by him.

Reciprocal arrangements for assistance and procedure of attachment and forfeiture of property with other countries

445. Chapter 7-A CrPC consisting of sections 105-A to 105-L deals with the provisions and procedure for seizure, arrest, production of documents needed for investigation as well as forfeiture of properties derived from crime. The nature of assistance, enquiries, investigation and action to be taken in respect of requests received from other countries in that State are also detailed herein.

Custody of property

446-1. According to Section 451 of Cr.P.C, when any property, regarding which any offence appears to have been committed or which appears to have been used for the commission of any offence is produced before any criminal court during any inquiry or trial, the court may make such order, as it thinks fit for the proper custody of such property pending the conclusion of the inquiry or trial. If the property is subject to speedy or natural decay or if it is otherwise expedient so to do, the court may, after recording such evidence as it thinks necessary, order it to be sold or disposed. This section provides for the interim custody of property.

2. Livestock: The seizure of livestock by the police in criminal cases shall be forthwith reported to the Magistrate for orders under Section 457 of Cr.P.C. Pending the orders of the Magistrate regarding its disposal, the livestock shall remain in the custody of the police, but they may deliver it to the charge of the Village Secretary or to its owner to be produced when required.

3. Police not to receive property without orders as to disposal: When a Magistrate has taken over property from the police; they should not receive it back without orders as to its disposal.

G.O. Ms. 2545, Home, dated 11.6.1940

4. Unclaimed property: It shall be the duty of police officer to take charge of all unclaimed property. The receipt of unclaimed property should be entered in the GD and the property forwarded to the Magistrate with Form-60 immediately. The disposal of such property shall be as per the orders of the Magistrate.

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CHAPTER 25

Arrest, Custody, Bail and Remand

Power of arrest

447-1. Police Officers derive their powers of arrest without warrant from sections 41, 42, 43(2), 60, 129 and 151 of CrPC. Sections 46, 47, 49, 50, 51, 56, 57, 167 and 169 CrPC inter alia deal with procedures, during and after arrest.

2. Arrests can be made by Police Officers with Warrants issued by the Courts. There is no discretion allowed to the police in executing Warrants of arrests. The Warrant must, be in writing, signed and sealed by the presiding officer. It should specify the offence as well as clearly the identity of the person to be arrested. The Warrant sometimes may specify the date on which the Warrantee is to be produced in the Court. If such a Warrant cannot be executed within the time specified, a fresh Warrant might be obtained after returning the earlier one. The validity of a Warrant is an important matter particularly in respect of those meant for arrest of persons in other countries.

3. The Warrants are either bailable or non-bailable. In respect of bailable Warrants the arrestee should be released on bail when he offers the required security and in respect of non-bailable Warrants the Police Officer has no discretion, and the person must be produced before the concerned Court. Prompt execution of Warrant is one of the foremost duties of the Police and should receive high priority.

4. The Warrant must be executed by the officer to whom it is endorsed. If that officer wants warrant to be executed by his subordinate officer he must make endorsement by name accordingly.

448-1. Articles 21 and 22 of the Constitution lay down that no one shall be deprived of his life or liberty except in accordance with procedure established by law and that arrested persons are entitled to know the grounds of their arrest and a right to consult and be defended by an Advocate of their choice and that every arrested person should be produced before a Magistrate within 24 hours. Arrest takes away the liberty of a person and should therefore be affected in strictest compliance of the law. Wherever it is warranted it should be promptly carried out but arrest is not to be effected just because a police officer has the power. No accurate account of all circumstances under which arrest without Warrant can be made or should not be made can be detailed. He must exercise it with discretion.

Conditions necessitating arrest

449-1-A. To infuse confidence among the terror stricken victims, particularly in grave offences like murder, dacoity, robbery, burglary, rape, organized crime, terrorist offences etc.

- B. In cases where the accused is likely to abscond and evade the process of law;
- C. The accused is given to violent behaviour and is likely to commit further offences unless his movements are brought under restraint;
- D. The accused is a habitual offender and unless kept in custody, he is likely to continue to commit similar offences;
- E. Where it is necessary that his presence is required for the purpose of investigation.
- F. Where accused is likely to tamper or intimidate or cause physical hurt to witnesses or destroy other evidence.

2. Police Officer making an arrest should record in all the relevant records, the reasons for making the arrest, thereby bring out his conformity to the instructions given in this order and must be able to justify the arrest if required. The Police Constables and Head Constables who make the arrest should submit a report detailing the circumstances of the arrest to the SHO or IO concerned who should incorporate the contents of such reports in the General Diary, Case Diary etc.

3. All Police Constables, Head Constables and Sub-Inspectors working in the field and empowered under law to exercise the powers of arrest without Warrant, should exercise their powers with prudence and be accountable for the arrest made in the

discharge of their assigned tasks and duties.

4. In the light of these instructions, the action of Police Officers of all ranks in arresting persons where it is not necessary and not arresting where it is necessary, will amount to misconduct and may entail suitable disciplinary action.

450-1. No arrest should be made in a routine manner simply because the law empowers the police officer to do so. The existence of the power to arrest is one thing while justification for the exercise of power of arrest is quite another. The police officer must draw a margin between vindictivity and necessity.

2. The police officer may without arresting, keep a watch on a person and then arrest him, if subsequent events justify such action. No restraint can lawfully be exercised over a person so long as he is not arrested.

3. The arrest should be avoided if the intention is only to verify the suspicion of involvement against a person. A police officer may under section 160 CrPC issue a notice to the suspected person to attend the police station and interrogate him. He should not be detained for long and more than necessary.

Joginder Kumar vs State of U.P. and others A.I.R. 1994 SC 1349

Arrest of Children and Women

451-1. The Juvenile Justice (Care And Protection Of Children) Act 2000 prohibits lodging of children in police lock-ups or being brought to police stations after arrest. Alternatives are provided for lodging the delinquent juveniles. The procedure prescribed therein should be observed in respect of juveniles.

2. The following instructions shall be followed whenever arrest of women is contemplated.

A. While making arrest of a woman submission to custody should be presumed unless circumstances to the contrary exist. There should be no occasion for a male Police Officer to touch her person. It is therefore advisable whenever it is proposed to arrest a female, women police should be employed.

B. Arrest of women should as far as possible during night times be avoided unless it is inevitable.

C. When it is not possible to secure the services of women Police Officers, an officer of the rank of ASI or above should effect the arrests.

D. Bail may be granted where the offence for which the arrest is made is not of a serious nature. The SHO may exercise his discretion in non-bailable offences to release a woman arrestee on bail.

E. Whenever a woman is arrested, the services of women Police Officers should be utilized for guarding and escorting her. If women Police Officers are not available in the Police Station, one of the relations of the arrested woman, of her choice can be permitted to remain with her. When interrogation of the arrested woman is done by a male Police Officer the relation or woman Police Officer should be present. If a Woman Police Officer herself is conducting the interrogation, the presence of a woman relative may not be necessary.

Rights of Arrested Persons

3. The arrested persons have certain rights with which the Police Officers should be familiar. These are important from the human rights angle also besides being statutory provisions and should be respected. The important rights are -

- A. Right to be informed of the grounds of arrest
- B. Right to be produced before a Magistrate without unnecessary delay and within 24 hours
- C. Right to consult a legal practitioner or any one of his choice
- D. Right to be informed of right to bail
- E. Right of a person without means to free legal aid and to be informed about it
- F. Right to be examined by a Medical Officer

Direction to subordinates to arrest

452-1. When a Police Officer in-charge of a police station, or any Police Officer making an investigation, is himself not able to effect the arrest of a person, he may, under Section 55 of the CrPC depute any officer subordinate to him to arrest the person. When such an officer is deputed, he should be given an order in writing specifying the person to be arrested and the offence or cause for which the arrest is to be made. The officer so authorised shall notify to the person to be arrested, the substance of the

order and, if so required by such person, shall show him the order. This section, however, does not take away the statutory power vested in all Police Officers by Section 41 of the CrPC.

2. A Head Constable in-charge of an outpost or a beat area or check post, without the intervention of the SHO, may take action in offences under special and local enactments, which empower the Head Constable to take action.

3. When a private person arrests any person who commits a non-bailable and cognizable offence in his view, he shall be taken to the nearest police station immediately and such person shall be re-arrested by the police.

The following requirements laid down by Supreme Court should be observed in all cases of arrest or detention:

453-1. The police personnel carrying out the arrest and handling the interrogation of the arrestee should bear accurate, visible and clear identification and name tags with their designations. The particulars of all such police personnel who handle interrogation of the arrestee must be recorded in a register.

D.K. Basu vs State of West Bengal. AIR 1997 Supreme Court Page 610 and Government Orders issued in this regard

Memo No. 564, 23/HRC/93-12 dt. 20-10-97 of GAD.
RC No. 43383/C3/87 dt. 22-10-97 of DGP.

2. That the Police Officer carrying out the arrest of a person shall prepare a memo of arrest at the time of arrest and such memo shall be attested by at least one witness, who may be either member of the family of the arrestee or respectable person of the locality where the arrest is made. It shall also be countersigned by the arrestee and contain the time and date of arrest.

3. A person who has been arrested or detained and is being held in custody in a police station or interrogation centre or other lock-up, shall be entitled to have one friend or relative or other person known to him or having interest in his welfare informed, as soon as practicable, that he has been arrested and is being detained at the particular place, unless the attesting witness of the memo of arrest is himself such a friend or a relative of the arrestee.

4. The time, place of arrest and venue of custody of an arrestee must be notified by the police where the next friend or relative of the arrestee lives outside the district or town through the Legal Aid Organization in the District and the police station of the area concerned telegraphically within a period of 8 to 12 hours after the arrest.

5. The person arrested must be made aware of this right to have someone informed of his arrest or detention as soon as he is put under arrest or is detained.

6. An entry must be made in the diary at the place of detention regarding the arrest of the person which shall also disclose the name of the next friend of the person who has been informed of the arrest and the names and particulars of the Police Officials in whose custody the arrestee is.

7. The arrestee should, where he so requests, be also examined at the time of his arrest about major or minor injuries, if any, present on his/her body. The "Inspection Memo" must be signed both by the arrestee and the Police Officer affecting the arrest and its copy provided to the arrestee.

8. The arrestee should be subjected to medical examination every 48 hours during his detention in custody by a doctor from the panel of approved doctors appointed by Director, Health Services of the concerned State or Union Territory. Director, Health Services should prepare such a panel for all Mandals and Districts as well.

9. Copies of all the documents including the memo of arrest, referred to above, should be sent to the jurisdictional Magistrate for his record.

10. The arrestee may be permitted to meet his lawyer during interrogation, though not throughout the interrogation.

11. A police control room should be provided at all district and State headquarters, where information regarding the arrest and the place of custody of the arrestee shall be communicated by the officer causing the arrest, within 12 hours of effecting the arrest and it should be displayed on a conspicuous police board at the police control room.

Guidelines for a Police Officer in making an arrest

454-1. When a police officer proceeds to arrest a person and cannot identify him personally, he should secure the services of a person who knows the person to be arrested and should also provide himself, if available, with a photograph, a descriptive role and the marks of identification of that person. He should be sure of the identity of the person to be arrested.

2. The police officer should be in uniform with his name and number if any, on the pocket, besides carrying his identity card or, if in plain clothes, carry his identity card and should disclose his identity. He should arm himself with such firearms and

accessories required for his defence, if the circumstances demand such a precaution.

3. Police parties engaged on anti-dacoity, terrorist operations or similar duties which are likely to lead to arrests of dangerous persons, should carry handcuffs and leading chains to secure the arrestees, to prevent their escape or violence.
4. The person to be arrested with or without warrant should be informed of the grounds for making the arrest.
5. The arrest should be affected without unnecessary violence or publicity.
6. Section 46 of the Cr.P.C lays down that the police officer making the arrest of a person shall do so by actually touching or confining the body of the person to be arrested, unless there is submission to the custody by word or action.
7. When a person is to be apprehended and if he resists by force or tries to evade, the arresting police officer may use necessary force to arrest him except causing death. But if the accused to be arrested is involved in an offence punishable with death or imprisonment for life, the force can be even to the extent of causing death depending upon the circumstances.
8. When a person to be arrested is concealing himself in a closed place, the police officer has every right to enter such place even by force to affect the arrest. He can even arrest every one who obstructs him from discharging his duty. However, he must behave decently with women inmates.
9. Police officer can exercise the right of private defence of his body and others while facing resistance in making arrest.

Search of the arrested person by the Police

455-1. Whenever a person is arrested and not released on bail by a police officer a thorough search of his clothes and belongings should be made before putting him in lockup. Articles found upon him other than necessary wearing apparel should be placed in safe custody and if any articles are seized from his person, a receipt showing the articles taken possession by the Police Officer shall be given to such person. The personal articles of the person should be kept in safe custody in the Property Room (Malkhana) and entries made in concerned registers. If there are any incriminating articles or objects or materials, which might be necessary for investigation, they should be separated and the procedure for recording and despatch of case property to courts should be followed. The other property should be returned to him or his nearest kith or kin when he is remanded to custody.

2. Whenever it is necessary to cause a female to be searched, the search shall be made by a Woman Police Officer or another female with strict regard to decency.

3. The officer or other person making any arrest, shall seize from the arrested person any offensive weapons, which he has on his person and shall deliver all weapons so taken to the court or officer before which or whom he is produced.

25A24. Treatment of the arrested persons: Whenever any person is arrested by a Police Officer or by a private person and is brought to the police station, the SHO shall examine the body of the arrested person and note whether he has any injuries over his body. If any, injuries are observed irrespective of their nature, he should forward the said person to the nearest Medical Officer of the Government Civil Hospital or other Hospitals of local bodies authorized for medico-legal work, for treatment and injury certificate. The Medical Officer should be requested to specify the age of each injury.

5. When any person with injuries in a serious condition or a drunken person in uncontrollable condition, who is unable to take care of himself, is brought to the police station, the SHO shall immediately forward such person(s) to the Government Hospital. Any delay may cause death, in which case the Police Officer in-charge of the police station will be held responsible. The statement of the injured person should be recorded in the hospital and further action taken.

6. When an arrestee demands examination of his body, which will afford evidence to disprove the charge leveled against him and establish his innocence or evidence of an offence against his own body, the Police Officer should forward him to the Medical Officer of the Government Civil Hospital for the examination and injury certificate. Such a certificate shall be forwarded to the Magistrate concerned.

Police Custody

456-1. A person who is arrested and not released on bail shall be detained in a secure area of the Police Station earmarked for such purposes, under constant watch. A prisoner whom the SHO considers to be dangerous and is likely to escape should be kept in the lock-up under continuous and effective watch. This should be done only after making a thorough search and necessary entries should be made in the prisoners search register and guard or watch sentry relief book.

2. A person called to a police station for questioning in order to verify his complicity in any offence shall not be kept in lock-up, without effecting arrest. Arrested persons who are known to be goondas, rowdies, dangerous criminals, members of organized

gangs, terrorist groups, those likely to escape and charged in serious offences of murder, rape, kidnapping for ransom etc. should be kept in the lock up rooms.

3. A person in police custody shall not be permitted to leave the lock-up after sun set, except in special and emergent circumstances (and that too with adequate escort) which shall be recorded in the general diary and the Sentry Relief Book.

4. A person in police custody prior to remand is entitled to see his relatives and an Advocate. He should not, however, be allowed to talk to members of the public. If the arrested person desires that one of his relatives may be permitted to remain with him, his request should be considered unless there are compelling security reasons. If the arrested person for health reasons prefers to get his food from his residence, he can be permitted, but the person bringing food to the police station should be made to eat samples of all the food items before serving to the person in custody. However, in normal course, the arrested persons should be fed at Government's cost as per the rates approved from time to time.

5. Whenever any punitive action is taken or contemplated against a foreigner, he should be provided with facilities, if he so desires, to communicate over the telephone or by a telegram or letter, with the Counsel, High Commissioner or other representative of his country, as the case may be.

Arrest Reports or Memo

457-1. Every person arrested by a police officer without a warrant shall be forwarded for judicial remand to the nearest Judicial Magistrate within 24 hours excluding the journey time.

2. An arrest report or memo in Form No. 61 containing time, date and place of arrest shall be prepared at the time of arrest and will be sent by the SHO or Inspector, as required by section 57 Cr.P.C. to the Magistrate. The arrest report shall be attested by at least one witness who may be either a member of the family of the arrestee or a respectable person of the locality. The arrestee shall also countersign it. The other columns of the arrest card containing time and date etc. should all be filled up.

3. When any person is arrested for his involvement in number of cases under different transactions, separate arrest reports should be forwarded to the Magistrate(s) concerned. In the arrest report, the fact of remanding the arrested person or enlarging him on bail should be mentioned.

Procedure when arrests relate to Government employees, armed forces etc.

Railway Officials

458-1. The exercise by the Railway Police of the power of arrest without warrant given to them by Section 131 of the Indian Railways Act for offences under Section 101 of the same Act is discretionary. It should be exercised only in cases, when

A. there has been loss of life or serious injury to a person; or

B. a person is caught in the commission of a grave offence; or

C. the accused is likely to abscond or continue to endanger the safety of the public or tamper evidence and intimidate witnesses.

2. When an arrest is made without warrant, immediate intimation of such arrest must be given to the local head of the railway department.

3. Under ordinary circumstances, immediate arrest may not be necessary. A warrant should be applied for while maintaining a watch over the movements of the accused, where necessary.

4. Whenever the arrest of a Railway employee on duty is required, the department shall make arrangements for his relief. If, the relief cannot be arranged immediately or his immediate arrest would cause risk or inconvenience, the police should make all arrangements to prevent his escape and contact the authorities for immediate relief.

Arrest of Ordnance Factory Employees

G.O.Ms. 2013, Home, (Pol.C), dt. 24.8.1956.

5. Arrest of an employee of an ordnance factory owned or sponsored by the Government should be notified immediately to the General Manager or the officer in-charge of the factory.

G.O. Ms. 2013, Home (Pol.C), dt. 24.8.1956.

Arrest of Central or State Government or quasi-Government employees

6. When a Central government employee of any department or a State Government employee or an employee of a quasi-Government Organization is to be arrested by the police, wherever it is practicable and desirable, prior intimation of the arrest of such an employee should be sent to his immediate superior officer or the officer in-charge of the institution or department. The prior intimation must be treated as secret. Whenever prior intimation is given by telephone, it should be followed by a written intimation mentioning the time and date of such conversation. The fact of telephoning should be recorded in the General Diary if intimation is by SHO. If the intimation is by a superior officer he should make a record of it in the Telephone Register. After the arrest by the police,

G.O.Ms. 2013, Home, (Pol.C), dated 24.8.1956.

A. intimation of the arrest along with a copy of arrest memo should be sent immediately to the highest officer of the department available in the district to which the person belongs with a copy to the immediate superior officer (of the person) if, for any reason, prior intimation could not be given; and

B. This should be followed by a detailed report of the offence committed together with an indication as to whether the arrested person is being released on bail or personal bond, by the police.

Arrest of public servants on operational duty

G.O.Ms.No. 772, Home (Police-D) Department, dated 18.5.1965

7. When a public servant on operational duty of a department of the Central or State Government, e.g., railway staff like station masters, assistant station masters, guards, drivers and train control staff; or electricity department staff like sub-station attendants, is to be arrested, prior intimation should be given to his immediate superior, as a rule, to facilitate them to make alternate arrangements. Departure from the procedure should be made only in very exceptional cases and even in such cases; intimation should be given to the superior officer immediately after the arrest of the public servant. "However, in respect of the operational staff of the trains, prior intimation should invariably be given to the Railway Divisional Authorities or where this is not possible, to the superior available at the Station where the arrest is made".

Arrest of employees of Foreign Diplomatic/Consular Missions

8. In the event of the arrest of an Indian employee of a Foreign Diplomatic/ Consular Mission, intimation should immediately be given to the Foreign Diplomatic/Consular Mission through the Government.

Arrest of foreigners

9. When a foreigner is arrested, reports as required in Order 349 of Chapter 16 on Foreigners should be sent.

Arrest of Military employees

10-A. The arrest of personnel of Armed Forces including Navy and Air Force charged with the commission of an offence should be intimated to the Commanding Officer to enable him to take appropriate measures for the defence of the personnel.

B. Subject to sub-order (A) above, the person so arrested shall be dealt with in all respects like any other person in the matter of the investigation of the offence in respect of which he is arrested. The question as to whether he is to be tried by a Court Martial or a Court functioning under the Cr.P.C. is a matter for decision between the Commanding Officer and the Magistrate before whom he is brought by the police, in accordance with the rules made by the Government of India under Section 475 CrPC.

C. When any investigation, search or arrest is contemplated within military lines (quarters), the Police Officers concerned should be in uniform and if in plain clothes should carry identity cards and, so far as circumstances permit, prior notice should be given

confidentially to the Officer Commanding, Adjutant or Orderly Officer concerned.

Arrest of Indian Army Reservists

11. When a reservist of the Indian Army is arrested and remanded on a criminal charge, the facts of arrest and remand will at once be reported to the DGP with information to the Army unit to which the person arrested belongs. When the case is completed, its result and, in the event of conviction, the period spent in jail by the accused while under trial, prior to conviction and the sentence awarded shall be reported. The information so reported will be communicated by the DGP to the appropriate Army authority.

Arrest of Members of State and Union Legislatures

459. All the rights, that any arrested person has, are available to Members of Legislature and Parliament whenever they are arrested. All guidelines and instructions contained in this Chapter apply to them. The procedure contained in this should be scrupulously observed whenever any Member of Legislative Assembly/Council or Parliament is arrested by the police.

1. Govt. Memo. 6646/54-5, Home (Elec.II) dt. 8.3.1955;
2. Govt. Memo. 2233/56-1, Home, (Elec.II) dt. 24.4.1956;
3. Rc.3563/C1/63, dated 25th Sept., 1963;
4. G.O.Ms.No. 1392, Home, (Police-D) Dept., dt. 22.6.1966.

1. Whenever a member of a State or the Union Legislature is arrested, he should immediately be produced before the Magistrate concerned and there should be absolutely no delay. The police will send information of the arrest through a telegram or Radio Message, to the Speaker of the Lok Sabha or the Legislative Assembly, as the case may be. Failure to send immediate intimation to the presiding officer of the Legislature concerned will constitute a breach of the privilege of the House.

2. If a member of the Union or a State Legislature is concerned in an unimportant case, he need not be arrested, except when it is really necessary. When arrest is made in a bailable offence, the member should be immediately released on his own recognizance. If the offence is a non-bailable one, the member should be immediately produced before the Magistrate. In any case the fact of arrest and release on bail or remand should be intimated to the Speaker. Though the instructions are that the Magistrate should send intimation to the Presiding Officer of the Legislature concerned, prompt reporting by police is necessary.

3. A report of the arrest (whether released on bail either by the Police or by the Magistrate) should be sent by the SP/CP in whose jurisdiction the arrest is effected to the Speaker of the Lok Sabha, the Chairman of the Rajya Sabha, the Speaker of the State Legislative Assembly or the Chairman of the Legislative Council, as the case may be, by telegram or Radiogram or automex or fax with a copy of confirmation dispatched simultaneously by speed post along with a copy of Arrest Memo in Form-61.

4. The message should contain the information as furnished in the arrest memo sent to Magistrate and relatives (Form 61). Thereafter a detailed report should be sent to the Presiding Officers concerned containing the following information:

A. The place of custody or detention of the Member;

B. When a Member, who is under detention or is undergoing, a sentence of imprisonment is transferred from one jail to another, the change in the place of detention or imprisonment; and

C. When a member is released from jail on any ground e.g., on bail pending appeal or on the sentence being set aside on appeal or on the remission of sentence by Government on completing the sentence or on the termination of preventive detention, such release.

5. The SP/CP also should simultaneously report the arrest by telegram or radiogram to the DGP, to enable him to report it forthwith to the Government and the Secretary to the Legislature. The copies of such reports should also be sent to the superior police officers.

Police lock-ups and treatment of persons in custody and under trial prisoners

Rc.No. 449/ J3/62, dated 10.10.62

460-1-A. Once a person is in custody of the police, the responsibility for his life and safety will be totally on the police. The physical and psychological condition of every person in custody is a major factor that should determine the precautions, facilities and arrangements required to be made. The other factors such as the nature of the offence in which he is involved, the investigation required to be done, the antecedents, age, sex, ignorance and vulnerability are all vital and crucial. While every case has its peculiar features and circumstances, certain important stipulations should be observed.

B. The first requirement is physical safety of the person in custody. This includes safety from injury and death, whether self inflicted or otherwise. As the psychological state of each individual cannot be accurately gauged, it is necessary to realize that the general mental state of a person arrested and brought to police station would be fear, shock, trauma, sense of guilt and shame etc. Suicidal tendencies therefore develop. Hence the place where he is lodged should not contain anything including his apparel or belongings that afford him any opportunity to attempt or commit suicide.

C. There should be a watch on the person all the time, at least by one policeman. The room or place where he is kept should be such as to afford a full view to the Police Officer posted to watch him and also to the Station Writer, HC or Duty officer. The place of work of these two should be so adjusted as to afford a complete view of the lock up rooms.

D. Wherever any attempt or suspicion about the movements or action comes to notice, the lock up room should be opened and searched. There should be effective intervention to prevent attempt at suicide and injuries. The whole episode should be recorded in the station General Diary, Sentry Relief Book and the person should be sent for Medical examination with a report. The Magistrate and all other authorities to which Form 61 report is made should also be informed in writing.

E. The statements of other persons in custody and those present should also be recorded and enclosed to the report.

F. Since the person is in custody, sometimes even self-inflicted injuries or suicides can be interpreted as those caused by police. Hence effective and timely intervention, contemporaneous recording of events, reporting to all concerned of such attempts by persons in custody are important.

G. No Police Officer or IO shall use any force or cause any physical injury during interrogation of the person in custody. If such injuries are caused and result in death of the person, the Police Officers concerned will be liable for prosecution for homicide and the burden of proof of their innocence lies on them.

Article 5 of Universal Declaration on Human Rights

H. No one shall be subjected to torture, or to cruel inhuman or degrading treatment in custody.

2. Two blankets and two dhurries for rural stations and four blankets and four dhurries for town police stations having lock-ups should be supplied for the use of persons in police custody for each lock-up. These should be always kept clean, washed and dried. These articles will be treated as station property and the officer in-charge of the station or Outpost will be responsible for their issue to such of the prisoners who do not provide themselves with their own bedding.

3. The police lock-up, if it contains a prisoner or prisoners shall be unlocked at daybreak. The bedding of the prisoners, shall be at once brought outside, well shaken and left for some hours in the sun.

G.O 3017, Home, dt. 2.8.1937.

4. In lock-ups where toilet facilities are not provided, the night vessels, if any used, shall be removed and toilets shall be thoroughly cleaned. Wherever toilets are provided they should also be thoroughly cleaned.

5. The persons in custody shall be taken to the latrine and shall be allowed to wash. They shall be given food daily at 10.00 am or earlier if necessary before he is taken to Court and again at 5 pm. If prisoners are not brought to the station before the hours prescribed for meals they should be given food as soon as possible after they are confined in the lock up rooms. They should be fed at government cost if food is not brought by their relatives.

6. Officers in-charge of Police stations and officers in-charge of guards will be held personally responsible for strict compliance of these orders.

7. Prisoners are not to be subjected to needless indignity or harsh treatment. At district Headquarters or at places where police vehicles are available, prisoners should be conveyed from jail to court and back in the police vehicles. Prisoners whose confessions are to be recorded should be taken to the Court from the jail in a police van, when available, escorted by warders as a special case. In places where there is no police van, but where public transport is available, under-trial prisoners should be conveyed by normal bus service, irrespective of the distance to be travelled, provided that the number of prisoners to be taken at a time is small and can be controlled easily and provided that their presence in the bus does not cause inconvenience or annoyance to members of the public using it. In places where none of the above modes of conveyance are available, under-trial prisoners who are persons of good social position, accustomed to use a conveyance, may be allowed a conveyance, provided

their safe custody is not jeopardized. The same rule should be followed in the case of prisoners who are certified by a Medical Officer to be physically unfit to walk. In other cases, prisoners should go on foot except in the cases noted below, but no prisoner should be compelled to march on foot for long distances.

G.Os. 464, Pub. (Pol.), dated 19.10.1930; 1917, Law, (Genl.) dated 11.3.1932 & 5394, Home, dated 13.10.1939.

A. When convicted prisoners are escorted along with under-trial prisoners, the former may be conveyed by the transport Bus in which the latter are conveyed, irrespective of the distance travelled, in order to avoid the inconvenience and expense of providing a separate escort for them.

B. Whenever women prisoners have to be escorted by road, they should be provided with a conveyance, where the distance to be travelled by them exceeds 2 km. Conveyance may also be provided for shorter distances for reasons of health or custom or for other valid reason. Failure to make such provision would cause undue hardship to them.

G.O.Ms 2768, Home, dt. 27.6.1940

Use of handcuffs

461. The use of handcuffs or leg chains should be avoided and if at all, it should be resorted to strictly in accordance with the law mandated in judgment of the Supreme Court in Prem Shanker Shukla vs. Delhi Administration (1980, 3 SCC 526) and Citizen for Democracy vs State of Assam (1995, 3 SCC 743). The points to be observed in this regard are as follows:

1. When an accused is in Court during the trial, he must be held to be in the custody of the Court. If an accused is so dangerous that it is necessary to handcuff him, representation should be made to the Court, and the Court will issue appropriate instructions in the matter. Accused persons while in Court during trial should not be handcuffed except with the permission of the Court.

G.O. Ms. 1832, Home, dated 10.5.1951.

2. Under-trial prisoners and other accused persons shall not be handcuffed and chained without specific permission of the court and only if there is a reasonable apprehension, either due to heinous nature of the crimes with which they are charged or from their character or behaviour that such persons will use violence or will attempt to escape or that an attempt will be made to rescue them. The same principle shall be applied to convicts proceeding in public places while in police custody. Vindictivity is to be differentiated from necessity.

G.O.Ms. 108, Home (Pol.D) dated 17.1.61.

3. Whenever non-convicted accused persons are handcuffed with court's permission, the fact and the reasons for it shall be stated in the Station House general diary, the sentry relief book, and in the remand diary forwarded to the Magistrate.

G.O. 615, Judl., dated 24.4.1908.

4. The prisoners either convicted or under trial and confined in a sub-jail shall not be handcuffed, whenever they are taken out in the precincts of the sub-jail for food or other necessities, rather the entire guard including the guard commander shall be present. If there are more number of prisoners, the guard in-charge should inform the officer in-charge of the police station to send two or three constables to assist the sub-jail guard during the period when the prisoners are taken out. The officer in-charge of police station shall provide extra manpower as required by the guard-in-charge.

5. Whenever, it is considered necessary to handcuff certain prisoners confined in sub-jail, while they are taken out, the written orders of the Magistrate should be obtained and the permission granted by him should be maintained in a book to be kept by the guard officer.

6. With regard to a refractory, violent or dangerous prisoner, the officer in-charge of the sub-jail guard or the senior Police officer present may control him only by utilising more personnel and by such force as may be necessary, while rushing a messenger to the concerned court or Magistrate for permission to handcuff him.

7. Under-trial prisoners or accused persons in Hospital should not be handcuffed without permission of the court. In no case should prisoners or accused persons who are aged and bed ridden in hospital or women prisoners, juvenile prisoners or civil prisoners be handcuffed or fettered. If necessary, extra guard should be provided.

G.O.Ms. 108, Home (Pol.D) dated 17.1.1961.

8. The restriction on use of handcuffs is not to place any embargo on use of minimum force to control a violent prisoner.

Sick prisoners

462-1. When a prisoner, who arrives at a Police station, is seriously ill, medical aid should be provided. When not available, the prisoner should be sent by the quickest conveyance available, if his condition admits of it, to the nearest station where medical assistance can be procured.

2. Prisoners attacked by cholera or other infectious or communicable disease in a police station should be removed from the lock-up and placed in an airy part of the station and all possible treatment provided.

3. Whenever sick prisoners are brought from rural police stations to district head-quarters hospitals and admitted as in-patients, the fact should be reported to the Superintendent of Police of the district or Dy. Superintendent of Police or the Inspector of the District Reserve Police in whose area the hospital is located, and an armed guard will be provided from the Reserve.

4. In larger hospitals in cities, where prisoner's wards are provided, the guard provided for the prisoner's ward should take charge of such prisoners brought from the districts. The guard in-charge of the district headquarters hospital or city hospital, should find out from the resident Medical Officer or in-charge Medical Officer of the ward about the probable date of discharge of the prisoner. The information about date of discharge should be furnished to the police station or district from which the prisoner was admitted to the hospital, so that; the concerned police shall take back the prisoner.

5. Most of the District Headquarters Hospitals/General Hospitals are provided with prisoners' ward. If such provision is not available the SP or the CP should take up the matter with the concerned authority and ensure that the prisoners' ward as per the norms is provided. The prisoner irrespective of his status should be lodged in the prisoners' ward as to ensure their safety and enable the police to guard them effectively. This would also prevent inconvenience to other patients. Arrangements are to be made for their treatment in the prisoners' ward itself except where it is necessary to shift them in emergencies either to an operation theatre or to an Intensive Care Unit. The government has issued instructions in this regard to the concerned authorities.

6. In case of death of a prisoner admitted to the hospital, the officer in-charge of the police station in whose jurisdiction the hospital is situated shall register a case under section 174 CrPC and, inform the Executive Magistrate to hold inquest and make such other enquiries. Finally the dead body will be handed over to the relations through concerned police.

Scale of accommodation for prisoners

463-1. The maximum number of prisoners that can be confined in a lock-up should, in each case be fixed by the Superintendent of Police in consultation with the Executive Engineer, Police Housing Corporation or Roads and Buildings Department, having regard to the accommodation available therein. A notice in English, Telugu, Urdu and Hindi should be displayed outside the lock-up, showing the maximum number of male or female prisoners who may be confined in it. The number so fixed shall never be exceeded; and any excess over the authorized number shall be accommodated in any convenient building with adequate guard.

G.O.s. 1672, Judl., dated 11.7.196 and 325, Home (Judl.) dated 9.2.1918.

2. For purpose of the above Order, 16 cubic metre of breathing space and 4 square metre of ground space should be taken as the minimum requirements for each prisoner to be accommodated in a police lock-up.

PWD Circular, Memo. 3266, G, dated 19.7.1917.

3. The design of the lock-up rooms should be prepared in such a manner as to ensure adequate ventilation and light and other safety measures. The electrical wiring should be concealed and the lights embedded in the roof with the switch being kept outside at the entrance to the lock-up. There should be no rods or hooks either on the ceiling or on the walls and both ceiling and walls should be smoothly polished and white washed frequently.

Accommodation of persons outside the lock-up rooms in the station premises

4. Those prisoners who are not likely to escape or create any problem or those who are not involved in any serious crimes and the women may be allowed to be in any area of the police station under watch. They should not however be allowed any contact with outsiders except with their advocate or in case of women with a female relative.

5. In case where large numbers of persons are arrested under 151 CrPC to prevent breach of peace, they may be made to sit in a place either within the premises of police station or in another building which has access control and with facilities for drinking water and toilets. Where it is not necessary to detain them for any length of time they should be released after making a complete record of each person and the reasons for arrest in the concerned records. Where it is felt necessary to detain them for a few hours and they are not required to be produced before a Magistrate for any specific offence they may be released by the SHO at any time that he considers appropriate. The detention should, in any case, not exceed 24 hours as laid down in section 57 of CrPC. They should all be given food at government cost if not arranged by their relatives or friends.

Confinement of other department prisoners in lockup

464-1. When any prisoner arrested and escorted by officers of other units such as police stations & CID, Excise, Customs etc., are brought for confinement in the police station lock-up, a written requisition shall be given to the officer in-charge of the police station and the latter shall keep such prisoners in the lock-ups. The Officers of the other units will keep their subordinates besides police station guard. If there are no prisoners in the concerned police station lock-up, the key of the lock-up shall be given to the officers of other branches or units or departments and they will be responsible for the prisoners safe custody.

2. In the lock-up if there are already prisoners of the concerned police station, the key shall remain with the in-charge of the guard.

3. In all circumstances, the duty of supplying the prisoners with food and guarding them, when taken outside the lock-up, shall lie with the outside officers.

Escape from Custody

465-1. In all cases of escape of prisoners from police custody including those from jails where police guards are posted, a report by Automax, Fax, Radio or Telephone shall immediately be sent by the Superintendent of Police or the Commissioner of Police as the case may be to the Director General of Police, Addl. DGsP, L&O, Intelligence, CID, Zonal IG/DIGP who will communicate the information immediately to the government.

G.O.Ms.No. 1599, Home (Prisons-B) Department, dated 4.9.1966.

2. The radio or telephonic report shall immediately be followed by a detailed report in triplicate furnishing the circumstances under which the person escaped, whether the escape of the prisoner was accidental or as a result of collusion or negligence, the action taken to apprehend him, the person or persons responsible for the escape, the exact quantum of responsibility to be attached to the Police personnel involved and the action taken against them, and other relevant particulars. These reports should be properly drafted and neatly typed with proper care.

1. G.O.Ms.No. 1599, Home (Prisons-B), dated 1-2-57;
2. Govt. Memo No.14957/57-1, Home (Prisons-B), dated 26-1-57;
3. Govt.Memo No. 53948/57-2, Home (Prisons-B), dated 18-7-57 and
4. Govt.Memo No.11974/60-46 dated 17-10-1962

3. Copies of the reports shall be sent by the Superintendent of Police to the Zonal Inspector-General/DIGP. Copies of the reports in respect of cases of escapes from jails where Police Guards are posted shall also be sent to the Director-General of Prisons, Andhra Pradesh, Hyderabad.

Rc.No.1940/ C2/64, dated 22nd October, 1964.

4. The above orders apply also to juvenile convicts.

Rc.No. 3406/ C2/63, dated 17.10.1963 and
Rc.No. 1940/ C2/64, dated 22.10.1964.

Bail

466-1. Bail broadly means security for release of a person who is arrested. A person is released on bail with or without sureties. Offences are of two types as far as bail is concerned, bailable and non-bailable. When a person is arrested for a bailable offence, he is entitled to be released on bail either by the SHO or by court. In cases of arrests for non-bailable offences, bail is discretion.

2. Bail in bailable offences: The SHO is competent to release a person on bail when arrested for bailable offences. If the arresting police officer is not the SHO, the arrestee shall be produced before the SHO with a written report for release on bail. If the accused jumps bail in a bailable offence and when he is arrested again, it should be treated as a non-bailable offence. In case bail is given by SHO in bailable offence the bond should be taken in Form 63. The detailed addresses of the sureties have to be noted there in.

3. Bail in non-bailable offences: When a person is arrested for a non-bailable offence ordinarily he shall be produced before the court but the SHO may release on bail in exceptional cases covered by section 437(1) and (2) Cr.P.C after obtaining express permission by SP / DCP / CP concerned.

4. Points for opposing bail in non-bailable offences:

- A. Likelihood of absconding.
- B. Possibility of tampering with evidence, intimidation and threats to witnesses.
- C. Likelihood of repeating the offence.
- D. Nature of the offender and the seriousness of the offence.
- E. Likelihood of breach of peace and tranquility in the locality.
- F. Likelihood of retaliations by the victim's party.

5. Bailable warrants: - When a person is arrested under a bailable warrant, he should not be compelled to come to the police station to give bail. He should be given bail at the place of arrest if he offers security.

Anticipatory bail

467-1. When a person apprehends arrest for a non-bailable offence on a reasonable suspicion, he may apply to the High Court or Sessions court to give a direction to release him on bail in case he is arrested.

2. In such cases the court gives notice to the P.P. for his objections, if any. The SHO must furnish the P.P. with sufficient information to enable him to argue the case.

3. In case the order is given in favour of the petitioner, the direction will be that he should be released on bail in case he is arrested on taking security as specified in that order. This clearly shows that the police officers are competent to arrest even if one gets such order. The only facility is that he should be released on bail in case of arrest without producing him in court.

4. The court may be requested to impose conditions in case an order is given in his favour. Such conditions can be;

- A. That the person shall make himself available for interrogation as and when required.
- B. That, he shall not directly or indirectly tamper with evidence or witnesses.
- C. That, he shall not leave the place or the country.
- D. That, he shall co-operate with the investigation.

Remand of arrested accused

468-1. When a person is arrested during the course of investigation and if the investigation is not completed within 24 hours, the officer in charge of the police station shall forward the accused to the nearest judicial magistrate along with a remand report enclosed by the case diary written till that date.

2. The accused will be remanded only when the investigation discloses some offence against him so far and further investigation is needed for completion.

3. A remand at a time will be for a maximum period of 15 days. However in cases under A.P. Control of Organised Crimes Act 2001 and Prevention of Terrorism Act 2002, the police remand may be for 30 days.

4. Further remand, if necessary, is only by the jurisdictional magistrate.

5. The police can seek remand for 60 days in ordinary cases where offences are punishable with imprisonment for less than 10 years and 90 days in cases punishable with death or life imprisonment or with imprisonment for not less than 10 years. If the charge sheet is not filed within that period, the accused shall be entitled for a bail even in a serious case like murder.

6. No accused shall be remanded to judicial custody unless he is produced before Magistrate. But in Andhra Pradesh an accused can be remanded even from jail by means of video conferencing.

7. An accused can be remanded separately for each and every case committed under different transactions.

8. Remands always shall be given by the Judicial Magistrate, but in the absence of any Judicial Magistrate, an executive magistrate on whom the powers of Judicial Magistrate are conferred can give remand, if the arrested person is produced before him. In such cases the remand can be only for a maximum period of 7 days by executive magistrate. Beyond this, remand can be given only by the competent Judicial Magistrate.

Police custody

469. Some times it is necessary for the police to interrogate an accused who is remanded to Judicial custody. In such cases whenever a police officer requires any accused to police custody, the following points shall be borne in mind:

1. Taking a person to police custody is only granted when the magistrate finds sufficient reasons. Therefore the police officer in his requisition shall state satisfactory reasons.
2. Police custody can be given only within the first fifteen days of remand and that too for a maximum period of 15 days. Police custody can be taken for different remands made in different cases.
3. After the period of custody is over, the accused person shall duly be produced before the magistrate within time.

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Andhra Pradesh Police Department

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CHAPTER 26

Identification

470. When a witness says that he can identify accused persons or others connected with the case under investigation, the investigating officer shall record the description of the accused persons in detail. In doing so the IO should specifically ascertain by carefully questioning about the details i.e. the colour of hair, physical features on the face, manner of wearing clothes, height, lean or stout, gait, language spoken, the manner of speaking the language, physical peculiarities noticed. Computer facilities may be utilised wherever possible to draw the figures on the description given by the witness. Each witness should be examined separately about each suspect. This is a very important step and will prove extremely useful in tracing the offenders. All that each witness says should be recorded in detail and the picture drawn after description should be kept on record along with the statement recorded.

1. Care must be taken that the witness has neither the occasion to see the suspect in custody nor the opportunity to see the photographs or videographs of suspect in custody before identification.
2. Invariably identification parades of person should be conducted by a Judicial Magistrate. After making all arrangements for the parade, the police officers should completely withdraw themselves, leaving it to the Magistrate to conduct the actual identification proceedings.
3. The accused should be mingled with persons of similar description, status, build and age, in the proportion of a minimum of 1:5 and a maximum of 1:10. Persons already known to the identifying witnesses should not be selected to stand along with the suspects in the parade. They must be made to take their positions, along with the persons with whom they are mingled in a line. They should not be made to stand together. The Magistrate conducting the parade should satisfy himself that no police officer takes part in the actual identification proceedings, that witnesses are kept out of view from the premises where the parade is taking place and that it is not possible to communicate with them by signals or other communications. Witnesses should then be called in, one by one, and asked to go round the persons assembled for the parade and point out the accused, if any. If a witness identifies any of the accused, it should be verified whether his description tallies with that recorded already in the case diary, and proceedings regarding the identification should be drawn up and signed by the Magistrate. Statements made by the identifying witnesses to the Magistrates at the time of the identification should be recorded in the proceedings. Even if a witness makes a mistake, it should be recorded. In short, the proceedings must contain a complete record of all that takes place in the identification parade. After the identification by one witness is over, care should be taken to see that the witness does not mingle or communicate with the other witnesses for whom identification parade is yet to be conducted or other outside persons. The whole parade will then be reshuffled and the accused made to take different positions and the same procedure will be repeated for the other witnesses also. Any well-founded objection by any accused during the identification parade should be recorded. After the completion of the identification parade and the drawing up of the proceedings, a certificate in the following form must be appended and signed by the Magistrate conducting the parade:

A. "I, the undersigned, took all necessary precautions, and am satisfied that no police officer was present at any time of the proceedings, when the parade was held".

B. "No opportunity was given to the witnesses to see or know about the proceedings of the parade".

471. When the identification parade is to be held in a jail, the jailor on admission of the suspect should be informed of the intended identification. The jailor should prohibit any change in the appearance of the prisoner from that in which he was admitted to jail, e.g., beard not to be shaven or grown and the same clothes to be worn as at the time of the entry. The officer conducting the identification parade should keep a detailed record of the entire proceedings.

Identification by photographs

472-1. Photographs of certain classes of criminals, or offenders, for instance, professional persons, notorious dacoits, terrorists, Drug Traffickers, Organized Criminal gang members are maintained in the District Crime Records Bureau. Photographs exist also for dossier criminals, and bad characters. Witnesses may be shown the photographs of suspect mixed with the photographs of several non-suspects and asked to identify the photograph of suspect for the purpose of investigation. In cases where criminals are identified through photographs, a regular identification parade should also be held after the apprehension of the accused.

Identification through finger, foot impressions and DNA

2. Identification can also be established from finger and foot impressions left on the scene. Finger and foot impressions found on the scene can be developed, lifted and compared later to find out whether they tally with those of the suspected persons or not. Identity is also established through DNA finger printing from stains or pieces of skin or flesh. The details of these are given in the Chapters dealing with Finger Prints and Scientific Aids to Crime Investigation. As identification of accused or suspects or deceased is a vital factor in crime investigation the IO should be fully conversant with the instructions contained therein.

Previous conviction - how proved

3. As prescribed in section 298 of Cr.P.C, in addition to any other mode provided by law, a previous conviction can be proved by calendar extract certified by the concerned court. The previous conviction can also be proved by a certificate from the Jailor or the warrant of commitment. In each of such cases, evidence as to the identity of the accused person with the person so convicted may be given by the concerned police officer.

Power of police to take measurements

473. Under the Identification of Prisoners Act 1920, the police officer can take the finger print, photograph and other measurements of a prisoner, if he is,

A. convicted for an offence punishable with one year or more, or

B. ordered to give security for good behaviour under section 110 Cr.P.C.

2. Such persons who are required to give measurements, if refuse to give measurement, the police officer can take the orders of the magistrate. Refusal or resistance by the person makes him liable for action under section 186 IPC.

3. The State Government has promulgated "A.P. Identification of Prisoners Rules 1975" in which rule 12 and 14 specify the classes of persons whose fingerprints and photographs are taken. These photographs, measurements and records should be kept in P.S. records, DCRB and SCRB and in appropriate cases in NCRB.

Identification of property

474. In respect of properties, which are already sent to court, the identification has to be done in the court premises under the orders of the magistrate, either by the magistrate himself or through independent witnesses. In other cases, independent witnesses under panchanama shall hold identification of property in the absence of police. The properties to be identified should be mixed with similar articles and the witnesses should be asked to identify.

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CHAPTERs[Volume1](#)[Volume2](#)[Volume3](#)**CHAPTER 27****Case Diary**

475-1. Section 172 CrPC requires that every Police Officer making an investigation should enter day by day his proceedings in a diary, setting forth the time at which the information reached him, the time at which he began and closed his investigation, the place or places visited by him and a statement of the circumstances ascertained through his investigation.

2. The case diary proper, which should contain the details mentioned above, should be written in Form 64.

3. Statements of witnesses examined by the Police during investigation should be recorded in Form 65 and should be attached to the case diary for the day.

4. There will be a docket sheet in Form 66, for each case file.

476-1. Case diary is a confidential and privileged document. Though the accused has no right to look into it, the court may look into the diary. However if the police officer refreshes his memory while giving evidence by looking into the case diary, the accused is entitled to look into that portion as referred by the police officer and may use it for contradicting the police officer.

2. The Investigating Officer and his superiors shall ensure the physical safety of the case diary as well as its contents. Any leakage of the contents to any person other than authorized by law leads to undesirable consequences and will be detrimental to prosecution. They should not permit access to any unauthorized person particularly the accused or their agents or their counsel. The officer who has custody of case diaries either as an IO or a superior officer supervising investigation should ensure that it is handed over to their successors in office. The access to the case diaries is limited only to the IO, the superior officers and the concerned legal officers who are in charge at a given time and not to others.

477. The following instructions shall be observed in writing case diaries.

1. Every case diary should be in the Form 64 and contain the following information noted in the margin:

- A. date and hour of taking action;
- B. date of report of the case;
- C. name of the complainant or informant;
- D. names of accused known, if any;
- E. property lost;
- F. property recovered;
- G. date and last page of the previous case diary, if the case diary is not the very first one;
- H. name of the deceased, if any, and
- I. names of witnesses examined.

2. The first Case Diary should commence with a brief summary of the FIR, the time of receipt of the complaint, delay if any, in starting for the scene, the time of departure for and arrival at the scene, and description and plan of the scene as prescribed in Order 420 and 421 of Chapter 22. In cases where there is no scene as such like in Financial Crimes, the records and places where such records or data recording, storage or retrieval systems are located, the method of crime as reflected at such places, objects, computers, documents etc. and the plan or sketch or diagram representing the crime scene so to say may be described or drawn up as is possible.

3. A statement of circumstances ascertained through the investigation at the place or places visited by the investigating officer, and the date and hour of closing the investigation shall be noted. Every step taken by the IO shall be mentioned as concisely as possible. Every clue obtained, even if at the time it appears likely to be of no value, houses searched with reasons for the search and the names of witnesses to the search, property recovered, its description and place where it was found, arrests, information obtained which is likely to prove of value, and methods adopted by the suspects/accused are among the things to be mentioned in the case diary. The substance of the statements of witnesses shall find place in the case diary. The IO shall record in Form 65 the statements of persons examined by him in detail separately and attach to the case diary of the day as Part II.

4. The case diary shall be written incorporating the investigation done on each day. Statements of witnesses should be reduced to writing on the spot in Form 65. If it is not possible they should be written in the IO's note book, and transcribed in the prescribed form as soon as he returns to the Station House. If, for any unavoidable reason, notes had to be taken on separate sheets of paper, these should not be destroyed after the case diary is written but preserved in the case file.

5. Case diaries and statement of witnesses will be duplicated by carbon process or by photocopiers. The original is retained in the station and the other sent to the SDPO concerned who shall deal with the case diaries in the manner prescribed. In cases investigated by Sub-Inspector who is also SHO of Police Station the case diaries will be directly forwarded to SDPO concerned who in turn shall, after scrutiny and necessary instructions to the I.O., dispose them off as prescribed.

6. In the concluding diary, the investigating officer shall record a summary of the reasons which have guided his final decision in the case. If he considers that there is no case, his reasons will, of course, be more detailed and fuller than the one sent up for trial.

7. The names of informers need not be entered in the diary and no court can compel an investigating officer to disclose the name of an informer.

8-A. When a case is reported and police reach the scene, they should guard the scene and take other measures to apprehend or pursue the offenders.

B. When a case is transferred from one investigating officer to another, the officer taking over the investigation shall take charge of the diary, noting therein the date of assuming charge of the investigation of the case.

C. The question, whether it is necessary to re-examine the witnesses already examined and record their statements when a subsequent investigation is taken up by another officer, is often raised. Ordinarily, such further investigation is taken up in the following instances:

- When a case was first investigated by a Head Constable or a Sub-Inspector and is later taken up by his superior officer, i.e., the Sub-Inspector or the Inspector;
- When local Police or Traffic Police or Railway Police takes over the investigation from one another on point of jurisdiction;
- When a case is reinvestigated by the Crime Investigation Department.

D. In such cases, it is incumbent on the succeeding investigating officer to verify the investigation made by the previous I.O. and to re-examine all the important witnesses already examined, to ascertain the facts and circumstances of the case. But, as regards the recording of their statements, law does not require the investigating officer to reduce such statements into writing. The Andhra Pradesh High Court has observed that, "Courts will not expect a Police Officer to stultify his investigation for the purpose of making such a record". It is, therefore, enough if the second investigating officer, in case he is the superior to the first investigating officer, re-examines witnesses with reference to their previous statements already on record and certifies to their correctness. If any additional facts are spoken to by any witness, the second investigating officer will have to record those facts and note such other facts as may be necessary in clarification of the facts and omissions in the statement already recorded. However, in a case where the statement recorded by the first investigating officer is devoid of essential details or has omissions or defects, it is advisable for the second investigating officer to record the statement once again in detail. In such case both the statements will remain on record and supplied to the accused.

E. In a case taken up by the CID, the I.O. of the CID is expected to verify and re-investigate the entire case and not merely to continue the investigation already done by the local Police Officer. To that end, it is necessary that he should not only re-examine the witnesses but also record their statements in full. The fact that the recording of such statements may lead to possibility of contradictions and deviations in the statements of witnesses and may cause inconvenience to the police in furnishing copies to the accused cannot be valid and lawful ground for evading it.

9. Those who, under the orders and directions of the investigating officer, assist him by making any enquiries, do not thereby become investigating officers under Chapter 12 of CrPC. Therefore, it is not necessary for them to write case diaries under section 172 of CrPC. The result of any enquiries such officers make or action they take pursuant to the orders or instructions of the investigating officer will be communicated by the former to the latter by means of a special report. Head Constables will also make necessary entries in their notebooks. The investigating officer shall incorporate the gist of such special reports in his case diary u/s 172 CrPC.

10. In inquiries under section 174 CrPC relating to suicide and accidental deaths, statements of witnesses examined during the inquest will be recorded separately and attached to the inquest report. However, in a case where it has not been clearly established that it is a suicidal or accidental death, though the panchayatdars at the inquest have so opined, a case diary should be written discussing the evidence gathered and available during the inquest and the grounds for treating the case as an accidental or suicidal death not warranting investigation. When a Head Constable holds an inquest, the Sub-Inspector should subsequently verify the investigation, and the result of such verification should be embodied by him in a case diary. A case diary should also be written summarizing the result of the postmortem examination, if conducted.

11. In order to report the progress of trials in courts, case diaries should be written, reporting details of all hearings and adjournments, the witnesses examined at each hearing, how each of them fared, gist of arguments of defence and prosecution, Court observations or orders and other matters of interest, if any, particularly with reference to their statements before police earlier and other material particulars including name and designation of the Police Officer who attended the Court.

12. Remands should be applied for along with case diary. Sub- Section (1) of Section 167 of CrPC requires a copy of the case diary to be sent when remand is sought. The investigating officer should, therefore, prepare an additional copy of the case diary,

when he is aware that he will have to send a prisoner for remand. The statements recorded under section 161 Cr.PC till then should also be enclosed to the case diary.

13. Case diary forms should be used for applying to Magistrates for warrants of arrest or search, for proclamations and other orders connected with investigation and for forwarding search lists provided these communications refer to registered cases. Ordinarily, the memorandum form will be used.

14. Case diaries should also be written in cases, referred by a Magistrate to the police for investigation under section 155, 156 or 202 of CrPC.

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CHAPTER 28

Completion of Investigation and Final Disposal

General

478-1. Section 173 Cr.P.C. lays down that every investigation by police made under Chapter XII Cr.P.C. shall be completed without unnecessary delay. The provisions of the section are mandatory and any avoidable delay in the completion of investigation and submission of charge sheets, final reports therefore, militates against these basic principles of law.

2. All investigations must be completed within the time limit provided under section 468 Cr.P.C. as no court will take cognizance of an offence after the expiry of that period. The period of limitation is;

A. Six months if the offence is punishable with fine only;

B. One year, if the offence is punishable with imprisonment for a term not exceeding one year;

C. Three years, if the offence is punishable with imprisonment not exceeding three years.

3. The prosecution will have to explain the reasons for the delay if the charge sheet is filed after the expiry of the period of limitation. The Court has to be satisfied with reasons adduced for delay.

4. Sections 469 to 472 Cr.P.C. deal with the commencement of limitation, exclusion of time in certain cases etc.

5. The limitation permissible under law is quite liberal. It should not be construed to mean that the cases can be delayed up to the maximum period of limitation. The following maximum time limits are prescribed for completion of investigation for some of the cases:

4 months	for offences u/s 120A, 120B, 121 to 130, 403 to 409, 463 to 489E IPC and in complicated cases affecting the human body, culpable homicide and murder and complicated cases of cheating;
3 months	for offences u/s 363 to 374 IPC and Dacoity;
2 months	for offences u/s 131 to 140, 166 to 171, 230 to 263A, grievous hurt, 339 to 348, 376 to 377, robbery, house breaking and theft, 421 to 424, 490 to 492, and 494 to 502 IPC;
1 month	for offences u/s 141 to 160, 171-A to 171-I, 191 to 227, simple cases of 299, 300, 349 to 374, theft, extortion, 425 to 440, 441 to 462, 503 to 511 IPC, and offences under special and local laws;
15 days	for offences u/s 172 to 190, 264 to 298, hurt, 410, and 414 IPC.

Note: The above time limits are prescribed with a view that no investigation shall be prolonged beyond a point. However every effort should be made to complete the investigation as expeditiously as possible.

6. As per section 167(5) Cr.P.C., when the police officer arrests a person in a summons case and if the investigation is not completed within 6 months and whether the person is on bail or in custody, the magistrate is competent to order the closure of the investigation and on such order further investigation is not allowed unless ordered by the session court. Therefore in such cases, it must be ensured that the investigation is completed within that period.

7. In cases where the accused are caught red-handed with property, there should normally be no delay at all in the submission of charge sheets. In such cases, the accused should be forwarded in custody to the Magistrate having jurisdiction along with the charge sheet, unless the accused is a stranger and his antecedents need verification or there is information of his having committed other offences or is a member of an organized crime gang.

8. Section 167(2)(a) Cr.P.C. empowers the Court to order release of the accused in custody if the charge sheet is not filed within 60 days or 90 days as the case may be. Hence, the IO should complete the investigation in the above cases within the time prescribed.

9. If the investigation could not be completed within the said period of 60 or 90 days the accused will be entitled for bail. Care must be taken to speed up investigation in such cases if the accused is to be continued in remand. However, incomplete charge sheet shall not be filed for the sake of keeping the accused in remand.

10. Sections 173(8) Cr.P.C. provides for a supplementary or additional charge sheet. This provision is not a substitute for original charge sheet. This provision is meant for filing a subsequent charge sheet only when there is fresh and further evidence about the offence or offender, which is not known at the time of filing the first charge sheet.

479-1. The investigation must be completed without unnecessary delay. The investigating officer should scrutinize the evidence and fix the liability of each accused by independently arriving at a decision.

2. The charge sheet shall be prepared, forwarded and presented to the court only by the SHO/I.O.

3. The IO should prepare report in Form 67 giving the details of the case, discuss the nature of evidence and the liability or otherwise of each accused, the probable defence and its plausibility or otherwise and finally the action proposed by him.

4. The IO while considering the case should not act as a mere post office to transmit each and every case to the Court. At the same time it is also not desirable that he should usurp the function of the trial court by examining the evidence inch by inch. Availability of sufficient evidence does not mean sufficient ground for conviction but such evidence as would be sufficient to put the accused on trial. Where there is reasonable doubt, as to what evidence is to be believed, it is better the SHO sends the case to the Court which is the proper authority to resolve the doubt. Where two views are possible the case should be sent for trial. A case should be charge sheeted if the following grounds exist on an overall assessment of evidence.

A. when there is a prima facie case;

B. when there is some legal evidence in support of the case, which if believed, may lead to a conviction;

C. when the evidence on both sides is equally balanced;

D. when the state of evidence is such that the benefit of reasonable doubt can possibly be given to the accused.

5. After completion of the investigation the SHO shall forward the file along with Form 67 to the APP for his opinion whether the material is sufficient to charge the case and also to discuss with the APP in person. The APP after perusing the case file shall give his opinion in Form 68. If further investigation is necessary he shall give his opinion in accordance with the guidelines. If the material is sufficient for charge sheet, he shall give a draft charge sheet. On receipt of the same the SHO shall file charge sheet or investigate further as the case may be. If further investigation is carried out it will be once again submitted to the APP for charge sheet. In small and simple cases, the SHO may file charge sheet himself but where the police expect the APP to conduct the prosecution successfully and with responsibility, the above procedure shall be followed.

6. In case of all grave crimes and in sessions cases the SDPO should submit the file for orders to SP/Additional SP with his comments. After obtaining the opinion of the SP the file shall be submitted to the Addl. PP of the concerned court, and the SDPO should personally consult the Addl. PP and discuss about the investigation. If the Addl. PP gives opinion for further investigation; it shall be carried out and submitted again for charge sheet. The Addl. PP shall give a draft charge sheet, which shall be carried out by the SHO. This procedure shall invariably be followed in all complicated and sensational cases and cases of organised crimes.

480-1. On completion of investigation and scrutiny as mentioned above, a police report u/s 173(2) Cr.P.C. has to be submitted whether a case is made out or not in Form 69. In the event of a case being made out the report is called a Charge Sheet. Where a case is not made out, the report is called a Referred Report. The investigation according to law has to result in a report under 173(2) in Form 69.

2. All the original documents filed along with charge sheet shall be listed in Form 69.

Note: This form has to be furnished in triplicate through the magistrate along with sufficient number of copies to be supplied to the accused by the court, so that two copies will be retained by the magistrate and one copy will be returned to the investigating officer, acknowledging receipt of the same.

II. Charge-sheets

481-1. The Charge Sheet should set forth the names of the parties with their full addresses, the nature of the information, the names and full addresses of the persons who appear to be acquainted with the circumstances of the case, and whether any offence appears to have been committed and, if so, by whom. It should also state whether the accused, if arrested, has been

forwarded in custody or has been released on his bond and, if so, whether with or without sureties. The names of such of the accused as are absconding should be entered in red ink in the appropriate column of the Charge Sheet. Care should be taken to see that all the columns in the charge-sheet in Form 69 are filled up properly. No column should be left blank. The SHO shall communicate to the informant in form 70 (notice to the complainant) about the action taken. The charge should be brief and clear. The date, time, place of offence and the manner of committing the offence should be mentioned therein.

2. The charge-sheet in Form 69 should be sent to court accompanied by a separate memorandum of evidence giving the names and addresses of the witnesses cited and specifying clearly the points, each witness is called upon to prove. The original documents if not already submitted to the Court, shall be submitted along with the charge sheet.

3. Upon filing the charge sheet and when the accused appears, the SHO shall furnish to the accused copies of all the documents relied by prosecution to prosecute the accused. Non-furnishing any copy will cause prejudice to the accused and damages the prosecution case. If any document inadvertently is not furnished, it may be furnished at a subsequent stage giving him an opportunity to go through it to prepare for his cross-examination.

4. If the IO is of opinion that any part of any statement is not relevant to the subject-matter of the inquiry or trial or that its disclosure to the accused is not essential in the interests of justice and is inexpedient in the public interest, he shall exclude such part from the copy of the statement furnished to the accused, and in such a case, he shall make a report to the Magistrate stating the reason for excluding such part; provided that at the commencement of the inquiry or trial, the Magistrate shall, after perusing the part so excluded and considering the report of the Police Officer, pass such order as he thinks fit and, if he so directs, a copy of the part so excluded or such portion thereof, as he thinks proper, shall be furnished to the accused.

482. Where an accused person against whom a charge sheet is being filed is absconding, the officer in-charge of the police station shall append a note to the charge sheet itself requesting the Magistrate to issue a non-bailable warrant for the apprehension of the accused. If the warrant cannot be executed within a reasonable time, the IO shall move the court for instituting proceedings under sections 82 and 83 of CrPC. If it is proved that there is no immediate prospect of arresting the accused even after action has been taken under sections 82 and 83 of CrPC, the court may, in the absence of the accused, examine the witnesses produced on behalf of the prosecution and record their depositions under section 299 CrPC. The case shall then be entered by the Magistrate in a separate register of long pending cases. If, at any future time, the accused person is apprehended or appears before the court, the case against him shall be treated as a new case and dealt with according to law. Any such deposition recorded in the absence of the accused may, on the arrest of such person, be given in evidence against him in the inquiry into, or trial for, the offence with which he is charged, if the deponent is dead or incapable of giving evidence or his attendance cannot be procured without an amount of delay, expense or inconvenience which, under the circumstances of the case, would be unreasonable.

483-1. Proclamation orders under section 82 of CrPC can be issued against any person for whose arrest the Magistrate has issued a warrant. The investigating officer has to convince the court with all details of the efforts made and that the warrantee is evading arrest and has gone into hiding, and that the warrant could not be executed. Hence, the initiative has to be taken by the investigating officer. Once the proclamation orders are issued they should be immediately promulgated. Orders of attachment under section 83 of CrPC can also be issued simultaneously along with the proclamation orders. The period of 30 days mentioned in section 82 of CrPC is the time allowed to the accused to surrender. The court issuing a proclamation may at any time order the attachment of any property movable or immovable or both belonging to the proclaimed person. Attachment should be carried out promptly after the proclamation has been properly issued and the property of the proclaimed person seized before he has time to transfer, alienate, mortgage or conceal it.

2. It is necessary that the proclamation order issued under section 82 of CrPC is widely published in the manner provided for in that section. In order to facilitate the arrest of an absconding warrantee or a proclaimed offender, it is also necessary that an effective watch be maintained over his harbourers. Persons who willfully or knowingly harbour such offenders could be prosecuted under section 216 IPC. It is, therefore, necessary that the widest publicity is given to the proclamation order issued under section 82 of CrPC so that its knowledge can be conclusively proved against the harbourer for prosecution u/s 216 IPC.

3. The observance of formalities under sections 82 and 83 of CrPC does not serve the purpose unless the SHO and IO make all out efforts to trace the offender, not only in their jurisdiction but outside jurisdiction too. Information should be gathered through sources and action taken to work it out eliciting cooperation of Police of the place where the offender is known to be hiding.

Juvenile offenders

484. When a juvenile is arrested or prosecuted, information about the age of such persons should invariably be furnished to the Court by the Police Officer taking action in the case, to enable the court to determine the age of the accused with reference to the Juvenile Justice (Care and Protection of Children) Act 2000.

III. Conditions for initiation of prosecution

485-1. The general rule is that the criminal law can be set in motion by any person whether he is concerned with the case or not but there are certain exceptions to this rule and these exceptions are made keeping certain delicacies in view. These restrictions

can be categorised into two classes;

A. The complaint shall be filed in court directly only by certain specified persons in respect of certain offences, which are detailed in sections 195, 196, 198 Cr.P.C.

B. Prosecution cannot be launched against public servants and judicial officers in respect of any offence alleged to have been committed by them while acting or purporting to act in the discharge of their official duty except with the previous sanction of the government (Sec. 197 Cr.P.C.).

Category A

2. For offences under section 172 to 188 of IPC including abetment, attempts and conspiracies, the complaint shall be filed directly in courts by the public servants or their superiors whose orders are disobeyed.

3. For offences under section 193 to 196, 199, 200, 205 to 211, 228, 466, 471, 475 and 476 of IPC the complaint should be filed in the court directly in writing by the court or its superior court if the offence is committed in any proceedings in that court.

4. Offences under section 182 and 211 of IPC, which are relating to false evidence or false charge, if detected during the course of investigation, the police themselves can file a complaint in the court.

5. Prosecution for offences under section 153A, 295A, 505(1) of IPC including conspiracies and abetment can be launched in courts only after obtaining sanction from central government, or state government as the case may be.

6. Prosecution for offences under section 153B, or 505(2) or (3) of IPC and also offence under section 120B of IPC where the conspiracy is to commit an offence punishable with less than 2 years, imprisonment shall be launched only after obtaining the sanction of the Government, or District Magistrate.

7. Prosecution for offence under section 493 to 498 of IPC which are offences against marriage shall be launched in courts directly by a complaint made only by the aggrieved persons or their guardians.

8. Offence under section 498A of IPC can be launched in courts only by a police report or by the aggrieved person or their parents or guardians.

Category B

9. As per section 197 Cr.P.C. when an offence is alleged to have been committed by any public servant or by a judge or magistrate while in discharge of his official duties and if such person is not removable except by the Government, sanction of the Government, is necessary before filing a charge sheet in a court. This condition applies even where the prosecution is launched after retirement, but the offence was committed while the public servant was in service.

10. There are certain special and local Acts like Prevention of Corruption Act, Arms Act, Explosives Substance Act, Registration of Foreigners Act 1933 etc. where prosecutions cannot be launched under those Acts without the sanction of certain authorities.

11. Before prosecuting an ex-convict for breach of rules under section 356(5) Cr.P.C. the sanction of SP or SDPO should be obtained.

12. The investigating officers should note that sanction orders are necessary for the courts to take cognizance, but there is no bar to register cases and make investigations.

13. Where sanctions are necessary, the I.O. should make out a case and place all the material and documents before the sanctioning authority. According sanction is not a mechanical process under law. The sanctioning authority is expected to apply his mind and therefore, it is necessary that the entire case file is placed before him.

14. If the law requires the sanction of the District Magistrate, the IO shall forward his requisition along with relevant material to the District Magistrate through the Inspector with a copy to the SP. If the sanctioning authority is the Government, the same procedure is followed through the DGP.

15. Any delay in obtaining sanction may prove costly as the courts cannot take cognizance of offences if they are barred by limitation. Therefore, sanctions wherever necessary must be obtained without unnecessary procedural delays.

IV. Final Reports – Referred reports

486-1. Some times, the investigation may not end in a charge sheet and is fit to be dropped. In such a case, the case is referred and referred report made under section 173 Cr.P.C.

2. Whenever a case is referred, it shall be forwarded to the magistrate in Form 69 for his acceptance and proceedings.

3. Reports are referred under various categories

- A. Non-Cognizable
- B. Mistake of Fact
- C. Civil nature
- D. False
- E. Undetectable
- F. Evidence not sufficient to charge sheet the case
- G. Any other

487-1. When a final report is sent to the magistrate u/s 173(2) CrPC, the magistrate may or may not accept it. If he accepts the same he will issue proceedings and the matter will be dropped. If the magistrate does not accept, he may send it back directing further investigation, in which case the SHO shall investigate further and send report.

2. If further investigation as directed by the magistrate does not improve the position, the SHO may send it again with his findings but the magistrate cannot direct the SHO to file a charge sheet. He may take cognizance suo-moto on the report.

3. When a final report is sent to the magistrate the SHO shall inform the complainant about the action. The magistrate also shall send notice to the complainant directing him to show as to why the report should not be accepted. Before acting on the referred report, the magistrate shall hear both the police and complainant. On the orders of magistrate, the aggrieved party can go to the higher courts for revision.

Reopening of the Case

488. When the magistrate has issued proceedings closing a criminal case and at a later stage the SHO finds some credible evidence about the case forth coming, he can re-open the case after obtaining the formal permission of the court.

Prosecution of complainant in false cases

489. When the investigating officer reports a case as willfully or maliciously false, he should state in the final report whether he intends to proceed against complainant or not, and if not, he should give his reasons for not doing so.

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CHAPTER 29

Unnatural Deaths

490-1. Sections 174 to 176 Cr.P.C. lay down the procedure for holding the inquests. Inquest means legal examination of dead body. Inquest is to be held on the bodies relating to unnatural deaths. The purpose of the inquest is to ascertain the apparent cause of death in cases where the police receive information that a person has met with an unnatural death;

- A. By committing suicide or
- B. Has been killed by another person or by an animal or machinery or accident or
- C. Has died under circumstances in which the death is due to an offence committed by another person

2. The inquest is to be held by the SHO or by HC if he is so authorised by the government.

3. On receipt of information the SHO shall record it in of the same pro-forma as that of the FIR and promptly despatch it to the executive magistrate.

Action at the scene:

4. On arrival at the place, the SHO shall take the following steps.

- A. Ensure that the position of the body is not altered.
- B. Safe guard the place of occurrence and prevent destruction or disappearance of evidence.
- C. Secure two or more respectable inhabitants of that locality.

Enquiries under section 174 Cr.P.C.

491-1. The inquest must be held in the presence of two or more respectable inhabitants, who should be summoned under section 175 Cr.P.C. by an order in writing in Form 71.

2. Witnesses who appear to be acquainted with the apparent cause of death should also be summoned and examined in the presence of panch witnesses.

3. While examining the body the following points must be noted in the inquest report.

- A. The position in which the body was found.
- B. The position, length and width, and colour of any wounds, bruises or other marks of injury.
- C. The nature of any fracture.
- D. The articles, clothing, jewellery, or any other incriminating (material) found near the body (An inventory should be made).
- E. The age, condition of hair, the description of the face etc.
- F. Any old scars, warts, moles etc. and their exact position, approximate height.
- G. Any other details.

4. The witnesses summoned should be examined and their statements recorded in Form 65 separately and enclosed with the inquest report. The witnesses shall not sign them.

Inquest Report

492-1. When the inquest is completed, the officer conducting the inquest shall draw up a report in Form 72 in which he shall state apparent cause of death, the description of any marks, or marks of violence which may be found on the body and describe

the manner and the weapon with which such marks appears to have been caused.

2. The report shall be signed by the officer holding the inquest and by the panch witnesses after their opinion is recorded.
3. The inquest report along with the statements of witnesses should be forwarded to the court and to senior officers immediately.
4. The individual opinion of the panch witnesses should not be entered in the report. They can be written in the case diary by the I.O. Persons who do not concur with the report shall not be pressurised to sign.
5. A carbon copy and attested photo copy of such report shall be filed in the connected station records.
6. In case of death of more than one person there shall be separate inquest reports on each body.
7. If the local SHO conducts inquest about the death caused in Railway accident, he shall send the same to the Railway Police.
8. After the inquest the officer concerned shall immediately but not later than 12 hours, intimate the executive authority of the municipality or panchayat the details of the deceased in Form 73.
9. Postmortem of the dead body by a doctor is not a must except in the case provided herein. Forwarding the body for postmortem is necessary only when the apparent cause of death could not be ascertained definitely in the inquest.

Procedure on occurrence of large-scale deaths

493. There will be occasions when large scale deaths occur due to railway accidents, bus, boat or Air accidents, building collapses, Fires, poison, gas leakage's, cyclones, tidal waves, earth quakes etc. In such cases where the cause of death is apparently known, there will be no need to hold inquests, unless in respect of any specific dead body foul play is suspected. In such cases inquest may be conducted on one or two dead bodies. But a certificate from medical officer in such incidents may be sufficient keeping the requirements of compensatory claims for death or injury. The dead bodies should be disposed off quickly in the interest of health and hygiene. Postmortem is a must in the cases as mentioned in the next Order 494-1.

Inquest by Executive Magistrate

494-1. In the following cases, the Executive Magistrates only shall hold inquests.

- A. Where the case involves suicide by a woman within 7 years of her marriage or
- B. Death of a woman within 7 years of her marriage and there is suspicion that some other person committed the offence.
- C. Death of a woman within 7 years of her marriage and any of her relation made a request in this behalf
- D. The police officer for any other reason considers it expedient to do.
- E. In all cases of deaths under custody of police and encounter deaths.

2. In all the above cases, it is also necessary that the body is sent for post mortem. The inquiry by the magistrate in the cases A, B, and F mentioned above shall be either instead of or in addition to the investigation held by the police officer.

3. The following hospitals are authorised by the government to conduct post mortem examinations by the qualified medical officers.

- A. All hospitals in the Districts and Cities, which are under the control of A.P.Vaidhya Vidhana Parishad.
- B. All teaching hospitals under the control of the Director of Medical Education and N.T.R. University of Health Services
- C. Authorised civil hospitals under the Directorate of Health.

4. Ayurvedic, Unani and Homeopathy doctors are not authorised to conduct post mortem examinations.

5. Medical practitioners working in primary health centres and Municipal dispensaries also can issue wound certificates. Ayurvedic licentiate in Indian medicines cannot issue wound certificate.

Disinterment of Bodies (Exhumation)

495-1. Whenever an SHO making an investigation reasonably suspects that the body of the person is buried under questionable circumstances, he shall record his reasons in writing and forward the information with a requisition under section 176(3) Cr.P.C. to the nearest executive magistrate to be present at the time of disinterment. In the mean time he should make arrangement to guard the grave.

2. When the body is disinterred, the SHO or the IO shall establish the identity of the body through witnesses.

3. If there is a possibility of the body being decomposed and unfit for removal for post mortem and in anticipation of such circumstances, the presence of a doctor can also be secured along with the magistrate even before exhumation and the doctor may be requested to conduct post mortem there on the spot.

Inquest reports – Post mortem – Salient points

496-1. In all cases of inquest held by magistrates, the executive magistrate will prepare statements of witnesses and enquiry report. This becomes a part of the record in a trial. In such cases there will be two sets of statements from the witnesses, one by the magistrate and another by the police during the course of investigation. Since both the statements will be supplied to the accused any discrepancy in the version will go to the benefit of the accused.

2. Post mortem examination is a necessity in cases where it is felt necessary, as the medical opinion is important in ascertaining the cause of the death.

3. When the body is sent for post mortem examination a police officer must be deputed to accompany the dead body for the purpose of identification of the body and must necessarily be cited as a link witness.

4. In cases of advanced putrefaction/decomposition of the body and where the movement of the corpse may make it impossible for the medical officer to form a correct opinion as to the nature of injuries or cause of the death, the medical officer may be requested to conduct his examination at or near the scene.

5. When the body is sent for post mortem all available information relating to the body must be given to the medical officer. It is desirable that a copy of the inquest report be sent for his guidance. Necessary forms will be 74 A & 74 B.

Preservation of corpse

497-1. All fresh bodies should be preserved in cold storage.

2. If such facility is not available they should be kept on ice blocks.

3. In the absence of the above, it should be placed up on a layer of powdered charcoal from which it is separated by a cloth. A cloth with another layer of charcoal should then cover it. The whole body being covered by another cloth and a mat.

4. After the post mortem examination, unless there are orders to the contrary, the police shall hand over the body to the relatives or friends of the deceased. In their absence they shall arrange for the disposal of dead body as in Order 311.

Important rules of A.P. Medical Code relating to Postmortem examination and wound certificate

498-1. Postmortem examination should be conducted expeditiously on the same day the body is received irrespective of that day being a holiday. If it is received late in the evening external appearances and wounds should be noted immediately with the help of bright lamp and the subsequent examination done early next morning.

2. In addition to granting postmortem and wound certificates the medical officer should answer any questionnaire issued by the police officer to clarify any doubts. The opinion on the questionnaire must be furnished in writing.

Unidentified bodies

499. If a body is unidentified, the IO shall take the following steps:

1. Take photographs (face, lateral and length wise) of the deceased through which body can be identified.

2. If face is smudged due to bloodstains etc., one photograph be taken as such and another photograph after cleaning the face, for identification purpose.
3. Find out whether the dead body is of a Hindu or a Muslim
4. Search for identification marks, tattoo marks, tailor marks and any physical deformity or any physical peculiarities.
5. Search for tyre marks or other incriminating evidence in and around the dead body to ascertain whether the body was brought from outside and thrown at the scene or otherwise.
6. Inform the local press to publish photo and also the local cable T.V. network to broadcast the news.
7. Send photographs and descriptive particulars to all SHOs of bordering P.Ss and those P.Ss where there is reason to identify the body. The same should also be published in the district crime and occurrence sheet and in criminal intelligence gazette.
8. Send a detailed message to all the Circle Inspectors of the District, besides sending a copy of message to bordering CIs / SDPOs and SsP concerned to inform whether any men / women missing cases were reported prior to noticing the dead body.
9. Take fingerprints as per the procedure detailed in Order 785 of Chapter 41 of this Manual. If the body is putrefied, address letter to Medical Officer to preserve all the 10 phalanges so that FPs could be taken.
10. Send Finger Prints to the concerned District Finger Print Bureau and State Finger Print Bureau to locate the person if he / she is having any criminal record.
11. Depute a PC / HC with photograph and details to the neighbouring districts to meet the concerned Inspectors of DCRB to find out the identity of the deceased.
12. The District Control Room should inform all the SHOs for a report, if any, of the missing persons, so that the identity can be crosschecked. If the dead body bears ante-mortem injuries, register a case under 302 IPC immediately and take up necessary action.
13. In cases of suspected homicides it is advisable to collect blood samples on a clean white cloth or a white paper, dried under shade for the purpose of future D.N.A. finger printing tests.
14. Collect the body fluids and other material objects in accordance with the guidelines contained in Chapter 31 of this Manual.

Death in Encounters or in Police Custody

500-1. In all deaths in police custody and encounters, FIR shall be registered and immediate report made to the concerned executive magistrate who shall hold inquest. The executive magistrate shall hold an inquiry and submit his report. Publicity must be given to facilitate the relatives to be present and give evidence during inquiry. The NHRC guidelines regarding investigation of cases of deaths in encounter are in Order 546-6 of Chapter 30 of this Manual.

Death in Jails

2. In all cases of death in jails the inquest and inquiry should be made by a magistrate in terms of Jail manual.

Compensation cases – Supply of documents by police:

501-1. In all cases of accidents compensation is paid to victims resulting in death or injuries due to natural calamities, accidents by Air, Railways and roads and also due to violence in caste, communal and terrorist incidents. Apart from insurance companies, various authorities also pay compensation. To facilitate such victims and the legal heirs of the deceased to claim relief from the authorities or tribunals in time, the police must furnish free of cost, the following documents to the victims as well as to the authorities of claims Tribunal having jurisdiction and insurance companies within 30 days without their requisition as required under section 158 (6) of M.V.Act.

- A. Attested copies of FIR, inquest reports, postmortem and wound certificates and the statements of witnesses if any.

B. In motor accident cases the report of the Motor Vehicle inspector relating to the damage of the Vehicle, copies of Certificates of Insurance, Certificate of Registration, Driving Licence and Fitness Certificate.

C. Charge sheets or final reports.

2. The above documents may be furnished free of cost to the voluntary agencies, legal aid committees and legal service authorities also if they take up the cause of the victims.

Points for enquiry in death cases:

502. The following important points must be observed during inquests:

1. In cases of suspected poisoning

- A. Collection of food remains, vomiting
- B. Ascertain exact time of taking food

2. In cases of hanging or strangulation

- A. Before cutting or removing note the strangulating medium, lividity of face, lips and eyelids, state of the tongue whether enlarged or protruded, flow of any fluid from the mouth or nostrils.
- B. Note the state of the neck, whether there are any marks, state of the thumbs whether crossed over the palm.

3. Body in a tank or well.

- A. Note for marks of blood around the mouth or sides of the well or tank
- B. State of the skin whether smooth or rough and any external marks of injury
- C. Note the condition of the hands and feet. Sand or weeds under nails if any should be removed and preserved.
- D. Details of clothing and the manner of wearing

4. Body found murdered in open.

- A. Note the location, character and number of injuries
- B. If weapon is found, pack and seal it carefully without disturbing the prints if any
- C. In the case of exposed infant, note the state of umbilical cord and any marks of violence. Examine the skull for any fracture
- D. If the sex is not definite seize and collect the Jaw and the bones of the Pelvis and samples of skin.
- E. If the body is burnt, collect the pieces of bones and ashes

5. Death due to firearms and explosives:

- A. Exact shape, location and number of entry and exit wounds
- B. Marks of burns of hair or skin around the wounds
- C. Recovery of pellets, spent cartridges or any firearms from the scene
- D. Remains of explosive devices
- E. Show in the sketch, the damage caused by firing or explosion in the scene

6. Deaths in motor accidents:

- A. Tyre marks and skid marks
- B. The description of all injuries
- C. The portion of the road where the body is found
- D. Any of the fibres or clothes of the deceased sticking to the vehicle

Important points to be borne in mind about inquest:

503-1. Inquest must be held immediately after inspection of the scene

2. Independent witnesses of the locality must act as panchayatdars and they must be present all through the inspection of the IO.

3. Inquest report must be drawn at the scene.

4. When different parts of the body are found at different places, separate inquest reports must be drawn and steps should be initiated to establish the identity of the body. If the identity is not known a colour photograph and colour videograph should be taken in an undisturbed position. Then different photographs should be taken in different angles. Finger impression also should be taken. When several bodies are there, number of police officers may be engaged to hold inquest on different bodies. Body and the wounds should be described methodically and systematically from head to foot.
5. The description of clothes found on the body and the exact place of blood or stains found should be noted.
6. If any article is seized, packing and sealing shall be done on the spot.
7. Every detail touching the apparent cause of the death shall be recorded.
8. Exact measurements must be given and vague expressions should be avoided.

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Andhra Pradesh Police Department

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CHAPTER 29

Investigation of Specific Offences

(A) Robbery and Dacoity

Legal Provisions

504. Robbery is an aggravated form of theft or extortion, accompanied by violence or fear of instant hurt or wrongful restraint. Robbery, if committed by five or more persons is dacoity. Sections 390 and 391 of IPC give definition and ingredients of robbery and dacoity respectively. According to the definition,

A. Theft is “robbery”, if, in order to the committing of the theft, or in committing the theft, or in carrying away or attempting to carry away property obtained by the theft, the offender, for that end, voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or instant hurt or instant wrongful restraint.

B. Extortion is “robbery”, if the offender, at the time of committing the extortion, is in the presence of the person put in fear, and commits the extortion by putting that person in fear of instant death, instant hurt or instant wrongful restraint to that person or some other person, and, by so putting in fear, induces the person so put in fear then and there to deliver up the thing extorted.

C. When five or more persons conjointly commit or attempt to commit a robbery and persons present and aiding such commission or attempt number five or more, every person so committing, attempting or aiding, is said to commit “dacoity”.

Classification and Modus Operandi

505-1. On the basis of place of commission of the offence (a) fields, (b) houses, (c) highways, and (d) running trains.

2. From the point of view of offenders they can be classified as (a) Isolated; (b) Organized; (c) Inter-District gang; (d) Inter-State gang; (e) Armed hold up.

3. On the basis of weapons used (a) Fire arms, (b) Explosives, (c) Sharp edged weapons like knives, spears and swords. (d) Blunt weapons like rods, sticks, (e) Missiles like stones, (f) Hands and feet.

4. It should be noted that in nearly all such cases, criminals are armed and, when victims protest or resist, violence is used, some times to the extent of causing death or serious injuries. Individuals or organized groups resort to use of firearms, explosives or other lethal weapons.

5. The description of the modus operandi or technique used by the robbers or dacoits or particularly those gangs addicted to these crimes is best expressed by concentrating on the major items such as (a) Description; (b) scene of offence; (c) mode of transport used; (d) accompanied by other crimes such as molestation, rape, murder; (e) weapons used such as fire arms either rods or fake knives, swords, sticks, lathies, clubs, stones, hand fists and feet; (f) associates and accomplices.

6. Robberies without use of arms by single person or two are quite few and far between. Victims some times over power the offenders in such cases by using their hands and feet with resulting injuries. Snatching is also common. Operations by groups of two or more are common who do a quick job often causing serious injuries. Such cases occur in darkness and by surprise. The victims are some times drunken persons or women in isolated places who are suddenly attacked. These factors make identification difficult. Therefore, accurate and minute details should be ascertained from the victims by patient and thorough examination.

7. The targets of armed robberies and dacoities are persons, shops, wayside petrol and diesel filling stations, stores, banks, residences etc. The classification depends on factors narrated in this and preceding order. Isolated places like houses in far-flunged suburbs, vehicles or highways, passenger trains in the night and persons returning lonely from banks and shops are usually chosen by the criminals.

Action on receipt of Information

506-1. The SHO shall take action initially to guard the scene, apprehend offenders and prevent more such offences in or around.

2. When an oral complaint of robbery or dacoity is made at the Police station, the Officer-in-charge while recording the complaint, should incorporate in detail the place of occurrence; number and names of offenders if known to victims, if not known, descriptive particulars, apparel put on, language spoken with accent; properties stolen, witnesses, arms used, injuries caused and other relevant details useful for further investigation. If a written complaint is given with incomplete details the case should be registered on that complaint and the details should be ascertained by examining him and/or other witnesses as early as possible. After registering FIR express reports should be sent to the magistrate and other officers.

Action after Information or Complaint

3. The SHO should rush to the spot with required strength and take steps to preserve the scene, and initiate action along with experts attached, inspect it and take action to process the scene of occurrence. If, during the observation of scene of crime, physical evidence such as finger, foot prints, blood and other stains, spent cartridges, bullets, fibres or any other materials and any articles are found left by the offenders, they should be collected and forwarded in the manner prescribed to concerned experts forthwith for their opinion. The opinion, apart from its evidentiary value, will provide useful clues in locating the offenders. The services of sniffer dogs should be utilised and till their arrival, the scene of crime and articles left by offenders should be protected.

Action by Neighbouring Police Stations

4. On receiving information of the occurrence, police officers of the neighbouring stations will take immediate steps to check known criminals of similar modus operandi in their area, interrogate suspicious strangers in their respective jurisdictions, maintain watch on roads, bus stands, railway stations, public resorts and all hiding places. Any useful information obtained should be promptly communicated to the investigating officer. Similarly, if information about the occurrence of dacoity or robbery on the trains is received from the Railway Police, the officers of the district or city Police should take action to watch for, and apprehend the culprits and recover stolen properties.

5. It is observed in cases of house dacoities that even if inmates surrender without resistance, the criminals, in order to create panic and fear amongst inmates and others, resort to assault and misbehaviour with them. They may spend sufficient time at the place of offence and resort to peculiar acts like eating food available, cooking and then eating food, easing at the scene or even sexual assault against the women folk.

6. When the IO visits the scene, he should carry the following material besides the equipment for processing the scene of crime.

- Complete photo album of criminal gangs available with the DCRB/CCRB.
- The videocassettes of the criminals' typical peculiarities. The photo albums and cassettes should be shown to the inmates, neighbours extensively to enable them to identify the criminals by face or by their style of standing, gestures, gait, etc.

7. In addition to the thorough search of the place of offence, the surroundings of the scene at least to a distance of 3-4 km should be combed for search of left over materials, hidden booty etc. with the help of the sniffer dog squad.

Identification of Persons and Property

507-1. The Investigating Officer should question the victims of the robbery about the identity of the criminal. All the people of the neighbourhood should also be questioned. It should be ascertained from the victims whether they used any force and caused any injuries.

2. If it is established that the criminals are not locals, the IO should search bus stations, railway stations including platforms and yards, ferries, hotels, lodges, choultries, abandoned temples, and the surrounding areas inclusive of all hiding places. The

neighbouring Station House Officers should be requested by the quickest means possible to make similar searches for the criminals in their station limits. The available details of crime and description of offenders should be furnished to all those who are requested to conduct searches on their behalf. Enquiries also should be made at bus stations about the movement of strangers.

3. Persons on whom there is reasonable basis for suspicion should be questioned, and if the involvement of any such person is confirmed, he can be arrested and further enquiries relating to him pursued without delay.
4. Information of the occurrence along with description of accused or photographs if available should also be circulated to all Village Administrative Officers of the surrounding villages with the details of stolen property.
5. The enquiries to apprehend the criminals and recover the property lost should be well directed and carried out continuously till the objective is accomplished.
6. Information, with details and descriptive particulars of the property lost, should also be sent immediately to the police of nearby towns where the property is likely to be disposed of.
7. A list of stolen properties should be circulated to bullion merchants and other shop owners dealing with old articles. Enquiries should be made about known receivers and watch kept on them.
8. The informants should be activated.
9. If photographs of criminals are available either in the Police stations or in the DCRB, they should be shown to the victims to identify the possible suspects. Identification of offenders by means of photographs shall not prevent Police Officers from getting a Test Identification parade conducted by a Magistrate.
10. Movements of strangers around the scene of crime in the immediate past before the commission of offence should be probed to verify the movement of dacoits and their proxies.
11. Strangers/new tenants or owners of houses in the locality should be examined. It is seen that organized criminal gangs take houses on rent and on that pretext survey the area during day time and commit offences in the night.
12. The MO approach to tracing of criminals is very useful, and those criminal groups involved in this form of crime should be checked.
13. Information should be passed on to all police officers and neighbouring police stations and to the DCRB. The DCRB should analyse the information and should provide specific lead to the IO.
14. If the criminals are unknown, the IO should take the help of his crime records.

Action on arrest

508-1. After arrest of offenders, efforts must be made to recover the property through their confessional statement as well as from the search of places. Thorough interrogation should be under taken to find out their involvement in the past offences and in the present ones. Information about associates, whereabouts of other accused, and also information about the receivers of stolen property etc should be secured. Wherever necessary, police remand must be obtained to interrogate elaborately to elicit more such details.

2. The properties seized should be got identified by the owners through panch witnesses.
3. If the names of the accused are not known, the IO must arrange for an identification parade of the suspects (accused) for identification by the owners through a magistrate.

Preventive Measures

509-1. As a preventive measure, in case of information of a criminal group operating or serious outbreak of crimes of this nature, suitable armed patrols should be detailed, taking into consideration the areas in which such offences have occurred. The beat constables may be suitably armed and armed patrols by beat officers along with the SI organized to prevent robbery or dacoity.

2. The highways should be patrolled both by the Highway Police and Beat Constables. The beat officers should take the lead and be present in the beat area and organise voluntary effort and also perform night patrol duty. In vulnerable routes, escort of convoy of vehicles, buses or lorries should be organised in co-ordination with neighbouring police stations.
3. The Highway patrols having jurisdiction have to be briefed and kept fully in the picture. It is advisable to provide mobile radio sets to such patrolling parties. To nab offenders travelling by buses as passengers and committing dacoities at isolated places,

watch should be maintained at important bus stations to locate suspicious characters and their belongings may be searched. In no circumstances genuine passengers should be put to any inconvenience, but they should be requested to cooperate. For prevention of dacoities or robberies and for apprehension of the offenders, the officers engaged in this duty should be thoroughly briefed of the provisions of right of private defence enumerated in Sections 96 to 103 of IPC and provision of Sec. 46 Cr.P.C.

4. The night patrols should be effectively supervised in the field by SDPOs and Addl. SP/SP.

5. Bus drivers, cart men and others should be advised to defend themselves with the use of necessary force and not to submit meekly when attacked or robbed. They should exercise their right of private defence. Whenever the need arises proper briefing, education and publicity be given to ensure awareness and alertness in the people.

6. Each beat patrol should concentrate on a specific affected area within its beat and arrange to take position at given places and times at intervals with reference to possible lurking points. The beat in charge and the Constable should have a plan of patrolling prepared by them in advance for each type of problem or the area.

7. The help of local residents, voluntary agencies, maitree committees neighbourhood watch committees and village officers must also be obtained for continuous patrols during night. Use of alarm systems may also be encouraged.

8. To prevent train robberies and dacoities, armed escorts should be sent in trains by night with clear instructions and briefing as to the nature of work to be done while escorting.

9. In the event of apprehension of attack on women passengers the escort should be directed to travel in the compartment adjacent to the compartment reserved for women. In case women police escorts are provided they may travel in the women's compartment.

10. Surprise check and searches for suspicious robbers/dacoits in the train/buses should also be organised but without inconvenience to genuine passengers.

Pursuit of other accused and properties

510-1. Information gathered at the scene including the clues obtained there from, the details given by the arrested accused if any in the course of his interrogation, the exact description of the properties stolen and the information gathered from sources as well as criminal records should be made the basis for a plan of action to trace the remaining accused and properties. After the plan is drawn up, the supervisory officer at the level of SP should organise a well-directed drive for their arrest and recovery of properties. Communication with other police organizations inside and outside the State, deputation of staff to make enquiries at places about which clues are available should be the method of tracing the accused.

2. Known receivers of stolen property should be kept under surveillance and on information searches may be conducted.

Charge sheet and Court Trial

511-1. The charge sheet should describe the part played by each accused, and the overt acts made by each one of them, the weapons which each carried, the recoveries of the stolen properties, the evidence available against each accused and the various sections of law for which each accused is liable for the offences committed. The evidence of identification of the accused and the place of arrest of each accused should be mentioned in the charge sheet. The concerned prosecutor shall be drafted the charge sheet.

2. During the course of the trial, the witnesses should be produced promptly and the trial personally monitored by the IO and his superiors. The prosecutor should be briefed for every adjournment and the case tried on a regular basis as far as possible without any lapse on the part of police.

3. The IO should ensure that all entries in the connected records are made as and when the information is available so that the records are built up along with the investigation and progress of trial.

(B) House Breaking or Burglary

512-1. Sections 441 to 459 IPC relate to criminal trespass, lurking house trespass and house breaking by day or night. It may be noted that house breaking is constituted by the six methods of entry and exit described in section 445 IPC. House breaking by night accompanied by theft are the most common conventional crimes in the State and all over the country.

2. The manner of entry and exit, the premises attacked and the nature of property stolen will determine the modus operandi in these cases.
3. The investigating officer should ascertain from the complainant (a) the time of occurrence and marks of identification, if noticed (b) the method of entry in the premises (c) the nature of the property stolen and details of each item; (d) the number of offenders, their description, and names if known; (e) any marks or signs left at the scene.
4. In case the person who makes the complaint is not in a position to furnish the correct details, the IO should ascertain the same from other witnesses at the earliest opportunity. Entries in the crime records of the PS should be made.
5. The IO should, before proceeding to the scene take the following steps:
 - A. Quickly, study the Station Crime Records including the crime chart, obtain as much information as possible with a view to ascertain the criminals likely to have committed the offence or clues about the suspects and to plan the line of investigation.
 - B. Alert the patrol team or depute any experienced personnel to apprehend the criminals if known or to obtain clues.
 - C. Mark the scene on the map, and with its aid study the past crimes in that area and also crimes of the same modus operandi within the jurisdiction of the station and neighbouring stations.
 - D. Fill up the information in crime cards and immediately communicate on wireless, telephone to all those to whom the cards are meant, and thereafter arrange to despatch them promptly with request to check and make enquiries about the suspected criminals in a time frame and intimate to him.
6. The inspection of the scene should be carried out thoroughly and diligently. Fingerprints and foot prints are most vital and all the efforts should be directed to ensure their identification, lifting and comparison at a fast pace.
7. Accurate list of all properties stolen with detailed description of each item, identifiable features, numbered properties if any, should be prepared after a thorough examination of victims if the same was not possible at the stage of FIR. The Case Diary Part I should contain this list at the earliest point of time i.e., the very first day. All evidence at the scene including traces, marks or stains should be collected.

513-1. The following are some of the points to be noted while investigating a case of burglary.

- A. special circumstances, if any, concerning the time and date of occurrence (i.e., fair, festival, or any special occasion or function at house)
- B. nature of locality, i.e., dwelling house, office, temple, shop, hospital or school and its relation to the rest of the village or town;
- C. class of property removed; and
- D. place of entry and exit
- E. the particulars of the rooms entered by the accused and whether or not the rooms were occupied at the time;
- F. any clue left to indicate whether the accused worked in the dark or by means of a light;
- G. any clue, or fact which may indicate that the accused had prior knowledge of or familiarity with the premises.
- H. the services of sniffer dogs should be utilized to trace any belongings, marks, traces, materials of the accused left by him at the scene and if there are any such, should be preserved for scientific analysis later.
- I. any boxes, safes, almirahs or receptacle containing valuables overlooked by the accused and, if so, their location;
- J. precautions, if any, adopted by the accused during the commission of the offence, such as chaining or locking of doors;
- K. the time or date when the property removed was last seen at the place from which it was stolen;
- L. the exact position of finger prints, and steps taken for their preservation. The finger prints should be lifted and immediately sent to district Finger Print Bureau and State FPB after eliminating the finger prints of inmates and Policemen who first visited the scene with the help of FP expert to compare the chance prints with those on record. The Scientific Team should lift FPs, and photograph them. Chance prints should be sent after quick comparison locally to the State FPB through District FPB. The services of a finger print expert in Sub-Divisions should be utilised for processing at the scene of crime. If further help is required the District FPB or other FP experts can be called. This should be done only under orders of SP or DCP Crimes;

M. it should be observed from the scene of the crime as to the number of foot prints found leading to and from the spot or on the spot, and deductions drawn there from as to the number of culprits involved, direction from which the accused came and left, and place, if any, where they waited before committing the offence and steps taken to preserve the prints and take their traces or casts.

N. means of transport, if any, employed by the accused for the removal of stolen property; and

O. any other clues or matters of importance requiring attention.

2. If access to the house was obtained by means of a hole in the wall, the following additional points should be noted;

A. whether the wall is built of mud, bricks, or stone;

B. exact location of the hole and its relative position with regard to door, windows, ventilators, or other such openings;

C. shape of the hole, to be illustrated by a diagram,

D. height of the hole from the ground, outside and inside;

E exact measurements of the hole, outside and inside;

F. thickness of the wall where hole was made;

G. side to which rubble at earth was thrown

H. details of marks left by the instrument used and inference drawn therefrom as to the nature of the instrument; and

I. whether the room in which the hole was made was occupied or not at the time.

3. If access was obtained by lock breaking or lock opening, the following points should be noted:

A. type of lock broken

B. if opened by key, any indication as to whether the key used was the original or false and, if the original, how the accused obtained possession of it;

C. if lock was broken, (i) particulars of marks on it and inference drawn therefrom as to the instrument used and (ii) state if lock is still in working order; and

D. if lock is in tact and hasp or chain wrenched out, the type of instrument that appears to have been used.

4. If access was obtained by means of a hole in the roof, the following points should be noted:

A. whether the house is terraced one or has a tiled or thatched roof;

B. any indication as to how the accused ascended the roof;

C. position of the hole, e.g., whether adjoining a beam or in one corner or by breaking glass etc.

D. whether the room beneath was occupied or not;

E. whether property was removed from the room above which hole was made;

F. means employed by the accused to descend into the room below;

G. how tiles, thatch and such other materials removed were disposed of and precautions adopted by the accused from falling into room below; and

H. any other matters of importance requiring special attention

5-A. In shop and godown burglaries entry is made by (1) lock breaking; (2) by bending the shutter using a jack (normally carried in light motor vehicles) placed in the centre; (3) by bending the shutter by applying manual pressure by two individuals.

B. Some of the illustrative examples are stated herein. In the second and third methods as mentioned above a young or a lean person is made to enter the shop in the gap created at the bent portion of the shutter. It is observed that the shutter bending methods are generally adopted by professional criminal gangs from other states though certain gangs within the State are also operating in a similar fashion. They visit towns, spot out jewellery shops, or shops with valuables, watch the shop study the shutter properties and plan their operations. The offenders having entered

the shop, force open the Iron Safes or steel cabinets by boring holes with electric or mechanical drill machine. This method is also used to open strong room doors in banks by criminals. Local criminals are also adapting shutter bending method. In these offences the police should not loose any time in inspecting the scene and make an aggressive drive on the basis of clues to apprehend the criminals.

6. Laboratories and engineering workshops having high walls are accessed through ventilators or by removing the zinc or asbestos sheets of the roof. By means of rope or rope made ladder the culprits climb down and precious engineering instruments are stolen. The roof sheets are replaced to give an impression that no offence occurred or the offence has been committed by the employees. A careful study of the scene including roof is required. While making efforts to trace the culprits, in this type of cases, discreet enquiries should be made to know the antecedents of the employees working there.

7. If access was obtained by any other method than those mentioned above the following point should be noted:

- A. how access was gained;
- B. if the entry was gained through windows or ventilators give particulars to indicate how bars were forced or glasses broken and means adopted by the accused for preventing noise.
- C. if the offender scaled the wall, (i) state the means employed, e.g., ladder, bamboo, or drain pipe, or rope and (ii) give particulars of marks, if any, left on the wall; or any remnants of the means used
- D. if admittance was gained through eaves, give measurements, height from the ground and means employed to ascend;
- E. if entry was gained through a threshold hole give the height of the basement, its relation to the door and furnish details as in sub-order (2) above; and
- F. in cases of entry by deceit, threat or force, give details as ascertained during investigation.

8. In the case of house-breakings by day, the following points should also be noted:

- A. state the whereabouts of the occupants at the time the offence was committed; and
- B. precautions, if any, taken by the accused or his associates to avoid or divert the attention of neighbours away from the house attacked.

514-1. The investigating officer must $\frac{3}{4}$

- A. acquaint with the method followed by burglars for forcing, or attempting to force, entry into the house attacked;
- B. draw a rough plan of the house burgled with its surroundings;
- C. make or arrange to make a close search for foot prints or finger prints or other clues with help of experts attached which may eventually be of use as evidence against the culprits when captured;
- D. enquire regarding recent visitors to the village, or to the house burgled; and
- E. compile a complete list of property lost.

2. Should such enquiries lead to promising clues as to the identity of the burglars, the IO should, speedily follow it up immediately and work it out to its logical conclusion.

3. Close study of the scene and questioning the inmates is important. Some criminals take all precautions to leave no traces of offence and the Police Officers are likely to draw wrong conclusions that the offence did not occur and a false complaint was made. Such conclusions should not be drawn in haste unless there are incontrovertible facts in support. A thorough enquiry of every aspect should be gone into before reaching such conclusions.

4. There is possibility of false complaints to avoid taxes or claim insurance amounts. The investigations should therefore be well directed and prompt. These instructions should also be followed while investigating theft cases.

5. Receivers of stolen property are an indispensable part of criminal activity of professional burglars. A sound information system and thorough enquiries by detective staff about receivers would yield useful clues in the investigation of burglaries.

6. Accurate entries should be made in all criminal records and forms by the IO.

(C) Theft

515. Theft is defined in section 378 IPC. The ordinary thefts are punishable u/s 379 IPC house thefts, u/s 380 and thefts by servants u/s 381. There is a large variety of thefts and it is the most common conventional crime.

Snatchings

1. In towns and cities snatchings are very common. Women are the targets in most cases. Gold chains from the women walking along the roads or lanes or parks, cinema houses are snatched by culprits riding cycles, Motor cycles or by walking along and running away after snatching. By the time she realizes, the culprit escapes. Women carry their jewelry in their handbags apprehending snatching. Darkness and deserted areas afford cover to the culprits. If the culprit finds the woman not wearing jewelry and carrying a bag he snatches the handbag. The jewelry of the women sleeping close to the windows of the house, are snatched. In these offences local criminals can be suspected. Similarly the jewelry of the women travelling by train and sitting or sleeping near window are snatched when the train starts from a railway station. In these offences local criminals can be suspected. In cases of snatching of jewelry from the neck, the woman might be injured and she should be sent to hospital and injury certificate obtained.

A. The other type of snatching is of cash bags. The culprits observe persons proceeding to banks to deposit or withdraw cash and snatch the cash bags. They also pose as enforcement or Tax Officials and in the name of checking take away the cash bags. When the shop keepers keep their cash bags on the steps while opening or closing their shops the criminals divert their attention in many ways and escape with cash bags. Even if the culprit who diverted attention is caught, he pleads ignorance or by the time he admits that he is a member of criminal gang, the other criminal escapes with stolen cash. In case where a suspect is apprehended, he should be interrogated immediately to trace the absconding criminals.

B. In banks the attention of the employees or the customer is diverted by putting them in conversation or dropping by a currency note as if it is dropped by the customer unnoticed and when the customer attempts to pick it they escape with their cash bags.

C. The most valuable aid to successful investigation, detection and prevention of such offences is the up-dated criminal records system at State, District, City and Station levels. Entries in Station Crime History (Part I) should be made giving - minute details of modus operandi and photographs kept on record of those who have earlier come to notice. The DCRB, the SCRB and FPB should have the data on their systems. Since many of the criminals addicted to above offences (except those snatching jewelry from women) move and operate in groups, the gang history should be prepared and maintained in the DCRB for rendering timely advice to the IOs whenever required and necessary. All methods that have come to notice should be recorded in these Bureaux by study and analysis of the information.

2. Cases of theft from letters, parcels and insured covers also occur quite frequently. A knowledge of how such offences are committed is essential for their successful investigation. Some of the methods usually employed for opening a letter are given below:

A. The envelope is held in the left hand with its face down. An ordinary knitting needle held in the right hand is inserted gently under the least gummed portion of one of the flaps, and rolled with a gentle pressure moving it simultaneously away or towards the palm of the left hand till the flap is opened out.

B. The envelope with its face down is placed on a clean white sheet of paper on a table. The flaps are dampened with a wet piece of linen or clean rag. When the flaps have been sufficiently moistened, the envelope is lifted up and held with the left hand and the flaps opened out as described in sub order A above.

C. The flap side of the envelope is held against a jet of steam issuing out of a steam kettle. As the adhesive under the flaps gets moistened the flap begins to curl up and finally gets unfastened.

D. In the case of sealed letters, plaster moulds of the seals are first made and then after removing the seals the cover is opened by either of the methods described above.

E. Ordinarily, valuable clues to the investigation of cases of tampering with letters, inland covers and parcels are destroyed by careless handling first by the receiver, then by the public and finally by an unskilled Police Officer dealing with them. These are a handicap to the expert to whom the article is sent for examination.

Theft of Copper wire

516-1. Generally, copper wire is used for telegraph and telephone lines. Telegraph wires used in this country are manufactured in three standards viz. 300 lb, 200 lb or 150 lb weight per mile. This specification is exclusively for the telegraph and telephone

department and not available locally. Therefore the mere unlawful possession of this specification is itself an offence under Telegraph wires (Unlawful possession) Act 1950.

2. In these cases the identity of the wire is established from the recovered wire with the wire found missing at the spot.

3. In order to establish the identity, the cut end found on the poles should be sent along with the wire recovered to the laboratory and prosecution launched on the report of the laboratory. Under the above Act the burden of proving the lawful possession is on the accused.

Cycle theft

517-1. Cycle thefts are prevalent generally during busy hours at Hotels, Cinemas, Post Offices, Banks, Hospitals, and Educational Institutions etc. Mostly they take place when the cycle is unguarded or unlocked.

2. Another type of crime involving loss of cycle is criminal breach of trust where the offender takes a cycle on hire and absconds.

3. Stolen cycles are generally disposed off after erasing or defacing the identity or after dismantling the parts.

Investigation:

4. When a cycle theft is reported, the complainant may be asked to give the details including the number and make, if possible the bill of purchase for its easy identification when recovered.

5. Suspected dealers and repairers should be kept on watch. A list of cycle lifters with their photograph may be maintained in each police station.

Automobile Thefts

518-1. Automobile thefts are mostly committed in cities and towns. The methods employed generally are (A) engaging a light motor vehicle on hire, dislodge the driver on some pretext like have his food or tea in a hotel and to drive away; (B) take the hired vehicle to a long distance, kill the driver and commit theft of the vehicle ; (C) theft of light or heavy vehicles when parked on the roads or near the residential houses, or places of work or places of entertainment; (D) theft of two wheelers from shopping or other busy areas or when parked near residential houses or from the compound of the houses; (E) theft of valuable parts from the vehicle and abandon the vehicle at an isolated place; and (F) taking away a vehicle to commit another crime using it to reach the scene or as a get-away vehicle or both: Cases of theft of trucks carrying cargo and disposal of both the truck and goods are also occurring in many parts of the country. This is generally done by professional gangs.

2. The offenders usually drive fast to some distance change the number plates to avoid immediate apprehension.

3. The stolen vehicle is taken to a mechanic to erase the Chassis and Engine numbers and to emboss fresh numbers and some times to change the colour. A forged registration certificate is prepared with the help of agents or brokers having access to RTA offices and then the vehicles are sold.

4. The moment a complaint of loss (the victim does not understand the difference between missing, loss and theft) or theft is made in the Police Station a case of theft should be registered and investigation taken up. Particulars of vehicle should be ascertained fast and information communicated immediately by quickest possible means to all Police Stations in the city, town and also to the Police Stations on the Highways. The information should indicate the type of vehicle, its colour, registration number, model, chassis & engine numbers. In cities and towns having exclusive Traffic Police the information should be promptly passed on wireless or telephone to the Traffic Police Stations. The police stations receiving the information should immediately act and depute men to check the vehicles of the type mentioned in the message in their jurisdiction. The beat area Constables and Head Constables should also be given the same information.

5. Detection largely depends on the promptness with which information is passed on, the speed and alacrity with which the recipients of information on the CIS (Crime, Criminal Information System) react. As in the case of other property crime, the crime and criminal information system including MO criminals should be kept up to date in Local Crime Records, District Crime Records Bureau and SCRB to analyze, advise action that facilitates early recovery of the stolen vehicle and the offender.

6. From time to time the vehicle owners should be advised (A) not to leave the original registration books in the vehicle and to keep photocopies; (B) to have extra locks or alarm as available in the market fixed to the vehicle and (C) to use paid parking areas which have a watchman.

7. Since detection of automobile theft is difficult, preventive steps would be of much help. A close study of these thefts is necessary. The type of vehicle, the places from which they are stolen, the interval between each theft have to be considered and

watch maintained by plain clothes men of Police at the places where thefts are likely to occur. Watch may be kept on suspected mechanics. The garages known for dismantling stolen vehicles for selling it part by part too may be kept under watch. Informants can be set up to know their activities. A watch on the known M.O. criminals i.e., those already on record should be made. Frequent enquiries should also be made about the agents or brokers attending the R.T.A. offices, who indulge in shady dealings.

Pocket-picking

519-1. Of all crimes, pocket picking is the easiest to commit. It involves far less labour and time than any other type of crime. Detection is difficult except where offenders are caught red-handed as the property involved is mostly cash. Pocket picking is generally committed in shandies, fairs, festivals, railway stations, trains, buses and bus stops, banks, post offices, places of entertainment and other places where crowds gather. Pickpockets may work singly or with associates. They are generally dressed like others who gather or visit the above places to escape suspicion.

2. The devices adopted by different pickpockets to divert the attention of their victims vary. In crowded centres, like a bus stop, pickpockets may operate in a bunch. After marking a victim, they close upon him like intending passengers. One of them dashes against the victim and while the latter turns his face towards him another from the gang instantly removes his purse and passes it on to a third, who decamps with the loot. Sometimes, one of them in trying to board a train or a bus causes temporary obstruction to other passengers who are in a desperate hurry to get in and secure a seat, and his associates who are mixed up in the crowd do their job with such dexterity that the victim never suspects their design. The article picked is passed on immediately from one to the other and the last person who receives it disappears from the scene all in a moment. They later meet at predetermined place and share the booty. Some pickpockets use knives, razor blades, or scissors to cut the pockets.

3. The following are a few among other points to be noted in a case of pocket picking:

- A. means employed by the culprit, i.e., scissors, knife, or a razor blade or merely by hand;
- B. the type of the garment, and the position of the pocket, e.g., jubba, kurta, sherwani, shirt, coat, waistcoat, side, upper or lower inner or outer pocket;
- C. position of other pockets and their contents which were not touched;
- D. means adopted to divert the victim's attention;
- E. reasons, if any, for believing that the culprit operated singly or with associates.
- F. In larger towns and cities the pickpockets have their areas and bus routes demarcated. They do not allow criminals of one area to operate in other's area. If a non-local criminal operates they try to locate him. It will be very useful if the Police Officers study the pattern of this type of crime and question the criminals when apprehended on their and others' activities. The information furnished should be crosschecked and verified. A note should be prepared and kept in Part V of the individual criminals. This would facilitate in examining their complicity in the event of crime.

Thefts on Railways

4. Thefts on Railways consist of those on running trains, parcel offices, wagons, goods trains, marketing yards, Railway Stores etc. These may be classified into (a) Those relating to passengers property and (b) those relating to Railway property. Snatching, lifting, bags and briefcases from trains and platforms may steal passengers' property. Detailed instructions of these are contained in the Chapter on Railway Police.

(D) Riots and Cases involving Fire Arms

Riots

520-1. Riots takes place due to variety of reasons. The nature of riots, the causes and the method of dealing with them have been detailed in the Chapter dealing with breach of peace. The investigation of rioting cases has certain special features, which need IO's attention. The guidelines for processing of the scene of offence, identification, collection, seizure, forwarding etc. of clues, objects, stains, materials are contained in Chapter dealing with scientific aids as also in other Chapters on investigation. The general principles and the details of action to be taken meant for other cases equally apply to the cases of rioting. The special features which require attention are indicated below:

2. Section 141 to 149 IPC deal with rioting. Ordinarily, rioting is followed by bodily offences ranging from hurt to murder. The weapons used may vary from ordinary weapons to fire arms or explosives. The aspects like motive, identity of the accused, overt acts by each of them, the common object of the unlawful assembly, right of private defence, if any, should be investigated impartially.

A. Five or more persons: Five or more persons assembling with a common object to commit an offence is an unlawful assembly. It is not necessary that the identity of all persons has to be established to bring home the guilt against the others. The important point to prove is that there were 5 or more persons involved at the time of rioting.

B. Identity: The identity of persons and their presence can be established by oral evidence, test identification parade, video or photographs if any taken, evidence of eye witness, or from material evidence available on the spot or from the injuries sustained by them. The material could be in the form of a weapon left on the scene, spare cartridges, finger prints, foot prints or other materials belonging to the accused. The comparison of the nature of injury on the accused to the circumstances in which he could have sustained it, in the course of the offence can yield valuable corroboration. The proof of the community of the accused and victims, association with any communal organisation or its activities, knowledge of the community of the victim from the latter's dress or language are the points on which evidence has to be gathered. In some cases the accused may know the victim. In such an event evidence of that fact should be gathered. The presence, identity and role of the accused are important facts to be established.

C. Part played by each: The part played by each accused, the nature of weapon if any carried by him and evidence of such weapon having been carried by him and the nature of injuries caused to the victims, whether the injury attributed to him could have been caused by the weapon which he is known to have carried at that time are to be brought out in the investigation.

D. Common object: The common object of the unlawful assembly is important ingredient in a rioting case. The mere presence of a member of the unlawful assembly makes him liable for offences committed by others even though he did not take part.

E. Evidence of motive and the immediate cause of the riot: Motives like land disputes or factions or previous incidents will help in gathering evidence for immediate cause of the riot.

F. Matrix of Accused and evidence The Investigating Officer should prepare a chart in all rioting cases so as to illustrate the name of each accused and the evidence, oral, material and documentary that is available against him including his covert acts and sections of law under which he is liable. A close scrutiny of such a chart from time to time would bring out the adequacy or otherwise of the evidence and contradictions if any. It will facilitate the IO to concentrate on missing links and enable the Prosecutor to present the case properly to the trial judge.

G. Alibi: The principal accused in factious rioting with murder have a habit of bringing an alibi, either by admitting himself in a hospital or making false/forged record of having been present elsewhere. The alibi should be thoroughly investigated and the details brought out clearly whether the alibi is true or false. If it is true he cannot naturally be prosecuted unless there is evidence of his abetment or conspiracy. If it is false, the case against him becomes stronger. The accused that takes alibi should be thoroughly examined to ascertain the truth of such alibi and also to know the line of defence that he may take in support of his alibi in the Court during trial.

H. Fire arms: In cases where the fire arms are used the procedure laid down in this Chapter and Chapter relating to scientific aids for the preservation and forwarding of the materials should be scrupulously followed. Best evidence in such cases can be secured if steps detailed herein and Chapter relating to scientific aids is followed.

I. False implication: At the time of recording of the FIR the officer generally has no option but to record the information given. The fact that the names figure as accused in the FIR does not mean, that they should all be prosecuted.

J. Case and Counter: Generally in rioting cases there is a case and a counter. In such cases the IO faces the problem of determining the aggressor. The oral evidence by both parties will be more or less identical. Genesis of the offence, evidence of independent witnesses, scientific clues available at the scene, the preparation for the offence, the place of offence and the subsequent conduct would provide help in determining the aggressors. Where it is difficult to determine as to who is the aggressor and where evidence shows that there is preparation on both sides, the right course of action is to prosecute both on the basis of free fight.

K. Collection of Video or Photographs: In cases of rioting in political, communal, caste or factions, there is every possibility of videographs, photographs being taken by the media persons or other individuals. In some cases they are even published. Media persons also send telegraphic, fax or telephonic messages as and when a riot is taking place when they are present. Collecting this primary material by the IO from the media persons making them as witnesses, would be useful as a corroborative piece of evidence in the case.

L. Riotings take place in the open and often in daylight and are generally in the presence of public at large and therefore require factual investigation.

M. Where the riots are part of an organised crime activity, the offenders who plan them manage to stay away. The effort of the IO is to identify such offenders so that a case of conspiracy can be made out against them.

Cases involving Fire Arms

521-1. The cases of rioting where firearms are used, the IO should have a clear idea of the type of weapons commonly in use in that area. Instructions regarding investigation into fire arm cases and the material to be collected as evidence has been detailed in the chapter relating to scientific aids. Every IO should study and comply with the instructions therein as are applicable in each case. In addition, the following precautions should be taken.

A. The weapon at the scene of crime should never be touched before its exact location has been recorded in detail, in writing, by a sketch, photograph and if possible by video graph.

B. In developing the fingerprints on polished or other surfaces of the weapon, the FP expert attached or a team member who is specially trained in the Investigation alone should handle it. The IO should ensure that all finger prints are lifted.

C. Detailed notes should be made immediately, of the condition of the weapon, such as the position of the safety-catch, the cartridge case and whether a cartridge is found in the weapon or a defective one is sticking up rendering the weapon inoperative. If a loaded cartridge is found, it should be removed carefully and the cartridge so removed should be separately marked with a label tied to the rim for future identification.

D. After the loaded cartridge, if any, has been removed, the name, model number and other particulars of the weapon and any other identifying marks, which may appear on the surface, should be recorded.

E. It is advisable to close the muzzle-end of the weapon immediately on reaching the scene, as it may later be necessary to take barrel washings to ascertain whether powder has been used or not.

F. The IO should look for the presence of wads at and around the scene from where the weapon was fired or was found. Where a shot gun was used in a closed place, a room for instance, he should look for pellets in such places as the cushion of chairs, in the door frames and other places where they are likely to be embedded. In an open place with trees around, they are likely to be found embedded in the trunks. In case a weapon with a single projectile was used, search should be made in the places mentioned above for bullets which might have come out after hitting the person or which might not have hit him if more than one shot was fired.

G. Similar action where no weapon is found on the scene should be adopted. The recovery of any pellet, wad, or such other article may give a definite clue to the type of weapon used. If bullets with rifle marks are found, a clear opinion as to the exact nature of the weapon used is possible from the lands, grooves, twist and pitch of the rifling. The nature of weapon can also be determined if a fired cartridge case is recovered from the scene. If the suspected weapon is subsequently traced, it is possible to know if that particular weapon discharged the bullet. The bullet or the cartridge case should be preserved in a protective roll of cotton or similar soft material and placed in pillbox, each item separately. No additional markings or scratches should be caused on the bullet or cartridge case being sent for opinion. Handling of weapons where the accused pleads accidental discharge requires care. The weapon should be sent after packing it carefully to the expert for his detailed examination. The experts attached to Investigating Units should assist in locating, packing and forwarding the articles to the Ballistics experts and if possible give their views to the IO to enable pursuit of further investigation on right lines.

H. The nature of the weapon used, the distance from the victims from where it is fired, the evidence regarding the person who used it, the cartridges or bullets used, found at the scene, the materials seized from the suspect's premises used by him or where he lived, the places where the cartridges or gun powder or materials are procured or purchased, in case of country made weapons, those who manufactured them, are some of the important aspects in the investigation of such cases. The cases in which firearms are used provide a wealth of material evidence, traces, marks and stains which if noticed by an observant eye and properly used can be invaluable in the detection.

2. While investigating cases involving firearms the Investigating Officers should go through the following check list so that none of the important points for investigation are left out.

A. Firearms

(i). Was any weapon found and if so where?

(ii). Is the weapon smooth bore/rifled?

(iii). Whether full description including serial number etc., and location of weapon on a sketch and in notes, photograph of the weapons included in Letter of Advice (LOA)?

(iv). Was the weapon in loaded condition?

(v). In the case of revolver, whether the sketch of the position of the empty and live cartridges in the cylinder is drawn?

B. Cartridges and their Components

(i). Were any cartridge/cartridge cases recovered from the scene of crime.

(ii). locate them in the sketch; in notes and photograph

(iii). Note the caliber and head stamp markings.

(iv). Were any wads/bullets/pellets recovered in the crime scene?

(v). Were there any affected items by fire arm projectiles (such as furniture, vehicles, walls, etc.)?.

(vi). In the case of any casualty, were any wads/bullets/pellets recovered in the body by the medical officer?

C. Holes on the garments and wounds on the body

(i). Powder and/or flame burns on clothing and body, photograph and description

(ii). Tattooing by powder on skin

(iii). Barrel impression on the skin; photograph and description

(iv). Number of fire arm injuries on the body and location of injuries on the body

(v). Collection of GSR on the hands of the deceased in the case of suicide, after photograph is taken.

(vi). Collection of GSR on the hands of the suspect in homicide cases, after photograph is taken.

Common Causes for Accidents with Firearms

3-A. Mismatching of firearm and ammunition

B. Defective ammunition (Excessive loading, over size projectiles, defective powder, etc.)

C. Fire arm may be old and rusted.

D. Improper alignment of cylinder and barrel in revolver.

E. Improper closing of breech end.

F. Defective trigger pull or defective catch.

G. Negligence about the safety devices.

H. Hasty or negligent handling of the weapon.

DO's and Dont's for IOs for Forwarding the Material Objects

DO's

522-1-A. Collect cartridge cases, bullets, pellets, wads, etc. after noting down their positions.

B. Collect unburnt/partially burnt grains of propellant.

C. If the bullet is lodged in furniture, wall, etc., first remove the material around the place of lodgment carefully so as to loosen the bullet which may then be taken out by hand.

D. Initials of IO may be marked on the inside of the cartridge case.

E. Bullet may be marked on its base.

F. A firearm may be marked on its frame, barrel, etc.

G. In case more than one bullet/cartridge case is recovered they may be packed separately to avoid one scratching the other during transit.

H. The suspected firearm may be first examined for latent fingerprints, then wrapped in waste cloth and kept in a wooden box and forwarded to the lab.

I. The muzzle of the firearm may be closed by capping instead of plugging. The breech should also be wrapped by cloth, paper, etc.

J. Live cartridges similar to that used in crime, if recovered, may also be forwarded for test firing.

K. If burning, blackening, pellet pattern are present on body or clothing, keep a scale near to it and take a photograph (preferably colour) and send it to laboratory for estimating the range of fire.

L. Typed copy of P.M. report/Injury diagram/Injury certificate should be sent for estimating the range of fire.

M. The clothing should not be cut, creased, or folded across the bullet hole. Cover the affected portion with cellophane paper for protection. Use different packings for different clothing's.

N. In cases involving shooting through glass:

- Take scaled photograph of the damaged glassware from both sides.
- Try to transport whole glass having bullet hole along with its frame. Care should be taken to avoid further damage.
- If powder pattern is present, cover it with cellophane paper.
- Note the distribution of glass pieces and collect them. Glass pieces on both sides should be packed separately.
- Collect clothing of the suspect, which he was wearing during the incident.

O. To identify the shooter, collect

- Washings of both the hands separately in different glass containers with distilled water.
- Swabbing of hands with a cloth piece moistened with 0.1M Hydro Chloric Acid (HCl) / 0.05M Nitric Acid (H₂NO₃).

P. In cases involving revolvers, the position of live cartridges and fired cartridge cases in a cylinder should be noted.

Q. Photograph the ricochet area and then take scrapping/washings of the same. Also preserve ricochet traces (such as sand, earth, wood, fibre) on bullets.

R. Dry the clothes, bullets, pellets, cartridge cases, fire arms etc., before packing.

S. Use proper technical terms in the Letter of Advice along with detailed case history (accidental; negligent firing; etc.)

T. Sample seal and seals on parcels should be legible.

U. Packing must be intact and the description of parcel; PC name etc.; should tally with Letter of Advice (LOA).

V. Scaled colour photographs of fire arm wounds should be sent.

W. Packing should contain outer label.

X. One parcel should contain case property of one crime only.

Dont's

2-A. Do not use probes to extract bullets/pellets from holes.

B. Do not send the loaded fire arm. In case, due to some reasons, it becomes necessary to send a loaded firearm, the box containing the firearm may be labelled as "Loaded firearm, handle with care". The safety catch may also be put in the safe position.

C. Do not meddle with the inside of the barrel.

D. Do not wash barrels/bullets/cartridge cases.

E. Do not pack when the articles are wet.

F. Do not cut the affected portion or its immediate surroundings while removing the clothing.

G. Don't use coins or any common items as seals.

H. Don't send fire arms without packing.

(E) Economic Crimes-Fraud, Forgery, Cheating & Criminal breach of trust

523-1. Economic offences are also called financial crimes and white-collar crimes. These relate to offences of fraud, forgery, cheating, misappropriation, criminal breach of trust, money laundering etc. They also include conspiracies and abetments for the commission of these offences. With the increase of corporate, banking, stock market, trade and other commercial activities, the types and magnitude of fraud has undergone a vast change. The export and import regulations, customs, excise and income tax levies, foreign exchange transactions along with revolution in information technology and electronic transfer of money have brought into existence several methods that have provided opportunities for crime in the form of fraudulent transactions. Several non-banking financial institutions have come into existence. The use of computers also has thrown up the problems of computer and cyber crimes.

2. Several laws have been made to regulate and also to penalise activities, which are illegal and aimed at defrauding the public, and the Government. Sections 415 to 424 in Chapter XVII, Chapter XVIII of the IPC, and other Acts such as the Excise Act, the Income Tax Act, the Companies Act, the Customs Act, AP Control of Organised Crime Act 2001 etc. contain the relevant law.

3. Fraud involves deception, and has been explained as causing to believe what is false or misleading as to facts, or leading into error by intentional concealment of facts or positive mis-representation.

4. Forgery has been defined in section 463 and a false document in section 464 IPC. Though forgery in its simple form is not cognizable the police are very often called upon to investigate forgery in conjunction with other cognizable offences or under the orders of a court.

5. The ingredients to prove the offence of forgery are $\frac{3}{4}$ (a) the making of a false document or part of it; (b) such making should be with intent - (i) to cause damage or injury either to the public or to any person, or (ii) to support any claim of title, or (iii) to cause any person to part with property, or (iv) to enter into any express or implied contract, or (v) to commit fraud or that fraud may be committed.

6. Detailed instructions regarding the examination of questioned documents are contained in Chapter 31.

7. Corporate frauds have emerged as a major economic offence in recent times. This term includes a large number of activities such as frauds by business people against each other, against investors, consumers, tax authorities, by directors and employees against their companies. Different forms and modus operandi are adopted.

8. The broad categories are embezzlement by employees, management frauds, investment scams and customer frauds. Stock market frauds include sale of forged share certificates, cheating by sub-brokers, theft of securities from share registries or theft while in transit. The range of bank frauds is also quite wide and covers fraud prone areas in the banking system like loans, advances, remittances and foreign exchange transactions. The use of plastic money has also generated offences of credit and cheque fraud. Technological developments have propelled some of the old crimes into new shape. For example, the developments of the multi-colour copiers whose laser scanners can reproduce exact colour variations and other subtle nuances in the printing process have increased the forged currency notes rackets. The direct dialling facilities, computer aided dispatch system and fax message enable fraudsters to distance themselves geographically from their targets.

9. The offshore banking and investment schemes and tax havens have propelled the financial crimes enabling the offenders to conceal the proceeds of crime. The documentary frauds in the shipping of goods are done to gain benefits of export by fraudulent means. The use of forged documents for land grabbing, sale of bogus marks sheets and degree certificates and travel documents are yet another category of financial offences.

Counterfeit Currency

10. Instructions in regard to counterfeit coins and currency notes are contained in Chapter 31, with which every investigating officer should be familiar.

Forged Currency Notes

11. Under the Currency Department Code, forged currency notes received into Treasuries and Banks are sent to the Police Station in the jurisdiction of which the Treasury or Bank is situated for enquiry. Whenever counterfeit currency is presented or discovered by the Bank an offence may be construed to have been committed and the Police may register a case and investigate it.

12. The same principle should be applied and followed in cases in which a member of the public reports the appearance of forged notes direct to the police station.

13. In every instance, in addition to sending a special report to the Criminal Investigation Department, a report should be sent to the Currency Officer, Hyderabad, immediately on the appearance of a forged note. The report should give the following particulars.

A. series and number of notes

B. value

C. from whom and under what circumstances they were received and date of receipt

D. designation of officer receiving the note

E. reasons for not registering a case, if a case has not been registered, and

F. any other particulars

G. The note seized should be sent to the Currency Officer along with the report, except when the note is required for investigation, in which case the note should be forwarded to the Currency Officer after the investigation is over, quoting the number and date of the original report sent to him.

14. Various methods are employed for manufacture of counterfeit currency. The printing press, the offset machines and more recently the computer aided printing processes and the colour photocopiers are used in the manufacture of counterfeit currency.

15. Methods employed for circulating counterfeit currency: The fake currency is mixed with genuine notes and passed on in bundles to unsuspecting but avaricious victims. The forged currency notes are passed on to the agents at a reduced value providing them with the commission as an incentive. The notes are also used in shops and establishments for the purchase of valuable items.

16. Method of identification: The forged currency notes can be identified from the paper, colours, sharpness of the print, watermark, security thread and serial numbers. The paper of the genuine notes is crisp and the print extremely sharp and of good quality and each note contains a separate number. The alignment of number is not proper on a forged note compared to a genuine note.

17. The source of manufacture is the vital thing which should be the primary objective of the IO.

18. All the counterfeit currency notes in circulation have to be pooled by the Investigation Unit of the CID and each series separated. An analysis and comparison of different series and areas of their circulation would provide a clue to the Investigating Officer. Each series should form a separate case for investigation unless the comparison of different series shows the same pattern.

19. The IO should maintain close liaison with the Reserve Bank to know the circulation of the fake currency in question. The opinion of the expert on the type of paper used, colours, watermark and security thread mark would provide clue as to the source from where these materials were obtained. It is rare that a genuine security thread can ever be inserted in a fake currency note. It is shown more as a thin line whereas in a genuine currency note a metal wire is inserted as part of the paper on which note is printed.

Money Laundering

524-1. Money laundering, i.e., conversion of money secured through illegal means into white money is the main method, which helps the economic offenders. To facilitate transfer of the proceeds of crime which include narcotics trade, smuggling of arms and explosives, hawala transactions have come to surface. The total amount of money involved due to economic crimes is considerably higher compared to the traditional crimes such as dacoities, burglaries etc. To the list of various economic crimes should also be added corruption, violation of copy right, video and software piracy, computer fraud, computer forgery, computer hacking, adulteration, employment and immigration rackets, and host of other connected activities.

2. Money laundering for a layman means conversion of dirty money into clean money. The Interpol as "Any act or attempted act to conceal or disguise the identity of illegally obtained proceeds so that they appear to have originated from legitimate sources describes it". It may also be defined as "(A) engaging directly or indirectly in a transaction which involves property by utilizing proceeds of crime, or (B) receiving, possessing, concealing, disguising, transferring, converting, disposing off within the territories of India, removing from or bringing into the territory of India the property i.e., proceeds of crime". Crime refers to several IPC offences like waging war against the Government of India, murder, attempted murder, voluntarily causing hurt, kidnapping for ransom, extortion, robbery, dacoity, criminal breach of trust, cheating, forgery, counterfeit currency etc.; certain

provisions of the Prevention of Corruption Act, 1988; NDPS Act, 1985; Foreign Exchange Management Act, 1999 (FEMA) and the Customs Act, 1962.

3. The money generated through 'crime' is liable to be confiscated by the State. The existing laws relating to confiscation of proceeds of crime are found in different statutes. Till the proposed money-laundering bill is enacted, the confiscation of proceeds of crime can be taken only under these laws. The important Acts in this regard are (A) Sections 102 and 452 of CrPC; (B) The Criminal Law (Amendment) Ordinance, 1994 (Ordinance XXXVIII of 1994); (C) Sections 111 to 121 of the Customs Act, 1962; (D) Section 68 of the Narcotic Drugs and Psychotropic Substances Act, 1985; (E) Foreign Exchange Management Act, 1999 (Section 63); (F) Smugglers and Foreign Exchange Manipulations (Forfeiture of Property) Act, 1976; (G) Section 20 of AP Control of Organised Crime Act 2001. The illegal currency transfers via non-banking channels are called hawala. It is an underground banking system. This medium is used for overcoming the Government regulations on foreign exchange and also to conceal the proceeds of illegal earnings.

4. The objects of money laundering are $\frac{3}{4}$

- A. criminals distance themselves from the crime making it more difficult to prosecute them;
- B. to prevent/delay the proceeds of crime from being confiscated if the criminal is caught;
- C. enjoy the fruits of the proceeds without being noticed;
- D. reinvest the proceeds in future criminal activity or in legitimate business;

5. the process by which money is laundered has three stages.

- A. Placement - Physical disposal of cash proceeds for its placement into a financial services institution.
- B. Layering - Adding complex layers of transactions
- C. Integration - Place the laundered money back into economy in such a way that it appears as normal business earnings.

6. The methods of laundering take the form of currency smuggling, real estate, gold and diamonds, shell companies, tax havens, casinos, hotels, stores, wire transfer etc.

7. There are various investigating agencies to deal with corporate frauds and other economic offences. The Customs and Central Excise, the Income Tax, the Directorate of Enforcement, the Securities and Exchange Board of India (SEBI) are some of the agencies authorised under the relevant Acts for investigation of cases. The criminal offences, which fall within the IPC as also the other cognizable offences, which the police have been, empowered to investigate, are the responsibility of the police. The investigation of these offences requires a thorough knowledge of the procedures, laws and practice prevalent in financial sector, taxes both direct and indirect, exchange regulations, functioning of stock markets, banking, non-banking financial institutions, audit and accounting, computer technology etc. Next order contains instructions for guidance for investigation of economic crimes by the police and the Investigation Units or CID.

Investigation of Economic Crimes

525-1. Preliminary Enquiry: In financial crimes the report generally lists out certain details with a request for investigation. The report may not clearly disclose a cognizable offence and at the same time the information cannot also be ignored. The newspapers also publish information on some frauds. The documents to support allegations may not be available immediately. Some of the information received may not be clear about the period and the exact offence committed but it may very often contain general information. The place of the offence in some cases is spread over a vast area. On the face of it, sometimes the information may only disclose a civil liability. In such situations it is necessary to take up a preliminary enquiry. The I.Os should have the full knowledge about the way these crimes are committed and its ramifications besides possessing minimum knowledge in Computer applications, foreign exchange transactions, import and export, excise and customs, share market transactions etc.

2. Registration of FIR: A preliminary enquiry into the information is permissible before registering an FIR and taking up investigation. As and when the enquiry discloses a cognizable offence, it should be registered and investigated. Some times departmental authorities conduct enquiries and lodge a complaint for registration of a case and investigation. In such cases the facts will be clear and the case should be registered and investigation taken up. If, even such report does not disclose an offence, the authorities should be informed in writing and requested to make further enquiries or clarify and send a report.

3. The investigation into economic crime is mostly based on documents and instruments. The IO has to secure all the relevant files and documents as per the procedure and processes prescribed in law. The location and tracing of the documents is a matter of utmost importance. In cases involving official agencies no time should be lost in getting hold of the connected files. The

documents and files include those stored in computers. Presently computers of various sizes are used to store information files or notes instead of paper files or notebooks or in addition to them. The courts have to be provided with best available evidence.

4. The forwarding of documents to the concerned experts and obtaining of samples are to be done with expedition and in the manner prescribed in Chapter 31 in the orders relating to documents.

5. The examination of witnesses particularly those who are connected with the documents are the other steps that an IO has to take. A questionnaire should be prepared with reference to the records and the statements of the witnesses recorded. It will be difficult for the witnesses to deny or mislead if the documents are in possession of the Investigating authorities.

6. The examination of the accused person in great detail is required to know the significance of various entries in the registers as also other documents seized in the course of investigation. As in the case of witnesses the IO covering all the points that require to be elicited should prepare a detailed questionnaire. It is in framing the questionnaire the skill of the IO is exhibited. The question should not be framed in such a manner that the accused comes to know the nature of evidence available with the investigating authorities. As investigation in economic frauds is a lengthy process, it will be necessary to fully utilize the provisions of remand of the accused to police custody. Lie detector tests wherever necessary would be useful in such cases.

7. Mutual cooperation with different agencies and other institutions is extremely important in the investigation of these cases. After locating the witnesses or documents it would be very necessary to enlist the cooperation of the concerned authorities in securing the documents and the presence of the witnesses. The personnel either posted in the department or working elsewhere who have the expert knowledge should be identified and their help obtained. Mostly the accounts, banking, stock markets, excise and other tax departments and chartered accountants would be useful for consultation and scrutiny of documents in such cases.

8. The most effective method of dealing with economic offences is to obtain information relating to location of the money involved in the form of cash or bank deposits or fixed assets or in any other form and taking measures for its seizure. It will be necessary to collect evidence to link the money or the assets to the accused. It is in this area that painstaking enquiries are required. The first action to be taken on the information should be to safeguard the property or the assets movable or immovable either by having the bank account frozen or seizing the property or entrusting the property to the concerned Revenue authorities under the provisions of section 452 Cr.P.C. After this action is taken it would be necessary to collect evidence so that its forfeiture and confiscation can be done. In the event of the assets being in another jurisdiction within India the help of concerned police should be taken in the manner provided in CrPC. An IO has powers to search and seize the property concerned in a case anywhere in the country. It is advisable however to take the assistance of the local police at a proper level. If the property or money is abroad, the investigative assistance may be requested under 166-A CrPC. Similar assistance to other countries is permissible in the manner provided in 166-B. The instructions on obtaining the documentary evidence are given in Chapter 24 and also in sections 105 A to 105 L of Chapter 7-A of CrPC.

Computers – preservation of information

9. The economic offences involve a multitude of transactions and entries and vast volume of information. The IO is advised to prepare a chart and load the information in a computer system to enable analysis and comparison as also not to miss out any important aspect. If for any reason, a computer system cannot be used, this may be done manually.

10. The Investigating Officers have to remember that a computer is on the same footing as a document and as such will prove a useful and necessary piece of evidence. The matter entered in a computer whether on magnetic media like hard discs, tapes, floppy discs or optical media like compact discs, whether audio or video, come within the meaning of a document as defined in the Indian Evidence Act. In preserving them as evidence or producing them the procedure laid down in the law for search, seizure, forwarding should be followed as in the case of any other document or material object. The handling preservation and comparison of these require special precautions, which are dealt in the Order 526 next.

(F) Computer Crime

526-1. In this age of Information Technology Revolution, computers and computer networks are now within the reach of citizens, businessmen and public authorities. Computer networks and stand alone computers, which have wide applications at home, in business, in industry and commercial establishments, in public offices, are being used for data processing and storing vital information. In other words, the information technology encompasses the entire gamut of human activity. While on one hand the computer and computer networks have opened new vistas for various segments of the society and business, they are also being used as tools by criminals who use them as other devices such as firearms, explosives etc. Since the extensive use of computers has made some areas of our life increasingly dependent on them, the need to protect these areas from crime has become extremely important. The financial system, transportation systems, public records, manufacturing processes and the information infrastructure is amenable to attack by cyber criminals. The number, economic cost and sophistication of such attacks at the hands of well-educated criminals will be increasing in days to come. The international communication networks and omnipresent Internet have erased the national boundaries and the computer crime is increasing becoming international both

in its scope and ramifications. This poses a new challenge for the police and other law enforcement authorities that are being called upon to ensure that users of computer and computer networks do not become victims of computer/cyber crime and also to take up investigation of this new generation of offences.

2. In dealing with criminal activity and also computer related crime, it is essential for the police to have the basic knowledge of computers. In the paragraphs that follow, the functions of the computers and computer networks have been briefly explained for the benefit of police officers.

3. A computer is a machine that carries out logical instructions in a predetermined manner. It is programmed to perform certain operations and store large amount of information depending upon its capacity. The computer networks consist of number of computers connected with each other by various means and are capable of sharing and transferring information between each other. The information or data stored in a computer can be retrieved or transferred, or used in an output form in number of ways.

4. A typical computer consists of 'input device', 'output device', 'central processing unit' and 'memory'. The input devices are used to feed the data or instructions in a computer from the user or from another computer system. The following are some of the input devices:

- a keyboard
- a mouse
- a magnetic tape drive
- a disk drive such as floppy disk drive, CD drive, DVD drive
- any kind of electric sensor
- a digital camera
- a microphone
- a bar coding reading machine
- scanners etc.

5. The output devices receive processed data for the user or another computer system. The following are some of the output devices:

- a visual display unit also known as monitor
- a printer which produces 'hard copies' of the output
- magnetic tapes, cassettes, disks such as floppy disks, CDs, DVDs etc.

However, certain hardware devices such as 'touch screens' and communication devices which connect one computer to another in a network such as modems etc. perform both input and output functions.

6. The central processing unit (CPU) can be described as heart of the computer. It carries out the instructions that have been pre-programmed into it either by the user or by software. In a typical personal computer, the central processing units may consist of one or more microprocessors – also called chips. It generally has a memory store which is measured in units known as Kilobytes (Kb), Megabytes (Mb), Gigabytes, (Gb) and Terabyte (Tb). It also has unit which processes the information. Central processing systems use "operating systems", which govern the way the computer operates. Some of the popular operating systems are MS DOS, Windows, UNIX, Linux etc.

7. The memory is important component to the investigator- for this is where evidence is likely to be obtained. The memory is generally classified as temporary memory and permanent memory. Temporary memory is known as Random Access Memory (RAM) OR read/write memory, which can be altered or erased. The information contained in RAM is not saved or transferred to other storage media and it is lost the moment power source is disconnected. The permanent memory, known as Read Only Memory (ROM) cannot be altered or erased.

Computer Hardware

8. The mechanical devices that constitute the computer are called hardware. The hardware can be seen and felt. The hardware consists of various inter-connected electronic devices such as processors, video screens, printers and several other peripherals such as disk drives, CD writers etc.

Computer Software

9. The hardware by itself cannot do any data processing. It requires electronic instructions that drive a computer or any other hardware component to perform specific tasks. Any computer software, information / data are organised in a structure of files, software in programme files and information in data files. Though there are number of software programme, these can be broadly categorized into 'system software' and 'application software'

10. As mentioned above, one major type of system software, known as the operating system tells the computer, how to use its on components. The application software, instructs the computer, how to accomplish specific tasks such as word processing, data analysis, computer games etc.

11. Information / data may be loaded onto a computer by using any of the input devices mentioned above. The data may normally be referred by names like records or files.

12. The descriptions of various types of computers is given in the following paragraphs:

A. Super Computers: Super Computers are generally the largest and most powerful computers made to process huge amount of data and carry out large number of calculations per second. The scientists and engineers generally use the Super Computers. Due to their size and cost, Super Computers are very rare and only used by large corporations, universities and government agencies.

B. Main Frame Computers: The largest of a computer, which is commonly used for processing huge volume of data are called Main Frame Computers. These are normally used in large organizations like insurance companies, banks and airlines, where same data need to be accessed by several people. Main Frame Computers are also used for providing services on the internet. Retrieving evidence from a Main Frame Computer may require a high degree of expertise.

C. Mini Computers: Mini Computer systems are smaller computers but have large capacity for processing the data. These are normally used as servers and provide network to number of users and are capable of data sharing with the linked computer systems.

D. Work Stations: Work Stations are normally used for specialized purpose by single user. These normally have processing power of a mini computer and are used by scientists, engineers, graphic artists, programmers etc.

E. Microcomputers / Personal Computers: These are generally used by individuals for various applications. These days, with advanced technology, processing power of microcomputers often drives that of workstations or mini computers. These computers may also be used with network interface card to connect to the network of an organization or to the Internet.

F. Note Book / Laptop computers: Note Book / Laptop computers, as the name suggests, are smaller portable versions of micro computers and can perform any function of a micro computer. These computers can be carried anywhere and can be connected to the network through physical or wireless interface.

G. Hand held computers: The past few years have seen introduction of many hand held personal computers, which are also called on Palmtop Computers or Personal Digital Assistants (PDAs). These are small portable computers less powerful than microcomputers providing services on the internet.

13. Network Computing: A network of computers can be defined as several computers connected with each other through cables or wireless, so as to be capable of sharing various kinds of information / data. Generally, two main types of networks i.e. Local Area Network (LAN) and Wide Area Network (WAN) are in use these days.

A. A Local Area Network (LAN) can be defined as a network of computers located in vicinity. These are normally connected by cable, an Intra red link or through a radio transmitter. The data is normally shared by these computers through certain software protocols, which are a set of rules and forms for sending and receiving data. TCP / IP is one of the most popular protocol, which is in use these days for exchange of data.

B. Wide Area Network (WAN) can be defined as network of two or more LANs connected together covering a wide geographical area. A WAN may link computers situated in one country or across various countries. The computers in WAN may be connected through high speed telephone lines, fibre optics, under sea cables or through satellites.

Note:- There are different types of network architecture, which are not discussed here. For understanding them, any standard text book like Peter Norton's "Introduction to Computers" published by Tata McGraw-Hill publishing company could be consulted.

14. Storage Devices: The data / information is often stored on what is known as storage media. The hardware component, on which, data can be written and read from it, is also known as storage device. There are two main categories of storage technology, which exist today i.e. magnetic storage and optical storage. Certain storage devices / media may employ both kind of technology. For detailed description, any standard book on storage devices may be referred to.

A. The primary type of magnetic storage devices are as follows:

- Diskette
- Hard Disk (could be fixed or removable)
- High capacity floppy disks
- Disk cartridges

- Magnetic tape
- Cards (credit and debit cards etc.)

B. The various types of Optical Storage devices are as follows:

- Compact Disk Read-Only Memory (CD-ROM)
- Digital Video Disk Read-Only Memory (DVD-ROM)
- CD-Re-cordable (CD-R)
- CD-Re-Writable (CD-RW)
- Photo CD

Computer Crime

527-1. Given the dynamic nature of information technology, communication infrastructure and ever changing legal measures towards better effort to prevent computer / cyber offences the paragraphs that follow are not a comprehensive description of computer crime. The police officers are advised to consult computer/cyber crime manual to be prepared and issued by Crime Investigation Department (CID) and also to refer to the latest legal provisions on the subject.

2. There is no universal accepted definition of computer / cyber crime but broadly in general parlance, the computer crime is any illegal or unauthorized activity involving computers. The crime can be against an individual or organization or against the nation endangering or threatening to endanger its integrity and security. Such an illegal or unauthorized act may manifest in, preventing the computer to perform its duties as designed, or slow down its operations, or corrupting or copying the data or software. A computer crime can thus broadly defined as commission, or attempt or abetment to the commission of any one or any combination of the following illegal/unauthorized activities.

- unauthorized access , alteration, addition, deletion or hiding data;
- unauthorized access, alteration, addition, deletion or hiding programme or information;
- stealing of data, programme in any manner;
- unauthorized (physical/logical) entry into computer work environment;
- change or alter the defined system.

Modus Operandi of the Computer Crime

3. Digital or electronic trespassing requires very few tools such as home computer, or a note book computer or a desk top personal computer, a modem and a telephone line. The criminal first identifies and breaks into the communication channel to which the computer is connected. This may be a dial up line connected to telephone line or a leased line connected to a telephone line or to the public data system network. He then tries to log into the system by trying out various passwords or stolen password. For an insider to gain unauthorized access to the system becomes all the easier. In the case of stand-alone systems, his job becomes easy once he gets physical access to the system.

Computer Hacking

4. This is, also known as intruding or cracking, a practice of gaining unauthorized access to a networked computer from a remote source. It involves decoding of password, breaking into the system and unauthorized use of system. Electronic eaves dropping could also be used as a method by hackers for interception of computer services. This is a serious problem as most major computer systems in the world are on the computer network. By this method the offences that can be committed are forgery, sabotage and unauthorized access for interception. Hacking is defined under section 66 of I.T. Act 2000. In cracking, normally the perpetrator makes minor changes in the programme, in violation of the copyright restrictions with the objective of extracting information, illegally.

Other type of Computer Crimes

4. Software Piracy and other Copyright Violations, Cyber Pornography, Cyber Terrorism and introducing deliberately the virus etc. are the other type of Computer Crimes. This list will keep on growing with the growth of the computers and the Information Technology. Virus is the latest and the most destructive type of identified computer crime. It has the capacity of instantaneously multiplying and attaching themselves to programme under certain circumstances. They can damage computer systems, programs

and data. A programmer writes a virus which is nothing more than a few lines of numbers or letters that instruct the computer to change or destroy information inside another computer. The virus instructions are hidden inside a legitimate program – one that might contain a spreadsheet or a word processing programme. It can in fact be through a disc or even through phone lines. The computer reads the virus along with the real software program. The computer reacts to the hidden virus instruction. It might tell the computer to destroy information on a certain date or simply flash a harmless message on screen. It might also tell computer to put a copy of the infected software on every other disc inserted into the machine. A virus can spread from computer to computer system over a telephone line and electronic bulletin boards and floppies / discs. It can damage the computer memory and knock out the total system.

Investigation of Computer Crime

6. In the following paras, brief instructions are given, which will be useful to the investigators. But these, by no means are exhaustive in nature especially as the technology and the nature of the computer crime keeps on changing and therefore the investigators are advised to refer to computer crime manual prepared and updated by Crime Investigating Department (CID) from time to time.

7. Unlike collection of evidence in normal crime, the collection of computer evidence on any scene of crime required specialist care. Serious problems could arise if the computer evidence is not collected properly and with necessary specialist care. Therefore, the investigators are advised that they may call for specialist of computer crime unit of Crime Investigating Department or computer forensic scientist from the Forensic Science Laboratory.

8. Whenever the investigators comes across a computer during investigation of any crime, he should remember that it could be a valuable piece of equipment and could contain quantity of data, which could lead to valuable evidence for the crime being investigated. Therefore, preservation of the same becomes important from the point of view of evidence. Any mistake in preserving the evidence could result in loss of valuable evidence. On the other hand, any mishandling could also result in huge economic loss to the owner of such computer, which must be avoided at every cost. The investigator must remember that computers could frequently be connected each other in a network and the vital necessary evidence might have been transmitted or stored at a location different from the site of the search. The information could be stored even across the boundaries of the country. The investigating officer must therefore be extremely careful whenever he comes across a network of computers. It may also be necessary to involve a computer expert at the earliest as investigator may not be equipped to collect various kinds of data storage on magnetic or optical media.

Preparation for collecting evidence at the scene of crime and search

9. The following precautions are advised to an investigator, if he comes across to a computer or computer network suspected to be involved in computer crime.

A. If the investigator has prior knowledge that the scene of crime which is going to be searched would have computer systems or computer network in place, it is advisable to contact the specialist computer crime unit of Crime Investigation Department or computer forensic scientist of Forensic Science Laboratory. In case it is possible, advanced information may be collected regarding the make, model, operating system, network connections etc. being used by the organization or individual, whose premises is being searched, as this information could prove valuable. The information so collected must be passed on to the expert, who can make necessary preparation that may be required to collect evidence. This is necessary, as many a times, it may not be possible to remove the computer systems physically and the data or programme may have to be copied as per provision of Indian Evidence Act on the crime scene itself. The investigator or the expert, who may accompany the police personnel going for search should carry necessary media in the form of disk, floppy disks, optical disks, tapes, tools, software, labels and other specialized items and should carry necessary packing material, which can prevent loss of evidence collected as offered on such media as data on magnetic media can be destroyed by media, dust and electrostatic environment.

B. In case computer equipment is to be removed, necessary care would have to be taken to pack it properly and if necessary the material which will prevent any damage, as sometimes read-write heads could malfunction if subjected to sudden jerk or force, should be arrange for packing. If the computer system at crime scene happens to be large, special attention may be required for proper transport and storage arrangements, so that, data contained therein is preserved for the purpose of evidence. If necessary and possible, the place which contains such computers could be sealed and guarded properly till arrangement is made to collect the evidence.

C. During the course of the search, the investigator must not, under any circumstances, allow a suspect or accused to touch any part of the computer system. It must be remembered that even a press of a key could erase the entire data. These days, it is even possible to enter or delete data with the help of remote keyboards and mouse. Hence care should be taken that suspect or accused does not have possibility of passing any instructions to the computer through any of such devices. Sometimes, it may be desirable / necessary for suspect or accused to be present during the

search to collect valuable information especially if data is protected by user identities or passwords. In such situations, the investigator must be careful to keep the suspect / accused out of reach of computer system and must not try to recover data by using the identities or passwords told by such person. He should invariably take help of an expert under such circumstances.

D. Now-a-days, most of the computers are part of the network, which may be connected through cables, radio links, telephone, fibre optics etc. In a network, individual computer systems may function as stand alone machines also and may contain significant data / programmes. On the other hand, the information could be found elsewhere – in a physically remote area – as server connected in the network. Therefore, it is important that help of an expert is taken to identify where the storage is located. The type of storage arrangement in use in a network would determine the search and seizure procedures. It is, therefore, necessary that when a network environment is to be searched, adequate technical personnel along with general investigator must be assigned for the job. In case, it is found that the server or data storage is located outside the boundaries of India, prompt necessary action has to be taken through a competent court to issue a “letters rogatory” under the provisions of section 166(A) CrPC. The assistance of National Crime Bureau (N.C.B.) represented by Central Bureau of Investigation, may be taken in this regard.

E. It may therefore be necessary to ensure that the suspect / accused is not able to tamper with the information contained in the computers at the time of the search. The investigator is well advised to take help of an expert to ensure that all such connections are removed and data communication facilities disabled at the earliest.

Procedure to be adopted during search and seizure of evidence contained in computer systems

10. The actual collection / seizure of evidence should take place after all steps mentioned in previous paragraphs have been taken. As mentioned above, it may be necessary to associate an expert or a forensic specialist before carrying out the search and seizure procedure. However, in the following paragraphs, few of precautions and steps taken during the search have been detailed.

11. The system should be observed carefully and the name and the model number of the system should be noted. It is necessary to prevent loss or corruption of evidence and to ensure preservation of quality of evidence.

12. Under no circumstances, crime suspect / accused should be allowed to touch a computer system or use remote control devices, which can manipulate the data / programmes contained in the computer systems.

13. The suspect / accused or anybody else must not be allowed to remove anything from the scene or carry out any activities on the computers. It must be remembered the computers but video screens, printers and other peripheral devices may also contain valuable evidence, which could be destroyed, if anybody is permitted to handle these equipments. In case, no technical / expert assistance is available, and the investigator is not trained to handle such computer systems, it may be advisable to leave computers on the scene as it is, till technical assistance arrives.

14. In case, computer systems are found working, it may be necessary to power down these with the help of experts depending upon the operating system in use. Care should be taken to use the shut down system of the operating system and not shut off power as that could result in loss of data / programme, which may make recovery of evidence extremely difficult and even impossible.

15. Before disconnecting and dismantling any computer component, everything must be labeled, initiated with date along with the signatures of witnesses as per provisions of law. Special care should be taken to label and document all the cables. The corresponding labels must be placed on the devices, which are connected with particular cables and if necessary a descriptive labeling system i.e. LPT1, Serial Port etc. may be used.

16. It may be extremely useful and necessary to take close up photography – both still and video – of all the individual pieces of hardware and connections. The investigator may also draw a diagram of the location of the various computer systems.

17. The equipment available at the scene, must not be dismantled by the investigator and the job shall be best left to a specialist, who may disable a network/remove the peripherals first and then the computer system.

18. Any documentation or notes or scratch paper etc. found at the scene must be scrutinized properly and seized. Many a times, these could give important clues regarding passwords and other information.

19. In case, the scene of crime contains multiple computer systems, care must be taken to keep one system separate from the other and the peripherals attached to such system must be marked and packed separately, so that they do not get mixed-up.

20. The investigator is cautioned that when no expert is available, he should not try to handle the system as due to any improper handling, there is a risk of tampering the evidence available therein. Switching or disconnection of power may result in loss of temporary memory (RAM), which will create difficulties in re-gaining access to the system and collection of evidence by the

expert. Even if the investigator is conversant with computer, keying in instructions could overwrite data and can be construed as interfering with the evidence. Therefore, care should be taken to have expert assistance available also for preserving the evidence.

21. The investigator should remember that sometimes the computer may appear not to be working but actually it could be in hibernation / sleep mode and it might not have been turned off. Some computer especially laptops work with the help of batteries and therefore care should be taken for handling such systems for collecting the evidence.

Analysis of computer evidence

22. The evidence collected from scene of a crime from computer system/s must be sent to forensic laboratory for examination by computer forensic experts or any other designated expert as per the provisions of Indian Evidence Act. The Forensic laboratory may make a copy of the data seized for the purpose of analysis and should not work on the original as the data on the media seized is required to be produced in the court as an evidence, and it may get destroyed or altered if the process of analysis is done on the original stored data.

23. The investigator must ensure that all equipment – tapes, disks, peripherals etc. must be stored in a dust free environment under regulated temperature. The investigator is well advised to consult an expert for properly storing the equipment and other seized material.

24. The investigation into computer crimes should be done by police officers who have the necessary experience and training in the field. A training programme for investigating officers in this form of crime should be organised in the A.P.Police Academy, Hyderabad.

Computer Crime and legal penal provisions

528. The various type of computer crimes as mention in Order 527-2 may fall within the ambit of existing provisions of Indian Penal Code or Chapter-XI of Information Technology Act, 2000. These offences and their nature are not being discussed here and the investigators may consult some of the books published on the subject and manual on Computer Crime published by International Criminal Police Organisations (Interpol). The relevant definitions and sections in Chapter – XI entitled “Offences” of Information Technology Act, 2000 are being re-produced below. The investigators are advised to refer to latest law as the law relating to computer crime is in evolutionary stage and may change from time to time.

Definitions

1. In this Act, unless the context otherwise requires.

A. “Access” with its grammatical variations and cognate expressions means gaining entry into, instructing or communicating with the logical, arithmetical, or memory function resources of a computer, computer system or computer network.

B. “Computer” means any electronic, magnetic, optical or other high-speed data processing device or system which performs logical, arithmetic, and memory functions by manipulations of electronic, magnetic or optical impulses, and includes all input, output, processing, storage, computer software, or communication facilities which are connected or related to the computer in a computer system or computer network;

C. “Computer Network” means the interconnection of one or more computers through-

D. “Computer Resource” means computer, computer system, computer network, data, computer database or software;

E. “Computer System” means a device or collection of devices, including input and output support devices and excluding calculators which are not programmable and capable of being used in conjunction with external files, which contain computer programmes, electronic instructions, input data, and output data, that performs logic, arithmetic, data storage and retrieval, communication control and other functions;

F. “Data” means a representation of information, knowledge, facts, concepts or instructions which are being prepared or have been prepared in a formalized manner, and is intended to be processed, I sbeing processed or has been processed in a computer system or computer network, and may be in any form (including computer printouts magnetic or optical storage media, punched cards, punched tapes) or stored internally in the memory of the computer;

G. "Digital Signature" means authentication of any electronic record by a subscriber by means of an electronic method or procedure in accordance with the provisions of section 3;

H. "Digital Signature Certificate" means a Digital Signature Certificate issued under sub-section (4) of section 35;

I. "Electronic Form" with reference to information means any information generated, sent, received or stored in media, magnetic, optical, computer memory, micro film, computer generated micro fiche or similar device;

J. "Electronic Record" means data, record or data generated, image or sound stored, received or sent in an electronic form or micro film or computer generated micro fiche;

K. "Function", in relation to a computer, includes logic, control, arithmetical process, deletion, storage and retrieval and communication or telecommunication from or within a computer;

L. "Information" includes data, text, images, sound, voice, codes, computer programmes, software and databases or micro film or computer generated micro fiche;

M. "Originator" means a person who sends, generates, stores or transmits any electronic message or causes any electronic message to be sent, generated, stored or transmitted to any other person but does not include an intermediary;

N. "Secure System" means computer hardware, software, and procedure that:

- (a) are reasonably secure from unauthorized access and misuse;
- (b) provide a reasonable level of reliability and correct operation;
- (c) are reasonably suited to performing the intended functions and
- (d) adhere to generally accepted security procedures;

O. "Subscriber" means a person in whose name the Digital Signature Certificate is issued;

P. Any reference in this Act to any enactment or any provision thereof shall, in relation to an area in which such enactment or such provision is not in force, be construed as a reference to the corresponding law or the relevant provision of the corresponding law, if any, in force in that area.

2. Section 43: Penalty for damage to computer, computer system, etc. If any person without permission of the owner or any other person who is in charge of a computer, computer system or computer network -

- (a) accesses or secures access to such computer, computer system or computer network.
- (b) downloads, copies or extracts any data, computer data base or information from such computer, computer system or computer network including information or data held or stored in any removable storage medium;
- (c) introduces or causes to be introduced any computer contaminant or computer virus into any computer, computer system or computer network;
- (d) damages or causes to be damaged any computer, computer system or computer network, data, computer data base or any other programmes residing in such computer, computer system or computer network;
- (e) disrupts or causes disruption of any computer, computer system or computer network;
- (f) denies or causes the denial of access to any person authorized to access any computer, computer system or computer network by any means;
- (g) provides any assistance to any person to facilitate access to a computer, computer system or computer network in contravention of the provisions of this Act, rules or regulations made there under.
- (h) Charges the services availed of by a person to the account of another person by tampering with or manipulating any computer, computer system, or computer network, he shall be liable to pay damages by way of compensation not exceeding one crore rupees to the person so affected.

Explanation – for the purposes of this section –

(i) "Computer Contaminant" means any set of computer instructions that are designed –

- (a) to modify, destroy, record, transmit data or programme residing within a computer, computer system or computer network; or
- (b) by any means to usurp the normal operation of the computer, computer system, or computer network;

(ii) "Computer Database" means a representation of information, knowledge, facts, concepts or instructions in text, image, audio, video that are being prepared or have been prepared in a formalized manner or have been produced by a computer, computer system or computer network and are intended for use in a computer, computer system or computer network;

(iii) "Computer Virus" means any computer instruction, information, data or programme that destroys, damages, degrades or adversely affects the performance of a computer resource or attaches itself to another computer resource and operates when a programme, data or instruction is executed or some other event takes place in that computer resource;

(iv) "Damage" means to destroy, alter, delete, add, modify or re-arrange any computer resource by any means.

3. Section 44: Penalty for failure to furnish information, return, etc. If any person who is required under this Act or any rules or regulations made there under to –

(a) furnish any document, return or report to the Controller or the Certifying Authority, fails to furnish the same, he shall be liable to a penalty not exceeding one lakh and fifty thousand rupees for each such failure;

(b) file any return or furnish any information, books or other documents within the time specified therefore in the regulations, fails to file return or furnish the same within the time specified therefore in the regulations, he shall be liable to a penalty not exceeding five thousand rupees for every day during which such failure continues:

(c) maintain books of account or records, fails to maintain the same, he shall be liable to a penalty not exceeding ten thousand rupees for every day during which the failure continues.

4. Section 45: Residuary Penalty. Whoever contravenes any rules or regulations made under this Act, for the contravention of which no penalty has been separately provided, shall be liable to pay a compensation not exceeding twenty-five thousand rupees to the person affected by such contravention or a penalty not exceeding twenty-five thousand rupees.

5. Section 46: Power to Adjudicate. (1) For the purpose of adjudging under this Chapter whether any person has committed a contravention of any of the provisions of this Act or of any rule, regulation, direction or order made there under, the Central Government shall, subject to the provisions of sub-section (3), appoint any officer not below the rank of a Director to the Government of India or an equivalent officer of a State Government to be an adjudicating officer for holding an inquiry in the manner prescribed by the Central Government.

(2) The adjudicating officer shall, after giving the person referred to in sub-section (1) a reasonable opportunity for making representation in the matter and if, on such inquiry, he is satisfied that the person has committed the contravention, he may impose such penalty as he thinks fit in accordance with the provisions of that section.

(3) No person shall be appointed as an adjudicating officer unless he possesses such experience in the field of Information Technology and Legal or Judicial experience as may be prescribed by the Central Government.

(4) Where more than one adjudicating officers are appointed, the Central Government shall specify by order the matters and places with respect to which such officers shall exercise their jurisdiction.

(5) Every adjudicating officer shall have the powers of a civil court which are conferred on the Cyber Appellate Tribunal under sub-section 58, and –

(a) all proceedings before it shall be deemed to be judicial proceedings within the meaning of sections 193 and 228 of the Indian Penal Code;

(b) shall be deemed to be a civil court for the purposes of sections 345 and 346 of the Code of Criminal Procedure, 1973.

6. Section 65: Tampering with Computer Source Documents. Whoever knowingly or intentionally conceals, destroys or alters or intentionally or knowingly causes another to conceal, destroy or alter any computer source code used for a computer, computer programme, computer system or computer network, when the computer source code is required to be kept or maintained by law for the time being in force, shall be punishable with imprisonment up to three years, or with fine which may extend up to two lakh rupees, or with both.

Explanation - For the purposes of this section, "Computer Source Code" means the listing of programmes, Computer Commands, Design and layout and programme analysis of computer resource in any form.

7. Section 66: Hacking with Computer System. (1) Whoever with the intent to cause or knowing that he is likely to cause wrongful loss or damage to the public or any person, destroys or deletes or alters any information residing in a computer resource or diminishes its value or utility or affects it injuriously by any means, commits hacking. (2) Whoever commits hacking shall be punished with imprisonment up to three years, or with fine which may extend up to two lakh rupees, or with both.

8. Section 67: Publishing of information which is obscene in electronic form. Whoever publishes or transmits or causes to be published in the electronic form, any material which is lascivious or appeals to the prurient interest or if its effect is such as to tend to deprave and corrupt persons who are likely, having regard to all relevant circumstances, to read, see or hear the matter contained or embodied in it, shall be punished on first conviction with imprisonment of either description for a term which may extend to two years and with fine which may extend to one lakh rupees and in the event of a second or subsequent conviction with imprisonment of either description for a term which may extend to ten years and also with fine which may extend to two lakh rupees.

9. Section 68: Power of Controller to give directions. (1) The Controller may, by order, direct a Certifying Authority or any employee of such Authority to take such measures or cease carrying on such activities as specified in the order if those are necessary to ensure compliance with the provisions of this Act, rules or any regulations made there under.

(2) Any person who fails to comply with any order under sub-section (1) shall be guilty of an offence and shall be liable on conviction to imprisonment for a term not exceeding three years or to a fine not exceeding two lakh rupees or to both.

10. Section 69: Directions of Controller to a subscriber to extend facilities to decrypt information. (1) If the Controller is satisfied that it is necessary or expedient so to do in the interest of the sovereignty or integrity of India, the security of the State, friendly relations with foreign States or public order or for preventing incitement to the commission of any cognizable offence, for reasons to be recorded in writing, by order, direct any agency of the Government to intercept any information transmitted through any computer resource.

(2) The subscriber or any person in charge of the computer resource shall, when called upon by any agency, which has been directed under sub-section (1), extend all facilities and technical assistance to decrypt the information.

(3) The subscriber or any person who fails to assist the agency referred to in sub-section (2) shall be punished with an imprisonment for a term which may extend to seven years.

11. Section 70: Protected system. (1) The appropriate Government may, by notification in the Official Gazette, declare that any computer, computer system or computer network to be a protected system.

(2) The appropriate Government may, by order in writing, authorise the persons who are authorised to access protected systems notified under sub-section (1)

(3) Any person who secures access or attempts to secure access to a protected system in contravention of the provisions of this section shall be punished with imprisonment of either description for a term, which may extend to ten years and shall also be liable to fine.

12. Section 71: Penalty for misrepresentation. Whoever makes any misrepresentation to, or suppresses any material fact from, the Controller or the Certifying Authority for obtaining any licence or Digital Signature Certificate, as the case may be, shall be punished with imprisonment for a term which may extend to two years, or with fine which may extend to one lakh rupees, or both.

13. Section 72: Breach of confidentiality and privacy. Save as otherwise provided in this Act or any other law for the time being in force, any person who, in pursuance of any of the powers conferred under this Act, rules or regulations made there under, has secured access to any electronic record, book, register, correspondence, information, document or other material without the consent of the person concerned discloses such electronic record, book, register, correspondence, information, document or other material to any other person shall be punished with imprisonment for a term which may extend to two years, or with fine which may extend to one lakh rupees, or with both.

14. Section 73: Penalty for publishing Digital Signature Certificate false in certain particulars. (1) No person shall publish a Digital Signature Certificate or otherwise make it available to any other person with the knowledge that -

- (a) the Certifying Authority listed in the certificate has not issued it; or
- (b) the subscriber listed in the certificate has not accepted it; or
- (c) the certificate has been revoked or suspended, unless such publication is for the purpose of verifying a digital signature created prior to such suspension or revocation

(2) Any person who contravenes the provisions of sub-section (1) shall be punished with imprisonment for a term, which may extend to two years, or with fine, which may extend to one lakh rupees, or with both.

15. Section 74: Publication for fraudulent purpose. Whoever knowingly creates, publishes or otherwise makes available a Digital Signature Certificate for any fraudulent or unlawful purpose shall be punished with imprisonment for a term which may extend to two years, or with fine which may extend to one lakh rupees, or with both

16. Section 75: Act to apply for offence or contraventions committed outside India. (1) Subject to the provisions of sub-section (2), the provisions of this Act shall apply also to any offence or contravention committed outside India by any person irrespective of his nationality.

(2) For the purposes of sub-section (1), this Act shall apply to an offence or contravention committed outside India by any person if the act or conduct constituting the offence or contravention involves a computer, computer system or computer network located in India.

17. Section 76: Confiscation. Any computer, computer system, floppies, compact disks, tape drives or any other accessories related thereto, in respect of which any provision of this Act, rules, orders or regulations made there under has been or is being contravened, shall be liable to confiscation:

Provided that where it is established to the satisfaction of the court adjudicating the confiscation that the person in whose possession, power or control of any such computer, computer system, floppies, compact disks, tape drives or any other accessories relating thereto is found is not responsible for the contravention of the provisions of this Act, rules, orders or regulations made there under, the court may, instead of making an order for confiscation of such computer, computer system, floppies, compact disks, tape drives or any other accessories related thereto, make such other order authorised by this Act against the person contravening of the provisions of this Act, rules, orders or regulations made there under as it may think fit.

18. Section 77: Penalties and confiscation not to interfere with other punishments. No penalty imposed or confiscation made under this Act shall prevent the imposition of any other punishment to which the person affected thereby is liable under any other law for the time being in force.

19. Section 78: Power to investigate offences. Notwithstanding anything contained in the Code of Criminal Procedure, 1973, a police officer not below the rank of Deputy Superintendent of Police shall investigate any offence under this Act.

(G) Poisons and Poisoning

529-1. A poison is a substance which when administered by mouth, by intravenous, intra-muscular or subcutaneous injection or by any other means proves injurious to health or life.

2. Poisons are classified into Corrosives, Irritants, and Neurotics. They are used for homicides and suicides. Accidental deaths also occur due to poison. The Corrosives (strong acids and alkalies) are sulfuric acid, hydrochloric acid, nitric acid, cyanides etc. The symptoms of these Corrosives are burning sensation, acute pain in mouth, larynx, oesophagous and stomach, vomiting of shreddy bloodstain material etc.

3. The Irritants are organic, inorganic and metallic substances like phosphorous, chlorine, arsenic, mercury, lead, etc. The symptoms of such poisoning are inflammation of gastro intestinal canal, severe pain over the abdomen associated with or followed by painful vomiting and diarrhoea.

4. The neurotics are dhatura, cyanide, methyl alcohol, strychnine, etc. These affect the brain, spinal chord or lungs and peripheral nerves. They are asphyxiants and peripheral depending on the action they produce on various organs.

5. Poisoning may be acute or chronic. In acute poisoning, symptoms at variance with the normal state of the individual appear suddenly, whereas in chronic poisoning, they do so gradually because of the administration of small doses of the poison on each occasion.

530. Instructions as well as the precautions in preserving, packing and forwarding samples in Chapter 31 should be read.

1. The Investigating Officer should collect the following information and material in poisoning cases.

- (i) Fact and factors that led to administration or consumption of poison - by force, voluntarily or accidentally.
- (ii) State of the victim / mental / family / profession / activity / enemy / ailments / availability of medicine
- (iii) Chronic disease
- (iv) Indebtedness
- (v) Sexual jealousy
- (vi) Dejection in life/failure in examination
- (vii) Suicidal tendency
- (viii) Possibility of being victimised/accused
- (ix) Symptoms from time to time
- (x) Examination of neighbours, friends and servants
- (xi) Addiction
- (xii) Possession/purchase/borrowing of poison consumed

2. Look for and collect:

- (i) Leaves, juices, flowers, weeds, seeds, fruits, barks, roots, twigs of suspected vegetable poison from the scene
- (ii) Remnants of food
- (iii) Undissolved material
- (iv) Containers, spoons, cups, saucers, tumblers, vessels, bottles
- (v) Papers, covers, wrappers of poison
- (vi) Clothes, bed sheets, towels
- (vii) Mortar & Pestle
- (viii) Medical chest in bathroom and kitchen, time barred medicines
- (ix) Vomittings, purgings
- (x) Urine in 24 hours
- (xi) Blood

(xii) Pet animals or birds suspected to have consumed the foodstuff. Other inmates suspected to have consumed poison - stomach wash

3. In Fatal cases:

- (i) History of patient
- (ii) Stomach wash and its contents
- (iii) A loop of intestine
- (iv) Liver
- (v) Kidney $\frac{1}{2}$ each
- (vi) All the Urine present in bladder
- (vii) Blood 50 cc
- (viii) Lungs in case of gas poisoning
- (ix) Brain
- (x) Bones
- (xi) Hairs
- (xii) Finger nail clippings
- (xiii) Soil beneath the dead body
- (xiv) Any other unexpected material at the scene of occurrence, especially disowned by inmates of the house.

531. While investigating a case of suspected poisoning, the instructions in Chapter 31 should be thoroughly studied. The following procedure should be followed.

1. A physician should be sent for, if the victim is still alive and first aid rendered if possible, pending his arrival. The IO should under no circumstances undertake the administration of first aid, if he is not well acquainted with the subject, but he should strive to obtain medical aid at the earliest opportunity rather than make the case more complicated by his interference and delay.
2. Enquiries about the appearance of the symptoms and their characters should be made with reference to: (A) how long after the taking of food, drink or medicine the symptoms appeared (B) whether the symptoms were intermittent or increased steadily, and (C) the previous state of health of the victim.
3. The search of premises of the victim and the suspect, to discover the poison likely to have been employed, should be undertaken without any loss of time, to pre-empt the culprit or his associates from removing it or other evidence of it, before the police could secure the same.
4. Examination of the vomiting, if any, paying particular attention to its colour. Coffee brown colour with garlic or onion-like odour is an indication of phosphorous poisoning. Black vomits may be due to sulphuric acid, greenish due to hydrochloric and yellow due to nitric or chromic acid. White vomit turning to black in daylight indicates the administration of silver nitrate. Sharp ammoniacal smell is due to ammonia and vinegar like odour, to acetic acid. Bluish green is characteristic of copper sulphate. Whenever vomitted material is found in connection with a case of suspected poisoning, it should be seized, preserved and forwarded to the Director, APFSL for analysis.
5. Food, drink or medicine suspected to have any connection with the case and the Urine should also be collected and forwarded for analysis.
6. If food is suspected to have been poisoned, enquiries should be made to find out whether any person or persons, other than the one affected has or have been similarly affected more or less simultaneously.
7. Explanations or remarks made by the victim or other persons regarding the onset of the symptoms should carefully be noted.
8. When the symptoms do not conform to ordinary illness and when, in spite of appropriate treatment, they persist; the surroundings of the place where the victim is placed and the conduct of his attendants should be carefully watched. Services of a reliable and dependable consultant should be utilized.
9. Should there exist reasonable grounds for suspicion, the patient should be removed to a hospital or a nursing home where he can be under close observation far removed from his usual surroundings.
10. Mass poisoning: Large number of people either die or become ill due to drinking of contaminated water or eating food or due to drinking adulterated toddy or liquor. The police have an important role to play.
11. In festivals, 'jatras' or 'teerthams' where thousands of people gather, if proper care is not taken by the local authorities or organizers, the water gets polluted and the people drinking such water get the attack of gastro-enteritis or cholera. In order to save the people from a possible danger the Police have to be alert and in advance request the concerned officers of Medical and Health Department, Municipal or Village Panchayat authorities to take preventive steps, like chlorination of drinking water. Warning boards should be displayed indicating as to which water is for drinking purposes and which should not be used for drinking. People should be forewarned to get vaccinated, and the medical authorities should be requested to keep sufficient vaccine and other medicines readily available. Even the Chemist and Druggist shopkeepers should be advised to keep medicines to meet such emergencies.

12. Food gets contaminated when cooked in unclean vessels or brass or copper vessels not coated with tin. Food cooked if exposed to flies or unsold food kept for longer times and then sold, gets spoiled. Unscrupulous traders adulterate edible oils and flour. Eatables cooked with such oils or flour turn poisonous. People consuming such food will develop vomittings and purgings that may lead to cholera. At times such mishaps occur in marriages too. Particularly in 'jatras' etc., the beat constables should be advised to have an eye on such vendors and the matter should be brought to the notice of officials of Health Department for destroying such food articles. Before a festival starts the hotel or shopkeepers should be advised suitably and warned of drastic action for failure to comply with precautions. Though the primary responsibility of taking these steps rests with concerned departments, these steps by Police are advised to prevent loss of life and offences connected with health. There should be no hesitation while investigating cases of mass deaths about the culpability of those responsible for administering these precautions.

13. The following are the offences affecting Public Health under the IPC:

- A. Negligent act likely to spread infection of disease dangerous to life. Section 269 - Cognizable;
- B. Malignant Act likely to spread infection of disease dangerous to life. Section 270 - Cognizable;
- C. Adulteration of food or drink intended for sale. Section 272 - Non-cognizable;
- D. Sale of noxious food or drink. Section 273 - Non-cognizable;
- E. Adulteration of drugs or sale of adulterated drugs is offences under Sections 274 and 275. Both are non-cognizable;
- F. Fouling water of Public spring or reservoir. Section 277 - Cognizable;
- G. Making atmosphere noxious to health. Section 278 – Non - cognizable;
- H. Public nuisance in cases not otherwise provided for. Section 290 - Non-cognizable;
- I. In cases concerning Public Health though some offences are Non-cognizable the police in appropriate cases should immediately approach a Judicial Magistrate and request for orders to grant permission to investigate. Otherwise the offenders will destroy the evidence and at a later stage no evidence would be available.

14. Toddy is adulterated with chloral hydrate. In smaller doses death may not immediately occur, but if mixed in larger doses, the death will be immediate. Similarly methyl alcohol is mixed in ordinary liquors. The effect of adulterated toddy or liquor poisoning will be most disastrous. People who consume the adulterated toddy or liquor die in large number, if immediate medical aid is not provided. Many times people who consume these drinks return home or to their village and then develop symptoms of sickness. Immediately on receipt of information, the police should raid the shop, seize the drinks, utensils, tubs, jars, glasses, bottles etc., alert the village Secretary, the Sarpanch and elders and persuade people to go to the Hospitals. There should be no hesitation to requisition the services of qualified private doctors to rush to the Government Hospital and treat the sick in consultation with the Government Medical Officer.

15. There may be leakage of injurious gases from industries manufacturing various chemicals or using chemicals in the manufacture, of their products, due to defective equipment or human error or negligence. Since the gases spread to large areas quickly, the police have to shoulder greater responsibility in their area. The officials of the industry should be asked to seal the leakage and to close the industry temporarily for inspection by concerned authorities or by experts having technical knowledge. The direction of the wind should be observed to know the travel of gases and concerned police should be alerted. The sick should be immediately shifted to hospital for treatment and the people evacuated from the locality and surroundings.

16. If necessary, a case under Section 336 IPC can be registered and subsequently section 304A can be added if there is death. It has been observed by courts that to commence investigation issue of FIR is not a pre-condition. However, at the earliest the FIR should be sent to concerned court mentioning the incident and steps taken by the police till then.

17. In cases of mass poisoning, immediate information should be given to superior authorities, the District and Sub-divisional Magistrates and District Health and Medical Officer. Searches should be conducted and materials, which could be used in evidence, should be seized under panchnama. The vomittings and purgings should be seized and the doctors should be requested to preserve stomach wash for onward transmission to Forensic Science Laboratory (FSL). In case of death(s) separate inquests should be conducted on each body. The autopsy of each body can be dispensed with if large number of deaths occurs and the doctor is able to certify the cause of death by conducting postmortem of a few bodies. However, in every case of death the Government Medical Officer should certify the cause of death. This is necessary later on to claim compensation from Insurance Companies or other benefits from Governmental agencies. The doctor conducting the autopsy should be requested to forward blood, liver, heart, lungs, and intestines to the FSL for detecting the poison. The materials preserved by the doctors and seized by the Police Officers should be sent forthwith to the FSL with the request to take up the examination on priority basis and to give opinion since it would be of help to treat those who are under treatment.

(H) Offences against women

Rape

532. Rape is a heinous offence that destroys the dignity self esteem and honour of a woman. Society looks upon a rape victim with apathy, hatred and disgrace. It is a blot on her matrimonial prospects if un-married and a disruption in her matrimonial life if married. The rapist deserves the highest condemnation socially and legally.

1. According to the definition in section 375 IPC, a man is said to commit “rape” who has sexual intercourse with a woman under any of the six circumstances described below:

A. against her will

B. without her consent

C. with her consent, when her consent has been obtained by putting her or any person in whom she is interested in fear of death or of hurt

D. with her consent, when the man knows that he is not her husband and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married;

E. with her consent, when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by him or through another of any stupefying or unwholesome substance, she is unable to understand the nature and consequences of that to which she gives consent.

F. with or without her consent, when she is under sixteen years of age.

Explanation – 1: Penetration is sufficient to constitute sexual intercourse necessary to the offence for rape.

Explanation – 2: Sexual intercourse by a man with his own wife, the wife not being under 15 years of age, is not rape.

The essential requirement is that the woman's voluntary and conscious permission has not been obtained in the case of adults over 16 years. In other cases consent is no defence and the victim's resistance need not be established.

2. The more aggravated forms of rape have been defined under section 376 (2) of IPC as mentioned below with enhanced punishments.

A. If a police officer commits rape within his police station limits or in the premises of any police station or on a woman in his custody or in the custody of his subordinate; Police Officer;

B. If any other public servant taking advantage of his official position commits rape on any woman in his custody or in the custody of his sub-ordinate;

C. Wherever being on the management or on the staff of a jail, remand home, or other place of custody established under/by law or of a woman or children's institution takes advantage of his official position and commits rape on any inmate;

D. Wherever being on the management or on the staff of a hospital, takes advantage of his official position and commits rape on a woman in that hospital;

E. Wherever commits rape on a woman knowing her to be pregnant;

F. Wherever commits rape on a woman under 12 years of age; and

G. Wherever commits gang rape;

3. Section 376 (1) of IPC prescribes punishment for rape with a minimum of 7 years going up to life and fine where as section 376 (2) prescribes a minimum of 10 years of rigorous imprisonment going up to life and fine.

4. Submission without resistance does not necessarily amount consent. Consent of the victim girl obtained by giving false promise of marriage and her age been 16 years at the time of occurrence is no consent under law. The consent must be free and be given prior to the act. Helpless resignation in the face of inevitable compulsion or passive submission when the volitional faculty is either clouded by fear or vitiated by duress can not be deemed to be consent.

5. Reasons for these offences are $\frac{3}{4}$

A. animal passion and want of self control

B. belief that venereal disease is cured by sexual intercourse with a virgin

C. to disgrace a family

6. False complaints of rape are sometimes made for the following reasons:

A. A sex worker or woman given to promiscuity or low morals may be induced to make a false accusation due to revenge. She may do it at times herself to extort money

B. A woman accustomed to clandestine visitors may come up with a story of rape, if she was by chance detected.

533-1. The investigating officer must make careful enquiries to find out if other evidence corroborates the statement of the victim. Corroboration may be by direct or circumstantial evidence, which should, in addition to confirming that the offence was committed, establish that the accused committed it. Courts have generally found no reason to disbelieve the statement of victim unless circumstances exist that prove her to be false. Facilities are afforded during trial or other proceedings that enable the victim to depose fearlessly and to overcome natural and societal inhibitions, by in camera proceedings.

2. Immediately after the case of rape is reported, the FIR should be lodged and the victim should be sent to the medical examination at the earliest accompanied by a woman police officer. IO should remember that as per the definition of the rape, it is not always necessary that rape is clinically proved. Mere penetration is sufficient to constitute the offence of rape. Hence absence of semen or injuries on the victim does not mean that rape is not committed. When a woman submits to the commission of rape out of fear or threat, obviously there will be no injuries or marks of resistance. I.O. should also request the medical officer to whom the victim is sent for medical examination, to examine the private parts of victim and for the removal of semen or any hair from the vagina and pubic region. The examination of private parts of both victim and accused for injuries, presence of blood, semen or hair and evidence of a venereal disease should be done by a medical officer. Under no circumstances IO himself at the place of occurrence or in police station or at any other place should attempt this examination.

3. The scene of offence should be visited, photographed, video graphed and thoroughly examined by IO for any material incidence. The accused should be arrested and sent with his wearing apparel for medical examination if the apprehension is immediately after the commission of offence. If there is delay in arrest, the clothes, which he was wearing at the time of the commission of offence, should be seized and sent for medical examination.

4. Following are some of the points, to be noted while investigating a rape case:

In the Case of the Victim

A. The exact time and duration of the incident

B. Age

C. the character of the woman;

D. the place where the offence was committed, and whether her cries could reach some one in the vicinity;

E. whether she was drugged, if so, by whom;

F. injuries to the body, their nature and position particularly nail or teeth marks on the cheeks or the other parts of the victim's body, injuries around the wrist, fore-arms or other parts caused by broken bangle pieces;

G. presence of marks on external clothing when the offence is alleged to have been committed outside a house including torn portions of clothing.

H. presence of semen or blood stains on her person or on the clothes;

I. injuries to private parts and presence of blood or semen or any foreign hair in or near the vagina or other parts of the body or on the clothes.

J. in the case of young and unmarried girls, rupture of hymen and whether the rupture is recent;

K. whether the victim has been infected with any venereal diseases, and

L. the condition of pubic hair, whether mixed with semen or blood,

In the case of accused

N. age and physical development;

O. injuries to his person, face, neck, and in the neighbourhood of genitals;

P. tearing of clothes;

Q. presence of blood or semen stains on his person or clothes or pubic hair. Blood and saliva should be collected for DNA if necessary.

R. injuries to the male organ ;

S. presence of foreign hair on the body/clothes of the accused;

At the place of occurrence

T. marks of struggle like trampling of the ground if it is grassy or marshy.

U. broken bangle pieces etc.

V. Examine the scene of offence and satisfy as to whether the place is a secluded one affording privacy for the accused to indulge in sex against her will at the time when the offence is alleged to have occurred. The scene of offence is photographed and videographed to convince the court as to how the scene of offence is secluded one, affording privacy for the accused to indulge in the rapacious attack on the victim.

5-A. Precautions should be taken to ensure that the identity of victim is not revealed in any publication. Violations in this regard are liable for penal action u/s 228 A IPC.

B. Do not subject the victim to too many embarrassing questions. Examine and record her statement in the presence of a female attendant.

C. The victim should be asked to show the exact scene of offence. This should be done in such a way that she is least exposed to the public gaze.

D. Collect the wearing apparel of the victim at the time of commission of offence under panchnama and send immediately for medical examination.

E. Collect evidence regarding the prior illicit relation between the accused and the victim if any.

F. Protect the victim and her parents from the possible intimidation, threats, coercion and reprisals by the accused or their supporters. Also render the help that is possible to the victim in her rehabilitation.

G. The determination of blood groups may prove to be of invaluable help in the detection of rape cases. The DNA finger printing provides convincing scientific proof in cases of rape. Wherever necessary the samples should be sent for DNA analysis and opinion in the manner prescribed in Chapter 31.

Offences of sexual intercourse not amounting to rape

534-1. There are four types of sexual intercourse by a man with a woman, which are made offences though not amounting to rape under section 376-A to 376-D. They are;

A. a man having sexual intercourse with his own wife who is living separately from him under a decree of separation or under any custom or usage, without her consent;

B. any public servant taking advantage of his official position induces or seduces any woman in his or in his subordinate's custody, to have sexual intercourse with him;

C. any superintendent or manager of a jail, remand home or other place of custody or a woman's or children's institution takes advantage of his position induces or seduces any woman in his custody to have sexual intercourse with him; and

D. any person on the management or staff of a hospital taking advantage of his position induces or seduces any woman in that hospital to have sexual intercourse with him.

2. All the above four types of sexual intercourse except the first one are cognizable offences but no arrest shall be made by a police official without the orders of a court.

Unnatural sexual offences

535-1. Unnatural offence, as defined in section 377 of the IPC, is carnal intercourse against the order of nature with a man, woman or animal. As in rape, penetration however slight, is necessary to constitute the offence.

2. Sodomy is anal intercourse between two males, or between a man and a woman. Mostly, young boys are victims of such unnatural carnal connection. These offences are common but are rarely brought to notice. There are also a few eunuchs who are fond of appearing in a woman's costume, and ostensibly, live by singing, but habitually indulge in sodomy as passive agents.

3. A case under section 376/377 of the IPC can be charged on the basis of the evidence of the victim, if it is not of a doubtful nature. It is not unsafe to act on the uncorroborated testimony of the victim alone, if the victims' evidence is found to be truthful. More so if the victim is a child whether male or female. Corroboration through circumstantial or other evidence would be of immense value as ultimately the guilt has to be established beyond doubt. For instance, stains of semen may constitute important circumstantial evidence in these cases. Evidence of the medical officer, who has examined the victim soon after the offence is committed, is important. The skilful and sympathetic questioning and ascertaining of details from victims would itself provide clues for further evidence and the Investigating Officer must therefore make painstaking efforts to collect the same. Apart from other circumstantial evidence, DNA Finger printing is the most reliable evidencem, which the IO should utilize in cases where it is necessary and where other circumstantial evidence is not forth coming. Trafficking in children and child prostitution is a reprehensible but flourishing activity of organized criminal gangs. Investigation of such cases should comprehensively aim at the organization and individual members thereof so that Police can deal them with in the specific case or under other laws apart from enabling preventive action.

4. The following are some of the points to be ascertained while investigating these cases:

A. injuries to the body, such as scratches and bruises on face, neck and hands;

B. stains of semen on person or clothing;

C. presence of semen in the anus, particularly in young children;

D. injuries to, or in the neighbourhood of anus;

E. laceration of rectal mucus membrane

F. infection of venereal disease present in the accused, and

G. presence of hair of the victim on the offender and vice versa.

H. In respect of child victims of either sex the procurer or persons who arranged the transaction, the place of birth, parentage, sex and age of the child,; recovery of money or valuables from persons who are benefited,; enquiries and evidence of parents and others at his/her native place as to the procurement etc.

5. It is very important that the investigating officer should, in cases of rape and unnatural offences, send the victim and the accused to the medical officer for examination as early as possible. Clothing and other articles with semen or blood stains in their possession must be seized, carefully packed and despatched to the Forensic Science Laboratory (FSL) for analysis and report.

Dowry Deaths

536-1. Dowry deaths are defined in section 304-B IPC. It provides for cases of death under suspicious circumstances within 7 years of marriage due to cruelty and harassment of husband or his relations in matters connected with dowry. Section 306 IPC deals with suicides of women due to harassment of the husband or the in-laws. Section 498-A IPC deals with cruelty and harassment to a woman by her husband or relations of the husband, which causes mental or physical harm to her. Sections 113-A and 113-B of Indian Evidence Act provide for a presumption to be raised against the accused in these cases, thereby shifting the onus of proof of innocence, to the accused from the prosecution. Section 174 (3) CrPC provides for inquest by Magistrate in cases of death of women under suspicious circumstances within 7 years of her marriage. Section 2 of the Dowry Prohibition Act defines the word 'Dowry'. These are some of the legal provisions, which should be thoroughly understood for investigation into the cases of dowry deaths.

2. The main ingredients to be proved by the prosecution in a case under section 304-B are the death of a woman within 7 years of marriage and secondly that it was occasioned by cruelty on account of demand for dowry. The cruelty is defined in explanations A & B of section 498 A. While both explanations apply to 498 A and 306 IPC, explanation B only applies to 304 B. The presumption available under section 113 A I.E. Act is applicable to cases of 498 A and 306 IPC where as the presumption under 113 B I.E. Act is applicable to 304 B IPC. The IO should be thorough with these important provisions of law for correct and legally sound investigation of cases u/s 498-A, 306 and 304-B IPC.

3. If the complaint discloses a dowry death it should be registered under section 304-B and 498-A IPC may be added. Where it is a suicide due to cruelty or harassment, a case under section 498 A and 306 IPC should be registered.

4. The inquest of the dead body should be held in these cases, only by an executive magistrate according to 174(3) CrPC. Prompt intimation should be sent to the concerned Executive Magistrate to visit the scene and hold the inquest. The police should associate with the inquest/enquiry conducted by the executive magistrate. As soon as the inquest is completed the body should be sent for postmortem examination. The procedure for inquests and postmortem examinations would be the same as for any case of

murder. The Government has issued instructions as to the manner of conducting inquest by executive Magistrates in the States on different occasions.

5. The Investigating Officer should visit the scene of occurrence promptly, inspect it, collect all relevant material and evidence, record the statements of witnesses and take all necessary steps regarding the processing of the scene of offence as contained in Chapter 22 and also instructions for processing of crime scene as contained in Chapter 31. The IO should particularly look for evidence in the form of letters and other communications or documents and all other material, which show evidence of harassment and cruelty. He should also collect evidence relating to the receipt or agreement regarding the dowry. Evidence in proof of marriage should also be collected.

6. While examining the relatives of the victim care should be taken to inspire confidence in them to disclose all details and evidence of cruelty or harassment and details concerning dowry. Some times the bereaved parents overwhelmed by emotions may also make wild allegations.

7. Independent evidence has to be collected by examining the neighbours of the area particularly near the victim's residence and other persons known to the deceased. It may not be entirely safe to rely only on the evidence of the close kith and kin of the victim, particularly in the absence of some other circumstances. In such cases the friends and other acquaintances than to the parents will know instances of harassment more. It is also possible that the victim might not have disclosed all the instances to her parents.

8. In investigation of dowry deaths by burning, the remnants and all evidence relating to the burning of the victim should be carefully collected.

9. The offences are non-bailable and non-compoundable. The arrests of the accused should be made as soon as the initial investigation is completed and culpability is established. If there is any risk of the accused absconding, action should be taken to keep them under surveillance if necessary till the initial investigation is completed. The initial investigation means inquest and postmortem and examination of important witnesses. When the prima facie case is established against any accused, there should be no delay in arrest.

10. The evidence of cruelty is the vital factor in the cases of dowry deaths. Closest examination of independent witnesses apart from the relatives, letters indicating the state of relationship between the victim and her husband, the transfer of money through banks to the husband or his relatives and their accounts, the purchases and assets acquired after the marriage and their source would be necessary to establish not only the transactions relating to dowry but also the cruelty exhibited by the husband and his relatives.

11. The investigation should be conducted on a day-to-day basis without any delay and completed promptly.

12. During the trial it is necessary that the witnesses are produced and their evidence recorded in the court as early as possible.

Cruelty and Harassment of married women

537-1. Cruelty is defined in section 498 - A IPC. Cruelty means;

A. any willful conduct which is of such a nature as likely to drive the woman to commit suicide or to cause grave injury or danger to life limb or health (whether mental or physical) of the woman; or

B. harassment of the woman to coerce her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.

C. Cruelty may be either by the husband or the relative of husband of the woman subjected to such cruelty.

D. The stipulation of 'within 7 years of marriage' is applicable to section 304 - B and not to 498 - A and 306 IPC.

2. Section 113A of Evidence Act raises presumption against her husband and his relatives of abetment of suicide by a married woman. If there is cruelty as defined in this section prior to the woman committing suicide within seven years of marriage is established, the presumption is raised against her husband and other accused.

3. In the investigation of cases of this nature the IO should pay attention to the following points.

A. The complaint from the affected woman or her parents or brothers or recognised women forum or sisters should be registered promptly.

B. The prosecution should establish that she is a married woman, that she is subjected to cruelty and that it was by her husband or his relatives.

C. The evidence collected particularly the letters, notes, diaries, bank accounts and other material objects should be examined and properly appreciated. All witnesses who are likely to testify to the acts of harassment or cruelty should be promptly examined.

D. The husband and his relatives should be examined.

E. The orders governing the arrest and search etc. contained in the Chapter 25 should be scrupulously followed.

F. Where there are injuries the procedure prescribed for medical examination and certificate should be complied.

G. Very often allegation of persistent demands for money or property is made. Normally oral assertions are made and the IO should skilfully, by examining as many witnesses as possible ascertain the correct situation. Such circumstances as the woman being sent away or going away to her parents' place, her disclosures to relatives and friends would be useful evidence.

H. The cases under this section are cognizable, non-bailable and of warrant procedure triable by a First Class Magistrate and also non-compoundable.

I. Where reconciliation takes place between wife and husband and the application is made, the High Court u/s 482 CrPC, in exceptional cases, may permit them to compound. But the wife is not permitted to withdraw the charge sheet filed by police.

Prevention of Immoral Traffic in Women

538-1. The trafficking in women and abuse of children is a very heinous crime. The prevention of Immoral Traffic Act (PITA), 1956 as modified in 1988 contain various new provisions to effectively deal with the menace of this problem. The very definition of prostitution has been altered and the status of the prostitute more as a victim has been recognised in the modified Act. This Act is more of a human rights legislation intended to protect the interest of the weaker sections such as women and children from abuse. Stringent penal provisions are provided to deal with the exploiters of these people. The modus operandi adopted by the offenders generally consists of tempting young girls from the villages and towns, promising affluent life, glamour of cities, career in cinema and subsequently landing them in brothel houses. The victims include poor and illiterate persons, those who have domestic and marital problems, widows etc. The other M.O. is recruiting girls on grounds of marriage with rich persons abroad and ultimately their being exploited sexually and used as domestic servants after the formality of a marriage or otherwise. Procuring minor girls and boys has also become serious form of crime. The following instructions should be observed in the investigation of such cases. Wrongful confinement, kidnapping and abduction are some times the accompanying offences along with the offences under PITA.

2. In PITA, prostitution is defined as sexual exploitation or abuse of persons for commercial purposes. As per this definition, the prostitution is not confined to only women. Homosexuality is also brought under this definition. Further it includes not only exploitation of one person by another but also abuse of one's own self for commercial purposes. Exploitation or abuse for purposes other than commercial is not covered under this definition.

3. Brothel is defined as a place where sexual exploitation for abuse is carried on for the gain of another person or for the mutual gain of two or more prostitutes.

4. Prostitution is not an offence by itself. Section 3 to 9 contains the penal provisions in the Act. In the offences covered by sections 3 to 6 and 9 of PITA, prostitute is a victim and not an accused where as in the offences covered by section 7 and 8, prostitute is an accused. The IO should appreciate these provisions of law clearly in order to ensure correct investigation of cases.

5. Running a brothel or letting premises to a brothel is offence under section 3.

6. Living on the earnings of the prostitute being above the age of 18 years is an offence under section 4. Even husband or adult children can also be accused under this section.

7. Procuring or inducing or taking any person for the sake of prostitution whether the victim accompanies willingly or unwillingly is an offence under section 5.

8. Detaining a person in premises where prostitution is carried on is an offence under section 6. Certain important presumptions are provided in this section for the benefit of prosecution in proving the cases under this section. It shall be presumed that she is detained in place of prostitution if;

A. a child of the victim is found in a brothel; or

B. a minor victim is medically examined and found with sexually transmitted diseases; or

C. The jewellery of a victim is in the custody of the management of the brothel.

9. Prostitution in the vicinity of a public place is an offence against the prostitute under section 7. A public place is one that is accessible to the public in general.
10. Seducing or soliciting for the purpose of prostitution from any public place or within the site of or to the hearing of any person in any public place, whether from within a building or house, by means of words, gestures or any exposures is an offence under section 8.
11. Seduction of any person when in custody or charge or care of any person in authority is an offence under section 9.
12. The special police officers not below the rank of inspectors appointed by the State Government under this Act are only competent to investigate the offences under this Act falling in their jurisdiction.
13. Searches, for rescue of persons from brothels or to detect offences under this Act, can be carried out only by special police officers without warrant, in the presence of two independent witnesses and one among them shall be woman. Any other officer not below the rank of a Sub-inspector can also conduct a search for rescue of persons only under the warrant from a competent magistrate.
14. Arrest without warrant may be made by a special police officer or under his direction or subject to his prior approval, a police officer not below the rank of an S.I. may arrest the accused and immediately report to the special police officer.
15. When an offender was prosecuted and convicted for an offence under this Act and again convicted for the second time within a period of 5 years, the IO can file a memo at the time of passing the sentence to the Court requesting the court to notify the address of the convict.
16. At the time of conviction of female offenders found guilty for the offences under section 7 and 8, a trial court may, instead of sentencing them to imprisonment, send them to corrective homes taking in to consideration the character, state of health and mental condition of the offender and other circumstances.
17. The victims of offences under sections 3, 4, 5, 6 and 9 may also make an application to the concerned magistrate for sending them to protective home or a correctional institution. If the magistrate is satisfied, he may make such an order to send them to such places.
18. The area executive magistrate, on information from the police or otherwise that prostitution is being carried on in a house or brothel within 200 meters of any public place as defined in section 7 (1) of the Act, may issue notice to the owner, lessee or occupier of the place to show cause within 7 days as to why that place shall not be attached for improper use and after making due enquiry and after giving opportunity to be heard, may pass an order; A) Directing the eviction of the occupier within 7 days from the date of order and B) also directing the owner to obtain previous approval of the magistrate if the owner wants to let out the premises within one year from the date of order. Similarly a prostitute may also be evicted under section 20.
19. This provision can be invoked irrespective of the fact that prosecution is launched or not. In case the prosecution is also launched and the accused is convicted, a memo can be filed in the court itself for eviction of the premises.
20. The IO should keep in mind the following guidelines in the investigation of cases under this Act.
 - A. The rescued women should be examined in great detail, with sympathy and not with derision and hostility. The grip of the procurers would be so strong and possibility of their acceptance in society or family being bleak, they tend not to disclose any details. Hence the IO should first take all steps in coordination with the Advisory Bodies, voluntary Social Welfare Organisations in the field, the Governmental agencies in charge of correctional and Protection homes to give confidence to the women to be able to tell the details of persons who exploited them.
 - B. The law is intended to punish those who exploit the women and trade on them and not the victims. The evidence of victims is therefore extremely important.
 - C. The names and identity of women is often changed, and hence, the correct identity should be established by gathering information about their native village/town.
 - D. The persons doing odd jobs in the brothel or place where the women are kept and used as sex workers would be a useful corroboration.
 - E. The chits, papers or bank transactions if any, house owner's title, the rental documents true or false, municipal records, details of previous cases in which the accused may be involved should be collected.
 - F. The means of livelihood of the accused should be thoroughly investigated including the adequacy or otherwise of such means to the style of life being led by him.
 - G. The circumstances under which the girl has disappeared or left should be brought out clearly.
 - H. Medical examination of persons found whether women or minors, male or female should be got conducted.

I. Where offences under this Act or the Indian Penal Code are part of organised crime, 120B IPC should be added.

J. Photographic or video graphic evidence whenever possible should be secured during investigation of the cases. The IO should take special care to produce the witnesses and in consultation with the APP/PP ensure the posting of case on a day-to-day basis. It should be remembered that a sense of shame, reluctance and even fear very often prevents the witnesses from deposing either during investigation or trial. Necessary precautions to prevent undue publicity with the permission of the concerned court should be taken.

(I) Drug Trafficking

539-1. The offences under the Narcotic Drugs and Psychotropic Substances (NDPS) Act 1985 are heinous in nature and directly or indirectly amount to poisoning large number of people to ultimate death. This crime is a serious threat to the life of the victims and poses a danger to society at large. The Police Agencies all over the world are fighting this crime. As a result of UN Conventions on the issues relating to drugs several countries have brought about more or less similar legislations to deal with this crime. The NDPS Act has replaced the Opium Act and the Dangerous Drugs Act. The Act has provided for deterrent punishment by providing for imprisonment up to 20 years and fine up to Rs. 2 lakhs. Section 35 provides for presumption of culpable mental state on the part of accused from whose possession narcotic drugs are seized. Several departments are empowered to deal with these cases including the police. The offences under this Act are cognizable and non-bailable.

A. All first class Magistrates and all Gazetted officers of departments empowered to deal with these cases are competent to search any suspected premises either by themselves or issue warrants to persons above the rank of an attender or a constable for search.

B. In cases of emergency, the persons who are entitled to search by virtue of warrant issued by those Gazetted officers are competent to search even without a warrant but should report searches and seizure if any immediately to such officers competent to issue warrants.

C. But for the special procedure for investigation provided in the Act, the police have to adopt the same procedure as laid down in Chapter 12 of CrPC.

D. There are two different procedures for searches and seizures. While the search of premises is to be carried out as laid down above, different procedure is prescribed for search of persons. When a person is to be searched, he must be informed in writing whether he would like to be searched by the police officer conducting the search or in the presence of a Gazetted officer or a Magistrate (section 50). If he opts for taking him to a Gazetted officer or a Magistrate, the person conducting the search can detain him till such time.

E. Any Gazetted officer or any person entrusted with the warrant by a Gazetted officer or when such person in case of emergency conducts search without warrants, if the above persons are not SHOs, they shall forward the arrested person and the material seized without un-necessary delay to the officer in charge of the nearest police station (section 52) and the officer in charge shall take charge of and keep in safe custody such articles pending the orders of a magistrate (section 55). The arrested person shall be re-arrested and forwarded to the nearest magistrate for remand (section 43 CrPC).

F. The failure on the part of the officer in charge of the police station to follow the above procedure (order 680-1-5) or refusal to take charge of such person or material will render him liable for punishment up to one year or fine or both (section 59 NDPS Act)

2. Sections 15 to 32 of the NDPS Act lay down the punishments for various offences. Most offences except possession of small quantity for personal consumption are punishable with minimum of 10 years and a maximum of 20 years of imprisonment. Section 27, which deal with possession of small quantity for personal consumption has lesser punishment. The thrust of the Act is on trafficking, which include cultivation, manufacture, transport, export and import of the drugs and their distribution. The Act also provides for forfeiture of property derived from, used in, illicit traffic in narcotics for which detailed procedure has been laid down in sections 68-A to 68-Y. Section 52-A permits disposal of seized property after taking an inventory and photographs which can be accepted as evidence as they are certified by the concerned Magistrate.

3. The most important point to be proved in all cases of narcotic drugs and psychotropic substances is possession of the drug. Any omission or non-compliance with the legal requirements laid down in the search or seizure will vitiate the proceedings and may result in acquittal of the accused. Whether it is transport, distribution or cultivation or manufacture, it is the possession of the drug that has to be proved by the prosecution. Even preparation, attempt, abetment and conspiracy relating to these drugs are also punishable. The Act also provides for enhanced punishments for subsequent offences.

Guidelines issued by the Narcotics Control Bureau, New Delhi

540. Some of the mandatory provisions and points to be remembered are indicated below:

1. A gist of information received should be incorporated in the Police Station records and the same should be intimated to the immediate superior officer and also entered in the Station House general diary.
2. The accused should be informed about the grounds of his arrest as in all other cases of arrest (section 52 CrPC).
3. Report of arrest and seizure should be forwarded to the immediate superior officer within 48 hours under acknowledgement. All these records are required to be produced in court before trial.
4. Since the prosecution has to prove possession of the drugs beyond doubt before any presumption can be raised, it is necessary to follow the guidelines given below in the matter relating to raid or search by the Police Officers.

5-A. All officers deployed for search should carry their Identity Card.

B. There should be a prior planning including survey of the place where the search has to be undertaken.

C. The officer-in-charge of the search should deploy his officers in such a manner that all the entrances/exits are properly guarded.

D. All incoming telephone calls should be received by the searching officers only. No person within the premises should be allowed to talk on phone with any person outside.

E. Immediately on entering the premises, the occupants should be instructed not to converse with each other.

F. The searching officers should examine every document and record and decide its worth for purposes of recovery and seizure.

G. Samples should be drawn as per the procedure prescribed.

H. The documents/records to be seized should be numbered serially and a brief description of the file/records and the period to which it belongs should be mentioned in the Panchnama.

I. The statements of the persons concerned should be recorded on the date of search itself lest the party tutor them. For this purpose, a brief and immediate scrutiny of the records/documents should be done.

J. Soon after the commencement of the search the contact telephone number of the party should be given to the officer who is monitoring the search/raid. He should be apprised of the commencement of the search and its progress from time to time and the important material that has come to notice till then. Before withdrawal from the search, as far as possible, clearance from the same officer should be taken unless the search party has already briefed him in this regard.

K. All papers including search warrant (executed) and the Panchnama, the initial intelligence and other papers given before proceeding on search should be returned to the person who issued the warrant.

L. Search / Raid party should invariably carry with them a drug identification / testing kit and should also have kit bag containing certain essentials like, screw driver, torch, flash light, mirror, walkie talkie, binocular, night vision devices, hand cuff, seal, sealing materials, emergency medical kit etc.

Points to be noted while recording Panchnama

541-1. Name, occupation, age and address of Panch.

2. Time, date and place of proceedings.

3. Reason for search

4. Authority for search

5. Identify yourself by showing Identity Card, mention the same in Panchnama.

6. Mention names of a few other officers included in the search party.

7. Offer personal search of each member

8. Mention presence of the occupants of the premises/person to be searched.

9. Mention description of place to be searched.
10. Give graphic description of the search operation e.g., who opened the suitcase, who had the key, from where the incriminating documents or contraband was recovered, how it was concealed etc.
11. Test drugs with field testing kit and mention results.
12. Mention where and how the weighment of contraband goods was done. Give gross weight, net weight.
13. Mention value of contraband to be seized.
14. Mention number of samples drawn and their weight, what identification marks were given to contraband samples and documents proposed to be seized/taken over.
15. Mention time of conclusion of Panchanama.
16. Offer personal search on conclusion of search before leaving the place of search.
17. Take photographs, finger prints wherever possible.
18. Mention money and valuables given back to the person searched or seal them for handing over later in the court.
19. Seal contraband and exhibits mentioning seal No.
20. Take signature of Panchas, officer writing the Panchnama and the person being searched on labels pasted on contraband, exhibits and documents.
21. Mention provisions of law under which the seizure was done.
22. Mention any important event taking place during search e.g., arrival of more officers or persons etc.
23. Give a copy of Panchnama to the persons searched and obtain receipt from him.
542. Procedure of drawal, storage, testing and disposal of samples from seized narcotic drugs and psychotropic substances.

1. All illicit narcotic drugs or psychotropic substances recovered from a person, place, conveyance etc. are liable to confiscation (sections 60 to 63 NDPS Act). Further, they constitute important evidence for any act, omission or commission on the part of a person rendering him liable for punishment under Chapter IV of the NDPS Act, 1985. Most of the narcotic drugs and psychotropic substances cannot be conclusively proved to be such drug or substance merely by visual examination in the trial Court and hence the drugs seized should be sent for chemical examination to FSL. The disposal of the confiscated goods should be as per the orders of the court.

2. If the drugs seized are found in packages/containers the same should be serially numbered for purposes of identification. In case the drugs are found in loose form the same should be arranged to be packed in unit container of uniform size and serial numbers should be assigned to each package/container. Besides the serial number, the gross and net weight, particulars of the drug and the date of seizure should invariably be indicated on the packages. In case sufficient space is not available for recording the above information on the package, a Card Board Label, should be affixed with the seal of the seizing officer and the above details should be recorded.

Place and time of drawal of sample

3. Samples from the narcotic drugs and psychotropic substances seized, must be drawn at the place of recovery, in duplicate, in the presence of search (Panch) witnesses and the person from whose possession the drug is recovered and a mention to this effect shall invariably be made in the panchanama drawn on the spot.

Quantity of different drugs required in the sample

4. The quantity to be drawn in each sample for chemical test should be 5 grams in respect of all narcotic drugs and psychotropic substances except in the cases of Opium, Ganja and Charas/Hashish where a quantity of 24 grams in each case is required for chemical test. The same quantities should be taken for the duplicate sample also. The seized drugs in the package/containers should be mixed well to make it homogeneous and representative before the sample in duplicate is drawn.

Number of samples to be drawn in each seizure case

5-A. In the case of seizure of a single package/container one sample in duplicate is to be drawn. It is advisable to draw one sample in duplicate from each package/container in case of seizure of more than one package/container.

B. However, when the package/containers seized together are of identical size and weight, bearing identical markings and the contents of each package give identical results on colour test by UN kit, conclusively indicating that the packages are identical in all respects, the packages/container may be carefully bunched in lots of 10 packages/containers. In case of seizure of Ganja and Hashish, the packages/containers may be bunched in lots of 40. For each lot of packages/containers, one sample in duplicate may be drawn.

C. After making such lots, in the case of Hashish and Ganja, if less than 20 packages/containers remain, and in case of other drugs less than 5 packages/containers remain, no bunching would be necessary and no samples need be drawn.

D. If it is 5 or more in case of other drugs and substances and 20 or more in case of Ganja and Hashish, one more sample in duplicate may be drawn for such remaining package/containers.

E. While drawing one sample in duplicate from a particular lot, it must be ensured that representative drug in equal quantity is taken from each package/container of that lot and mixed together to make a composite whole from which the samples are drawn for that lot.

Numbering of packages/containers

6-A. Subject to the detailed procedure of identification of packages/ containers, as indicated, each package/container should be securely sealed and an identification slip pasted/attached on each one of them at such place and in such manner as will avoid easy obliteration of the marks and numbers on the slip. Where more than one sample is drawn, each sample should also be serially numbered and marked as S-1, S-2, S-3 and so on, on both the samples. It should carry the serial number of the packages and marked as P-1, 2, 3, 4 and so on.

B. All samples must be drawn and sealed in the presence of the accused, search witnesses and seizing officer and all of them shall be required to put their signatures on each sample. The official seal of the seizing officer should also be affixed. If the person, from whose custody the drugs have been recovered, wants to put his own seal on the sample, the same may be allowed on both the samples.

Packaging and Sealing of Samples

7-A. The sample in duplicate should be kept in neat sealed plastic bags, as it is convenient and safe. The plastic bag container should be kept in paper envelope, properly marked as original or duplicate. Both the envelopes should also bear the S.No. of the package(s) container(s) from which the sample has been drawn. The duplicate envelope containing the sample will also have a reference of the test memo. The seals should be legible. This envelope along with test memos should be kept in another envelope, which should also be sealed and marked "Secret-Drug Sample/Test memo" to be sent to the FSL.

B. All drugs should be properly classified, carefully weighed and samples drawn on the spot of seizure.

C. After sampling, detailed inventory of such packages/containers should be prepared for being enclosed to the Panchanama, Original wrappers must also be preserved for evidentiary purposes.

D. After completion of panchanama, the drugs should be packed, in heat sealed plastic bags. For bulk quantities of ganja, instead of plastic bags, gunny bags may be utilised.

8-A Agencies of the Central and State Government, who are vested with the powers of investigation under the law, specifically designate their godowns for storage purposes.

B. All drugs must invariably be stored in safes and vaults provided with double-locking system. Such godowns, as a matter of rule, be placed under the overall supervision and charge of a Gazetted Officer of the respective enforcement agency, who should exercise utmost care, circumspection and personal supervision, as far as possible. Such officers should not be below the rank of Superintendent in the Departments of Customs, Central Excise, Directorate of Revenue Intelligence, Narcotics Control Bureau, CBI, BSF, and station house officer/officer in charge of a Police Station. Superintendent of State Excise, MRO, Drug Inspector of Drug Control Department, etc. in the states and enforcement agencies in Union Territories. They will personally be held accountable for safety and security of the drugs. Each seizing officer should deposit the drugs fully packed and sealed with his seal in the godown within 48 hours of seizure of such drugs, with a forwarding memo indicating Crime Number, name(s) of accused, test memo reference, description of drugs in the sealed packages/containers and other goods, if any, drug-wise quantity in each package/container, drug-wise number of packages/containers and total number of all packages/containers.

C. The seizing officer, after obtaining an acknowledgement for such deposit in the format (Annexure-I), will hand over the same to the investigating officer of the case along with the case file for further proceedings.

D. The officer-in-charge of the godown, before accepting deposit of drugs, will ensure that the drugs are properly packed and sealed. He will also arrange the packages/containers (case-wise and lot-wise) for quick retrieval etc.

E. The godown in-charge is required to maintain a register wherein entries of receipt should be made.

F. It will be incumbent upon the Inspecting Officers of the various departments mentioned to make visit to the godowns for ensuring adequate security and safety and for taking measures for timely disposal of drugs. The Inspecting Officers should record their remarks/observations.

G. The Heads of respective enforcement agencies (both Central and State Governments) may prescribe such periodical reports and returns, as they may deem fit, to monitor the safe receipt, deposit, storage, accounting and disposal of seized drugs.

9-A. Since the early disposal of drugs assumes utmost importance, the enforcement agencies should obtain orders for pre-trial disposal of drugs and other articles (including conveyance, if any) by having recourse to the provisions of Section 451 of the CrPC, 1973.

B. While preferring the application under Section 451 before the Court of Session, emphasis may be laid on 'expediency of disposal'. The grounds that may be highlighted pertain to.

- Risk of pilferage, theft and substitution
- vulnerability for abuse
- High temptations to traffickers
- diminution in the value of other articles (including conveyances) due to long storage, etc.

C. Since the filing of charge sheet is a condition precedent for expeditious issue of orders for pre-trial disposal, charge sheet should be filed within the stipulated period of 90 days of seizure/arrest, on a priority basis. This should meticulously be adhered to.

D. While moving the application under section 451 of the criminal procedure code as above, production of all seized/articles/drugs, etc., along with the panchanama (in original) and detailed inventory there of is essential. The inventory should be complete in all respects and contain such particulars as may be relevant to establish nexus/identity of articles. The chemical analysis report should also be simultaneously filed.

E. After the court orders are passed for pre-trial disposal of drugs, those drugs which have no legitimate commercial value (excepting opium, morphine, codein and the baine, which are required to be transferred to the Government Opium and Alkaloid Works Undertaking at Ghazipur or Neemuch, as the case may be) are required to be destroyed consistent with the guidelines issued under this order and in accordance with the Court's order.

(J) Organised Crime

543-1-A. Organised crime is defined under AP Control of Organised Crime Act 2001 (Act No. 42 of 2001). "Organised crime" means any continuing unlawful activity by an individual, singly or jointly, either as a member of an organised crime syndicate or on behalf of such syndicate, by use of violence or threat of violence or intimidation or coercion, or other unlawful means, with the objective of gaining pecuniary benefits, or gaining undue economic or other advantage for himself or any other person or promoting insurgency. "Organised crime syndicate" means a group of two or more persons who, acting either singly or collectively, as a syndicate or gang indulge in activities of organised crime;

B. Organised crime is committed against property, persons or human welfare, engineered by a leader with members professing fierce loyalty. Organised crime in a large measure affects law and order and public order. The terms mafia crime or mafia gangs are used in common parlance to mean organised crime and criminal gangs.

C. There are crimes like causing injuries or killing for gain. Groups of people are also hired to injure or kill some body due to political, business or group rivalry or some other reason. The actual perpetrators receive remuneration and the person who engages them remains aloof or away.

D. Boot legging, prostitution, gambling, manipulation of bids or tenders in auctions and contracts, land grabbing, illegal possession or dispossession of property, protection money, rigging elections, loan sharking (usury), extortion, kidnapping for ransom, drug trafficking, illicit trade in fire arms, explosives, smuggling, thefts of antiquities and cultural properties, trading in animal skins and human organs are some of the activities of criminal groups, which are some times small outfits and sometimes large. The area of operation of these groups may extend to districts or states or even countries. There are groups bound to an individual or to each other. Generally there is always a leader or head of such groups.

E. Some of the groups are so well organised that they are able to perpetrate crimes without being caught or punished. It means they must have certain code of conduct, abilities, equipment, arms, and intelligence within the group and power to have their way. Some times, they resort to elimination or threatening to the persons who come in their way including witnesses, informers, police officials, lawyers or judges or politicians or alternately try to buy their support by bribery and collusion. They infiltrate into political parties and use muscle power to manipulate elections and even occupy positions of political power. Therefore at the one end of spectrum there are small criminal

organisations operating in a limited sphere quietly and at the other end, more sophisticated outfits with all attributes of a mafia gang. The vast network of modern communications and transport facility provides opportunities for organised crime to thrive.

F. The purpose of organised crime is mainly to make illegal money. These organised groups have a complex network with well-defined structure and command and control and use force or violence in perpetration of crimes. Investigation into organised crime therefore calls for a highly professional approach, intelligence and investigative skills and well knit coordination at inter-district, inter-state and international levels.

2-A. There are several laws to deal with each one of these activities. It is necessary that the IO is familiar with those provisions of law.

B. The legal provisions relating to confiscation of proceeds of crime are contained in sections 102, 452 of CrPC, 111 to 121 of Customs Act, section 68 of NDPS Act and section 20 of AP Control of Organised Crime Act 2001. The Criminal Law (Amendment Order 1944), Foreign exchange Management Act 1999 (FEMA) and the Smugglers and Foreign Exchange Manipulation (Forfeiture of Property) Act 1976 also relate to forfeiture of proceeds of crime.

C. Organised crime such as the drug trafficking, employment racketeering, boot legging, goondas, indulging in land grabbing, contract killing, kidnapping, extortion, rigging in election, money laundering has been existing in the State.

D. Every district/city and state CID should have an Investigating Unit devoted to identification and investigation of organised criminal activity. The criminal records from PS level to state should contain the information in respect of all such criminal syndicates, members, leaders, M.O. and connected details. The Police have the responsibility of identifying, exposing and taking all such preventive action in respect of all manifestations of organised criminal activity.

3. The points to be borne in mind by IOs Investigating into offences by organised gangs are as stated below:

A. The persons have associated themselves to form a criminal gang.

B. The object of the association was habitual commission of murders, kidnapping for ransom, contract killing, loan sharking, trafficking in women and children, smuggling of cultural properties, dealing in prohibited liquor, land grabbing and deals collection of protection money i.e extortion, illegal dealing in fire arms, explosives, smuggling, etc. (dacoities, burglaries, robberies including highway and train robberies, thefts in cases of gangs / groups of property offenders).

C. Evidence of joint conviction in previous cases.

D. Evidence that certain members of the gang were jointly prosecuted or bound over under the preventive provisions of law.

E. Evidence of the frequent meeting or contact amongst the members.

F. The recovery of property or other incriminating materials or documents stolen in a single case from several members of the gang.

G. Evidence of simultaneous absence of members from their homes coincident with the occurrence of offences.

H. Evidence of the cessation of the crime, of that nature committed by the gang, in the affected area after the arrest of the gang.

4. Identify whether the offence has one of the attributes of an organised crime.

A. Collect details of all such or similar offences reported.

B. Identify the members of the gang and the leader and initiate measures to trace them.

C. Examine victims or their friends or relatives minutely with regard to identity, background and all details about the members of the gang.

D. Collect all clues, even minor or seemingly unimportant pieces that are likely to help connecting the accused to the crime.

E. Take charge of all relevant papers, documents, letters or bank cheques, drafts or any paper or material that comes to notice and scrutinize the same.

F. Question the suspect minutely and record his statement in detail.

G. If the evidence collected after exhaustive investigation is inadequate, efforts should be made to make one of the minor participants in the offence as an approver to prosecute main offenders successfully.

H. Identify the country in which the proceeds of crime are stashed away or hidden or kept. Efforts should be made to seize and forfeit the same. This is the most effective way of neutralising organised gangs.

I. Make foolproof arrangements to maintain secrecy and protection to informers and witnesses.

J. The evidence should be gathered as to conspiracy, abetment, common intention, membership of a criminal organisation, activities of the criminal organisation, etc., apart from the illegality of the act or acts committed by them for effective prosecution.

K. Make use of all information available in criminal records.

L. Initiate proceedings under section 110 CrPC against the members of the gang. Insist on a bond u/s 106 CrPC, in the event of conviction wherever applicable.

M. Consult and take assistance of concerned experts for appraisal of any aspect that relates to Tax Laws, Accounts, Banking, Science, Engineering, Technology including Information Technology, Art pieces and Archeology, flora and fauna etc.

N. Use lie detector tests whenever possible.

O. Take hold of all information relating to telephone calls either by landlines or satellite channels or cell phones and analyse. Authorisation of interception of wire, electronics or oral communication should be obtained under section 14 of AP Control of Organised Crime Act 2001.

P. Contact pay phone booths used by the gang members.

Q. Seek help of CID and Interpol through CID when assistance from abroad is required. Be familiar with section 166 A & B CrPC.

R. Every detail of the statement by the accused must be verified before acting.

S. Scrupulously follow all procedure in respect of preservation, packing and forwarding material evidence for expert opinion or to the Court.

T. Since the organised criminal syndicate members keep their activities secret, it is essential that every bit and piece of information and evidence is promptly brought on record and capable of being proved in the court. Telephone print outs, cell phones and computer information would be extremely useful in providing the missing links.

U. A confession made to police officer of and above the rank of SP by accused is admissible under section 18 of AP Control of Organisation Act 2001. Advantage should be taken of this provision in investigating organised crime.

Property Offences by a Gang

544-1. Persons associated for the purpose of habitually committing theft or robbery or dacoity are said to be members of a gang as per section 400 and 401 of IPC. The successful handling of offences by a gang usually involves painstaking and sustained investigation. All such cases should be investigated by Criminal Investigation Department directly or on the request of District or City Investigation Branch due to the extensive operation by the gang in more than one district and to have a coordinated approach in investigation of these cases. If it is a purely local gang confined only to District or City the District Investigation Squad or City Investigation team should handle the investigation.

2. These offences are heinous in nature punishable with imprisonment up to life. These cases must be investigated scrupulously bringing out the complicity of all accused on record. In cases where evidence is inadequate to fully prove the case, a minor participant may be taken as an approver. However, an approver being an accomplice, corroborative circumstantial evidence is necessary. Hence IO should endeavour towards this goal. The essential points to be proved in an offence against a gang are the same as described in Order 543-3.

3. All gang cases and all important conspiracy cases whose ramifications extend to several districts should be investigated by the Crime Investigation Department (CID). When a gang case is to be charged, the memorandum of evidence must be carefully prepared showing the available evidence to show the number of instances in which each accused is involved, the nature of evidence against each of them and the names of witnesses who depose against each of them.

A. Organized crime gangs are a serious threat and it is some times difficult to detect and get evidence of their association and activity as the members of organized crime are bound together by fierce loyalty, gain, protection, ruthless elimination of all those who come their way. It is their activity, which poses a threat and challenge to the Police and calls for all investigative skills of the highest order.

B. Officers investigating into organised crime and offences by a gang shall take adequate but unobtrusive security cover.

Gang cases against robbers/dacoits

4. Gang cases can be put up against the persons who belong to a gang of persons associated for the purpose of habitually committing Dacoity (U/s 400 IPC) and Theft or Robbery (U/s 401 IPC). The essential ingredients required are

- That there was a gang of dacoits/thieves or robbers.
- That the accused belonged to that gang.
- That the said gang was associated for the purpose of habitually committing Dacoity/Theft or Robbery.

5. A person may belong to a gang of dacoits/thieves or robbers without having actually participated in the commission of even one Dacoity/Theft or Robbery. A clever member may always remain in the background while organizing the operations of the gang, giving active assistance for the purpose of meeting together, providing them with weapons, screening them after the commission of offence, helping them in the disposal of looted property.

5. If a gang was formed for the purpose of habitually committing dacoities/thefts or robberies, all persons, who thereafter join the gang in one or more cases become ipso facto, the members of such gang. A person who joins a gang of habitual dacoits, thieves or robbers is member of the gang irrespective of his actual participation in any dacoity/theft or robbery. It is to be proved that his associates are habitual dacoits/thieves or robbers.

6. A receiver of stolen property or a person harbouring a gang may not be held to belong to a gang. Persons who associate with the gang for the purpose of friendship sake or join them in drinks at liquor shops or meet them in fairs, weddings or other social functions are not members of the gang. Servants and dependants of gangs are not members of gang.

7. Proof of participation in more than two dacoits/thefts or robberies, within a comparatively short space of time is necessary to prove existence of gang. It is sufficient to establish that a person belongs to a gang whose business is habitual commission of dacoity or theft or robbery. In a gang case direct evidence of association of a particular accused with the gang may ordinarily be given only by an approver and other witnesses will speak of association on occasions immediately preceding commission of the offence. The association and purpose of association may be proved by direct evidence or by proof of facts from which they can reasonably be inferred. Evidence that the accused persons or groups of them had been concerned in a large number of dacoities or thefts or robberies within a comparatively short space of time, may be sufficient evidence of such association. Evidence which though not believed for the purpose of conviction under section 395 IPC may yet be relied upon for the purpose of proving the charge U/s 400 IPC. The purpose of habitually committing dacoity or theft or robbery may be proved by their declaration or by their conduct. The only relevant evidence here consists of their conduct in having participated in different dacoities or thefts or robberies. The principal evidence adduced by the prosecution falls under the following heads.

A. The evidence of approver narrating how the members of gang conspired and assembled for each dacoity/theft or robbery and committed it and divided the booty.

B. That of the victims of each dacoity/theft or robbery and of direct witnesses, identifying in Court and at earlier test parades, individual accused as the participants.

C. That of recovery of properties lost at the dacoity/theft or robbery from the possession of the various accused and

D. That of previous convictions of some of the accused.

8. The consent of State Government U/s 300(2) of Cr.P.C. is required to prosecute the accused in a gang case if he is acquitted or convicted in any dacoity/theft or robbery.

Conspiracy

545. Criminal conspiracy is an agreement entered into by two or more persons with a purpose to do an illegal act or to do an act, though not illegal, by illegal means. Criminal conspiracy is itself an offence whether the act conspired is committed or not. It is not necessary that each conspirator should know or be aware of every act of the others. It is often difficult to prove conspiracy by direct evidence. But it is mostly by circumstantial evidence relating to the sequence of events, the offences committed, conduct, meetings and contacts of the accused that agreement among them is sought to be proved. Abetment by conspiracy is punishable under section 107 (2) IPC. However a person who abets the cause of conspiracy is an offender only when the offence is committed.

Investigation of Terrorist Crime

546-1-A. Terrorist Act is defined in the Prevention of Terrorism Act 2002.(Act 17 of 2002) According to this Act whoever (a) with intent to threaten the unity, integrity, security of sovereignty of India or to strike terror in the people or any section of the people does any act or thing by using bombs, dynamite or other explosive substances or inflammable substances or fire arms or other lethal weapons or poisons or noxious gases or other chemicals or by any other substances (whether biological or otherwise) of a hazardous nature or by any other means whatsoever, in such a manner as to cause, or likely to cause, death of, or injuries to any person or persons or loss of, or damage to , or destruction of, property or disruption of any supplies or services essential to

the life of the community or causes damage or destruction of any property or equipment used or intended to be used for the defence of India or in connection with any other purposes of the Government of India, any State Government or any of their agencies, or detains any person and threatens to kill or injure such person in order to compel the Government or any other person to do or abstain from doing any act; (b) is or continues to be a member of an association declared unlawful under the Unlawful Activities (Prevention) Act, 1967, or voluntarily does an act aiding or promoting in any manner the objects of such association and in either case is in possession of any unlicensed firearms, ammunition, explosive or other instrument or substance capable of causing mass destruction and commits any act resulting in loss of human life or grievous injury to any person or causes significant damage to any property, commits a terrorist act.

Explanation: - For the purposes of this sub-section “a terrorist act” shall include the act of raising funds intended for the purpose of terrorism.

B. Offences committed by terrorists are not only covered under the Indian Penal Code but also under other laws such as Arms Act, Explosives Act, Explosives Substances Act, Telegraphs, Railway Acts, POTA etc. The most common offences committed by them are murder, extortion, kidnapping, and damage to private and public property, criminal assault and intimidation, offences under Chapter VI apart from causing explosions. The targets of attack are those whom they perceive as opposed to their cause, e.g. police and security personnel, witnesses and informers. Extortions from merchants, businessmen, contractors, professionals like doctors etc. are resorted to finance their activities. All offences are pre-planned. An elaborate clandestine network provides shelter and support and communication and other logistics. Terrorist acts are intended to terrorise the targets, witnesses and overawe the instruments of the State and are linked to a cause or grievance whether real or imagined. The terrorist movements all over the world have a variety of objectives such as separatist, left wing, and religion based, ethnic or down right criminal. In India all the forms of terrorism have become serious problem for public order and for internal security. In AP State, left wing terrorism by various groups of CPI (Marxist - Leninist) parties is a major threat to public order and security of the state.

2. Investigation of offences committed by terrorists and bringing them to justice presents many problems such as non-availability of witnesses etc. The aim of all terrorists is to utilise the liberal provisions of law to their advantage and subvert the criminal justice system by persistent attacks both physical and psychological. Some of the more serious problems the police come across in investigating offences by terrorists are :-

- A. Identity of participants of crime is carefully concealed by false names, while identity of the organisation is publicised.
- B. Unwillingness of witnesses to identify the accused even if they have seen or known them due to fear of being harmed/eliminated at the hands of accused or their organization. Sometimes there will be no eyewitness at all.
- C. Movement in groups fully armed with firearms and explosives and attack on police personnel to terrorise the state machinery and to create panic among the general public besides avoiding being caught.
- D. Recovery of properties or incriminating materials is difficult owing to their movements in forests and other inaccessible areas fully armed. Similarly recovery of money is not always possible as it is used for purchase of provisions, medicines and weapons etc.
- E. Most cases need investigation spreading over different parts of the State and remote and inaccessible areas.
- F. Use of land mines restricts free movements of police.
- G. Absence of public cooperation and quite often hostility to investigations due to fear, except in a few cases and support of certain sections of the people to the cause being espoused by the terrorists.
- H. The application of normal provisions of law in matters of arrest, bail, remand and evidence based on presumption of innocence give enormous advantage to the terrorists.

Note:- The confession made by the accused to an officer of the rank of Superintendent of Police and above is admissible under POTA and COCA under certain conditions. (See Order 432, Chapter 23 of this Manual).

Steps for Arrest of Accused

3-A. A complete description, photograph or computer aided picture should be prepared and circulated extensively in the local area police station, villages, and published in papers and televised. The picture should be prepared if a photograph is not readily available. The special intelligence groups should be associated with investigation.

- B. The trained groups along with Area Police should be provided a complete brochure and steps to be taken, the area to be covered for a well directed search operation and capture of the wanted group or persons.
- C. When any arrest is made the materials recovered from such persons, and search of places at his instance should be well documented, and the materials seized should be promptly sent for expert opinion.

D. The resistance to arrest is likely in such cases. In effecting arrest no force than what is permissible under the law should be used. All guidelines regarding arrest should be complied with.

E. Police remand for 15 days should be obtained u/s 167 CrPC from the court for through interrogation. However AP Control of Organised Crime Act 2001 and Prevention of Terrorism Act (POTA) 2002 provide for 30 days remand period.

F. Plan and act fast on any information the accused furnishes during interrogation.

G. Keep reporting to the Magistrate all recoveries as and when made.

I. During examination of witnesses or suspects follow the questionnaire circulated by the CID as applicable to each case.

J. Keep all forms and papers ready so as to send them duly filled to the concerned.

K. Keep in constant touch with SsP or DCP or CP concerned.

L. Arrange for proper briefing of Public Prosecutor (PP).

4. Protection of witnesses and informants is vital in the investigation and prosecution of the accused in such cases.

5. The important steps to be taken during the trial -

A. Make arrangements in consultation with PP and SP to impress upon the competent court to try offences expeditiously.

B. Follow all steps indicated in the Chapter on Prosecution.

C. Depositions of witnesses should not be released to the press as it may pose a threat to the security of witnesses.

D. Strong protection to the trial judge, IO and court premises should be ensured, if necessary.

E. Escorting from jail to court and back should be by vehicle along with proper guard.

F. No more documents or material should be furnished to the accused than are required under the law.

G. Anticipatory bail or regular bail in these cases should be opposed effectively by furnishing relevant material/facts to the concerned court

H. There should be constant interaction between PP/Addl. PP and IO during the investigation and trial of these offences.

National Human Rights Commission's guidelines for investigating deaths in Police encounters.

6. The National Human Rights Commission has recommended the following procedure to be followed in cases of deaths in police encounters.

A. When the police officer in charge of a Police Station receives information about the deaths in an encounter between the Police party and others, he shall enter that information in the appropriate register.

B. The information as received shall be regarded as sufficient to suspect the commission of a cognizable offence and immediate steps should be taken to investigate the facts and circumstances leading to the death to ascertain what, if any, offence was committed and by whom.

C. As the police officers belonging to the same Police Station are the members of the encounter party, it is appropriate that the cases are made over for investigation to some other independent investigation agency, such as State CID. Alternatively such cases may be investigated by an officer of the rank of Dy.Supt. of Police/SDPO of some other district.

D. Question of granting of compensation to the dependents of the deceased may be considered in cases ending in conviction, if police officers are prosecuted on the basis of the results of the investigation.

CHAPTERs[Volume1](#)[Volume2](#)[Volume3](#)**CHAPTER 31****Scientific Aids to Investigation**

547-1. Of all the functions of the police, investigation is the most important and vital one. In the constantly evolving socio-economic scenario the criminals using sophisticated tools and techniques commit more and more crimes. In order to overcome these complexities the police all over the world are depending more and more on scientific methods of investigation. A wide range of scientific techniques are now available for analysis of varied nature of objects and materials encountered in the process of commission of crime by the culprit in and around the crime scene, on the suspect and victim. The study of such material evidence also known as objective evidence or physical evidence applying latest scientific tools and techniques for proving the guilt or innocence of the accused by the courts of law is broadly known as Forensic Science.

2. The applications/ aid of science to the crime investigation is fundamentally one of reconstruction, that is, trying to assist in determining what happened, where it happened, when it happened, and who was involved. It is not concerned with, and cannot determine, why something happened. Forensic analysis is performed on evidence to assist the police and the court in establishing physical facts so that criminal or civil disputes can be resolved. It is the job of the forensic scientist to translate the legal inquiry into appropriate scientific questions, and to advice the Investigating Officer and / or the judiciary on the capabilities, limitations and results of the analytical techniques.

3. In forensic science, the laws of various facets of science are applied in conducting an analysis to determine the nature and characteristics of Physical Evidence collected in the process of crime or civil investigation. Using the scientific methods, inferences are drawn about how the evidence can be linked to crime and criminal. These inferences are thus connected to the events that may or may not have taken place in connection with said evidence. The law defines elements of a crime; science contributes information to assist in determining whether an element is present or absent.

4. It is an established fact that the criminals while committing crimes either due to carelessness or due to anxiety, or due to contact with other objects leave traces at the scenes and these are the basis for scientifically exploiting their culpability. This physical evidence when located, collected, preserved and forwarded for scientific evaluation and report is bound to have enormous potential in linking the criminal to the crime scene, victim or any other circumstances leading to the crime. Moreover evidence collected and based on scientific evolution and report is unbiased, universally acceptable and also stands the test of time.

Time limit for sending physical evidence to APFSL for scientific analysis

5. The investigating officers should collect and forward all types of physical evidence along with controlled samples so as to reach the FSL within 30 days from the date of crime. Physical evidence sent after 30 days will not be accepted by FSL except in rare cases that too along with a D.O. letter from the concerned SP/DCP addressed to the Director explaining the reasons for the delay beyond 30 days.

6. The success of the scientific effort in arriving at truth depends both on the role of I.O. and the Forensic Scientists i.e. in the thorough search and collection of evidence in proper way by the I.O., and the careful analysis through the right tools and techniques by the scientists.

Institutions Providing Scientific Investigative Aids to the Investigating Officers**I. Forensic Science Laboratory**

548-1. The Government of Andhra Pradesh established a full-fledged Forensic Science Laboratory in the year 1974. The Laboratory is headed by a Director who reports to the Director General of Police, Andhra Pradesh. Four Joint Directors who are in-charge of biological, chemical, physical and general divisions support the Director. Under each division there are different sections and in all there are 13 sections, each headed by an Assistant Director with supporting scientific staff in the cadre of Scientific Officers, Scientific Assistants, Lab Assistants, Lab Technicians and Lab Attendants. The 13 sections functioning in FSL are Ballistics, Biology, Biomedical, Chemistry, Computer Forensics, DNA, Documents, Forensic Engineering, Narcotics,

Physics, Polygraph, Serology and Toxicology. The detailed functions of each section are given in Orders 557 to 570. The organisational structure of APFSL is given in detail in Order 555.

A. There are three Regional Forensic Science Laboratories established in 1994 and such regional/district laboratories will be available in each range/district in near future. The regional laboratories, headed by Assistant Directors with necessary supporting scientific and ministerial staff, under take examination of only certain categories of evidence. These laboratories work under the administrative control of Director, APFSL. The details of their functions and the organisational structure are given in Order 556.

B. The Mobile investigation units known as “CLUES” teams are available in major cities, district head quarters and city zones for processing the crime scene evidence and reconstruction of crime scene and for providing assistance to the investigating officers in investigation. The Scientific Officer or Scientific Assistant will be in-charge of these teams. Lab Technician/Photographer borne on the strength of FSL and Fingerprint expert borne on the strength of the Fingerprint Bureau/SCRB will assist him. These three members together constitute the CLUES team, which visits the scenes of crime whenever their services are requisitioned. The CLUES teams are under administration control of Director FSL, but their operational and functional control lies with concerned SP/CP. The nature of services rendered by the clues teams is given in Order 554.

There are other institutions as listed below, which will help the police in scientific investigation of crime.

II. Professors of Forensic Medicine: Medico-legal services

2. The Professors of Forensic Medicine working in nine Medical Colleges listed here are responsible for providing Medico-legal services to the investigating officers in the respective districts indicated against each.

Sl. No.	Professor of Forensic Medicine	Jurisdiction
1.	Osmania Medical College, Hyderabad	Mahaboobnagar, Nalgonda & Hyderabad City.
2.	Gandhi Medical College, Hyderabad	Ranga Reddy, Nizamabad, Medak & Secunderabad City
3.	Kakatiya Medical College, Warangal	Warangal, Karimnagar & Adilabad
4.	Guntur Medical College, Guntur	Guntur & Prakasam
5.	Siddartha Medical College, Vijayawada	Khammam & Krishna
6.	Ranga Raya Medical College, Kakinada	West Godavari & East Godavari
7.	Andhra Medical College, Visakhapatnam	Visakhapatnam, Vizianagaram & Srikakulam.
8.	Kurnool Medical College, Kurnool	Kurnool, Cuddapah & Ananthapur
9.	S.V. Medical College, Tirupathi	Chittoor & Nellore

The services rendered by a medico-legal expert extend to both the living and the dead individuals. ‘Clinical Forensic Medicine’ deals with the medico-legal examination of the livings pertaining to wounds, sexual offences, age determination, poisoning whereas the ‘Forensic Pathology’ deals with that of the dead like autopsies, examination of mutilated/fragmentary and skeletal remains, exhumation etc. as given below.

A. Clinical Forensic Medicine: Wounds cases are examined to decide the type (eg. abrasion), age and nature (simple/grievous) of the wound as well as the type of the weapon (blunt/sharp) responsible for the same. In sexual offence cases, both the accused and the victim are examined for signs of recent sexual intercourse. Further, the accused in particular is examined for potency and the victim for determination of her age, if required. Age determination is also conducted in cases such as kidnapping, juvenile crime and disputed age claims.

B. Forensic Pathology: Dead bodies (whether fresh, decomposed or exhumed and whether intact or fragmented and mutilated) as well as skeletal remains can be examined for establishing the cause and time since death and for possible clues to establish the identity of unidentified bodies. Injuries, poisoning or asphyxia commonly causes unnatural or violent deaths while disease processes cause natural or sudden deaths. A host of physical characteristics and traits help in identification of the body while the onset and progress of the post-mortem changes are of use in estimating the time that has elapsed since death.

III. Fingerprints Bureau (State Crime Records Bureau)

3. The Director, Fingerprints Bureau and his supporting staff at the head quarters and at Single Digit Finger Print Sections at district level are responsible for lifting, collecting and matching the finger prints in all criminal cases. The details of their functioning are given in Chapter 41.

IV. Explosives/Bomb Disposal Experts

4. In all matters relating to explosive substances the following agencies have to be contacted by the Investigating officers in handling, investigating, defusion and disposal of explosive substances.

A. Deputy Chief Controller of Explosives, Government of India, Kendriya Sadan, Sultan Bazar, Hyderabad – 500 195: He shall be contacted in all the matters relating to civil explosives dealt in detail in Order 571.

B. Sub-Area Commander, Military Bomb Explosion Squad, AOC Center, Secunderabad: He should be contacted in dealing with all cases involving military explosives, the details of which are given in Order 571.

C. Bomb Disposal Squad, C/o Addl. Director General of Police, CID., DGP Office Complex, Saifabad, Hyderabad 500 004: This squad should be contacted in all matters relating to defusion of explosives, collection of remnants from the defused, seized or recovered live explosives and explosion residues. A detailed account on explosives as to how they should be handled, defused, disposed etc., is given in Order 571.

V. Institute Of Preventive Medicine

5. Director, Institute of Preventive Medicine, Narayanguda, Hyderabad –500 029; He should be consulted in all matters relating to investigation of cases arising due to epidemic diseases, dog bites, water borne diseases etc.

VI. Chemical Examiner – Prohibition & Excise

6. Government Chemical Examiner, Prohibition and Excise Department, Regional Prohibition Excise Lab, Narayanguda, Hyderabad – 500 029 and seven other regional labs situated in Warangal, Nizamabad, Kurnool, Chittoor, Guntur, Kakinada and Visakhapatnam, should be consulted in all the cases of suspected adulterated Toddy, illicit distilled liquor, or any spurious liquor, nonduty paid liquor, any Indian liquor sold unauthorisedly, However, if death occurs due to the consumption of spurious liquor/Toddy, the remnants of consumed Liquor/Toddy should be sent to A.P. Forensic Science Laboratory along with viscera. Similarly all substances recovered under NDPS Act should be sent to A.P. Forensic Science Laboratory, Hyderabad.

VI. Government Food Laboratories

7. Director, Government Food Laboratories, Nacharam, Hyderabad-500076, should be consulted in all cases relating to adulterated food items such as milk, milk products; food items sold in hotels, restaurants, fast food shops, sweet shops etc.; edible oils, pulses and grains, honey etc.

VII. Government Drug Control Laboratories

8. Inspector General, Drugs & Copy right, Drugs Control Administration, Vengal Rao Nagar, Hyderabad-500 038 or any of their regional units have to be consulted in cases relating to manufacturing and sale of spurious/substandard quality drugs and other cases relating to violations under Drugs Price Control Order 1995 and Drugs and Magic Remedies (Objectionable Advertisements) Act-1954.

Physical Evidence and its role in Crime Investigation

549.1 The word Physical Evidence denotes all evidence having certain physical dimensions such as size, shape, pattern, length, width, height, volume etc., which can be preserved, lifted, collected, packed and forwarded for scientific analysis to the specialist concerned. Physical evidence can alternatively be called as material evidence, objective evidence, circumstantial evidence or

indirect evidence in different contexts. Physical Evidence includes all naturally occurring substances as well as machine/men made objects in the Universe.

Purpose Of Physical Evidence In Crime Investigation

2. The goal of physical evidence examination is to provide useful information for criminal investigators in solving crimes and for courts of law during the adjudication of these cases. The following leads can be obtained from the examination of physical evidence in the process of investigation.

A. Information on the corpus delicti : The corpus delicti (literally means the “body of the crime”) refers to those essential facts which show that a crime has taken place. For example, tool marks, broken doors or windows, ransacked rooms, and missing valuables would be important in establishing that a burglary has taken place. Similarly, in an assault case, the victim’s blood, a weapon, or torn clothing could be important pieces of physical evidence.

B. Information on the modus operandi (MO): Many criminals have a particular modus operandi or (MO), which is their characteristic way of committing a crime. Physical evidence can help in establishing an MO. In burglary cases, for example, the point of entry, the means used to gain entry, tools that were used and articles stolen may all establish an identifiable method of operation. In arson cases, the types of accelerant used and the way the fires were set constitute physical evidence that helps to establish the “signature” of an arsonist. Similarly the type of explosive remnants, triggering devices, timing devices, containers and composition of explosive substances used in the making of Bombs and IED’s establish the commonness of source/origin of Improvised Explosive Devices (IED’s) in serial blast cases. Analysis of physical evidence is one important way of linking cases in the investigation of a “serial” killer or rapist.

C. Linking a suspect with a victim: This linkage is one of the most common and important aspects that physical evidence can help to establish. Blood, hairs, clothing fibers, cosmetics and other items from the victim may be transferred to a perpetrator. Items found in a suspect’s possession can sometimes be linked to a victim, for example through the comparison of bullets with a weapon seized from the suspect, the suspect can be linked with the crime. It is also possible that evidence is transferred from a perpetrator to a victim; in rape, murder and assault cases.

D. Linking a person to a crime scene: This type of link is also one of the most vital in a crime scene investigation. Numerous types of evidence may be deposited by the person committing a crime, including fingerprints, foot prints, blood, hair, fibers, and soil. In addition, the type of weapons or objects used may also leave evidence, for example, bullets and cartridge cases or tool marks. Depending on the type of crime, various kinds of evidence from the scene may be carried away intentionally, as a stolen property and unintentionally as a transfer of trace evidence such as carpet fibers or hairs on the criminal’s shoes or clothing. These materials are extremely useful in linking an individual to a particular crime scene.

E. Disproving or supporting a witness’ testimony: Physical evidence analysis can often indicate conclusively whether a person’s version of a set of events is credible, or whether an alibi put forth is convincing or not. For example, the examination of a car, which fits the description of a hit and run vehicle, might reveal blood on the underside of the bumper. If the owner of the vehicle claims he hit a dog, laboratory tests on the blood can reveal whether the blood is from a dog or from a human and further testing for DNA Profiling may reveal the truth relating to the accident and victim.

F. Identification of a suspect: The best evidence for identifying a suspect is his or her palm prints and evidence such as blood, semen, saliva, skin tissues etc. collected for DNA Finger Printing examination. A fingerprint found at a scene, and later identified as belonging to a particular person, results in an unequivocal identification of that person as having been at the scene. The term identification when applied to people really means “individualization” (identifying a single unique source).

G. Providing investigative leads: Physical evidence analysis can assist the investigator in pursuing a productive path, by providing clues from the characteristics of the physical evidence. In a hit-and-run case, for example, examination of a chip of paint found in the victim’s clothing could be used to provide information on the colour and possibly the model and year, of the automobile involved. With the rapid emergence of computerized fingerprint and DNA databases, the ability of physical evidence to provide investigative leads has increased enormously.

H. Identification of a substance: The results of examining a piece of physical evidence can provide information on the identity of a particular substance. As indicated above, this is a classification process. In its simplest form, such as in the identification of cocaine, heroin, LSD, morphine or any other type of drug, it meets the legal requirement for classification as a controlled substance. Laboratory analysis of fibers can sometimes yield information on the manufacturer of the fabric or garment. Simple identification of many types of physical evidence can provide critical information for use in the investigation or prosecution of a case.

I. Crime Scene Reconstruction: Transient evidence such as odour, temperature (of car engine, fire debris etc),

imprints, marks/stains; pattern evidence like blood stain patterns, skid mark patterns, gun shot residue patterns, projectile trajectory patterns, glass fracture patterns etc., and conditional evidence such as light, smoke, fire, water, piled up news papers etc., will play a key role in reconstruction of the events surrounding the crime scene and the nature of offence. Sometimes it may also give valuable leads regarding the perpetrator based on the individual traits in relation to the evidentiary pattern.

Sources of Physical Evidence

3. The primary source of physical evidence is generally the crime scene but it is by no means the only source. Many crimes occur over multiple scenes and many criminals carry physical evidence away from the actual scene in addition to leaving evidence behind. The victim, suspect and some times the witnesses are major sources of physical evidence. The methodology of search depends on the case and the scene. The purpose of the search is to look for clues and for evidence of what happened during the crime. It is not a random groping in dark but rather a directed search for objects and materials. Recognizing, recording, collecting, marking, packaging and preserving evidence discovered while searching a crime scene is the basic essential duty of the investigating officer. In cases where the evidence is of a common nature, i.e., evidence, which is not hidden and is easily collectable, without expert's assistance, the Investigating Officer should invariably collect all possible forms of physical evidence. For other kinds of evidence the investigator should take the assistance of CLUES Team or medico-legal experts. Some types of physical evidence, which are hidden, latent or fragile, require scientific procedures for location as well as collection and packing. In such circumstances the involvement of CLUES team from the initial stages of inspection is essential. The details of services of CLUES Team experts are given in Order 554.

Known Standards/controls

4. The examination of evidence, whether soil, blood, glass, hair, fibers etc., often require comparison with a known standard or control. Such material may be obtained from a victim, suspect, crime scene, or other sources. For instance, investigation of a hit and run accident necessitates the collection of control paint from the suspect vehicle to enable comparison with the paint recovered from the scene. Similarly hair found at a crime scene will be of value only when compared with control hair collected from the suspect or the victim. Likewise, bloodstains collected at the scene of crime can only be useful when control samples are collected from all possible suspects/victims involved in the offence. The quality and quantity of control samples often determine the evidential value of crime scene evidence. The control specimens must therefore be collected and treated with equal care and caution as that of crime specimens. In the collection of standards too, due care should be taken for proper recognition, legal possession, marking for identity, preservation of the integrity of the sample, and accuracy in reporting acquisition, besides chain of custody.

Chain of custody of physical evidence

5. Continuity of possession or the chain of custody of evidence is an important aspect whenever evidence is collected until it is presented in the court as an exhibit. This subject is discussed in detail in Order 426 in Chapter 22.

Significance of physical evidence

6. The major purpose of examination of physical evidence by a forensic scientist is to identify or absolutely determine the nature of the material or to compare two substances in order to know whether they possess the same characteristics and composition, with a view to establish their commonness of origin.

A. Identification: The absolute determination of the biological, physical or chemical nature of a substance is the purpose of identification. This information helps the police officer to secure leads for further investigation or confirm his hypothesis or draw certain inferences and conclusions based on other circumstantial evidences, e.g.

- Identification of specific poison in the viscera of a person who died under suspicious circumstances.
- Identification of an inflammable material in the burnt clothing of young woman in a dowry death case.
- Identification of a reddish stain to be blood in a case where the suspect claims it to be a vegetable stain or a synthetic dye.
- Absolute determination of a white powder to be cocaine in case of illicit drug trafficking.

B. Comparison: The comparison of two or more substances, usually crime and control specimens, is generally undertaken to establish commonness of origin (source) of the materials involved. For example, the forensic scientist may assist in placing a suspect at a particular location by matching similarities in the hair found at the crime scene to

the hair collected from the suspect. Similarly, comparison of a paint chip found on a road accident victim's clothing with the paint removed from a suspected vehicle might prove its involvement in the accident. Comparing chance fingerprints at the crime scene with the fingerprints of the suspected persons may establish their association with the crime.

C. Individual Characteristics: Evidence that can be traced to a common source with an extremely high degree of probability is said to possess individual characteristics. Examples of this type are the matching ridge characteristics of the fingerprints, the comparison of random striation marks on bullets, tool marks, irregular and random tread patterns in tyre or footwear impressions and handwriting for authorship determination.

D. Class characteristics: Evidence is said to possess class or group characteristics when it can only be traced to a group and not to a single source. Here, probability is a determining factor. Class characteristics help provide leads and corroborate evidence. For example, where the typewriting in an anonymous letter is to be compared, the typewriter impressions are initially compared for the type of letter, spacing and other general characteristics to determine the probable brand of typewriter, viz, Godrej, Facit, Remington, etc. If they differ in the general characteristics it, further comparison will not be of any use. On the other hand if they are found to have group characteristics of a specific brand of typewriter, then further examination with typewriters of that class will be undertaken to identify the acquired characteristics of typewriters like wear marks, defects, alignments, etc., and to match such individual characteristics. If any individual characteristics found in the questioned typewriting are present in the standard typewriting, then it would be possible to conclude that both have been typed using the same typewriter. Similarly determination of the direction of twist, the number of lands and grooves on fired bullets for group or class characterization and further individual characterization can be done by matching the striation marks on the crime bullet with the test bullet fired from the suspect weapon.

Limitations of Physical Evidence

7. The Forensic Scientist will be able to give scientific opinion definitely only when the necessary details are furnished to him in the prescribed manner enabling a clear analysis.

Authorities competent to forward physical evidence to Forensic Science Laboratory

8- A. Judiciary

- Judicial officers of the courts in Andhra Pradesh
- Judicial officers of the courts in other states in exceptional cases.
- Special officers of judicial commissions, inquiries and other state government officers holding judicial, quasi-judicial functions like A.P. Administrative Tribunal, A.P. Industrial Tribunal etc.

B. Police

- Officers of the state police departments of the rank of Sub Divisional Police officer and above.
- Officers of other States and Central Government Police Establishments in exceptional cases.

B. Revenue

Revenue officers of A.P. State Government, discharging ex-officio functions of magistrates such as Collector and District Magistrate, RDO and Sub-Divisional Magistrate, Mandal Revenue Officer and Executive Magistrate.

D. Government Departments

Officers in-charge of State Government departments in Hyderabad and other District headquarters holding the rank of Dy. superintendent of Police or above. This includes officers of the above rank and in- charge of Co-operative Societies and other Government bodies and Government undertakings. In exceptional cases, Central Government cases and cases from other State Governments will also be accepted.

E. Medical officers of the rank of Asst. Professors and above of the AP Medical and Health Department.

F. Other Officers of

- Banks.
- Financial Institutions.
- Industrial Organisations.
- Other Institutions or Individuals at the discretion of the Director/DGP.

Letter of advice

9. Letter of advice is an important document, which acts as a link between the Investigating Officers and Forensic Scientist and therefore should contain all possible information to derive maximum benefit from the physical evidence collected. The brief history of the case shall contain all pertinent facts relating to the motive, opportunity and means of committing the crime. Regarding collection of evidence full information should be furnished against each item, the details of when, where and how the evidence was collected against the column "List of articles forwarded for examination.....". The Investigating Officer should go through the nature of examination and the types of analytical information provided by the FSL authority for each class of physical evidence given in detail in Order 557 to 570 before filling the column "Exact nature of examination required". The Investigating Officer should affix the sample seal invariably on the letter of advice.

Collection of physical evidence in the following cases is mandatory

10. The Investigating Officers should collect pertinent physical evidence from all possible sources in the types of cases mentioned below and forward it to the APFSL/RFSLs for scientific analysis. The Investigating Officer should ensure that the evidence to be derived from the examination of the material is relevant to prove the guilt of the accused. In the process of collection of material evidence, they should take the assistance and guidance of Mobile Investigation Teams, (CLUES TEAMS) of their jurisdiction. Failure to collect and forward the physical evidence in these cases for analysis to FSL will entail in severe disciplinary action.

- A. Murder
- B. Rape
- C. Arson
- D. Property offences
- E. Cases involving firearms
- F. Cases involving explosives
- G. Road/rail accidents
- H. Mass disasters
- I. Custodial deaths
- J. Dowry deaths
- K. Industrial accidents
- L. Printing of counterfeit currency
- M. White-collar offences involving forged documents
- N. Environmental crime
- O. Other sensational and grave crimes
- P. Crimes against wild animals

List of documents to be sent along with physical evidence

11. Depending upon the nature of physical evidence forwarded, the following documents should be sent along with the covering letter.

- A. Forwarding letter/authorisation letter of competent authorities. (Order-8)
- B. Letter of advice from Investigating Officers.
- C. Doctor's Report (post-mortem examination) in Toxicology cases, Medical examination Report of victim and accused (if arrested) in rape and serology cases.
- D. Confessional Statements of suspects/accused, statements of witnesses, etc., in Polygraph cases.
- E. Inquest/Panchanama copies in Toxicology cases.
- F. FIR copies where desirable.
- G. Sample seal on a sheet of paper, or on forwarding letter/letter of advice.
- H. Any other document relevant for examination.

Case property will be accepted by APFSL/RFSLs iff the following conditions are satisfied

12-A. Physical evidence forwarded should be described in detail with information as to when and where it was found, who found and how it was processed and forwarded and tally with the description given in the letter of advice/postmortem report/ medical officer letter.

- B. The Investigating Officer should indicate any special priority to be given to the case of sensational and important nature for examination and report, within one week.
- C. If special handling is required, it must be indicated and specific instructions given on the packing itself, e.g., material is fragile or perishable, for safe transportation and handling in the laboratory.
- D. Adequate and appropriate samples should be collected and forwarded.
- E. The Police Constables or other personnel who are authorised to bring the case property should bring relevant identification cards, passports and other proofs of identity while delivering or taking back the case property.
- F. Tag or mark all the articles. If the articles can be enclosed put a mark on the container or the box.
- G. Bulky articles, samples in huge quantities e.g., cots, mattress, flooring stones, a drum of petrol or diesel oil, etc., or articles unconnected with the case should not be sent.
- H. Label, initial and seal all envelopes and the packages without fail. The seal should be legible and intact and all knots of stitching ropes must be sealed. It must be packed to avoid breakage, loss or contamination in transit.
- I. Ensure prompt delivery of all items of interest to the laboratory within one month from the date of occurrence of crime. In case of delay beyond one month the case property should be forwarded along with a DO letter from the SP/DCP giving the reasons for delay. Record all the procedures adopted for location, recording, lifting, packing and forwarding in case diaries. Wherever feasible it is advisable to bring the physical evidence in person and discuss the circumstances and history of the case so that the scientist will endeavour to bring out the right information from the scientific studies.
- J. Always obtain a signed receipt whenever evidence is transferred (chain of custody) from place to place or person to person.
- K. Notify the laboratory if the case is associated with any previous submission, evidence, or case.
- L. Tweezers, forceps and similar tools should be used to collect and place trace and small items into containers. It is advisable to use rubber gloves to handle such physical evidence.
- M. An "evidence box" such as a clean empty cartons, cardboard boxes, etc., should be utilised for transporting the evidence. An evidence box with pegboard sides allows for tying or wiring small and medium sized objects in place. A series of drilled holes and appropriately sized clamps can serve the same purpose.
- N. Items of evidence that need comparative analysis for possible commonness of origin should be packed in separate containers to avoid any cross contamination. Thoroughly clean and dry all containers, wrapping paper, cardboard boxes before packing physical evidence. No wet or metal containers should be used.
- O. Evidence in the form of documents should be first placed in transparent envelopes without folding or bending, and then placed between two pieces of rigid card board and packed in a suitable cloth lined envelope.
- P. Plastic pill bottles such as used medicine containers with lids, which are unbreakable, can be easily sealed with tape. So they make excellent containers for hair, fibers and other small trace evidence. They are ideal for spent bullets, empty cartridge cases, and cartridges because they can be packed with absorbent cotton to minimize movement.
- Q. Plastic envelopes and bags are suitable for packing wide variety of materials. However in case of soil, debris or clothing impregnated with bloodstains this may result in bacterial action contaminating the blood sample, and should be avoided.
- R. If the stain is on a transportable object such as a knife, crowbar, firearm or any other weapon, it is preferable to send the whole object, protecting the area of the stain or completely enclosing the object in a package (if it is small enough). If the stain is on clothing, the garments should be wrapped separately in paper, marked appropriately and packed. This is better than any other technique (such as scrapping) for forwarding a movable sample of the stain for analysis.
- S. Garments and other materials such as bed-sheets, towels, tablecloths and similar evidence should be folded to a minimum size. Specific areas which contain trace evidence should be folded in such a way as to protect such areas to avoid loss of incriminating evidence by falling off, peeling off, etc.
- T. It is preferable to send a soil-stained or mud-soaked object to the laboratory rather than to attempt to remove and send the soil or mud as a separate item. When such traces are picked up as individual items of evidence, it is vital that every precaution is taken to keep the evidence in separate sealed containers to avoid any accidental loss or mixing in transit.
- U. Bed-sheets, carpets, woollen materials from the scene of arson may be wrapped in metal foil and sealed in airtight containers. Smaller objects, such as paper and rags or solid samples should be sealed in the container in which they were found or placed in airtight bottles or cans. This protects the fire accelerants and their residues from evaporation.
- V. Pills and other non-caustic substances should be left in their original containers for transport to the laboratory. Such containers often contain useful information. The investigating officer should count the number of pills and capsules or accurately determine the bulk quantity of fluids or powders and should include such data in observation notes and letter of advice.
- W. Caustic or corrosive poisons should not be transported until their safe transit is ensured by suitable means. Appropriate containers such as glass bottles with glass lids should be used for transporting substances such as acids.
- X. Food and edible substances should be placed in as many separate moisture-proof bottles or containers as necessary to avoid any contamination. In case of suspected food poisoning, the packages should be marked clearly as suspected or known samples of poison.
- Y. Trace evidence, such as hair, fibers, etc., should be sealed in folded paper or placed in clean, sealed envelopes.
- Z. All evidence should be forwarded or received only in sealed condition. Sample seal should be affixed on covering letter/letter of advice for comparison.

Crime Scene Processing and Physical Evidence Collection

Protection of Evidence At The Crime Scene And Its Preservation

550. The importance of the crime scene, its protection and preservation cannot be over-emphasised. Successful investigation of a crime largely depends upon how well various clues, leads, and evidence available at the scene of crime are protected, located, recorded, processed, evaluated and interpreted. The observations and findings in an undisturbed crime scene are vital to the success of the investigation. An improperly secured and unprotected crime scene may lead to loss, destruction or contamination of various forms of evidence, especially physical evidence. Moreover evidence once overlooked cannot be retrieved at a later stage. Therefore the scene of crime should be properly secured and protected as a first step by the investigator and all available evidence preserved in an appropriate manner thereafter. Protection of crime scene, guidelines for protection, preservation of evidence are dealt in detail in Order 419 in Chapter 22.

Recording the Crime Scene

551. The method of recording crime scene through videography and photography is given in detail in Order 420 in Chapter 22.

Searching the Crime Scene for Physical Evidence & Role of the Investigating Officer

552. Initially the Investigating Officer should conduct an overall survey to assimilate the items, conditions, and locations that seem to have the greatest importance. At this stage the Investigating Officer should only observe carefully and record the position of each item. The detailed steps thereafter are given in Order 422&423 in Chapter 22.

Principles and Laws Governing Forensic Science

Principle Of Exchange

553-1. This was the first and foremost concept that led to the systematic development of forensic science. A French scientist Prof. Edmand Locard while working in the University of Lausanne, Switzerland in 1928 proposed this theory, i.e. "When any two objects come into contact, each of them will leave its traces on to the other". The transfer of traces may be in the form of materials or impressions. Such transference may be large or small, visible or invisible, detectable readily or difficult to detect. Nevertheless, transference does occur. It is the responsibility of the investigating officer to search, locate and collect it.

Law of Individuality

2. Every object natural or man made, animate or inanimate has some individuality/uniqueness of its own which is not repeated in any other objects. The natural objects are; human beings, animals, plants, leaves, seeds, insects, wood, soil etc., whereas the man made objects are; tools, guns, bullets, shoes, pens, paper, ink, pills etc. Sometimes it would be possible to distinguish a person or an object through the acquired characteristics as indicated below:

Natural or Man made Objects	Original Characteristics	Acquired Characteristics
Human beings	Physical features, Finger / Foot Prints, Color of eyes, Hair, Blood group etc.	Handwriting, Gait Pattern, (Shoe sole pattern), Voice Prints, Beard, Moustache, Hair style
Twins	Fingerprints, Physical features	Handwriting, Gait pattern, Hairstyle
Bullet	Caliber	Lands and grooves, Barrel impressions, Striations due to wear and tear, maintenance, storage conditions of weapon.
Cartridge Case	Case and primer	Striking pin impression
Tyres	Treads, Tread Pattern, Tread width, Rubber etc.	Wear and Tear marks, Defects due to usage, Environmental marks
Knife	Length of Blade, Hard characteristics, Blade characteristics	Marks due to sharpening on stone, metal, wall etc., scratches etc.

Law of Progressive Change

3. Everything in the Universe undergoes a change as the time progresses.

People undergo change

- Criminals – Disguise, Alibi
- Witnesses – Hostile, influenced
- Police – transfer, promotion, retirement
- Judges- transfer, promotion, retirement
- Lawyers-busy with new cases, priorities
- Prosecutors-transfer, promotion, retirement
- Places undergo change
- Crime scene – Contamination, weather, atmosphere, rain, sun, birds, animals, maggots
- Materials/objects also undergo change
- Objects/materials/matter – Volatile, decomposition,
- Chemical transformation, Physical transformation, Biological transformation.

Hence the importance of speedy investigation, speedy trial and speedy -justice, as the justice delayed is justice denied.

Principle of Comparison

4. Only like things can be compared .

No purpose will be served if comparison is made between

- Black Fibre – Black hair
- Grey Hair – Grey Fibre
- Bullet .38 – Bullet .32
- Nylon Fibre – Cotton Fibre
- Telugu Writing – English Writing
- SBML – SBBL
- DBBL – Rifle

Principle of Analysis

5. The analysis can be no better than the sample itself.

Hence the importance of proper collection of sample and also its integrity and chain of custody.

Law of Probability

6. All identifications definite or indefinite are made consciously or unconsciously on the basis of Probability.

Mobile Scientific Investigating Units- Clues Teams

554-1. Mobile Scientific Investigating Units briefly named as “CLUES” teams are being established in each District and each city zone to assist the Investigating Officers in Crime Scene Processing, Reconstruction and in all other matters requiring scientific and technical, investigative support to the District / City Police. Scientific Officer/Scientific Assistant borne on the strength of Andhra Pradesh Forensic Science Laboratory heads these teams. They will report to the Director, APFSL in all scientific and technical matters, who in turn will constantly and regularly monitor, review and supervise their work regarding their technical functioning. However they will work under the functional and operational control of the Supdt. of Police/Commissioner of Police of the respective districts/cities for operational efficiency and convenience and the SP/CP will inspect the CLUES team annually and initiate their ACRs. The Scientific Officers / Scientific Assistants will be assisted by a Lab Technician / Photographer cum Videographer borne on the strength of APFSL. A Fingerprints Expert of the rank of C.I/S.I/A.S.I borne on the strength of FPB/SCRB will be attached to the CLUES team.

2. The Director APFSL will provide a Vehicle and other equipment as given below.

- A. Maruthi Omni Van or any other suitable vehicle
- B. Crime Scene Recording Equipment
 - Video Camera
 - Digital Photo Camera
 - 35mm SLR Camera

- C. Crime Scene Searching Equipment
 - Poli Ray – Multiple Wavelength Light
 - White Beam Search Lights-EURO – 2 Nos.
- D. Physical Evidence Lifting Equipment
 - Advanced Physical Evidence Collection Kit
 - Sunken Foot Print Collection Kit
 - Electrostatic Dust Print Lifting Kit
 - Microsil (Tool marks, FP, Bite mark Lifting Kit)
 - Blood Evidence Collection Kit
- E. Micro Examination Equipment
 - Binocular Microscope
 - Flash Light Magnifier
- F. Spot Test Kits
 - Narcotic Test Kit
 - Explosive Test Kit
- G. Finger Prints Developing Equipment
 - Cyanowand Kit
 - Fluorescence Powders
 - Fluorescence Magna Powders
 - Universal Powders
 - Feather Brush Powder Applicators
 - Magnetic Powder Applicators
- H. Personal Computer with Modem and Printer for Data Storage, Exchange and Transmission
- J. Furniture and fixtures

3. The SP/CP of the District/City will provide the following infrastructure /man power/resources for smooth and effective functioning of CLUES team.

- A. Suitable accommodation in SP/CP office (size 5M x 6M) with provision for dark room with necessary power and water supplies.
- B. Two PC drivers for the Mobile Vehicle to operate round the clock and one home guard for assisting the staff in crime scene processing.
- C. Fuel for the vehicle and its maintenance.
- D. Consumables such as films, video cassettes, floppy drives, batteries, camera cells, colour photo rolls, packing material, stationery etc., for day to day operation payment of repair charges for minor repair of cameras, video cameras etc.
- E. Telephone connectivity for the computers to transmit online data and images of crime scene between the districts and FSL headquarters.
- F. Budget for colour photograph printing, minor repairs of the equipment.
- G. VHF/UHF wireless set for fixing to CLUES team Vehicle for communication.
- H. Extension telephone from city/district police exchange for office and residence of Scientific Officer/Scientific Assistant and Finger Print Inspector.

The duties and responsibilities of Mobile CLUES team are given below

- 4-A. Video recording of the crime scenes, along with the surroundings (including approach, entry and exit route of the culprits).
- B. Photograph the vital clues from all perspectives using 35 mm Camera and Digital Camera.
- C. Sketch the crime scene covering the place of occurrence and clues therein.
- D. Systematic search for physical evidence other than what is visible and obvious.
- E. Collection of all visible physical evidence by appropriate tools and techniques.
- F. Collection of partially visible physical evidence such as blood, dust, fingerprints, fibres, footprints, hair, stains, marks and other microscopic evidence or any thing that is likely to have been left behind or stays behind the offenders that are useful for establishing linkages.
- G. To extend all possible assistance and guidance to the investigating officers. In collection of control samples collection of control physical evidence such as casts of footprints, shoe prints and other track marks; collection of tool marks on metals, wood, plastics and other medias, collection of controls and standards for all classes of physical evidence, especially in the matter of questioned documents, DNA fingerprints etc., and assisting the Investigating Officers in properly labeling, marking and preparing the Letter of Advice.
- H. Proper preservation and packing of physical evidence and handing over to the I.O for forwarding to the FSL or other authorities concerned.
- I. To co-ordinate with the Medical Officers, Bomb Disposal team officers or other scientific experts for prompt inspection of the scene of crime/victim/suspect.
- J. Preliminary analysis of clues such as blood stains, semen, soil, paint, glass, hair, fibre and other routinely

occurring evidence materials like stains, marks etc., so as to give leads to the Investigating Officers in the matter of proper collection of right samples for analysis.

K. Preliminary examination of tool marks on heavy vehicles such as buses, lorries, tractors, or light vehicles, cars, scooters etc., and other objects such as weapons, household articles, furniture, fixtures, machinery, and other non movable heavy articles.

L. Preliminary examination of explosive residues in cases of bomb explosions and examination of ingredients of defused bombs. In case of live bombs seized or recovered by Investigating Officers such examination should be done only after diffusion by the Bomb diffusion teams.

M. Physical and mental reconstruction of crime scene in close association with the investigating officers which may help the investigating officers in getting right leads for apprehension of offenders.

N. To impart theoretical and practical training in scientific methods to the Police Officers and assist the SP/CP in conducting district level police competitions.

O. To act as liaison officer between the District/City/Zonal Police Administration and District/Regional FSLs or FSL Hqrs. and to discharge any other scientific or technical functions as required by the Zonal/District/Sub Divisional Police Officers and Main/Regional/District FSL authorities from time to time.

P. In short, the scientist in charge of CLUES team will act as PA (scientific) or scientific advisor to the SP/CP concerned in all matters relating to scientific criminal investigation processes.

Requisition of CLUES Team Mandatory in certain types of cases

5. It is mandatory for the Investigating officers to seek the assistance of the CLUES teams in cases involving/relating to a) explosions, b) firearms, c) arson, d) dowry deaths, e) homicide, f) property offences, g) mass disasters, h) road/train accidents, i) custodial deaths, j) use of force by police, k) industrial accidents and any other sensational crimes. Failure to requisition the services of the CLUES teams in the above types of cases will entail an appropriate disciplinary action.

Organisational Structure of APFSL

555. Director is the administrative and technical head of APFSL and functions under the overall control of DGP. There are four Joint Directors to assist the Director mostly in scientific matters. There is an Administrative officer to look after the routine administration matters. The Director is responsible for overall functioning of the laboratory including the Regional FSLs and Mobile Scientific Investigating Units (CLUES TEAM) located all over the state. As such, Director maintains close liaison with Senior Police Officers, senior officers of Home and other Government departments dealing with the criminal justice administration, in order to deliver prompt, reliable and efficient scientific services to the criminal justice system of the state. Director is also responsible for constantly upgrading the scientific skills and methods of scientific analysis through modernisation.

1. The four Joint Directors are responsible for supervising the work of different sections indicated below.

JD Biology - Biology, Serology, Biomedical and DNA
 JD Chemical - Toxicology, General Chemistry, Narcotics
 JD General - Documents, Polygraph, Forensic Computers
 JD Physical- Ballistics, Physics, Forensic Engineering

2. The Assistant Directors are responsible for overall functioning of the 13 sections mentioned above. In all scientific matters relating to physical evidence collection, analysis, reports and their interpretation or for any clarification or advice the concerned Assistant Directors are to be contacted by Investigating Officers.

APFSL Furnishes reports/opinions within 30 days

3. All cases received by APFSL in all 13 sections will be examined by the respective Scientific Experts and the reports/opinions will be sent to the Forwarding Authorities within 30 days from the date of receipt. The Assistant Directors are responsible for timely reporting of cases. In the case of Polygraph, Chemistry, Biomedical and Narcotics sections and in certain routine type of examinations conducted in Ballistics, Physics the reports/opinions will be sent within 21 days. Whenever a report/opinion of expert is required within a short period ranging from 2 to 7 days, the I.Os should approach the concerned SP/DCP to send a DO letter for according priority in the case to the Director APFSL so that such cases will be taken up by APFSL/RFSLS on special priority and the reports/opinions furnished as desired.

4. In order to make the facilities and expertise available in APFSL to the public, in civil matters, it has been decided to extend these services in genuine cases by levying/collecting user charges to meet the analytical expenses. The following services are available for public on payment of fees indicated.

G.O.Ms.No. 170 Fin. & Plg. (FW:B4) Dept., dated 23-4-2001

Sl. No.	Description	Fees	Unit
1.	Document cases in civil matters referred by Courts.	Rs. 750/-	
2.	Document cases in civil matters consisting of large number of documents.	Rs. 2000/-	Per case according to G.O.Ms. No. 335 of Home (Police-C) Department, Dated 5-8-1993
3.	Document cases in civil matters with large number of documents and complicated examinations	Fees to be fixed by Director, APFSL.	
4.	Document cases in corporate matters.	Rs. 5000/-	Per case consisting of up to 10 documents
5.	Document cases in personal individual matters	Rs. 1000/-	Per case consisting of 5 documents
6.	DNA Profiling Poison Testing:	Rs. 6000/-	Per case up to 3 samples
7.	a) Commercial Establishment b) Individual cases Lie Detector Examination:	Rs. 3000/- Rs. 500/-	Per sample
8.	a) Corporate & Commercial b) Individual cases	Rs. 2500/- Rs. 1000/-	Per subject
9.	Gems, Stones, Gold & other precious materials testing R&D facilities for students:	Rs. 250/-	Per sample
10.	Research Scholars/Postdoctoral Scholars Testing of Petrol/Diesel Oil etc., referred from Vigilance & Civil Supplies Department.	Rs. 100/- Rs. 1000/-	Per sample
11.	Liquor Analysis referred by Excise Department	Rs. 1000/-	Per case consisting up to 3 samples
12.	Drugs Analysis referred from Drugs Control Department	Rs. 1000/-	

Constitution of RFSLs

556-1. Regional Forensic Science Laboratories are established to provide scientific analysis facilities to the Investigating Officers in their vicinity thereby avoiding transportation of Physical Evidence of certain types all the way to Hyderabad Headquarters from remote districts. Further the Investigating Officers can save lot of time in transmitting and taking back the case property. Only such scientific sections receiving large number of cases and physical evidence, which is perishable in nature, requiring limited analytical facilities have been created in RFSLs. The sections that are available in RFSLs are Toxicology, Serology, Biology and Chemistry. Three RFSLs have already been established at Visakhapatnam, Vijayawada and Anantapur and eventually RFSLs/DFSLs shall be established in all Range/District headquarters in a phased manner.

2 The Regional FSLs are headed by Assistant Directors. The Assistant Directors of RFSLs will report to Director APFSL. They are responsible for the technical and administrative supervision of the RFSL and for their effective and smooth functioning. One Assistant Director, two Scientific Officers, two Scientific Assistants and other technical staff assist them.

3. All cases referred to RFSL will be reported within 30 days of occurrence of crime. Sensational and complicated cases will be referred to the concerned sections of FSL Headquarters for analysis.

4. The I.Os working within the jurisdiction area of RFSLs may consult the Scientists of RFSL in the matter of collection of physical evidence of all types.

The section wise details regarding the nature of physical evidence handled, methods of analysis used and the type of analytical information which may be furnished

Ballistics

557-1. Ballistics is the study of projectiles in motion. The term ballistics is derived from the Latin word “ballista” which refers to a crossbow like device for throwing stones by means of twisted ropes. Forensic Ballistics is the examination and identification of firearm, cartridges, fired cartridges, fired cartridge cases, bullets, gun powder, wads, pellets, etc. Further ballistics section links the firearm with fired cartridge cases and bullets, determine the range of fire & angle of firing etc.

2. Nature of physical evidence received by the section, nature of examinations conducted and type of analytical information laboratory can provide is given below.

Sl. No	Nature of Physical Evidence	Nature of examination conducted	Type of analytical information laboratory can provide Whether it is company made or country made
1.	Firearms	1. Physical examination 2. Test firing 3. Chemical examination 4. Chemical Etching Method	What is its bore/calibre What is the make and model Whether it is prohibited or not Whether it comes under the purview of arms act or not. Whether the firearm is in working order, if not what repairs are required Whether the firearm is prone to accidental discharge What is its effective range Whether recently used for firing What type of gunpowder is used?
2.	Ammunition	1. Physical examination	If any erased markings are present to restore the original markings. What is its caliber/bore Whether it is company or country made What is its shot size number?
	a) Cartridge	2. Chemical examination	Whether it is live or not Through which weapon they can be fired Whether it is reloaded or not. What type of gunpowder is used? What is the calibre/bore From which type of weapon it was fired.
	b) Empty cartridge case	1. Physical examination 2. Microscopic examination (i.e., firing pin mark, breech face mark, extractor & ejector marks and chamber marks) 3. Chemical examination	Whether the empty cartridge cases were fired or not.
	c) Bullets	1. Physical examination 2. Microscopic examination (Rifling marks i.e., lands, grooves, twist etc. and striation marks.	What is its calibre Whether the bullet was fired or not Whether it was fired from a company made or country made firearm.
	d) Pellets and wads	1. Physical examination 2. Chemical examination	What is the shot size number What is the size of the bore/calibre How many no. of cartridges were fired What is its make?

What kind of gun powder was used to propel the pellets & wads

- | | | |
|---|--|--|
| Firearms along with | | |
| 3. empty cartridge cases & fired bullets | 1. Under comparison microscope | To ascertain whether the empty case/bullet was fired from the firearm seized from the culprit.
How many no. of firearms were used
How many no. of shots were fired
What is the range of firing
Whether the holes are entry /exit/multiple entry by one bullet or not |
| | 1. Physical examination and under IR light | |
| 4. Clothes and skin pieces containing holes | 2. Chemical examination | |
| | 3. Instrumental methods of analysis | What type of gun powder was used for firing
Whether the rents were caused by the laden projectiles or copper jacketed bullets etc.,
What was the range of fire
What was the angle of fire
Whether the wounds were entry or exit
How many no. of shots/bullets were fired. |
| 5. Postmortem certificates | 1. Study | |

3. Important precautions and guidelines for the collection of physical evidence involving firearms.

- In case of a crime scene involving firearms all possible evidence such as firearms, empty cartridge cases, live cartridges, bullets, pellets, wads, gun powder and gun shot residue should be recovered after properly recording and photographing the position of each item.
- Firearms in loaded condition should not be sent to Forensic Science Laboratory. If there is any difficulty in unloading the firearm the services of the ballistics expert has to be requisitioned. In extreme cases where the firearm has to be sent in loaded condition, the safety catch of firearm should be kept in safe mode and the constable who carries the case property should be informed about the loaded condition of the firearm and the parcel should be marked with red letters "Handle With Extreme Caution - Firearm Is In Loaded Condition".
- The firing pin of the firearm should be protected with cotton before packing the firearm.
- Empty cartridge cases and bullets should be packed separately in cotton.
- Live cartridges should be packed in a wooden/card board boxes with proper padding.
- Blood stained clothes and wads should be dried in shade and then packed separately taking due care not to disturb the gun shot residue.
- While recovering bullets lodged in furniture, walls etc care should be taken so that the rifling marks on the bullets are not disturbed.

Biology

558-1. Biology is the branch of science dealing with the examination of biological materials encountered in crimes against persons or property. Biology section deals with the examination of hairs, fibres, diatoms, plant material like wood, leaves, seeds, fruits, flowers, pollens and cigarettes, beedies, zarda, insects, flies, maggots etc.

2. Nature of physical evidence received by the section, nature of examinations conducted and type of analytical information laboratory can provide is given below. The Investigating Officer should also bring the precautions/guidelines mentioned in sub-order 3 below to the notice of the Medical Officers for collection of evidence in an appropriate manner.

Sl. No.	Nature of Physical evidence	Nature of examination conducted	Type of analytical information laboratory can provide
1.	Hair :	Macroscopic and microscopic examination for morphological characteristics	a) Human origin or not b) Animal origin c) Site of origin d) Comparison and matching hair for the commonness of source
	a) Loose hair found at crime scene, victim, suspect's clothes.		
	b) Hair in the fist of victim/deceased		
	c) Hair in combs.		
	d) Loose/ex-changed pubic hair		

- of the accused on victim and vice versa.
e) Hair on weapon
Fibres :
- | | | | |
|----|---|--|--|
| 2. | a) Loose fibre found at crime scene, victim, suspect clothes
b) Ropes
c) Cloth bits
d) Cords
e) Fibres adhering to vehicles
Diatoms: | a) Macroscopic and microscopic examination for identification
b) Flame test to distinguish classes of fibres
c) Solubility tests | a) Whether fibres or not
b) Whether natural or manmade
c) Whether the fibres in question belong to the same original source. |
| 3. | a) From sternum, long bones, liver, kidney, heart
b) Control water sample
Wood: | Microscopic examination | a) Detection of diatoms
b) Comparison of diatoms to confirm whether they belong to same source or not. |
| 4. | a) Wood fragments
b) Saw dust
c) Wooden logs/splinters
d) Broken wooden parts of the weapon etc.
Tobacco : | a) Macroscopic examination for physical characterisation
b) Microscopic examination for anatomical characterisation | a) Detection of wood.
b) Comparison of wood to determine whether the questioned and control came from the same source. |
| 5. | a) Cigarettes
b) Cigars
c) Zarda
d) Beedies
Pollen : | a) Macroscopic examination for physical characterisation
b) Microscopic examination for anatomical characterisation | a) Detection of tobacco leaves
b) Comparison of tobacco leaves to fix the source /commonness of origin |
| 6. | a) Pollen adhering to clothes of victim/suspect
b) Pollen adhering to flooring
c) Surrounding flora | a) Macroscopic examination for physical characterisation
b) Microscopic examination for species identification | a) Detection of pollen
b) Comparison of pollen to confirm whether they belong to same origin or not. |
| 7. | Insects, flies, maggots etc.
Live or dead maggots from dead body | Macroscopic examination for physical characterization and for species identification | a) Detection of maggots and flies
b) To determine the time since death |

2. Important precautions/guidelines for the collection of Physical evidence

- 1) Hair :
loose hair; hair in the fist; hair in combs; loose exchanged pubic hair; hair on immovable objects like furniture, hair on weapons etc.
- 2) Fibre :
- | | |
|--|---|
| a) Loose fibre, fibres found adhering to vehicles/ other objects | Fibre samples should be collected with rubber tipped forceps and packed in a paper packet |
| b) Ropes: cloth bits; cords | Tag and place in polythene covers |
- 3) Diatoms:
- | | |
|---|--|
| a) Sternum, long bones, liver, kidney, heart
b) Control water sample | To be placed in a bottle containing saturated sodium chloride
2-3 litres of water should be collected in sterile bottle from where the dead body was found. |
| 4) Wood : | Place the article to which the material is sticking in paper packet, use forceps where necessary. |
| a) Wood fragments
b) Saw dust | Pack in paper packet. |

- c) Wooden logs, splinters, broken wooden part of the weapon
- 5) Tobacco:
Cigarettes, cigars, zarda, beedies Pack in paper packet
- 6) Pollen :
a) Pollen adhering to clothes of packet, in case it is sticking to person or other objects such as vehicles, etc., the materials should be collected using clean forceps and placed in paper packet
b) Surrounding flora as control Pack in paper packet.
To be collected in a sterile bottle containing alcohol.
- 7) Insects :
a) Dead maggots from dead body To be collected in wide mouthed bottle with a small piece of flesh inside. The mouth of the bottle should be covered with gauze cloth to allow sufficient aeration. (Weather conditions at the crime scene should be noted in both the cases).
b) Live maggots from dead body
- 8) Other Plant Materials :
Leaves, flowers, bark etc. To be packed in paper packets.

Biomedical

559-1. Biomedical section deals with the examination of skull, bones etc., by using combination of biological/anthropological and medical knowledge for the purpose of personnel identification and determination of age, sex, stature etc.,

2. Nature of physical evidence received by the section, nature of examinations conducted and type of analytical information laboratory can provide is given below.

Sl. No.	Nature of Physical Evidence	Nature of Examination conducted	Type of analytical information laboratory can provide
1.	Skull with/without mandible and photograph of deceased	a) Superimposition b) Examination of suture pattern on the skull. c) Computerised photo skull software	a) Whether the skull belonged to person in the photograph or not. b) Age and sex of person
2.	Bones	Osteometry	Age, Sex, and stature.

3. Guidelines for Investigating Officers

1. The skull should be intact and clean.
2. The photograph should be clear showing the facial portrait preferably taken recently.
3. Bones should be packed separately in paper packets or aluminium foil.

Chemistry

560-1. The Chemistry Section deals with analysis of a wide range of materials encountered in cases of explosives, adulteration of fuels, acid burning, fire, spurious goods etc.

2. Nature of physical evidence received by the section, nature of examinations conducted and type of analytical information laboratory can provide is given below.

Sl. No.	Nature of Physical Evidence	Nature of Examination conducted	Type of analytical Information Laboratory can Provide
1.	Bomb blast cases	Explosive remnants in the form of pieces of thread, cloth, glass, soil from the crater etc., and also other affected objects in the vicinity of explosion.	Spot tests, thin layer chromatography, instrumental methods of analysis using GC, GC-MS, HPLC etc.
			a) Whether explosive or not. b) Low or high explosive. c) Approximate quantity of explosive charge and risk potential. d) Type of explosive

			device. e) components used for explosion.
2. Recovery / seizures. Live explosives.	Representative sample of chemical substances and components collected by the bomb defusal experts.	Spot test, thin layer chromatography, Instrumental methods of analysis using GC, HPLC etc.	a) Nature of explosive substance. b) Low or high explosive.
3. Fire/Arson/ Burning	Partially burnt and affected material objects like clothes, objects in-vicinity along with ash etc.	Spot test, steam distillation, thin layer chromatography, Instrumental methods of analysis using GC	Whether any fire accelerants are present or not
4. Sale of spurious, substandard duplicate goods. Manufactured goods.	Samples of pain balm, toothpowders, tooth pastes, detergents, cosmetics, Engine oils etc.	Appropriate chemical and instrumental analysis.	a) Whether the samples are genuine or spurious. b) Nature of deviation from standards.
5. In cases of Vitriolage (Acid throwing)	Affected clothing material, containers seized at scene, pieces of skin, soil and other affected objects.	Colour tests, In-organic chemical analysis.	a) Nature of acid. b) Corrosive potency.
6. Sale/use of different chemical substances.	Unknown powders, substances etc.	Chemical analysis together with instrumental methods depending upon the type of samples.	The qualitative and quantitative nature of substances. a) Whether the fuel samples referred for examination are genuine or adulterated. b) Nature of adulterant. c) Percentage of adulterant.
7. In cases of suspected adulteration of fuels, petrol, H.S Diesel Oil etc.	Samples of Motor spirit and High speed diesel	Density, distillation, flash point, kinematic viscosity etc. and instrumental analysis using gas chromatography.	

3. Important precautions and guidelines

A. Explosive Remnants

- Samples for examination in cases of explosion should be collected from the crater (seat of explosion) apart from other affected areas.
- Pieces of wire, detonator, containers, clock mechanism, batteries, plastic pieces, nails, metal scrappings, sawdust etc., should be collected from the scene.
- In-cases where it is not possible to collect explosive affected remnants from an immovable object, cotton swab preferably moistened with acetone from the affected objects should be collected.

B. Fuel Samples (Petrol/HSD)

- Fuels should be referred for examination in glass bottles or aluminium containers, but never in plastic bottles.
- Samples for examination should be sent within two working days from the date of seizure.

C. Fire/Arson/Burning

- The sample should be collected from the origin point of fire and sent for examination within two working days from date of occurrence.
- In-cases of Arson the un-burnt portion of the material stored in godowns/warehouses etc., should be sent as control.

D. Spurious Samples

- Control samples of the same batch number and of same volume and weight should be sent for comparison.

Computer Forensics

561-1. As the name implies the Computer Forensics section deals with examination of all types of Computer related crimes in which hardware, software, peripherals, communication devices, print outs etc., form part of physical evidence to prove the use of computers as a means or media to commit frauds and other computer related offences.

2. Nature of physical evidence received by the section, nature of examinations conducted and type of analytical information laboratory can provide is given below.

Sl. No.	Nature of Physical Evidence	Nature of Examination conducted	Type of analytical information laboratory can provide
1.	Computer hardware including peripherals like scanners, printers, communication devices etc., seized/recovered from the crime scene/suspect	a) Physical examination b) Retrieval of stored data c) Capture of deleted/erased data d) Analysis of data e) Status of functioning of each component	a) Whether the computers and other gadgets were used for manipulation/tampering/ unauthorized access /unauthorized reproduction / unauthorized copying of data and information or other intellectual property so as to link the person using the computers with the crime.
2.	Software in the form of CDROM/Diskettes etc.	a) Physical examination of the printed inscriptions on the packages, labels, diskettes etc. b) Microscopic examination of the quality of the floppies, diskettes. c) Analysis of data stored.	Whether software in the diskettes/CDROM is original or pirated.
3.	Communication Devices like dial modem, network cables modem etc.	a) Physical examination b) Functionality studies	Whether the gadgets could have been used in the commission of offence.

3. Precautions to be taken by the Investigating Officers while handling computer evidence

- A. In all cases of suspected computer crimes it is advisable to seek guidance and assistance of specialists of computer crime analysis of APFSL before commencing the investigation and during the process of Investigation.
- B. Disconnect all power, communication sources.
- C. Photograph the screen, back of computer components with existing connections.
- D. Label all cable ends.
- E. Keep away from magnets, radio transmitters.
- F. Write protect all diskettes at the scenes and label them.
- G. For packing, use anti static plastic material.
- H. All loose sheets, documents, sheets available at Scene of Crime should be handled carefully.

DNA

562-1-A. DNA section deals with DNA fingerprinting of all types of forensic samples of human origin like, blood, blood stains, semen, seminal stains, vaginal swabs, tissues, bones, hair, teeth, saliva and other skeletal remains. It also deals with paternity/maternity testing which are useful in solving disputed parentage, swapping of child from hospitals, illegal adoption and immigration cases. This section can also undertake examination of samples of animal or plant origin wherever required.

B. DNA or Deoxyribo nucleic acid is the genetic material present in the nucleus of cells in all living organisms and DNA is unique for each and every individual just like finger prints. It is the DNA present in every one of us that makes us distinguishable from each other. Hence DNA is an excellent identification parameter which differs from individual to individual.

C. Deoxyribonucleic acid, or DNA, is sometimes referred to as our genetic blueprint because it stores the information necessary for passing down genetic attributes to future generations. Residing in every cell of our body (with the exception of red blood cells, which lack nuclei), DNA provides a 'computer program' that determines our physical features and many other attributes. The complete set of instructions for making on organism, i.e. all the DNA in a cell, is referred to collectively as its genome.

D. Half of the DNA is inherited from a person's mother and the other half from his/her father. Siblings inherit different combinations of DNA from the same parents and are therefore different from each other. Each generation of people is a new and different combination of generic material from the previous generation. Except for identical twins, each person's DNA is unique, although the technology available does not yet allow the examination of every single difference between people's DNA.

E. Within human cells, DNA found in the nucleus of the cell (nuclear DNA) is divided into chromosomes, which are dense packets of DNA and protection proteins called histones. The human genome consists of 22 matched pairs autosomal chromosomes and two sex determining chromosomes. Thus, normal human cells contain 46 different chromosomes or 23 pairs of chromosomes. Males are designated XY because they contain a single copy of the X chromosome and a single copy of the Y chromosome, while females contain two copies of the X chromosome and are designated XX.

F. Given this uniqueness of DNA, physical evidence collected from crime scene can either link a suspect to the crime scene or eliminate him just like fingerprints. It is possible to collect DNA from blood, skin cells, semen, hair roots, urine and saliva. The types of materials useful for DNA analysis are: i) Blood and blood stains ii) Semen and semen stains iii) Bones iv) Teeth v) Hair with root vi) Hair shaft vii) Saliva viii) Urine ix) Feaces x) Debris from fingernails or broken fingernails xi) Muscle tissue xii) Cigarette butts xiii) Postage stamps (licked) xiv) Envelope sealing flaps xv) Dandruff xvi) Fingerprints xvii) Personal items: razor blade, chewing gum, wrist watch, ear wax, toothbrush xviii) clothes, xix) tools, xx) used toothpick, xxi) bottles, xxii) bite marks.

G. The direct transfer of DNA from one individual to another individual or to an object can be used to link a suspect to a crime scene. This direct transfer could involve:

- The suspect's DNA deposited on the victim's body or clothing;
- The suspect's DNA deposited on a object;
- The suspect's DNA deposited at a location;
- The suspect's DNA deposited on the suspect's body or clothing;
- The suspect's DNA deposited on an object;
- The suspect's DNA deposited at a location;
- The witness DNA deposited on victim or suspect; or
- The witness DNA deposited on an object or at a location

H. DNA evidence collection from a crime scene must be performed carefully and a chain of custody established in order to produce DNA profiles that are meaningful and legally accepted in court. DNA testing techniques have become so sensitive that biological evidence too small to be easily seen with the naked eye can be used to link suspects to crime scenes. The evidence must be carefully collected, preserved, stored, and transported prior to any analysis conducted in a forensic DNA laboratory.

2. Nature of physical evidence received by the section, nature of examinations conducted and type of analytical information laboratory can provide is given below.

Sl. No.	Nature of physical evidence	Nature of examination conducted	Type of analytical information laboratory can provide
	Evidence for Individualisation	1. Extraction of DNA	
	a) Blood & blood stains	2. Quantitation	a) In rape cases, whether the seminal stains belong to the suspect or not.
	b) Semen & seminal stains, vaginal swabs, garments with seminal stains.	3. Quality check	b) In murder cases, whether the bloodstains belong to the suspect or not.
1.	c) Saliva on Cigarette butts, bottles, glasses etc.,	4. PCR	c) In man missing cases, the DNA from bones, tissues, teeth, hair belong to the nearest blood relations of the missing person or not .
	d) Hairs with roots	Amplification for STR	
	e) Teeth	5. Gene scan analysis	
	f) Bones	6. Interpretation of results	
	g) Tissue/skin		
2.	Evidence for paternity/maternity testing	1. Extraction of DNA	a) Whether the person is biological father of child.
	a) Blood from the child	2. Quantitation	b) Whether the child is biological off spring of the father/mother
	b) Blood from the mother	3. Quality check	
	c) Blood from disputed father	4. PCR	
		Amplification for STR	
		5. Gene scan analysis	

		6. Interpretation of results	
		1. Extraction of DNA	
		2. Quantitation	
		3. Quality check	
		4. PCR	
3.	Evidence from Animals a) Skin b) Tissues c) Blood	Amplification for STR	Whether the skin/tissues/blood etc., belong to the particular animal or not
		5. Gene scan analysis	
		6. Interpretation of results	
		1. Extraction of DNA	
		2. Quantitation	
		3. Quality check	
		4. PCR	
4.	Evidence from plant material a) Seeds b) Roots c) Leaves d) Flower etc.,	Amplification for STR	Whether the seeds/roots/leaves/flower etc., belong to particular origin/source or not.
		5. Gene scan analysis	
		6. Interpretation of results	
		1. Extraction of DNA	
		2. Quantitation	
		3. Quality check	
		4. PCR	
5.	In child swapping cases	Amplification for STR	To determine who is the biological mother/father of the child/children.
		5. Gene scan analysis	
		6. Interpretation of results	

3. Collection storage & transportation of DNA samples

Sl. No.	Sample	Collection
1.	Blood	Should be collected in sterile vial with EDTA 5 ml of blood in case of adults & 2-5ml in case of children.
2.	Blood stained clothes	Blood stained garments should be thoroughly dried in shade & packed in separate paper packet.
3.	Blood stained articles/weapons etc	In case the stains are dry, scrape the stained area, keep in paper envelope & seal or swab the stains with sterile gauze cloth soaked with saline, dry and pack separately.
4.	Semen/seminal stains/vaginal swabs	Air dry and pack in separate paper packets.
5.	Hairs	Hair with roots to be air dried and packed in separate paper packets.
6.	Tissues of skin, muscle etc.,	Muscle tissues to be collected in clean glass bottle Add 20% Dimethyl sulphoxide or sodium chloride.
7.	Bones	Whole bones like femur, humerus to be collected and packed in separate paper packets and kept in aluminum foil and frozen.
8.	Teeth	Teeth should be packed in dry paper packets and sealed (Molar or canine are preferred).
9.	Visceral matter	Collect Intestine, spleen and heart (avoid liver).

Notes:

(1) Avoid contaminating the area where DNA might be present by not touching it with bare hands, or sneezing and coughing over the evidence.

(2) Use clean latex gloves for collecting each item of evidence. Gloves should be changed between handling of different items of evidence.

(3) Samples should be packaged in paper envelopes or paper bags after drying. Plastic bags should be avoided because water condenses in them, especially in areas of high humidity and water can speed the degradation of DNA molecules. Packages should be clearly marked with case number, item number, collection date, and initialed across the package seal in order to maintain a proper chain of custody.

(4) Stains on immovable surfaces (such as table or floor) may be transferred with sterile cotton swabs and distilled water. Rub the stained area with the moist swab until the stain is transferred to the swab. Allow the swab to air dry without touching any others. Store each swab in a separate paper envelop.

(5) Invariably the persons should be directed to APFSL for blood collection, but in case they are unable to do so on account of health or age, the sterile vials with preservative may be collected from laboratory. The blood so collected should be labeled and sealed properly and transported in ice so as to reach the laboratory within 24-48 hours. Blood should not be drawn from a person who has undergone blood transfusion till three months.

(6) The above precautions and guidelines should be brought to the notice of the medical officer for collection of evidence in an appropriate manner. With every blood sample collected by the medical officer from the individual an identification form should be got filled up.

FF-103-02



Affix a recent photograph of the person, (to be attested by the I.O on the photograph). Also enclose another attested photograph with this form

IDENTIFICATION FORM

[REQUIRED WHEN FRESH BLOOD SAMPLES ARE COLLECTED]

NAME IN FULL :

SEX: Male/Female AGE: Years Months

NAME OF THE FATHER/HUSBAND/GUARDIAN

ADDRESS :

.....

FORWARDING AUTHORITY:

Cr. No: PS: District :

Brief description of the case and the purpose for which blood is collected from the person above.

SAMPLE COLLECTION DETAILS:

Date: ()

Place: Name & Signature of person collecting blood.

Volume of sample collected:

Genetic Abnormalities, if any (Specify)

DECLARATION OF PERSON from whom the sample is collected for DNA Fingerprints

I,, hereby certify that the blood given to FSL, for DNA fingerprints,
is mine and I did not receive a blood transfusion within last three months.

(Signature of donor or guardian)

Certified that the, was collected in the presence of the following witnesses;

1) Name: Signature:

2) Name : Signature:

[For Office use] FSL File No:.....

DOCUMENTS

563-1. As the name implies the document section deals with several problems relating to documentary frauds. The examination conducted by the laboratory include

- A. Handwriting, signatures, initials etc.
- B. Erasures (Mechanical and Chemical)
- C. Secret and invisible writings
- D. Indented writings/pressure marks
- E. Alterations of writings
- F. Additions and deletions of writings
- G. Traced, simulated and other forms of forgery
- H. Forged rubber stamp/metal impressions, postal cancellation marks
- I. Anonymous letters
- J. False Certificates, marks lists
- K. False ration cards, passports & pass books
- L. False vehicle registration books
- M. False wills & agreements
- N. False Traveller cheques & credit cards
- O. Forged / tampered bank cheques & drafts
- P. Examination of ink
- Q. Examination of paper
- R. Examination of type/printed matter
- S. White-collar crimes such as land scams, share certificates etc.
- T. Torn, mutilated and charred documents

2. Nature of physical evidence received by the section, nature of examinations conducted and type of analytical information laboratory can provide is given below.

Sl. No	Nature of Physical Evidence	Nature of Examination conducted	Type of Analytical information laboratory can provide.
1.	Writings / initials Signatures	/Comparison with known standards.	
2.	Erasures (Mechanical and Chemical)	Examination under different light sources	To fix the authorship with the suspected person/persons
3.	Obliterations		Confirmation whether erasure exists or not and if possible to decipher the original writings.
4.	Indentations	Examination under different light sources	
5.	Tampered documents consisting of alterations, additions, insertions etc	Examination under Poliview and VSC-4.	To decipher the obliterated writings.
6.	Type writings/Printed Matter	Examination under different light sources.	To develop the indented writings.
7.	Rubber stamp impressions	Comparison with known standards	To establish whether the document is tampered and if possible to decipher the original writings.
8.	/Metal seal impressions	Comparison with known standards.	
9.	Paper		

10. Ink	Comparison with standards	
11. Torn, mutilated & charred Documents	Examination under different light sources and using instruments such as FTIR, HPTLC etc.	Whether they are printed by the same type writer/printing machine or not
12. Secret/Invisible Writings	Examination under different light sources	Whether the impressions are made by the same stamp/seal or not
Credit Cards/ Identity cards	Examination under different light sources / heat / water / other media.	To establish commonness of source/origin and relative age of documents, where possible
	Examination under UV/IR/oblique light sources	To establish whether the ink is of same origin or not
		To decipher the original writings.
		To decipher the original writings.
		To determine whether they are original or duplicate/false.

Precautions and guidelines for collection of standards

564-1. Standards: Hand writings or signatures or initials etc., written by a known person taken for the purpose of comparison with the questioned are known as standards. Standards also include typed/printed scripts, seals and stamp impressions etc., taken from a known source. Standard Writings are of two types (a) Admitted and (b) Specimen.

A. Admitted: Admitted writings are those written by a person in his/her routine course of activity/business, which are freely written, natural and undistorted. Such writings are normally available in case of employees, students, working class people, professionals, business men etc. The most suitable admitted standards are those which belong to the same general class (post-card with post-card) and contemporary (near about date/month/year) to the questioned documents. The investigating officer should endeavour to collect standards, which would enable the expert to compare "LIKE WITH LIKE" i.e., initials with initials, signatures with signatures, writings with writings of the same language, cheques with cheques and so on and so forth depending on the nature of the documents. The admitted standard material can be procured in the following forms of documents

- Personal Correspondence: Post cards, inland letters, applications for employment / loans / services like electricity, telephone etc, ration cards / passports / diaries / account books etc.
- Academic Records: School/College/applications, answer scripts, notes, records, project reports etc.
- Financial and Business Documents: Passed bank cheques, applications for demand drafts, withdrawal forms, account opening forms, specimen signature cards, ledgers, receipts etc.
- Vocational & Professional Documents: Official correspondence, leave letters, applications for loans, (P.F., LIC etc.,) attendance register, legal documents, etc.,
- Miscellaneous Documents: Railway reservation forms etc.

B. Specimen: Specimens are the writings specially written by the suspect for the purpose of comparison with the disputed documents. This is usually done either in the open court or in the presence of presiding officer. However the specimen writing of the suspect can be taken only if he volunteers to give. For collection of such specimens, there are some essential points to be followed to facilitate expert's examination meaningful, objective and conclusive, as indicated below;

- The suspect should be seated in a comfortable posture to ensure comfort and natural writing conditions.
- He/she should be supplied similar paper and writing instruments (pen/ball pen) as that of the questioned.
- The suspect should not be shown the questioned document
- The dictation should be given to the suspect at different intervals to prevent the suspect from imitating the same style.
- After each dictation, the sheet of specimens should be removed, and a fresh sheet of paper to be supplied.
- The suspect should be encouraged to write the word combination and numerals as present in the questioned sample several times.
- At least 20 specimen signatures / writings on different sheets should be taken. In case of deliberate efforts to disguise, more specimens should be taken.
- The specimen writings/signature should be taken in the open court and attested by the Judicial Officer/Magistrate.

2. Marking: The process of segregating the disputed portion of text from out of the total document by marking distinctively for comparison is known as 'Marking of documents'. The questioned portions should be encircled and numbered as Q1, Q2, Q3 respectively, whereas the standard portions should be encircled and numbered as S1, S2, S3,..... respectively.

Handling and Preservation of Documents

3-A. Documents should be handled with clean hands carefully.

- B. They should not be cut, torn or trimmed even if they are bigger in size.
- C. Partially torn documents should be joined with clean cellophane tape carefully.
- C. Documents should not be exposed to moisture, sun-light etc.,
- D. Documents should be packed in clean paper/cloth lined/cellophane covers.
- E. The investigating officer should not make any additions or under lines on the disputed or standards portions.
- F. The Investigating Officer should put initial, date and numbering etc., in one corner, away from the marked portions
- G. Documents should be sent in as is where is condition.
- I. Charred documents should be carefully lifted and placed in a suitable card board box and should be transported with care.

Forensic Engineering

565-1. Forensic Engineering deals with applications of engineering principles and methodology to determine the cause of failure of a man-made machine, a structure, a bridge, a building, a dam, or to know the cause of accident of a motor vehicle, aero plane, train, ship or any other vehicle in motion or it may simply be to evaluate the strength and quality of materials so as to know whether it is meeting the specifications and standards laid down and so on. In all these instances the Investigating Officer will be able to elicit such information to distinguish between a natural failure, accident or a sabotage or involvement of any other human factors with a view to fix the responsibility for failure, accidents or spurious and sub standard materials.

2. Nature of physical evidence received by the section, nature of examinations conducted and type of analytical information laboratory can provide is given below.

Sl. No	Nature of Physical Evidence	Nature of Examination conducted	Type of Analytical information laboratory can provide.
1.	Cement Mortar pieces from the debris of collapsed building, dam, bridge etc.	a) Chemical tests b) Mechanical tests c) Physical tests d) Instrumental Analysis e) Design/structure evaluation	Whether the collapsed building/wall/bridge/dam/structure is on account of substandard materials or improper design or human failure or due to aging.
2.	Components recovered and seized in the road/rail/air accidents including evidence of drag marks, skid marks etc. on the ground	a) Chemical tests b) Mechanical tests c) Physical tests d) Instrumental Analysis e) Design/structure evaluation	Whether the accident is caused on account of component failure or human failure or design failure or other reasons.
3.	Manufactured goods used in automobiles, industries and other sensitive installations a) Chemical tests	b) Mechanical tests c) Physical tests d) Instrumental Analysis e) Design/structure evaluation	Whether the goods are meeting the specifications claimed by the manufacturer.

Precautions and guidelines for the collection of physical evidence

3. In all the above type of cases the Investigating Officer should requisition the services of the Scientists of APFSL for on-site inspection, search for evidence, collection of appropriate evidence etc. In case it is not feasible, the Investigating Officers should collect incriminating materials and documents considering the nature of accident/damage etc. However the site/scene of devastation should be protected from human and environmental factors so as to obtain the true picture of what had happened when the scientists come for inspection.

Narcotics

566-1. The word narcotic is derived from a Greek word “Narcotikos” means lethargy or sluggishness. According to the “Pharmacologists” narcotics are the drugs, which adversely affect the activity of the central nervous system. In Medicine they are used for the relief of the pain, to induce sleep and to treat psychiatric disorders under medical supervision, but the misuse or over dose leads to dependence, addiction, toxic symptoms and death. Forensic Narcotics section deals with examination of narcotic drugs and psychotropic substances (including drugs of abuse and distilled liquors) such as opium, cannabis etc, and liquors, liquor adulterant or illicit distilled liquors, chloral hydrate, alprazolam, diazepam etc.

2. Nature of physical evidence received by the section, nature of examinations conducted and type of analytical information laboratory can provide is given below.

Sl. No.	Nature of Physical Evidence	Nature of Examination conducted	Type of analytical information laboratory can provide
1.	Illicit distilled liquor	a) Physical Examination b) Chemical Tests c) Steam distillation d) Instrumental Methods of Analysis.	a) Whether any alcohol/higher alcohol are detected b) Composition of alcohol c) Whether it is adulterated or mixed with any other poison. d) Quantitative estimation where it is positive.
2.	Toddy and toddy adulterants	a) Physical Examination b) Chemical Tests c) Steam distillation d) Instrumental Methods of Analysis.	a) Whether any alcohol/sedative /chloral hydrate is detected b) Composition of alcohol c) Whether it is adulterated or mixed with any other poison d) Quantitative estimation where it is positive.
3.	Plant materials	a) Physical Examination b) Chemical Test c) Steam distillation d) Instrumental Methods of Analysis.	a) Whether any plant alkaloids like ganja, opium and other narcotic drugs detected. b) Nature of the poison. c) Quantitative estimation where it is positive.
4.	Tablets etc.	a) Physical Examination b) Chemical Tests c) Steam distillation d) Instrumental Methods of Analysis.	a) Whether any narcotic drugs/psychotropic substance is detected. b) Nature of the poison. c) Quantitative estimation where it is positive.

Guidelines for proper collection of samples for Narcotic Examination

3. The quantity to be drawn in each sample for chemical test shall not be less than 5 grams in respect of all narcotic drugs and psychotropic substances except in the case of opium, ganja and charas (hashish) where a quantity of 24 grams in each case is required for chemical test. The seized drugs in the packages/containers should be thoroughly mixed to make it homogeneous and representative sample is drawn from it.

Physics

567-1. Forensic Physics is the study of physical properties of material evidence by examining the surface characteristics, morphological features and other physical parameters such as length, size, shape, pattern, design, weight, volume, density,

refractive index, fluorescence, elemental composition etc. The Physics section deals with the examination of wide range of materials such as soil, glass, paint, tool marks, foot prints, foot wear prints, tyre impressions that are commonly found at the scene of offence and also undertakes examination of restoration of erased numbers, counterfeit currency notes, spurious manufactured articles etc.,

2. Nature of physical evidence received by the section, nature of examinations conducted and type of analytical information laboratory can provide is given below.

Sl. No	Nature of Physical Evidence	Nature of Examination conducted	Type of Analytical information laboratory can provide.
1.	Soil: Soil, mud, dust, debris	a) Physical b) Microscopic c) Particle size d) Fluorescence e) Density f) Elemental analysis	Whether the soil samples have originated from the same location/spot or not
2.	Glass: Glass pieces, fragments, glass panes with fractures.	a) Physical b) Physical Matching c) Microscopic d) Fluorescence e) Density analysis f) Refractive index g) Elemental analysis	1) Whether a glass piece found at crime scene was originally a part of the control sample such as glass bangle / window / sheet glass, spectacle lens, head lamp etc. or not 2) In case of fracture of a glass window/ glass sheet determination of force direction and sequence of fractures etc.
3.	Paint: Paint flakes, chips and smears	a) Physical b) Physical Matching c) Microscopic d) Reaction to solvents e) Pyrolysis Gas Chromatography f) IR Spectrophotometry elemental analysis	Whether the two paint samples originated from the same source or not.
4.	Restoration of Erased Numbers: Erased numbers on vehicles, firearms and other valuable gadgets	a) Visual examination b) Under magnification c) Polishing d) Chemical etching examination under oblique light	To restore the original numbers.
5.	Tool Marks: Tool marks on doors, windows, locks, wires, and other surfaces.	a) Visual Examination under magnification b) Stereo Microscope/SEM c) Photography	Type of tool used whether the tool marks on the questioned were made by the suspected tool or not.
6.	Foot Prints:	a) Dimensions b) Shape c) Pattern d) Margins e) Toe marks f) Crease, Phalange, cut marks etc g) Other peculiarities	Whether the crime foot print and the suspect footprint are of the same individual or not.
7.	Foot wear Prints	a) Dimensions b) Shape c) Pattern & design d) Studs, nails e) Number of patches, shape & size f) Wear & tear g) Other peculiarities	Whether the crime print was made by the suspected footwear or not.
8.	Tyre Prints	a) Dimensions b) Design c) Tread Pattern d) Wear & Tear e) Distance between	Whether the crime print was made by the suspected tyre or not.

	ridges & angles	
	f) Other peculiarities	
Spurious Articles: (in the form of)	a) Physical parameters	
labels, trade marks, brand name, such as length, size, logo, specifications etc., found on the covers, packages)	shape, pattern, design, weight, volume, density.	Whether the labels, trade marks, brand name, logo etc, found on the covers/packages of the spurious article tallied with the standard or not.
9. Cement, soap, washing/talcum powders, pain balms, oils, fans, gutka, seed, seals, printed matter, court fee stamps, machine parts etc.,	b) Microscopic Examination	
	c) Fluorescence under Ultra Violet Radiation	
	a) Visual	
Counterfeit Currency:	b) Dimensions	1) Whether the suspected/questioned notes are counterfeit or not
Counterfeit Currency notes,	c) Stereomicroscopic	
10. materials used for counterfeiting such as paper, ink, blocks, screen printing devices etc	d) Examination under transmitted light	2) Whether the materials such as blocks, inks, paper, screen printing devices etc., were used to print the suspected notes or not.
	e) Fluorescence under ultra violet radiation	
	f) Scanning electron microscope	

3. Guidelines & precautions in the collection of

A. Soil

1. Control soil samples should be collected from the upper layer randomly as close to the scene as possible without contamination.
2. Care should be taken so as not to destroy other trace materials that may be present.
3. If the soil is found adhering to an object, as in the case of soil on a shoe, the I.O must not remove it. Instead the object should be wrapped in a paper with the soil intact and transmitted to the laboratory.
4. When a lump of soil is found, it should be collected and preserved intact.
5. If a foot print or tyre track indentations in question penetrates into subsoil that is different from the top soil then it is necessary to obtain samples of both the top soil and sub soil separately.
6. Dirt in the fingernails has to be scrapped and collected in a clean paper. Scrapings from other fingernails should be packed and sent as control samples.
7. Dust and dirt from pockets and trouser folds should be collected by means of small clean brush.

B. Glass

1. The evidence of glass must be photographed and their location noted on the sketch before they are touched or moved.
2. The fragments of glass, which may lodge in or adhere to the clothing of perpetrator or fall in his pockets or trouser folds, shoes etc, should be searched / collected.
3. While collecting glass or glass fragments, fingerprints, dust or dirt, blood stains, other foreign matter should be well protected.
4. All available pieces, fragments should be collected to examine the commonness of source or origin.
5. Control glass should always be taken from any remaining glass in the window or door frames, as close as possible to the point of breakage.
6. Fragments of glass, which may be adhering to or embedded in the tyres of the suspected vehicle, should be collected.

C. Paint

1. When transfer of paint occurs in hit and run accident, uncontaminated control sample must always be collected from near the surface of the vehicle as was suspected of being in contact with the victim's vehicle with the help of a clean scalpel or a knife/blade.
2. Control sample should also include all the paint layers down to the base metal.
3. Loose paint chips from a garment or from the road must be collected carefully and should be packed

in small plastic containers.

4. Each paint sample should be separately packed and marked as to the exact location of its recovery.

D. Tool Marks

1. The tool marks should be protected with cotton.
2. In case of theft of electric wires etc., the crime cut end to be examined should be marked properly and the other end cut by the investigating officer should be bent so as to distinguish from crime end.
3. The crime tools recovered should not be put to use before forwarding to FSL.

E. Foot Prints & Footwear Prints

1. If the footprints are on easily removable articles, they should be packed & forwarded.
2. If the prints cannot be immediately removed or recorded they should be covered with inverted hollow cardboard boxes or any other suitable objects.
3. If footprints are in open places, adequate precautions should be taken for protection.
4. All prints and impressions should be photographed before attempting any other method.
5. While taking photographs

- The lens of the camera should be kept parallel to the surface on which the print is found.
- A scale or foot rule is to be kept along the length of the footprint.
- A paper containing identification details such as date, crime number police station, location, left/right foot print etc., should be kept besides the footprint.

6. In case of tracing of footprints

- The sheet of glass or celluloid should not actually touch the impression.
- The sheet should not be moved until the tracing is complete.
- The lines should be drawn as thin as possible.
- The part of the foot for which the tracing is to be made, the tip of the pen and the eye should be in a line vertically above the print.
- The clear edge of the different parts of the footprint should be shown in thin continuous lines. The faint and doubtful impressions may be shown with dotted lines.

F. Spurious Articles

Control sample of same size, batch, manufacturing date has to be procured from authorised dealer/manufacturer along with certificate as that of the suspected article.

Polygraph

568-1. The word 'polygraph' denotes graphic representation of multiple/many parameters under examination. In the present context the parameters under study are meant for knowing whether a person subjected to the examination is telling truth or lying. In other words the polygraph test is intended for lie-detection of the person under examination. That is why the polygraph equipment is also known as lie-detector and the process is known as Lie-Detection.

2. Nature of evidence received by the section, nature of examinations conducted and type of analytical information laboratory can provide is given below.

Nature of Evidence	Nature of Examination conducted	Type of Analytical information laboratory can provide.
Persons/subjects brought for examination include suspects victims	Lie- detector tests are conducted on persons using polygraph instrument by putting appropriate questionnaires to study the responses found in his/her respiratory, circulatory and perspiratory parameters which are the measures distinguishable between "Truth subject is telling lie or withholding and Deception". The individual gadgets used in	Whether the statement/statements of the subject regarding his/her involvement in the crime under investigation appears/appear to be True/False, and whether the subject is telling lie or withholding the truth.

complainants Polygraph for studying these parameters are
witnesses pneumograph -for respiratory, cardiograph - for
circulatory & galvanograph -for perspiratory.

Important Precautions and guidelines to be followed by Investigating Officers

3. Before bringing the subjects for Lie-detector tests, the I.O's are to follow the following precautions:

- A. Willingness of the subject to undergo Lie detector tests is a must for conducting polygraph examination.
- B. A requisition from Judicial Officer or a Police Officer not below the rank of SDPO is to be sent to Director FSL, Hyderabad requesting for fixation of date and time for examining the subjects.
- C. The I.O should bring the subject along with
 - FIR copy and letter of advice
 - Statement of the subject
 - Sketch of scene of crime, where applicable.
- D. The I.Os should not use any third degree method/methods on the subjects.
- E. No intensive interrogation should be made on the subjects.
- F. In case of pregnant women, diabetic, cardiac patients a written permission from the subject's doctor should be obtained.
- G. The I.O should see that the subject is not with empty stomach while being brought for examination.
- H. The subject should not take any drugs in the 24 hours prior to examination.
- I. A good night's rest is necessary to the subject while being brought for examination on the following day.

Serology

569-1. The word serology is derived from the word "Serum" which means a pale yellow liquid contained in the blood. As such serology section deals with the examination of blood and other body fluids of human origin. The body fluids include semen, saliva, sweat, urine, faeces, vaginal secretions etc. Body organs, tissues, teeth, bones etc., are also examined. The section also undertakes examination of blood and body tissues of animal origin.

2. Nature of physical evidence received by the section, nature of examinations conducted and type of analytical information laboratory can provide is given below

Sl. No.	Nature of Physical Evidence	Nature of examination conducted	Type of analytical information laboratory can provide
1.	Blood:		
	a) Stained clothes		a) Whether blood stains or not
	b) Weapons etc., stained with blood	a) Biochemical tests for detection of blood	b) Human or Animal Origin
	c) Furniture, boulders, flooring or any other immovable articles stained with blood	b) Immunological tests for origin of species and blood grouping	c) Blood group
	d) Soil impregnated with blood		
2.	Semen:		
	a) Stained clothes		
	b) Urethral swabs stained with semen	a) Florescence studies for location of seminal stains	
	c) Seminal stains from immovable articles	b) Biochemical tests for detection of semen.	a) Whether semen was present or not
	d) Vaginal swabs stained with semen	c) Microscopic Examination for presence of spermatozoa	b) Detection of spermatozoa
	e) Pubic Hair stained with semen	d) Immunological tests for Origin of species and blood grouping	c) Blood group
	f) Nail clippings stained with semen		
3.	Liquid Semen		
	Saliva:		
	a) Liquid saliva	a) Physical examination for location of saliva	a) Whether saliva is present or not
	b) Cigarette butts, beedi butts etc., stained with saliva	b) Biochemical tests for detection of saliva	b) Human Origin
	c) Gags stained with saliva	c) Immunological tests for	c) Blood group

- ### 3. Important precautions and guidelines for the collection of Physical evidence

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|--------------------------------------|---|
| e) Liquid Semen | To be collected using sterile gauze cloth wetted in normal saline. Air dry and pack in dry glass bottle. Unused gauze cloth should be sent as control |
| 3) Saliva: | |
| a) Liquid saliva | To be collected using sterile gauze cloth wetted in normal saline. Unused gauze cloth should be sent as control. |
| b) Cigarette butts, beedi butts etc. | Air-dried and packed in paper parcels. |
| 4) Skin etc.: | |
| a) Tissues found at Crime scene | Collected in a clean glass bottle containing saturated with sodium chloride. Whole bones like Femur, Humerus, rib bones etc., to be collected and packed in dry paper parcels (or) should be kept in aluminium foil and frozen. |
| 5) Bone: | |
| 6) Teeth: | Teeth to be packed in dry paper parcel. |

Note:

- 1) The Investigating Officer should bring the above precautions/guidelines to the notice of the Medical Officers for collection of evidence in an appropriate manner.
- 2) Gloves may be used to handle the garments or any other biological specimen as the cells of the person collecting may contaminate the samples.

Toxicology

570-1. The word “TOXICOLOGY” is derived from a Greek word “TOXICON”. Toxicology is defined as the science embodying the knowledge, sources, characters, fatal effects, lethal doses and analysis of poisons.

The Section deals with examination of human and animal viscera in case of suspected death due to poisoning to determine the cause of death. The examinations include qualitative analysis of all types of poisons such as organic, in-organic, metallic, non-metallic, volatile poisons etc. In specific cases quantitative estimations are carried out. The section also examines cases of alcohol in suspected drunken driving and consumption of alcohols.

2. Nature of physical evidence received by the section, nature of examinations conducted and type of analytical information laboratory can provide is given below.

Sl. No.	Nature of physical Evidence	Nature of Examination conducted	Type of analytical information laboratory can provide
1)	Viscera Poisons	a) Physical Examination b) Chemical Tests c) Instrumental Methods of Analysis.	a) Whether any poison/drug/other toxin is detected. b) Nature of the poison.
2)	Body fluids (blood, urine, stomach wash)	a) Physical Examination b) Chemical Tests c) Instrumental Methods of Analysis.	a) Whether any poison/drug/alcohol is detected. b) Nature of the poison/alcohol.
3)	Bones and Ash	a) Physical Examination b) Chemical Tests c) Instrumental Methods of Analysis.	a) Whether any metallic poisons/ toxin is detected. b) Nature of the metallic poison.
4)	Utensils/Vessels which contained suspected poisons	a) Physical Examination b) Chemical Tests c) Instrumental Methods of Analysis.	a) Whether any poison/drug/other toxin is detected. Nature of the poison
5)	Liquor Bottles	a) Physical Examination	a) Whether any poison/drug /alcohol is detected.

		b) Chemical Tests c) Instrumental Methods of Analysis.	b) Nature of the poison/alcohol.
6)	Stained cloths; Vomit Materials ; Food Materials; Water Samples; Suspected Soil; Tins (Pesticides); Syringes/Syringe needles; Drugs / Poisons mixed with soft drinks	a) Physical Examination b) Chemical Tests c) Instrumental Methods of Analysis.	a) Whether any poison / drug / other toxin is detected. b) Nature of the poison.
7)	Medicinal/Tablet wrappers	a) Physical Examination b) Chemical Tests c) Instrumental Methods of Analysis.	a) Whether any drug is detected. b) Nature of the drug.
8)	Drugs, pesticides and other unknown poisons.	a) Physical Examination b) Chemical Tests c) Instrumental Methods of Analysis.	a) Whether any other toxic substance is present in the material objects. b) Nature of the poison/drugs.
9)	Ground glass pieces	a) Physical Examination b) Chemical Tests c) Instrumental Methods of Analysis.	a) Whether any mechanical poison is detected. b) Nature of the poison.
10)	Plant roots	a) Physical Examination b) Chemical Tests c) Instrumental Methods of Analysis.	Whether aconite is detected.
11)	Plant materials like leaves / bark / fruits / seeds / latex	a) Physical Examination b) Chemical Tests c) Instrumental Methods of Analysis.	a) Whether vegetable poison is detected. b) Nature of the poison.
12)	Powdered plant materials; Plant products mixed with food.	a) Physical Examination b) Chemical Tests c) Instrumental Methods of Analysis.	a) Whether vegetable poison is detected. b) Nature of the poison.

Precautions and guidelines for collecting and forwarding appropriate material toxicological evidence

3. In-order to obtain optimum results the right kind of viscera/body fluids should be collected by the Medical Officer in desirable quantity and preserved properly in suitable containers and forwarded without delay to the Forensic Science Laboratory. The Investigating Officers are advised to give a requisition to the Medical Officers to collect the samples as per the guidelines.

1) Viscera/body fluids should be preserved for toxicological analysis in the following manner:

Material	Quantity
Stomach	Whole
Stomach contents	Up to 100gms/ml
Small intestine (Jejunum)	30cms
Liver	50 to 100gms
Kidney	One half of each kidney

2) In all cases of poisoning, including carbolic acid, saturated solution of common salt should be used as preservative.

3) In cases where poisoning by acids is suspected (except carbolic acid), rectified spirit should be used as preservative. Denatured alcohol or formalin should never be used while preserving the samples for toxicological analysis.

4) For determining the alcohol levels in living persons, suspected to have consumed alcohol 10 ml of blood using fluoride/liquid paraffin as preservative and a minimum of 10 ml of urine sample should be collected and forwarded.

5) In case of burn victims to determine the levels of carbon monoxide, 10ml of blood sample preserved in liquid

paraffin in a glass bottle should be collected and forwarded.

6) No useful purpose will be served by chemical analysis of viscera in case of electric shock victims and persons known to have died due to diseases like TB, Cancer, Hepatitis, Aids etc. Hence the I.O's should accordingly not ask the M.O's to collect such samples for chemical analysis.

7) Similarly it will be of no consequence if chemical analysis of viscera is carried out in case of natural deaths due to starvation, sunstroke, old age, lightning, extreme cold etc.

8) In case of hanging the Medical Officer having observed fracture of hyoid bone arrives at a conclusion that death is due to hanging, there is no additional advantage in referring the visceral organs for chemical analysis.

9) In case of drowning where the Medical Officer arrives at a definite opinion that the cause of death is due to drowning, no additional purpose will be served by chemical examinations.

10) Testing for Diatoms in visceral organs, spleen & bone marrow may be most useful in cases of drowning. In such case control sample of the water in which body was recovered should be taken in a separate container.

11) In case of snakebite or other insect bites, samples of skin bits of affected area should only be collected and forwarded.

12) In cases of hanging, drowning, burns, accidents etc., the Medical Officers may sometimes refer the viscera if any suspicious circumstances arise which are to be recorded clearly to conduct proper analysis.

13) In case of deaths due to administering injections the sites of injections, skin subcutaneous tissues along with needle tract weighing about 100gms should be collected. Similar material from symmetrical side of the body should also be taken as control in a separate container.

14) In case of inhaled poisons like carbon monoxide, coal gas, hydrocyanic acid, chloroform or other anaesthetic drugs the lung tissues, brain and blood from the cavity of the heart should be preserved and forwarded.

15) Shaft of long bones (8 to 10cms of femur), a tuft of head hair, finger and torn-nails and some muscles should be preserved in suspected cases of chronic poisoning by heavy metals like arsenic, lead, antimony etc. In case of prolonged use of drugs like barbiturates samples like Hair, Nails are to be collected for chemical analysis.

16) A piece of heart, portion of brain and spinal cord should be preserved if poisoning is by nux-vomica or strychnine.

17) Brain and urine should be preserved in suspected cases of poisoning by barbiturates, opium or anesthetics.

18) In highly putrefied bodies, larvae, maggots, pupa and other entomological samples should be preserved.

19) In embalmed bodies vitreous humour from eyeballs usually remains uncontaminated by the process and may serve the purpose of analysing urea, creatinine and ethyl alcohol.

20) Fatty tissue should be taken from abdominal walls in case of pesticide poisoning.

21) Soil samples from above, beneath and sides of the dead body and control soil samples away from the dead body should be taken in cases of exhumed or skeletalised dead bodies.

Bombs and Explosives – Role of Investigating Officer

571-1. Explosives are substances, which under suitable conditions of Initiation undergo a sudden chemical change releasing large amount of heat and pressure in the form of gases, which rapidly expand producing violent physical disruption of the surrounding environment. The heat energy released by the explosion serves to expand the gases causing them to push on the walls in surrounding areas with great force. Finally, the walls, vehicles or any other objects would fragment and fly outwards in all directions. It is this flying debris or sharpnells that produce devastating effect causing danger to life and limb in the immediate vicinity of such explosions. The speed at which explosives decompose varies greatly from one another and provide basis for their classification as high and low explosives. In the low explosive, this speed is called the speed of deflagration (burning). This is characterised by very rapid oxidation producing heat, light, and high-pressure wave. In high explosives, it is called speed of detonation. Detonation refers to the creation of a extremely high shock wave within the explosive charge.

2. Low explosives: Low explosives decompose relatively slowly at rates that vary up to 1000 meters per second. Because of their slow burning rates, they produce a propelling or throwing action that make them suitable as propellants for ammunition or skyrockets. However they can result in violent explosions, if they are confined to a relatively small container and detonated. As most of these chemicals are otherwise useful in the manufacturing of household articles such as matchsticks, fireworks, fertilizers, etc., those with malicious intentions can have access to these substances. This is the main reason for several instances of explosions caused by these materials. Examples are Gunpowder, Smokeless powder and Potassium or Sodium chlorate mixtures.

3. High Explosives: The sensitivity of these explosives is the basis of classifying high explosives into 2 groups called initiating or primary high explosives and non-initiating or secondary high explosives.

4. Initiating or primary high explosives are ultra-sensitive to heat, shock or friction, and under normal conditions will detonate violently instead of burning. For this reason they are used to detonate other explosives, which causes chain reaction and are referred to as primers. They form ingredients of the blasting cap. Examples are Lead azide, Lead styphnate, and Mercury fulminate.

5. Non-initiating explosives are relatively insensitive to heat, shock or friction. They will normally burn rather than detonate if ignited in small quantities. This group comprises the majority of high explosives used for commercial and military blasting.

Examples are TNT (trinitrotoluene) called Dynamite, PETN (penta erythritol tetranitrate), RDX (cyclotrimethylenetri nitramine), tetryl (2,4,6 – trinitrophenyl methyl nitramine).

6. The use of explosives in faction fights and terrorist and extremist violence is common. Whenever a bomb explodes it leaves its remnants in the form of pieces of glass, metal stones, paper; threads of jute, cotton or coconut fibre; coloured powders, soil, etc. By examining these remnants it is possible to know the nature of their contents and perhaps the source of manufacture and the origin of the individual constituents of the explosive devices.

7. Methods of analysis: Remnants from the exploded and defused bombs and explosives are analyzed by semi-micro analysis, flame photometric analysis methods etc., to detect various cations and anions, nitro-compounds in high explosives. The detection and identification techniques range from simple chemical tests or animal olfactory detection to the proposed sophisticated analytical techniques like ion chromatography, capillary electrophoresis, scanning electron microscopy-energy dispersive x-ray spectroscopy, gas chromatography with electron capture detection, gas chromatography-mass spectrometry, and high performance liquid chromatography. The future challenges for forensic science laboratories shall be the detection of fertilizer-based explosives.

8. Types of cases: In practice, police are required to deal with two types of situations where explosives are found. In the first type, the Investigating Officers come across explosives in the form of raw chemical substances and other components like shells, wires, detonators, batteries etc., or in ready to use IEDs recovered or seized. In the second type the Investigating Officers come across scenes of explosions where the effect of explosives is found in the form of damages to the persons and property.

9. Since these explosive substances are useful for civil, commercial and military purposes they are available for the genuine users having valid license or authorisation. On the other hand use of these substances by any unauthorised person for the purposes other than the purposes for which license is granted is punishable by law. The Explosives Act, the Explosives Substances Act and the Rules made there under contain the law and procedure dealing with explosives.

10. Whenever explosives are used with criminal intent the police have to prove the motive, opportunity and means of such illegal use by the persons involved therein. The Investigating Officers and the police authorities should therefore follow systematic procedure for identification, handling, diffusion, sampling and disposal of explosives and their remnants, and also to know the agencies responsible for dealing with various types of explosive substances and instances of misuse or abuse of such substances. In the following paragraphs details of various agencies dealing with explosive substances and their jurisdiction, duties and responsibilities are given. In case of any doubt or ambiguity the officers dealing with such cases should consult any one of the agencies mentioned below, or Chief Controller of Explosives, Nagpur.

11. Whenever live bombs/explosives or components of bombs/explosives are seized by the Investigating Officers and also as and when explosions take place, it is necessary to follow certain systematic procedures and practices in accordance with the rules and regulations contained in Explosives Act 1884, Explosive Substances Act 1908 and Explosives Rules 1983 as also the guidelines for safe handling, diffusion, sampling, destruction and disposal.

Military Explosives – Role of Military Bomb Disposal Squad

12. Military explosives such as grenades, shells, anti-personal and anti-tank land mines etc., are handled exclusively by the officers of Military Bomb Disposal Squad attached to the Sub Area commander located at AOC Center, Secunderabad. The Investigating Officers should therefore bring such discoveries or recoveries to the notice of Sub Area Commander, Army Headquarters, Secunderabad immediately through SDPOs/Courts for necessary action. All Military Explosives can be easily identified by the markings such as year, type etc.

Civil Explosives – Role of Deputy Chief Controller of Explosives

13. Civil explosives coming under schedule I of Explosive Rules, 1983 listed below will be exclusively dealt by the Deputy Chief Controller of Explosives, Sultan Bazar, Hyderabad for defusion, assessment and disposal. Therefore the Investigating Officers should forward such cases through Courts/SDPOs to the Deputy Chief Controller of Explosives only.

14. Authorised explosives (Civil explosives) like Gunpowder (class – 1 explosives), Dynamites/Gelatin such as Superdyne, Formadyne, Dynex, Acquadyne, Safex, Kelvex, Indogel, Salvo Super, Idealboost, Hyprime (class –2 explosives), Ajax-G, Polar Viking, Polar Ajax, Special Gelatine, Noblegel, Telgex, Bharatgel etc. (class – 3 Nitro compound explosives), safety fuse (class – 6, division –3) Fireworks belonging to class – 7 division – 2, Slurry explosives such as ANFO (Ammonium Nitrate Fuel Oil Mixture) etc., belonging to class – 2 are generally received by the Deputy Chief Controller of Explosives for examination and report (vide Letter No. G. 19(219) dated 23.05.95 addressed to Director, FSL)

Common Types of Bombs and IEDs

15. The following types of Bombs and improvised Explosive Devices are commonly encountered by the Investigating Officers in the State of Andhra Pradesh.

- A. Country made throw down type bombs in different shapes and sizes.
- B. Improvised hand grenades similar in appearance to Military explosives made of hardware material like pipes.
- C. Land mines.

- D. Claymore mines. (usually placed in metallic pipes/cylinders)
- E. Position bombs / Booby traps (e.g. effigy bombs, TV / letter / book bombs etc.)
- F. Remote control bombs (Infrared, Microwave Control)
- G. Time bombs. (Quartz clock, Time pencils, pre-determined timers (integrated Circuits), Timers used in household gadgets like washing machine timers etc.)
- H. Incendiaries (Petrol bombs/Molotov cocktails, Acid bulbs)
- I. IEDs, bombs/in any other shape, form, and design.

16. The basic raw materials, explosive in nature commonly used for making the IEDs and bombs include the following chemicals:

- A. Gunpowder (sodium/potassium nitrate, carbon and sulphur in black/brown colour)
- B. Potassium chlorate (dull white powder having shades of yellow/grey)
- C. Arsenic sulphide (orange powder).
- D. Sulphur (yellow powder)
- E. Phosphorus (red powder).
- F. Aluminium (grey metallic powder).
- G. Potassium nitrate (white crystalline/pale yellow).
- H. Ammonium nitrate (white crystalline)
- I. Charcoal (black powder)
- J. Gelatin Sticks consisting of Nitroglycerine, Nitro-cellulose (straw/red coloured)
- K. ANFO Sticks (Ammonium Nitrate and Fuel Oil) (Grey in colour)
- L. RDX (normally white but can be modified to black/yellow/orange and other colours)
- M. TNT (pale yellow to brown).
- N. PETN (white)
- O. SEMTEX (Consisting of RDX with PETN – in any additive colour).
- P. PEK (Plastic Explosives) (yellow, plasticine like) or
- Q. Any other single or mixture of chemicals, which can cause explosions in combination or alone.

Components used in making Bombs / IEDs

17. Grenade shell, metallic tins, pipes, sharpnells (pieces of glass, nuts, screws, nails, blades, stones, metal/glass balls and aluminum flakes etc.), thread rolls, safety fuses, detonators, batteries (wet/dry), exploder dynamo, detonating cord, wires, switches etc., and Oils like Petrol, Diesel, Grease, Petroleum Jelly, Acids, etc.

18. Only such cases of Bombs and IEDs which do not fall in the purview of the above two agencies, viz. Sub Area Commander, Army Headquarters, Secunderabad and Deputy Chief Controller of Explosives, Sultan bazar, Hyderabad, will be handled by the Bomb Disposal Team, CID, Hyderabad.

Note: In case the Investigating Officer is apprehensive of any danger in the seizure of bombs by themselves, he may requisition the services of Bomb Disposal Team officer for assistance in seizure whether such officer is located in the District headquarter or from CID or Intelligence and Security.

Role of Police Officers dealing with unexploded bombs (UXB)

19. As soon as the materials suspected to live Bombs or IEDs or components/constituents used for making Bombs and IEDs are recovered/seized, the Investigating Officers should record in detail, the list of items with full description, category-wise in Form 60.

20. Unexploded country bombs (UXBs) made in soda-water bottles, jam tins, water cistern floats, chatties, coconut shells, bundles of jute, hemp or cloth, or bamboo tubes, book bombs and letter bombs may be designed to explode.

- A. When moved in any way,
- B. When turned over,
- C. When placed in water.
- D. When thrown down.
- E. When a fuse is lighted.
- F. By a clockwork arrangement, or
- G. By Chemical reaction.

Before touching the bomb, examine it where it lies and see if you can detect the arrangement for exploding it. See if there is any trigger and, if so, whether it is set or not. Do not move the bomb unless you are satisfied that it is safe to do so. However if the Police Officer is satisfied that there is no danger in its removal, then the bomb should be sent to the inspector of Explosives by hand, packed according to the instructions contained in the booklet “Hand book of Forensic Science of Police Officers, published by Andhra Pradesh Police Academy”. If the Investigating Officer is not satisfied, then a guard should be placed over the bomb

and report to the senior officer and send telegrams immediately to the Chief Controller of Explosives, Nagpur as well as to the Deputy and Controller of Explosives, Sultan Bazar, Hyderabad or Bomb Disposal Squad asking for assistance to render it safe.

21. The Investigating Officer shall give requisition for defusion of bombs and IEDs to the Bomb Disposal Team attached to CID, care of Addl. DGP, CID, DGP Office Complex, Saifabad, Hyderabad. All the samples collected by the Bomb Disposal Team officer should be handed over to the Investigating Officer for further transmission to the FSL/RFSL through the concerned Court/SDPO along with the letter of advice and the Bomb Disposal Team officer's findings in the form of report. Similarly whenever explosives are seized they should be sent through concerned Court/Police Officer of the rank of SDPO and above. Under no circumstance, live bombs and explosives should be sent to FSL.

22. In all cases of explosions the Investigating Officer should collect the residual explosion materials from the scene of crime. The Bomb Disposal Team Officers should be called to the scene of crime if any live bombs are suspected to be present even after explosion. In sensational and important cases, Scientific personnel of FSL and local Scientific personnel of the Investigating Team should be requisitioned immediately for physical inspection and for assessment of the damage, risk potential and the nature of explosion. The experts, who inspect the scene of explosion, will be in a position to collect relevant material for chemical analysis as well as make an in-depth study of the damage and risk assessment.

23. The Investigating Officers while dealing with scenes of explosion should photograph and videograph the entire scene covering the surrounding areas and all portions of the scene. An overall sketch of the scene should be prepared describing the specific details of damages caused by the explosion including damages to the neighbouring areas. The weather and atmospheric conditions at the time of explosion should be recorded. Statements of eye witnesses in respect of time of explosion, sounds heard, colour and height of the flame and smoke observed, smell noticed etc., should be ascertained and recorded.

24. After removing the debris, the Investigating officer should search for possible source materials responsible for the explosion. At this stage they should also look for any craters caused due to explosion by carefully removing the debris. If a crater is found, its photograph should invariably be taken and forwarded to FSL along with the physical dimensions of the crater properly measured using measuring tape, depth gauge etc. The type of the floor, where the crater occurred should be described such as loose soil, concrete, stone slabs, BT road etc.

25. Other information such as the type of electrical connections, inflammable materials found at the scene, nature of activity carried out in the premises and the surrounding areas and any other relevant information leading to the cause of explosion should be furnished in order to properly identify the cause of explosion and risk assessment. All the above records, photographs, video tapes, sketches, notes, data, information would enable the scientific expert to arrive at the nature of explosion and the approximate quantity of explosive material that could have caused the explosion. The investigating officer will forward the materials seized from the scene of explosion to FSL through Court/SDPO. These samples should be dispatched through a messenger along with letter of advice, seizure record and other related documents.

26. In case the risk potential assessment is required in major explosions, the Investigating Officer should forward full details of the remnants of materials seized along with photographs of the scene of explosion. Any opinion regarding the cause of explosion, seat of explosion, quantity of explosive materials responsible for causing the explosion etc., can be offered by FSL only when a video tape, colour photographs and full description of the materials seized and the damages occurred are sent.

Role of Bomb Disposal Team

27. The Bomb Disposal Team (BDT) is responsible for defusion and disposal of live Bombs/Explosives seized all over the state of Andhra Pradesh.

A. Whenever a requisition is received either in the form of a radio message or a letter, the Bomb Disposal Team attached to CID Hyderabad or other Organizations and Districts shall proceed to the place of seizure and follow the instructions contained herein.

B. On reaching the spot, the BDT officer should commence the work on the basis of the authorisation from the Court/SDPO obtained by the IO by way of a letter or an endorsement on the Property Seizure Report Form 66 of AP Police Manual. A copy of the authorisation letter/endorsement should be retained by the BDT officer in his file for record.

C. Having been authorised by the relevant authority the BDT officers concerned should proceed for preliminary inspection of the materials.

D. An overall survey of the material seized should be done for identification of the nature of material. During this exercise, he should be able to make a preliminary assessment of nature and potential of the bombs, which would ultimately be useful in the selection of proper method for defusion and destruction/disposal of bombs.

E. He should verify the seals, labels and signatures of witnesses in whose presence the materials were recovered by the IO and record discrepancy, if any, in his files.

F. He should carefully check the seized container and the contents thereof and verify that they tally with the description given in the property seizure form. The description should also indicate the size, shape, color and other

physical details such as visual appearance etc., of the materials.

G. He should maintain a separate record of all the observations in his file. Having satisfied that the materials, inspected by him are tallying with the seizure report, he should decide the method of diffusion.

H. Defusion should invariably be done strictly in accordance with the safety and security precautions. Different category of explosives requires different types of defusion procedures. In this connection the standard procedures laid down for safe handling, defusion, destruction and disposal of explosives should carefully be followed.

I. The next step is collection of samples to know the chemical composition and assessing risk potential of the bombs. The BDT officer should broadly categorize the seized materials before collection of representative samples. The purpose of sampling materials is for chemical analysis. By chemical analysis, chemical composition of material seized can be ascertained. The physical description of each category of bomb such as size, shape, volume, weight and quantity/number is essential for assessment of the risk potential. The BDT officer should obtain a videograph/photograph of the entire seized material preferably at the place of seizure (except in cases where the material is suspected to be vulnerable to flash light), for correct assessment of risk potential of the total quantity of material seized. The place, date and time of seizure should also be indicated.

J. In case of low explosives such as throw down bombs, gunpowder etc., a small quantity of the material of the size of medicinal capsule shall be collected after diffusion of each category of bombs and shall be packed in 5 –10 ml glass (injection) bottle filled with water, preferably distilled water. The bottle should then be properly sealed and labeled with the signatures of the BDT officer indicating Police station, Cr. No., Item No. etc.

K. In case of other components of bombs like threads, glass pieces, nails, stones, paper pieces etc., a representative sample shall be forwarded to FSL for opinion.

L. In case of bombs containing high explosives such as grenades, tin bombs, claymore mines, land mines, pipe bombs etc., a representative sample of chemical substance shall be collected where diffusion is not possible, a residual portion of the explosive material may be sent for chemical analysis.

M. Bombs and IEDs made of high explosives are not required to be returned to the court for presentation during trial. The reason for such exceptional treatment is on account of public safety, as they are likely to explode even after diffusion under certain circumstances.

N. In all cases of high explosives, the Bomb Disposal Team officer should destroy the materials at a safe and convenient place in the local area following all the rules, regulations, precautions, procedures and practices given in the Explosives Act, Explosive Substances Act, Explosives Rules, and as per laid down standard procedures. A certificate to this effect has to be given to the requisition authority by the Bomb Disposal Team Officer.

O. In case of throw down type bombs or similar bombs made of low explosives, after diffusion and sampling, the remaining portions of the bombs such as sharpnells, threads, paper etc., should be to the court after thoroughly washing out the chemical rendering them harmless. Such material should be submitted to the court in the original container in which it was seized after carefully packing, sealing and labeling for subsequent identification.

572 Quick Check List for the Investigating Officers to ascertain what type of samples to be collected in different types of crimes and which section of FSL handles the analysis

Sl. Section No. APFSL	Type of Physical Evidence	Type of Crime
1. Biology	Hair, Fibers, Diatoms, Tobacco products, other plant materials like Pollen, Leaves, Wood, Seeds, Fruits, Flowers etc., and insects such as Maggots, Flies.	Rape, Murder, Suicide, Drowning and Cheating.
2. Bio-Medical	Skull, Skeletal remains, skin and Tissues, photographs.	Suicide and Murder.
3. DNA	Liquid blood, Bloodstains & Swabs, Semen, Seminal Stains & Swabs, Tissues, Bones, Hair, Teeth, Saliva, Skeletal remains.	Rape, Murder, Disputed paternity and Swapping of new born babies.
4. Serology	Blood, Semen, Saliva, Other body fluids, Skin tissues etc. Adulterated Petrol, High-speed diesel, lubricating oils etc., Detergents, Cosmetics, Cement, etc., Explosive materials,	Rape, Murder and Assault.
5. Chemistry	Arson & Fire residues. Acid burning residues, unknown chemicals, remnants of Mechanical Explosions, Chemical Explosions.	Explosive cases, Accidents, Arson, Acid Burning and Burning Cases.
6. Narcotics	Plants and plant products containing Narcotics and Psychotropic Substances, Adulterated Liquor/Toddy.	Cheating, NDPS Act and Central Excise cases.
7. Toxicology	Poisonous/Intoxicating Substances like Alcohol and Drugs.	Suicide, Murder and Accident.

8. Computer Forensics	Software, Hardware, Computer Peripherals, Communication devices, Computer Products related materials such as computer Fake currency, Pornography, Software piracy, Unauthorized Reproduction.	Cheating, Counterfeiting and Computer related crimes.
9. Documents	Handwritings, Erasures, Obliterations, Alterations, Over writings, Secret writings etc., Typewriting, Printed matter, Inks & Paper, Stamp impressions, Fax, Carbon Copies, Xerox Copies.	Cheating, Forgery misappropriation, Murder, Suicide, Scams and Frauds.
10. Polygraph-Lie Detector	Suspects, witnesses or Complainants.	Burglary, Dacoity, Theft, Arson, Rape, Murder and White collar offences.
11. Ballistics	Firearms, Parts of firearms, Cartridge cases, Bullets, pellets/wads, clothes and other materials affected by firing.	Murder, Assault, Suicide, Attempt to Murder and Dacoity.
12. Physics	Glass Pieces and fragments, Paint flakes, chips and smears, Foot prints, Tyre impressions, Tool marks, Counterfeit currency, Erased numbers on vehicles and other valuable gadgets, Spurious articles, Voice analysis.	Cheating, Burglary, Accident, Murder and Hit and Run cases.
13. Forensic	Engineering Materials recovered in construction of buildings, roads, dams & Road, Train or Air Accidents, Failures of machines and structures.	Fraud, Cheating, Misappropriation and Criminal Negligence.

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Andhra Pradesh Police Department

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CHAPTER 32

Prosecution of Cases

Directorate of Prosecutions

573-1. The Directorate of prosecutions was established with the objective of improving the quality of prosecutions, exercise supervision and scrutiny of the work of Prosecutors and brings about uniformity throughout the State. Sections 24 and 25 of CrPC lay down that where a regular cadre of prosecutors exists, they are empowered to conduct prosecutions in the Sessions, Additional Sessions, Assistant Sessions and Magistrates' Courts. The Directorate at various levels besides conducting prosecutions in all criminal cases is also to tender legal advice to the DGP, other supervisory officers and Investigating Officers. They are also, in addition authorized to conduct prosecutions and tender legal advice to other departments. The Directorate functions under the general control of the Government and is headed by a Director of Prosecutions.

G.O. Ms. No. 323 Home (Courts C) Dept., dated 26.5.1986.

2. The head of the Directorate of Prosecutions is the Director assisted by an Additional Director at the Headquarters. For each of the seven zones in the State a joint Director is to be in charge, while for each district a Deputy Director is to be posted. These officers have functions and responsibilities to supervise the work of prosecutors within their jurisdictions and report to the Director.

G.O.Ms. No. 188 Home (Courts C) Dept., dt. 30.3.1992.

3. The cadre of prosecutors consist of the following seven categories:

- A. Category-1: Director of Prosecutions
- B. Category-2: Additional Director of Prosecutions
- C. Category-3: Public Prosecutor/Joint Director of Prosecutions
- D. Category-4: Additional Public Prosecutor, Grade-I/Deputy Director of Prosecutions.
- E. Category-5: Additional Public Prosecutor, Grade-II
- F. Category-6: Senior Assistant Public Prosecutor
- G. Category-7: Assistant Public Prosecutor

4. The recruitment, training, promotions and other service conditions are governed by AP State Prosecution Service Rules 1992 in so far as cadre public prosecutors are concerned. There is direct recruitment at the level of APP and 30% of Additional PP. The rest of the posts are filled by promotion or deputation, if qualified candidates are not available for promotion. Except the designated prosecutors at High Court, all other prosecutors are to be from the cadre. Special PPs from the Bar are appointed for specific cases or group of cases or courts including the High Court. The services of the prosecutors appointed directly from the bar for tenure are governed by Law Officers' Service (Appointment and conditions of service) instructions, 2000. The prosecutors of all levels are governed by the AP Civil Services Conduct Rules 1964 and AP CC&A Rules 1991.

G.O.Ms.
No.187, Law (C) Dept., Govt.of A.P. dt. 6-12-2000

5. The Prosecutors tender Legal Advices to Police Department at various levels and are expected to do so in the manner and form prescribed. All the Prosecutors are to be paid a Robe Allowance once in 5 years and Legal Consultation Allowance at such rates as determined from time to time.

The functions and duties of the Prosecutors

6. There should be constant interaction between Investigating Officers and prosecutors right from the initial stage. There should be no hesitation for the IO to seek the advice of the APP on collection and appreciation of evidence. The APPs have instructions to render proper legal advice whenever sought for by the police. The duties of prosecutors are 3-fold.

- A. To tender legal advice during investigation for proper construction of case records that helps prosecution in the court subsequently;
- B. Diligently conduct prosecution in courts.
- C. Offer opinion on judgements.

Duties of Public Prosecutors and Addl. Public Prosecutors Grade I and II

7-A. Offering legal advices to the I.Os in sessions cases at the stage of the investigation when sought for, and giving draft charge sheets in session cases.

B. conduct of prosecutions before the District and Sessions Court, Addl. District and Sessions Court and Assistant Sessions Court respectively to which they are appointed/posted.

DOP Memo No 122/A2/ 93, dated 9.3.1993.

- C. ensure that the witnesses are presented before the court as per the schedule of the cases.
- D. prepare the arguments of cases by projecting the prosecution case citing latest case laws relevant to the facts for successful prosecution;
- E. bring to the notice of the SP/CP the non-production and absence of witnesses after service of summons;

DG & IGP Circular Memo No. 855/A2/DOP/ 91, dated 27.8.1991.

- F. ensure that the summons to official witnesses and IOs are obtained in time and served to avoid any delay to the regular conduct of prosecution by seeking any adjournments;
- G. Keeping in possession all copies of documents that are filed in court in original for ready reference during the trials;
- H. receive notices of Appeals and Bails and in turn intimate the same to the concerned SHO/IO in writing and obtain CD files to get necessary instructions to handle the bail applications and also to argue the appeals filed against convictions.

DOP Memo No. 242/B2/89, dated 8.7.1989.

- I. soon after the receipt of judgement copy under Rule 100(1) ix of Criminal Rules of Practice and where there are acquittals and inadequate sentences passed and where there exist good grounds for Appeal and Revision, advise the SP/CP accordingly by furnishing details and specific reasons.
- J. attend the review meetings of the Director/Joint Director Prosecution.
- K. attend the meeting at request of the CP/Addl. CP/Jt.CP/DCP, Zonal IG/DIG/SP without prejudice to the court work. Such meetings should be held by the officers on Saturdays or Sundays or Court holidays.

DOP Memo No. 1323/ A2/DOP/91 dated 5.12.1991.

- L. tender legal advice in writing within a week on cases referred to him by SP/Addl. SP after perusal of concerned records and discussions with officials if he considers it necessary.

DG & IGP Circular Memo No. 855/A2/91, dated 27.8.1991.

Duties of Senior Asst. PP and Assistant PP

- 8-A. Conduct the prosecution in the cases filed by the Police and takes every possible legal action for successful prosecution of cases in public interest;
- B. give his written opinion or/and advice after perusal of the case diary and connected records and discussion with concerned IO and officials if necessary, the opinion should be sent in form 68 within a week after receipt of the CD file and report of IO in form 67.
- C. prepare draft charge sheets in the cases referred to him in B above after satisfying himself that the material available on record warrants a charge sheet. The charge sheet should be based on evidence against each accused with applicable sections of law in respect of each. If further probe or investigation is needed it should be informed in

writing to the IO. The report in form 68 should be sent only after replies to his comments or further probe is completed. The instructions to the Police in Order No. 479(5) of Chapter 28 and other orders in that Chapter and in this Manual may be kept in mind.

D. be responsible and vigilant in giving legal advice/opinion/draft charge sheet so as to avoid future complaints of negligence and irresponsible attitude;

E. oppose the bail applications after receiving necessary instructions that may be given by the concerned officials;

F. ensure that the witnesses attend the court as per schedule and NBWs are executed well in time by issuing suitable instructions to the concerned in writing. In case the concerned officer does not respond, the matter be reported to the SP/SDPO concerned under intimation to the Directorate;

G. report to the SP/Addl./Jt. CP under intimation to Director of Prosecutions in case there is no proper attendance in court by the concerned official and lack of interest in production of witnesses before the trial court;

H. discuss the priority of old cases pending prosecution in consultation with SHO/officials concerned and get the cases expedited in the court;

I. maintain cordial relationship with the court, police, and members of the Bar;

J. act in a fair and impartial manner in discharge of duties towards court, police and other departments;

K. assist the court with his fairly considered view as the court is entitled to have the benefit of prosecuting officers specialized expositions;

L. take all necessary legal steps to ensure that the court does not close the cases on account of non-production of witnesses;

M. consult the senior prosecuting officer and seek advice on cases involving legal complications/expertise;

N. attend the meetings held by the Director, Joint Director and Deputy Director;

O. attend at request on non-court working days the review/crime meetings held by the Zonal Inspector General/DIGP and SP whenever convened and furnish the required information, appraise the problems faced in the conduct of prosecution or securing attendance of witnesses to the court;

P. render timely advice to the Superintendent of Police after perusing the certified copy of judgements whether there is a fit case to prefer an appeal, while furnishing detailed reasons recorded against acquittal or insufficiency of sentence.

DOP Circular Memo No. 145/A2/91, dt. 6-9-1991.

Duties of Deputy Director

9-A. Tender legal advice to the SP/CP and other departments of the Districts;

B. inspect and supervise offices of Additional Public Prosecutors Grade-II and other subordinate Prosecuting Officers in the District;

C. advise in the matter of Revisions and Appeals against the decisions of Magistrate Courts;

Duties of Joint Director

10-A. Tender legal advice to the Zonal IG/DIG/CP Hyderabad;

B. inspect and supervise offices of Additional Public Prosecutor Grade-I, Deputy Directors of Prosecutions and other subordinate Prosecuting Officers within jurisdiction;

D. advise in the matter of preferring appeals and revisions against the decisions of Additional Sessions and Assistant Sessions Courts.

Duties of Additional Director

11-A. Oversee the supervision of prosecution zone wise in the State;

B. be inspecting and supervising officer for Public Prosecutors and Joint Directors of Prosecutions and other subordinate Prosecuting Officers within the State;

C. advise the Government in the matter of preferring Appeals and revisions against the decision of Sessions Courts falling within jurisdiction;

Duties of Director of Prosecutions

12-A. He is the Head of the State Prosecution Department and tenders legal advice to the Director General of Police and other Government Departments;

B. He shall liaise with the office of the Advocate General and Public Prosecutor of the High Court and advise the State Government in the matter of preferring appeals against the decisions of the High Court to a larger bench of the High Court or the Supreme Court;

C. He shall be the controlling officer for the Department and also exercise all residuary powers of the Department not specified elsewhere;

D. He shall be the supervising and inspecting officer for all the offices of the department and competent to issue administrative instructions and initiate appropriate administrative action as deem fit for effective discharge of their duties by all Prosecutors under his control.

Commencement of Prosecution

574. Trial of a case commences after cognizance is taken with hearing for framing charges by the Magistrate or the Sessions Judge (Sections 190, 193, 207, 226, 228 and 240 CrPC). When the case is posted for examination of witnesses, the court should be requested for summons after consulting the Prosecutor. It should be ensured that the number of witnesses is limited only to those who can be examined and avoid number of officers of the same department being summoned on a particular day. The summons obtained or issued should be served and the served copy of the summons returned to the court well in advance.

Examination of witnesses in Court

575-1. The handling of witnesses in Court calls for an attitude and technique different to that employed in the interrogation of persons during an investigation. While the investigator seeks to discover the author of a crime and the manner of its perpetration, the prosecutor aims at establishing the guilt of the person known to be the offender as the result of the investigation. The IO has an important role to play even though the Prosecutor is responsible for proper prosecution of the case.

2. It must not be the prosecutor's object to secure the conviction of accused persons by any means. His true function is to thoroughly study the case, marshal the facts and to assist the Court in administering justice on the basis of admissible legal evidence and placing before the court all evidence, circumstantial and oral in a cogent manner, and help the court to interpret the evidence in the light of appropriate case law. It is certainly the duty of the Prosecutor to ensure prompt trial and not concede for too many adjournments, or to ask for adjournments himself without a cause.

3. Examination of witnesses in Court is governed by the provisions of the Indian Evidence Act. The party that calls him first examines a witness. This is called his examination-in-chief. The opposite party is then entitled to cross-examine him, after which he may be re-examined by the party calling him, if it so desires.

4. Examination and cross-examination must relate to relevant facts, but the cross-examination need not be confined to the facts to which the witness testified in his examination-in-chief. The re-examination should be directed only to the explanation of matters referred to in the cross-examination. If, however, any new matter is, by the permission of the Court, introduced in the re-examination, the opposite party may further cross-examine the witness on that point.

5. It is essential that the IO produces witnesses in advance so that prosecutor prepares his witnesses before the trial begins. The witnesses have several psychological barriers and complexes including fear, apart from ignorance of court proceedings or Law. The preparation should consist of giving confidence to him, refreshing the memory of each witness and in instructing him as to how he should behave in Court and answer questions that may be put to him by the defence lawyer in cross-examination. He should be cautioned to keep his temper, to answer questions clearly and in natural manner, and not to volunteer more information than is asked of him. A timid or nervous

witness would need encouragement, while a self-opinionated, loquacious one, must be cautioned against making his answers unnecessarily long or speaking about matters on which he has not been questioned.

6. During his preliminary interview, the prosecutor must make it a point to cross-examine his witnesses. This would help them to face the defence lawyer's cross-examination in the Court, with confidence.

7. There should, however, be no attempt to tutor witnesses. A tutored witness is apt to perjure himself in Court and damage even a good and true case. But, if the memory of witness is refreshed, that will advance the cause of justice. It is emphasized that this will largely depend on the Investigating Officers having recorded statements truthfully, in the language of the witnesses.

8. The prosecutor must not produce in Court more witnesses than are actually essential to prove his case. No particular number of witnesses is required for the proof of any fact (section 134 of the Evidence Act). It is the quality and not the quantity that matters.

9. After a prosecution witness has entered the box, the very first thing that the prosecutor should do is to put him at ease. It must be realized that few persons will be free from flurry when figuring as a witness in Court. It is, therefore, essential that the prosecutor should create confidence in his witness by his demeanour, by the form in which he frames his questions and by the manner in which he asks them. His tone should be modulated and reassuring. The witness should, as a rule, be permitted to tell his own story, but the prosecutor should make sure that all important facts are clearly brought out. He should avoid technical terms as well as difficult and high sounding words.

10. The prosecutor should handle his witnesses according to their nature. An over-zealous, garrulous witness for example, should never be allowed to tell his own story, for, by so doing, he is likely to expose himself to severe cross-examination. The effort should be to keep such a witness well to the point and compel him merely to answer the questions that are put to him. A stupid or timid witness will require great patience and good humour. Any display of anger only adds to his confusion.

11. It is a rule of evidence that no leading question should be put to a witness in the examination-in-chief, except with the permission of the Court. This does not apply to matters which are introductory or undisputed or which have been already sufficiently proved (section 142 of the Evidence Act). In fact, questions in respect of introductory and undisputed matters are best asked in the form of leading questions, as it will expedite the trial and tend to infuse confidence in the witness. Thus, instead of asking "what is your name?", "where do you live?", "What is your business?", etc., it is admissible to ask "Mr. A, you are a teacher in an elementary school in the village B?" and so on. When, however, the main issues of the case are reached, the rule against leading questions should be strictly adhered to, though, in exceptional cases, when ordinary questions have failed to elicit a detail, the Court may permit the lawyer to lead the witness to the extent necessary to make him recall the point omitted.

12. When a witness shows himself to be opposed to the side which has called him or adopts an attitude contrary to the truth, the Court may, in its discretion, permit the side to treat him as a hostile witness and cross-examine him (section 154 of the Evidence Act). But this permission will not be lightly given. The general attitude of the witness and his demeanour, and the trend of his evidence as a whole must indicate his hostility to his side or desire to conceal the truth. If the Court gives the permission, the side that called him may cross-examine him and put him questions to contradict him and impeach his credit.

13. The prosecutor must closely follow the cross-examination of his witness by defence, as that would often enable him to discover the accused's line of defence. He must take exception in time, to any improper or irrelevant questions that might be put by the defence counsel.

14. If the prosecutor finds that any of his witnesses has been made to give any misleading statement or that any point has been purposely left obscure, he should have it clarified in re-examination.

15. After the examination of his witnesses is completed, the Prosecutor has to prepare himself for the cross-examination of defence witnesses to rebutt effectively the evidence tendered for defence in examination-in-chief. This may be achieved by impeaching the credibility of the witness or his testimony with the material facts or information available in prosecution. Leading questions are permissible in cross-examination.

16. There is a marked distinction between discrediting the testimony and discrediting the witness. The method of cross-examination in the two instances would naturally be very different.

17. The testimony of a witness may be impeached by showing the scanty means he had for obtaining the correct knowledge of the facts spoken to by him or by showing that, though he had the best possible opportunity, he did not have the intelligence necessary to observe them correctly or the power of memory required to retain them so long. Again, two persons may witness an occurrence but give inconsistent versions of what they observed. Further, many persons enrich their personal experiences with the fabrications of their imagination or with what they have heard from others. It is one of the objects of cross-examination to separate fact from imagination and the personal observation of the witness from that of others.

18. The credit of a witness may be impeached $\frac{3}{4}$

A. by the evidence of persons who testify that they, from their knowledge of the witness, believe him to be unworthy of credit;

B. by proof that the witness has been bribed, has accepted the offer of a bribe or has received any other corrupt inducement to give his evidence;

19. It is not necessary to cross-examine every witness. When the prosecutor rises to cross-examine a witness, he should first ask himself the questions. "Has the witness testified to any thing that is materially against him? Is it necessary to cross-examine him at all? The cross-examination of a witness, when it is not really necessary, may go to elicit certain facts which are favourable to the opposite party.

20. Making much of trifling discrepancies should, for the same reason, be avoided.

21. The cross-examiner must be clear in his mind of his line of cross-examination and the facts he wants to elicit. Fishing questions are very apt to elicit wrong answers.

22. A skilful cross-examiner seldom takes his eyes from an important witness, while he is being examined by his adversary. His bearing, his manner of expressing himself, his movement of hands all help any intelligent and experienced observer to arrive at an accurate estimate of his integrity. During the examination-in-chief of a defence witness, the prosecutor should always be on the alert for an opening for his cross-examination and should try to detect the vulnerable spots in his narrative.

23. Bullying or threatening the witness seldom pays. It will often make the witness mentally defy the cross-examiner at once. If, on the other hand, the prosecutor's manner is courteous and conciliatory, the witness will soon lose the fear, witnesses generally have of the cross-examiner and can almost imperceptibly be induced into revealing true facts.

24. The mistakes of a witness should be drawn out more often by inference than by direct questioning, because all witnesses have a dread of self-contradiction. The loquacious witness should be allowed to talk on, and he will be sure to involve himself in difficulties. He should be encouraged and led by degrees into exaggeration that will conflict with common sense.

25. The down-right liar should be encouraged to exaggerate the way he thinks the prosecutor does not want him to. He will soon be found stretching his imagination to such an extent that nobody will believe a word of what he says.

26. If the manner of the witness and the wording of his testimony bear the marks of fabrication, it is often useful to ask him to repeat his story. He will usually repeat it in almost identically the same words as before, showing that he has learnt it by heart. Of course, it is possible, though not probable, that he has done this and is still telling the truth. An examiner should then test him by taking him in the middle of his story and jumping him quickly to the beginning and then to the end of it. If he is speaking by memorizing the version, he will be sure to succumb to this method.

27. If the prosecutor obtains any favourable answer from a witness, he should leave it there and pass quickly to some other question. The inexperienced examiner who repeats the questions, with the idea of impressing the answer upon his hearers, will have to blame himself if the witness corrects or modifies his answer.

Public Prosecutors and Assistant Public Prosecutors

576-1. The Public Prosecutor appears for the State and conducts prosecution in all session's cases, contests bail applications, and argues appeals and criminal miscellaneous petitions in the Sessions Court and gives advice on legal matters. The organization and functions of Directorate of Prosecutions and all procedures is given in Order No. 573.

2. In a case in which the services of legal advice of PP, Addl. PP or APP is sought the IO should send the case diary file along with a report as indicated in Order No. 573 in advance to him and also give him the necessary personal briefing before commencement of trial. He should personally attend Court on all dates of hearing invariably unless he is held up on any other urgent duty, in which case one of the ASI, or HCs who assisted in investigation or specifically nominated to follow up a case in the court should be sent to Court with the case diary in time to meet the Assistant Public Prosecutor. The investigating officer should assist the Assistant Public Prosecutor in briefing witnesses, conducting the prosecution, filing documents and exhibiting the various items of property, and see that the prosecution case is presented in the best possible manner. He must also make enquiries and furnish material to the Prosecutor for the cross-examination of defence witnesses.

3. Security proceeding cases must be conducted in the Executive Magistrate's Courts invariably by an Officer not below the rank of Inspector and who is not the I.O. in that case. They may, if necessary, requisition the services of APPs in important cases.

4. When a case of serious rioting or important murder or dacoity or any other case of public importance is under trial, the Superintendent of Police and the Sub-Divisional Officer should keep themselves in touch with the progress of the case and take personal interest in proper conduct of its prosecution by helping the PP with all available evidence.

Privilege in Respect of Official Records

UO Note 6929/5 8-1, dated 14-4-1958 of Law Department

577. The Government has issued instructions regarding the procedure to be adopted when a Government servant is summoned by a Court to produce official documents for the purposes of giving evidence:

1. The law relating to the production of unpublished official records as evidence in courts is contained in sections 123, 124 and 162 of the Indian Evidence Act. The pronouncements of the Apex Court and AP High Court should be borne in mind while dealing with this matter.

2-A. For the purposes of section 123, the expression "Officer at the head of the department" means the Minister in charge or the Secretary to Government concerned (AIR 1961 SC 493). Before claiming privilege, the head of the department should examine the relevant document carefully and his affidavit should contain an indication as to the nature of the document, as to why privilege is claimed, what injury to public interest is apprehended by its disclosure or what affairs of State are involved. A bare statement by the head of the department that, in his opinion, the disclosure would be against public interests is not enough. He should indicate the nature of the suggested injury to the public interest, and also put in a statement saying that he has considered the document carefully and has come to the conclusion that it cannot be produced without injury to public interest.

B. The mere fact that the officer as the head of the department does not wish the documents to be produced is not an adequate justification for taking objection to their production. Production of documents should be withheld only when the public interest would, by their disclosure, be injured, or where disclosure would be injurious to national defence or to good diplomatic relations or where the practice of keeping a class of documents secret is necessary for the proper functioning of the public service. Privilege is not to be claimed on the mere ground that the documents are State documents or are official or marked confidential or, that their disclosure, would result in Parliamentary discussion of public criticism or would expose inefficiency in the administration or tend to lay a particular department of the Government open to a claim for compensation.

C. It has been held that, it is desirable, but not indispensable, that the records should be sent in a sealed cover through an officer of the department claiming privilege and that the statement of the head of the department would be considered conclusive and the privilege be upheld, except for compelling reasons to the contrary. Hence the appropriate working principle under section 123 is to produce the records in question, in a sealed cover and raise the claim of privilege, setting out the grounds in an affidavit in Form I appended to this Order.

D. A public servant other than head of the department, who is summoned to produce an official document, should first determine whether the document is in his custody and he is in a position to produce it. In this connection, it may be stated that all official records are deemed in the custody of the head of the department and it is only under special circumstances that an official document can be said to be in the custody of an individual public servant. If the document is not in the custody of the public servant summoned, he should inform the court accordingly. If, under any special circumstances, the document is in the custody of the public servant summoned, he should next determine whether the document is an unpublished official record relating to affairs of State and whether privilege under section 123 should be claimed in respect of it. If he is of the view that such privilege should be claimed or even if he is doubtful of the position, he should refer the matter to the head of the department who will issue necessary instructions and will also furnish the affidavit in Form I. The public servant, who is to attend a Court as a witness with official document, should where permission under section 123 has been withheld, be given an affidavit in Form I, duly signed by the head of the department. He should produce it when he is called upon to give his evidence and should explain that he is not at liberty to produce the documents before the court, or to give any evidence derived therefrom. He should, however, take with him in a sealed cover the papers which he has been summoned to produce.

3-A. A public servant who is summoned to produce an official communication which is made to him in official confidence should first determine whether the public interest would suffer by its disclosure. He shall not be compelled, if he considers it so, he should claim privilege under section 124 in Form II appended to this order. In case of doubt, he should seek the advice of the head of the department. When he is not attending the court himself to give evidence, he shall have the claim of privilege in Form II sent to the court along with the document. The person,

through whom the document is sent to the court, should submit the affidavit to the court when called upon to produce, the document. He should take with him the document which he has been called upon to produce but should not hand it over to the court unless the court directs him to do so. In such a case, privilege should be claimed under section 124 and the document should not be shown to the opposite party, nor should it be marked as exhibit in any proceedings. If the document is not in his custody, he should inform the court accordingly.

B. The basic principle for deciding whether a particular document is a communication made in official confidence to a public officer or not, is whether the document produced or the statement made was under the process of law or not. If the former is the case, it would be difficult to say that a document produced or statement made under the process of law is a communication made in official confidence. The question whether a communication was made in official confidence is for the court to decide.

4. The legal position with regard to section 162, as enunciated by the Andhra Pradesh High Court, is given as, "It is obligatory for a person who has been summoned to produce a document in his possession or control to bring it into Court even if there is any objection to its production or to its being admitted in evidence under section 123 or 124 of the Evidence Act. The court will decide on the validity of his objection and he is not entitled to withhold the evidence if the objection is overruled".

FORM I

AFFIDAVIT IN RESPECT OF A CLAIM OF PRIVILEGE UNDER SECTION 123 I.E. ACT IN THE COURT OF

Writ Petition No./Suit No. of 2001

I, (here insert the name, designation and address of the person making the affidavit), do hereby solemnly affirm and state as follows:

A summons bearing No. dated issued by the Court in writ Petition/Suit No. of 2001, (..... vs), has been received on, requiring the production in the said Court on, of document stated below. I, as the head of the department, am in control of, and in-charge of, its records. I have carefully considered them and have come to the conclusion that they are unpublished official records relating to affairs of State and their disclosure will be prejudicial to public interest for the following reasons:

LIST OF DOCUMENTS SUMMONED

I do not, therefore, give permission to anyone under section 123 of the Indian Evidence Act, 1872, to produce the said documents for inspection or to give any evidence derived therefrom.

Solemnly affirmed at this day of 2001

Name and designation of the Person
Making the affidavit.

FORM II

AFFIDAVIT IN RESPECT OF A CLAIM OF PRIVILEGE UNDER SECTION 124

IN THE COURT OF

Writ Petition No./Suit No. of 2001

I, (here insert the name, designation and address of the person making the affidavit), do hereby solemnly affirm and state as follows:

A summons bearing No. dated issued by the Court of in Writ Petition/Suit No. of 2001 (..... vs), has been served on me on, requiring the production in the said Court on of the documents stated below. I have carefully considered them and have come to the conclusion that they contain communications made in official confidence and I consider that the public interest would suffer by their disclosure for the following reasons:

LIST OF DOCUMENTS SUMMONED

I, therefore, claim privilege under section 124 of the Indian Evidence Act, 1872.

Solemnly affirmed at etc., this day of..... 2001

Signature and designation of the Officer
making the affidavit

Action on breach of a security bond:

578. When a person on a security of any kind is prosecuted for an offence involving a breach of the conditions of the bond, report in that regard should be made to the court in writing, so that it may, in the event of conviction order the confiscation of the security.

579. When a habitual cheat or professional swindler is produced before court in a case of cheating under section 420 of the IPC, or when an old offender is prosecuted in a case of theft involving property worth less than Rs.250/- representation must be made to the Court against sanction of permission to compound the offence, on the ground that the accused is more a danger to the larger public than to the complainant in the case.

Delay in the Disposal of cases in Courts

580-1. Delay in the disposal of criminal cases are mainly caused by:

- A. piecemeal examination, non-production or absence of witnesses including official witnesses and failure to hear the case, from day to day,
- B. absence of police or prosecutor or witnesses on the day fixed for hearing,
- C. Absence of accused on bail and non-production of accused from Jails,
- D. Absence of defence counsel,
- E. Frequent adjournments delaying tactics by the defence,
- F. The posts of Magistrate being vacant,
- G. Heavy schedule in a court,

2. Each one of these reasons/situations should be tackled by a quick and thorough appraisal of the reason or reasons for delayed trials by the prosecution and Investigating Officials particularly, SHO and concerned SDPO. In each case there will be only one or two reasons out of the above that hold up the trial. The specific reason should be tackled promptly effectively and by pursuing the matter vigorously at the level of the trial or higher courts. Closest understanding and cooperation is required between prosecution staff and the police. The SP, Dy. Director Prosecution, PP and Additional PPs should review individually and together all pending cases and launch an effective strategy. If, for example, the cases are not progressing due to heavy schedule the matter should be brought to notice of District and Sessions Judge. If any case is held up for appearance of official witness the SP should make all arrangements to see that he is produced. If there are stay orders arrangements must be made to get them vacated. If accused is absconding an all out drive should be launched to trace them. The monitoring of each case on trial is that of SP/Addl. SP and Dy. Director Prosecution concerned. In addition, SP/Addl. SP, DCP, SDPO, Inspector shall have daily monitoring of service of summons or execution of warrants. The same shall be done by SP, SDPOs and SHOs.

3. Police Officers should be punctual in attending court. If the IO is unavoidably detained on any other important work, he should arrange to send the ASI or HC with the case diary to attend the court in time. There can generally be no excuse for the absence of prosecuting officers, as dates of hearing are fixed by courts in consultation with them and more or less a Prosecutor is earmarked for each court. Reasonable time should be allowed for service of summonses and Police Officers on their part should see that summonses are served on the witnesses and they appear in court on the date fixed for hearing in addition to returning the served summons to court well in advance or at least

a day before that date. Action may also be taken under section 174 of the Indian Penal Code, against witnesses who fail to attend the court in spite of the service of summonses. Preference should always be given to committal work (section 193 CrPC) over other work. Pendency can be considerably reduced and disposal of cases expedited by cooperation with the magistracy. Police Officers summoned as witnesses must attend and depose after proper preparation and consultation with the PP or APP. Absence from court on the day summoned should be taken serious note of by senior officers.

Pendency of cases with Magistrates

581-1. It is the responsibility of the SHO and Inspector to take steps to obtain proceedings in all cases from Magistrates. While discussing pendency in courts with SDPOs during the monthly crime meeting, the Superintendent of Police will also ensure that all pending proceedings have been obtained from courts.

Disposal of petty cases

2. The pendency of petty cases has an overall adverse impact on law and order besides being a source of harassment of the accused. Almost all cases can be disposed off the same day or next day as the procedure is extremely simple and generally they are all admission cases. The facility of compounding is also provided for traffic violations. The SHO of L&O Police and Traffic Police should ensure production of accused where it is necessary or laid down and assist the courts in quick disposal.

3. The SP and DCP Traffic are responsible for laying down strict procedures for levying, collection and deposit of fine amounts in the traffic violations. The prescribed registers and records should be subjected to strict audit regularly, particularly from the point of view of adequacy of fines and their accounting.

Giving evidence in Court by Police Officers

582. The following are the guidelines to Police Officers for compliance:

1. Always appear in uniform and if belonging to CID or other organizations not required to wear uniform, in proper civil dress, when giving evidence in court.
2. Always salute the court if in uniform. If in plain clothes, salute in Indian style with folded hands (Namaste) when entering and leaving the witness-box.
3. Be attentive, never fidget.
4. Be calm and dignified while giving evidence, so as to impress the court and the counsel favourably.
5. While giving evidence, look straight towards the court.
6. When questioned by the defence counsel, never turn towards the prosecution counsel.
7. Do not answer any question without understanding it. If the question is not clear enough to be understood, mention it and politely ask the counsel to repeat it in a simpler form.
8. Do not answer a question with a counter question.
9. If you do not remember any fact, say so at once, rather than attempt a random answer.
10. Never show irritation and do not be offended if the cross-examiner questions you in a way you do not like.
11. If questions are unnecessarily vexatious or obnoxious, represent the matter to the court and seek its protection. Never quarrel with the counsel.
12. Carefully distinguish between what you know personally and what you may have heard from others.
13. In answering a question, do not give unnecessary information, e.g., if asked whether the colour of a certain article is white, do not say "No, it is black", say simple "No" or "Yes".
14. If you consider that some of your answers require an explanation which the counsel failed to elicit, you may, when both the sides have completed their examination represent the matter to the court.

15. Remember that all that the court wants to ascertain is the guilt or innocence of the accused, and not the intelligence of the witness.
16. Give no more details regarding the source of your information than "From information received, I did this or that".
17. Avoid lengthy answers as they furnish more material for cross-examination. Your replies should be concise.
18. Do not leave the court without its permission.
19. Read the deposition carefully prior to putting your signature on the recorded deposition. If anything is recorded in the deposition which you have not deposed, bring it to the notice of the court and get it corrected by the court.

Withdrawal of cases - Procedure

583-1. Section 321 CrPC lays down that the PP or APP may with the permission of court before the judgement is pronounced withdraw prosecution against any person in respect of one or more offences for which he is tried. Three requisites are laid down to make the withdrawal order by the court valid.

G.O.ms.112 Home, 10-1-1950, Govt. Memo No. 233039 Prisons-III/ 51-3 Home 31-1-1952.

A. The application for withdrawal should be filed by PP/APP who is competent to make the application; i.e. he must be in charge of the case;

B. The application should get the consent of the court before which the case is pending. The prosecutor has to apply his mind before and the decision to withdraw should be bonafide. The sanction of Central Government is necessary in respect of cases relating to executive power of the Union Government, cases handled by CBI, cases in which Central Government funds or Central employees are involved.

G.O.Ms.No. 1401, Home
7-4-1949

2. The Government has issued the following guidelines regarding the procedure to be adopted for withdrawal of the case

G.O.Ms.
No.54, Law LA&J, Home Court-B) Dept,dt.
30-2-2000

A. Cases of simple nature where the Superintendent of Police can initiate withdrawal shall mean summons cases as defined under section 2 (w) of the Cr.P.C. and cases that can be tried summarily under Chapter XXI of Cr.P.C.;

B. In all other cases it is only the District Collector and District Magistrate or the State Government that can initiate withdrawal of cases;

C. The District Collector and the District Magistrate should obtain approval of the Government before authorizing or directing the Public Prosecutor or the Assistant Public Prosecutor concerned to withdraw from the prosecution of any case triable by a court of Session;

E. The Superintendent of Police or the District Collector and the District Magistrate, as the case may be, shall obtain legal opinion of the Public Prosecutor or the Assistant Public Prosecutor concerned before authorizing or directing any withdrawal from the prosecution;

F. The Public Prosecutor or the Assistant Public Prosecutor in charge of the case has to consult the Superintendent of Police or the District Collector and the District Magistrate, as the case may be before seeking permission of the Court for withdrawal of prosecution of any person;

G. The Provision of section 321 of the Cr.P.C. and the principles governing the same as laid down in binding judicial precedents shall be kept in view by the Public Prosecutor or the Assistant Public Prosecutor in advising withdrawal or withdrawing from the prosecution of any person.

3. However, the prosecutor is a minister of Justice and shall not act as a subordinate to the above authorities.

Procedure for filing appeals against acquittals and revision petitions in the High Court

584-1. SP/CP and Addl. DGP, CID in respect of cases filed by the CID, should send proposals for filing appeals against acquittals and revision petition within a month from the date of judgement direct to the Public Prosecutor, High Court of Andhra Pradesh, marking a copy to the District Magistrate, the Zonal Inspector-General/DIGP, DGP and to the Government. The Public Prosecutor, High Court of Andhra Pradesh should examine the proposals and furnish his opinion to the Government leaving a clear month for the Government to issue necessary orders. Papers relating to appeals or revisions should at all times be treated as very urgent.

2. In important cases and cases not instituted by the police, the proposals should be sent to the Public Prosecutor, High Court of Andhra Pradesh, through the Head of the Department concerned within a month of the date of Judgement, marking a copy to the District Magistrate and the Government. The District Magistrate should send his remarks on the proposals direct to the Government with a copy to the Public Prosecutor, High Court of Andhra Pradesh. In sending proposals, the following instructions should also be noted.

A. Two copies of the Calendar and Judgement of the Court or Courts should be sent. The judgement copies need not be on stamp paper. The calendar and judgements should be typed on thick white paper in double spacing with wide margin and shall contain the names of all the accused. The other correspondence should be separately typed.

B. Where the calendars and judgements of two courts have to be sent, each should be typed separately leaving enough space on the top for affixing the court fee stamps. Each copy should be certified and signed at the end as true copy. In all cases of capital charges, i.e., section 302, IPC, etc., three certified true copies of the judgements certified by departmental officers or printed copies should be sent along with the proposals.

Criminal Appeals - High Court - Better Representation

585-1. Copies of notices in all criminal appeals are sent by the High Court to Superintendent of Police/CP. They should, in consultation with the Public Prosecutor, decide whether the deputation of a Police Officer is necessary. Intimation to the High Court should be sent if an additional set of records is required. In criminal revision cases, notices are sent by the Public Prosecutor to the District Magistrate, who in some cases forwards them to the Superintendent of Police. Ordinarily, in revision cases, deputation of an Officer may not be necessary.

2. Date of Hearing:

A. Criminal appeals and referred trials to be heard before a Bench on a Monday will be posted in the rough list on the previous Tuesday, when intimations will be sent to the Superintendent of Police, in cases where they have asked for such intimation, and only after receipt of such intimation from the Public Prosecutor an Officer be deputed to proceed to Hyderabad to brief him.

B. Criminal revision cases are ordinarily posted before a single Judge and the approximate date of hearing in such cases is known seven days before the hearing.

C. Sometimes, Officers come up on the date given in the notice issued by the High Court, but this date is only a formal one and no case ordinarily comes up for hearing on the date given in the notice.

3. In criminal appeals, revision petitions and bail applications coming before the High Court, the Public Prosecutor or the Additional Public Prosecutor, as the case may be, should obtain instructions from the concerned Superintendent of Police, marking copies of such correspondence to the District Magistrate and Zonal IG/DIGP to keep them in the know of things, and in respect of cases of twin cities from the Commissioner of Police and from the Addl. DGP, CID in respect of their cases.

4. In cases in which the High Court has released an accused person on bail without notice to the Public Prosecutor and there are adequate grounds for moving for cancellation of the bail, the High Court may be moved in the matter. Public Prosecutor and / or the Director of Prosecutions may be consulted in all matters of importance.

A. In every appeal to the High Court which is of importance and in which the record is voluminous a Police Officer, with detailed personal knowledge of the case, should be sent to brief the Public Prosecutor High Court, Hyderabad. It is especially desirable that he should be fully briefed in appeals against convictions, in important cases based on circumstantial evidence.

B. Immediately on deciding to depute a Police Officer to brief the Public Prosecutor in cases of criminal appeals and referred trials, the Superintendent of Police should see that printed records are obtained direct from the Registrar of High Court and that the Police Officer is deputed to meet the Public Prosecutor with the printed records.

C. The date of hearing of a Government case in the High Court, especially in its early stages should be communicated in time to the head of the department concerned by the Law Officer in-charge of the case so that the Head of the Department may depute a departmental officer to instruct the law officer suitably. These orders apply to civil and criminal cases in the High Court.

◆ 2015 Police Computer Services & Standardisation, AP Police Department.



Andhra Pradesh Police Department

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CHAPTER 33

Station Crime Records

Crime Records

586-1. Crime records are an integral part of criminal intelligence system without which no police organisation can function. It is therefore necessary that all information relating to all crimes, criminals, properties and methods of commission of crime is collected, recorded and used on a day-to-day basis. The complexities and new forms of crime, coupled with the advancement in information technology, transport and communications have given a new dimension to crime prevention and detection. Effective anti-crime strategy of the police needs up-to-date data on crime, criminals, properties and methods. The word properties should be understood in a wider sense not only to include stolen properties but also immovable properties, articles, weapons used etc. The crime, criminal information system as evolved by NCRB applied to local conditions and practices obtaining in the State should be the basis of all records, registers, and forms to be maintained. The various categories of police stations are the points where the information for the records system is generated. They are also the end users of the system. It is therefore necessary that the SHOs of all categories of police stations are thorough with the system so as to derive fullest benefit.

2. Crime-criminal information system aims at recording of all information regarding all crimes, criminals, properties involved, methods employed, disposals etc. to enable the police to prevent and detect offences and bring offenders to justice. It is particularly necessary in respect of the persons who have a tendency to repeat the same crime or some other crime. The system in its operation acts as a deterrence to potential and existing criminals from leading a life of crime. It helps in keeping track of criminals as also to know the antecedents of persons. It is, if properly maintained, a useful and necessary tool as effective as any direct tools such as science and technology.

3. The criminal records indicated in this are to be maintained by all police stations.

4. The National Crime Code book circulated by NCRB and the Integrated Investigation Forms 1 to 8 devised by NCRB constitute the basis for maintenance of these records. The upkeep of the records either manually or in a computerised system is the primary responsibility of the police officers at all levels particularly the SHOs and the Investigating Officers.

5. The records should be maintained in the proforma devised for the purpose using the software and loaded into the computer systems. The back up arrangements should be ensured. Constant updating of the records should be done. The records indicated below should be maintained manually until such time the entire CIS data is safely stored in appropriate computer systems in the State. The officers in charge of the records should however enter the data in the computer system provided to them while maintaining the important records manually.

6. The following orders apply chiefly to the District Police. Special orders applicable to the Railway Police are given in the Chapter on Railway Police. The records indicated in this Chapter are to be maintained by local police station and CCS for the area covered by it.

7. The crime records maintained in the police stations are confidential records with access limited to authorised officers only and to the courts when required.

Station Crime History

587-1. To facilitate the study of crime and criminals, the Station Crime History shall be maintained in five parts in all Police stations, and Central Crime Stations.

Part I - Crime: Occurrence and Classification Register

2-A. The Part -1 (Form 75) of the Station Crime History will be known as crime occurrence and classification register. All true cases of crime, coming under the classes of crime as shown in the Order 588 below, reported and registered in the police station including attempts to commit these offences, should be entered in this register, in the order of their occurrence chronologically, in the following manner.

B. In making entries in this register, the classification given in the National Crime Code book should be followed. The major and minor heads referred to in the Crime Code book should be entered in column 1 of this register in addition to the other information relating to crime number, sections of law etc. The method as described in the National Crime Code book should be entered in column 8 of the register. In the event of a particular method not found in the Crime Code book but is found in the classification of crime indicated below, it should also be entered. There is no harm in first entering the method as found in the Crime Code book and adding the other classifications applicable to the case from the list given below. The crime details which are ascertained after preliminary investigation and which are incorporated in the crime details Form 76 should be entered in column 9 along with the other information. The details about the criminal or suspect should also conform to the Codebook while making entries in the columns relating to accused or suspect. The existing classification in the State, which is updated, is retained and should be followed in all entries to be made in the registers.

Classes of Crime

588-1. Adulteration: Drugs

2. Adulteration: Fertilizers and pesticides
3. Adulteration: Food products and edible oils
4. Adulteration: Unclassified
5. Agricultural implements: Theft of
6. Animal skins, tusks, horns, nails etc.
7. Antiquities
8. Archeological sites: From
9. Art objects
10. Auger
11. Automobiles I: Cars
12. Automobiles II: Motorcycles
13. Automobiles III: Scooters
14. Automobiles IV: Three wheelers
15. Automobiles V: Trucks, Buses and Heavy Vehicles
16. Automobiles VI: Medium vehicles LCV, Minibuses and Vans
17. Automobiles VII: Road Rollers, Heavy Equipment carriers, Tippers
- 17-A. Automobile VIII Accessories: Stereos, radios, stepneys, wheels, horns, Lights etc.
18. Banks: Burglary
19. Banks: Diverting attention
20. Banks: Frauds
21. Banks: Robbery
- 21-A. Banks: Dacoity
22. Bogus shares
- 22-A. Bogus Certificates
23. Bogus visitors
24. Bolt hole
25. Breach of Trust Criminal I: Public Funds
26. Breach of Trust Criminal II: Unclassified
27. Breach of Trust III: Corporations
28. Bungalow
29. Bunk: from
30. Buses, Bus Stands and Running Buses: from
31. Carts: from
32. Carts: of
33. Cattle I: Buffaloes
34. Cattle II: Donkeys
35. Cattle III: Goats or sheep
36. Cattle IV: Horses
37. Cattle V: Oxen for sale or ransom
38. Cattle VI: Oxen for skin or meat
39. Cattle VII: Pigs
40. Cheating I: Bogus agent
41. Cheating II: Confidence trick or doubling notes

42. Cheating III: Gilt Jewels
43. Cheating IV: Personation
44. Cheating V: Unclassified
45. Cheating VI: Chit Funds and NBFCs
46. Cheating VII: Stock Market and Shares
47. Cheque fraud
48. Children: from
49. Children: of
50. Chisel: used
51. Clothes: Cloth bundles, readymade garments
52. Coconuts: Theft of
53. Computers
54. Computers: Components
55. Computers: Frauds
56. Computers: Hacking
57. Computers: Software
58. Counterfeit coins
59. Counterfeit notes
60. Counters – All types of cash counters
61. Credit cards - Fraudulent use of
62. Cycle - Misappropriation of
63. Cycle - theft of
64. Cycles - from
65. Dacoity - Highway
66. Dacoity - House
67. Dacoity - Miscellaneous
68. Day house breaking
69. Dhobi - misappropriation
70. Door I: Lift off hinges
71. Door II: Lifting latch by inserting hand or implement
72. Door III: opening door not locked
73. Drugging or poisoning
74. Dynamo Belts
75. Dynamos
76. Eaves
77. Electric Bulbs
78. Electric goods other than bulbs, meters, pumpsets and starters
79. Electric Meters
80. Electric pump set: Parts
81. Electric Starters
82. Electronic goods other than computers, music systems & televisions
83. Explosive substances
84. Explosives
85. Extortion
86. Factories - from
87. Fairs and festivals
88. Firearms
89. Forest 1: Timber
90. Forest 2: Wild life
91. Forgery: checks & Instruments
92. Forgery: documents
93. Forgery: Passports and Travel documents
94. Forgery: unclassified
95. Grain
96. Gramophones
97. Hospitals: from
98. Hostels, hotels, boarding houses: from
99. Hundi
100. Insurance: Fraud
101. Insured letters and parcels
102. Kidnapping I: Women, girls and children
103. Kidnapping II: For ransom or blackmail
104. Kidnapping III: Terrorist
105. Lanterns, torch lights, lamps
106. Laundries
107. Lock I: Breaking lock or fastening

108. Lock II: False key or picking
109. Manhole covers, Metal scrap
110. Misappropriation I: Public Funds
111. Misappropriation II: Corporate funds
112. Misappropriation III: unclassified
113. Money Laundering I: Tax Evasion
114. Money Laundering II: Drug Trafficking
115. Money Laundering III: Organized Crime
116. Money Laundering IV: Currency Frauds
117. Money Laundering V: Corruption
118. Money Laundering VI: Antiquities & cultural property
119. Money Laundering VII: Smuggling
120. Money Laundering VIII: Unclassified
121. Mosques and churches - from
122. Motor cars and parts of
123. Motor cars: from
124. Murder I: for gain
125. Murder II: contract killing or hire
126. Murder III: Terrorist
127. Music systems
128. Music: discs, tapes and records
129. Musical Instruments: of
130. Organised crime I: Contract killing
131. Organised crime II: Extortion
132. Organised crime III: Kidnapping for ransom
133. Organised crime IV: Land and Real Estate
134. Organised crime V: Prostitution
135. Organised crime VI: Gambling
136. Organised crime VII: Drug Trafficking
137. Organised crime VIII: Smuggling
138. Organised crime IX: Procurement of Arms and Explosives
139. Organised crime X: Employment rackets
140. Organised crime XI: Election Rigging
141. Organised crime XII: Unclassified
142. Other than electric bulbs, meters, electric pump sets and starters
- 142-A.Passport frauds
143. Photographic goods
144. Pick pocket
145. Poisoning
146. Post Offices: from
147. Postal frauds
- 147-A.Poultry: Thefts, robbery, dacoity, mischief pertaining to birds, eggs.
148. Radios and Transistors
149. Robbery: Highway
150. Robbery: House
151. Robbery: Hijacking of trucks
152. Robbery: Miscellaneous
153. Robbery: Train
154. Roof Hole
155. Scaling (wall or roof)
156. School - from
157. Servants
158. Sewing machines
159. Shops: from
160. Shops: shutter lifting
161. Snatching from sleeping persons
162. Snatching jewels other than from sleeping persons
163. Stolen property: Possession and receipt of
164. Stupefying drugs
165. Televisions
166. Temple: From
167. Threshold hole
168. Trafficking in Children
169. Trafficking in Women
170. Typewriters
171. Unclassified

- 172. Vessels
- 173. Wall hole
- 174. Watches, clocks and time-pieces
- 175. Water meters
- 176. Window I: Bars removed or bent
- 177. Window II: Frame removed
- 178. Window III: Inserting hand or stick
- 179. Wire

589-1. The above list should be read as part of the classification in the National Crime Code book. Wherever the meaning of the entry in the above list and that of the National Crime Code book is similar, the language used in the National Crime Code book should be used. Wherever any of the above entry is not found in the Codebook the entry as in the above list should be used. The entries in this register should be made at every stage and the integrated investigation forms filled up by the IO and sent to the DCRB.

2. The nature of property stolen shall be detailed in column (6). If it is not a conventional property offence, the value or amount involved in cheating or misappropriation or fraud or organised crime as the case may be has to be entered. In case of offences against persons, the value of property involved and description thereof shall be noted. It must be understood that all crimes involving property and all crimes against persons involving monetary gain or loss are to be covered and recorded, apart from serious offences of murder by organised groups. The classification as applicable to the entries of each case shall be noted in column (8) in the language indicated in the above classifications. If any one case falls within two or three classifications all the classifications applicable shall be noted. In column (9) any useful information shall be noted in respect of the offence including the offences against persons or any discovery made during the investigation, including the names of the known or suspected accused, with grounds of suspicion, any peculiarity in the commission of the offence, such as the use of fire-arms or poison, and also the result of the case. A red line may be used to divide the entries relating to each lunar month taken from the full-moon day.

3. A few blank pages shall be reserved after the entries relating to each year, to post the annual review and analysis of crime for the year. This analysis and review shall be drawn up by the Inspector of Police having jurisdiction.

4. The word "Casual" shall be added in brackets in red ink for the entries relating to offences committed by casual offenders.

5. Cases in which investigation is refused under section 157(1)(b) CrPC need not be entered.

6. At every stage of investigation, charge sheet or final report, court disposal or appeal when the integrated investigation forms are filled and sent to DCRB, this register should also be suitably updated.

Annual Review of Crime

590-1. An annual analysis and review of crime shall be undertaken for each police station in the jurisdiction covered by Inspector. The main objective of the review is to undertake a critical analysis of all crimes that have occurred in the police station, the offenders responsible, the source of unlocated crime, the activities of organised criminal gangs, or individuals responsible for series of crimes, the quality of preventive action and investigations the reasons for any unusual outbreak, and the specific method of dealing with them.

2. The review should specifically cover,

A. Critical and thorough analysis of crime and criminals, suggestions and directions to be pursued by the SHO and IOs.

B. Marked fluctuations of volume of crime and any special type of crime, special outbreak of crimes, activities of specific categories of criminals or criminal organisations, or organised crimes, terrorist crimes, areas affected, routes and circuit of criminal groups.

C. The probability of crimes occurring in different areas and forming a series in the area of the sub-division.

D. The quality of preventive action under the security sections, effectiveness of beats and surveillance as well as the specific directions regarding the future.

E. Maintenance, accuracy updating and use of criminal records system and information and criminal intelligence.

F. Application and results of use of scientific aids and fingerprints.

G. Cases charge sheeted / referred after investigation, pendency in courts, reasons for acquittals and measures for successful disposal of the pending cases.

3. The study should be thorough and methodical to discern patterns of organised crime and other crimes.

4. The annual crime reviews of the police stations should be sent to the SDPO. After his approval of the reviews these should be entered in Part I of the Station Crime History of the PS. This process should be done before the end of January each year.

Part II - Crime Charts

591. Part II shall consist of a crime chart or charts showing village boundaries and the principal physical features of the station limits and of the adjoining areas to a distance of 10 to 15 km outside the station limits. A broad classification of the offence and the date of occurrence should be entered on the chart at the spot representing the scene of offence using the abbreviated classification symbols given below for convenience. One chart should be used for property offences and another for offences against persons if the incidence of all crimes is too heavy in the police station.

1. Class I M-Murder for gain
2. Class I MF-Murder due to faction
3. Class I MP-Murder due to political rivalry
4. Class I MC-Murder due to communal or caste
5. Class I MD-Dowry death
6. Class I MT-Murder by terrorists or organised crime
7. Class I D-Dacoity
8. Class I R-Robbery
9. Class II A-House breaking by auger hole
10. Class II B-House breaking by hole in the wall near bolt
11. Class II E-House breaking through eaves (over wall and under roof)
12. Class II H-House breaking by man-hole in wall
13. Class II L1-House breaking by breaking or opening block fastening
14. Class II L2-House breaking by using key to open lock
15. Class II R-House breaking by making hole in roof or through the stair case
16. Class II T-House breaking by making hole under threshold
17. Class II W-Housebreaking by removing or bending window bars or removing window frames
18. Class II M-House breaking miscellaneous
19. Class II S-Shop burglaries of all types
20. Class III A-Automobiles
21. Class III AP-Art pieces and Antiquities
22. Class III C-Cycle thefts
23. Class III E-Electronic or Electrical goods
24. Class III V-Vessel thefts
25. Class III P-Pocket Picking
26. Class III SI-Snatching from children
27. Class III S2-Snatching from sleeping persons
28. Class III S3-Snatching other than from children and sleeping persons
29. Class III M-Thefts - not classified
30. Class IV OS-Oxen stolen for sale or ransom
31. Class IV OK-Oxen killed for sale of skin
32. Class IV G-Goats or sheep stolen
33. Class IV M-Miscellaneous cattle thefts
34. Class V-Receiving stolen property
35. Class VI C-Cheating
36. Class VI F-Forgery and or financial frauds
37. Class VI M-Misappropriation and criminal breach of trust
38. Class VII-Making or passing the coin and notes
39. Class VIII A-Abduction
40. Class VIII AR-Arson
41. Class VIII C-Communal/Religion
42. Class VIII CR-Cruelty by husband/relatives
43. Class VIII E-Extortion
44. Class VIII H-Hurt and grievous hurt
45. Class VIII I-Criminal Intimidation
46. Class VIII R-Rioting
47. Class VIII SC-Atrocity against Scheduled Castes and Civil Rights

- 48. Class VIII ST-Atrocity against Scheduled Tribes and Civil Rights
- 49. Class VIII W-Wrongful restraint
- 50. Class IX A-Adulteration
- 51. Class IX E-Environmental Crimes
- 52. Class IX F-Fire arms
- 53. Class IX I-Immoral Traffic
- 54. Class IX N-Narcotics
- 55. Class IX E-Explosives
- 56. Class X P-Preventive Detention
- 57. Class X S-Security for good behaviour

II H III C IV OK

Sample Entry = -----or ---or ----
11-7 12/9 14-3

Note:- If an offence falls under two heads, e.g., burglary of a shop by breaking lock, it should be noted as II LI(S) and, if a cycle is stolen in that case, it will be indicated as II LI(S)(C). If there is a snatching from sleeping persons in a roof hole burglary, it will be noted as II (RS2). Likewise, a snatching falling under classification S3, coupled with violence will be marked IR (S3).

592-1. The object of the station crime chart is primarily to show where crime mostly occurs. The chart may be for a year, half-year, a quarter or a calendar month depending on the volume of crime. The SHO may have more charts for different classes of crime if the incidence in a PS is heavy to facilitate easy location.

2. A note giving the scale of the map, full moon dates, dates of important festivals and shandies, and names of the villages shall be entered on the map.

3. This shall be maintained by all police stations and Traffic and Railway Police Stations and Investigating Units.

4. A proper official map showing all physical features, villages, roads, canals, railway lines, hills etc. of the area covered by the PS including some parts of the neighbouring police station should be used for making entries.

Part III - General Conviction Register

593-1. Part III of the Station Crime History shall be maintained in Form 77. The names of the following persons shall be entered in the register.

A. Persons convicted of all offences entered in part I.

B. Persons convicted of offences under Chapter XII and XVII of the IPC, for which a punishment of three years and upwards is prescribed.

C. Persons convicted of offences under sections 489-A to 489-D of the Indian Penal Code (forgery of currency notes and bank notes).

D. Persons notified under the Habitual Offenders Act, convicted under section 12 of the Act and of any of the offences narrated in the schedule to the said Act.

G.O. Ms. 2483 Home, 19-11-1954

E. Persons bound over under section 109 or 110 of the CrPC.

F. Persons convicted under the Railway Property (Unlawful Possession) Act and Telegraph Wires (Unlawful Possession) Act and other special enactments like Immoral Traffic (Prevention) Act, 1986, Forest Act, Excise Act and FEMA, if their finger prints have been ordered to be retained by SP.

G. Unconvicted persons reasonably suspected to have committed offences with particulars of the offences, whose inclusion has been ordered by a Deputy Superintendent of Police/ACP. These shall be retained only so long as reasonable suspicion exists against them.

Note: After the names of casuals, shall be entered, the word "Casual" in red ink.

2. Entries in this register shall be made in the chronological order of conviction and in the case of suspects, in the order of the dates of the orders of Gazetted Officers.

G.O. Ms. 71, Home,
11-1-1955

3. This register will contain convictions in cases registered at the station and of persons living in the station limits convicted elsewhere. It is very essential that the entries relating to this are obtained and made. If a conviction is reversed on appeal, the entry should be crossed out, unless the person is brought under (F) of sub-order (1). The broad classifications of the crime as shown in Order 588 shall be entered in the 'Remarks Column'.

4. The names of persons registered in Part III shall be deleted after a period of ten years from the expiry of their last sentence of last conviction, provided the history sheet has been discontinued for those persons having dossiers. Sub-Divisional Officers may effect the removal. The SDPO may, however, sanction the removal of names at any time within the period mentioned above, if the retention of such names is considered unnecessary.

5. Convicted and unconvicted persons, not removed from Part III, shall be enquired about whenever a member of the Station Staff visits the village. The SHO must make detailed enquiries about each ex-convict twice a year during his visits to the village and if he was not able to make enquiries about an ex-convict in a particular half year, he should do so as early as possible in the next half year. All Police Stations and Investigating Units shall maintain this record.

Part IV - Notes on important events

594. Part IV of the Station Crime History (Form 78) shall contain, all crimes occurring in the village / town, notes on important factions and disputes, especially between castes and communities, political groups, and the commission of serious breaches of the peace and records of police bandobust for important festivals, etc. Notes shall include:

- Extremist activity; CPIML PWG/Janasakthi/New Democracy etc. Area of operation of dalams/squads/PGA/LGS/Action Teams, underground extremists and sympathizers hailing from the village or locality etc.
- Faction feuds; Groups/individuals involving in faction violence, important faction leaders-details of criminal cases.
- a) Communal activities; Hindu/Muslim communal organizations – Name of members of such organizations.
- b) Fundamentalist Organisations – Details thereof.
- Political activities; Different political parties – activities – important leaders, trouble mongers - criminal cases if any against them.
- Property crime; Important cases with details of gangs involved, arrested and convicted: Repeat offenders to be short listed for opening sheets.
- Bodily Crime; Important Murder/Attempt to murder/Other serious rioting cases. Repeat Offenders to be short listed for opening sheets.
- White Collar Crime – List of NBFCs/BFCs. Which are not recognized by Reserve Bank of India. Child adoption centers, Chit Fund Companies, Offenders involving in forged degree or post graduation certificates, Man Power frauds by agents etc.
- Names of Rowdies/ Goondas/ Gangsters/ Bootleggers/ Landgrabbers/ Narcotic offenders in the village/ area/ locality.
- Agrarian issues and disputes; Tribal/Non-Tribal issues. Agitations by formers-Political parties involvement etc.
- Industrial Problems; Trade Union Activities Strikes/Dharnas etc., Important Union Leaders and their party of affiliations, Police Bandobust done on previous occasions.
- Student Agitations; Student Unions, ABVP, NSUI, Communist AISF/SFI or extremist organizations, Names of office bearers etc.
- Other caste-based agitations; like MRPS, Kapu Nadu etc., Bandobust requirements.
- Fairs and Festivals; Bandobust required, any specific problems experienced etc.
- Elections; Panchayat, Municipal, Local Bodies, Legislative Assembly, Parliament etc.
- Other issues having a bearing on L&O and crime.

In short, any information, which may be useful to a new Station House Officer, having no previous experience of that station, should be entered in this register. One or more sheets, as may be necessary, should be kept for station information of a general nature. Information relating to different villages shall be recorded on separate sheets, headed by the names of the villages. All entries in this record based on reports submitted by beat PC or on his own shall be edited, signed and dated by the SHO. The SDPO should also enter any matter, which he considers important. Only the station copy of this record is to be maintained. The SDPO will not maintain a copy with his sub-divisional records, but a summary of all important points shall be entered in the Sub-Division Information Book maintained by him as well as in the circle information book maintained by CI. This record shall be maintained by all Police Stations including the detective police stations.

Part V - History Sheets

595-1. Part V consists of History Sheets (Form 79-A, B & C) of persons residing permanently or temporarily in the station limits, who are known or believed to be addicted to or aid and abet to the commission of crime, whether convicted or not, or who are believed to be habitual receivers.

2. History sheets shall not be opened for criminals with no fixed residence. However this restriction does not apply to persons who move about in a limited area of not more than two districts. History sheets may be opened for such persons at the discretion of the SP.

3. All History Sheets shall be numbered serially in each police station.

Automatic opening of History Sheets

596-1. History Sheets shall be opened automatically at the time of conviction for persons convicted as under and shall be retained for two years after release from jail.

Persons or crime for which convicted	Number of times convicted
Persons released from life imprisonment after Conviction under Chapters XII and XVII of the IPC	
Professional poisoners	
Members of organized crime syndicates and gangs	
Drug Traffickers and Smugglers	
Indian Penal Code sections 395 to 402	Once
Indian Penal Code sections 392 to 394, if convicted or liable to conviction under section 75 of the Indian Penal Code	Twice
Illicit distillation	Once
House breaking	Twice
Trafficking women, girls and children	Once
Theft	Thrice
Cheating, forgery for gain, misappropriation and breach of trust - if individuals	Twice
- if organised involving public funds	Once
Bound over under section 109	Twice
Bound over under section 110	Once

2. Persons convicted or bound over as above will be styled "Known Depredators". However, inmates or ex-inmates of Special Homes for juveniles should not be styled as "Known Depredators".

3. History Sheets should be opened for habitual offenders. For any violation with regard to registration, change of residence or failure to report the habitual offenders are liable for prosecution. The surveillance of the police is with a view to ensure their compliance of the rules and to watch if they are reverting to crime.

4. The History Sheet of a known depredator, against whom an order has been passed under section 356 of the Cr.P.C. shall not be closed until the period during which he is required to report changes of residence has lapsed.

Maintenance of History Sheets

597. The History Sheets should be in the form prescribed and should contain a recent photograph of the person concerned. The descriptive particulars and physical peculiarities should be entered with precision. The names of close relatives and friends whom he is likely to visit and the places, which he frequents, should be noted. The means of livelihood and whether they are in proportion to the style of living, information if any about his activities should be entered in the relevant columns. Detailed enquiries made by the beat Constables and the SHO about his conduct and absence should be entered periodically. When any information favourable to a History Sheeted person is received it should also be entered therein. The object of surveillance is to prevent commission of crime and also as to make sure whether the person has taken to peaceful life and has become a law abiding citizen. To achieve this objective it should therefore be necessary that the information gathered is thorough, impartial and not influenced by any extraneous factors. A person who is making efforts to lead an honest life and break from the past should be helped to remain so. The police should handle this carefully in such a manner as not to frustrate his attempts at living an honest life.

Transfer of History Sheets

598-1. The History Sheet of a person, who changes his residence to another station limits, shall be forwarded to that station through the Sub-Divisional Police Officer.

2. The History Sheet of a bad character who changes his residence from a police station in this State to a station in another State, shall be forwarded by the Station House Officer to the Superintendent of Police, through the usual channel, and the latter shall forward the Sheet confidentially to the Superintendent of Police of the district, in which the individual concerned has taken up his residence. Reciprocal arrangements on similar lines have been made with other States for receiving the History Sheets of bad characters, who have changed their residence from other States to A.P. On receipt such history sheets shall be sent to the concerned PS.

Continuance/Dis-continuance of History Sheets

599-1. Where the retention of a History Sheet as mentioned in Order 596-1 is considered necessary after two years of registration, orders of the SDPO must be taken for the extension, in the first instance up to the end of the next December and for further annual extension from January to December every year.

2. History Sheets (Order 596-1) shall be closed by the definite orders of a SDPO/ACP and shall be filed in the records of the station. The History Sheets of persons, who have died, shall be destroyed by the order of a gazetted officer. The SSP/DCP/CP may order the closure of a History Sheet at any time, but a Sub-Divisional Officer may only do so on the expiry of the periods indicated in Order 596 above. History sheet may also be closed if the history sheetee attains the age of 60 years or loses a hand or a leg or both eyes.

G.O. Ms. 3929, Home, 5-9-1950

Suspects

600-1. The following persons should be classified as suspects and History Sheets shall be opened for them under the orders of the Superintendent of Police / SDPO.

- A. Persons once convicted under any section of the Indian Penal Code who are considered likely to commit crime again, and
- B. Persons, not convicted, but believed to be addicted to crime.
- C. Members of criminal gangs or organised criminal syndicates
- D. Communal and Caste activists who are known to instigate, organise violence or spark off communal or caste riots.
- E. Smugglers, hoarders, blackmarketeers and for professional land grabbers.

2. Care should be taken to see that History Sheets are opened under this Order only for persons who are likely to turn out to be habitual criminals or who are members of organised crime syndicates or such organisations who had history or plan for violence and therefore, require close surveillance. The material and information collected to obtain orders from the SsP or other officers authorised to order opening of history sheets in this category should bring out the above requirements.

Rowdies

601. The following persons may be classified as rowdies and Rowdy Sheets (Form 80) may be opened for them under the orders of the SP/DCP and ACP/SDPO.

- B. Persons who habitually commit, attempt to commit or abet the commission of, offences involving a breach of the peace, disturbance to public order and security.
- C. Persons bound over under Sections 106, 107, 108 (1) (i) and 110 (e) and (g) of Cr.P.C.
- C. Persons who have been convicted more than once in two consecutive years under sections 59 and 70 of the Hyderabad City Police Act or under section 3, clause 12, of the AP Towns Nuisances Act.

D. Persons who habitually tease women and girls and pass indecent remarks.

E. Rowdy sheets for the rowdies residing in one Police Station area but found frequenting the other PSs area, can be maintained at all such Police Stations.

F. Persons who intimidate by threats or use of physical violence or other unlawful means to part with movable or immovable properties or in the habit of collecting money by extortion from shopkeepers, traders and other residents.

G. Persons who incite and instigate communal/caste or political riots.

H. Persons detained under the "AP Prevention of Dangerous Activities of Bootleggers, Dacoits, Drug Offenders, Goondas, Immoral Traffic Offenders and Land-Grabbers Act, 1986" for a period of 6 months or more.

I. Persons who are convicted for offences under the Representatives of the Peoples' Act for rigging and carrying away ballot paper, Boxes and other polling material.

Period of retention of History Sheets of Suspects/Rowdies

602-1. History Sheets of suspects shall be maintained from the date of registration up to the end of December, after which the orders of a gazetted officer as to their discontinuance or retention for a further period shall be obtained.

G.O. Ms. 3929, Home, 5-9-1950

2. Merely because a suspect/rowdy, having a history sheet, is not figuring as accused in the previous 5 years after the last case in which he was involved, it should not preclude the SP/DCP/CP to continue his history sheet if SP/DCP/CP is of the considered view that his activities are prejudicial to the maintenance of public order or one affecting peace and tranquility in the area or the victims are not coming forward to give complaint against him on account of threat from him.

Indices

603-1. The following indices shall be maintained by Police Stations and all DPS/CCS.

2. Modus operandi index of crime and criminals: An alphabetical lose-leaf crime classification index to Part I and Part III according to the list specified in Order 587 in the form shown below:

G.O. Ms. 71, Home (Pol.) 11-11-1955

Volume and page number of		Name, Father's name, village, Police Station of the limits where offence took place	Crime Number & PS	Conviction particulars
Part-I	Part-II	convict or suspect or casual		
(1)	(2)	(3)	(4)	(5)

Note:- In column 3 of the Index, note the word "Casual" in red ink after the names of casual offenders.

3. Name index of criminals. An alphabetical name index of persons whose names are entered in Part III should be maintained in all police stations, DPS and CCS.

4. Ex-convicts register: A check register of persons entered in Part III of a police station shall be maintained in Form 81 for each village, villages being arranged alphabetically. In towns and cities this shall be maintained for every beat by the concerned town/city Police Station. The Detective Police Stations (DPS) and the Central Crime Stations (CCS) shall also maintain these registers.

Classification of criminals into Casual and Professionals

604-1. The following general instructions are issued for the guidance of all officers in regard to the classification of criminals into casuals and professionals.

2. A professional criminal is one who has chosen crime as his profession, whereas a casual offender may be defined as one who has committed a crime more or less by accident and not by design. But it is possible that a casual offender may, by the force of circumstances, repeat the crime and turn it into a profession. The nature of the crime will often indicate whether the person who committed it is a professional or a casual. For example, a burglar, pick-pocket or a cheat can safely be treated as a professional, whatever be the circumstances and conditions under which he operated. Also, every person, who has committed more than one crime for gain, should normally be classified as a professional, irrespective of the nature of the crimes committed by him. Again, when a series of similar or approximately similar offences occur in an area, it should be evident that one or more criminals have taken to that type of crime for livelihood. When a first offender belongs to a family or a group with a criminal history or is known to be the member of a criminal gang or organised crime syndicate or associate of a habitual criminal, he should be treated as a professional.

3. But, property offences committed as the result of a land dispute or family quarrel do not become professional cases merely because they were repeated or because they satisfy the definition of house breaking in the Penal Code or because the persons who committed them are members of a criminal group, gang or a family. Petty thefts of garden produce, avenue trees and the like committed by first offenders may also be safely treated as casual. But, a receiver should be classified as professional, irrespective of the property received by him, because a man, who stoops to receive a petty article knowing it to be stolen, will certainly buy valuable things too, if they are offered to him for sale by a criminal.

4. Crime Syndicates come into existence to make money by resorting to unlawful acts in support of persons or parties. They thrive on conditions of demand and supply of goods and services, which are scarce, prohibited or attract high taxes. The crime syndicates operate in secrecy and use intimidation, kidnapping, grievous hurt, murder etc. as a means to achieve their end. They develop clout with influential sections of society, public bodies, enforcement and regulatory wings of the Government and the police, and indulge in elimination of witnesses, bribery etc. to perpetuate their activity. They are ruthless with their members who betray them and command fierce loyalty generated by greed and fear. Members and leaders of such syndicate gangs are to be treated as professionals, but not those who submit and render small help out of fear or due to blackmail.

Bad Character Roll

605-1. When a person whose name is entered in General Conviction Register (Part III) moves or changes his place of residence to the limits of another police station, the fact shall be communicated to that station by means of a Bad Character Roll Form A for entry in the register of that station. The roll will be returned with the page number of the register, on which the entry has been made, noted thereon. This page number will be noted in column 3 of the Station register. The transfer of information to the concerned police should be prompt and authentic. The fastest method of means of communication available should be used preferably the fax mode of communication. The acknowledgement should be insisted upon. This work needs personal pursuit by the SHO. It should be remembered that if conviction particulars are not recorded at the right place, the entire crime data system in the area and all over the country will be distorted.

G.O. Ms. 109 Home,
10-1-1948

2. It is not necessary that Bad Character Roll Form A should be used for the communication of conviction particulars or for the transfer of History Sheets. These can be done through a memorandum in Form 28. It is likewise unnecessary to send Bad Character Rolls with History Sheets submitted to superior officers for orders regarding their retention or closure. Orders should be obtained on the History Sheets themselves.

3. If any criminal of other PS limits comes to a particular PS it should be intimated through Bad Character Roll B to the PS concerned.

Death of Criminals – Registered in Part III

606. When a person registered in Part III dies, his name shall be struck off from Part III and other records. The fact of his death shall also be immediately communicated to all other stations where he has been registered, so that entries regarding him may be struck off the registers in those stations.

General

607-1. The station crime history shall be maintained in Telugu. The MO classifications may be entered in English also for convenience.

2. The Inspector of Detective Police Station shall maintain an outline crime chart of his jurisdictions showing various police stations, and maintain it in the same manner as indicated above. The Area and Investigation Sub-Divisional Officers shall similarly maintain an outline crime chart showing the station limits in their sub-divisions. The period of currency of each chart shall be one calendar year, and the entries in the chart as per Order 591. Any other class of crime unusually prevalent in the sub-division may be indicated on the chart or on a special chart, as may be convenient. Crimes will be marked on these maps on receipt of FIRs and corrections if any, may be made on receipt of crime details or case diary.

3. Sub-divisional Officers shall also maintain, in conjunction with crime charts, registers in Form 7 as prescribed in Order 60, to enable them to keep a check on case diaries, crime, and the progress of cases in their sub-divisions. Entries in this register may be made by the camp clerk except those under column 5 and 6, which should be made by the Sub-Divisional Officer in his own hand. A careful study of the distribution and types of crime occurring may enable officers to draw deductions as to the criminals at work and to issue instructions to their subordinates as to the line of investigation to be pursued and preventive action to be taken.

4. The Superintendent of Police will study crime with the help of the registers and charts maintained by the District Crime Bureau.

Juveniles

608. No History Sheet should be opened for a juvenile discharged from a Juvenile Home. Juvenile offenders should not be treated as bad character or watched or interrogated, unless suspected of committing crime in accordance with the provisions of Juvenile Justice (Care and protection of children) Act 2000.

Use of Integrated Investigation Forms

609. Integrated investigation forms have been designed as part of countrywide crime criminal information system. These forms are -

1. FIR form (Form No. 82). This form should be used for recording all FIRs by all police stations.
2. Crime details form (Form No. 76). The form has to be filled by the Investigating Officer generally after the first investigation and has to be sent in all cases and not merely in property offences.
3. Arrest and Court Surrender form (Form No. 62). This form is to be filled up and sent in respect of each accused person who has been arrested in a case. This is different from the arrest card and memo which is to be sent to the concerned Magistrate and other officers.
4. Property search and seizure form (Form No. 58). This form should be filled up by the IO after search and seizure of any property either from the accused or from elsewhere which is connected with the case under investigation. It includes such evidentiary item like weapons, documents and other materials.
5. Charge sheet/case disposal report form (Form No. 69). This form should be filled up after the case is charge sheeted or after a referred report is submitted to the court.
6. Court disposal form (Form No. 83). This form is to be submitted after the trial court either by way of conviction, acquittal or discharge disposes off the case.
7. Result of appeal form (Form No. 84). This form is sent after the Appellant Court disposes off the appeal.
8. Automobiles form (Form No. 85). This form should be used on information submitted when any of the vehicles are seized, recovered, stolen or involved.
9. Cultural property form (Form No. 86). This form should be used when any of the properties, art pieces, idols and other property of historical or cultural value is seized, recovered, stolen or involved.

10. Recovery of identifiable numbered or unnumbered properties form (Form No. 87). This should be used when any of the identifiable numbered or unnumbered general properties including firearms are seized or stolen or involved.

11. The additional terrorist details form. This form should be utilised to furnish the information relevant as per the classification given in the Codebook in respect of offences committed by the terrorists.

12. The above forms are intended to enable the data to be computerised by the DCRB and the SCRB for use in the prevention and investigation of crimes. Till such time, the police stations are provided with an on-line computer system, they should maintain all the crime records manually while the DCRB and SCRB will, on the basis of the data, provide necessary advice and clue to the Investigating Officer on enquiry or on their own. While sending the integrated investigation form to the DCRB the SHOs and IO should ensure the same data is entered in the crime records of the station in appropriate columns using the classification available in the Crime Code book as well as in this Chapter, Order 587. The type of information needed by the IO in regard to the local crime and local offenders will have to be found in the station records maintained as also from the DCRB.

Entries in Village Secretariat Registers

610-1. Village secretary entrusted with the village police functions shall maintain registers, records and send reports to the SHO of the area police station in the manner prescribed herein. The nature of entries to be made in each register is also indicated below:

2-A. Village registers of known depredators and suspects: The names of History Sheetted persons and suspects may be entered in this register at the discretion of the SHO. The police and Village secretary shall watch such persons. It shall be obligatory upon the concerned Village secretary to report movements of such persons to the police station.

B. Village Crime Diary: A daily chronicle of events of police interest shall be recorded in this register. The entries shall include movements of suspicious persons, strangers, cognizable or non-cognizable cases reported suspicious deaths, disposal of dead bodies, liaison with local police, visits of police to the village - assistance rendered and the reports made to the police;

C. Copies of reports sent to police station/OP: All copies of reports particularly communicating any information or cognizable case should be kept as one separate file indicating the method of reporting and how despatched and the name and designation of police officer who received it.

D. List of ex-convicts in the village: The names of all ex-convicts whether convicted in the cases of the concerned police station or in other police stations should be entered in this register.

E. The names of foreigners: Who are residing in the village, their nationality and the work being done by them should be indicated.

F. List of strangers: The names of all new persons who have come to the village for a long stays or settled in the village, their avocation and activity may be noted. In case of any suspicion the matter should be reported to the police station.

G. List of missing persons: The names of all persons of the village who are absent for a long time and whose whereabouts are not known to the relatives should be noted and reported to the police station.

◆ 2015 Police Computer Services & Standardisation, AP Police Department.



Andhra Pradesh Police Department

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CHAPTER 34

Police Station - Functions & Management

611-1. There are five categories of police stations, as given below, notified by the Government under section 2(s) of CrPC. Such a notification confers certain powers and responsibilities on the police in respect of the notified area.

- A. L&O Police Station (P.S);
- B. Detective Police Station (D.P.S) or Crime Police Station;
- C. Traffic and Highway Police Station (Tr. P. S.);
- D. Railway Police Station (R.P.S);
- E. Women Police Station (W.P.S)

2. All the Police Stations are responsible for all the police functions. But each police station as described above is meant for specific purposes. The police stations referred in “A” concentrate more on maintenance of peace and public order and other preventive functions where as detective police stations concentrate on crime detection and investigation. Except in municipal towns the police stations established in all parts of the state carry out all the police functions including law and order, crime detection and investigation. But in all municipal areas and metropolitan cities separate police stations are established for law and order and crime investigation, and therefore each police station will carry out their respective functions allotted to them. Like wise women police stations have specific functions given to them.

3. The law and order police stations referred in 611-1-A are classified into three types depending on the areas in which they are located.

- A. City Police Stations
- B. Town Police Stations
- C. Rural Police Stations

4. These police stations are normally provided with about 75, 45, and 20 police officers of all ranks respectively.

5. Police out posts with a strength of about 8 police officers are established at certain locations to ensure police presence, easy accessibility to public, and to deal with the trouble in the area quickly. Armed out posts or check posts of varying strength are set up to meet certain situations. The out posts or check posts are attached either to local police or traffic police.

6. The detective police stations are established in all grade “A” municipal towns including metropolitan cities. They have powers and responsibilities of a police station and are specially meant for detection and investigation of crimes other than offences relating to law and order.

7. In “A” grade municipalities and in metropolitan cities separate law and order police station are established to deal with the cases of law and order maintenance of peace and detection and investigation of offences arising out of law and order.

8. In all District Head Quarters and in all metropolitan cities, central crime stations are established to deal with important and sensational crimes. It is a wing of the district police in the districts and a wing of commissionerate in metropolitan cities.

9. Traffic police stations are established in all important towns taking the traffic needs and population into consideration. This wing functions under the district police.

10. In view of the increase in the incidence of crime and accidents on the Highways, Highway crime controlling police stations are to be established with all necessary infrastructure facilities for prevention and detection of accidents and crimes on the Highways. A separate scheme is being prepared for organising this wing.

11. Railway Police Stations have jurisdiction over railway premises and railway lines including running trains comprising of certain districts in continuity. Their functions are detailed in the Chapter “Railway Police”.

12. In all important towns and in all places of need, women police stations are established in addition to law and order and detective police stations to investigate cases of harassment and cruelty against women. These police stations also provide women police officers in cases of searches of places and persons of women and to escort women prisoners. The other police stations can also take the assistance of these women police officers when women police are not provided to those police stations while above duties are carried out.

13. All these specified police stations carry out their specific functions for administrative convenience but all police stations are vested with all the functions of police. Therefore all police stations irrespective of jurisdiction shall not refuse to entertain any cognizable complaint. They shall register forthwith and transfer the same to the concerned police stations. Refusal to register a cognizable case shall be treated as a criminal misconduct on the part of that police station SHO.

Notice Board and Police Station Name Board

612-1. Every Police Station and Outpost shall have a display notice board, one metre square, in the Station premises, but outside the building so as to be accessible to public who come to the police station, to display the notices of persons wanted, rewards offered, and other information which can be seen by the public. The notices or bills displayed should be sufficiently bold, clear and legible.

2. The name of every law and order police station, detective police station, central crime station, traffic police station, railway police station, women police station and out post shall be painted in blue and white combination, i.e., dark navy blue on white background in Telugu, with English and Hindi on either side below on a wooden/plastic/metal board. This board should be prominently displayed in front at the entrance of the station house. In addition, a board bearing on both sides of it, the words “POLICE STATION” in red on white background, in Telugu, Urdu, English and Hindi in Hyderabad City and the district where Urdu is second official language and in Telugu, English and Hindi elsewhere, should be fixed to a post on the road side in front of the station so that people moving in either direction of the road are in a position to identify the location of the police station. Similar boards indicating the beginning and end of jurisdiction of law and order police stations should be erected along the highways and the main district roads.

3. These boards should also carry the telephone number of police station.

4. Similar boards should be displayed at outposts.

5. The patterns of the boards should be as indicated in the chart enclosed to this Chapter. No fancy boards are permitted, but neon signs or proper lighting is permissible. The colours mentioned above should not be changed.

SHOs of Police Stations

613. The internal management of a police station includes man management, management of the equipment and buildings, management of crime, peace and order in the area, maintenance of records, public relations and cooperation with maithri committees, liaison with village secretaries, and other departments of the Government. The SHO as the head of the police station is responsible for building up of the image of the police by maintaining good public and community relations and at the same time maintaining discipline in the subordinate staff. The functions, duties and responsibilities of SHO who is either an Inspector or SI shall, in addition to duties detailed in Chapter 5, be as follows:

1. supervision of the allotted work and duties of general and beat detachments;
2. maintenance of discipline of the police officers of all ranks;
3. Conduct of drill, physical training and inspection of the kit personally;
4. holding of training classes and implementation of on-the-job training programmes and catechism;
5. scrutiny of records of each beat, check of night beats twice a week and personal patrol,
6. supervising those on duty in his jurisdiction when not dealing with a situation.
7. visit the detective police station and central crime station, if any, frequently, meet and extend support and cooperation to his counterparts in those stations;

8. make all police and bandobust arrangements for public gatherings, fairs, festivals, processions, on a proper assessment of the situation each time;
9. communication of information by fastest means of all important or sensational events to the ACP/DSP and SP/DCP concerned;
10. acquire intimate knowledge of the area and its problems, the unruly elements and population in general.
11. take timely and appropriate preventive action and for the effective control of the bad characters and persons from whom breach of peace is anticipated by the effective use of sections 107 to 110 of the CrPC and other laws;
12. arrange effective beat system and patrols to prevent offences and to collect information.
13. build and maintain good public relations.
14. organise and maintain liaison with the maithri committees in various localities and enlist their participation, cooperation and support in the functions of the police.
15. advise, instruct and support the police officers of the beat area to build and maintain similar liaison with the maithri committees and their members.

614. Where the SHO is an Inspector the SIs shall have the functions and duties as shown below in addition to their duties detailed in Chapter 5.

1. to be in-charge of 3-5 beats or general detachments or police station;
2. to be in-charge of general or traffic detachment or station administration including guards as allotted by the SHO Inspector;
3. responsible for direct supervision, guidance and leadership in the field as well as in the Police Station to the police officers attached to the beats or the detachments committed to his care;
4. maintenance of all records and diaries prescribed for various segments of the Police Stations of which he is in charge;
5. maintenance of station house general diary in the absence of Inspector SHO;
6. investigation of cases;
7. prompt visits to the scene of offence, or trouble, preservation of the scene and handling of the situation;
8. to keep SHO informed of all work, situations and duties performed from time to time.
9. any other duty ordered to be performed by the SHO;

Manpower Resource Utilisation – Police Stations (Law and Order)

615-1. Trained manpower is an important and the main resource of the police. It should, therefore be utilised in the best possible manner and to the best advantage. Training and skill being an important component, the standard of these should be maintained at a high level by regular catechism, classes, on-job training and self improvement. Each PS undoubtedly requires a minimum working strength but that cannot alone improve efficiency.

2. The personnel in the PS having different skills, knowledge, resourcefulness, attitudes should be utilised to the optimum, deriving utmost benefit to the organisation. This will also add to the self esteem and confidence of individual officer. It is for the SHO and other supervising officers to give necessary push for the optimum utilisation of such skills.

Schedule of Training and Instruction

616-1. To keep the personnel well trained, up-dated and physically fit the following schedule for physical exercises, drill and instructional classes is prescribed for all the police stations.

Monday & Tuesday. Briefing, catechism, local information including on-job training and relevant orders of police manual. A typical schedule should consist of reading and explaining a Chapter or a part of it, all-important circulars,

exchange of information on crimes, absconders, arrests and properties.

Wednesday & Friday. Physical training, weapon training and drill as per module designed for police stations by the Training Branch.

Thursday & Saturday. Cleaning and maintenance of arms, equipment, vehicles and weeding out of records. Shramdan for the up-keep of the PS, buildings, areas and grounds and police quarters, complexes. All police officers irrespective of rank present shall participate.

2. If one of the days assigned for physical exercises and drill happens to be a holiday, drill may be held on the next working day in addition to the programme of work for that day. Every member of staff of the PS should so regulate their duties that they attend parades regularly.

3. All the staff including the station writers, except those who are given a day or 24 hours off as prescribed or who were on night beat or patrol duty the previous night, shall be required to attend the above schedule.

Allocation of Duties

617-1. Duty shifts to be adopted in Police Stations shall be either of the two models given below:

	I	II
First shift	0800-1400 hours	0700-1300
Second shift	1400-2200 hours	1300-2100
Third shift	2200-0800 hours	2100-0700
General shift	0800-1600 hours	0700-1500

The first model is recommended for all City and Town Police Stations and the second for all Rural and Semi-Urban Police Stations. The SP may adopt model II for all Town Police Stations also in the district and model I for all Rural and Town Police Stations. But adopting model I for some Town PSs and some Rural Police Stations or model II for some Rural Police Stations and some Town Police Stations in the same district is forbidden.

2. These working hours are intended for the personnel during normal days in the police station headquarters, but not to those who go out of headquarters on beat or other duties.

3. The general shift from 0800 hrs to 1600 hrs is applicable for the staff with fixed day duties like the Station Writer and others on general duty. They should be given weekly off on Saturday or Sunday. They can be utilised for any emergency duty during the night or day. The Police Officers earmarked for beat can be utilised for duties connected with breach of peace or other situations anywhere in the Police Station area if such deployment is justified and called for with the permission of the Sub-Divisional Officer or ACP. Under no circumstances they should be withdrawn from the beat for more than 10 working days in a month. Even while making arrangements for peace and order duties of a widespread nature within the Police Station limits, they should be deployed as far as possible in their beat areas which will not count as withdrawal from the assigned beat.

4. There may be contingencies when there is need for night patrolling on almost all nights in all the beat areas whether in a rural police station or a town police station or an outpost. In such contingencies where night patrolling is needed for long duration, the following table may be adopted after dividing the entire strength into three sections. Even in such contingencies the constables earmarked for the beat should be sent on night patrolling in their beats only along with the other personnel. This ensures maximum availability of manpower without disturbing the hours of duty or need for emergency mobilisation. It is only once every fourth day that there may be shortage to send night patrolling in all the beats but mobile patrolling and home guards would be available for such contingencies and they should be used so that there will not be any disruption in the patrolling to be organised every night.

Relief	Hours	Sections on duty for four days			
		(1)	(2)	(3)	(4)
First	0800-1400	A	B	C	D
Second	1400-2000	B	C	D	A
Third	2000-0800	C	D&A	A&B	B&C

Note:- The hours of duty as given in Order 617-1 above may also be adopted at the discretion of the Superintendent of Police/Commissioner of Police.

Off Duty

5. Police Constables and other Police Officers should have a clear day off once a week. The SHO will announce every evening, when duties for the next day are detailed as to who will be off duty the next day. The day off need not necessarily be a calendar day. But it is necessary that each officer is allowed a clear and continuous 24 hours off.

6. No officer who is off duty shall leave the headquarters without prior permission. He should leave information in his residence or with neighbour or the nearest police station as to his whereabouts if he leaves his residence and proceeds to any place within the village or town/city.

G.O. Ms. No. 187 (Fin.) dated 29.6.79.

7. On certain occasions weekly off may not be given or normal spell of 8 hours a day may exceed. In emergencies or due to exigencies of situation the personnel may have to be kept mobilized in a Police Station or at any other place. To cover all such contingencies compensation as admissible to all ranks up to Sub Inspector of Police may be made. This does not mean that the police personnel are kept mobilized or utilized for extra hours and not given weekly off on some ground or the other.

8. The legal obligation of 24 hours deemed to be on duty should not be interpreted to mean that every police person can be on duty indefinitely for days together for any length of time. The following guidelines should be borne in mind on this subject.

A. Police as a body are on duty all the time;

B. A Police Officer who is off duty has certain obligations as set out in Chapter 6;

C. All Police Officers are obliged to forego weekly off and work longer than 8 hours when there is a serious emergency. For example if, an officer leaves a task on hand abruptly at the end of 8 hours shift it will result in serious prejudice to a case or injury to persons or disappearance of evidence, continuation of disorder etc.;

D. All police work deals with emergencies in a way. Hence normal duties should not be interpreted as emergencies warranting mobilization;

E. Inadequacy of man power at times may be due to absence of advance planning, or adequate intelligence. If this is rectified, things can be managed in time with available man power.

F. The responsibility to ensure that emergency mobilization is kept at a bare minimum shall rest with SHO, SDPO and SP or DCP.

9. To enable SHOs to discharge their responsibility effectively the following guidelines are issued.

A. Make an assessment for manpower needs at the beginning of the year for such occasions as fairs, festivals and other bandobusts in the light of past experience likely nature of trouble and general information (See Chapter 15).

B. Collect advance intelligence as to the exact nature and spot of trouble in respect of agitational activity and provide for bandobusts at the most troublesome locations. In case the agitation is widespread throughout the district or the state, no additional strength would normally be available. Hence the available resources should be used to the maximum advantage.

C. If the police station strength is drawn for some other duty outside, mobilisation of the existing staff may be effectively chalked out.

D. Stationary pickets consume a lot of manpower. Make the pickets mobile to cover an area with a fixed reference point.

E. In emergency, in the case of a law and order problem, no ceremonial guard should be mounted for any functionary by the civil police. Only security arrangements as per requirements, information and specific orders, if any, should be made. No route-lining or road bandobust should be made except what is normally provided. If the situation requires the SHO may follow the functionary purely as a security requirement and not as a ceremony.

F. Utilise the beat area constables as far as possible for any arrangements or for collecting information in their areas and do not disturb them from their beat area.

G. Avoid sending messengers where telephonic or other means of communication serve the purpose.

H. Plan allocation of duties, bandobusts personally and do not repeat mechanically some existing scheme.

I. Utilise home guards, special police officers and other volunteers to make up the numbers for dealing with large gatherings. Solicit cooperation of maithri committees.

J. Guard officers are also entitled to have 24 hours off in a week. This order may be considered to have been complied with, if clear and continues 24 hours "off duty" is allowed to a guard officer on any day in a week.

K. The weekly off is intended to give the police officers a day's rest every week. This facility should not be denied without sufficient reason. Any disregard of these instructions by SHOs should be viewed seriously by supervisory officers.

L. Prior permission in writing is necessary from the authorities indicated in Column (5) below for emergency mobilisation beyond two days or disallowing weekly off more than once in a month. The days referred to in columns (1) and (3) below are the total in a month and those in columns (2) and (4) below are cumulative in a year, irrespective of whether broken or continuous.

Mobilization		Disallowing weekly off		Authority for prior permission
In a month	in a year	in a month	in a year	
(1)	(2)	(3)	(4)	(5)
7 days	15 days	2 days	10 days	SP/DCP
15 days	30 days	3 days	15 days	Zonal IG/DIGP/CP
				Addl.DGP (L&O)
beyond 15 days	beyond 30 days	4 days	beyond 15 days	(DGP in respect of Hyderabad City)

M. A statement in form 88 should be attached to the General Diary indicating clearly the reasons for the personnel to be on duty beyond 8 hours or not allowed weekly off or kept mobilized for days together. The superior officers are responsible for compliance of these instructions. SP and Zonal IsG, DIsGP, DCP, Jt.CP and CP should submit a monthly return in the form prescribed above personally signed by them to his next superior. The Officer receiving the statement shall scrutinize it personally and satisfy himself that circumstances existed which warranted dispensing with the weekly off or daily work exceeding 8 hours. They should also examine if their prior permission is taken for mobilization of men for emergencies as laid down above. The statements received in DGP's Office from IsGP, CP Hyderabad shall be scrutinized by IGP Personnel and Addl. DGP L&O and suitable orders of DGP obtained in respect of any violation.

N. All Superintendents of Police/DCsP should personally scrutinize extra duty hours that police personnel are called upon to perform and to ensure that such duties are permitted only in rare and exceptional occasions where the personnel could not be given their weekly "off duty" in the interests of public service. All gazetted officers, including Zonal IG/DIGP and Commissioner of Police are required during their inspections, to examine thoroughly whether these instructions are being properly implemented or not.

Travelling allowance/food arrangement on deployment

Govt. Memo. Home Pol. 1/53-2,
22-3-1953.

618-1. Head Constables and Constables of city, town and rural stations should be allowed travelling allowance admissible under the rules, when the duty on which they are posted involves journeys.

2. Head Constables and Constables of city, town, semi-urban and rural stations deputed for bandobust duty should be provided with food and refreshments at the place where deployed at the prescribed cost by drawing feeding allowance as an advance which could be recouped soon thereafter.

Grant of Leave and Leave Report

619-1. Whenever a Constable, Head Constable or Sub-Inspector proceeds on leave other than casual or compensation leave, the Station House Officer should send a report in Form 89 to the Administrative Officer of the District Police Office. Instructions on the grant of casual and other leave and the procedure to be followed, registers to be maintained are detailed in Chapter 13.

2. In granting casual leave, the SHO should be impartial and the urgency of each individual case should be correctly assessed. In genuine cases of sickness the SHO should be in a position to judge and issue a sick passport, and make arrangement for the medical treatment of the officer rather than leave him to fend for himself. The biennial medical examination to be conducted should be conducted without fail. The entries regarding the health in the small service book of the police officers should be up-to-date. The SHO is duty bound to know the health particulars of each one of the policemen and their families working in the police station.

Uniform clothing - Acquittance Roll

3. The Station House Officer shall prepare the half yearly acquittance roll of clothing for the men of his station and forward it directly to the District Police Office by the 15th March and 15th September. The measurements of the uniform articles of the personnel should be noted in the small service book correctly and when he sends the acquittance roll he should indicate clearly the different standardized sizes that are required to be supplied. The shade and pattern of uniform clothing which are prescribed should be insisted upon, though the personnel are not barred

from equipping themselves with additional uniform articles at their own cost, but the SHO should insist/ensure that such articles are of approved shade, pattern and design.

Kit Inspection

4. The Station House Officer shall inspect the kits of all Head Constables and Constables once a quarter in the first week of the following month. Any Police Officer not present on the day fixed shall produce his kit on a subsequent day.

5. The SDPO/ACP should verify during their visits to police stations whether the kit inspections have been properly done and action taken to see that all Head Constables and Constables are in possession of their kit in full and in proper condition. Any defects noticed in the articles either in quality or manufacture should be recorded and reported to the district police office.

6. The manner of presenting the kit articles and clothing should be as per the diagram given in the AP Police Drill Manual. A copy of the diagram should be drawn and displayed in the waiting hall of the police personnel. The police officers should always place the latest issue of clothing when they present the kit for inspection.

Musketry

620-1. Every Constable in a station is allowed 50 rounds of ball ammunition for practice in a year but only 35 rounds are actually fired in practices. The remaining 15 rounds will be kept apart for use in shooting competitions. These 15 rounds may also be used for giving additional practice to those who are not proficient. The practice firing should be conducted annually in the District Training Centre beginning from the 1st of January every year and completed by 30th June for all police stations in the district. The SHO should send by turns the number of men from the police station as per the schedule drawn up and circulated every year by the SP/Addl. SP in charge of the District Training Centre. The District Training Centre in such a manner that every week a certain number of police officers are taken to the range for completing the prescribed practices in the weapons in which they are trained will draw up the programme. The score sheet and completion certificates should be signed by the officer in charge of the Training Centre and the copy sent to the concerned SHO. The Sub-Inspector should also participate in the practice fire along with one of the batches of the policemen of his station.

2. The practice ammunition shall be in the custody of the reserve police headquarters and issued to the District Police Training Centre as per scale for the practice firing by civil policemen of the district. The SDPO during his inspection of police stations should specifically examine if the police personnel have been sent for the practice as per the schedule drawn up by the District Training Centre. In case any one has defaulted he should forthwith order his dispatch to complete the practice. The target practice register in Form 90, which is countersigned by the officer in charge of the District Training Centre, should be placed for inspection of the SDPO by the SHO.

3. Ammunition Account Register in C.F. 268(a) showing the receipts and issues of service ammunition should be maintained in the police station and account closed for every quarter. The practice ammunition however will not be issued to the police station as the reserve police headquarters for issue holds it during practice for the concerned police officer.

Revolver practice

4. Every Inspector, Sub-Inspector, Reserve Inspector, Reserve Sub-Inspector, Assistant Reserve Sub-Inspector, every Head Constable in the Criminal Investigation Department, and Intelligence and Security Branch and the district police employed as a gunman, should fire 40 rounds of revolver ammunition every year. The details of practices are given in the Drill Manual. This practice also should be held by the district training centre. The practice in other weapons if issued to the civil police should also be conducted by the centre every year.

Annual Renewal of Ammunition

5. The police stations should be supplied by the district reserve police headquarters with fresh stock of ammunition whenever received withdrawing the old stock for practice. This should be done in a systematic manner without fail. The SHO and the SDPO concerned should contact the SP/Addl. SP in charge of reserve police to ensure that the police station always has the required stock of the latest issue of service ammunition.

Good Shooting Badge

6. Badges for good shooting shall be awarded to the Head Constable and Constables as follows on the completion of the annual individual practices.

7. Silver badges to those who score 70 or more points out of 100 and silk badges to those who score 60 to 69 points. A gold badge will be given to the Officer obtaining the highest aggregate of marks in the Sub-Division provided the marks do not fall below the minimum required for a silver badge.

8. A badge should be worn for a year after it is awarded and should be withdrawn, if in the following year the man's score does not entitle him to wear the badge.

9. All badges other than the gold badge should be presented to the trainee as soon as the practice fire is completed by the officer in charge of the District Training Centre. The gold badges will be presented by the SP during the District Duty Meet competitions on the basis of the list furnished by the District Training Centre.

10. Proficiency in the weapon and specialisation is a necessary professional accomplishment. The SHO should, during the drill and weapon training classes, make it a point to see that the weapons are handled with skill by the men so that there is both restraint and effectiveness when called for.

Additional firing practice

11. If the SP/CP so feels that certain members of District Guard or Special teams need extra shooting practice for making them proficient in anti-terror operations, he may organize the same.

Development of skills - specialisation and self-improvement

621-1-A. Several skills and abilities are required for police to perform their duties in a professional manner. The personnel in the police department do have these in varying degrees spread over in a district and State and within a police station. In the rustle and tumble of day-to-day requirements the police officers tend to ignore or do not think of utilising these skills to the best advantage. Apart from utilisation, the development of skills enriches the resources of an organisation from PS level to the State level. Each type of police station require certain type of general skills. Some skills are useful at all police stations. It may become necessary to pool resources and skill to handle important situations or cases in the district.

B. The SHO should personally assess each Constable, Head Constable, ASI and ascertain by talking to him the special skills each one possesses and make a note of the same.

C. In the course of performance of duties by them, the SHO should observe and judge the special skills exhibited in the course of his duties of each one of them and make a suitable entry in the nominal rolls and small service books. This should be done after he confirms his opinion on the basis of the personal contacts and observation of the concerned officer. The SHOs should try and find out the skills of each person even if the men are reticent or reluctant to come out.

D. The SDPO concerned in respect of all SIs and Inspectors working in his area or under his charge take similar action and send the information through Addl. SP to SP who will arrange to have the entries made in the service record under a column "special qualifications" to be set apart for this. The IGP Personnel in DGP's office should ensure that this data gets into the personal records of officers of all ranks.

E. The level of skills should be graded as very good or good only right from the level of constable upwards. There is no need to make any entry where special skills do not exist. The normal police capabilities need not be mentioned.

2. The skills, which should find mention, are those, which are useful in practical police work like preventive action, investigation, maintenance of order etc. or support functions. Some of the special skills which are useful for a police officer are;

- Interrogation of suspects or accused
- Intelligence gathering - criminal or other
- Anti terror operations, ambush counter ambush
- Security duties
- Report writing and entries in records using computers
- Data entry
- Computer hardware maintenance and care
- Short hand or typewriting
- Cartography
- Observation
- Sketch drawing
- Photo and videography
- Sound equipments
- Motor mechanic
- Wireless, telephone operation/mechanic
- Driving
- Defusion of bombs and explosives
- Unarmed combat
- Identification, lifting, packing and forwarding scientific clues
- Special knowledge and experience in specific case investigation

- Proficiency in language Telugu, English or Hindi or Urdu ability to prepare lesson plans and reading material
- Teaching
- Instruction outdoor and indoor
- Various departments of outdoor skills
- Crackshots in each type of weapon
- Surveillance and shadowing
- Computer software
- Swimming and capacity to save persons
- First aid
- Fire fighting
- Public relations
- Scientific knowledge relevant to police
- Electrician
- Electronics
- Information Technology
- Law
- Accounts and Audit

3. It is not the normal levels of skill out of the above which policemen are expected to have. The level should be much higher than the minimum levels. The acquisition of any diploma/degree does not by itself amount to acquisition of skills.

4. Senior officers should be aware of the special skills possessed by the police personnel and utilise them accordingly besides making efforts for enhancement of these skills. Following methods could do this.

A. Utilise them on duties when the skills in which they possess help police investigations or other work in addition to whatever is normally allotted to them.

B. Depute them to teach or demonstrate the skills to others in the Unit during weekly training or on-the-job courses.

C. Provide necessary literature and depute for specialised training when arranged or available.

D. Where eligible recommend for the special allowance to the concerned. The eligibility criteria for allowance should be as prescribed.

E. Depute the personnel when requisitioned in the district, State or anywhere in the country where their services would be useful for any special tasks. All additional skills and further improvement / enhancement should be noted in the service record of the concerned personnel annually.

F. Besides the above, helping in self-improvement of police officers is an important aspect which should receive attention of SHO and senior supervisory officers. The distance education packages, on-job training courses should be given priority without affecting normal duties. The permission to appear for the examinations must be given and the personnel relieved in such a manner that they are able to reach the place of examination at least one day before the date of the examination. IGP Training gives the examination schedules for various courses. Qualification in prescribed in-service courses is compulsory for promotions, hence wherever a prescribed course is organised those nominated must be sent. This procedure applies to officers of the rank of SIs, Inspectors and DSsP. It shall be the responsibility of SP/CP to ensure their relief and give effect to all other facilities for training in self-improvement without prejudice to their normal duties. All enhancements of skills and self-improvement are intended to bring qualitative improvement in police work and as such the skills have to be enhanced as part of normal work and police officers should be encouraged for self-improvement.

Shramdan

622-1. Shramdan consists of cleaning and keeping in order the police grounds, the police station and its premises, and the police quarters, white-washing of police lines and minor repairs to the station house and police quarters, keeping the firing range if any, in order, and maintaining the orderliness and cleanness of the premises.

2. Where it is possible, whitewashing of the lines should be performed by the occupants. Where it is not possible, in the opinion of the SP, annual white-washing can be included in the annual work to be done by Police Housing Corporation. The Municipal Corporations, Municipalities and Major Panchayats, the Zilla Parishads in respect of other Panchayats normally provide all amenities to the Police Station and quarters and also extend support to undertake minor repairs or white washing of PS buildings or provision of facilities to the public like drinking water, toilets and also their maintenance.

Public Relations

623-1. Every police officer working in any police station is the best PRO for the department. There is no substitute for proper public relations other than professionalism, integrity, impartiality, desire to serve and dedication to assigned duties. It is such performance and conduct that earns the confidence and respect of the public and credibility to the police. Even one bad instance of misconduct or rude behaviour of one officer is likely to result in painting everyone else with the same brush. It is difficult to obliterate that impression for quite a long time. The first step therefore in public relations is that every police officer from Constable upwards should work and conduct himself with responsibility, civility and courtesy whether in word or deed.

2. Patient hearing of people who come to police station in distress by all ranks is necessary. The telephones must be answered promptly and politely.

3. A reception area within available means should be provided for people to wait, so that each one can be individually attended to. It is better that groups of people are met first and disposed off by the SHO himself coming out and talking to them. Where there is rush of complaints the SHO should detail officers available, to deal with each complainant simultaneously so that suitable disposals can be given. No impatience or haste should be shown. The person must not only be heard, but must get a feeling that he is heard and prompt steps if any for redressal of grievance are being taken. Never dispose off any one by merely saying that the matter will be looked into. Inform what you propose to do at once or soon later. If police are not the proper authority, help him to approach the concerned.

4. When a cognizable case is reported, register it promptly and initiate action. Keep in touch with the complainant/victim or his close relatives and inform action being taken either by telephone or by other means or even by utilising the services of beat area Constables. In their anxiety the complainants do visit the police station themselves and in which case, receive them and inform them the action being taken. The IO should inform about recoveries, arrests, charge sheets and other important details to the complainant from time to time. The complainant/victim should be taken into confidence even for the purpose of investigation. Stay sufficiently long at the scene until all clues are collected and witnesses are examined. Discuss doubts and clarify all points with him. Where the complainant is a litigant or apparently pursuing a false case, misusing the legal process, do not disclose your mind or conclusions but listen patiently. The nature of response to complainant depends on the nature of the case. In thefts, burglaries, dacoits, murders, cheating, hurt cases immediate steps give confidence and ensure better help from complainant in the investigation of the case. Precautions are to be taken not to give a false hope or cynical or unhelpful remarks. Never give a list of your difficulties and handicaps or discuss about other officers or staff of the police station. Give confidence to a genuine complainant and be guarded, polite, but firm, in respect of false complainants.

5. When a sensational or an important case occurs it may be necessary to give prepared statement to the media on the facts of the case and progress if any. Details, which prejudice investigation or give clues to absconding accused, statements of witnesses or suspects, should not be disclosed, but broad picture of the case and the efforts of the police should be given. Such developments as arrests, recoveries should be informed to them. It is better the SDPO/SP handle the media in grave crimes personally. The SHO of L&O police station and the detective police station should follow these guidelines.

6. Take the press and media into confidence when handling a sensitive case. Sometimes they would be helpful in the investigation by proper publicity particularly in the matter of absconding accused. Do not disclose the sources of information and names of witnesses. Avoid personal publicity and talk of the team as a whole. Remember to give outline of progress in cases where media interest is focussed everyday for sometime by written statements. Never give off-hand replies to queries or enter into discussion into various theories of investigation of the case.

7. Never give anything that has a tendency to denigrate any person or jump to pre-mature conclusions. Remember when the earlier conclusions go wrong on the basis of subsequent evidence; the police will face serious problems of credibility since investigation is a continuous process with the real facts emerging gradually, hence the caution.

8. Do not react to criticism but if any wrong information appears clarify through prepared statements. Always remember that it is not merely the police and the press involved in this exercise but there are others like victims, witnesses, complainants, accused, suspects and the public at large who may be affected.

9. Never confirm or deny suspicions unless thoroughly proved in the investigation on that particular aspect.

10. Media will be interested sometimes in taking photographs or live coverage of the scene. Organise this by proper liaison without compromising the requirements of investigation or loss of clues or prejudice to investigation. Most problems are solved by a proper advance liaison in such cases. Some of the photographs and videographs taken by the press in connection with a case and interviews with certain persons would be useful even for investigation. A good liaison will therefore be in public interest apart from helping the people to know the information about a case from independent media sources. It is not every case, which needs a curtain of secrecy. It is only some cases and that too to the extent of not prejudicing the investigation that an element of restraint and confidentiality needs to be

maintained. Never be overwhelmed or flustered in a situation or allow yourself to be intimidated or lose your temper. Keep cool and smile away provocative questions or answer calmly giving only the facts.

11. In every locality of beat voluntary bodies such as maithri committees are to be encouraged and helped and liaison maintained during normal times. The SIs and beat area Constables have a vital role to play. Besides the SHOs should hold regular monthly meetings in various towns / villages in their jurisdictions at least twice a month. It will help the public to meet the Police Officers and voice their grievances, if any. This will also enable the Police to sensitise the public on various issues and seek their cooperation in prevention of crime and maintenance of law and order. Thus it will be obligatory on the part of SHO to visit town / village in his jurisdiction along with his staff after giving advance publicity through Village Panchayat or Village Secretary and press. The senior officers should also make it a point to attend such meetings wherever possible.

12. Maintain close touch with the schools and youth organisations to enlist their support, involvement and understanding of police problems, mainly in areas of traffic regulation, injured persons, forming up of queues, conduct of sports and cultural events. Occasional classes and printed material to help understand basic law would be very rewarding exercise. These should be a part of systematic programme and not to be treated as formalities like occasional rallies or festivals.

13. Every Constable and police officer must avoid any rude behaviour at all costs. There is no place for rudeness in police work. There is only firmness for an offender and courtesy for the law-abiding citizen.

14. Never employ third degree methods. Respect and uphold human rights in handling cases.

15. Show utmost consideration to children, women, old persons, poor people, weaker sections and those who come for protection and help.

16. Ensure to hand over recovered stolen property to court and the complainant should be kept informed and not made to run around the police station and the court unnecessarily.

17. Do not allow touts and brokers around the police station.

18. Do not allow any outsider to do police work like filling up records or typing etc. If any temporary person is to be employed on a contract basis it should be under relevant rules and proper authority.

19. Give information promptly of all good work done even if the media is not aware of it. Project the officers who did the work.

20. Eve-teasing and activities of local goondas badly reflect on police. Always take tough action under the law to bind them over or punish suitably. The action should be swift and effective.

21. Prompt punishment of offenders in cases improves confidence and brings more cooperation from the public. Pursue cases vigorously.

22. Follow the rules of conduct in Chapter 6 scrupulously to avoid complaints of non-registration of cases, rude behaviour and lack of integrity.

Care and custody of Arms and Ammunition

624-1. The SHO and in his absence the officer in charge of the police station will be in charge of the arms and ammunition in the police station. The arms in the police station shall be kept secured in an arms rack by means of a chain fastened with a lock. The ammunition shall always be kept in a locked box. The Station Writer when present in the station or, in his absence, the guard officer shall keep the keys of the rack and ammunition box in his custody. The Station Writer or the guard officer shall, when taking charge of the keys, check the arms and ammunition and satisfy himself as to their correctness. An entry to this effect will be made in the general diary both by the officer handing over the keys and by the one receiving them. The officer in-charge of the station for the time being shall also check the arms and ammunition whenever he takes charge of the station general diary and satisfy himself that they are correct.

2. An arms register should be maintained in the police station, noting therein the number and name of the Constable or Head Constable or officer to whom each weapon is issued and obtain his signature against the entry. The officer to whom the weapon is allotted shall be responsible for its upkeep and cleaning etc. He should use the weapon allotted to him for the annual practice or wherever it is to be carried in the performance of his duty.

3. In extremist effected areas, all the members of the station guard should always carry rifles and sufficient ammunition with them specially in the night.

Cash chests of other departments

G.Os 1679, Judl.
10-8-1895, 994 P W
31-3-1873 & 1620, Judl. 13-6-1885.

625-1. The Cash boxes or chests of any Government department, local body, and bank may be accepted for temporary safe custody in the police station. The SHO should ensure that the boxes are securely locked and sealed before they are accepted, because the police are responsible for the seals and not the contents. The sealed boxes should be accepted only on a letter of authority from the local head of the Institution delivered in person. The SHO before accepting any such boxes should cross check with the head of the Institution concerned on telephone if the officer himself has not personally come with the boxes. As most of the banks have their own cash chests and have their own security there may not be any need for the cash chests to be brought to the police stations.

2. The same procedure should be followed in respect of question papers or ballot papers, which are brought for safe custody by authorised persons to the police stations. These boxes should be secured in the same manner as is done to secure the police arms and ammunition or cash.

Excise Exhibits

626-1. Station House Officers are required to take charge of all articles seized in Customs and Excise cases, pending the orders of a Magistrate or the Customs or Excise Officers concerned in charge of a Circle, and allow samples to be taken. All samples of Excise exhibits taken charge of by the police or taken by Excise Officers should be sealed with the station seal.

2. Station House Officers are authorized to destroy toddy in the absence of special orders regarding its disposal. Arrack should be destroyed with the orders of the Excise Inspector or Magistrate.

3. The State or Central excise exhibits should be entered in the general diary in the prescribed form and kept on record in the station.

4. These orders apply mutatis mutandis to officers in-charge of outposts in respect of articles seized in Customs and Excise cases which may be delivered to them.

5. At the end of every month, the SHO shall forward a list in Form 91 of all Excise exhibits remaining without disposal to the Inspector of the Excise Department.

6. When there is delay in disposing of exhibits or the number becomes excessive, the SsP should bring the matter to the notice of the concerned senior officials of the Central Excise Department and ensure their disposal.

Station Records - General Diary

627-1. A general diary will be maintained in every police station and outpost in Form 92. The general diary of a day will cover 24 hours.

2. The following items shall be entered in the General Diary:

A. Regular sequence in point of time the work done at the station and the information received;

B. A gist of the information relating to cognizable offences, record of occurrences, arrest and production of accused persons for remand, and the departure from and return to the police station of police personnel etc

C. Information received and action taken in non-cognizable cases as well as information received regarding fires, even where there is no reason to suspect the commission of a cognizable offence.

3. The SsP shall fix a suitable hour for commencing and closing the general diary of each station and outposts in his district, taking into consideration the local conditions and the time of clearance of postal mails. If no such hour has been fixed, the general diary shall be opened at 0700 hours.

4. A copy of the general diary, after it has been closed, shall be dispatched daily at the earliest opportunity along with all required enclosures to the SDPO concerned in Form 93, with an abstract of the duties done by the station staff during the day. The format of the abstract for use in the Railway Police is Form 94. The general diary should be duplicated by carbon process.

Checking of General Diaries

628. The SDPO concerned is responsible for scrutiny of general diaries. This is an instrument of information, record of work and events as well as of supervision. Bearing this in mind the SDPO may make use of it to communicate his instructions and comments through the Diary. He should in case of any instructions, return the remarked diary in original to the SHO for his compliance and reply. After the scrutiny, the diaries should be filed in his office by the SDPO/ACP and sent to the District Police Office or office of concerned Deputy Commissioner of Police on the 20th of every month for record. Inspecting Officers should go through the general diaries; see whether the scrutiny exercised by the SDPO has served its purpose.

Crime Abstract

629. An abstract of crime shall be prepared every quarter in each Police Station in Form 95. All L&O Police Stations, Detective Police Stations, Central Crime Stations, Traffic Police Stations and Women Police Stations should forward a copy to the District Crime Records Bureau for comparison with the ledger and to enable analysis of crime. Nuisance cases also should find place in the abstract. Inspector of the Detective Police Station shall personally check and countersign these abstracts. The entries in the register should be continued from year to year till all the pages in the register are utilised. The concerned SHOs and Inspectors of the Detective Police Station should personally prepare these.

First Information Report index

630. A First Information Report index shall be maintained in Form 96. The entries in the register should be continued from year to year till all the pages in a Book are used. The classifications as per instructions relating to Part-I of Station Crime History in Chapter 33 should be entered in this register in cases where it is not entered in Part-I. Even though no separate columns are provided in this register the entries should be made in the remarks column.

Note books - contents

631-1. The note books of Inspectors, Sub-Inspectors and Head Constables shall contain a record of investigation, an account of the duties performed and places visited daily, any information gathered regarding crime, bad characters, breaches of peace and other matters of importance. Head Constables in charge of beats are required to enter a full account of their work and that of Constables of the beat in his team or any special duty performed by him or them.

Custody of note books

2. Note books of Head Constables shall be kept in the station under lock and key in-charge of the Sub-Inspector or ASI. They will be handed over to them when they go out on duty and received back on their return. Note books of the station staff, when full or no longer in use, shall be kept in the station under the personal charge of the Station House Officer for a calendar year and then destroyed. Officers of and above the rank of Head Constables when transferred from a station shall leave their current note books behind.

Arrest Report

632. An arrest report (Form 61) shall be sent in all cases of arrest by police or handed over to Police custody by any other agency. It need not be sent when persons arrested by officers of the Customs and Excise Departments are brought to the Police Station. Instructions on arrest particularly in Chapter 25 should be thoroughly read and complied with in making entries in this Report.

Prisoners' Search Register (PSR) - Description of prisoner

633-1. The description of a prisoner should be carefully and fully recorded in column 5 of the Search Register on his being brought to the station house. It should be complete in all details to fulfil all the requirements for publication, in the event of the man absconding and to clearly establish his identity. Instructions for recording descriptions are given below. All columns in this register shall be filled accurately and with care.

A. The identity of a person should be clearly described with the peculiarities in the person uncommon as against the common particulars to enable any one to clearly identify him with his peculiar marks of identification. For example, small pox marks, peculiar scars, too tall or too short or blind, one eyed, squint etc.

B. It is not necessary to measure every mark/mole and scar on the person. It will suffice, if three or more of the most prominent and permanent are recorded, provided that their positions are accurately given. Care must be taken that the marks/moles selected are permanent at least so far as it is possible to judge.

2. The following brief instructions as to the manner of recording marks of identification are laid down for general guidance.

A. Marks and scars. To be of some value, they should be permanent. Their size, shape, location and probable cause (if known) should be stated, together with their direction and distance in centimeters from a fixed point.

B. The fixed points usually taken are $\frac{3}{4}$

- for the head and face $\frac{3}{4}$ the corners of the eyes or mouth, the ears or nostrils, whichever may be the most convenient for purposes of measurement;
- for the neck $\frac{3}{4}$ the seventh or prominent vertebra at the back and Adam's apple at the front;
- for the arms $\frac{3}{4}$ the point of the elbow;
- for the hands $\frac{3}{4}$ the tip of the middle finger;
- for the front of the body $\frac{3}{4}$ the naval and middle line;
- for the back $\frac{3}{4}$ the seventh vertebra and middle line; and
- for the legs $\frac{3}{4}$ the middle of the bend of the knee.

3. In measuring marks on the front, as well as on the back of the body, an imaginary line is drawn down the centre of the body. Scar will be denoted as being either to the right or left of this line, above or below the navel (and below the seventh vertebra on the back).

4. To measure the distance of a scar on the trunk of the body from the given point, it will first be necessary to ascertain its distance from a horizontal direction to the right or left of the imaginary line. The next step will be to measure the distance from the point, where these imaginary vertical and horizontal lines intersect, to the naval. If the scar is anywhere on the imaginary line it will only be necessary to give the distance above or below the naval to localize it.

5. It should be specifically stated whether the mark is on the right or left limb and, if so, whether it is on its interior, exterior, anterior or posterior surface.

Examples

A. Burn, circular in shape, $1\frac{1}{4}$ centimeters in diameter, 5 centimeters from navel and 3 centimeters to the left of median line.

B. Longitudinal scar on back, 3 centimeters long, $\frac{1}{2}$ centimeter broad in the middle, pointed at both ends, direction up and out, 7 centimeters from seventh vertebra and $2\frac{1}{2}$ centimeters to the right of median line.

C. Burn, irregular in shape, exterior right thigh, 5 centimeters from bend of knee at its nearest point.

6. During examination, the person should be made to stand upright, with hands down and palms turned forwards. The entries about the marks can be considerably abbreviated without becoming unintelligible and should not be unnecessarily lengthy.

7. Deformities of any kind should always be recorded. The following are the principal deformities to be recorded.

A. Head $\frac{3}{4}$ Hare-lip; loss of, or injury to, an eye; squint: misshaped ears, nose or skull; loss of teeth.

B. Body $\frac{3}{4}$ Loss of or supernumerary fingers or toes; webbed fingers, loss of a limb or part of a limb; immovable joints wasted muscles.

8. In addition to marks, scars and deformities, any peculiarity, which may specially distinguish the individual under examination, may prove useful, such as unusual height, stammering, peculiar gait etc.

9. To give a complete list of all the points that may possibly prove of value as means of identification would be impracticable. The examiner must use his common sense and note such points as are likely to be most useful.
10. The correct addresses and details of prisoner's, relatives, their relationship should be entered below the description of the prisoner.
11. The prisoner may be photographed and/or videographed with the permission of magistrate during the course of investigation and copies kept in the concerned case record with one copy in the Prisoner's Search Register (PSR).

Small Service Book

634. The small service book contains in brief the personal record of the Constables and Head Constables in Form 97. The entries to be made in this register cover service particulars, postings, rewards, punishments, warnings, medical history, biennial medical examination, issue of kit and uniform articles, the sizes of the uniform and other articles of the officer. This should also contain information relating to the special skills possessed by the officer. These should be updated constantly to reflect the correct position in respect of all matters covered. The maintenance of these books shall be the personal responsibility of the SHO. Whenever the concerned officer is transferred it should be sent to the place where he is posted and the concerned SHO shall maintain it. The SHO should also ensure that it is compared with the service record maintained in the district police office. The small service book is shown to the officer concerned to enable him to know his service particulars and to satisfy himself that his personal data is correctly entered. The entries relating to the health and the special skills and other achievements recorded therein should be communicated by the SHO to the District Police Office for compilation of a resource index for the district.

Government Property Register

635. All items of Government property issued to the station including furniture, books, transport, wireless, communication and other equipment, and various other items should be entered in this register. The up-keep of all the property items issued shall be the responsibility of the SHO. He should also ensure the maintenance particularly of the transport and communication equipment apart from ensuring their security. The inspecting officers should check every item and fix responsibility for shortages or misuse if any.

Inward/Outward Register

636. All references received in the police stations including DPS should be entered in the inward register in the form prescribed indicating the mode, time and the date. Similarly all papers sent out should also be referenced and entered in the outward register indicating the method of despatch. Both the registers should be scrutinized by the SHO to ensure that the receipt and despatch of all communications is reflected in the registers.

Message Book

637. Police station receives several messages by telephone, wireless, fax or by any other means. All messages received particularly on telephone should be entered verbatim in the prescribed register and a message made out and placed before the SHO. The name of the officer who is sending the message, reference number if any, address, telephone number of the sender and the name of the officer who received the message should be clearly indicated in this register. They should see the message book every day to ensure that all telephone messages are truly reflected. The messages sent out on telephone from the police station should also be noted in the message register. The copy of the message sent out should be kept for record in the concerned file after the message is noted in the message book. This register should also be maintained in the DPS.

Sentry Relief Book

638. The Sentry Relief Book (Form 53) in a police station shall be maintained for the Constables deputed on station watch or guard duty by day or night. The Sentry Relief Book should be maintained in Outposts, regularly noting therein the reliefs of Constables on Outpost watch duty, even if regular guard is not mounted. Entry of reliefs should, however, be made in the outpost general diary and such an entry should be signed by both the relieving and the relieved Constables.

Process Register

639-1. A register of process in Form 98 shall be maintained in each police station. All processes received from courts for service or execution, as the case may be, and the disposal of such processes should be entered in this register.

2. This register shall be maintained in the form of a ledger. A separate section in the register, or separate registers, should be set apart for each of the Magistrates' Courts from which the particular police station receives processes.
3. Every SDPO/ACP of Police Sub-Division shall, as often as possible at least once in two months, visit personally the police station under his charge and check the process registers. They should ensure the comparison of the process registers with the registers of the concerned Magistrate's court by SHO, check the entries and report any serious delays or omissions to the SP/Addl. SP/DCP. In the case of the railway police the comparison of process registers maintained in railway police stations, with the records maintained in the courts, shall be done at least once in four months.
4. Unexecuted process shall be brought forward in the register at the beginning of the month.
5. All non-bailable warrants issued at the instance of other departments should be executed by the police with the assistance of departmental officials to identify the accused.
6. Monthly abstract. At the end of the month, an abstract in Form 99 shall be entered in the register.
7. At the monthly meetings, the Superintendent of police or Commissioners of Police or DCPs concerned in Hyderabad City should examine the question of warrants remaining unexecuted at the Stations/Units and discuss it with the SHOs.
8. Return of arrest warrants. Warrants of arrest shall be entered in the register of the station in which they are first received. They shall not be transferred to another station without the orders of the SDPO. Similarly non-bailable warrants of arrest shall only be returned under the orders of SDPO.
9. All processes issued by the High Court or Court of Session and thus entrusted to the police should also be entered in the register.

Petty Case Register/Non FIR Case Register

640-1. A register in Form 100 shall be maintained for entering cases under special and local laws including the Police Acts, where complaint procedure without FIR is prescribed. Complaint in such cases is written in the same proforma. The register should be kept at the station and destroyed after three years.

Non-Cognizable Cases Register

2. A register in Form 101 shall be maintained for all non-cognizable cases reported in the police station. It is to be maintained and preserved on the lines of FIR Index.

Roll Call

641. Every evening at 1700 hours duties for the next 24 hours shall be detailed. A roll call shall be held at 1700 hours every day, which should be attended by all Police Officers who are not out on duty. Those who are out on duty shall ascertain their duties for the next 24 hours on their return to the station. This order shall apply to personnel of all police stations. The roll call time should also be utilised for a quick briefing and exchange of information or communication of instructions.

Duty Roster

642-1. A duty roster in Form 102 as prescribed in Chapter 35, shall be maintained in all rural, detective, traffic and women police stations and as prescribed in Form 103 in town/city stations. Entries should be made as soon as the personnel are detailed for duty, which ordinarily will be at 1700 hours for the ensuing 24 hours.

2. All Police personnel should start their duties normally from the station itself and not from their houses except when called upon for emergency duty or instructed to proceed from house straight to a place where he shall report to

the officer on the spot. Such deviations from procedure should be recorded in General Diary. They must, on return from duty report at the station before going home.

Passports

643-1. Head Constables and Constables leaving the station on duty or leave or attending hospital for treatment must take passports in Form 104 except those who attend as out patients while continuing to do their duty.

2. All subordinate police officers proceeding on special duty outside the State shall be provided with a passport in Form 105 signed by the Superintendent of Police/Addl. SP concerned, or, if the circumstances do not allow of delay, by the deputing officer on behalf of the Superintendent, who shall be informed of the issue provided that, where reciprocity exists between the Superintendents on either side of the State border, no such issue of passport need be made but it is desirable that an officer proceeding to another place always carries his identity card and specific duty authorisation signed by the SHO. On return from duty a report shall be submitted of the work done including the police officers or others who were contacted.

3. If a Head Constable or Constable, while on duty, goes on casual leave outside his station limits, falls sick, he should report at the nearest police station, surrender his current passport and take a fresh passport to the hospital, if it is not possible for him to return to his own station and obtain a passport. On his discharge from the hospital, he should report back either at his own station or to the station which issued him the passport and surrender the passport to the Station House Officer, who will then forward it in the latter case to the officer in-charge of the station to which the Officer belongs and issue another passport to him to enable him to avail himself of the leave recommended by the medical officer if necessary. If the Head Constable or Constable wants to re-admit himself in the hospital on the expiry of the leave previously recommended by the medical officer, he should again report to the nearest police station and obtain another passport.

4. A Station House Officer issuing a passport to a Head Constable or Constable of another station should intimate the fact to the officer in-charge of the station to which the Police Officer belongs.

5. It must be made clear to every Head Constable and Constable that every absence of his from the station whether on duty or leave or due to illness should be covered by a passport.

6. In-patients in hospital should not leave the hospital without the permission of the medical officer. A Police Officer absenting himself from hospital is liable to punishment as absence without leave.

Village Roster

644. Instructions for the maintenance of Village Roster are contained in Chapter 35.

Postage Register

645. The Postage Register (Form 106) shall contain the account of postage stamps.

Visiting Book

646. Senior Officers of and above the rank of SDPO should record their inspection or visiting notes in the Visiting Book maintained for the purpose in Form 107 in accordance with the questionnaire and guidelines prepared for visits and inspections (Annexure -1).

Lathies and Fire Arms

647. Police Constables and Head Constables who turn out for dealing with crowds, bandobust duty, patrols in beat areas (when rifles are not taken), and on any occasion in which a lathi may be required for self-defence, should always be armed with lathies of prescribed specifications. In disturbed and terrorist areas firearms should be carried.

Fire Fighting Equipment

648. In police stations where hand fire pumps or other fire fighting equipment are provided, the police should be instructed in their use. All Policemen should be trained in fire fighting and made familiar with use of modern fire fighting equipment.

Necessity of prompt dissemination of information

649-1. The prompt dissemination and exchange of information is one of the most important duties of police and must receive the close attention of officers of every rank.

2. Station House Officers shall be responsible for the prompt circulation of lists of property lost and descriptions of absconding offenders to stations where they are likely to be useful. It is most important that the railway police should be given the very earliest intimation to be on the look out for absconding offenders or the perpetrators of any particular crime.

Criminal Intelligence and Information

650-1. Intelligence is the most basic and necessary input for police work. Timely intelligence and information can help in the prevention, detection of offences and maintenance of peace and order. Prompt intelligence is necessary to take preventive steps in avoiding commission of offences, to put down terrorist violence, communal or caste troubles or to apprehend absconding offenders. It should therefore be promptly gathered, documented, analysed and used in time.

2. The beat Constables and other police officers in the station are responsible to gather correct information by intelligence and pass it on to the SHO from time to time relating to movement of prisoners or suspicious character or relating to any other criminal activity in the locality. The SHO on verification of information should send a consolidated report on day-to-day basis and send to the DCRB directly by Fax or Radio marking a copy to his superiors.

Report of probable presence of habitual criminals

651-1. In every case of crime against property, a crime card in Form 108 shall be sent by the Station House Officer of L&O Police and Detective Police Station to the District Crime Records Bureau. For the crime details Form No. 128-A may be used instead of the crime card. Such forms should also be sent to the Sub-Divisional Officer and to the neighbouring police stations and DPS/CCS in the district, as also to the bordering stations of adjoining districts and railway police stations. If the offenders are from outside, prompt information should also be sent by wireless, fax or telephone, to the neighbouring police stations and railway police stations. Station House Officers, who receive the information, whether by crime card, radio or wire, or telephone will immediately institute the necessary enquiries and with the least delay, report the result by radio or telephone, fax or memorandum to the station from which the information was sent. These replies will be filed with the concerned case diary file Part I.

2. Crime cards or radio, fax messages received in a station from other stations shall be retained for two years.

3. The intelligence about the presence of criminals or gangs or activity, which suggests commission of a crime with details available, should be promptly reported on the same day to the DCRB as part of the daily report of crime and information. In urgent cases the information should be communicated to the concerned as indicated above. The Inspector in charge of the detective police station has a specific responsibility of communicating and acting upon such intelligence and information.

Criminal Intelligence Gazette (CIG)

652-1. The weekly crime and occurrence sheet of every CCS and DCRB is circulated to all Police Stations in its jurisdiction and to the neighbouring Police Stations as well. This contains inter alia (a) Notices of property stolen; (b) persons who are out of view; (c) persons who have to be arrested; (d) known depredators who have dispersed and are out of view and intelligence regarding movement of signals or criminal activity noticed during the week. Full use therefore shall be made of this media for dissemination of the above information. If it is intended that wider publicity beyond the district or neighbouring stations is required, the matter may be sent in the prescribed proforma for publication in the Criminal Intelligence Gazette.

2. Notices to be sent to other districts: Notices and intelligence, which require immediate publication without any delay, should be circulated forthwith in the districts. The number of copies of such notices required should be obtained on photocopier and sent.

3. Notices of disappearance of individuals: Notices of the disappearance of individuals should be published only when the circumstances of the disappearance give rise to suspicion of foul play.
4. Crime and Occurrence sheet and Criminal Intelligence Gazette shall cover not only cases of property, but also cases relating to bodily offences under other laws where identity of the accused or identity of missing or died person is necessary. Details of stolen automobiles, arms, explosives and ammunition, property seized or lost should also be sent for publication in C&O sheet or CIG as per relevant guidelines.
5. The CIG consisting of C&O sheet, crime cards or crime details forms, or other information should be gone through by the SHO who should study the priority, read over to his subordinates and discuss with them during training classes. The SHO should also detail officers to pursue specific information promptly.

Communication of intelligence to areas beyond the State

653. Orders 650 to 652 relating to communication of intelligence also apply to the surrounding areas beyond the borders of the State. Therefore the SHO should send information on intelligence to the areas beyond the borders and similarly act upon the information received from those areas relating to the suspected persons, habitual criminals, organised criminal gangs, hired goondas, person disposing stolen property from within and outside the borders.

654. Analysis of information is therefore important in cases where immediate action is called for soon after the offence, some times requiring road checks and barricades to save life or to get at criminals on the run, after a ghastly offence. The information required, or as much of it as possible, particularly about persons, their description and photographs if available should be sent to all border areas even while taking action within one's jurisdiction. It is such response mechanism to various situations that should be part of training in the Police Station, DPS, Traffic, Railway and Women Police Stations, so that when situation arises the police are able to effectively intervene and close all options of escape to the fleeing criminal.

655-1. The prescribed format should be used for communication of all information and intelligence even if it is by telephone and record kept of information circulated. Unplanned and blind dissemination of information without proper assessment and need leads to flooding every Police Station with all kinds of information, resulting in loss of focus and priority. The orders and guidelines issued herein, therefore should be read in that spirit. For example, if a murder case accused is known and his specific hide outs are also known to the Station House Officer or DPS or CCS they should proceed at once, take assistance from the concerned for his apprehension carrying all details and letters with them needed for securing help. There would be no purpose in such a case, to send out any lookout notice all round either by radio or fax etc. In the same case if accused is known but no specific information about his whereabouts are available but there is a probability of his being available in a particular area of a PS in this State or outside information and all details as prescribed should be sent to that concerned Police Station and officers. If he has disappeared with no clues whatever then the question of general broadcast or sending out all information to various authorities arises.

2. Collection, recording reporting, and dissemination of criminal intelligence is not for its own sake. Its objective is to operationalise specific procedure relevant to each case. The responsibility of supervision rests with SDOs and SsP/CsP to ensure compliance and give a proper direction.

Special Reports

656. The substance of special reports sent on investigation of cases including progress reports if any may be embodied in the case diary and the reports shall be attached to the copy of the case diary which is sent to Sub-Divisional Police Officer. The report of IO sent on the completion of investigation may also be attached to part I of the case diary.

Deployment of Plain Clothes Men

657. Personnel of the district, city or railway police deputed to look out for bad characters at large and busy railway stations, may, at the discretion of the Superintendent of Police/DCP be allowed to wear civilian clothes. For surveillance and shadowing duties, trained personnel in appropriate civilian clothing may be deployed.

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Andhra Pradesh Police Department

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CHAPTER 35

Beats and Patrols in Rural Areas

658. The principal functions of the police are the prevention, detection of crime and bring offenders to justice. Preventive work must receive higher priority than other police work. Intimate knowledge of people and the conditions prevailing in the jurisdiction, the willing involvement and cooperation of all sections of the local community, knowledge about the nature of crimes and the movements and activities of criminals of various categories are conditions precedent to the successful prevention of crime. To gain such knowledge, and build cooperation of the people and interpose between criminal and his opportunity, an efficient beat system is vital. Patrolling and beat system is the primary function of the Police.

Meaning and objectives of Beats

659-1. Beat means a segment or part of the jurisdiction of a Police Station consisting of a village or group of villages or a locality in a town/city. Each beat is serially numbered in a police station. Beat service means performance of any of the functions and responsibilities of the police officer assigned to the beat, in that beat area.

2. The objectives of beat are ³/₄

- A. to provide police services within easy reach of the community;
 - B. policing of a manageable area and households by specified Constables and Head Constables;
 - C. promote awareness and thorough understanding of the policing needs of the community and of the law by the community;
 - D. promote and build voluntary and participative support through maithri committees and groups in preventive and detective work of police and protection of lives and properties and honour;
 - E. help understanding and reconciliation in caste, communal and group hostilities;
 - F. gather, record and communicate information on crime, criminals, strangers, factions, organised criminal gangs, terrorists, anti-national and anti-social elements;
 - G. provide day and night patrols to keep order, prevent crime, intercede when necessary;
 - H. maintain effective surveillance on history sheeted persons and ex-convicts;
 - I. arrest of persons in terms of section 41 CrPC;
 - J. preservation of crime scenes and assistance in investigation.
- Village Visits

3. Visiting villages and staying there is essential for efficient policing in a beat area. All those which are constituted into a Panchayat are called villages. The smaller villages attached to larger village, should also be treated as a separate village for the purpose of village visiting or patrols either by day or night. All those constituted into Municipalities may be called Towns. Major Municipalities and Municipal Corporations are called as cities.

4. The duration of the visit by the Constables and Head Constables during the beat in a village depends upon the purpose. Visits should include all hamlets and settlements or colonies. The SHO should visit villages as prescribed. The beat area constables and HC before leaving the PS for duty on their beats should make relevant entries as to the purpose and duration in the General Diary. The instructions regarding village visiting, maintenance of village roster by SHO and others contained in this Chapter and elsewhere should be read as part of this Order. Visits include patrol

by day or night, besides other duties, which should be for a specific purpose. They should neither be hurried nor unduly prolonged. All visits and work accomplished should be reflected in the relevant records.

Organisation of Rural Beats - Selection and grouping of villages

660-1. The beats should be organised taking into consideration the crime, the vigilance required, factions prevailing, clandestine activities being organised in the area etc. The frequency of visits and period of stay depends upon the sensitive or hypersensitive nature of the area. The classification keeps changing from time to time.

2. The following are the types of villages to be classified as sensitive or hypersensitive within the general beats.

A. Villages in which bad characters reside i.e., offenders, criminals, or members of organised crime gangs or syndicates or those who foment or incite caste, communal violence, for which history sheets are maintained and require surveillance.

B. Villages in which there have been in the immediate past frequent incidents or outbreaks of crime, either against persons or property.

C. Villages in which there are acute factions due to group rivalries, political, communal or caste or other tensions, and

D. Villages in which organised criminal or drug related activity or manufacture, trafficking in firearms and explosives exists or shelterers of terrorists and other organised criminals exist. A shelter need not be a place. It would include a person as well.

3. The beat visits should be organised on geographical proximity and also to arrange the visit of villages one after the other.

4. A village which is neither sensitive nor hypersensitive, but must be traversed en-route is called a route village. There may be one or more such villages in each beat. Their names have to be entered in the column entitled, "Route villages" in the beat book of that beat.

661-1. The beats in an outpost or police station jurisdiction should not be more than 3 or 6 respectively, and not more than 8 in both put together. Each beat should cover approximately 1000 households or 7,500 populations. If a police station area has 40,000 or more population there should normally be six beats, with each beat covering a population of 6000 - 10000 depending on factors mentioned above. Such other factors as most convenient, accessibility, road, rail, network, communication facilities and the number of sensitive or hypersensitive localities, villages should also be considered. Sensitive and hypersensitive villages should be distributed in all beats and not grouped into one or two. A beat book will be maintained for each general beat. The part II crime chart should show the areas covered by and the serial number of each beat.

2. The selection and grouping of villages as outlined above should be reviewed by Inspector/SDPO every year during annual inspection that may order such changes as necessary, according to the circumstances. When the necessity ceases a sensitive/hyper sensitive village may be converted as route village.

3. The Sub-divisional Officer, during the annual inspections, must particularly ensure whether the beats have been organised conventionally and based on all relevant and realistic factors. He should personally tour in one or two beats along with SHO and the police officers assigned to the beat in the same manner as a beat Constable does, to make sure that it is organised properly and can be served in the manner prescribed.

662-1. Two police officers i.e., either two police Constables or one Constable and one Head Constable should be allotted to each beat. They are responsible to visit and patrol sensitive village. The hyper-sensitive villages should be more frequently visited. It is not necessary that all villages in a beat should be covered every time the constables go to that beat. They should cover the villages in the beats at least once a week not only in the day time but also at nights. They shall proceed on beat duty at least 4 times in a month, each visit being spread over at least two days and one night. The SHO should ensure that they are not allotted any other duty in the PS when the Constables/HCs in charge of a beat proceed on beat duty once a week. The SHO may, however, earmark any two days or more if necessary to the Constables in charge of the beat to proceed to their respective beat areas to discharge their responsibilities and duties enumerated herein. The SHO should obtain prior permission for any deviation from this from Inspector/SDPO. The Inspector shall surprise at least one beat in a PS in a month in addition to regular inspections.

Information gathering and duties of beat constables

2. The Constables assigned to a beat should perform the following duties:

- A. Identify through discreet enquiry, observation and verification about habitual offenders, specially dangerous criminals, the nature of crime they are addicted to, or gangs, including members of organised crime syndicates requiring surveillance irrespective of their area of operation;
- B. Collect information from or about travellers at camping grounds, choultries, rest houses, railway premises, ferries and other places of public resort;
- C. Ascertain or verify any definite piece of information concerning crime or criminals;
- D. Service of summons and execution of warrants.
- E. Gather Information about movement of bad characters, suspicious strangers and wandering gangs in the village;
- F. Enquire the movements both good and bad activities of all ex-convicts and history sheeted persons specially with reference to their lavish expenditure or of other persons connected with them beyond their normal means;
- G. Find out the existence of any receivers of stolen property, contacts by bad characters or strangers with them;
- H. Identify liquor shops, illicit sources of liquor, vice dens, gambling houses, drug peddlars, unlicensed weapons.
- I. Collect intelligence about agitational activities of political parties or other organisations and clandestine activity of any organisation or their associates, or members or supporters.
- J. To notice and ascertain any fresh settlers in the village or visitors and the places from where they have arrived and their friends and relatives in the village with whom they are staying or providing support to them.

663. The details of information to be gathered on each important item are given below:

1. Crime. Crimes include all offences and all undetected crimes and hushed up/unreported crime ;

Gangs

2-A. The names of the criminals of organised crime or terrorist gangs that have passed through the village, whether they stayed there and if so, the number and duration of their stay.

B. The conduct and activity of the above gangs, syndicates, their members during such sojourn and their source of livelihood during their stay; and

C. The number of males, females and children, the name of the leader or head, their personal effects, and whether they belong to any particular class or organised criminal (mafia) gang or terrorist group, or drug syndicate;

Suspicious strangers

3-A. Their arrival in the village and all their activities and doings and any information of interest from police point of view;

B. the object of their visit;

C. the place, relationship and antecedents of the person with whom they stayed;

D. any suspicious activity during their stay and basis for the suspicion;

E. any crime, that occurred during their stay.

Receivers of stolen property.

4-A. Existence of any receivers of stolen property in the village;

B. Those who visit them and any suspicion about them;

C. their frequent absence and the places and purpose of their visits outside the village;

D. method of disposal of stolen property, by sale outside or by melting it (jewellery etc.) immediately and persons who help them. In respect of other property like antiquities or art pieces his contacts outside;

KDs and Suspects

5-A. his presence in the village or otherwise;

B. the work in which he is engaged, the place of his work and his earnings therefrom;

C. the earnings of his dependents, and whether the total income is sufficient for him to maintain his family above want, or whether he lives too extravagantly for his income;

D. whether female members have, or wear valuable jewels or ornaments or sarees;

E. the period of his absence if any from village and details of places visited, persons contacted, purpose and date of return;

F. whether, after the last visit of the police to the village, he was absent at any time from the village, either by day or night and if so, the duration of stay and his last absence and how he accounted for his absence; and

G. the names of his associates, frequent visitors and their antecedents;

H. Discreet enquiries from reliable persons about his way of life and earning.

Habitual Offenders

6. The compliance or otherwise of the restrictions legally imposed upon them; and discreet enquiries relating to his style and way of life.

7. Village secretary should maintain a register of suspicious strangers wandering gangs, crimes occurring, KD register and other registers and records which a beat constable in charge of the beat may refer and consult.

Arrack, Toddy and Wine Shops

8-A. whether any illicit sale or manufacture of liquor is prevalent;

B. the persons frequenting the shop most;

C. the character and antecedents of the toddy or arrack seller; and

D. whether the person running these shops is a receiver of stolen property or harbourer of thieves or other offenders. Apart from this, information on organised gangs of illicit liquor manufacture, or trade, and their active members should be gathered. It may be noted that even licenced toddy shops may be used for sale of illicit liquor or adulterated toddy.

Unlicensed weapons

9-A. The persons suspected to be possessing unlicensed arms;

B. The sale and delivery of weapons by licence-holder to an unlicensed person; and

C. Whether the licence-holder purchased the weapon from an unlicensed seller.

D. Whether there is manufacture, trading in unlicensed weapons, explosives and explosive substances;

E. Demand of licence from a suspected person carrying arms or ammunition, and seizure of the same under a panchanama for any contravention detected.

Public gathering and Grama sabhas

10. Meetings held and subjects discussed.

Collection of money

11. Whether any collections are made from public, the person collecting it, the purpose, the name of the treasurer and the use of such collections and whether it is voluntary or by force or intimidation. All information relating to collection of money whether clandestine or open, whether for religious purposes or development works should be gathered. The analysis of the information and action to be taken will be decided by SHO.

Matters affecting the public peace

664. The important points on which information should be gathered and nature of action to be taken in respect of communal, caste and group tensions, factions likely to effect public order are detailed below.

Communal:

1. The nature of relationship between minority and majority communities, whether amity prevails or points of friction and tensions exist, the details of disputes of long standing nature, whether dormant or active - efforts of village community to settle amicably, militant groups who under religious garb foment trouble and their active supporters, their activities and grievances specific to the village, important impartial and sober elements or maithri committee member of both communities who can resolve problems and help maintain peace, preventive measures at local or higher level that would be necessary to prevent breach of peace. The constable in-charge of beat should be in constant touch with SHO to enable him to deal with situations according to the need.

Caste Problems:

2-A. Number of offences reported or unreported under PCR Act, 1955 or SC & ST (PA) Act, 1989; possibility of any atrocity taking place against Scheduled Caste or Scheduled Tribe members;

B. Necessity or otherwise of DM or SP to visit and intervene personally;

C. Need or otherwise for granting or cancellation of weapons licences for any person to remove the imbalance or to ensure self defence of any person or group.

D. The activities of Village Watch Committees, Maithri Committees and other non-government organisations if any in the village, their composition and work to maintain cordial relations and improve awareness of the problem.

E. The names and antecedents of militant persons who foment, incite and take advantage of tensions in all communities, and their antecedents.

F. To keep the SHO informed from time to time about caste tension if any to enable the SHO or other supervisory officers to take necessary steps to maintain peace in such a situation.

Political rivalries

3. In almost all villages, people have political affiliations with one or the other party. In most villages the public in general do not actively participate in political activities on a regular basis. Majority of them show interest only during election time, while a very small group may be active throughout. The police is concerned only with violent clashes or possibility of offences due to intense political rivalries - generally prior to elections or as an aftermath, and in some instances even at other times. The political factions quite often get aligned with communal or caste or village factions. It is the situation which is a serious threat to law and order quite often. The beat area constables have a duty to clearly understand these factors and keep detailed information of possible clashes in each village. A report should be made on the existence of such rivalry and the list of anti-social elements who take advantage of such situations.

Factions

4. The existence of a faction, political, social, or communal, the latest moves and plans of the factionists, their supporters likely developments or offences, the opinion of the villagers, the names of active members, their resources and weapons and their

involvement in cases in the area or outside, are the important factors which influence factious crime and public peace.

Agrarian unrest

5. The villages in which there are serious land disputes, occupation of Government or private property, possession or dispossession, sale or transfer of land in scheduled areas, owner-tenant disputes, agricultural wages, water disputes etc. are causes of unrest. Information of all such issues with a potential for law and order situations or clashes or offences either spontaneous or instigated required are to be collected and recorded in the village register (Part IV). The beat area constables with the help of village secretary and contacts with local people will be in a position to collect this information. In the event of likelihood of the breach of peace, the names of parties, the object of dispute or conflict, the extent to which the village and its residents are likely to be affected should be assessed and regularly informed to the SHO.

Beat Area Policing

665-1. Two officers of the rank of police constable/head constables should be assigned for the same beat.

2. The police constable/head constables assigned to a beat should be thoroughly briefed by the SHO. He should bring to their notice personally and in writing the standing instructions and responsibilities, and should give specific instructions to the officer regarding such matters as the nature of the work they have to perform, the manner in which it should be performed and the time by which they should return to the station, after each spell of duty. He should give them the benefit of his own knowledge and explain the purpose and specific problems that require to be looked into in each village.

3. Constables kept in charge of a beat should not normally be changed for three years and may be continued up to five years if possible so as to enable them to acquire thorough knowledge of the area, population, nature of its crime and criminals, and other matters of police interest. Efforts should be made to establish neighbourhood watch schemes and sound police-public co-operation and interaction which in turn help in building up relevant data and intelligence regarding all categories, suspicious strangers and other activities of police interest in the beat area. This is the bedrock of police, crime, criminal and police information system as well as the preventive and detective strategies of police.

Process service

666-1. This duty of the Police Station should be entrusted to the constables in charge of beat areas unless for any special reasons the SHO himself proceeds or deposes an ASI or HC to serve a particular summons or execute a warrant. They shall serve the processes received by CCS/Investigation Unit unless the Inspector for any specific reason entrusts any of them to the local Police.

2. The legal requirements of summons and warrant, the guidelines and directions for their service or execution are given in detail in the Chapter 25.

3. The constables in charge of beats or HCs or SHO when they proceed on beat duties or to visit villages should stay for sufficiently long time to accomplish the objective of the visit and to obtain as comprehensive a picture of the situation as possible to enable them to up-date the records and data on each village and issue. Constables in charge of beats when they proceed on weekly or regular beat duty should perform night patrolling at least one night and stay for two full days even if the villages are near the headquarters of the Police Station. In case the beat consists of one village, which is a major panchayat, they should perform a minimum of 4 night beat patrol. They should also spend at least 8 days in different localities of village collecting and verifying information besides other duties connected with the beat as required in this Chapter. These are barest minimum prescribed and by no means intended to confine the visits only to those mentioned herein. The minimum prescribed is due to the fact that they may have to perform other station duties also.

667-1. Constables going on beat duty shall proceed to the beat direct from the station. Likewise on return they should report at the station before going home, hand over reports and arms and ammunition and other equipment if any issued. Any information during tour that deserves to be communicated should be communicated by quickest means like telephone or fax or any other means. The cost of such should be reimbursed to the Police Officers concerned by the SHO from the permanent advance and recouped.

2. The departure of a constable on beat duty should be noted in the general diary, together with the special instructions given to him by the SHO.

3. During the day, the beat constables will make enquiries about bad characters, but during the night, bad characters will only be checked to know their presence or absence from the village. No enquiries should be conducted during the night.
4. Lurking points should be identified and constables of the beat should spend sufficient time there during night patrol duty.
5. Road patrols and traffic staff deployed at nights on highways, railway police should be contacted during night rounds to exchange information.

Check of beats

668-1. Check of beats means verification of work done by beat area PCs including information brought by them and secondly physical check during night patrolling. The first part is done through enquiries by SHO himself or ASI or HC. The second part is also done by the SHO or an officer deputed by him as prescribed herein. If the SHO is Inspector or SI, SIs or ASIs respectively should check the officers on night patrol duty by surprise.

2. The SHO or SI or ASI should visit selected villages (not the same every time) with the beat books and compare the dates and hours of the entries in the beat books with those in the point books. Such verification should be made even when the SHO or a ASI or officer in-charge of outpost goes to a village on any other work, such as petition enquiry or investigation. If beat books are not available, the checking officer will note down the particulars in his notebook and compare them with the beat book on his return to the station. Verification of information may also be done in the same manner.
3. The SHO should also make enquiries with villagers other than point-book holders regarding the beat police officers' stay or presence on the days noted in the beat book. Such enquiries should be more in the nature of acquainting himself with actual field realities rather than out of any distrust.
4. The SHO should personally check the patrols in each beat area in his jurisdiction at least twice a month. ASIs or OP in-charge should do so more often.

Duties of supervising officers in relation to beats

669. Officers of and above the rank of Inspector/SDPO visiting or inspecting a Police Station should not only see whether beat villages have been properly selected, but also ensure that the function of beats are being achieved and the data required is being compiled on sound lines. The fact of having done so should be embodied in the inspection or visiting notes, together with the instructions, if any, given to the Station House Officer. He shall go through the village permanent information book and see if entries are made as per proforma and the information is authentic and record his comments wherever necessary in the register.

Roads and highway patrols

670. Safety of roads in a beat area is also the responsibility of the beat in which such roads are located. This patrolling by beat constables is different from the highway and traffic patrol which would be generally mobile. During the weekly beat or separately the beat area constable should concentrate on the roads both by day and particularly at night. The purpose of this should be to prevent crime on the roads and afford assistance and protection to those in need of the same, particularly women and children. They should closely liaise with the concerned traffic/highway patrol and obtain such assistance/information that would facilitate effective crime prevention and protection to the needy.

Procedure on return of police officers from patrolling or beat or other service

671. When a Police Officer returns from beat duty, he should report to the SHO. An entry should be made about the time of return of the constable/HC from beat duty in the general diary. The SHO should verify and satisfy himself that the Police Officer has contacted point book holders. The SHO should debrief the beat police officers and take report on the following;

1-A. Collection and updating of information.

B. Surveillance over history sheeted persons.

- C. Meeting public, maithri committee members, village secretariat officials and representatives of panchayats.
- D. Service of summons and execution of warrants.
- E. Petition enquiries entrusted.
- F. Assessment of possible breach of peace and public nuisances.
- G. Their observation relating to the absence of ex-convicts and history sheeted criminals.

2. The information brought by the beat constable should be verified by the SHO by contacting the concerned police officer where the absentee criminal is said to have gone. Similarly he must himself verify if he is elsewhere in his jurisdiction. If there are any strangers found in the area with suspected movement he shall make a report immediately to the concerned SHO.

3. The information relating to the absence or a temporary change of address given by the ex-convict or history sheeted person shall be verified by the SHO with the concerned police stations for the correctness of the information.

Records pertaining to beats

672. The information furnished by the beat area police should be entered by the SHO in the following records.

1. Permanent village information Book: This will be maintained by the HC/senior constable in charge of the beat after the reports and information on each column and item have been submitted to the SHO and the summary approved by him. The sheets so approved will be filled by the SHO in the book maintained in Form 81. SHO, Inspector and SDPO shall countersign the entries. The latter may enter details in the sheets based on their own enquiries and information, or modification of information recorded. The proforma sheets will be issued to them by the SHO.

2. Beat visiting book: All the villages should be first arranged alphabetically leaving some pages of the book for each village. On the pages allotted for a village, the usual signatures of five or six inhabitants with good antecedents of that village where point books are kept should be obtained. The inhabitants should cover all important localities and sections of people. Three of the five persons may be a (i) Sarpanch or member of Panchayat, (ii) Village Secretary and (iii) member of Maithri Committee. The first page should carry an index to the villages with the page numbers noted against them. The night patrolling by beat area constables to each village will also be noted in the pages meant for each village and signed by them on their return to the PS. The sample signature book will be in Form 110.

3. Beat Books: Every beat should have a beat book in Form 111. Constables in charge of beats whenever they proceed to the area should take the beat book along with them and note in the appropriate columns, the information they gather, during each visit. They should obtain the signature of at least three persons whose sample signatures are maintained in the station in the sample signature book in the appropriate column. Such signatures should be obtained in all the villages including "route" villages through which they pass. If the signature of any of the persons could not be obtained, the reasons may be mentioned in the book. The beat constables are required to sign the point books (P.B) during night patrol duty and obtain signatures of PB holders while on such duty.

4. The beat book should also be carried and action indicated as mentioned in the previous Order, if a constable goes on any other duty to any of the villages in the beat. Urgent visits where a specific work is performed and return is immediate, will not count as beat duty.

5. The beat books should contain in appropriate column the names of KDs, suspects, and habitual offenders proclaimed offenders, ex-convicts, receivers and other history-sheeted persons

Point Books

6. Books in Form 112 should be supplied to village secretaries and selected inhabitants of every village with good antecedents including a few members of the Panchayat and Maithri Committees in the station limits. Constables in charge of beats and officers overseeing their work or visiting the village for any purpose should sign the point books whenever they visit the village, noting the date and time.

Check Register of KDs (BCs) and Suspects, Organised gang members and leaders and other History Sheeted persons

7-A. A register in Form 113 should be maintained in all stations and out-posts to check the movements of all KDs and suspects. The names of notorious rowdies and all other history sheeted persons shall also be entered in this register. The bad characters who are in jail and not likely to be released during the year can be entered at one place in the opening pages of the register. The information in respect of bad characters who are present, out of view, or in jail but likely to be released during the year shall be entered every month. In the case of bad characters in jail, entries regarding the period of imprisonment and the probable dates of their release shall be made in the remarks column. The names of KDs followed by those of suspects will be written for each beat serially. The date of the expiry of the history sheet shall be noted in the remarks column against the name of each BC. The entries on each person should be entered on the basis of reports received from beat constables or on facts ascertained through personal enquiries by the SHO. The presence or absence of a person in the register will be noted by means of the symbol "P" or "A" with the date and hour of check, the number and name of the constable who checked the person or the designation and name of the officer who checked him.

B. The names of criminals and suspects addicted to the commission of crime at night should be entered in red ink in the register. These persons should be checked during the night. The names of others should be entered in blue ink. Enquiries should be made in respect of all criminals during day. Associates of night criminals, though not known to have themselves operated during night, should also be shown in red ink or highlighted in red colour and checked during the night.

C. The names of persons who are members of organised crime gangs, terrorists, drug traffickers, habitual offenders, offenders of trafficking in children and women, habitual forest offenders and those known to commit offences against flora and fauna should be entered in the register and enquiries made. The result of enquiries and their current activities should be noted in the sheets.

Duty Roster

8-A. A register in Form 102 should be maintained in all rural police stations.

B. The name and number of the beat, sensitive/hyper-sensitive villages therein and route villages should be written for each beat area in the relevant column of the Duty Roster. Each beat should be numbered as 1, 2, 3 etc. It is not necessary to enter the names of villages in the Duty Roster each month.

C. The number of beats should be entered first in the register with three horizontal columns for each beat shown as below:

Beat I		Night
	Day	
	Checking Officer	
Beat II		Night
	Day	
	Checking Officer	

D. Other duties such as investigation, process service, village visiting, guards, escorts, orderlies and messenger duties should be entered below the above entries. This will be followed by "Miscellaneous duties". The exact nature of the miscellaneous duty on which a constable is deputed shall be indicated in the roster by a letter of the alphabet below his number. There should be a key on the first page of the roster to show what each letter stands for.

E. The Identity Number of the Police Officer, his name and his rank detailed for a particular duty should be mentioned below the date entry, on which day such duty was performed. In the case of the Sub-Inspector and the Assistant Sub-Inspector, the entries below the relevant date entries will be "SI" and "ASI" respectively.

F. The duty roster relates to all duties and not merely beat duties and shall be maintained by SHO or Station Writer. The SHO must attest the duty roster whenever he is at Headquarters after careful check of entries made in his absence. The manner of allotment of duties is detailed in the Chapter 34.

Village Roster

9. A register in Form 114 should be maintained in all rural police stations. The names of all the villages in the jurisdiction, arranged alphabetically, hamlets being noted immediately below the village to which they are attached should be entered. A village is what is comprised in one Panchayat. The names of villages will be written in red ink and those of hamlets, which are part of same Panchayat in blue or black ink. The visits of a constable, head constable or the SHO on any duty to a village should

be noted in the relevant column by marking the date on which the visit was made and the number and name of the constable or HC or the letters “SHOs” as the case may be.

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CHAPTER 36

Law and Order, Detective and Traffic Police Stations

City, Town or Semi-Urban Police Stations

673-1. The orders, instructions and guidelines on the working of the police stations, their management, the criminal and other records to be maintained are set out in Chapter 33, 34 and 35. The duties of various ranks of police officers and responsibilities attached to the posts are detailed in Chapter 5. The urban police stations located in large cities, towns and semi-urban areas present certain special features and problems. To state briefly the urban area requires more intensive policing and faster response mechanism. The urban policing is divided into two categories. The Commissionerates and “A” grade municipal towns are treated as one category, where there are separate police stations for law and order, crime and traffic functions. The other urban towns are treated as another category where all the functions are carried in the same station but under urban police system. The first category can be termed as city police station and the second category can be called as town police station.

2. In the working and the management of city or town police stations, the instructions in Chapters 33, 34 and 35 with specific reference to Order No. 611 in Chapter 34 in so far as they are applicable should be complied with. Particular attention is drawn to the manpower and resource utilisation, allocation of duties and working hours, maintenance of records, organisation and functioning of area beat, registration and investigation of cases, duties and responsibilities which are contained in the above Chapters and also in Chapter 5.

674. The authorised strength in these Police Stations should be divided into three detachments: (1) Beat and patrol detachment; (2) General detachment; (3) Traffic detachment.

Beat and Patrol Detachment

1. The strength to be provided for this detachment in each Police Station will depend on the number of beats in the PS. The number of beats should normally be 8 in the city and 4 in the town police stations excluding those in the outposts, in the jurisdiction of the concerned PS. The strength for this detachment should be a minimum of one HC and 3 PCs per beat. The detachment will be supervised by one or two SIs at the rate of one SI for about 4 beats. Where only one SI is in charge of the Town PS, he will be in charge of all the beats. He may take assistance of ASI for day-to-day monitoring of the duties of beat detachment.

2. The personnel assigned to a particular beat may be retained for one year. If any one, in the opinion of the SP/Addl. SP, DCP of the Zone, either on his own information, or on the basis of a written report of SHO or Inspector or SDPO or due to any disciplinary proceeding for a major penalty, such police officer may be removed from the beat or even the beat detachment and an entry relating to such an order be made in the Small Service Book along with reference number.

Traffic Detachment

3. This detachment in a town police station shall consist of 1 HC or 3 or more Constables based on the number of traffic points requiring to be manned at peak traffic time during the day. There is no need to form a traffic detachment in towns which do not require fixed manned traffic points or where there is an exclusive traffic/highway police station. If it is a mere regulation on certain days or occasions, the number, necessary exclusively for traffic duty, or if any assistance to the traffic police is required, the personnel may be detailed from the General Detachment. The beat area Constables may also be asked to look after such matters during their day patrolling. The traffic duty of the police personnel who are from general/beat detachments will consist of regulation and assistance to the traffic police on duty, as well as foot patrolling to keep the streets clear from obstructions and the other prescribed traffic duties.

General Detachment

4. All other strength of the town police station shall be known as General Detachment. 1 ASI or HC and 2 to 3 police constables should be earmarked as an Investigating Team for directly assisting the Sub-Inspector/SHO for investigation of cases. This number should be increased suitably depending on the number of cases a police station has to handle, more particularly in City Police Stations. Where the SHO is an Inspector, one or more SIs should be earmarked for investigation of the cases assisted by the team as indicated above. The ASI or SI in this team should also attend the Court, in relation to the cases investigated by the Police Station. One Station Writer HC and a Station Guard or watch as per requirement should also be provided from the General Detachment. The remaining manpower should be utilised either to reinforce the strength for any of the detachments, or for any emergency and such other duties which the SHO considers necessary.

Area Policing (Law and Order PS) - Organisation and functions of beats

675-1. A beat in a town or a city shall include around 2,000 households or a population of around 10,000. The entire station area should be divided into such beats keeping convenience, continuity, accessibility and ability to cover all the streets in the beat in one day or night on foot. The total number of beats in a town should normally be around 4 and for a city area around 8. A minimum of 4 or a maximum of 7 police officers consisting of at least one ASI/Head Constable should be earmarked for each beat.

2. In case of outposts there should not be more than 2 beat areas. The organisational functioning of the outpost is dealt in order 705 to 710.

3. Every household should know the beat in which they are included and the names of SI, HC, PCs who are assigned to the beat and the place of their work and the telephone number of the place of their work (PS or OP).

4. The objectives of the beats and the duties of HCs & PCs given charge of a beat in a town/city, their powers and responsibilities are the same as contained in Chapter 35 relating to Beats and Patrols in rural areas. The SHO and all connected with the beats in the town/city police stations should be familiar with all the orders in Chapter 35 and comply with them in so far as they are applicable to the towns/cities. This is in addition to the specific instructions contained in this Chapter. All reference to villages and records in Chapter 35 may be construed as a reference to the various localities, colonies, streets and corresponding records of the town/city police stations.

5. The PCs and the HCs earmarked for each beat are responsible for all preventive duties of the police in that area and for reporting all information, maintenance of prescribed records and handling any situation themselves or by securing help from the police station. They have all powers conferred by the CrPC, the Police Acts and other Acts and they to ensure prevention of offences and protection of the people should exercise these. The limitations on such powers and the responsibilities attached thereto should be understood and recognised.

6. The other important duty is to serve summons and execute warrants in the area of their beat.

7. It shall be their duty to collect information on all matters listed in Chapter 35 relating to their beat area and if necessary communicate the same to the station or otherwise with the quickest communication available.

8. The HCs and the PCs in charge of the beat shall patrol their respective beats for a minimum of 15 nights in a month either together or in two intervals spread over the month.

9. The Head Constable in consultation with the Constables in charge of the beat shall prepare as many models for beat service as possible in that beat, including night beats varying the routes, lurking points, contacts with neighbouring beats etc. in advance and assign them serial numbers titled as Plan 1 or Plan 2 and so on.

10. The Sub-Inspector shall be responsible for keeping in close touch with the beats and for complete supervision of the fieldwork, simultaneously verifying records maintained by them

11. During the day time, their patrolling duties should be drawn up in accordance with the standard plan which should include clearance of obstructions, dealing with cases of nuisance, street brawls (affray), process service, moving and watching in congested areas, verification of B C rolls, crime card enquiries, check of bad characters who are listed for day check, assistance to staff in regulation of traffic, despatch of messages or communications relating to that area, assistance to Investigating Units, preservation of the scene of occurrence, organisation and liaison with the maithri committees of the area or welfare associations of the locality and any other duty relating to that beat specifically entrusted by the Sub-Inspector or the SHO for that day.

12. The Police Constables and Head Constables assigned to Outposts and beats should be fully conversant with the station jurisdiction generally and beat area in minute detail. They should know the names and be able to recognize all history sheeted persons residing in or known to visit the town or their beat. They should also know the residences of relatives and associates of such bad characters.

13. The most important duty of night beat men will be to identify and pick up suspicious strangers, question them intelligently as to the reason for their visit to the locality and quickly verify the information given by them. This should be done with skill and tact and only in cases where such strangers are not able to give a satisfactory account of their presence or where their movements are suspicious, they may be brought to the police station for further action and a report presented to the SHO forthwith.

14. If new gangs or suspicious groups are noticed in some places the beat Constables should immediately question their members and get information regarding the number of male and female members of the gang or group, their occupation, the time of their arrival the earlier places visited by them and time and duration of such and the place from where they hail. They should also question the purpose of their visit and their destination. When however, large gangs are encountered, the beat Constables are not to confront them, but report their presence to the SHO who will arrange for their interrogation on the lines indicated above.

15. If any strangers are found in the company of a bad character, information in respect of them must be immediately gathered and passed on to the SHO. If their movements are suspicious, they, along with the BC, should be taken to the Police Station for questioning.

16. Minor complaints may be referred to the area beat HC by the SHO and it will be his duty to attend to them promptly. He should arrange for the performance of such other duties as may be allotted to him by the SHO. Copies of the beat diary shall be sent daily to the Inspector/SDPO/ACP by the SHO with the Station GD. The beat diaries shall be maintained continuously by the HC of the beat or in his absence by one of the senior Constables assigned to the beat.

Day Duties

676-1. Day patrolling will be done by the Constables of the beat in their area for specified periods or on definite assigned work. The SHO should either depute them for such specific work in their beats or they should with the permission of the SHO proceed on day patrolling or to perform any of the functions which are required to be performed by them such as gathering information on various items, meeting of area maithri committees or patrolling and other duties as prescribed in 675-11.

2. There shall be no separate staff provided for process service and messenger duty. The service of process or execution of a warrant shall be done in the manner indicated in Chapter 35. A beat area Constable on duty during daytime will be entrusted with a few processes to be served on persons residing in a particular locality in his beat along with his other duties. In urgent cases where the area beat men are not available the SHO may depute any police officer to serve the summons or execute the warrants. It should normally be possible to have all processes received on a particular day, served on the same or the next day. Similar procedure shall be followed in respect of other items of work such as despatch and messenger duty, verification of bad character rolls and crime card enquiry etc.

Night Patrols

677-1. The area of a town police station for purposes of night patrol is divided into beats as indicated in Order No. 675 above. It will be the duty of the Inspector and the SDPO to see that the beats are organized in the manner detailed in Orders 675. The beats should be organized in such a manner that it is possible for beat Constables of the adjacent beats to meet and sign in each other's beat books. An element of surprise and effective coverage of crime prone localities, surveillance of history sheeted persons, apprehension of persons as per 41 CrPC, rescue of people in distress, reaching the spot of trouble if any and prompt report for reinforcements from the PS or PCR should be main tasks. Instructions should specifically cover these. Exchange of signatures of neighbouring beats, mobile patrols and plain clothes surveillance teams if any, should be indicated in the instructions. Contact and exchange of information and recording signature in the point books kept with citizens, private watch and ward personnel to the colonies, flats and congested localities, Railway Police, RPF teams, Industrial security personnel whether private or public sector should be within the allotted tasks.

2. On the return of night patrol beat duty police personnel to the station at 0500 hours, the Police Officers in the station, other than those on guard duty, may be detailed to deal with regulatory functions and urgent cases.

Instructions to Night Patrol Men

678-1. To move cautiously so as to observe thieves without being seen by them.

2. Watch carefully whether all doors and windows of houses are securely locked from inside.

3. To examine back streets, lanes and backyards of houses, and
4. To keep an eye on all disorderly and suspicious persons.

Preparation of Information relating to the Beat Area

679. In addition to the duties and information to be gathered as indicated above the police officers in charge of each beat shall prepare a list containing the information mentioned below. This list should be circulated among themselves and displayed on the station Notice Board for the information of other staff.

- A. the names and residences of the history-sheeted bad characters residing in the beat;
- B. residential complexes of Government Departments, public or private undertakings, large multi-storied blocks, working class colonies and basties;
- C. bazars or other markets, where public gather during certain times of the day or days in a week;
- D. cinemas and other places of entertainment; museums, zoological gardens, parks, drive ways etc. where public gather;
- E. important bus stands and all railway stations;
- F. choultries and other places, where strangers generally take up residence or collect; lodges and residential hotels
- G. residences of high government officers or personages;
- H. important government offices, schools, colleges and hostels;
- I. places of worship, and localities where festivals and fairs take place;
- J. places where point books are kept;
- K. places where police or other security guards are provided;
- L. industrial estates and factories;
- M. isolated housing colonies and houses;
- N. places where breach of peace is likely and the occasions and nature of such trouble;
- O. crime prone areas.
- P. terrorist effected areas/shelter areas of terrorists.
- Q. meeting/contact points of criminals/terrorists.

Checking of Night Patrols

680-1. The checking and supervision of work of the beat Constables on night patrol in their beat area shall be performed by turns by the SHO Inspector or Sub-Inspector of the beat and Asst. Sub-Inspector to enable one of them to be available every night to attend to this work and any other important and urgent work in the Police Station. Every checking officer will invariably sign the beat books or work tickets noting the time and the place where he has checked the beat. In case a Constable of a particular beat is absent, the checking officer will make an entry both in the beat diary and in the Station GD. The Inspector/SDPO/ACP should bring the matter to the notice through a report for suitable action. The officer checking the night patrols should sign the point books and indicate whether the Constables of the beat are also signing them or not and make an entry in the GD.

2. The Inspector and SDPO/ACP should check night patrolmen at least once a week in his jurisdiction.

Duties of General Detachment

681-1-A. Prompt arrival at the scene of occurrence, preservation of the scene, arrest of accused and other arrangements to maintain peace and order. The beat area officers should accompany them if they are present in the police station or proceed to the spot on intimation immediately from wherever they are.

- B. Court work in relation to the cases investigated by L&O police stations.
 - C. Act as Station reserve to meet and respond to any call for police help including incident control and follow up action for offences occurring in the Police Station area,
 - D. To provide for the Station writer and his assistant. The station writer or his assistant should always be available in the police station and attend to all telephone calls and messages. He will also be in charge of the case property room (malkhana), the registers connected with it and safe maintenance of all the case property.
 - E. Provide for the security of the lock up rooms and the premises of the P.S.
 - F. Duties outside station limits when deputed.
 - G. Attending court work relating to the station cases.
2. SHO shall hold the roll call for all personnel of the general detachment as well as other staff who are not engaged on duty at 1700 hours every day when the duties for the next 24 hours should be made known to them.
 3. In the absence of the SHO, the senior-most SI, ASI or HC present will be the SHO and perform all duties of SHO during that time in the police stations.
 4. An investigation team consisting of SI or ASI and other personnel shall be formed by the SHO for the purpose of investigation from this detachment for investigation of all cases by the Police.

Station Security and Guards

682. An SI/ASI shall assist the SHO in the security and guarding, house keeping, reception, public relations, and other miscellaneous functions of the police station. The security should include arms, ammunition and government property, case property, prisoners, lock up rooms etc. The house keeping functions should include cleanliness and proper maintenance of all equipment provided to the police station including vehicles, communications and scientific equipment and weeding out of old records. He will be in charge and responsible for posting guards or watch depending on the assessment of the threat perception under the orders of the SHO and availability of manpower. The strength required for these duties shall be found from the general detachment.

Rotation of duties and Reliefs

683-1. General duty staff as distinct from beat detachment of a police station should also be sent out by turns on day duties as well as night patrol duties in any of the beat to support or substitute the regular beat Constables. They should be sent on night beat duties at least on 4 nights in a month. The personnel allotted to various beats may also be given such duties of general detachment like station guard, reception or investigation, incident control when they are not engaged with their area beats. The rotation of duties should not disturb the assignment of police officers to various area beats.

2. In times of emergency, when it becomes necessary to mobilise an emergency force of the L&O Police, as many police officers of various ranks as can be conveniently withdrawn from routine duties will be assembled at the stations and retained as long as may be necessary. This mobilisation should not include the investigation staff of the police stations. Even for mobilisation to deal with law and order problems within the police station or in the sub-division the orders contained in 617 of Chapter 34 shall apply.
3. Night Rounds by Officers in Towns/Cities: The system of checking of night patrols prescribed in Order 680 shall be followed.

Dissemination of Intelligence

684-1. Where there are more than one police station in a town the Station House Officers should work in close cooperation with each other. The Inspector and SDPO will ensure proper coordination of work of all. Telephones, wireless sets or cell or mobile phones wherever provided should be used for communicating information of interest to other police stations and to each other.

2. Two telephone message registers should be maintained as prescribed in this Chapter.
3. The SHO of each station will communicate to the control room and other police stations in the town or city every morning, reports of crimes, absence of bad characters, arrests of suspicious strangers, cases of missing children,

property lost, found, or recovered under suspicious circumstances, and other matters of interest or importance. Each SHO shall be responsible for the dissemination of intelligence of his station to the other SHOs in the town/city. Only in cases of breakdown of all means of communication, information should be conveyed through messengers.

4. Crime coordination: Instructions of the Inspector in charge of the DPS regarding the areas and persons requiring special attention by the beat Constables shall be complied with. The Inspector, DPS in consultation with his staff and after a thorough scrutiny of the records and information available, should tender the advice or instruction specifically and avoid any general instructions to the L&O Police with regard to night patrols.

5. There should be a weekly meeting of SHOs of L&O Police Stations and the Inspector of the DPS for free exchange of information. The other matters which should be covered in the meeting are the quality of beat service, crime, criminals and their operations, matters requiring mutual assistance, defects and remedial action in recording FIRs, arrival at and the preservation of scene, incident control measures, information relating to absconding or wanted accused, maintenance of criminal records, action taken on previous week's meeting and other matters connected therewith specifically for the week.

6. The Inspector of DPS shall conduct these meetings in which all SHOs should be present irrespective of rank. The SDPOs of the L&O Police and Investigation Branch should preside over at least one of these meetings each in a month. These meetings should be held preferably on Saturdays. The proceedings of the meetings shall be drawn up by the DPS Inspector and circulated to those who attend the meeting with a copy to all SDPOs, and SsP. In respect of Hyderabad City, ACP Investigation and ACP L&O concerned should hold the weekly meeting alternatively, assisted by the Inspector in charge of the Investigation Unit for the area covered by his Unit.

Enquiries under Section 174 Cr.P.C. in metropolitan and "A" grade municipalities

685-1. Enquiries under section 174 of the CrPC in cases other than suspected homicides will be conducted by the SHO of the concerned PS or the SI/HC having jurisdiction over the concerned beats and in their absence by any other HC of the PS. In homicides, the concerned Inspector or the Sub-Inspector of the DPS will proceed to the spot immediately and take necessary action.

2. The Police which reaches the spot first may, while preserving the scene and other incident control measures await arrival of the detective police and if their arrival takes unduly long time the L&O Police SI should proceed with the enquiries and other action required to be taken. In such situations where the detective police arrive after the inquest has commenced, they should associate themselves with the inquest being held by the L&O Police and take over investigation thereafter.

Records in a Town Station

686-1. Station House General Diary: This is one of the important records of the Police Station. The SHO is responsible for its up-to-date and accurate maintenance. Even in his absence, he should ensure that it is always kept up-dated and authentic. No latitude is permitted in this matter. In his absence, one of the Sub-Inspectors of the police station present or the Assistant SI or the general duty Head Constable or the SW HC will be in-charge of the general diary. This diary will contain the details of the work and movements of the SHO and other police officers of the P.S. such as grant of leave, issue of passports and disbursement of pay etc. The following instructions are issued for the maintenance of the general diary.

A. At 0700 hours or 0800 hours as the case may be, the Inspector or Sub-Inspector who is the SHO shall close the previous day's general diary and open the general diary for the day.

B. He shall scrutinise personally the cashbook, railway warrants and bus warrants and certify to their correctness.

C. He shall examine the vehicle(s), the POL, communication equipments, telephones, fax, and other equipments and record the maintenance details and damages if any. He should countersign the vehicle log books daily.

D. He shall scrutinise the diaries of each beat and note in the station GD any important matter requiring attention.

E. He shall leave specific instructions for the next 24 hours in the general diary and also where necessary, in the diaries of any beat or the outpost.

F. When detailing HCs and PCs for any duty, he should specify the time of their departure and return to the station after assessing the time required for the duty proposed to be performed.

G. Whenever he goes out, he should record the duty on which and the place to which he is proceeding, and hand over charge of the GD to the SI or ASI or GD HC or to the SW HC as the case may be.

H. When the SHO goes out on any work including court work, he should, after completing the work, return to the station and record in the general diary, the work turned out by him. Whenever the SHO goes out, he should see that his absence from the station is to the barest minimum, a necessity to ensure efficiency and discipline in the staff.

I. HCs or PCs sent outside the town on duty should be issued with a passport under the SHO's own signature specifying the work he is to perform and the hour at which and date on which he is to return.

J. Whenever the SHO returns to the station, he should take follow up action as per entries made in the general diary or beat diaries and record the fact of his having done so therein.

K. The days, on which the SHO does not propose to check night patrols, he should direct, through an entry in the station general diary, the next in command to carry out the check.

687-1. Beat Detachment Diary: A beat diary in the same form as the GD will be maintained by the SHO in the town stations. All matters relating to the duties in the beat shall be recorded in this diary. In the absence of the SHO, the next in command may record entries in the diary.

2. The constant and regular duties in the beat should be listed and pasted on the inside cover of beat book for ready reference and compliance. Varying duties may be written in the beat general diary whenever they are to be performed. In which case, the HC or PC should acknowledge the noting of the instruction by affixing their signature.

3. The instructions to the beat police officers in the towns in the beat diary or beat book should cover the following:

A. notorious rowdies and anti-social elements who require to be checked and the time when they should be checked;

B. the localities where and the times when nuisances, eve teasing, communal or other incidents are generally committed;

C. bazaars and streets which constantly require to be cleared of obstruction and the hours during which obstructions usually occur.

D. notorious opium dens and distribution and storage points of narcotics and psychotropic substances and liquor shops where after-hour sales are known to be conducted unless kept under strict control;

E. cases of missing children;

F. notices of important cases requiring vigilance on the part of the beat men;

G. particular localities to be specially visited for prevention of mischief and all forms of crime; and

H. criminals and receivers who require to be watched.

4. At the commencement of each spell of duty, the officer in-charge of the beat will hold a roll call for the officers of his beat and record the fact in the beat diary. If any member of the beat is absent or late, the fact should be recorded in the beat diary and the defaulter's explanation obtained and submitted to the SHO. Similarly, the officer in-charge of the beat should make an entry in the beat diary at the end of the spell regarding the departure of the beat staff.

5. The SHO shall make an entry in the beat diary each day specifying the night patrolling to be provided in each of the beats, after noting the staff available in each beat in the night between 2100 hours and 0700 hrs. If for any reason the beat area men are not adequate, he may, if he thinks it necessary provide additional staff from the General Detachment for night patrolling duty in any beat during that night.

6. Beat in-charge when they turn up for duty, should pursue the instructions recorded by the SHO/Sub-Inspector and record the fact of their having done so in the diary.

7. All police officers of beats present in the P.S. should not go out on normal beat duty or sent out on other routine duties unless there is a likelihood of any emergency situation arising on that day.

8. Beat Officers are responsible to see that their staff do not leave the station without any specific work.

9. Whenever PC/HC is sent out on duty he should be issued a work ticket in Form 115 with specific instructions. The officers should note the hours of their departure and return along with a report of work done by them which should be entered in the beat or general diary as the case may be. The checking officer may note the shortcomings if any on the duty tickets for further action if they could not be rectified on the spot.

10. The SI/HC in charge of the beat should not absent themselves from the station throughout the spell of their duty on the pretext of going to check the beat staff. He should complete his check and return to the station in about an hour's time. He should receive his beat staff when they return from patrol and leave only after debriefing and making necessary entries in the beat diary.

11. Beat Books: Every beat in a town/city should have a beat book in Form 111, maintained in the same manner as beat books in rural police stations with necessary variations specific to the needs of the town/city police stations. All instructions mentioned above in respect of the beat detachment diary and with reference to the City/Town beat areas contained in this Chapter should be borne in mind in the maintenance of these beat books.

Other Records

688-1. Duty Roster: A duty roster in Form 117 shall be maintained in all town/ city police stations. The roster should be drawn up every day and should contain a clear picture of the utilisation of manpower in the police stations. The personnel who are given off duty or on leave or sick should be mentioned. The principles of utilisation of manpower and allocation of duties as indicated in Chapter 34 should be complied with.

2. Point Books: Point books should be kept at prominent places and at strategic points. A list of places where point books are kept will be displayed in the police station. The manner of distribution of point books in town should cover various localities and crime prone areas so as to ensure effective night patrolling in all vulnerable parts of the beat area. The persons with whom the point books are kept may include members of the local maithri committees and places where private or other security guards are posted, residences of persons in colonies etc. It may be necessary to vary the location of point books from time to time in the same locality. Point books should not be kept at places where the signature of the resident or the guard cannot be obtained. The Constables on night patrol will be required to sign these point books at the hours mentioned in the beat books.

3. Crime Records of town/city police stations: Parts 1 to 5 of Station Crime History should be maintained in the city/town police stations in the same proforma and same manner as prescribed for rural police stations in Chapter 33. In respect of part IV of the Station Crime History the information should be entered for each beat of the particular police station treating each beat as one village and the relevant entries made in the same manner as prescribed for the rural police stations. The beat area HC will be responsible for furnishing the information in writing which shall be edited and entered in the part IV by the SHO with his comments as detailed in Chapter 35.

4. Modus Operandi Index: The MO index of criminals who are residents in the station and who, though belonging to other stations have operated in the area previously should be maintained in the police station following the proforma and classifications of the National Crime Code book and also the classification listed in Chapter 33 as well as Chapter 40 on DCRB.

5. KD Check Register and Beat-wise list of Ex-Convicts: These registers should be maintained in the same manner as prescribed in Chapters 33 & 35.

6. All other records prescribed for an L&O police station should also be maintained in the city/town police stations in the same manner as applicable.

7. It shall be the duty of the Law and Order Sub-Divisional Police Officer/ACP to personally ensure that all records in the town/city police stations are maintained as per the prescribed procedure.

8. The functions and management of the rural police stations are contained in Chapter 34. Except as provided in orders above in this Chapter, the instructions contained in Chapters 33, 34, and 35 and at all other Chapters in the Manual apply to the working and management of all City/Town/L&O police stations.

Detective Police Stations (DPS) and Central Crime Stations (CCS)

689-1. Detective Police Stations are established in all "A" grade municipalities and in Commissionerate Cities. These police stations are meant to detect, investigate and prosecute all offences other than connected to Law and Order and Traffic. These offences include both conventional as well as sophisticated crimes connected to properties and other securities. In these periods of modern and advanced technology computer crimes, economic offences, speculative and money laundering offences take place as a major part of these crimes. These crimes are well dealt with under special laws enacted besides the conventional provisions of Cheating, Forgery and Criminal Breach of Trust provided in IPC. Apart from detective police stations, central crime stations are established in all district Head Quarters and cities working under the direct supervision of SP/ CP.

2. In view of the nature of the crime dealt with by these specialised units, the necessary scientific and other available modern equipment should be placed at their disposal for quick and correct detection of cases. As a part of this, the

following infrastructure facilities must be made available in every district.

- A. Forensic science laboratory unit with all facilities for analysis and examination.
 - B. Sniffer dog squad.
 - C. Finger Print Unit with photographer.
3. When there are more detective police stations and central crime stations in the district, the above infrastructure facility may be extended according to the necessity.
4. The detective police station is headed by an Inspector as SHO assisted by skilled staff well versed in the detection of various categories of conventional and sophisticated crimes. The SHO and his staff shall be given periodical training in all types of white collar offences, including cyber crime.
5. The main functions and responsibilities of detective police stations are;
- A. Detection, investigation and prosecution of all property crimes other than ones connected to Law and Order and Traffic.
 - B. Taking up investigation on scientific and methodical lines.
 - C. Maintenance and upkeep of crime, criminal information system and crime records and computerising all crime records and criminal intelligence data.
 - D. To employ all scientific aids available for crime detection.
 - E. Built up special investigation skills by being equipped with innovative ways of detection of crime in advanced society.
6. The detective police station need not organise beat duties except night patrolling if any to check up some bad characters. It shall have its own plan of surveillance basing on specific events or situations.

Management of DPS/CCS

General Diary

690-1. A General Diary will be maintained in the DPS in the same manner as prescribed for L&O Police Station in respect of their functions and duties and the matters dealt by them.

Night Duty at DPS/CCS

2. The Inspector should always keep a minimum required staff for meeting emergencies out of office hours at the DPS. At least one SI should be available between 2000 hrs and 0800 hrs every night at the DPS/CCS. When information received during the night demands immediate presence of other officers, they should be summoned. The telephone and other communication shall be manned on round the clock basis. Plain clothes officers suitably armed should make the security arrangements in the DPS. The arrangements should be made in a manner that is unobtrusive and does not discourage a normal complainant from approaching the DPS. Only in very rare cases an armed uniform guard should be requisitioned.
3. On Wednesdays and Fridays physical training classes should be conducted apart from catechism, briefing, training and exchange of information. All personnel present at headquarters should attend. They may be allowed 2 hours off to go home and return to the station.
4. An Asstt. Sub-Inspector shall be the Station Writer assisted by a HC.

Telephone, fax or other Messages

5. When the telephone is used for transmission of messages between stations, the officer sending the message and the officer receiving it respectively, will personally make a record of the message and the time at which it was sent and received. When the information conveyed by telephone is important, it will be recorded in the station general diary. Two registers will be maintained in the pro formae given below, one for incoming and the other for outgoing telephone messages. In case of fax messages they should be filed in the concerned case after taking necessary action. A separate register should also be maintained for fax messages in the form given for telephone messages. All communications received by wireless or other means shall be recorded in General Diary.

INWARD REGISTER OF TELEPHONE/FAX MESSAGES

No.	Date	Time	Name of person sending the message	Text of message	Name of person who received message	Remarks
(1)	(2)	(3)	(4)	(5)	(6)	(7)

OUTWARD REGISTER OF TELEPHONE/FAX MESSAGES

No.	Date	Time	Name of person sending the message	Text of message	Name of person who received message	Remarks
(1)	(2)	(3)	(4)	(5)	(6)	(7)

Cases – Publication in Crime and Occurrence Sheets.

691-1. As soon as a case is registered the officer registering the case will report to the record section for publication in the Crime and Occurrence Sheet the following particulars of each case.

A. Name of PS, Case number

B. Section of law

C. Dates and place of occurrence, reporting and registration

D. Brief particulars, and details of modus operandi.

E. A complete list of the property lost as far as possible. (It is for the record section to decide which items to publish and index, and Investigating Officers should not omit unidentifiable items, as they may be helpful in conjunction with other information available in the record section).

F. Detailed description of the accused as far as possible;

G. In respect of offences other than property offences, the same proforma shall be used except columns (E) and (F) above. Instead, the column E should contain details of the case, modus operandi, weapons used, motive, if any and the column (F), the number and nature of injuries caused, the total number of injured persons, other details of the place of the offence, incriminating articles available or used, any property taken away, etc.

2. Every morning, the Investigating Officers of the DPS will send to the record section along with their reports of new cases meant for publication, a precis of the important informations obtained in their previous day's investigations, in pursuance of which further action can usefully be taken by the record section or the local P.S. Information requiring urgent attention should be communicated by telephone to the stations concerned for necessary action.

Express communication of important cases and occurrences

3. The DPS shall report at once by telephone or any other quickest means to the Sub-Divisional Police Officer/ACP concerned to the DPS and the L&O SDPO/ACP, of reports of grave, sensational or important crimes and occurrences. Similar express reports by telephone or other quickest means must be sent by the L&O Police Stations to the Sub-divisional Officer about charges of torture or other serious misconduct against Police Officers.

Registration of FIRs by Detective Police Stations

692-1. The bifurcation of the powers between the Law and Order and detective police station are only for the purpose of specialised investigation. Therefore, wherever an offence is reported, that police station must register it and transfer the same to the concerned police station for investigation.

Action on Registration of FIRs

2. The Officer in-charge of the DPS after registering the cases himself should proceed to the scene or depute a Sub-Inspector selected for the purpose along with the necessary scientific personnel.

Investigation of cases by Detective Police

3. The Inspector in charge of the DPS will personally investigate murders, robberies, dacoities, grave thefts and house-breakings, professional poisoning and professional kidnapping, dowry deaths, caste and communal incidents of serious nature, economic crimes, cyber crimes and organised crimes. If the Inspector, for any special reason, does not himself investigate an important case, but has it investigated by a Sub-Inspector, such investigation by the latter will be under the personal direction of the Inspector, who should make it a point to scrutinise the case diaries and countersign them as a token of having received and ensure that the investigation is proceeding on right lines. The entrusting of investigation to subordinate SIs should be done only in exceptional cases.

693. Security and preventive action, beats, patrols, day and night checks, surveillance and preventive arrests are the responsibilities of L&O police. The DPS may pass on the information to the L&O police relating to the above when they come across. The property if any seized by L&O police under section 102 Cr.P.C. may be passed on to DPS after registration of FIR and transfer of the case to DPS.

Detective Police Stations/CCS ³/₄ Liaison with L&O Police

694. The SHO DPS and the Sub-Inspector will be in constant touch with their counterparts in L&O police relating to the beat information, bad character and the presence or absence of habitual criminals in the area. They should preferably be in touch every morning through telephone or other means of communication.

695. In every detective police station or Central Crime Station, display boards be maintained and kept up-dated by one Police Officer in the DPS in charge of the crime records with the following information:

- A. the staff details including the scientific personnel attached to the team and those available for duty at any given time, those off duty and on out door duty indicating the crime numbers in which they are engaged;
- B. the offences pending investigation, trial and the targetted date of disposal and the officers handling each case;
- C. a comparative statement of all cognizable offences of the area of the DPS for the previous and current years which should include cases reported and investigated by L&O Police, DPS and Traffic Police. A suitable color or symbol may be used to indicate the jurisdiction of the L&O Police Station or the Traffic Police Station which is handling the cases.
- D. a comparative statement of all non-FIR cases under each Act for the jurisdiction of the DPS. This should, by appropriate symbol or colour show the L&O Police or the Traffic Police handling the case.
- E. the names of all wanted persons and the officers of the DPS in charge of operation to apprehend them.

The Crime Record Section

696-1. The main function of the crime records wing of the Detective Police Station is to maintain, update, and preserve all criminal records for the entire area covered by its jurisdiction in the same manner as the DCRB. All criminal records shall be maintained in the computer adopting the software and methods recommended by State Crime Records Bureau (SCRB). The crime classification used in the National Crime Code book circulated should be adopted. The classifications listed in the Chapter on District Crime Records Bureau should be treated as methods under the relevant major or minor heads. If any of the listed MO is not found in the Code book, it may still be entered in the language used in the Order 587 of Chapter 33 and in Chapter 40. The police station records maintained in L&O Police Station should also be maintained in the DPS.

- 2. The entries in the crime records, whether manually maintained and/or in computers the guidelines and instructions in the National Crime Code book circulated to all in 1997 with amendments if any, should be followed. SCRB will communicate up-to-date information to all police stations.
- 3. The crime record section of the DPS will, for the area of their jurisdiction, perform the functions and duties allotted to the District Crime Records Bureau in Chapter 40 of this Manual. One Sub-Inspector will be in charge of the records of the station assisted by an ASI or HC. He shall be directly responsible for all the work connected with the records. The station will keep in close touch, and work in cooperation and under the coordination of the DCRB. The records and indices will cover all crimes (not merely property crimes), criminals operating in the area as also the properties involved. The cases of all professional criminals, ex-convicts, suspects, organised criminals who reside or are known or reasonably suspected to have operated within the area are to be covered. The properties and methods adopted will be entered in the relevant records.

4. The Detective Police Station shall also maintain and up-keep all criminal records and other records indicated in Chapter 33 and 34 prescribed for the Police Stations. However Part-IV of station crime history shall be maintained L&O police station-wise for every village or locality in so far as crime-criminal information is concerned. Part V History Sheets need not be maintained. But a Register of history sheeted persons of each category shall be maintained with one page kept separate for each history sheeted person. In this all information conveyed or received during their enquiries by DPS shall be entered. They may also maintain history sheets for such persons for whom history sheets are maintained in the L&O PS and whom they consider important and necessary. When such sheets are discontinued by the DPS they shall be sent to DCRB for clubbing it with the sheet maintained in the DCRB. All records relating to personnel, equipment, government property, station management should be maintained in the form prescribed for rural or L&O police stations. There would be no need to maintain village roster or beat books or sample signature books. If any personnel are sent out on crime or criminal enquiries or surveillance, duty ticket or authorisation should be issued to the concerned, by the officer in charge. All detective staff must carry their Identity Cards and report the results or work done whenever they return to the DPS. Endorsement for investigation on FIR is a sufficient authorisation.

5. The Inspector in charge of detective police stations shall have full and free access to the information available in the criminal records of the L&O Police Stations in their jurisdiction as also any other information relating to crime and criminals. It shall be within the competence of the Inspector of Detective Police Station to advise on maintenance of crime-criminal Information System and records of the L&O Police Station or other police stations in his jurisdiction. Whenever any such advise is given in writing a copy should be marked to SDPO of L&O Sub-Division concerned.

6. The DPS shall also maintain the KD check register, register of ex-convicts etc. Its general information files will be more detailed than the general information and organisation files maintained by the DCRB. The major and minor classifications contained in the codebook of the NCRB shall be followed in the maintenance of records by the DPS/CCS.

7. The Records Section will be open between 0930 hrs and 1730 hrs daily. If there are any urgent messages to be communicated by telephone outside these hours, they should be communicated to the officer in charge of the DPS/CCS during those hours, which will take action to transfer the information to the concerned next day.

8. The records will be subject to the inspection of the IGP, SCRIB apart from other supervisory officers of the district and the zone. The DPS shall keep in close and constant communication with the L&O, traffic, women and railway police stations as well as the railway police detective branch and their records.

Pending Warrants and 'A' Lists

697-1. When a person for whose arrest a warrant has been issued is absconding and there is no immediate prospect of his arrest, the case diary file and warrant will be sent to the record section of the DPS/CCS and action under section 82 and 83 of the Code of Criminal Procedure will be instituted by the investigating officer concerned. The record section thereon will include the warrant in its pending warrant case file and publish the warrantee in the 'A' list. It will thereafter be responsible for seeing that all necessary and practicable enquiries to trace the warrantee are made.

2. It will publish a monthly 'A' list (list of absconding warantees) and 'B' list (list of absconding warrantees arrested or no longer wanted) and annual consolidated 'A' and 'B' lists as soon as possible after January each year. It will also publish monthly and annual lists of "out of view" active criminals. Alterations to these lists will be published in the Crime and Occurrence Sheet and all stations and officers will correct their lists therefrom. The names of all persons published in the lists of other jurisdictions, who are likely to come to the town, will be included in these lists.

Matter for publication in the Crime and Occurrence Sheet

698-1. L&O Police Stations shall forthwith report to the record section of the DPS for publication all information they may receive about missing children, lost property, and other matters of interest or importance. Information must also be sent to the record section as soon as a person or item of property reported lost, whether in a case or otherwise is found or an absconding accused or "out of view" registered criminal is arrested or traced, so that the indices and records in the section can be kept up-to-date.

Crime Abstracts

2. All Police Stations must maintain and have the full crime abstract, for their area by obtaining the details and results of cases not investigated by them from the detective PS concerned. The cases registered and investigated by L&O Police as well as by the DPS should be included so that a complete picture is available for the Police Station.

Similarly the DPS shall prepare a crime abstract for the entire area by obtaining information in respect of the cases investigated or handled by all the Police Stations in its jurisdiction.

Bad Character Rolls ¾ Form 'A' and 'B'

3. The record section will deal with bad character rolls, Forms 'A' and 'B'. Bad character rolls and other correspondence from the districts to the town about criminals should be addressed to the DPS/CCS, which will arrange for the verification of the rolls on their own or through the crime detachments of L&O police stations and also send a reply. Rolls received by L&O police stations should be sent to the DPS/CCS, after verification, with reports, so that the record section could give them a suitable disposal.

Extracts from case diaries for permanent record

4. The record section will go through all case diaries and extract material useful for permanent entry on record in the histories, general information, subjects, and organisation files and indices.

Criminal Intelligence - Duties of DPS

699. The orders relating to the need for gathering of criminal intelligence and its dissemination are dealt in orders 650 to 655 of Chapter 34, and also Chapter 40 relating to District Crime Records Bureau. The following instructions should be borne in mind by the DPS regarding gathering and dissemination of intelligence.

1. The DPS is responsible for gathering criminal intelligence and information, its documentation, usage and dissemination, notwithstanding the duties of the L&O police to collect and report criminal intelligence. Detailed instructions are issued in Chapter 35 on the gathering of information by the L&O Police.
2. The information to be gathered is of two categories. The first category is based on criminal records and the crime-criminal information system. The second category relates to what is obtained through enquiries, observation of places and persons, surveillance, shadowing, interrogation, contacts and sources.
3. The SHO and the personnel of the DPS should be specifically briefed and trained to secure information by the above methods. The method of collection of such information and the techniques to be adopted is a matter of skill to be acquired. Guidelines are contained in the training modules prepared by the training branch, the intelligence branch and the CID. The SHO should make the personnel familiar with these methods and enable them to use their individual skills at obtaining intelligence in the best possible manner.
4. The source of information should be kept confidential. The informant sheets should be maintained by the Inspector only for regular informants using a code name without mentioning the actual name of the informant. The handling officer's name may however be indicated in the sheet. This sheet should be in the personal custody of the Inspector. A master register should be prepared and maintained by the SP.
5. The informants and sources on various professional categories of crime should be cultivated for regular information. The subjects to be specially covered are the activities of organised crimes and criminal gangs in groups and professional criminals and receivers.
6. The information received from the area police on the cases being handled by the DPS should be entered regularly in the criminal records and analysed by the IOs and their assistants. The clues or immediate action to be taken in each case should be determined and communicated by the fastest means to the concerned for necessary action. The action that needs to be taken by DPS itself should be initiated by themselves promptly.

Instructions to meet local requirements

700. Subject to the orders in this chapter, detailed instructions for the working of the DPS/CCS adopted to special and local conditions may be issued by the SP and the CP including those for the maintenance and use of records. They should particularly take steps for entry of data relating to crime and criminal information system into the computers adopting the guidance and instructions provided by the National Crime Records Bureau.

Traffic and Highway Police Station

701-1. The functions and responsibilities of a Traffic and Highway police station shall be to achieve smooth and safe flow of traffic by efficient regulation and enforcement of traffic laws and to ensure prevention of accidents.

2. Efficient road traffic management should aim at striking a just balance between three essential factors. i) Satisfactory circulation ii) Absolute safety and iii) Reasonable Economics. In the mechanics of traffic management, Engineering, Education and Enforcement should operate coordinately together for making the roads safe and the passage smooth.

3. While regulation and enforcement is the major preoccupation of the traffic police, they have to liaise with the local Municipal authorities, Urban Development Authorities, Roads and Building agencies etc for continuously updating the road surface, geometrics and accessories like signals, islands, railings, dividers, flyovers and underpasses.

4. Traffic Police should organize road safety education of the drivers and all the road users more important the rising generation in schools.

5. Road Safety Parks are also an essential requirement for such training.

6. The basic duties of the traffic police personnel include:

A. Manning fixed traffic points in a town or city

B. Mobile patrol to regulate traffic and clearing the road

C. Enforcement of MV Act and Rules and other notifications.

D. Check and control of rash, dangerous and drunken driving.

E. Patrolling of highways, enforcement of traffic discipline and maintenance of order on the main roads

F. Removing obstructions to traffic flows and organizing traffic diversion whenever necessary, both in the congested areas of the towns/city and on the highways.

G. Prompt arrival at the scenes of road accidents, guarding the scene, rendering first aid and shifting the injured to the hospital, intimating to the L&O Police and assisting them in the investigation of the cases.

H. Communicating information to L&O police/DPS of any incident or movement of criminals or suspected persons or property, which they come to know.

I. Observation and apprehension of wanted persons or taking charge of missing persons in course of their duties.

J. Setting up barricades to check vehicles on alert from the police authorities.

K. Assisting L&O police or detective police in checking for suspicious persons or properties.

L. Assistance to L&O police during large gatherings

M. Undertaking Traffic education

N. Maintenance of prescribed records

O. Upkeep and maintenance of all traffic equipment including traffic signals

P. Take special care of school children, old or blind or handicapped persons and others at road crossings and peak traffic points

Q. Monitoring of traffic on the highways on a full time basis

R. Advise the local bodies and other authorities for erection of road signals, road painting and other matters connected with traffic engineering

S. Coordination with local authorities, highway department, telephones, water works, drainage, electricity in the matter relating to free flow of traffic and its regulation, occasioned by maintenance and repair works undertaken by the concerned departments.

Organisation and Supervision of Traffic Police Stations

702-1. Traffic police station will be established in all commissionerate cities and "A" grade municipalities and also in other places depending on the necessity. Each police station shall be equipped with a mobile wireless vehicle for patrolling purposes. A Highway patrol vehicle shall have staff consisting one SI, one HC and 1 or 2 Constables. The vehicle should be equipped with public address system, searchlights, first aid kit and shall have clear markings indicating the area and identity of the mobile. A certain number of motorcycles with necessary communication equipment shall be provided for each police station to enable mobile patrolling on two wheelers. A traffic police station is normally located in a separate building equipped with all communication facilities in the same manner as L&O police station. The Recovery vans (cranes) and other equipment needed for clearing of obstructions is provided in large cities and at other important places.

2. The traffic and highway police stations will be under the control of a DSP in the districts. In large cities where number of traffic police stations is more the traffic a Deputy Commissioner of Police heads branch. A Sub-Inspector or Reserve Sub-Inspector will divide the police station into sectors each headed. Jurisdiction consisting of a highway or fixed duties in the town as the case may be, will be allotted to the SIs / Inspectors.

3. The staff of the Traffic PS is divided into sections and each section kept in charge of a Head Constable. The traffic section shall work in accordance with cycles of duty to be fixed with reference to the local conditions.

4. The location of the traffic and highway police station should be determined on the extent of the highway to be patrolled and the regulation of traffic in large towns. The locations should be determined also on the basis of nodal traffic points and the need for setting up of police check-posts during emergencies.

Records to be maintained in the Traffic Police Station

703-1. The traffic police station shall maintain all the records relating to personnel and management of station in the same manner as prescribed for L&O police stations. The important records are general diary, duty roster, traffic point books, petty case register, MV Act cases register, challan book, small service books, process register, a map of the area and accident prone areas, the general information book etc. The mobile patrolling teams should maintain apart from the log books, a point book similar to beat book in which all matters connected with mobile patrolling and incidents are recorded.

2. All other schedule of duties and management as prescribed for an L&O police station apply to the traffic PS. Any person approaching with a cognizable case should be helped to the nearest L&O police station without delay taking such action as may be necessary to safeguard the scene of occurrence and shifting of the injured to the hospital.

3. Where Traffic Police is not available, the above duties shall be performed by the L&O Police within their respective jurisdictions.

4. All information on traffic offences and offenders shall be maintained in the Traffic police station concerned and necessary information sent directly to District/City Crime Records Bureau with a copy to the Addl. SP/SP/DCP.

Women Police Stations

704-1. The women police stations are opened with a view to pay special attention to crimes against women and more particularly harassment and cruelty against women. They are also intended to inspire confidence and provide free communication by the women victims. The other functions include assistance to police in search, arrest, custody, escort and interrogation of women prisoners or suspects. Contingents of women police are provided in other police stations also with a view to perform the above functions. The location of women police stations does not absolve the L&O Police and Detective Police Stations of their responsibilities of dealing with and investigating crimes against women and protection of women against atrocities.

2. The records, management and functions of the Women Police Stations shall be the same as prescribed for L&O Police Stations. The investigation of more serious offences particularly cases of rape, dowry deaths and organised trafficking in women shall be dealt by the DPS of the area.

4. The women police station shall be part of a L&O Police Sub-Division and shall be under the supervision of the SDPO of L&O Police Station.

5. The SHO of the Women Police Station shall have all the functions, duties and responsibilities as SHO of an L&O Police Station.

6. The SHO shall maintain close liaison and coordination with the officials of the women and the child welfare department, non-governmental and voluntary organisations, the officials in charge of State Homes for women, and other authorities specified in the Immoral Traffic Prevention Act and the Juvenile Justice (Care and protection of children) Act.

7. The SHO of women police station should furnish the crime-criminal information directly to the DCRB and the DPS.

8. All equipment and facilities including communication etc. as are provided for L&O Police Station are provided to the Women Police Stations. The preventive duties in respect of offences against women shall rest with the women police in so far as it relates to its jurisdiction. Particular attention should be paid in collecting information and taking security action against persons who indulge in organised trafficking in women and children and those who are likely to commit offences of kidnapping, abduction, child marriage and demand and acceptance of dowry.

Organisation of outposts in Rural and Town Areas

705. Outposts are opened either due to remoteness of the police station, easy accessibility to the public and for convenience of performance of police duties in the area. They are attached to a police station whether in town or in a rural area and shall work under the SHO of a police station. The beats in an outpost can be generally 2 to 3 and will be a part of main police station to which the outpost is attached. The beats in the outposts should be serially numbered along with the beats of the police station. The duties of outposts are contained in Chapter 5.

706. Two models of duties for an OP with a strength of one HC and seven Constables is given below. The alphabets stand for each Constable and the duty hours are fixed at 48 hours a week.

Model Chart of duties in an outpost

Model 1

	MON	TUE	WED	THU	FRI	SAT	SUN
0800-2000 (12 hrs)	A	B	C	D	E	F	G
1000-1800 (8 hrs)	C	D	E	F	G	A	B
2000-0800 (12 hrs)	D	E	F	G	A	B	C
2200-0600 (8 hrs)	EG	AF	BG	AC	BD	CE	EF
Weekly off	BF	CG	AD	BE	CF	DG	AE

Model 2

	MON	TUE	WED	THU	FRI	SAT	SUN
0800-1400 (6 hrs)	AC	BD	CE	DF	EG	FA	GB
1400-2000 (6 hrs)	DE	EF	FG	GA	AB	BC	CD
2000-0800 (12 hrs)	FG	AG	AB	BC	CD	DE	EF
Weekly off	B	C	D	E	F	G	A

707-1. The outposts perform all duties of a police station except registration of cases. They are therefore responsible for effective area policing. It is not advisable to have more than 2 beats in an outpost. Model No. 1 makes available at any given time 3 police officers for night duty. Model No. 2 makes available 2 police officers at any time during day and night. Both the models exclude the HC who will be in charge of the outpost. Model 2 is advised where presence and accessibility of police at the outpost is considered necessary. Model 1 is ideal for ensuring night patrolling by 2 beat area Constables in one or the other 2 beats to which they stand allotted. The strength in the outpost should also be divided between the two beats or the only beat which may be formed. They shall perform all duties that beat area Constables are required to perform as per the Orders in Chapter 35. The officer in charge of the OP is also required to maintain the records in the OP and in the police station as detailed in that Chapter.

2. The outpost pattern should be adopted for as many beats as possible. In city and large towns as also in rural areas where there may be no need for a full fledged police station particularly in view of the communication facilities available. In appropriate cases ASI or a Sub-Inspector can head the OP and the strength increased if the beats are more than 2 but not exceeding 3.

3. The outposts are provided with the communication and other facilities, which are available to a police station. The transport that may be made available should be 2 wheelers at the rate of 2 or 3 for outposts. All records as in a police station should be maintained in an outpost except FIR index. A register of all cases reported and referred to PSs should be maintained as indicated above.

Check posts

708. The checkpoints are set up as a temporary measure or on semi-permanent basis to conduct a thorough check of vehicles or persons passing through or coming in at a particular place on a highway, path or road. They may be armed or unarmed depending on the purpose on which the checkpoint is set up. The officer in charge of the checkpoint generally will be a Sub-Inspector or a Head Constable. Whenever the checkpoints are set up its records and management should be the same as for an outpost. The upkeep of arms and their security should be done in accordance with the guard rules and the procedure laid down for the safe custody of the arms. The following guidelines are issued for the setting up and management and work relating to the checkpoint.

1. The place where the checkpoint is to be set up should be surveyed and the selected site should provide sufficient place for outgoing and incoming vehicles to be parked conveniently. The vehicle should not be allowed to be parked too close to each other. The persons in the vehicles should also not have an opportunity of gathering into a crowd at one place.
2. The checking arrangements should be streamlined to serve the specific purpose for which the checkpoint is set up. The personnel who are to check the persons travelling in the vehicles should be thoroughly aware of what they are looking for. If they are looking for persons they should be briefed on the descriptive particulars or photographs as the case may be. If they are looking for properties, weapons and other objects it should be ensured that the frisking or searching are done systematically.
3. Where physical assault or use of firearms is anticipated there should be separate armed policemen covering the search operations without being involved in it. Security cover should also be provided in the form of an additional Sentry to cover the checkpoint itself.
4. The checkpoints should be equipped with strong metal barricades to regulate and ensure orderly flow of traffic as also to stop any vehicle. The metal barricade should be painted with fluorescent paint preferably red and white/yellow for easy identification in nights. A vehicle should be provided for chasing an errant vehicle or a person who tries to escape.
5. As checkpoints are intended for search and seizure, the composition of a checkpoint should contain both armed and civil policemen.
6. A temporary shelter preferably a pre-fabricated structure should be put up whenever a checkpoint is opened with the arrangements for water and food provided at the camp. Tents may be used for living accommodation.
7. Communication link preferably mobile wireless sets or cell phones should form part of the equipment of the checkpoint.
8. The setting up and running of checkpoints at short notice should be planned and rehearsed during normal times for all large towns, cities and districts. SP/CPs should visualise the different situations and plan in advance for the setting up of checkpoints and fix responsibilities for the same.

Armed Outposts

709. Armed out posts are set up to deal with violent and terrorist groups operating in remote areas. The duties and functions of these outposts shall be as determined by the Director General of Police and the instruction issued from time to time. The method of setting up of armed checkpoint, the strength and other equipment to be provided is detailed below.

1. The strength of an armed outpost should not be less than 1 platoon.
2. The arms and ammunition issued to the personnel of an armed outpost should be of such kind and quantity so as to defend it from any attack by armed terrorists.
3. The L&O police station should provide specified number of police officers to form part of the armed outposts to work as guides and otherwise assist the officer in charge of the outpost in his tasks.
4. A temporary structure, which provides for accommodation for the personnel as also for the weapons and other equipment should be set up. Proper fencing, lighting and security arrangements should be built into the campus. There should be sufficient space inside the campus for exercises, drill and other training activity.
5. Transport and communication facilities have to be stationed at all times. A HF wireless station additionally apart from mobile wireless and telephonic communication should be provided.
6. Self contained boarding arrangements and the staff required for the purpose should be part of the establishment. There should be no dependence for any supplies on any local village. All requirements should be procured

periodically from the nearest town by paying the market price.

7. The senior officer in charge of the area has to assign the tasks including the task of collection of intelligence and method of performance of duties including raids, combing, and search and seizure operation from time to time.

8. First aid and necessary medicines should be provided for emergencies.

710. The rural L&O police stations or the town L&O police stations will be responsible for providing necessary support and assistance to the checkpoints and armed outposts which are set up in their jurisdiction. The SHO of the concerned L&O police station should be in close touch with the officers in charge of the checkpoints/AOPs and keep the SP informed of all developments from time to time. The L&O SDPO has an important responsibility to personally ensure coordination and supervision over the work of the AOPs and the checkpoints subject to the orders and instructions of the senior officers conducting the field operations.

◆ 2015 Police Computer Services & Standardisation, AP Police Department.



Andhra Pradesh Police Department

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CHAPTER 37

Surveillance

711. Surveillance is a vital part of preventive action by police, to deter the designs of a person intending to commit offences. The system of surveillance detailed in this Chapter lays down the procedure, for dissemination of information and rules for surveillance. The nature and degree of surveillance depends on the circumstances and persons on whom surveillance is mounted. It is only in very rare cases and on rare occasions that round the clock surveillance becomes necessary for a few days or weeks. It is very difficult and even impossible to keep a watch on all listed persons and hence it is necessary that those who deserve to be kept under close surveillance receive maximum attention. The procedures laid down herein, provide for better surveillance of various categories of persons. All Police Officers should fully understand and comply with these orders.

History sheeted persons - Reporting Movements

712-1. The manner of opening, maintenance and closure of history sheets for various categories of persons and method of surveillance by the beat Police Officers is set forth in Chapter 35.

2. The beat Police Officers should be fully conversant with the movements or changes of residence of all persons for whom history sheets of any category are maintained and those whose names are entered in Part III of the Station Crime History. They shall promptly report the exact information to the SHO and make entries in the relevant registers. The SHO on this basis and / or on the basis of the information gathered by himself should report by the quickest means to the SHO in whose jurisdiction the concerned person/persons are going to reside or pass through. After sending the first report a BC Roll in form A (Form 109) should be despatched to them by speed post or courier service. The SHO who receives the first communication should acknowledge the communication and inform the concerned beat Police Officers of the area. After he is satisfied that the change of residence has been effected or that the subject has moved out to another area he shall report the details to the SHO from whom he received the communication. If the subject is moving out to another area he should initiate the same procedure of intimating the concerned SHO. The receiving officer shall acknowledge the first and second communications. If he takes temporary residence within the limits of another station, his name should be entered by the police of the latter station in the register in Form 113. When replies are received the SHO shall make necessary entries in the history sheet and records. When a history-sheeted person is likely to travel by the Railway, intimation of his movements should also be given to the nearest Railway Police Station.

Reporting movements to other States

3. In the case of a BC who is known to have gone to another State, a BC Roll Form A shall be sent directly to the Station House Officer of the station in the other State preceded first by communication through quickest means. Entries in the concerned record should be made when reply is received. If similar communication is received from other States, action should be taken to verify and enter in the concerned records. A reply should be sent to the concerned based on enquiries.

Presence of suspicious strangers:

4. When a stranger of suspicious conduct or demeanour is found within the limits of a police station, the SHO shall forward a BC Roll in Form B (Form 116) to the Police Station in whose jurisdiction the stranger claims to have resided. The receipt of such a roll must be immediately acknowledged and replied.

5. If the suspicious stranger states that he resides in another State, a BC Roll in Form B shall be sent directly to the SHO of the station in the other State.

6. All BC Rolls sent to other States must be in English.

Bad characters going out of view - Issue of OV Cards

7. When a BC absents himself or goes out of view, whether wanted in a case or not, the information should be disseminated in Form 117 to the police stations having jurisdiction over the places likely to be visited by him and also to the neighbouring stations, whether within this State or outside. Copies of the card should be sent by the SHO to the SDPO and to the FPB, if his finger prints are on record and to DCRB. If he is traced and intimation is received of his arrest or otherwise arrangements to get a complete and true picture of his activities should be made and the concerned record updated.

8. The communication of information regarding movements of history-sheeted persons or others suspects is of vital importance in prevention and detection of crime and should be the personal responsibility of the SHO, once he gathers or comes to know of such information. Similarly receipt of such communications and further action to verify or enquire also rests with him. The points to be remembered in dealing with movements of suspects, criminals, all history sheeted persons or whose names figure as convicts or bound over under preventive sections of law are indicated herein.

A The time and date from which a BC is absent and the place or places he is likely to visit, his propensity for any crime and the means of his travel or persons he is likely to visit.

B. The communication network available including hotline or fax or wireless should be used. Postal communication should be used for confirmation and also for sending any forms or other materials, which may be too bulky or unnecessary at the first instance. Even while using the faster mode the particulars indicated in BC Roll Forms A & B as the case may be, should be indicated to facilitate immediate action by the recipient and vice versa.

C. All communications and replies should be recorded in the History-sheet of the person concerned and filed in original therein.

D. Routine communications to all Police Stations or all States should be avoided. The information should be to specific authorities, if possible or to all those where he is reasonably expected to move.

Transfer of criminals to jails of native place - P.R/T system:

713. All dangerous convicts should be transferred to the jails near their native places, 2 months before their release. If the native place is not known, efforts must be made to trace it through the SCRB and FPB. The SP of the district where the prisoner is lodged should send intimation to the Superintendent of Jail by a P.R/T slip (Form 118) sending a counterfoil to the SP of the prisoners native place.

Release of Foreign Prisoners - Report to be made to the Crime Investigation Department:

714. Before a foreign prisoner whose finger prints are taken for record is released the SP of the district where the case is registered should send a report to the Director, I.B. through CID informing the route and conveyance by which he is likely to leave this country.

Shadowing of convicts and other dangerous persons on release

715. The following are the rules for shadowing the convicts on their release from jails.

1. Dangerous convicts who are not likely to return to their native places should be shadowed. The fact, when a convict is to be shadowed shall be entered in the DCRB in the FP register (Form 119) and communicated in Form 120 to the Superintendent of Jail.

2. On receipt of the release list, the CP or SP of the City/District in which the jail is situated shall arrange to prepare a list of P.R./S. convicts in Form 121 and communicate to the officer in charge of the surveillance team of the CID in places where central jails are located, and in respect of sub-jails to the SHO concerned with orders to arrange for the shadowing of the selected prisoners. One or two officers who are capable of shadowing may be deputed, with necessary advance, bus/railway warrants shadowing the ex-convict, when he travels by train or by road. When the subject breaks his journey without proceeding to his native place, the Police Officer will forthwith report the fact to the SHO of the area under intimation to Officer in charge of his team or SHO and return to his station. The SHO concerned shall promptly communicate the report to the SDPO and the DCRB.

3. The Police Officer deputed for shadowing an ex-convict shall enter the fact in the notebook.

4. The Police Officers shall be furnished with a challan in Form 122 indicating the particulars of the ex-convict marked for shadowing. This form shall be returned by the SHO of the area where the ex-convict takes up his residence or passes out of view to the DCRB / CCRB where the jail is situated, where it shall be kept on record for further reference and action if any.
5. The subjects being shadowed should be kept in view, but on no account should any restraint be put upon their movements.
6. Juveniles released from Juvenile Homes or Special Homes should not be shadowed and should not be marked P.R./S. at the time of conviction.

Instructions regarding surveillance of convicts between States.

716. Convicts of the State of Andhra Pradesh in jails of Tamil Nadu, Karnataka, Maharashtra, Madhya Pradesh and Orissa shall on release be shadowed by the respective State Police up to the nearest border Police Station of the home state of the criminals. Such reciprocal surveillance shall also be made in respect of the convicts of Tamil Nadu, Karnataka, Maharashtra, Madhya Pradesh and Orissa States released from jails in Andhra Pradesh.

G.O. Ms. No. 1830 Home (Prisons-B) Department, dated 9th December 1971.

717. The salient points from the integrated Jail Manual requiring the jail authorities to furnish jail release lists to the Police are given below for guidance.

1. Before 20th of each month, the Superintendent of the Jail should send to the CP or SP concerned a list of the following categories of convicts who will be released during the following month with particulars of the P.S., Cr. No. and section of law in respect of each prisoner.

A. Habitual offenders

B. Prisoners sentenced to imprisonment for one year or more for offences under Chapter 6 of the IPC;

C. Prisoners sentenced to imprisonment for six months and upwards under Chapters 12, 17 and 18 of the IPC;

D. Prisoners sentenced to imprisonment for one or the other of the offences mentioned in sections 170, 328 and 363 to 373 of the IPC.

E. Prisoners sentenced to imprisonment for the offences under any one of the following laws, namely:^{3/4}

1. The Indian Arms Act, 1878
2. The Indian Explosives Act, 1884
3. The Dangerous Drugs Act, 1950
4. The Telegraph Wireless (Unlawful Possession) Act, 1950
5. The Explosives Substances Act, 1908
6. The Central Excise Act, 1944
7. The NDPS Act, 1985
8. Railways Stores (Unlawful Possession) Act, 1955
9. The Immoral Traffic Prevention Act, 1956
10. The SC and ST (Prevention of Atrocities) Act, 1989.

F. Those imprisoned under sections 107, 109 and 110 CrPC, i.e., persons committed to prison under section 122 of CrPC, for failure to furnish security ordered under section 118 of the said Code.

2. A similar list is also required to be sent to the SP of the districts in which the prisoners' homes are situated and also to the SP of the districts in which they were convicted. In case of prisoners convicted in Hyderabad and Secunderabad who are ordinarily residents of the City, the said list shall be sent to the CP, Hyderabad.

3. Where a prisoner has been registered for being shadowed on release, the Superintendent of Jail shall indicate the letters "PR/S" against his name in the list in red ink.

4. When necessary, a supplementary list with same particulars of prisoners who were, admitted after the 20th of each month and who will be released during the following month shall also be sent as aforesaid.

5. Delays in receipt of the release lists from jails, should be brought to the notice of the Director/Inspector-General of Prisons

R. Dis. No. 4983/C/59, dated 18th November 1960

1st List - 30th September 1962

6. These lists will be published in the Weekly/Fortnightly Crime and Occurrence Sheets. In the case of exceptionally dangerous criminals, the SHO will be informed at once.

Note: In applying the above rules case of a wandering man who has no 'residence' i.e fixed place of abode, they may be reasonably interpreted as meaning that he resides at the place where he sleeps, even if he remains there only one night. On his release he may, therefore, be asked under rule 2 where he is going to stay, and he may be told that if he moves about the country he must always notify the place of his temporary abode to the police from time to time promptly.

Rules u/s 356 CrPC for notifying residence of Ex-Convicts

718. The following instructions are issued with regard to ex-convicts ordered to notify residence under sub-section (5) of section 356 of CrPC.

1. Each Station House Officer is responsible for maintaining a correct list in Form 123 of ex-convicts ordered to notify residence, which shall be displayed in the station. The villages notified and the dates of release will be entered from jail release lists. This order does not apply to Railway police stations.
2. When an ex-convict does not appear at the place notified within a reasonable time, the SHO shall report the fact to the DCRB, which should order for enquiries to be made after approval of SP/Addl. SP.
3. Ex-convict ordered to notify shall be watched in the same way as other dangerous criminals and their intended movements, of which they should give notice and movements communicated through BC Rolls.
4. The certificate prescribed by rule 7 of the rules framed by the Government is in Form 124. A copy of the certificate shall be attached to the copy of the general diary sent to the office and remain filed with it.
5. Prosecution of ex-convicts for breach of the rules shall not be undertaken without the sanction of the SP or the SDPO.
6. The offence falls under the second part of section 176 of the IPC.

Remission grants to heinous offenders

719. In case of dacoits and persons convicted of other heinous and organized crimes, the Superintendents of Jails will, under the rules in the Jail Manual, note in the monthly lists of releases to be furnished to the Superintendents of Police, the period of remission earned under Jail Mark Rules. Such persons will be closely watched on release.

Convicts released on medical grounds

720. A convict released by the Government on medical grounds is required to follow certain conditions for his release and thereafter. The conditions to which he subscribes before release are set forth below.

1. That the said convict will, within fourteen days from the date of his release, present himself to the SP or if he is absent, to the Addl. SP in charge of Administration and will produce the copy of the conditions of his release given to him by the Jail Superintendent.
2. That he will henceforth report himself, once in each month, at such time and to such officer as may be directed by the SP or Addl. SP.
3. That he will not leave the district without the written permission of the SP.
4. That he will accept and fulfil the conditions of grant of such permission.
5. That he will not commit any offence punishable by law in force in India.
6. That he will not associate with notoriously bad characters or lead a dissolute life.
7. That he will live peacefully and will endeavour to earn an honest livelihood.

Rules and Instructions regarding watching ex-convicts ordered to notify residence:

721. The following are the rules framed by the Government under sub-section (5) of section 356 of CrPC.

1. A convict in respect of whom such an order u/s 356 CrPC has been passed shall, when called upon by the officer in charge of the jail in which he is confined, state before his release the place at which he intends to reside after his release, naming the village or town and the street therein.
2. After release and on arrival at his residence, he shall, within 24 hours, notify at the nearest police station that he has taken up his residence accordingly.
3. Whenever he intends to change his residence he shall, (not less than two days before making such change), notify his intention at the nearest police station, giving the date on which he intends to change his residence and the name of the village or the town and street in which he intends to reside and, on arrival at such residence, he shall, within twenty-four hours, notify at the nearest police station that he has taken up his residence accordingly.
4. The officer recording a notification under either rule 2 or rule 4 shall allow such period as may be reasonably necessary to enable the convict to take up his residence in the place notified. If the convict does not take up his residence in such place within the period so allowed, he shall, not later than the day following the expiry of such period, notify his actual place of residence to the officer in charge of the police station within the limits of which he is residing.
5. Whenever a released convict intends to be absent from his residence between sunset and sunrise, he shall notify his intention at the nearest police station, stating the time and purpose of such absence, and the exact address where he can be found during that period.
6. Every notice required to be given by the foregoing rules shall be given by the released convict in person unless prevented from doing so by illness or other sufficient cause, in which case the notice required shall be sent either by letter duly signed by him or by an authorized messenger on his behalf.
7. Whenever a released convict gives any notice under the rules, he shall be furnished with a certificate to the effect that he has given such notice by the officer to whom he gives it.
8. A copy of the order specified in rule 1 shall be served on the convict before his release from jail. A copy of these rules in English and the language, which he understands shall at the same time, be given to him and the substance thereof fully explained to him. He shall also be informed for which period he is bound to observe these rules, and that refusal or neglect to comply will render him liable for punishment u/s 176 of the Indian Penal Code, as if he had omitted to give a notice required for the purpose of preventing the commission of an offence.
9. If a convict in respect of whom an order has been passed under section 356 of the CrPC, is released from jail without a copy of the said order served on him, and the other formalities specified in these rules complied with, he may at any time, so long as the order remains in force, be called upon by the police to report himself on a given day at a police station near the place where he resides and on his reporting himself the copy of the order shall be served on him and the other formalities prescribed in rule 8 shall be followed.

Surveillance of criminals at outposts:

722-1. Copies of sheets 1, 3 and 8 of the History Sheets of criminals who are to be watched by the outpost staff shall be kept in the outpost. On the reverse side of the sheet 1, brief descriptive particulars of the criminal shall be noted. The Officer in charge shall send BC Rolls Form A regarding the movements of such criminals direct to the stations concerned. All entries made in History Sheets at outposts shall be copied into the original History Sheets of the station. BC Roll Form B should also be kept in outposts for use when necessary.

“A” and “B” lists of absconding warrantees

2. When a person for whom a warrant has been issued is absconding and there is no immediate prospect of his arrest, or when a criminal for whom a History Sheet is maintained goes out of view, the Station House Officer should send a descriptive roll of the individual in Form 125 to the DCRB.
3. These rolls will be published in a supplement to the C&O Sheet weekly/fortnightly, as the case may be in Form 125, the issues of the supplement being given consecutive serial numbers and page numbers. These lists will be termed “A” lists.
4. In addition to absconding warrantees and “out of view” criminals of the district, the DCRB will publish in its “A” list the descriptive rolls of absconding warrantees and “out of view” criminals of other districts and of persons

whose names are published in the Criminal Intelligence Gazette, who are residents of, or likely to come to the district.

5. The “A” lists will be filed separately in each station, and from them the Station House Officer shall compile in Form 125 a list in the regional language of persons likely to come to his station limits and display the same in the station. The staff of the station is expected to learn the details of these persons by going through these lists.

6. The names of persons, who have been arrested or whose arrest is no longer required, or who have been traced, will be published in the C&O Sheet proper in a list in Form 126, which will be known as “B” list. The “A” list and list in Form 125 shall be updated with the help of “B” lists.

◆ 2015 Police Computer Services & Standardisation, AP Police Department.



Andhra Pradesh Police Department

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CHAPTER 38

Preventive Action and Security for Good Behaviour

723-1. Law empowers the Police and the Executive Magistracy to prevent offences, breach of peace, and maintain public order. These powers inter alia include preventive arrests, security proceedings, removal of public nuisances, prohibitory orders and also deal with disputes that threaten peace. The powers are meant to provide a sense of safety, security and confidence in all sections of society. Prevention is as important as punitive action.

2. The L&O Police is responsible for all measures indicated in this Chapter. The Inspector/SDPO is chiefly responsible for planning, handling and supervision of this work in his jurisdiction.

3. The District Crime Records Bureau, CCRB, CCS, Traffic Police Stations, and the District Special Branch shall furnish all the information which they have, to the SDPO who should along with information collected by Police Stations in his jurisdiction prepare plans and the action required to be taken by them. Prompt action in obtaining security bonds will be a check against occurrence of crimes.

4. The Training Wing shall design courses on preventive work for Constables, Head Constables, ASIs, and others to be conducted in all Police Training Institutions, District Training Centers as well as to be a part of the on-job training modules through distance education concept at Police Stations level.

5. Section 132 Cr.P.C provides protection for certain acts done in good faith. This is a shield for bold and proactive initiatives in the best interests of preventing offences and breach of peace.

Unlawful Assemblies

724-1 Section 129 empowers any SHO or police officer not below the rank of SI to command any unlawful assembly to disperse and if it does not disperse, may use such force as may be necessary and also effect arrest. The power conferred on the Police in this section is both preventive and punitive.

Prevention of cognizable offences

2. Every police officer should take steps to prevent cognizable offences and for this purpose, he is empowered to arrest any person as a preventive measure (151 Cr.P.C.) but a person who was arrested shall not be in custody (either Police or Judicial) for more than 24 hours unless a specific offence is made out in the meanwhile.

3. Section 41 Cr.P.C. empowers a police officer to arrest any person without warrant in certain cases.

Preventive Action by Seizure

4. As per section 95 Cr.P.C., a police officer is empowered to seize any news paper, book or document, the publication of which is prohibited by a notification of the government on the ground that such publication is punishable under section 124A, or 153A, or 292, or 293, or 295A of IPC.

Urgent cases of nuisance or apprehended danger (Section 144 Cr.P.C.)

725-1. According to Section 144 of Cr.P.C a District Magistrate, Sub-Divisional Magistrate or any other Magistrate especially empowered by the State Government may, where immediate prevention and speedy remedy is desirable, by an order in writing direct any person to abstain from certain act or to take certain order with respect to property in his possession or management. The Commissioner of Police, Hyderabad, DCsP and CsP of other cities also are empowered to issue orders under this section. The ground for making such an order is that it is likely to prevent obstruction, annoyance or injury to any person lawfully employed or danger to human life, health or safety or a disturbance of public tranquillity or a riot or an affray. The order is either prohibitory or mandatory. Urgency of the situation is the essence of this provision as otherwise the exercise of power will have no justification. The orders issued under the section are to remain in force for not more than two months and with State Government notification for another six months. The order can be issued ex-parte and can be directed against a person or persons residing in a locality or public generally when visiting frequently a particular area. The order under this section is an executive order. 'Curfew' orders are issued under this section only.

Breach of Peace due to disputes over to immovable property - Action to be taken

2-A. Section 145 arises when there is a genuine dispute between two parties relating to immovable property and there is an imminent threat to peace. The main feature of Section 145 Cr.P.C. is that when there is a bonafide dispute regarding land or water or boundaries and there is likelihood of breach of peace, the Executive Magistrate may pass an order directing the parties to appear and after having heard them and perusing the respective records pass final orders.

B. The magistrate will keep the person in possession whoever is in possession at the time of dispute or whoever is disposed with-in two months prior to the dispute. The order will be in force till the matter is finally settled in the civil court. Land or water referred includes buildings, markets, fisheries, crops or other produce or land and the rents or profits of any such property. The Magistrate will not go into merits or claims of any of the parties or persons to possess the subject of dispute.

C. Section 146 contains power of attachment and to appoint a receiver under certain circumstances.

D. Section 147 relates to disputes that cause breach of peace relating to use of land or water.

E. Police must initiate action under this section under the following circumstances,

- The dispute must be genuine and there is equal claim by both the parties.
- There is imminent threat to peace.

Security for Good Behaviour and Keeping the Peace

726-1. Section 106 of the Cr.P.C. provides that a Court of Session or Court of a Magistrate of a first class may, at the time of passing sentence on a person convicted of certain specified offences or abetting any such offences as laid down under that section, order him to execute a bond for keeping the peace for any period not exceeding three years. Since the Judicial Magistrate after due trial and conviction orders the security, no separate enquiry is necessary. If the conviction is set-aside on appeal or otherwise, the bond executed shall become void.

2. An order under this section may also be made by an Appellate Court or by a Court, which exercises powers of revision.

3. In appropriate cases the SHO with the help of a prosecutor should file a memo in the court immediately after pronouncing the Judgement and before passing the sentence mentioning the reasons for taking security. If satisfied the court may take security up to 3 years commencing from the date of release from imprisonment.

Security for breach of peace – 107 Cr.P.C.

727-1. Preventive action can be taken U/s 107 Cr.P.C. by an Executive Magistrate if he has information through police or otherwise that any person is likely to commit breach of peace or disturb the public tranquility or to do any wrongful act that may probably occasion a breach of peace or disturb the public tranquility and is of the opinion that there is sufficient ground for proceeding. He may thereafter require such person to show cause why he should not be ordered to execute a bond for keeping the peace for such period, not exceeding 1 year as he thinks fit. The Magistrate can take action whether such person(s) is residing in his jurisdiction or committing breach in his jurisdiction residing elsewhere.

2. Section 107 is an effective means for preventing breaches or disturbances of public tranquillity in connection with religious processions, communal tensions, festivals, fairs, elections, caste conflicts, political movements or other disputes between factions. It is not essential in every case there should be two parties fighting against each other. It

must however, be clear that a breach of the peace is imminent, unless averted by proceedings under the section. Courts have held that breach of peace does not mean only breach of public peace or that public should have assembled. Even if an individual is assaulted in his house it is relevant provided imminent breach of peace is anticipated as a result.

3. Before launching proceedings the police shall gather evidence, oral and documentary, of persons (including police officers) acquainted with the circumstances of the case regarding,

A. the specific occasion on which the breach of the peace is anticipated.

B. the existence of a cause, quarrel or other circumstance which is likely to lead to the breach and the period of its duration,

C. the declaration of the parties, indicating their determination to carry out or to prevent certain things, in connection with the subject matter of quarrel,

D. the strength and following of the party or parties, and

E. attempts made for conciliation, with their results.

4. The statements recorded as above are not the statements U/s 161 or 162 Cr.P.C. and therefore it is not necessary to record them elaborately, short notes being sufficient. The witnesses can also sign them.

5. The object of this section is not to punish any person for what he has done in the past or to compensate the victim of an offence, but to prevent him from committing breach of peace. The main requirement is the apprehension or threatened breach of peace.

6. Arrests cannot be made u/s 107 CrPC. Only a Magistrate can issue a warrant u/s 113 CrPC if breach of peace cannot be otherwise prevented. Where the Police Officer feels that arrest is necessary he should report the circumstances to the Magistrate and obtain a warrant for arrest. However arrests may be made in urgent cases under section 151 Cr.P.C. in the circumstances provided therein.

728. Section 108 of CrPC is intended to demand security bonds for keeping good behaviour for a period not exceeding one year from persons who commit or about to commit offences under sections 124-A, 153-A, 153-B, or 295-A of IPC or criminal intimidation or defamation of a judge or an offence under section 292 IPC. The main test is whether the person has been disseminating the offending matter and whether there is any apprehension of the offence being repeated. The matter referred to in the Section 108-2(1)a, relates to such matter which is the vehicle of an attempt to promote enmity. Extremists or their active sympathisers may be bound over u/s 108 Cr.P.C.

729-1. Section 109 Cr.P.C. applies to such class of persons who are found taking precautions to conceal their presence with a view to commit cognizable offences. Both ingredients of concealment and with a view to commit cognizable offence should be present before a person can be proceeded against u/s 109 Cr.P.C. The object of the section is to frustrate the criminal designs before they are carried out. It is purely preventive and not punitive. The security bond for good behaviour can be taken under the section for a period not exceeding one year.

2. Concealment of presence is different from concealment of identity. The police officer must also be able to distinguish between a guilty person and a timid person. The following are some illustrations of cases where 109 Cr.P.C. will apply.

A. A person concealing himself at night with his companions in hedges near a village, giving wrong name and address and being unable to explain his presence, in hedges at night with house-breaking implement and refusing to disclose identity of his companions who had escaped into the jungle. As regards concealment, it has been held that it need not be continuous; even a single attempt of concealment may be enough.

B. Concealment of bodily presence in a house, or grove or hedge.

C. Concealing appearance by wearing a mask or covering his face or disguising himself by a uniform or some other manner.

Section 110 of the Cr.P.C.

730-1. The object of this section also is preventive, and not punitive, and the action is not intended as a punishment for past offences. It is aimed at protecting society from habitual offenders, desperate, dangerous characters and anti-social elements against the perpetration of crimes. It is intended to curb the dangerous activities of hardened criminals and secure the interests of community from injury at their hands. This section deals with habitual offenders in the cases under clauses (a) to (f) and desperate and dangerous characters under clause (g).

2. Clauses (a) to (f) deals with different types of habitual offenders. For the purpose of this section habit can be proved by evidence of general repute or otherwise.

3. Clause (g) deals with desperate and dangerous characters. He is a person who has disregard for the safety of persons and properties. Rowdies and goondas come under this category.

4. Sub-section (2) of section 41 empowers the SHO to arrest without warrant any person belonging to one or more categories described in sections 109 and 110 Cr.P.C. The arrest may be followed by action under these sections.

5. The evidence of general repute relating to the habit of a person can be gathered from the local witnesses, from the aggrieved as well as from the entries of the incidents recorded by the police officer in the G.D. Though previous conviction is not necessary to prove the habit, such convictions will help the prosecution in strengthening their case. Security cases u/s 110 of the Cr.P.C. against local habitual criminals should be built up on details recorded in the Station Crime History as well as the result of careful surveillance and enquiries by the Police. It should be exceptional for a local criminal, for whom a history sheet has not been opened, to be put up under these sections.

6. The history sheet is a privileged document and is not generally produced in evidence. The evidence of persons who have direct and first-hand knowledge of them should prove information contained in it.

7. When evidence of suspicion against the respondent in certain crimes is spoken to by a Police Officer, he must substantiate his suspicion by giving cogent and convincing reasons. A vague suspicion is not enough to warrant the respondent being bound over under section 110 Cr.P.C. Evidence of misconduct should relate to recent incidents and not acts committed by the respondent years ago.

8. Where several persons are jointly put up under section 110 Cr.P.C., evidence of the offences by each of them should not be admitted as against others unless concert between them is shown.

9. The clause, which is applicable to each case, should be specifically stated in the information to be laid before the Magistrate.

Note: (1) Once information is laid before the Magistrate under Chapter VIII Cr.P.C, it cannot be withdrawn. Section 321 Cr.P.C (withdrawal from prosecution) has no application to security proceedings.

(2) Copies of the statements of witnesses recorded by the police officer need not be provided to the respondent, as the information laid before a Magistrate under Ch. VIII Cr.P.C is not a police report within the purview of Section 173 Cr.P.C.

(3) For all the enquiries contemplated in Chapter VIII of Cr.P.C, i.e. for obtaining security bonds u/s 106 to 110, Section 116 (3) provides for detention in custody of the respondents in certain circumstances. Similarly u/s 122 Cr.P.C., the respondents can be committed to prison by the Magistrate, if he has been ordered to give security u/s 106 or u/s 117 Cr.P.C., but fails to give security on or before the date on which the period for which such security is to be given commences, or having executed a bond for keeping the peace in pursuance of an order of a Magistrate u/s 117 Cr.P.C., commits breach of the bond. Police Officers shall use these provisions for effective maintenance of law and order and prevention of crime.

731-1. The AP Habitual Offenders Act 1962 authorizes surveillance over habitual offenders. A habitual offender is one who has 3 convictions during any continuous period of 5 years excluding the periods spent in jail. It authorizes summoning, photographing, and finger printing and opening History Sheets for such an offender. He is also duty bound to intimate the changes of his residence, and appear whenever notice is served. The Government has also formulated the rules under this Act. The Act and the rules is an effective check available to the Police on offenders who are repeatedly committing offences more particularly the professional criminals and members of organized crime syndicates.

G.O. Ms. No. 1985 Home (Prisons-B Department) dated 18.10.1965.

2. The Immoral Traffic Prevention Act 1956 empowers the Court while convicting a person who has been earlier convicted under this Act as well as under sections 363, 365, 366, 366-A, 366-B, 367, 368, 370, 371, 372, or 373 IPC for two years or more to notify his residence or change of residence for a period of 5 years. The Police should invoke this section by filing an application in the Court on the date of judgement bringing to the notice of the Court the records to prove the previous conviction. Such an application should be filed after conviction but before the accused is questioned about the sentence.

3. The Immoral Traffic Prevention Act 1956 also empowers the Police to rescue a person and to order closure of a brothel and eviction of offenders from the premises. The Police are required to file the information before the Sub-Divisional Magistrate to obtain an order under section 18 of the Act.

4. The Indecent Representation of Women (Prohibition) Act 1986 is intended to prohibit advertisements and wall posters depicting women in indecent postures.

5. The Juvenile Justice (Protection and care of children) Act 2000 empowers the Police to rescue neglected juveniles both boys and girls and produce them to the custody of the designated Juvenile Homes. Under no circumstances juveniles should be taken to the Police Stations.

6. The AP Objectionable Performances Prohibition Act 1985 empowers the District Magistrate and the State Government to prohibit performances which are considered objectionable in the sense that they tend to encourage persons to resort to violence, disaffection in armed forces or police forces, promote feelings of enmity between different sections, or those grossly indecent or obscene. The duty of the Police Officer in this connection is, that when he receives information that any objectionable performance is likely to be conducted, he should bring it to the notice of his superior officer for appropriate action. The Sub-Divisional Police Officer may, after scrutiny, report to the District Magistrate through the Superintendent of Police for orders in the matter.

7. The AP Prevention of Dangerous Activities of Communal Offenders Act 1984 empowers the District Magistrate or the Commissioner of Police to order preventive detention of communal offenders.

8. The A.P. Prevention of Dangerous Activities of Boot-leggers, Docoits, Drug offenders, Goondas, Immoral traffic offenders, and Land grabbers Act 1986 also empowers the District Magistrate and the Commissioner of Police to order detention/externment to these offenders.

Removal of Public Nuisances

732-1. Section 133 Cr.P.C. empowers Executive Magistrate to deal with public nuisances either on receipt of report of a Police Officer or other information. The public nuisances that can be redressed and the unlawful obstructions that can be removed from any public place etc. are indicated below.

- A. Obstructions or nuisance to any public place, or way or channel lawfully used by the public.
 - B. The conduct of any trade or occupation or the keeping of any goods or merchandise injurious to the health or physical comfort of the community.
 - C. Construction of any building or disposal of any substance as is likely to occasion conflagration or explosion.
 - D. A building tent or structure or a tree as is likely to fall and cause injury to persons.
 - E. An unfenced tank, well or excavation near public way or place and
 - F. A dangerous animal requiring destruction, confinement or disposal
2. The duties of police in this regard are to inform the concerned Executive Magistrate promptly, all the matters falling in the purview of section 133 Cr.P.C. on the lines as indicated below.
- A. The L&O Police, beat and patrol men are responsible for reporting such instances without any loss of time.
 - B. If any representation is made or information is received, it should be verified by a visit to the place by the Police Officers of the beat.
 - C. If they come across such nuisances, the details should be collected including photographs or sketch of the place and submitted to the SHO.
 - D. Private litigation or private interest should not be the basis for action by the Police.
 - E. It is not necessary that there should be danger or inconvenience already existing to the public at large, but it is sufficient if there is likelihood of such a thing, being caused.
 - F. The term public nuisance is defined in section 268 of IPC which can be adopted for the purpose of this section. Section 12 of IPC states that the term public includes a class or community residing in a particular area but that class must be numerically sufficient to be designated as such. They should have a right vested in them irrespective of numbers. Public place includes also property belonging to State, camping grounds and grounds left unoccupied for sanitary or recreation purposes. A place in order to be public must be open to them where they have access by right, permission, usage or otherwise.
 - G. Action under this section is not barred by Environmental Protection Acts.
 - H. Untreated pollutants, dumping of solid wastes, letting out chemical substances, gases, vapour or this section besides specific provisions of law attracts dust, husk etc.. The concerned agencies also have powers and responsibility. There should be mutual liaison between police and concerned departments and agencies.

3-A. Entries should be made in the Register kept for regarding the brief details of all cases in which action is taken on report of police including the result. Separate entry should be made in respect of assistance rendered in cases taken up by Magistrate on his own or on information from other sources.

B. Specific attention should be bestowed on cases that pollute air, water and earth, and cases where life of public is in danger. It should be remembered that action under this section is preventive, while punitive action may be under relevant law or laws.

C. Evidence of experts should be collected and enclosed to the report particularly that of Engineers, Pollution Control Board, FSL etc.

◆ 2015 Police Computer Services & Standardisation, AP Police Department.



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CHAPTER 39

Preservation of Peace

Nature and Causes of Breach of Peace

733-1. The majority of riots and other disturbances causing breach of peace take place mainly due to socio-economic and political frictions, communal, caste, regional, industrial, agrarian and political disturbances. Organised criminal and goonda gangs and unsocial elements in pursuit of private gain indulge and provoke these disturbances adding fuel to the already provoked people. The disturbances cause widespread panic resulting in physical assaults, bodily injuries, murders, lootings, rapes and forcible closure of business and shops and intimidation and in short all inhuman acts take place posing a challenge to the efficacy of the police and the government in dealing with these disturbances. Police have an onerous and difficult duty in tackling such situation with all the legal means available at their command. Prevention saves considerable loss of life and property.

Impact of wide-spread riots

2. No crime is so dangerous to the peace, harmony, life and well being of the people as riots. Widespread riots for any duration paralyse trade, free movement of people depriving their normal means of livelihood shaking the confidence in the police and the government for their peaceful existence. Therefore, it is the prime duty of the police to prevent the commission of breach of peace by gathering intelligence to nip it in the bud and if it crosses that stage by taking up effective measures in controlling the disturbances. Primarily, it is the duty of the law and order police to control these disturbances as per situation with the assistance of other wings of the department like Reserve Police, Railway Police, Special Police and Central Paramilitary Forces etc. as per the need. Each situation calls for different ways of dealing and adopting measures suiting to the laws and the needs.

Collection of Information

734-1. One of the most important duties of the police is the collection of information about every movement, state of feeling, dispute or incident, which may lead to a breach of peace, and the communication of such information to the concerned authorities with a view to take action or to use the information for the purpose of preventing or detecting crime or preventing breach of peace. All police measures and actions, their efficacy and use entirely depend on the intelligence gathered and its use. In dealing with the situations described in this Chapter information on the following lines is absolutely essential and should be gathered by the SHO, Inspector, SDPO and other senior officers apart from the specialised units meant for the purpose.

Note: SHO in this Chapter means the SHO of L&O Police wherever exists.

- 1-A. Consult station records to identify the occasions when breach of peace is likely, its nature, the places and potential troublemakers. It is necessary that all records are accurate and updated.
- B. Visit the place and assess public feeling and likely trouble.
- C. Contact persons who command respect and confidence of rival groups.
- D. Gather information from all possible sources
- E. Read and follow thoroughly the communications and instructions from superior officers
- F. Confer and ascertain full details from beat police and other police staff

G. After the evaluation and assessment of the problem in all its aspects with reference particularly to the persons, places and nature of trouble, police officers shall decide on surveillance, preventive arrests, promulgation of regulatory or prohibitory orders, arrangements to be made to contain and control trouble, the specific briefing to all Police Officers to be deployed including arrangements for their accommodation, food, etc. if the assessment reveals need for extended period of deployment.

2. It is the prime duty of the police to prevent the commission of cognizable offences. In such endeavour they should enlist the assistance of influential persons in communities in mitigating the situation and see that they exercise their influence in controlling the situations. The help from Maithri Committees is highly desirable in this regard.

3. All HCs and PCs of the beat area should be instructed to take help of village officials and keep vigil and report from time to time on the meetings, both public and secret, handbills distributed and rumours set afloat by mischievous local elements or outside agents.

4. A striking force of adequate police strength should be mobilized and kept ready for attending to any sudden outbreak of mob violence. Besides this all riot control equipments like water cannon, concertina coils, gas guns, firearms and ammunition, helmets, shields, tear gas shells, shock batons, baton rounds (rubber/plastic bullet), lathis etc. should be kept ready for use.

5. Precautionary measures for preventing or dealing with such disorders depend upon a number of factors, including the cause of friction, the nature of the particular dispute, whether the danger is continuous or associated with a particular festival or occasion, and the influence of the leader of the communities. Experience has shown that adequate precautions taken in proper time tend to inspire confidence among several communities and check the misguided zeal of irresponsible elements. Arrange frequent patrolling if assessment reveals possible breach of peace. Such a precaution signals police preparedness and acts as a deterrent to possible troublemakers and inspires confidence among public.

6. Bestow utmost attention to fasts, feasts and festivals of different communities occurring at the same time. Work out mutually acceptable arrangements; reconcile conflicting approaches or disputes with the help of rival local leaders. But do not be misled by promises and assurances and make necessary arrangements as a precaution.

7. Keep the concerned Executive Magistrate informed in writing to be available. Police Officers should remain in close touch with the magistracy during situations of anticipations and actual breach of peace.

8. When tensions and feelings run high, a clash in a large town develops into serious and widespread trouble. Precautionary measures need to be taken on this assumption as such steps will prevent and stop clashes in other areas apart from containing spread of trouble.

9. At times, disorders get a firm foothold before the necessary arrangements are made and forces arrive to control and bring about normalcy. In such an event ordinarily, the trouble assumes the form of gang attacks, kill and run tactics in localities where one community is weak and the police are inadequate to prevent it. Widespread looting and arson will often be features of this stage. The following measures have proved to be of value in such situations.

A. Promulgation of orders under section 144 Cr.P.C. including curfew, prohibiting the holding of meetings, delivering of speeches, assembling of persons, carrying of weapons, taking out processions, or other acts from which a breach of the peace can be apprehended.

B. In cases of dispute that occasion the breach of the peace relating to land or water or to boundaries of land or water, action under sections 145 to 148 of Cr.P.C. is appropriate and must be taken. Copies of reports to Magistrates for action u/s 144 or 145 of Cr.P.C. should be sent to the concerned superior Police Officers.

10. If the prospect of averting trouble is not encouraging take the following steps:

A. Concentrate a sufficiently large police force that can be gathered in the vicinity of the scene of trouble. But where trouble is anticipated a show of strength, is sometimes sufficient to avoid untoward developments. The police force should be strong enough to deal promptly and effectively with major or minor incidents. Route marches by police columns through the affected areas help in containing and the spread of incidence.

B. Arrangements must be made for patrols and pickets and for the establishment of communications between the various police parties and the police headquarters.

C. The deployment in such situations should be to contain large-scale trouble and quick return to normalcy. Hence aimlessly scattering and thinning out the police force should be avoided otherwise it may result in not being able to prevent anything anywhere. The thinned out forces get submerged helplessly in the cauldron of mob violence. All deployment should ensure communication between all pickets, patrols and striking forces both in terms of equipment and physical mobility between each

point. In short physical contact by foot or transport should be ensured between one point and other when police are deployed. All should be closely knit to be able to press maximum resources where most needed in the shortest time.

D. SDPOs, SP/Addl. SP should be present on the scene of the trouble and should not leave the situation to be handled by subordinates alone, but at the same time without taking away initiative from them.

E. Mobile patrols in a vehicle with a Magistrate and motorcycle patrols in a town are more valuable form of patrol in a town or city.

F. Precautionary measures should include action u/s 151 Cr.P.C. against goondas, rowdies, suspects, bad characters and the persons likely to create trouble. Since the effect of an arrest u/s 151 Cr.P.C. is only for 24 hours even if remanded to judicial custody, a specific offence must be made out in case he is to be kept in custody for more than 24 hours.

G. In respect of breach of peace due to communal, caste or other problems, preventive detention can be resorted to. In such cases recourse can be had to AP Prevention of Dangerous Activities of Communal Offenders Act, 1984, and other preventive detention laws. When public property is destroyed in the course of riots or agitations action can be taken under the Prevention of Damage to Public Property Act 1984. The Hyderabad City Police Act provides for extenuation of rowdies from the area.

H. For the dispersal of unlawful assemblies by use of force 3 important conditions should be fulfilled; (1) that there is an unlawful assembly; (2) such an assembly is ordered to disperse; and (3) in spite of the orders the assembly refused to disperse. The force to be used is the minimum required to disperse the unlawful assembly. The quantum of the minimum force to be used differs from situation to situation and depends on the nature of crowd and its activities etc.

I. A booklet on dealing with communal disturbances has been circulated by the Government to all District Magistrates, Superintendents of Police and other officers. The instructions given therein should be followed.

J. In appropriate cases, those who incite class hatred should be proceeded against under section 153-A IPC. Tendency towards disorder should be nipped in the bud and the actual outbreaks handled effectively with the least possible delay and the minimum loss or damage to life and property.

K. The government desires that local officers, charged with the maintenance of law and order take prompt measures to deal with communal agitation from the beginning and on no account allow the situation to deteriorate. They should keep the DM and the SP informed of the developments by quickest means from time to time, and seek instructions when necessary.

11. Copies of sections 30, 30-A and 31 of the Andhra Pradesh (Andhra Area) Police Act 1859, sections 23, 24 and 25 of the Andhra Pradesh (Telangana Area) District Police Act in the case of Telangana districts and section 22 of the Hyderabad City Police Act in the City should be distributed to all area Police Officers in every police station and provisions explained during training class in the station.

12. There will be salutary effect if arrests of those responsible are made immediately on the spot. Where the clash takes the form of mob fighting, there should be no hesitation to disperse it by use of force. Use of firearms at a mob should be only as a last resort when all other measures have failed to save the lives and property of the people. However the decision to open fire to control mob should be taken quickly and the situation should not be allowed to go out of hand due to in-decision or delay in taking decision to open fire.

13. A riot scheme should be drawn up for every important town for each category of riot like communal, caste, regional or political. These schemes should be practiced every half-year. The object of the practice is to ensure that all officers are conversant with the details of the scheme and their duties therein.

14. Cases must be registered promptly, investigated impartially and prosecuted successfully under the close supervision of Inspectors and SDPOs. If need be, a separate investigation team should be formed during the period of riots.

15. Whenever there is a shortage of manpower, special police officers can be appointed under the Police Acts.

16. When the situation has been brought under reasonable control the following measures should be taken.

A. Police deployment should ordinarily continue, though on a reduced scale, until confidence is restored.

B. Orders passed under section 144 Cr.P.C., may be continued for some time since this helps in preventing panic.

- C. If curfew has been imposed, a relaxation for a few hours depending on situation may be given to start with and later it can be gradually withdrawn when situation returns to normal.
- D. The assistance of non-officials is of greater value during the conciliation stage and it should be fully availed.
- E. Senior Police Officer must assess the situation promptly and leave the scene when they are fully satisfied that the situation is brought under control without taking complacency haphazardly.
- F. Case reported during riots should be promptly investigated and finalised.

Legal Powers to deal with Breaches of Peace

Licencing power for assembly or procession

735-1. Section 30 of the Police Act, 1861 (section 23 of the AP (Telangana Area) District Police Act) empowers DSsP and above to notify requiring licence by all persons conducting a meeting or a procession in public places or thoroughfares. If the DM or SDM is of the opinion that such assembly or procession, if uncontrolled, is likely to cause a breach of the peace, they are also empowered to issue notice-requiring licence by any assembly or procession for the use of music. The officers of the rank of DSsP and above issue these licences.

- 2. As per the direction of Government, such order shall specify the duration for which the licence is required.
- 3. A procession or an assembly which violates the conditions of a licence granted under section 30 of the Police Act, 1861 (or section 23 of the A.P. (Telangana Area) District Police Act) may be ordered to disperse by any magistrate or any Police Officer under section 30-A of the Police Act, 1861 (or section 24 of the Hyderabad District Police Act). If the procession or the assembly so ordered to disperse neglects or refuses to obey the order, it shall be deemed to be an unlawful assembly.

Instructions for the guidance of officers in regard to processions

736-1. Public have a right to pass in procession with music subject to the known rights of a community by convention or religious practices or due to Judgement of courts or by recognized rights and mutual understanding.

- 2. The enforcement authorities should play an impartial role in implementing the respective right of the parties.
- 3. If it is apprehended that the enjoyment of the approved practice with respect to any procession will lead to a breach of the peace, it is the duty of the officers concerned to take adequate precautionary measures. Such precautionary measures would include the measures indicated in Order 734 and also action on the following lines:
 - A. Leaders of factions should be involved from the beginning in the maintenance of order. Help of Maithri Committees should be solicited.
 - B. Any newspapers carrying on communal propaganda should be cautioned against indulging in any action likely to lead to further disagreements between the communities. The Press Council should also be addressed to ensure compliance to Code of Conduct evolved for reporting communal issues. If it becomes necessary, orders may be passed against them in this matter under section 144 of the Code of Criminal Procedure or any special legislation available as a last resort. All relevant material and its effects should be kept ready to face the challenge to such actions in courts. Freedom of press (expression), a right guaranteed under the Constitution should be respected. But the restrictions if any imposed on such right should be implemented. It should be borne in mind that flow of proper information to the public through press may also bring down tensions and help in restoring normalcy. Hence all Police Officers should assess the situation in its entirety and make proper use of the media to restore peace and confidence.

Police action during industrial unrest

737. The following orders should be followed by the police on the occurrence of trouble among the workers during strikes or wide spread unrest.

- 1. Problems in the organised labour are due to economic causes or due to unresolved disputes between management and labourers or some times due to vested interests of trade unions. When a strike or a situation that disturbs peace actually recurs, the duty of the police is only to preserve peace and not to interfere in or arbitrate on the issues involved. There are several departments under various laws to deal with such disputes. Police are concerned only in

prevention of violent activities and destruction of properties. They should however; activate the labour and individual department officials to initiate measures for solution if they feel that clashes or undesirable activity may result if the solution is not found.

2. As in all other law and order situations, timely information on the industries, the subsisting disputes, potential for law and order problems arising, the likely trouble makers, the nature of violence that may be caused should be gathered by the L&O police.

3. In particular, it is the duty of the police (a) to prevent breaches of the peace, (b) to secure the safety of property, (c) to secure the safety of general public, (d) to deal with and investigate cognizable cases, and (e) to obtain information on the points referred to in sub-order (6) below.

4. The SHO shall inform the Inspector, SDPO and the SP at the earliest possible indication of a strike and intimidation immediately on its occurrence. The report should contain details of the number of persons affected, the issues involved in the strike and the extent of disorder anticipated. Should the police force of the area be insufficient to cope with the situation, the SP should requisition additional strength from neighbouring Sub-Divisions or, if necessary and urgent, from the Reserve Police. The general instructions given in Order 734 also apply to breaches of the peace caused or likely to be caused by industrial unrest.

5. It is to be remembered that peaceful picketing to prevent non-strikers from attending or resuming work by persuasion, as distinct from force or intimidation, or wrongful restraint is not an offence and does not call for police interference, but only watchfulness and regulation.

6. Information on the following points should be gathered;

- A. the names of any instigators or the more militant among them of the strike not directly interested in its avowed economic objects;
- B. the extent to which such instigation is responsible for the strike;
- C. communication and concerted action with the leaders of other unions and strikes;
- D. the direct and indirect causes of strikes that may be avowedly political;
- E. the existence of literature inciting to strike;
- F. the probable local political effects of the strike;
- G. the numbers of strikers and the classes to which they belong; and
- H. the money and resources available and the source thereof.
- I. the percentage of workers likely to participate in the strike.

7. The most commonly adopted forms of protest are;

- A. Demonstrations, generally lunch hour by raising slogans
- B. Picketing or relay fasts, or mass fasts near the gate of the establishment
- C. Wearing black badges
- D. Work to rule
- E. Mass casual leave
- F. Gherao and obstruction of Managers

8. Out of all these Gherao and obstruction only constitute an offence. The basic factor to be remembered is whether any of these assume a violent or abusive form calling for police intervention. The area police should make arrangements to cover demonstrations, hartals etc. so that they can intervene effectively. When information about the Gherao is received the police must rush to the place so that the person restrained is set free.

9. The cooperation of the labour leaders and responsible workers is very vital in eliminating violence.

10. In the event of railway strikes the scheme drawn up should be implemented.

11. In dealing with violent situations inside a factory, particularly containing sophisticated machinery or chemical substances the help of the officers should be secured.

12. The industrial security personnel, or others posted for security would be in the best position to provide necessary assistance to the police in dealing with the situation. Close liaison should therefore be maintained with them.
13. Destruction of public property or physical harm to persons, violent street demonstrations in the factory or outside should be dealt with in accordance with law, with speed and expedition.
14. The police must be aware of the right to protest to seek solution of labour problems in accordance with laid down laws and keep themselves fully informed of the situation in their area so as to act in time wherever violence is likely.

Measures to deal with factions in villages

738-1. The frequent occurrence of factious riotings in certain areas of the state is a definite indication of the challenges, which the police have to face in controlling factious crime effectively. Attention should be paid to factious villages and all steps appropriate should be taken to prevent factious crimes. Impartiality, integrity, promptness and firmness are the most essential qualities required of a police officer in dealing with factions and investigation of factious cases.

2. When a faction comes to notice for the first time, efforts should be made to nip it in the bud. Conciliatory methods may be successful at times. If the faction persists, there should be no hesitation in setting the relevant law in motion. All officers from the SP downwards should visit factious villages and send a message to the factionist that the police would mean business in dealing with any disturbance or crime and follow up with necessary measures. The factious villages shall be covered effectively during day by beat area police officers. Informants should be cultivated and information network built up. Arrests u/s 151 Cr.P.C. should be made where necessary.
3. Even a minor incident resulting from a faction should not be ignored. Section 160 IPC and sections 106 and 107 of Cr.P.C. shall be used. In all cases under section 107 of the Code the Magistrate should be requested to take interim bonds from the parties. In some cases, it may be necessary to take action under clauses (e) and (f) of section 110 of Cr.P.C. against important faction leaders and rowdies. In cases of factious riotings and affray, the Magistrate should be requested to bind over the parties under section 106 of Cr.P.C, in the event of a conviction. (Refer Chapter on Security Proceedings). In 106, 107 or 110 Cr.P.C. cases a person who is capable of ensuring good conduct should be insisted as surety. If police officers furnish all background material on the sureties it will enable the Magistrate to decide whether to accept the surety or not and jail the persons if sureties are not to his satisfaction.
4. Even after the parties to a faction have been bound over under section 106 or section 107 of Cr.P.C., there should be no relaxation of vigilance in regard to that faction, as instances are not wanting in which even after action has been taken under the security sections of the Code of Criminal Procedure, factious parties have committed overt acts and indulged in sudden outbursts of violence. Every such incident, however small including the attempts should be taken cognizance of. The offenders should not only be charged for the specific offence but also action taken for forfeiture of their bonds. If, in spite of all these measures, factionists continue to be active, the Superintendent of Police should have no hesitation to come up with proposals for quartering additional Police in the area.
5. All incidents arising out of a faction should be recorded in the general diary forthwith. An exhaustive note about the faction and its leaders and members with their antecedents, as well as information collected from time to time by Constables of the beat should be made in Part IV of the concerned Station Crime History by the SHO. Rowdy sheets should also be opened for those who are persistent factionists.

Investigation of Factious riotings and murder

739-1. In a factious rioting, the police should not be content with mere laying charge sheets against both the contending parties, making the prosecution witnesses in one case the accused in the other and vice versa, and put forward their versions to the court without any attempt at finding out the truth. If complaints of the offence of rioting containing two divergent versions are given by the parties, it is the duty of the investigating officer to find out which case is true and lay charge sheet accordingly. The easier course of referring both the case and the counter-case as undetectable should not be adopted. An impartial, efficient, painstaking and scientific investigation should disclose the true facts of any occurrence. The laying of charge sheets in both the case and the counter-case should be resorted to only in cases of free fight. Factious riotings or murders are often the result of meticulous planning and if the Investigating officers thoroughly go back into events prior to occurrence and after the offence, the main organisers will not be able to escape the penal consequences of their actions.

2. When a group takes law into its hands with a view to impose its will or programme upon those opposed to it, the latter have a right conferred upon them to act in defence of their lives and properties. Whenever trouble occurs or anticipated between two parties, the police should distinguish between the aggressor and the victim for the purpose of action under preventive or specific sections of law. Where one party has been forced to act in self-defence, only the aggressive party should ordinarily be proceeded against. This calls for professionalism, impartiality and integrity

of high order. Otherwise the aggressor is more than satisfied on the plea that the aggrieved is also charged along with him. The real perpetrators and those behind the factious riotings should not be allowed to go scot-free by merely charge sheeting those under links or henchmen.

Dispersal of Mobs

740-1. The instructions for the dispersal of mobs and for use of fire arms are contained in the Police Drill Manual, besides legal provisions under section 129 to 132 Cr.P.C. District, City Armed Reserves and Civil Police shall constantly practise these instructions. An unlawful assembly may be ordered to disperse by a Magistrate or officer-in-charge of a Police Station and when so ordered, it is the duty of the members of the unlawful assembly to disperse. If they do not, force may be used to disperse them. Any Police Officer may without warrant arrest the members of an unlawful assembly and thus disperse the assembly. The following points have to be borne in mind.

A. The Police must secure the presence of an Executive Magistrate as far as possible where a breach of the peace necessitating the use of force is anticipated. The Executive Magistrate on information or requisition by police should be present at the spot.

B. When a Magistrate is present at the spot he should be in complete charge of the situation. He has the necessary legal powers to order any Police Officer to assist him in handling the situation.

C. The senior most Police Officer present is bound to assist the Magistrate by mobilizing the available Police Force and utilizing them as best as possible.

D. If the crowd becomes defiant and the use of teargas, lathi charge or both are inexpedient or fail in their purpose, use of firearms may be resorted to. The Magistrate is responsible for taking a decision as to when an unlawful assembly has to be dispersed by force and also the kind of force to be used.

E. After such a decision is taken, the officer-in-charge of the Police is solely responsible for deciding the exact amount of force to be used, the manner of using it and the settling of the details of the operations connected with the use of force, all the time keeping in mind the principle that no more force and no longer than necessary should be used.

F. When a Police party is formed for dispersing an unlawful assembly, it should be numbered and split off into two or more sections, if the size of the party and the time available admit of it. Each section should be under the charge of an officer. Bayonets must be fixed as soon as possible.

G. All commands to the Police are to be given by the Officer in command of the party. The Police are not on any account to open fire except by word of command of their Officer, who has to exercise an extreme caution and discretion regarding the extent and the line of fire.

H. As soon as it becomes necessary to resort to the use of fire arms with reference to clause (D) above, the officer in command of the party will bring the men to the loading position and give the order to load the ammunition. This will prevent panic in loading at the last movement when actual fire order is given.

I. Officers Commanding Police parties will, on every occasion when employed in the suppression of a riot or enforcement of law, ensure that the fullest warning is, if feasible, given to the mob in a clear and distinct manner before any order is given to use tear gas or lathies or fire arms. They will use the most effectual means to explain before hand to them that in the event of the Police party being forced to open fire, the fire will be effective and on the target. Whenever firing is resorted to, directions and warnings to the mobs should be announced through loudspeakers. Police vehicles should be equipped with loudspeakers and where such arrangements cannot be made hand megaphones should be kept ready for announcement.

J. Even after being warned, if the mob does not disperse, the order to fire may be given. If the officer in command of the party is of the opinion that it will suffice if orders to only one or two files be given, he may accordingly order specifying the files that are to open fire. If, however, he considers that it will be insufficient, he will give the word of command to one or more sections to open fire. The fire order of each section will be given, by the regular word of command by the officer-in-charge of the party. Firing should be well controlled and officers ordering firing should always indicate the number of rounds that should be fired at any particular time.

K. Where the situation warrants firing over the heads of the crowd and where it is considered likely to be effective in dispersing the violent mob, such firing should be resorted to only with blank ammunition. Other policemen should be kept ready with rifles loaded with live ammunition so that if the use of blank ammunition fails, the Police would not be taken by surprise or overwhelmed. Firing with live ammunition should be directed against the most threatening part of the crowd, the aim being kept low. Firing should cease the moment it is no longer necessary.

L. Files or sections ordered to fire shall unload immediately after firing without further word of command until the order to cease firing is made finally.

M. Firing should be ceased the moment the rioters show signs of dispersing and all help should immediately be rendered to tend or convey the wounded to the hospital.

N. An Armed Force should never be brought so close to a large and dangerous mob as to risk its being overwhelmed by numbers or being forced into action resulting in infliction of heavy casualties. Firing should be carried out from a distance sufficient to obviate the risk of being rushed on and to enable strict fire control.

O. A Police Officer below the rank of Station House Officer has no power to disperse such an assembly himself, but he may arrest any person without warrant for being a member of an unlawful assembly. He may also use the right of private defence as mentioned in order 741.

2-A. In any situation where the Police are compelled to deal with unlawful assemblies in different places of the same Village or Town it would be necessary to secure, as far as possible, the presence of a Magistrate before resorting to the use of fire arms for dispersing any or all of such assemblies.

B. Riot flags and display banners should be taken when District Reserves are called out in apprehension of disturbances and before firing or any other means of dispersal is resorted to, they should be hoisted in front of the mob in a manner so as to enable, that what is written on them is clearly visible and can be read or clearly understood by the mob.

C. The Police used for dispersing mobs should wear the prescribed uniforms and steel helmets. The teargas section and the armed party protecting the teargas section should wear antigas respirators.

D. In dealing with unarmed crowds, the District Reserve and Civil Policemen should be used in preference to the special units like the Andhra Pradesh Special Police or Central Para-Military Forces.

E. Superintendents of Police should ensure that Sub-Divisional Officers and Station House Officers organise demonstrations, of mob dispersal by the District Special Reserve from time to time during their visits to the District Headquarters. Such demonstrations should invariably be given when meetings of Inspectors are held.

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(VI List – 31st Dec 1969)

Right of Private defence

3. In the matter of dispersal of unlawful assembly the right of private defence can be exercised to protect the life and property of public or to protect themselves. This right can be exercised by using force as much as is necessary and as long as it is necessary. This right extends even to the causing of death in certain cases as laid down in section 100 IPC as against body and in section 103 IPC as against property. The police should exercise this right cautiously. Any amount of exceeding the right may make them liable for penal action as per law. Therefore, the police officers must make a judicious use of this right, only in dire need to save the life and property, when occasion arises as shown in sections 100 and 103 IPC.

Enrollment and employment of Special Police Officers

741. When there is apprehension that there is likelihood of disturbance of peace, riot or formation of unlawful assemblies or when such unlawful assemblies already formed for provoking breach of peace and when it is felt that the existing ordinary police is insufficient to meet the situation, special police officers can be appointed for such time and in such manner as deems necessary for the protection of life and property of the inhabitants.

1. Under section 16 of the A.P. (Andhra area) district police Act 1859, a police officer not below the rank of inspector may apply to the nearest executive magistrate to appoint as many persons as necessary as special police officers from the public or residents of neighbourhood as such police officer may be required and it shall be the duty of such magistrate at once to comply with such application. When once appointed, such special police officer shall have the same powers, privileges, and protection and be liable for all such duties and penalties and be subordinate to the authorities as the ordinary officers of police and they shall receive a certificate of appointment as such.

2. Under section 13-A of A.P. (Telangana Area) District Police Act 1329 Fasli, when a similar situation arises i.e. when there is apprehension of breach of public peace and when the ordinary police force is insufficient to deal with the situation, the Director General of Police may appoint any stout and sturdy male between age of 18-55 years as special police officers. And on appointment he shall receive a certificate and will have all the powers, privileges, duties and subordination as any other police officer and shall perform all the functions till his appointment ceases.

3. In the city of Hyderabad, under section 10 of City Police Act, the Commissioner of Police may appoint any healthy person aged between 18-55 years as special police officer with all the other conditions being the same as laid down in the District Police Acts of Andhra and Telangana Area.
4. The personnel of the auxiliary force (India) may be enrolled as special police officers subject to the condition that their duties as special police officers shall not interfere with their obligation under the auxiliary force Act and rules.
5. Every SDPO shall maintain a list of residents suitable with good antecedents for such duty at each place in his Sub-Division in order that he may be able at any moment to give the Magistrate the necessary details to enable him to appoint without delay as many special Police Officers as may be necessary. The lists should be updated every year. Those persons who have been in NCC, NSS, scouts and guides and employees in the government departments and other young persons of good antecedents would be the proper persons to be included in the list. The ex-servicemen are also useful for the purpose.
6. A list of all special Police Officers thus appointed shall be displayed in the local police station. The place of muster, which need not necessarily be a police station, shall be attended at the time by an officer not lower in rank than a Sub-Inspector, who shall check the attendance of special Police Officers and allot their duties in writing specifying the hours of duty and its nature.
7. The requirement of discipline for such special police officers should be liberal and ordinarily the physical drill is not necessary. The form of compliments to seniors will not be a salute but a civilian method of greeting.
8. The periods of duty shall not be long and reliefs shall be frequent.
9. The work of special Police Officers shall be supervised and checked and absence from duty noted by specially selected special Police Officers to whose charge they are given.
10. The special Police Officers, whenever necessary, shall be strengthened and supported by regular police. They shall remain as separate bodies, and the duty of using any necessary force shall be performed by regular police.
11. Negligence or refusal to serve without sufficient excuse or disobedience to orders or directions makes him liable on conviction to a fine up to Rs.50/-
12. Every special Police Officer injured while on duty, who is admitted into any government medical institution, whether in the City of Hyderabad or in the district, will be entitled to free accommodation, food and treatment as appropriate to their status and calling. If any such officer who is so injured is admitted into any PHC or government Hospital, all charges, which may be leviable from him under the rules of the institution, will be borne by the government.
13. If a motor vehicle belonging to a Special Police Officer or obtained on loan by him or any of his personal property is damaged or lost during its use by such officer on duty, the cost of such damage or the value of such vehicle, as the case may be, in so far as it is not covered by insurance or is not met by the insuring office, will be made good by the government, provided that the claim in respect of such cost or of such value is made promptly and through the Commissioner of Police, if in the City, or through the SP under whom the special Police Officer may be serving at the time, if in the districts.
14. The government will also award reasonable compensation for any injury or the loss of life to the special Police Officer, if it is directly due to his service as such.
15. The compensation awarded under this provision shall, in cases not falling under 12 above, include the charges which may be incurred in connection with the medical treatment of the special Police Officer by a private medical practitioner in any place where there is neither a government nor a Local Fund nor a Municipal Hospital. If, in a place where any such hospital exists, a private medical practitioner is employed, the charges aforesaid shall, unless the sanction of the government is obtained, be borne by the special Police Officer himself.

Additional Police

742-1. In villages rampant with factions, where unreported crimes are on the increase, additional police may be quartered as a punitive measure under section 15 of the Police Act, 1861 (or section 13 of the AP (Telangana Area) District Police Act in the Telangana districts).

2. Sanction for such additional Police should be obtained from the government and formal proposals as to how the cost should be recovered should be submitted to the government later.
3. When the District Magistrate and the Superintendent of Police consider that additional police should be stationed in any area in the district, the SP will immediately submit proposals to the Zonal Inspector-General/DIGP, through

the District Magistrate furnishing information in Form 127. The District Magistrate will forward the proposals with his remarks to the Zonal Inspector-General/DIGP.

4. On receipt of the proposals the Zonal Inspector-General/DIGP will, if necessary, visit the area in question in order to satisfy himself that the conduct of the inhabitants of the area justifies the imposition of additional Police. If he is satisfied that additional police are necessary, he will endorse the proposals received from the district authorities and forward to the DGP.

5. On receipt of the proposals from the Zonal Inspector-General/DIGP, the DGP will move the Government for the imposition of additional police and, if they agree, request them to issue a notification in the Government Gazette.

6. As soon as the notification is published in the Government Gazette, the Superintendent of Police will draft the force of the strength mentioned in the notification to the area, from the district police strength.

7. While officiating promotions may be made in the vacancies caused by the deputation of SIs and HCs as per procedure as part of the additional force, constables should be recruited only if the vacancies are likely to last for more than six months.

8. Soon after the notification in the Gazette, the District Magistrate will submit proposals to the Government through the Zonal IG/DIGP and DGP as to manner of recovery stating clearly the financial condition of the inhabitants of the area from whom the cost is proposed to be recovered and the manner of distribution of cost amongst them. If it is considered desirable that any of the residents should be exempted from the contribution, the reasons should be clearly stated.

9. The cost of additional police will, with the sanction of the government, be recovered by the District Magistrate, or any other authority authorized for this purpose by the government, from the inhabitants of the area but any resident, residents or class of residents of the area may be exempted from contributing to the cost of the force, if they can prove to the satisfaction of the District Magistrate that they were in no way responsible for the condition that rendered the imposition of the additional police necessary.

10. Additional police are stationed as a punitive measure and the cost of the force is a collective fine on the inhabitants of the area and hence it should be stationed soon after the commencement of the conditions that render them necessary.

11. Whenever it is considered desirable to extend the period by which additional police have been imposed, a report, specifying the reasons for retention of the force and the further period for which the force should be retained, will be submitted by the SP to the DGP through the District Magistrate and Zonal IG/DIGP at least two months before the term for which it was originally imposed expired. Before submitting the proposals it must be ensured that the dues till the date are collected / recovered. Additional police may not, without the sanction of the government, be retained beyond the term for which they were originally imposed.

12. On the expiry of the period for which the additional police has been sanctioned to any area, the force will be withdrawn and officiating promotions if any made in the vacancies terminated.

13. Additional police will be controlled by the SHO concerned. If there is no Police Outpost already in the area, the Station House Officer will hire a suitable building for the force, the rent being recovered from the inhabitants of the area as an item of the cost of the force.

14. The duties to be performed by additional police are (a) to patrol the affected area and (b) to restrain the inhabitants of the area from committing excesses (c) any other duties prescribed by the SP. The Station House Officer is responsible for ensuring compliance of the duties.

Note: Additional police cannot be imposed on any area included in the limits of the City Police.

Campus Violence

743. The breaches of peace occasioned by students' violence both in and out of the campus require special attention of the police. There are many reasons and occasions when violence breaks out. These may be broadly classified as internal and external. Internal causes relate to purely problems of students relating to fees, mess facilities, curriculum, examinations, copying, ill treatment by authorities, scholarships, group rivalries, student elections, ragging, misconduct of staff members or assault by outsiders on a student, teacher etc. Some problems may be genuine, some may not be. The external causes relate to political, social or other causes in which students or groups of them involve themselves either within the campus or outside. Like all other situations, information collection is the most important duty of police and an essential requirement. The SHO by personal contacts with students and teachers should keep himself abreast of the affairs involving the groups in the colleges or Universities in his jurisdiction. The guidelines for dealing with students' violence or incidents are given below:

- A. Keep the Head of the Institution informed of visits to the campus as far as possible. Only in an emergency where a violent incident has occurred or about to take place and where it is not possible to inform, the police may rush to the spot making arrangements for information to the Head of the Institution or other responsible person of the Institution.
- B. Do not express opinion as to the right or wrong of the cause or person, but only act according to law.
- C. Conduct parleys with rival groups to avoid imminent clash if possible.
- D. Take assistance of student leaders or neutral teachers to persuade against violence.
- E. Make prompt arrest if a serious incident like grievous hurt or homicide has taken place.
- F. While proceeding to deal with an outbreak of violence, strong police force must be taken. All policemen should be doubly briefed on restraint and conduct.
- G. Use of force should be avoided as far as possible, unless there is no other way to stop further violence.
- H. While making arrests avoid doing so in the full view of the students, unless it is in the course of dealing with an unlawful assembly.
- I. Assist University/College authorities in ensuring that only genuine and legitimate inmates stay in hostels. Universities and College authorities should be prevailed by higher police officers in this regard.
- J. Collect full and accurate information regarding gangsterism, eve-teasing or assaults on teachers and act as per relevant law.
- K. Do not act on hearsay or on unverified information.
- L. Take all steps as in any other case for investigation of an offence occurring in the campus or hostels.
- M. Assist the University/College authorities for keeping order during examinations or other activities.
- N. Visit the campus during normal times so that it becomes easier to handle situations when they occur.
- O. Always remember that the students, being young and emotional are prone to flash actions impulsive and hasty acts. Handling of situations should be done with proper understanding of the issues/situation.
- P. Where group clashes are likely there should be no hesitation to initiate action under section 107 CrPC and to obtain bonds.

Ragging

744.1 The menace of ragging in the name of introduction and familiarization of newly entrant fresh students, by senior students of the educational institutions has, off late, taken an ugly turn of serious concern. This practice of ragging is more prevalent in the medical, engineering and business management college/institutes. In a few cases, the victim students have taken the extreme step of committing suicide. To prohibit this bad practice of ragging within or outside any educational institution, the state government has enacted the A.P. Prohibition of Ragging Act, 1997. The 'ragging' according to this Act means doing an act, which causes or is likely to cause insult or annoyance or fear or apprehension or threat or intimidation or outrage of modesty or injury to a student. The act includes words either spoken or written or signs or sounds or gestures or visible representations. The 'student' means person, who is admitted to an educational institution and whose name is lawfully borne on the attendance register thereof. As per the Act 'Educational Institution' means and includes a college or other institution by whatever name called, carrying on the activity of imparting education therein (either exclusively or among other activities) and includes an orphanage or boarding home or hostel or a tutorial institution or any other premises attached thereto. The Act prohibits ragging within or outside any educational institution.

2. Penalty for ragging is provided under Section 4 of the Act, which says that whoever, with the intention of causing ragging or with the knowledge that he is likely by such act to cause ragging, commits or abets ragging and thereby -

- A. teases or embarrasses or humiliates a student shall be punished with imprisonment for a term which may extend to six months or with fine which may extend to one thousand rupees or with both; or
- B. assaults or uses criminal force to criminally intimidate a student shall be punished with imprisonment for a term which may extend to one year or with fine which may extend to two thousand rupees or with both; or

C. wrongfully restrains or wrongfully confines or causes hurt to a student shall be punished with imprisonment for a term which may extend to two years or with fine which may extend to five thousand rupees or with both; or

D. causes grievous hurt to or kidnaps or abducts or rapes or commits unnatural offence with a student shall be punished with imprisonment for a term which may extend to five years and with fine which may extend to ten thousand rupees; or

E. causes death or abets suicide shall be punished with imprisonment for life or with imprisonment for a term which may extend to ten years and with a fine which may extend to fifty thousand rupees.

3. A student convicted of an offence under Section-4 of the Act and punished with imprisonment for a term shall be dismissed from the educational institution. A student convicted of an offence under section 4 of the Act and punished with imprisonment for a term of more than six months shall not be admitted in any other educational institution as per the Section-5 of the Act.

4. Whenever any student complains of ragging to head or manager of an educational institution, such head or manager shall inquire into or cause an inquiry to be made into the complaint forthwith and if the complaint is prima-facie found true, shall suspend the student or students complained against, for such period as may be deemed necessary under Section-6(1) of the Act. The decision of the head or manager of the educational institution in this regard shall be final.

5. If the head or the manager of an educational institution fails or neglects to take action in the manner specified in Section-6(1) of the Act, such person shall be deemed to have abetted the offence and shall be punished with the punishment provided for the offence. If a student commits suicide due to or in consequence of ragging, the person who commits such ragging shall be deemed to have abetted such suicide.

6. The provisions of this Act shall be in addition to and not derogatory of any law for the time being in force.

Duties of Police

7. The police officers have to play an important and active role in curbing this social menace as specified below:

A. All Ss.P./Cs.P. should instruct their subordinates before the commencement of the academic session to contact Heads of the educational institutions and enlighten them on the provisions of the Act. Head of educational institution should also be advised to give wide publicity about the Act among students.

B. University and College hostels should be visits especially in the nights and in the beginning of the academic session along with the wardens and university / college staff. If necessary complaint box may keep in the hostels.

C. They should make efforts to collect intelligence or deploy men in plain clothes at the beginning of academic year besides keeping vigilance over senior students and also request the management to take preventive action besides involving the non-government organizations.

D. They should ensure that the management and Police take immediate action for suspension of the students and registration of cases and arrest such students to create a sense of security among new entrants.

E. Suo-moto action should be initiated where the institutions or the targeted victims do not come forward to lodge a complaint for fear of reprisal.

F. Maithri committees' assistance should also be solicited in this matter.

◆ 2015 Police Computer Services & Standardisation, AP Police Department.



Andhra Pradesh Police Department

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CHAPTER 40

District / City Crime Records Bureau

Functions of the Bureau

745-1. The District Crime Records Bureau is the Criminal Intelligence and Information Agency of the District Police and an integral part of the crime-criminal information system of the State and the country. The City Crime Records Bureau performs the same role and functions in Commissionerate Cities. The main functions of the Bureau are:

A. Compilation, maintenance, updating of criminal records and crime-criminal information system. The information system shall include,

- all types of crimes, active and habitual criminals who commit crime against property and whose activities extend over more than one PS,
- counterfeit currency offenders,
- financial offences,
- computer crimes,
- organised crime and criminal gangs, their members, terrorist crimes and gangs,
- Offences against children, women and other weaker sections, scheduled tribes and scheduled castes, communal offenders,
- environmental crimes including flora and fauna and temple property thefts, smuggling and drug trafficking.

B. Collect, record, collate, analyze, interpret and disseminate information about crime and criminals and the movements and activities of the district, inter-district, inter-state and international criminals;

C. Remain in constant touch with the incidence of crime in districts, cities, railway police and other states also movements of criminals;

D. Maintain detailed folders photos and videos in respect of each criminal gang and organised types of crimes as mentioned in sub Order (A) above.

E. Maintain constant on-line communication with SCRB and make available by fastest means the information to the field officer, including at the scene of crime, besides acting as a reference point for all investigating officers and teams.

F. Maintain the Computer Centre in the district and regularly update the data pertaining to Crime Criminal Information System (CCIS).

2. The Bureau is a vital link in the criminal records, Intelligence system of the State and the Country apart from being a valuable asset to the district police and Investigating Branch of the district. In order that the Bureau may serve its purpose fully and well, it is important that officers who obtain or come across information, which may be useful to others, must promptly communicate the same to the Bureau directly by quickest means, marking a copy to their immediate superiors i.e., SHO, Inspector, SDPO or SP as the case may be.

3. Bureau advises Investigating Officers in the investigation of cases and furnishes classified information to them and the superior officers, to enable the latter to direct investigations, control of crime, coordination of investigation and tracing of wanted persons and properties.

4. Method of storing and retrieval of information: All records, files, indices, statistics reports and information should be stored in a computer system choosing appropriate hardware and software. The crime criminal information system may be stored in the manner recommended by NCRB generating the information at DPS and L&O PS levels in the integrated investigation forms 1 to 8 and the terrorist details forms and any other forms prescribed from time to time. The entry of data as soon as received or in due course entering the data at the on line terminal provided in police stations is to be ensured if the data is to be useful. The retrieval systems have to be set out for each user who is provided a terminal. The SCRB should arrange to design an entire package and have it positioned in the DCRB, CCRB and RCRB and even in DPS as quickly as feasible. It should be ensured that the system includes a fax, printers, as well as a scanner and e-mail facility with safety and security precautions. The DCRB should be provided with necessary video / digital cameras, VCR and colour TV sets. The entire system should be based on the principle of utility and access of the users i.e. the Detective PS, the L&O PS and the other Investigating Teams. All information, files and records in DCRB should be stored in optical disks.

Collection of Information and Intelligence

Detective, L&O, Traffic and Women Police Stations

746. All Station House Officers of the above police units should furnish information to the Bureau on the subjects mentioned below. The term SHO includes all the officers of all stations mentioned above. Besides these, any other Government agency declared as a police station should furnish information of cases registered in the Districts and other subsequent information in the integrated investigation forms. The IGP CID in charge of SCRB should send instructions to the concerned officers and departments along with the forms and codes to enable them to send the data in the prescribed format.

1. Crime Card and Crime Details Form No. 2 ¾ All offences against property and financial crimes should prima facie be considered professional and in all these cases, the Station House Officer should, as soon as he registers a case, send a Crime Card in Form 108 and Crime Details in Form 76 direct to the Bureau. In all other cases also information in the Crime Details Form 76 should be sent. The information in all the columns in the Crime Card and Crime Details Form should be filled up completely and accurately by the SHO. Special attention should be paid to the major, minor, methods and crime detail and modus operandi classifications in property as well as other offences.

2. Where no classification is given, words indicative of the method employed in the commission of crime should be entered, for example, if an organized gang (Mafia type) cause a murder in a Land deal, the words "Land deals - contract killing - fire arms - revolver - residence - three persons posing as visitors - speaking Telugu - 25 years age - will indicate the method employed in the classification titled "Organized Crime". On receipt of this crime card or crime details form action as indicated in Order 762-2 should be taken by the Bureau.

3. Action to be taken soon after first investigation: The investigating officer, after visiting the scene of offence and making preliminary enquiries, may come to know certain additional facts and details relating to the crime and the criminal. These additional particulars should be reported again in crime details form and despatched by fax or e-mail from the scene direct to the Bureau. On receipt of this form also, action as indicated in Order 762-2 should be taken by the Bureau. Further details emerging from time to time should like wise be sent quickly.

4. Weekly Station Crime Report: The SHO of the L&O, detective and other police stations should send a Weekly Station Crime Report in Form 128 to the Bureau for the week also by fax or e-mail or by other fast means ending every Saturday so as to reach the Bureau same or next day at the latest. This report should include not only cases reported during the week but also cases of previous weeks in which offenders have come to be known or reasonably suspected to have been involved during the week. Any arrests made in cases should also be mentioned. The Inspector of detective police station should send the weekly consolidated report covered by the DPS, indicating the information for the whole area including Women and Traffic PS. The cases registered by DPS should indicate the L&O Police Stations where they have occurred.

5. Report of release of prisoners from jail: A report in Form 129 containing particulars of history sheeted persons who, whether residing in the station limits or concerned in the station cases, were released from jail during the week and the previous three weeks or likely to be released during the ensuing four weeks. This should be attached to the weekly Station Crime Report for the last week of the month.

6. Report of arrest of strangers under suspicious circumstances: In respect of all strangers and also history sheeted persons arrested in specific cases or under suspicious circumstances, the SHO and Investigating Unit should send an arrest report to the Bureau in Form 130 and 62. These reports should be sent to the Bureau as and when an arrest is made and should contain full information about each individual. On receipt of these reports, the Bureau will examine them and take further action if such arrested persons are wanted in any other case or anywhere else on the basis of information received by the Bureau.

7. Conviction Report: As soon as an accused in a crime against property is convicted, the SHO should send a Conviction Memorandum in Form 131 and 75 to the DCRB. Instructions regarding the persons whose finger prints are to be taken for record and procedure regarding the sending of finger print slips to be sent for record in FPB by SHO are contained in the chapter on "Finger Prints".

8. Reports on the activities and conduct of all criminals whose dossiers are maintained in the Bureau: The SHO of L&O should send a report in Form 132 for every month on the activities and conduct of all dossier criminals, so as to reach the Bureau not later than the fifth of the first month of the following quarter. When a dossier criminal has also been registered in another district, a copy of the quarterly report on him should be sent direct to the Bureau of that district as well. The SHO, should, in addition, report all the movements of dossier criminals outside the station limits forthwith to the Bureau, besides incorporating the information in the Quarterly Current Activity Report. In the case of a criminal, concerning whom it is desirable to obtain more frequent reports, the Superintendent of Police, Investigation, will issue necessary special instructions. The information furnished in the report will be embodied by the Bureau in the dossier of the criminal maintained in the Bureau.

Records of the Bureau

747. The following records, indices and files (computer) shall be maintained by the Bureau using appropriate computer programme. Till such time the files are completely computerised and stored on optical disks, the maintenance should be continued manually.

1. Dossiers for criminals
2. Register containing the list of dossier criminals
3. Register of out of view history sheeted persons of all Police Stations arranged according to modus operandi (Methods)
4. Register showing the probable dates of release of dossier criminals as well as all other history-sheeted persons
5. Indices
6. General subject files including emerging patterns and phenomenon
7. Criminal organisational files
8. Photographs and videographs of criminals and absconding warrantees and suspects
9. History of crime
10. Register of suicides
11. Crime graphics, charts, graphs, statistics for each important class of crime
12. advisory and crime alert communication register
13. References from investigating officers
14. Details of calls for assistance of the expert staff attached to CCS of the District Investigation Branch with the results achieved
15. Register of visits by SHOs and other officers to the Bureau
16. Weekly Crime and Occurrence Sheets
17. Monthly Crime Reviews
18. Specific crime analysis report and leads given
19. Criminal Intelligence Gazettes
20. Organized crime files (each type)
21. Files on Financial crimes
22. File on criminals and habitual offenders in crimes against women, including trafficking in women and children, and the agents
23. Photographs and descriptive particulars of crimes, criminals, smugglers relating to cultural property including temple properties of antique value
24. Files of criminal offenders against environmental crimes and crimes against flora and fauna

25. Automobile information system
26. Information on property stolen and recovered
27. Terrorist crimes and criminal information system files
28. Arms, ammunition and explosives
29. Interpol and Inter-state enquiries
30. Extradition file - Red Corner notices and other notices

Dossiers for Criminals

748-1. The Bureau should maintain dossiers for all criminals for whom History Sheets are opened and who operate in more than one PS. Those who reside in one PS and operate in another will come within the purview of this Order. Those criminals who belong to the category of organised crime gangs, terrorists, financial offenders, rowdies and those whose activities relate to forest and excise offences, arms and explosives manufacturers and those who deal in illicit arms or have come to notice for perpetration or communal and caste based offences or offences against scheduled castes or tribes, should be treated as dossier criminals if they have a history sheet maintained in the police station. These criminals will be known as dossier criminals and will be given a DC (dossier criminal) number. The dossier should be maintained in Form 79 A,B,C. An inter-district criminal on record in a Bureau must also be on record in the Bureau of each of the districts/states in which he has committed crime or has resided for more than three months irrespective of whether he has committed crime in that district or not, and will be given a DC number in each of those districts, DC numbers of other districts being entered for reference on the docket sheet. Similar action should be taken for inter-state criminals. The number assigned to the DC of one district in another district outside the State should be obtained and noted on the docket.

2. The following are the instructions regarding the opening, maintenance and closure of a dossier in the Bureau:

A. A dossier need not necessarily be maintained for the life-time of a criminal but may be closed under the orders of the SP if the criminal (i) is too old to commit or organise crime, or (ii) is unable, from any disability or other reason, to commit or organise crime, or (iii) has shown beyond doubt that he has reformed himself and abandoned his criminal life. The dossier of a criminal who is out of view may be closed after he attains seventy years of age. A criminal whose dossier has been so closed should be indicated by a yellow colour signal on all the indices where his name or alias appears, to indicate that he is inactive and that his dossier has been closed. Dossiers of persons who have died shall be destroyed under the orders of the SP. Before the dossier of a criminal, who is also on record in another district, is closed or destroyed, the Superintendent of Police of the later district should be consulted.

B. A history sheet will be maintained for every dossier criminal in the station in the jurisdiction of which he resides for at least such time as a dossier is retained for him in the Bureau.

C. In case on-line comparison is not possible, the Bureau should draw up a programme at the close of every year fixing months in the succeeding year for comparing the dossiers maintained in the Bureau with the history sheets in the stations. It should be ensured that the comparison is made and all entries are updated. For the purpose of this comparison, the SHO will bring the history sheets maintained by him to the Bureau during the month fixed for him. But before this he shall visit the village of criminal, interview him and personally verify all the entries in the history sheet, special attention being paid to his descriptive particulars, habits, occupation, relations and associates. Where on-line comparison is possible it should be done every quarter fixing a time on each day for each police station. The SDPO during his half yearly inspection, and the SP during his annual inspection, should also interview the dossier criminals residing in the station limits and check up the entries in their history sheets. If they detect any mistake in the entries in any sheet, they should report it promptly to the Bureau, besides correcting it in the history sheet and mentioning it in their inspection notes.

D. In the case of criminals who are on record in two or more Bureau, the dossiers maintained in one Bureau should be compared at least once a year with those maintained in all the others.

E. A sheet should be attached at the end of each dossier or history sheet, showing the dates of comparison ordered in (C) and (D) above, and the signatures and designation of the officers who compared them.

F. To ensure that the dossiers in the DCRB are correctly maintained, each dossier should be scrutinised by the Addl. SP/Superintendent of Police or DCP crimes in charge of CCRB once a year. For this purpose (a) a few dossiers shall be put up to the SP/DCP every weekend with notebook, noting therein the numbers of the dossiers put up and (b) a few dossiers will similarly be put up to the Sub-divisional Officer, Investigation in charge of DCRB in District Head Quarters. The Superintendent of Police and the DSP in charge of DCRB or ACP in respect of CCRB will scrutinize the dossiers, ensure that they are correctly maintained and record their remarks, if any, in the note-book, in respect of the dossier to which the remarks relate. All the dossiers should be scrutinised by both the SP and the DSP concerned during a year. The same officers with the help of their own terminals should continue the inspection even

in a computerised system with greater frequency wherever there is access for scrutiny. They should, after viewing the matter and entering the data, which they wish to, should also enter the fact with date and time. When the print out is taken, the sheet with the corrections should be signed.

G. The SHO in consultation with Inspector shall select criminals who have to be registered as dossier criminals and intimate to the Bureau forthwith. The Bureau will obtain the orders of the Superintendent of Police as to whether a dossier should be opened for the criminal proposed by the SHO through the Inspector Investigation for registration. The Sub-Divisional Officer also should, during their station/Unit visits and inspections, see whether any addition to, or deletion from, the list of dossier criminals is necessary and submit proposals to the Superintendent of Police. The Bureau, too, will watch for criminals who operate in more than one Sub-Division or in a Sub-Division other than the one in which they reside and take up suo-moto the question of registering them as dossier criminals. No dossier will, however, be maintained in the Bureau for a casual criminal who has committed a petty crime in a Sub-Division other than the one in which he resides, unless those petty offences form part of series of others and if there is material warranting initiation of security proceedings for good behaviour.

Register of dossier criminals

749. This register should be maintained in Form 133. It is intended to ensure that numbers assigned to dossier criminals do not overlap. When a dossier is closed, the date of the order should be noted in the remarks column and the serial number should be rounded off. The whole entry relating to a dossier criminal should be scored out only when the dossier is destroyed, the date of destruction being noted in the remarks column.

Modus Operandi Register of history sheeted “out of view” criminals

750. A register in Form 134 will be opened in the Bureau for each modus operandi classification noted in Order 752-2 below, for history-sheeted criminals of police station who are out of view. These registers will be written on the basis of the particulars furnished by the SHO in OV cards as and when they are received. If an ‘out of view’ history-sheeted person is known to have employed more than one modus operandi, his name should be entered in all those modus operandi. For example, if a criminal scales over a wall, breaks open the lock of a door and steals a watch, his name should be entered in the registers maintained for all the three modus operandi classifications, viz.,

1. (a) “Scaling wall or roof” (b) “Lock I, Breaking lock or fastening, and (c) “Watches, clocks and time pieces”.
2. If a history-sheeted person who has been out of view is traced or arrested, the entry or entries relating to him should be scored out from the relevant registers and the date of tracing or arrest should be noted in the remarks column.
3. These registers are maintained for pointing out to the investigating officers the possibility of an “out of view” criminal of a particular modus operandi being responsible for the crime under investigation.

Register of dates of release of history-sheeted and dossier criminals

751. The Bureau will maintain a register in Form 129 showing the probable dates of release from jail of all history-sheeted persons, including dossier criminals. This register must be prepared with the help of the jail release lists furnished by the jail authorities and checked with the reports submitted by the SHOs. Such information as the MO details and sphere of operation, which will not be found in the jail release lists, can be obtained from the monthly reports submitted by the SHOs. A page or more in the register should be set apart for each month. The Bureau will publish in the last weekly Crime and Occurrence Sheet of each month full details of all persons who are likely to be released in the succeeding month. It will also study the relations between the incidence of crime and the release of a criminal with reference to modus operandi and place of occurrence.

Indices for dossier criminals

752-1. Name Index (Alphabetical Index): The cards for the name index will be maintained in three colours, white for criminals of the district, blue for criminals of border districts operating in the district, and pink for criminals from farther. The cards will be arranged in strict alphabetical order, like the words in a dictionary, irrespective of their colours. If a new card is opened, it should be inserted in the correct place. Inter-district criminals will be given appropriate coloured cards from the point of view of each district, e.g., a criminal of Krishna district who also operates in Khammam district will have a white card in Krishna district and a blue one in Khammam, but the white card maintained in Krishna district will be given a green signal to indicate that the criminal is also registered in another district (see instructions under “Signals” infra). The cards have a line, quarter of an inch above the bottom edge. Below this line the name or alias of the criminal, followed by his father’s name indicated by the prefix

“s/o” should be typed. The card provides for the entry of various details for easy reference. A card should be opened for each alias that a criminal is known to assume. The pro forma for this card is shown in Form 135. This index provides a ready reference to all the dossier criminals and gives important facts about each criminal, but for further details, the dossier of the criminal must invariably be referred to.

2. Modus Operandi Index: The cards for this index will be arranged in alphabetical order of the different modus operandi and other characteristics in drawers assigned to the main heads of crime. The index heads will be the catchwords given in the crime classification list prescribed in Order 588 of Chapter 33.

3. The list is only illustrative and not exhaustive. The classification methods in the National Crime Code Book should be followed to the extent applicable. If the list above contains any item not covered in the national codebook, the entry in this list should be utilised to make the necessary entries in the records. However, if the wording is similar or it has similar meaning, the NCP words may be used.

4. Some of the items above may even not apply to all districts in the state and some districts may need a few additional items. Any addition to the list should be made with the approval of the Zonal Inspector-General/DIGP and after intimation to the IGP, CID in charge of SCRB. SHOs should note the appropriate classification in the various reports sent by them to the Bureau. The DC number of the district in which the criminal resides, the DC numbers, if any, assigned to him in other districts, his name with aliases, his place of residence with the name of the Police Station, the name or names of police station limits and districts where the criminal has operated, and full Modus operandi details shall be noted in columns 1 to 6 respectively in the body of the card. The type of crime will be entered below the bottom line of the card. The names of the criminals addicted to the particular type should be entered on both sides of the card, three to four names on each side and additional sheets of paper being attached, if necessary. The card will be in Form 136. When a criminal commits a crime, which falls within more than one head, for example entry into a school by lock breaking and the theft of a watch from it, his name should be entered in the title “Lock I”. “Schools from” and “Watches, clocks and time-pieces”, and the full modus operandi details entered in column 6 of the card. Column 6 is of special significance because in locating a criminal, apparently minor details of the modus operandi are more important than the broad classifications outlined above. Hence, all details and particulars regarding the method of entry, nature of the building attacked, nature of weapons employed, kind of property stolen, form of violence used and all criminal characteristics such as eating food at the scene of crime, using detonators or crackers and using boulders to break open the door should be noted in detail in the column 6. A sample entry is given in Form 139. When a crime of any particular modus operandi is reported, the criminals, whose names and other particulars are found on the card bearing the index head of that particular modus operandi will be examined besides other indices and records in order to point out to the investigating officer as to who among them are likely to have committed the offence. In doing this, details of modus operandi, and not merely its broad classification, should receive attention.

5. Index of physical peculiarities and criminal characteristics: Index cards, which should be in Form 137, will be maintained for such physical peculiarities, identification marks, and criminal characteristics of dossier criminals as can readily and usefully be classified. The class of physical peculiarity and criminal characteristic will be typed below the bottom line of the card (in the same way as for modus operandi index cards) and the dossier numbers and names of criminals and the details of peculiarities or characteristics noted on the card. If a criminal has more than one physical peculiarity or criminal characteristic, then his name should find a place under all those heads. For example, if a criminal has his ears low set, a scar on his left arm and conspicuously high forehead, is bow legged, and is in the habit of consuming food at the scene of crime, his name should find a place in the cards “Ears $\frac{3}{4}$ low set”, “Arm $\frac{3}{4}$ left $\frac{3}{4}$ marks, moles, scars, etc.” “Forehead $\frac{3}{4}$ conspicuously high”. “Legs $\frac{3}{4}$ bow-legged”. “Consumed food at scene” and “Scars”.

6. The national crime codebook gives certain physical features under major and minor classifications from page 143 onwards. A typical list of physical peculiarities and criminal characteristics is however given below. The list given in the national code book and the one given below should be used. Only items, which are not available in the list given below but are found in the national crime codebook, may be used. Any addition to this should only be made with the approval of the Zonal Inspector-General/DIGP and after intimation to the IGP, CID in-charge of SCRB.

- Abdomen - marks, moles, scars, etc.
- Abdomen - pot-bellied
- Arm - left - deformed, missing in full or part
- Arm - right - deformed, missing in full or part
- Arm - right - marks, moles, scars, etc.
- Arm - left - marks, moles, scars, etc.
- Back - marks, moles, scars, etc.
- Back - hunch
- Beard - Note in column 5, whether goaty, imperial, pointed or pointed or rounded, trimmed, or untrimmed
- Birthmarks
- Blind
- Cripple
- Chest - marks, moles, scars, etc.
- Chest - pigeon
- Chin - markedly long
- Chin - markedly short

Chin - pronouncedly square
Chin - pronouncedly pointed
Chin- dimpled
Chin - doubled
Consumed food at scene
Crackers or detonators used
Deaf
Diverting attention
Dog silenced
Doors of neighbouring houses fastened or chained
Dumb
Ears - high set
Ears - low set
Ears - markedly large
Ears - markedly small
Ears - lobes or helices pierced
Ears - too close to the head
Ears - markedly protruding from the head
Ear - left - deformed or missing
Ear - right - deformed or missing
Easing at the scene of offence
Eunuch
Eyes - conspicuously large
Eyes - conspicuously small
Eyes - markedly wide set
Eyes - markedly close set
Eyes - protruding
Eyes - sunken
Eyes - blinking
Eyes - squint
Eyes - artificial right
Eyes - artificial left
Eyes - right - missing or blind
Eyes - left - missing or blind
Eyes - wearing glasses
Eyes - Iris black
Eyes - Iris blue
Eyes - Iris grey
Eyes - Iris brown
Eyes - Iris maroon
Eyes - Iris yellow
Eyebrows - note any special peculiarities such as conspicuously arched, straight or oblique, long or short, nearly united or distended, thin, thick or pencilled, black, grey or red
Face - prominent check boxes
Face - smiling
Face - flabby cheeks
Face - scowling
Face - wrinkled
Face - marks, moles, scars, etc. (such as pox marks, birth barks, and any marked growth)
Foot - right - marks, scars, moles, etc.
Foot - left - marks, scars, moles, etc.
Foot - right - splay-footed
Foot - left - splay-footed
Foot - right - pigeon-toed
Foot - left - pigeon-toed
Foot - right - toes missing or extra, deformed, peculiarity of nails
Foot - left - toes missing or extra, deformed peculiarity of nails
Foot - right - missing or deformed
Foot - left - missing or deformed
Foot - right - exceptionally large
Foot - left - exceptionally large
Foot - right - exceptionally small
Foot - left - exceptionally small
Forehead - conspicuously high
Forehead - conspicuously low
Forehead - pronouncedly receding

Forehead - pronouncedly bulging
Forehead - pronouncedly narrow (as measured from temple to temple)
Forehead - pronouncedly broad (as measured from temple to temple)
Forehead - deep horizontal wrinkles
Forehead - marks, scars, moles, etc.
Hair - bald or partly bald
Hair - grey
Hair - curly
Hair - dyed (note colour also)
Hand - right - marks, scars, moles, etc.
Hand - left - marks, scars, moles, etc.
Hand - right - fingers missing or extra, deformed, peculiarity of nails
Hand - left - fingers missing or extra, deformed peculiarity of nails
Hand - right - exceptionally large (elephantiasis)
Hand - left - exceptionally large (elephantiasis)
Hand - right - exceptionally small
Hand - left - exceptionally small
Hand - right - missing or deformed
Hand - left - missing or deformed
Head - pronouncedly big
Head - pronouncedly small
Head - egg-shaped
Head - bent forward
Head - inclined backwards
Head - turned sideways to the right
Head - turned sideways to the left
Head - marks, scars, moles, etc.
Holding cloth as screen in front of shop
Legs - bow-legged
Legs - knock-kneed
Legs - right - lame or limping
Legs - left - lame or limping
Legs - right - Elephantiasis
Legs - left - Elephantiasis
Legs - right - marks, scars, moles, etc., and deformities
Legs - left - marks, scars, moles, etc., and deformities
Legs - varicose veins
Leprosy
Lips - harelip
Lips - markedly thick
Lips - markedly thin
Lips - protruding
Lips - upper lip markedly long (as measured from the base of the nose to the line of the mouth)
Lips - upper lip markedly short (as measured from the base of the nose to the line of the mouth)
Lips - upper lip overhanging
Lips - spouting
Lips - marks, scars, moles, etc.
Mask word
Moles
Mouth - pronouncedly large
Mouth - distorts when talking or laughing
Moustache - Note in column 5 the colour, whether stubby, long, with pointed or curly ends
Neck - Pronouncedly thick
Neck - pronouncedly thin
Neck - Adam's apple prominent
Neck - marks, scars, moles, etc.
Nicotine fingers
Nose - prominently long
Nose - prominently short
Nose - pronouncedly projecting
Nose - pronouncedly flat
Nose - pug
Nose - deviating towards left
Nose - deviating towards right
Nose - markedly dilated nostrils
Nose - line of nose prominently concave

Nose - line of nose prominently convex
 Nose - nose base pronouncedly turned up
 Nose - marks, scars, moles, etc.
 Occupation marks
 Pimples
 Pox marks
 Rites - religious or superstitious - performed at scene
 Scars
 Shoulders - oblique
 Shoulders - left dropping
 Shoulders - right dropping
 Shouting certain special words (the exact words should be entered in Col. 5)
 Stick kept outside the door
 Stones collected for use in case of attack
 Stoops
 Swallowing stolen property
 Talking - looking down
 Talking - looking obliquely to right
 Talking - looking obliquely to left
 Tattoo marks
 Teeth irregular
 Teeth - missing
 Teeth - artificial
 Teeth - discoloured
 Uniform - military or police - worn
 Vehicle used to or from scene (the exact nature of vehicle used, i.e., car, tonga, jutka, rickshaw, cycle, etc. should mention in column 5)
 Visiting scenes in advance as beggars, fortune tellers, folk songsters, jugglers, or in any other capacity
 Voice - stammering
 Voice - pronouncedly feminine in the case of males, or pronouncedly masculine in the case of females
 Walking - unusually long strides
 Walking - unusually short strides
 Walking - unusually quick strides
 Walking - unusually slow strides
 Warts

Note:

- Full details of the physical peculiarity or criminal characteristic should be noted in column 5 of the card.
- If a person has a mole on the back, he should be indexed under item “Back ¾ marks, scars, moles, etc.” and also under item “moles”, the details of the moles, e.g., size, colour, exact location, being given in column 5 of the card. The same thing applies to other marks also.
- Only pronounced physical peculiarities should be noted, a slight departure either way from the normal appearance may be ignored. If the perpetrator of a crime, whose identity has not been established, is known to possess a given physical peculiarity or criminal characteristic, the card bearing the index head of that physical peculiarity or criminal characteristic, will show the criminals having that peculiarity or characteristic.

7. Untraced property index: All identifiable property lost in cases whether numbered or un-numbered published in the Weekly Crime and Occurrence Sheet which has not been recovered at the time of its publication will be indexed. The information in respect of properties seized under suspicious circumstances received by the Bureau either from Station House Officers, Investigating Units or through Crime and Occurrence Sheets of neighbouring districts should be carefully checked with the properties indexed in the Bureau to see whether they are concerned in any crime of the district. If any of the properties seized is identical with that lost in a case, the fact should be immediately intimated to the Station House Officer, in whose case the property was reported lost and the Station House Officer who recovered the property under suspicious circumstances. If any item of property indexed is recovered, the entry relating to it should be scored out from the index and the date of tracing it noted. A list of identifiable properties to be indexed is given in pages 82 to 98 under the item “type of property” of the National Crime Code Book. Another list of identifiable properties to be indexed is also given hereunder. The list given in the national crime codebook should be followed after adding the items if any missing in that codebook from the list given below. In the Hyderabad City, a separate index may be maintained for each make of bicycle. Any addition to this list should be made with the approval of the Zonal Inspector-General/DIGP and after intimation to the Inspector-General, in charge of SCRB in Criminal Investigation Department. The pro forma of the index will be in Form 138.

1. Addigalu
2. Agricultural implements
3. Andelu

4. Anklet (Thodas, etc.)
5. Bangles - Gold
6. Bangles - Silver
7. Batteries
8. Bessaries
9. Billa - Jada
10. Books
11. Boxes (other than trunks and suit cases)
12. Buffaloes
13. Bulaki
14. Bulls
15. Buttons - Gold
16. Buttons - Silver
17. Cameras
18. Cars
19. Carts
20. Chains - Gold
21. Chains - Silver
22. Champasaralu - Gold
23. Clothes (other than sarees)
24. Cows and calves
25. Currency notes (if number available or if they contain any signature or initials for identification)
26. Cycles
27. Cycle rickshaws
28. Dogs
29. Dynamo belts
30. Dynamos
31. Ear-rings - Gold
32. Ear-rings - Silver
33. Electric bulbs
34. Electric goods other than bulbs and meters
35. Electric meters
36. Fire - arms
37. Fountain pens
38. Fowls
39. Furniture
40. Goats or sheep
41. Gramaphones
42. Harmoniums
43. Idols
44. Iron safe or cash chest
45. Jadakutchulu - Gold
46. Kantinigundulu - Gold
47. Kasikayaladanda - Gold
48. Kasuladanda - Gold
49. Lantern - Hurricane
50. Lights - petromax
51. Lolakulu - Gold
52. Machines and Engines
53. Matelu - Gold
54. Medals - Gold
55. Medals - Silver
56. Mattelu - Silver (Toe rings)
57. Miscellaneous - unclassified
58. Money purse
59. Nagaram - Gold
60. Nanu - Gold
61. Nose-screws - Gold
62. Photographs
63. Plates - brass
64. Plates - bronze - eating
65. Plates - other metals
66. Plates - Silver - eating
67. Plates - silver - other uses
68. Precious stones

69. Promissory notes
70. Radios
71. Rings - Gold
72. Rings - Silver
73. Saddle - Cycle
74. Saddle - Horse
75. Saddle - Motor Cycle
76. Sarees
77. Soda Machine
78. Spectacles
79. Suit cases
80. Tallaman
81. Toys
82. Trunks
83. Tumblers - Brass and other metals
84. Tumblers - Gold
85. Tumblers - Silver
86. Typewriters
87. Tyres - Cycle
88. Tyres - Motor
89. Tyres - Motor Cycle
90. Vessel
91. Waist belts (Kamarpatti) - Gold
92. Waist belts (Kamarpatti) - Silver
93. Watches, clocks and time pieces
94. Water Meters
95. Wires

8. Signals: Slip-on signals indicating the particulars noted below will be attached to the bottom of name index cards and to the sides of modus operandi and physical peculiarity index cards:

- Blue - in full
- Red - Out of view
- Two Reds $\frac{3}{4}$ Out of view and wanted.
- Yellow $\frac{3}{4}$ Inactive
- Green $\frac{3}{4}$ Operates outside the district

9. For all these indices to be maintained in a computerised system appropriate colours and signals as indicated above should be given to distinguish each category and the special nature of the card. The format of each index may be modified only to the extent necessary while preparing the software programme for the maintenance of these records.

General Subject Files

753. Information of permanent value about important classes of crime and criminals will be maintained in General Subjects Files or folios. Materials for these files will be secured from Weekly Crime and Occurrence Sheets, case diaries, special reports and other sources of information. The subjects for which such files should be opened are criminal organisations, organised crime syndicates, subject-wise rowdy gangs, habitual offender groups, counterfeit coins and currency notes, bombs and other explosives, supplying of arms, drugging or professional poisoning, financial frauds, caste and communal groups with militant designs and special classes of crime. The actual number of such files will depend on the conditions existing in each district. The files should cover all subjects of importance affecting the criminal history of the district and should be carefully maintained and kept up-to-date. As the title indicates the files have to be maintained for each subject that has criminal element.

Photographs

754-1. All dossier criminals and habitual offenders will be photographed and videographed once in five years. The requirements are (1) the full face including the head and shoulders; (2) the full length and (3) One profile, the one that has any particular mark or character, e.g., a scar. The full-length photograph should be half plate size and the remaining quarter plate. The full-length photograph should be taken of the individual in the dress that he ordinarily wears when out of jail. Any marked peculiarity, which makes identification easy, should be brought out in one or more of the positions detailed above or in another position specially taken for the purpose. A panel showing the date of the photograph and district number of criminal will be set in on right hand bottom corner, in each of the photographs. Each set of photographs will be mounted on a sheet.

2. For each criminal, two complete sets will be taken, one to be filed with the dossier and the other in a loose-leaf file arranged in the alphabetical order of the criminal's name. An additional set will be taken and filed with the history sheet in the police station. Extra-unmounted copies will be kept in envelopes affixed to the loose-leaf file sheets ready for distribution when occasion arises. Additional sets and unmounted copies will be prepared for inter-district criminals for supply to the other Bureau where they are on record.

3. The negatives of all photographs should be retained in boxes and indexed in the Bureau so that further prints can be taken if necessary. Albums should also be maintained modus operandi-wise in respect of criminals concerned in important classes of crime, such as drugging or poisoning, property offences attended with violence, pocket-picking and cycle thefts.

4. Video clippings of as many of these, as are possible including their voice may be prepared and kept in the Video Library of criminals in DCRB. The video clipping showing his movements and all angles including his speech should be taken. His identification and history sheet number and date of the clipping should be indicated even while taking the video by entry of the data in the video camera itself instead of displaying a board near the person. Even for still cameras such data entry can be built in the camera itself. The photographs, videographs and voice should be stored ultimately on optical disks and retrieved whenever required.

History of Crime

755-1. Registers of cases against property and all other crimes falling within the major classification of the National Crime Code book in the order of their occurrence will be maintained in the Bureau in the form in which they are published in the Weekly Crime and Occurrence sheet. A separate register will be maintained for each modus operandi. Clippings from Part I (new cases) of Crime and Occurrence Sheets can be pasted in the appropriate register with space below each clipping for briefly entering subsequent information and final disposal. The dates of release and return, jail number and finger print classification will also be noted in respect of convicted persons.

Register of Suicides

2. Every SHO shall attach in the monthly crime statement sent by him to the Bureau a statement in Form 139 showing the number of suicides during the previous month classified in the manner prescribed. A register in Form 140 shall be maintained in the Bureau, wherein a page will be allotted for each month in the year. The register shall be compiled every month from the statements received from SHOs and the total arrived at. Whenever information regarding suicides is called for by the SCRB, CID, information readily available in the register should be furnished.

Crime Charts (maps) and Graphs

756-1. In order to help analysis and study of crime in the district, with particular reference to persistent incidence of any particular type of crime (crime pattern) in any area or along any route, analyse a specific case to obtain investigative leads, comparative study of crimes of different classes to know any links or organised activity, study of criminal's or group's methods, description, or to obtain clues as to an offender in a case or to devise preventive methods, crime charts of different description, maps, graphs, statistics and detailed reports in a pre-determined format are necessary. Some of these are to be maintained or generated on a regular basis while some others are to be made out for specific needs from time to time. Those which require to be maintained are generated on a regular basis periodically, in respect of the following subjects, should be maintained in the Bureau. These are maintained for ready reference by investigators or analysts in the day-to-day work of crime investigation.

2. A crime chart as well as graphs representing volume and geographical spread for each month will be maintained in which crime reported during the month will be marked by the symbols given in Order 591 of Chapter 33. This list is not exhaustive or permanent. The most rampant form of crime at any given point of time should be added to this list and any type of crime, which is not a serious problem at any given time, may be kept dormant or deleted from the list of charts and graphs to be maintained. The CCRB and RCRB should add specific lists of crime to this depending on the types of crime that need police attention.

3. The classifications given in National Crime Code book for major heads of crime from codes 001 to 096 should be a proper guide for maintenance of the crime charts and graphs and other visual presentations according to need. The minor heads given in the Codebook may be adopted whenever analysis on any special type of crime is to be done. The adoption of the National Crime Code Book titles provides a convenient access to crime and criminal intelligence data stored in the computers.

4. Separate annual crime charts shall be maintained for each of the above groups of crimes.

5. Both in the monthly and annual charts, crimes of PS of other district bordering the district must be plotted. A circle around the case should mark cases in which the accused have been arrested and charged.

6. The classifications and symbols mentioned in Order 591 are for the purpose of only plotting crimes on charts and in the analysis of figures in paragraph 6 of the Monthly Crime Review, and should not be used for any other purpose.

Graphs

7. The Bureau will maintain the following graphs in order to enable it to study the fluctuations of crime in successive years, the areas affected, the activities of professional and organised groups and thus enable both strategic and operational planning and results.

8. For each of the following classifications, a separate graph will be maintained and on it the number of true cases reported and the number convicted will be shown, the former by an uninterrupted line and the latter by a dotted line.

- All IPC cases
- Murders
- Dacoities
- Robberies
- House breaking
- Thefts (other than cattle thefts)
- Cattle Thefts
- Organized crime
- Terrorism
- Financial crimes
- Crimes against women & children
- Crimes against weaker sections
- Crimes related to pollution, flora and fauna
- Antiquities and cultural property.

9. Each graph sheet if manually prepared will be about 100 x 100 cm, the X-axis being drawn two cm above the bottom edge and the Y-axis 2 cm away from the left hand edge of the sheet. The X-axis will show the years and the Y-axis the number of crimes. 5 cm on X-axis will represent a year and 1 cm on the Y-axis will represent 50 Indian Penal Code crimes, or 10 murders, dacoities, robberies, house breaking or cattle thefts or 20 thefts, as the case may be. This scale may be varied, if necessary, at the discretion of the Superintendent of Police/Addl. SP. At the point representing the crime for a year, the exact number of crimes will be indicated in brackets. In the case of figures of conviction, the exact number of cases convicted will be shown in brackets above the point.

10. The graphs will represent the crime for the last 25 years. Crimes for successive years will be plotted on the same graphs. A graph should normally last at least 25 years.

11. All graphs, charts and regional (geographical) distribution of crimes should be generated in a computerised system by use of appropriate software programmes.

File of References from Investigating Officers

757. The Bureau should keep separate files showing references received from investigating officers asking for information in unlocated cases. The purpose of this file is to assess the quantities, quality and results of the queries of investigating officers to the Bureau. These files should be kept for each Area Sub-Division and the Detective Police Station having jurisdiction over the Sub-Division or part of it. The information furnished by the IO, his report, queries, and further reports if any, should be stored in the connected database to enable meaningful analysis whenever it is done or required to be done at any stage.

Calls on the expert staff of Forensic Lab, FPB or Crime Analysts of the Bureau

758-1. There are, officers trained in finger and footprints, scientific assistants attached to the District Finger Print Bureau and the Laboratory. A separate file showing the reports received from investigating officers requisitioning the services of these experts or other scientific experts attached to the District Investigation Teams and the results achieved should be maintained in the Bureau.

2. A Crime Analyst Group as a necessary adjunct to the DCRB consisting of senior police and civilian experts should be formed for analysis of crime, both strategic and operational on the same line as in CID. This group should assist the police investigations methodically and give useful leads for detection and planning preventive measures. The functions and the manner of formation of this group is dealt separately in Order 884 of Chapter 44.

Criminal Intelligence

759-1. Intelligence gathering, storage and retrieval should be organised. The SP should maintain the Register of informants and ensure that there is a regular flow of useful information and its use in day-to-day work of the police.

Computers

2. The crime-criminal information system and records of DCRB should all be maintained in computerised system with on-line facility initially to all IOs of CCS and in due course to all Detective Police Stations.

Criminal Intelligence Gazette

3. The Criminal Intelligence Gazettes of the State as well as Border States should be filed in the Bureau and used for reference. The concerned Units should be advised if any action is necessary to be taken by them.

Dissemination of Intelligence

760-1. Daily Criminal Information Digest. This should be prepared in the Bureau every day on the basis of information received for the day in the weekly C&O format and sent to all SsP, SDPOs, L&O and Detective Police Stations, as also to Zonal IG/DIGP and IGP, CID in-charge of SCRB by fax.

Weekly Crime and Occurrence Sheet

2-A. For the efficient and proper dissemination of information regarding crime and criminal, the Bureau in five parts shall publish a Weekly Crime and Occurrence Sheet.

B. The sheet should be dated Saturday of each week and embody information received in the Bureau up to Saturday forenoon. The sheets as well as the pages should be numbered consecutively for the whole year to facilitate easy reference.

C. The pro forma in which the Crime and Occurrence Sheet should be prepared containing sample entries is annexed to this Chapter.

D. Part I contain a statement of crime in different heads, reported to the Bureau during the week in chronological order under each head. There is no need to indicate the head if no case is reported during the week.

E. Below this the following classes of crime should be reported head wise and date wise.

- Murder
- Dacoity
- Robbery
- House breaking
- House theft
- Cattle theft
- Other thefts (other than cattle & house thefts)
- Automobile thefts
- Cheating
- Breach of trust
- Counterfeiting
- Other financial crimes (Other than cheating, breach of trust and counterfeiting)
- Professional Kidnapping
- Organised crime
- Terrorism
- Crimes against women and children
- Crimes against weaker section
- Crimes relating to pollution, flora and fauna
- Antiquities and cultural property

F. Details of the cases that occurred and were reported to the Bureau during the week and also of cases that occurred in the previous week but were reported to the Bureau during the week should be furnished.

3. The names of neighbouring stations of the district should be typed / printed in italics or underlined, and the names of the neighbouring district or districts should be noted below the name of the Sub-Division.

4. List of all identifiable property should be published in respect of each new case in Part I. Full descriptive particulars and values of numbered or unnumbered properties lost and recovered should be given.

5. When persons suspected or known to have been involved in a case are registered criminals of a station or dossier criminals, the fact should be clearly stated.

6. Instructions or comments on any case given by the Bureau should be published in italics just below the narration of the case concerned. In every case, the instruction, comment or advice, if any, should be communicated immediately to the officer concerned by fax or wireless. Such advice or comment or lead should be based on thorough study, analysis, and experience that would enable the IO to pursue a useful clue or avoid any mistake or pitfalls.

7. Part II of the sheet will contain the disposal of old cases and will be in the pro forma shown in the appendix. The disposal of all cases whether of property or otherwise should be mentioned in Part II.

8. Part III has five sections -

- information relating to persons and history sheeted criminals wanted or suspected in cases;
- those who have been out of view but not wanted in any case;
- those who were arrested during the week;
- those released from jail during the week or likely to be released during the ensuing four weeks (to be given only in the last sheet of each month), mentioning in the case of persons actually released whether they are present at home or have gone out of view,
- arrests of suspicious strangers and seizure of property under suspicious circumstances,
- full details of property recovered.

9. Particulars of unidentified dead bodies, abandoned automobiles, stray cattle, lost property, missing children etc., should be published in Part IV.

10. Part V contains matters of a general nature. Instructions to Detective Police Stations, other concerned SHOs in regard to crime and criminals, notes on special features of individual cases, and any matters of specific or general interest should be published in this part.

11. Antique type should be used wherever necessary in the sheet in order to emphasize important points, such as places likely to be visited by wanted persons and names of officers whose attention is to be drawn to any particular entry.

12. In important matters information should be immediately communicated by the Bureau direct to the officers concerned through advisory memoranda (Order 762), besides publishing it in the Weekly Crime and Occurrence Sheet. For example, the slightest indication or possibility of any crime in the district being connected with crime or criminals beyond the district shall be communicated promptly to the SHOs. Inspectors of Detective Police Stations and SDPOs both L&O and Detective of the border areas of the two districts.

13. A copy of the sheet shall be sent to the Zonal Inspector-General/DIGP and IGP SCRB, so as to reach them by Monday. The sheet should be generated on a computer system late on Saturday evening and mail-transferred the same evening. The hard copy may be despatched by post simultaneously.

14-A. The Zonal Inspector-General/DIGP will study the out-break of crime of any category, with a view to examine the possibility of cases occurring in different districts forming a series connected with one another. Timely instructions should be issued for coordinating investigation, for locating the sources of undetected crime and for indicating ways and means of dealing with it. Such instructions should be issued promptly to the SP by quickest available means. A copy of the instructions given by the Zonal Inspector-General/DIGP and Addl. DGP (Law and Order) to L&O Police should also be sent to the Addl. DGP, CID who in turn will bring these to the knowledge of the DGP with his own comments.

B. The Superintendents of Police need not send a detailed report in reply to the remarks of the Zonal Inspector-General/DIGP or the DGP on the sheet. It would be enough if brief reports are sent by radio or fax.

15. The printed sheet will be issued to all officers of and above the rank of Inspector in the district and to the all SHOs of L&O, Detective and other police stations of the district, to the District Crime Bureaux of bordering districts, the Inspector General of Police SCRB, the Zonal Inspector General/DIGP, all other Zonal Inspectors General/DIGP bordering the district and to such Inspectors of Detective and L&O police stations of bordering districts as the SP may decide. The distribution should be only on need to know basis and should not be sent as a matter of routine.

16. Sheets may be issued only with the permission of the Addl. DGP CID to the officers of bordering states other than those of districts bordering this State, to whom they may be sent with the approval of the SP.

Monthly Crime Reviews

761. At the beginning of each month a review of crime for the previous month should be prepared by the Bureau. Monthly statements of crime should accompany this. Only true cases will be dealt with both in the Monthly Crime Review and in the statements. Instructions for the compilation of the Review are given below:

1. Paragraph 1 of the Review should contain two sections; first one dealing with property crime and the second one dealing with all other IPC and cognizable cases. In general review of crime, all true offences against property (barring those dealt with under section 157 (1)(b) of CrPC) should be treated as professional crime until the contrary is proved. In view of this, no statement of professional crime need be furnished in paragraph 1. Fluctuations in crime during the month as compared with the previous month and the corresponding month of the previous year should be commented upon. The possibility of gangs or organisations being responsible should be examined. Points for comment are indicated below for guidance:

- A. considerable general increase in respect of any class of crime;
- C. serious outbreaks of crime under a particular class;
- D. unusual types of crime;
- E. recurrence of particular kind of crime;
- F. crime by organized gangs, and the routes taken by them, if any.
- G. refusing investigation.

2. In respect of crime against persons and other offences, the fluctuations in each class, the persons responsible and whether they form a pattern or part of a series should be indicated. In case the accused concerned are not known, the profile of the offenders, their method, the organisation or group to which they belong, the weapons used, the benefit derived and the motives that propelled the commission of offences should be commented upon.

3. The foregoing suggestions are not exhaustive but only illustrative. The main object of comment should be to give a brief but comprehensive account of the salient features of the month with the deductions drawn from them. The crime analysis group with the help of the district crime records bureau prepares this review.

4. Paragraph 1 of review - should give details of cases in which investigation was refused and cases, which were, registered suo motu. The nature and value of property lost and recovered in such cases and the section of law with modus operandi should be furnished.

5-A. The second para – A of the Review should be analysis of all murders, classified as shown below. Where a murder is followed by the accused committing suicide, it must be mentioned, whether it is important or not.

(a) Murders for gain	Give brief details of each case with specific reference to fire arms used, if any
(b) Murders due to faction	-do-
(c) Murders due to organised criminal activity	-do-
(d) Murders due to sexual jealousy	-do-
(e) Murders due to family disputes	Give brief details of cases of special importance
(f) Murders due to previous enmity	-do-
(g) Murder due to petty quarrel	-do-
(h) Murder due to land dispute	-do-
(i) Murder due to dowry	-do-
(j) Murder due to money dispute	-do-
(k) Murder of unknown deceased	-do-
(l) Murder by unknown accused	-do-
(m) Murder by Extremist	-do-
(n) Murder due to other causes	-do-

5-B. The second para – B should give analysis of all culpable homicides not amounting to murder.

6. Para 3 should deal with dacoities classified into highway, field, house, etc. Give brief details of each case with particular reference to the fire-arms used, if any.

7. Para 4 should deal with robberies classified into highway, field, house, etc. Give brief details of each case with particular reference to the firearms used, if any.

8. Para 5 should deal with house-breakings by day or night including attempts. The following statements should be enclosed.

A. Furnish a Sub-division-wise Modus operandi statement in the form attached.

Circle	Modus Operandi	Convicted	Pending Trial
	A B E H L1 L2 R T W M S		

B. Indicate the number of house breakings classified as in Table 1 attached.

Table - I

Classification	Reported	Pending trial	Convicted	Discharged or acquitted	Under Investigarion	Referred UN	Total
1	2	3	4	5	6	7	8

I. Classified according to buildings attacked:

- i. Inhabited dwelling houses
- ii. Uninhabited dwelling houses
- iii. Boarding establishments
- iv. Schools and Colleges
- v. Banks and post offices
- vi. Temples
- vii. Other places of religious worship
- viii. Shops
- ix. Hospitals
- x. Others
- Total

II. Classified according to Property Stolen:

- i. Jewels, clothes and cash
- ii. Vessels
- iii. Radios and cameras
- iv. Cycles
- v. Auto - parts
- vi. Animals
- vii. Fire - arms
- viii. Watches and clocks
- ix. Others
- Total

C. Furnish in the enclosed Table 2, brief details of all cases in which offenders are definitely known, house breakings by day and by night being shown separately. (In column 5 should be noted the class of offenders in each case, such as first offenders, dossier criminals, habitaual offenders, history sheeted bad character, ex-convicts, juveniles, locals or non-locals.

Table 2

Sl. No.	Station, Circle, Value of Cr.No., date & property MO	Names and particulars of accused. Present If arrested, note (+) against each stage of the case	Remarks
1	2	3 4 5	6 7

D. Furnish in Table 3 brief details of all cases in which offenders are not known, house breakings by day and by night are shown separately, where there is a mere suspicion, he must be treated as unknown, but the grounds of suspicion should be noted against his name:

Table 3

Sl. No.	Station, Circle, Cr.No., date & MO	Value of property		Names and particulars of persons suspected, if any.	Present stage of the case	Remarks
		Stolen	Recovered			
1	2	3	4	5	6	7

9. Paragraph 6 of the review should deal with thefts including house thefts. The number of thefts including house thefts, irrespective of value of property lost should be classified as shown in Table 4 below. (Details of important crimes and out-breaks should be given)

Total number of (i) House thefts: ----- (ii) Ordinary thefts: -----

Table 4

Classification	Reported	Pending trial	Convicted	Discharged or acquitted	Under investigation	Referred as UN	Total
1	2	3	4	5	6	7	8
i. Cycle thefts							
ii. Vessel thefts							
iii. Pocket-picking							
iv. Snatching from children							
v. Snatching from sleeping persons.							
vi. Snatchings not classified							
vii. Copper wire							
viii. Firearms							
ix. Explosives							
x. Radios and cameras							
xi. Watches and clocks							
xii. Other cases							

10. Para 7 should deal with automobile thefts of all kinds.

11. Para 8 of the review deals with cattle thefts classified as in Table 5.

Table 5

Classification	Reported	Pending trial	Convicted	Discharged or acquitted	Under investigation	Referred as UN	Total
1	2	3	4	5	6	7	8
i. Oxen stolen for sale or ransom							
ii. Oxen stolen for sale of skin							
iii. Goats or sheep stolen							
iv. Miscellaneous cattle thefts							

12. Para 9 of the review should deal with other professional offences under different heads such as receiving stolen property, breach of trust, cheating, misappropriation, forgery, counterfeiting of notes and coins and other financial crimes, professional poisoning, kidnapping for ransom and extortion. Cases of rioting should also be included in this paragraph. In respect of these cases, only the number under each head need be given, brief details being furnished if they are work of an organized gang or gangs or otherwise important or sensational. In all cases of counterfeit coins and currency notes, it should be clearly stated in the review whether a report on the case has been sent to the CID.

13. Paragraph 10 of the Review deals with cases of Juvenile Justice. The following particulars should be given in respect of each juvenile crime reported during the month:

A. Station and section of law;

B. MO particulars - full details;

C. Name of the accused juvenile, with father's name, residence, age and caste;

D. Antecedents and the causes that led him to criminal life, such as lack of control by parents, unhappy family life and poverty, should be described in detail;

E. The status of the parents, their means of livelihood and domestic conditions of the family;

F. Result of the case. Mention if found guilty and how he is dealt with.

14. Para 11 of the Review deals with cases of crimes against women. The classification to be followed in respect of these crimes should be specified under the following heads.

- A. Dowry deaths
- B. Cruelty of husband and relatives
- C. Molestation
- D. Kidnapping and abduction
- E. Rape
- F. Immoral Traffic (Prevention) Act
- G. Unclassified

15. Para 12 relates to review of cases of atrocities against Scheduled Castes and Scheduled Tribes. The information to be furnished should include murders, hurt and all IPC offences and offences under Protection of Civil Rights Act 1955, and the SC & ST (P&A) Act 1989.

16. Security cases. $\frac{3}{4}$ Security cases u/s 107, 108, 109 and 110 CrPC should be dealt with in paragraph 13 as shown below:

Classifi- cation	Sec.107 CrPC Put up	Sec.108 CrPC Bound over	Sec.109 CrPC Put up	Sec.110 CrPC Bound over	Sec.110 CrPC Put up	Sec.110 CrPC Bound over
1.Number of Locals						
2.Number of Non-local						

Note:- These cases should be analyzed with reference to the circumstances of their arrest if any, the previous crime history of the person if any, recoveries made from him or at his residence, if he is wanted in any offence outside etc. In short the quality of security proceedings shall receive due attention in the comments to be made by the Bureau including the impact on incidence of crime.

17. Paragraph 14 of the review $\frac{3}{4}$ Notable preventive arrests. $\frac{3}{4}$ In this paragraph the particulars of notable preventive arrests should be given.

18. Paragraph 15 of the review $\frac{3}{4}$ Statement of case progress. $\frac{3}{4}$ The progress of cases should be entered in paragraph 15 of the review in Form 141.

19. Paragraph 16 of the review $\frac{3}{4}$ Notes on unlocated crime. $\frac{3}{4}$ Notes on unlocated crime should be incorporated in this paragraph. A close and comprehensive study of all important unlocated offences, the possible connection between the different offences, likelihood of particular local or outside district agencies being responsible, etc. has to be made and incorporated. The instructions given should be specific, informative and instructive and should serve as a guidance to the officers and not in the nature of general comments.

20. Activities of criminal gangs should be specified in the concerned heads of crime dealt within the fore-going paragraphs. Good work done by DCRB, Neighbourhood Watch and other voluntary bodies and individuals, maithri committees and the police should be mentioned in the respective heads of crime and not separately. Particulars of notable arrests should also be shown in the concerned category of crime or in the para relating to preventive arrests whichever is applicable. The occurrence of any particular type of crime or outbreak in any particular area should be specifically dealt with.

21. The Monthly Crime Review for each month should be sent to the IGP SCRB, so as to reach him on or before the 15th of the succeeding month. The SP should simultaneously send a copy of the review to the Zonal IG/DIGP who will offer his remarks on the review of the SP and send them to the Addl. DGP L&O and Addl. DGP CID, so as to reach them on or before the 10th of every month. The IGP SCRB should place the reviews of the districts with the remarks of the Zonal Inspectors-General/DIGP to the Addl. DGP CID before 25th of the month. He may prepare a brief resume for the week with his comment and forward for perusal of the DGP through Addl. DGP CID. The weekly crime report of CCRB shall be scrutinized by IGP SCRB and forwarded to DGP for perusal through Addl. DGP and after perusal and comments, if any by DGP, shall be retained in SCRB. The remarks of DGP, if any, should be communicated to CsP/SsP.

22. The monthly statement of crime in Form 142 should accompany the review.

23. The Statistical Branch of the District Police Office shall be a Wing and part of the DCRB. This will ensure accurate preparation of the statistics of crime in connection with the Monthly Crime Review and of the returns to be submitted to the Zonal IG/DIGP and IGP SCRB.

24. The Monthly Crime Review should be published in the Weekly Crime and Occurrence Sheet.

25. At the end of the year, a consolidated review of the year's crime should be prepared dealing with the salient features, steps taken and results achieved.

26. Details of the crime committed by the habitual offenders should be dealt with in the appropriate heads of crime, viz., Murder, Dacoity, Robbery, in paragraph Nos. 2, 3, and 4 respectively. Information regarding the group of habitual offenders, if any, to which the offender belongs, should be furnished along with his name. In cases of housebreaking and thefts, details about the said group etc. should be furnished in the remarks column of the tabular statement in paragraph 5 (C) (Sub Order 8 - C). Regarding house thefts, ordinary thefts, automobile thefts and cattle thefts, the above details should be furnished after the tabular statement in paragraphs Nos, 6, 7 and 8. Similarly, other types of professional offences, if any, should be reviewed in paragraph 9 of the said Review.

Advisory and crime memo books

762-1. The Bureau should maintain a separate memorandum book in trifoil (in Form 28) for all the advisory and crime warning memoranda issued by it. The book should be maintained in chronological order and each memorandum issued by the Bureau should be given a separate number, such as 1/Crime/98, 2/Crime/98, etc. The replies to each memorandum should be sent by the concerned promptly and filed with the office copy.

2. As soon as the Bureau receives information regarding the occurrence of any serious and grave crime, the Bureau and analysis group should study the indices maintained with a view to discovering whether any criminal of the same modus operandi has operated in the area previously or has any relatives or associates in the station limits or the neighbouring station limits and whether any dossier criminal or any history-sheeted criminal who is out of view from that station or a neighbouring station or any criminal who has returned from jail recently is likely to have committed the offence. A quick analysis of the information available from the scene about the profile of the criminal or group and comparison with those with similar group or criminal in the data bank, or any inputs or intelligence available should be made and leads should be communicated by fastest means. The required data can be picked up by the Bureau easily from (a) the history of crime, (b) modus operandi register of all "out of view" history-sheeted persons, (c) register showing the dates of release of dossier criminals and other history-sheeted persons, (d) general subjects files, (e) modus operandi indices and of the dossiers. It should however, be noted that the modus operandi is not the sole criterion for the determination of the probable complicity of a criminal as many active criminals adopt more than one modus operandi and commit different crimes also.

3. The Bureau should make a careful study of crime on receipt of crime cards and crime details forms and other reports, weekly station reports, Crime and Occurrence Sheets of neighbouring districts, and information regarding the probable dates of release of dossier criminals and other history-sheeted persons, criminal intelligence gathered through sources by the Detective PS or Beat Police on the basis of such study and analysis should be sent direct to the IOs under intimation to the SDPOs concerned, on the indication or possibility of an out-break of crime and about the release of any dangerous criminals. Effort should be made to study the activities and profiles of criminals or groups from outside the district or state, those at large and places where they committed crimes earlier.

Quarterly return of photographing of dossier criminals

763-1. The Bureau should send a quarterly progress report on the photographing of dossier criminals in Form 143, which should reach the IGP (SCRB), not later than the fifth of the month following the quarter.

2. An explanatory note should be given stating as to why photographs have not been taken for those mentioned in columns 5 and 6 of the Form 144.

Visits to and Inspections of the Bureau

764-1. The Bureau is subject to the inspection of the Zonal IG/DIGP as well as by IGP SCRB, and will comply with their instructions.

2. All officers of and above the rank of Sub-Inspector stationed at the district headquarters should visit the Bureau once a month. Those stationed outside must visit the Bureau whenever they visit the district headquarters or at least once a quarter. A register in

Form 145 should be maintained in the Bureau to show the days on which and the purpose for which each officer visited the Bureau and the business transacted during the visit. The register will be written at the end of each visit and should be placed before the SP immediately after each visit. It should be produced at the time of each inspection. Facilities should be provided in the Bureau where visiting officers can sit, refer and study the relevant files as also to retrieve information from any computer system provided and take down notes. A library shall be maintained in DCRB/CCRB.

3. Sub-divisional Officers must visit the Bureau whenever they visit the district headquarters and leave notes in the visiting book as to the nature of work transacted and summary of discussions held.

4. The SP/Addl.SP who is in direct charge of the Bureau assisted by a DSP shall daily monitor its activities. The SP/CP must remain in touch and visit the Bureau as frequently as possible and make detailed inspection once a year.

5. In each District Headquarters a Computer Centre has been established by SCRB for data entry in Crime Criminal Information System (CCIS). It is necessary that whenever a Senior Officer conducts the Inspection of the DCRB or DPO, he must invariably inspect the Computer Centre as well. They should check the following points during such inspections.

A. Check-up whether the Flooring, Roof, Wiring in the Computer Room are as per directions.

B. Check-up whether the Air Conditioners in condition or not.

C. Check-up whether the UPS is in working condition or not and whether the concerned company maintains the UPS or not. .

D. Check-up whether the computer and its peripherals are in working order or not. Computer maintenance Register should also be verified.

E. Check-up whether the concerned company maintains the computer or not. Verify computer maintenance Register.

F. Verify whether the concerned maintenance company is attending on the complaints of the Units/Districts to rectify the problems of UPS and computer of CCIS project.

G. Check-up the Logbooks, Monthly Reports Books, computer and UPS maintenance registers.

H. Check-up whether the computer down time reports for every quarter is sending regularly to SCRB or not.

I. Check-up whether the operators are entering the CCIS data regularly and thresh holding the data to SCRB on a periodical basis or not.

J. Verify whether the Integrated Investigation Forms are collected by DCRB CCIS computer section on par with the investigation and disposal of the case till it closes.

K. Check-up the quality of data received through the Integrated Investigation Forms. (Input forms for CCIS)

L. Check-up whether Memo's are given to the I.Os. in respect of non-receipt of Integrated Investigation Forms by the Unit Officer.

◆ 2015 Police Computer Services & Standardisation, AP Police Department.

CHAPTERs[Volume1](#)[Volume2](#)[Volume3](#)**CHAPTER 41****Finger Prints, Foot Prints and Photographs**

765 -1. Fingerprints serve as the most valuable, infallible and accurate means of personal identification, and have since long become an indispensable tool in the investigation of crime and administration of justice. Investigation of a crime is primarily meant to identify the person or persons responsible for the crime and fingerprints provide a scientific clue to the identity of criminals.

2. It is essential for all Police Officers to acquire knowledge of the basic principles and techniques of finger print identification. All police officers should thoroughly familiarize themselves with instructions and procedures set forth in this chapter and comply with them in their work. Good work in tracing a criminal or clue to an offender obtained through skilful detection and use of chance prints must be rewarded. This chapter and related literature shall form an integral part of all Induction, In-Service and on-job training courses of civil police. Specialist courses in the science of Finger Prints and Foot Prints and other scientific aids detailed in Chapter 31 should be designed and organized by APPA and all training institutions of the State.

3. The two fundamental principles of finger print science are (i) that the ridges formed even before birth does not change until destroyed by decomposition after death and (ii) that two fingerprints can be identical only if they are both produced by the same finger of the same person. These two principles are applicable to the entire palmar surface of the hands as well as plantar surface of the feet.

4. The Fingerprint Bureau assists investigating agencies in -

- A. furnishing criminal antecedents, providing the background of any individual detained under suspicious circumstances,
- B. tracing of out-of-view criminals,
- C. establishing the identity of unidentified dead bodies,
- D. identifying of accused persons from the records maintained,
- E. assisting in apprehending proclaimed offenders, absconders and persons who escaped from prisons,
- F. giving opinion in documents bearing disputed fingerprints and
- G. imparting training to Police Officers.

5. Fingerprints have a role in prevention of crime and detection of crime, especially in cases of property offences and forgeries and fabrication of false documents.

6. Fingerprint slips are of two kinds (1) Fingerprint record slip, and (2) Fingerprint search slip. The fingerprint record slip is prepared in Form 145 immediately after a person is convicted or re-convicted and sent for record to the Bureau along with the conviction memorandum (Form 131). The fingerprint search slip is the FP slip of a suspect taken on Form 146 by the SHO and sent for search to the Bureau at Hyderabad with Form 146 in order to know his antecedents.

7. In the State Fingerprint Bureau two kinds of records are maintained. One is ten digit FP records for the purpose of establishing both identity and past criminal history of a suspected individual, to locate wanted criminals who escape from police, and to know the identity of unidentified dead bodies. In the ten digit type of collections FP slips of all individuals convicted for the offences specified in order No. 769 are maintained according to the Henry system of classification. The second variety is the Single Digit FP records for the purpose of establishing the identity of offenders in crimes like house breaking, dacoity robbery and other crimes through fingerprints traced at the scene of crime. In Single Digit collections, fingerprints of all ex-convicts whose criminal activity is dacoity, robbery, house breaking, and theft and other professional criminals are recorded according to Battelly system of classification.

Finger Print Bureaux

8 In each State, there is a Finger Print Bureau in which the fingerprints of criminals are kept on record. Finger Print Bureaux of the States are located at the following places:

Andhra Pradesh	... Hyderabad
Andaman & Nicobar Islands	... Port Blair
Arunachal Pradesh	... Itanagar
Assam	... Guwahati
Bihar	... Patna
Chattisgarh	... Raipur
Delhi (State)	... Delhi
Goa	... Panaji
Gujarat	... Ahmedabad
Haryana.	... Karnal, Madhuban
Himachal Pradesh	... Shimla
Jammu & Kashmir	... Srinagar
Jharkhand	... Ranchi
Karnataka	... Bangalore
Kerala	... Thiruvananthapuram
Madhya Pradesh	... Bhopal
Maharashtra	... Pune
Manipur	... Imphal
Meghalaya	... Shillong
Mizoram	... Aizol
Nagaland	... Kohima
Orissa	... Bhubaneswar
Pondicherry State	... Pondicherry
Punjab	... Phillaur
Rajasthan	... Jaipur
Sikkim	... Gangtok
Tripura	... Agartala
Tamil Nadu	... Chennai
Uttar Pradesh	... Lucknow
Uttaranchal	... Dehradun
West Bengal	... Kolkata

9 The Central Finger Print Bureau at New Delhi, attached to the National Crime Records Bureau is functioning at East Block VII, R.K. Puram, New Delhi 110066. Correspondence can be made with the Director CFPB at this address.

10. Address of the Andhra Pradesh Police Finger Print Bureau is: Director, FPB, SCRB, DGP's Complex, Saifabad, Hyderabad – 500004. A.P.

Fingerprints and the scene of crime

766-1. Fingerprints found at the scene of crime are known as chance prints. These prints are found in three forms, i.e., visible prints, plastic prints and latent prints (Invisible Prints).

A. Visible prints are those made by fingers smeared with some coloured substances like blood, ink, paints, etc. Such prints can be seen easily with the naked eye and require no development. They can be photographed for preservation and comparison.

B. Plastic prints are those made on plastic or pliable materials such as soap, melted candles, wax, tar, adhesive gum, etc. These prints also need no development and can be photographed directly using oblique light.

C. Latent prints are those formed by the medium of sweat and they are the most common type of chance prints available at the scene. As the name indicates, and since they are formed through the medium of sweat, they are indistinct and cannot be seen as easily as other types of prints. These have to be developed either by chemical methods or by use of appropriate lightings / rays (UV,IR etc.) in order to make them visible before they are photographed.

Procedure for preserving the scene of crime and for searching of chance prints

2. The first duty of a police officer on arriving at the scene of crime is to instruct every one to keep his hands off the articles to be examined for latent prints. The search for chance prints should be conducted carefully and systematically. The search should start from the point of entry into the premises, such as windows, ventilators, chimneys, roof holes, skylights where chance prints are most commonly found. Thereafter the search should extend to all places at the scene where the culprits moved during the commission of crime, ending at the point of exit. All the articles suspected to have been disturbed or handled by the offenders during the commission of offence should be thoroughly examined.

3. Articles bearing chance prints at the scene of crime have to be preserved from damage by unwanted persons and climatic conditions before the expert examines them. Great care is to be taken by the Police Officer reaching the scene first, to keep away-unconcerned persons and by collecting movable articles, left in the open, and placing them in a safe place. A cover should be put over immovable articles, protecting the chance prints from sun, rain and dust. While doing so, no damage should be caused to the prints already existing on the articles. The Police Officer should not leave his own prints on them.

Development of Latent Fingerprints

4. Latent (Invisible) fingerprints found on various items at the scene of crime can be developed to render them visible by spraying powders, solutions and gases depending on the background and nature of print.

5. In case the articles are to be sent to the FPB for expert's examination, they should be packed with care and security by the Investigating Officer, so that no damage is caused to the prints or articles during packing or transit either by careless handling or friction from packing material.

Lifting of latent prints

6. When chance prints are found in narrow nooks and corners, or the inner surfaces of jewel cases, jars and flower vases, where it is not possible to photograph them, the clues of evidence should be secured and preserved by the process of lifting. The method adopted in shifting FPs is to press the gummy surface of a transparent cellophane tape against the developed chance prints without forming air bubbles lift it and transfer them to a contrast liftcards. Lifting should be resorted to only for those prints where photography is not possible, as there is every risk of the prints getting partly or wholly damaged in the process. Lifting of chance prints also can be done on all surfaces after photography, making use of latest methods like iodine fuming, ninhydrin, glueing and applying multiple wave length light derived from Polilight, Poliray etc. or Laser beams.

7. Police Officers must comply with the following instructions in Fingerprint Work.

- A. Write the name of the individual on the FP slip before taking his fingerprint
- B. Furnish the address on a search reference as to whom the result of search has to be communicated.
- C. Furnish crime number on search reference at the time of arrest and also on conviction memo after conviction of an individual.
- D. Always use proper ink and pressure while taking fingerprints. Fingerprints obtained on FP slips to be sent to FPB should be clear and fully rolled.
- E. Fingerprint slips along with a conviction memo must be sent to District F.P. Unit and FPB for record after an individual is convicted.
- F. Attest the conviction particulars entered on the reverse of the FP slip to be sent along with conviction memo to FPB without fail.
- G. Promptly report to FPB, in Form 147, about OV criminals in SHO's jurisdiction.
- H. Remember always to use separate containers for preserving severed fingers of an unidentified dead body.
- I. Never allow any unauthorized person to disturb the scene of crime or articles there and damage physical evidence left on them before the arrival of FP Expert.
- J. Always take care of the scene of crime articles which are exposed bearing chance prints by providing shelter or cover to protect them from sun, rain, dust etc., to prevent damage to the clues, before they are examined by an FP Expert.
- K. Always make it a point to utilize the services of a Fingerprint Expert if any chance prints are suspected to exist on any article at the scene of crime.

Finger Prints Terminology

- 767-1. Finger Prints: Finger Prints include prints of the thumb, either 'rolled' or 'plain'.
2. Rolled Prints: are prints obtained by completely rolling the inked thumb or finger on the paper.
 3. Plain Prints (Touch Prints): A 'plain' or 'touch' print is obtained by lightly pressing the inked bulb of thumb or finger upon the paper without any turning movement.
 4. Digit: Means a finger, thumb or toe.
 5. Ten digit finger print slip: A sheet of printed proforma (Form No. 145) on which the prints of all ten fingers of a person/criminal/suspect are obtained by the IO for being sent to FPB for record/search.
 6. Finger Print Patterns: The finger print patterns are four types: (i) Arch (ii) Loop (iii) Whorl (iv) Composites.
 - A. Arch: In plain Arch, the ridges flow or tend to flow from one side to the other, with a rise or wave in the centre.
 - B. Loop: A loop is a pattern in which one or more ridges recurve in the form of staples, with only one delta ordinarily.
 - C. Whorl: The whorl has two deltas and at least one ridge making a complete circuit, which may be spiral, oval, circular, or any variant of a circle.
 - D. Composite: A composite is a pattern with combination of two or more patterns either of the same or different types in one print.
 7. Core: Core is the inner terminus which is the approximate centre point of the pattern.
 8. Delta: Delta is the outer terminus of the pattern.
 9. Chance Print: The prints likely to have been left by criminals at the scene of crime are known as 'chance prints'. Such prints are of three types. (A) Visible (B) Semi visible or plastic prints and (C) Latent.
 - 10-A. Visible prints: These prints are caused through media of colour, such as ink, blood, grease etc., and can be seen with naked eye.
 - B. Semi visible or plastic prints: These prints are caused on soft substances like soap, paraffin, melted wax etc., due to the pressure of fingers. These prints can be seen under oblique light.
 - C. Latent prints: The prints which can not be seen normally and are made visible by development.
 11. Identified: 'Identified' means a person whose residence and antecedents are fully known to the investigating officer.
 12. Unidentified: 'Unidentified' means a person whose residence and antecedents are not known.
 13. Traced: 'Traced' means a person whose antecedents and previous history have been established from the records of the Finger Print Bureau.
 14. Untraced: 'Untraced' means a person against whom no previous convictions could be established from the records of the Finger Print Bureau.
 15. Convicted: 'Convicted' means a person who has been found guilty for the first time by a Court of Law for any offence.
 16. Re convicted: 'Re convicted' means a person who, having been convicted on one or more previous occasions, is again convicted.
 17. Finger Print Slips: 'Finger Print Slips' are of two types: (A) Finger Print Record Slip and (B) Finger Print Search Slip.
 18. Finger Print Record Slip: 'Finger Print Record Slip' is the finger print slip of a person prepared in Form 145 immediately after he is convicted or re convicted and sent for record to the Finger Print Bureau along with Court Disposal Form (Conviction Memorandum).
 19. Finger Print Search Slip: 'Finger Print Search Slip' is the finger print slip of a suspect taken on Form 145 by the Station House Officer and sent for search to the Finger Print Bureau with Form 146 in order to know his antecedents.

20. Proficient: 'Proficient' means a police officer who is well acquainted with the process of taking clear and well rolled finger print impressions.
21. Searcher (FP Asst. Sub Inspector): A "Searcher" means an officer who has been declared by the Director, State Crime Records Bureau, AP, Hyderabad, to be competent to examine and classify finger impressions.
22. Expert (FP Sub Inspector): An 'Expert' means an officer who has passed the All India Board Examination for FP Experts conducted by CFPB, NCRB, New Delhi, and who has been declared by the Director, State Crime Records Bureau A.P., Hyderabad, to be competent to examine, classify and give expert opinion on finger impressions.
23. A 'Foot Print Expert' means an officer, not below the rank of a Sub Inspector of Police, who has been declared by the Director, State Crime Records Bureau A.P., Hyderabad, to be competent to take, examine, identify, and give expert opinion on foot print impressions.
24. Provisional Criminal Number (PCN): It is a 12 digit number which is given by the police station to each person arrested on suspicion, in respect of whom a finger print search slip is sent to the Finger Print Bureau for tracing his antecedents.
25. Regular Criminal Number (RCN): It is a 12 digit number allotted by the Finger Print Bureau to a criminal when his finger print slip is received for record in the State Bureau after his first conviction. This number does not change on subsequent conviction(s) of the criminal.
26. Fingerprint Analysis and Criminal Tracing System (FACTS) is a computerized fingerprint identification system by which even a single chance print can be compared with the entire data base of all finger prints maintained by the Finger Print Bureau.
27. Measurement: Measurement includes Finger and Foot impressions.

Nature of Finger Prints - Procedure and Precautions

768-1. A police officer is competent to take measurements and photographs of a person who is convicted for an offence punishable with R.I. for one year or more or of a person who is ordered to give security for good behavior U/s 118 Cr.P.C. A police officer is competent to take measurements of a person only if that person has been arrested during investigation as per section 3 and 4 of Identification of Prisoners Act.

Finger Prints of un identified dead bodies

2. Finger Prints of lepers should not be taken on any account. Fingerprints of persons suffering from contagious or infectious diseases should not also be taken until completely recovered.

Finger Prints: By whom to be taken

3. Finger impressions shall be taken only by officials who are well acquainted with the procedure of taking clear and fully rolled impressions (preferably by the investigating officer or the SHO himself).

Method of taking Finger Prints

4-A. Appliances: The appliances required for taking finger prints comprise a glass slab, a rubber roller and printer's black ink (thumb impressions ink). These must be kept scrupulously clean and free from dust, grit and hairs. The slab should be freshly cleaned before use each day, all particles of old ink being rubbed off. The roller, when not in use, should be kept wrapped up in a piece of clean oil paper. Both slab and roller should periodically be cleaned with soap, benzene or kerosene. The pot of ink should be kept tightly closed when not in use. The table used should be of correct height to keep the subjects' fore-arm in a horizontal position.

B. Preparation of appliances: The slab must be perfectly smooth and should be wiped free of dust before use. A small quantity of ink should then be put on the slab and the roller used to bring it down to the finest possible film, so that the glass is dimly visible through the ink. Experience has shown that it is easier to start with a very small quantity of ink and to increase it as necessary. If excessive ink is applied to the slab, a sheet of paper laid on it and rolled over with the roller will generally reduce it sufficiently. If the ink is dry and thick, it will be found that with a little perseverance it can be worked up smooth on the slab.

C. Inking the fingers: The fingers of the subject should be rubbed clean and dry, as the slightest perspiration on the finger will cause blotches and blur the print. Only the inner portion of the upper phalanges of the fingers should be

inked. To take a 'rolled' impression, the finger should be placed on the inked slab, the plane of the nail being at right angles to the slab, and turned over till the bulb surface, which originally faced to the left, now faces to the right. For a 'plain' impression, the ridge surface of the finger should be placed flat on the inked slab. The operator should always keep the subject towards his right and uniform pressure maintained throughout the rolling process keeping control over the subject's hand and fingers. The operator should not talk or otherwise distracted while taking finger prints to avoid recording a print in wrong place.

D. Taking impressions: Prints must be taken on the authorized Finger Print Slip (Form 145). In the slip, space has been provided for the 'rolled' prints of all the ten digits, as well as for the 'plain' prints of the four fingers of each hand. The headings of the slip are self explanatory.

E. Slips to be folded for taking 'rolled' prints: For convenience in taking 'rolled' prints, the slip should be folded at the line indicated and the fold placed in line with edge of the table.

F. Order of taking prints: The 'rolled' prints of the right hand should be taken first, each finger being inked and impressed before the next finger in rotation is inked. When the 'rolled' prints of all the fingers of the right hand have been taken, the 'plain' prints of the four fingers of that hand simultaneously should be taken in the space provided for them on the slip. The operator should then proceed to take the prints, 'rolled' and 'plain' of the left hand in a similar manner.

G. Entry of details on slips: After the finger prints of both hands have been taken, the slip should be turned over and print of the subject's left thumb should be taken in the space provided for the purpose. The subject's name, residence, and details of conviction should immediately be filled in on the reverse of the form and he (the subject) should then sign on the form or put his thumb impression, if unable to sign.

H. The Finger Print Slips of one subject should be completely filled in, before that of another is commenced, to avoid the risk of the particulars of a subject being entered in the wrong slip.

Points to be noted in preparing FP slips

5. The following points should be specially noted in preparing FP Slips:

A. Impressions must invariably be taken with the tip of the finger pointing to the top of the form, except in the case of the 'plain' print of the left thumb on the reverse of the slip.

B. The 'rolled' prints should show the complete contour of the bulbs of the fingers. One delta in the case of the 'loops' and two in the case of "whorls" should be visible.

C. The 'rolled' print of each finger must be taken in the space allotted for that finger and the impression should not project beyond that space. The impression of only the upper phalanx of the finger should appear.

D. All names, whether of persons or places, should be written legibly. All entries should be in English or Telugu and as concise as possible. Convictions should be entered in chronological order.

E. On the FP Slips of females, whether sent for search or record, the word 'Female' should be written boldly in red ink on the top right hand corner of the slip containing impressions.

F. In the case of convicts who remain unidentified, of the two words 'unidentified' and 're-convicted' appearing on the top left hand corner of the slip containing the entries of convictions, the word 're-convicted' should be scored out in red ink.

G. In the case of re convicted persons whose finger prints are known or believed to be already on record, the word 'unidentified', of the two words referred to in (F) above, should be scored out in red ink, in order that it may attract special attention in the Bureau and render it impossible for two different slips of the same person being kept on record.

H. FP Slips for despatch should be so folded that the creases of fold do not run through the prints.
Deformities

6. If a finger is missing or is so deformed that it is impossible to obtain an impression that fact should be noted in ink in the space allotted for that finger by words 'missing' or 'deformed'. In the case of double fingers, the prints of both the fingers should, if possible, be taken; otherwise the print of the more prominent of the two should invariably be taken. Deformities, cuts, scars and disease marks interfering with the clarity of the impressions should be fully described and it should be stated if they are temporary or permanent. Fingerprints of persons suffering from open cuts or scars in any of the upper phalanges of the fingers should not be taken until the cuts or scars have healed.

Extra fingers

7. If a person has more than five fingers on a hand, impressions of the thumb and the four fingers next to it should be taken in the squares allotted to them on the slip. If the extra finger is outside the thumb, its impression should be taken in the space on the slip before the thumb, and if it is outside the little finger, in the space after the little finger.

Persons whose finger prints are to be taken for record

769. Finger Prints of all persons mentioned below (juveniles, adults, males, females or eunuchs) should ordinarily be taken for permanent record:

1. All persons convicted of offences under Chapters XII and XVII of the Indian Penal Code, which are punishable with rigorous imprisonment for a term of one year or more.
2. All persons convicted of any offence under Chapter VI of Indian Penal Code, or of sabotage or subversive activities against the State.
3. All persons convicted of offences under Section 170, 302 and 304 (only murder for gain), 328, 338, 304A, 465 to 477 A and 489 A to 489 D of the IPC.
4. All persons convicted under the Arms, NDPS or Excise Act, who are suspected to be smugglers in arms, Narcotics etc. entailing enhanced punishment on reconviction.
5. All persons convicted of smuggling gold, currency and valuable articles under the Foreign Exchange Maintenance Act.
6. All persons ordered to execute bonds under Sections 109 and 110 of CrPC.
7. All traffickers in women and children who are convicted under Sections 363 to 373 of the Indian Penal Code.
8. All persons convicted under Section 5 of the Telegraph Wires (Unlawful Possession) Act, 1950, for unlawful possession of telegraph wires.
9. All persons convicted under Railway Property (Unlawful Possession) Act, 1966.
10. All professional criminals and persons of dangerous character externed from any area under any State Act.
11. All foreigners externed under the Foreigners Act, 1946.
12. All members or leaders of organized crime syndicates and approvers in gang, dacoity and criminal conspiracy cases.
13. Persons whose measurements or photographs are taken but released discharged without trial or acquittal shall be destroyed unless the court, District Magistrates or SDM for reasons to be recorded in writing otherwise directs (U/s 7 of Identification of prisoners Act).
14. All persons convicted for attempt or abetment (Section 511 or Section 109/114 of the Indian Penal Code) and criminal conspiracy (Section 120 B of the Indian Penal Code) for offences mentioned in this Order.
15. All Indian nationals convicted outside India of any offence for which finger prints have been received at the State Bureau from those countries.
16. All international criminals and absconders whose finger prints are sent to the State Bureau from countries outside India.
17. All persons convicted under the Explosives Substances Act, 1908.
18. All persons convicted under the Official Secrets Act, 1923.
19. All persons convicted under Sections 126 and 128 of the Indian Railways Act, 1890.
20. Any other person whose fingerprints are ordered to be maintained by the Government of India from time to time subject to the provisions of the Identification of Prisoners Act.
21. Foreigners who are convicted for offences punishable with rigorous imprisonment for a term of one year or upward under the Indian Penal Code.

22. Persons registered under the Andhra Pradesh Habitual Offenders Act, 1962.

23. All persons, not specially provided for above, regarding whom it is considered desirable that there should be a permanent record. These include:

A. persons of disreputable antecedents,

B. persons who take part in violent crimes, whether political or non political, involving injury to body, life or property, and or indulge in rigging elections by impersonating or booth capturing by violent means and convicted for the relevant offences at least once either under IPC or RP Act or known habitually to indulge and organise

such activities including those for gain or other advantages.

24. The following classes of persons connected with political and terrorist offences:

A. persons who use aliases or otherwise endeavour to conceal their identity to facilitate commission of terrorist crime, or political offences and

B. persons about whom because of their hidden activities, it is desirable that there should be permanent record.

Note: The finger prints of persons, who are locals and who have been convicted of offences of trivial nature, need not ordinarily be taken.

Procedure regarding fingerprint slips to be sent by Station House Officers for record in Finger Print Bureau through District Crime Records Bureau.

770-1. It is the responsibility of SHOs of L&O/DPS/Inspector in charge of investigating unit to take the finger prints of persons who, on conviction, have to be finger printed in terms of Order 769 above.

2. Four sets of finger prints (three sets only in the case of persons falling under items (21) to (23) of Order 769) shall be taken on the arrest of an accused person and the name and other particulars filled in, immediately after the prints have been recorded.

3. Resistance to, or refusal to allow, the taking of finger prints is an offence under Section 186 of the Indian Penal Code read with Section 6 of the Identification of Prisoners Act. If a person, who is required to allow his finger prints to be taken, resists, or refuses to allow, the taking of the same, it shall be lawful, under Section 6 (1) of the Identification of Prisoners Act, to use all means necessary to secure the taking thereof.

4. The Station House Officer or the concerned officer will, at the time of arrest, fill up the description of the arrested person in Form 145, sign on the first page, and send one set for search direct to the State Bureau.

5. If the person charged is convicted, all the particulars of the conviction should be filled in and, if the convict has previous convictions, all particulars of his previous and present convictions in the chronological order with their Finger Print Bureau serial numbers and regular criminal number shall be entered in the second and third sets of finger print slips and forwarded to the District Crime Records Bureau, together with the Court Disposal Form (Conviction Memorandum).

6. The finger print slip should be folded in accordance with the directions on the form.

7. Should the Superintendent of Police decide on the Court Disposal Form (Conviction Memorandum) that the finger prints of an accused person undergoing imprisonment in a jail are to be recorded, the Court Disposal Form (Conviction Memorandum) will be numbered and forwarded with the finger print slip to the District Crime Records Bureau of the district, in which the jail where the prisoner is imprisoned, is situated. If the finger print slip is obviously unfit for record in the Bureau, the Finger Print Head Constable attached to the District Crime Records Bureau of the district in which the jail is situated will prepare a fresh slip and make it available to Finger Print Expert, who will proceed according to the instructions in Order 775.

771. Persons who are likely to pass quickly out of custody : In the case of a person sentenced to fine or imprisonment in the sub jail, the Station House Officer will proceed as directed in sub order (7) above. If the Superintendent of Police or, subject to his general supervision, the Sub divisional Officer, decides that it is unnecessary to send the finger prints for record, the slip will be destroyed. If he decides to the contrary, he will forward the finger print slip direct to the State FP Bureau for record and return the Court Disposal Form (Conviction Memorandum) to the Station House Officer. Such finger print slips and Memoranda will be numbered and placed on the file but will not be submitted to the Expert (Tester).

Finger Print Slips to be sent for record to the Central Finger Print Bureau through the State Bureau.

771-1. Finger print slips of all persons convicted for offences mentioned in the Order 769 should be sent to the State Bureau, along with a duplicate finger print slip in each case for record in the Central Finger Print Bureau. The finger print slips intended for record in the Central Finger Print Bureau should be sent through the State Bureau and not direct. However the finger print slips of suspects, intended for search to trace their antecedents, can be sent to CFPB directly by the SHO.

Procedure for sending finger print slips by DCRB to the State and the Central Bureaux

2-A. One set of finger print slips of all persons convicted of any offence mentioned in items (1) to (23) of Order 769 shall be prepared by the District Crime Records Bureau for being sent to the Central Finger Print Bureau, in addition to the number of sets required for the State Bureau.

B. The District Crime Records Bureau, with the help of District Finger Print Unit staff, should scrutinise the slips for clarity of prints and the correctness of entries before sending these slips for record to the State and Central Bureaux.

C. While sending finger print slips for record, despatch memoranda (Form 148) should be used, filling the relevant entries in all the foils of the Form.

D. All finger print slips of convicts for record at the Central Finger Print Bureau shall be sent in triplicate despatch memoranda (Form 148) through State Bureau. When the State Bureau sends finger print slips for record to other Bureaux, it shall issue triplicate despatch memorandum along with these finger print slips.

E. In no case, should finger print slips of more than ten persons be sent under a single despatch memorandum.

Procedure for sending finger print slips by the State Bureau to the Central Bureau

3-A. The State Bureau shall maintain a register (in Form 149) to keep an account of the despatch memoranda received from the District Crime Records Bureaux.

B. The State Bureau, on receipt of finger print slips meant for record at the Central Bureau, shall once again examine the clarity of finger impressions, scrutinize the order of impressions and entries on the slips, and return to the District Crime Records Bureau those finger print slips that are unfit for record or do not contain full particulars.

C. The State Bureau, which is to issue despatch memoranda for sending finger print slips to the Central Finger Print Bureau, shall also maintain a register similar to one mentioned at (A) above.

D. The State Bureau shall forward to the Central Bureau only such finger print slips that are fit for record and contain correct particulars.

E. The State Bureau shall keep an account of the finger print slips returned to the District Crime Records Bureau for rectification of defects.

F. The State Bureau shall ensure that all finger print slips returned for rectification of defects are submitted to the Central Bureau under a fresh despatch memorandum.

G. All intimations regarding absconders shall be sent by the State Bureau to the Central Bureau (and, if required to the FPBx of other States) under a despatch memorandum along with a finger print slip, if available, with particulars of the case in which they are wanted, and the office to which the intimation of arrest is to be given (in BLOCK LETTERS).

H. In the case of intimation regarding absconders, whose finger print slips are not available, the State Bureau shall send a photocopy of the F.P. record slip of the State under a despatch memorandum.

I. The State Bureau shall ensure that finger print slips of persons convicted for the first time and finger print slips of persons re convicted are sent under separate despatch memoranda.

J. In sending finger print slips of persons traced by the Central Bureau, the formula supplied by the Central Bureau on the search slip shall be noted on the finger print record slip of the State Bureau.

K. The State Bureau, on receipt of duplicate despatch memoranda, with classification formula, from the Central Bureau, shall file one copy at the State Bureau and send the other to the District Crime Records Bureau.

L. The State Bureau shall ensure that intimation regarding absconders is despatched to the Central Bureau within a week from the date of its receipt of the information.

M. The State Bureau shall ensure that all finger print slips meant for record at the Central Bureau are despatched within a week from the date of its receipt of the slips.

N. The State Bureau shall ensure that one extra copy of each finger print slip of inter State/international criminals, illicit fraud explosives traders and smugglers, 'auto' thieves, hotel thieves, prisoners, forgers of currency, cheats and coiners those who deal in forged or false travel documents and certificates is taken for single digit record at the Central Bureau and sent to the Central Bureau with a short note on the modus operandi.

O. The State Bureau shall bring to the notice of the Central Bureau all new features regarding the science of identification from fingerprints observed by them and any forgery of fingerprints, which they may come across.

P. The State Bureau may refer to the Central Bureau for scrutiny any case of difference of opinion arising between two State Bureaux.

Q. The State Bureau may seek the help of the Central Bureau in solving all problems relating to the science of identification from papillary ridges.

R. All correspondence with the Central Bureau shall be addressed to the Director, Central Finger Print Bureau/NCRB, RK Puram, East Block VII, New Delhi 110066.

Search slips to be sent by Police Stations and Investigation Units

772-1. The finger prints of all unidentified persons who are arrested as suspects or are under trial on a criminal charge will be taken on Form 145 by the SHO/IO and submitted to the State Bureau for search with a Search Slip in form 146. In such cases, the search slip should contain full details of the circumstances under which the suspect has come into the hands of the police and also information regarding convictions, with the Bureau serial numbers, if known. The State Bureau will return the counterfoil of the search slip, duly filled in, for file with the trifoil in the Police Station.

2. For this purpose, every person in custody whose residence and antecedents are not known or have not been fully ascertained during police investigation, or of persons, who, though known, have been out of view for some time, will be considered to be 'Unidentified'.

3. Action after conviction: If the person is convicted, the counterfoil of the search slip should be returned to the State Bureau with Finger Print Slip for record.

4. The finger prints of all unidentified persons who are arrested as suspects or are under trial on a criminal charge, taken on Form 145 by the Station House Officer, will be forwarded also to the District Finger Print Unit of the district for comparison with the ten digit Finger Print Record maintained by them as also the photo chance prints.

Submission of Finger Print Slips for search to the Bureau of the State of arrest as well as to the Bureau of Home State of the criminal

773-1-A. The Finger Print slips of all unidentified persons reasonably suspected to be residents of, or to have extended their criminal operations to another State or States shall be sent for search direct to the Bureau/ Bureaux of the State or States of which they are residents or to which their operations are believed to have extended.

B. Copies of all such slips should be sent to FPB, Hyderabad as well for search and on the slip sent to FPB, Hyderabad, it should be indicated to which other Bureaux slips have to be sent for search.

Method of proving previous convictions in traced cases

2-A. If on the return of the search slip from the Bureau, it is found that previous convictions have been traced against the accused, steps should be taken to prove such previous convictions, when necessary, under Section 298 of the Code of Criminal Procedure, 1973 (Act No.2 of 1974) which requires:

- that a certified copy of the previous conviction should be filed; and
- that the identity of the accused should be proved.

B. Proof of last conviction will generally suffice: In the case of a person who has been previously convicted more than once, it will generally be suffice to prove last conviction only, provided that the former convictions were proved in that case and are mentioned in the judgement.

C. Method of proving identity of accused: The identity of the accused should ordinarily be proved by the evidence of a police officer who is personally aware of the previous convictions or by a prison officer who can recognise the

accused as the prisoner who underwent the previous sentence. However, if such witnesses to identity cannot be obtained, identity may be proved under Section 45 and 73 of the Indian Evidence Act, by means of expert evidence, for which purpose the record slip must be obtained from the Bureau by which the accused was traced and services of an "Expert" requisitioned from the State Finger Print Bureau at Hyderabad.

Finger Prints of persons convicted in one State whose origin is another State

774-1. The finger prints of persons convicted in one State who are believed to have had their origin in another State, though not actually identified as residents thereof shall be taken in triplicate and sent to the Bureau of this State, one copy for record in the State Bureau, one copy for the Finger Print of the District Unit for record and comparison with the photo chance prints and the third for transmission to the Bureau of the State of origin of the convict.

Finger Prints of adolescents sent to a special Institution

2. The Finger Prints of an adolescent sent to special institutions like Juvenile Homes should be sent for record to the Bureau of the State of which he is a resident and a copy kept in the Bureau of the State in which he is convicted.

Transfer to another jail

3. If a convict is transferred from a jail in one district to a jail located in another district before the arrival of the Tester (Expert), the Superintendent of Police of the district from which the prisoner has been transferred will forward the finger print slip and Court Disposal Form (Conviction Memorandum) to the Superintendent of Police of the district to which the prisoner has been transferred where it will be placed with the other slips of the district awaiting test. In case of a district without a district/central jail the finger print slips and the Conviction Memoranda will be sent to the Superintendent of Police of the district where the jail in which the convict is imprisoned is located. Such slips with the conviction memoranda will, after test, be returned to the Superintendent of Police of the district of conviction for transmission to the State Bureau.

Responsibility of Tester (Expert)

775-1. The Tester (Expert), while proceeding to a jail to test the slips, will take with him the files containing the Court Disposal Forms (Conviction Memoranda) and fingerprint slips, besides a letter from the concerned Superintendent of Police addressed to the jail authorities. In conducting the test, the Tester (Expert) will prepare for each prisoner a slip in Form 150 and will satisfy himself that the prints have been properly taken on the original finger print slips and that they are those of the convict named in the slip, that all the particulars recorded in the slip are correct, that all convictions are properly and correctly entered and that the required number of copies have been taken. Any mistakes should be brought to the notice of the Superintendent of Police. Finger print slips on which the impressions are blurred or indistinct should be rejected and should be replaced by fresh slips prepared by the Tester (Expert); but where the finger print slips prepared by the Station House Officer are sufficiently clear, those slips should be sent to the State Bureau for record.

2. After having tested the slips, the Tester (Expert) will note the word "Tested" with his initials and date (i) against the prisoner's name in the jail admission registers, (ii) in the District Crime Records Bureau Finger Print Register, (iii) on the back of the conviction slips and (iv) on the history tickets.

3. The Tester (Expert) is responsible for the correctness of the convictions and all other details entered by him or the Station House Officer on the reverse of the slip. He will sign each slip that he has tested and his signature will be held to show that he has verified the sentence, previous convictions and personal details of the convict from the judicial and jail records.

Disposal of finger print slips and Court Disposal Forms (conviction memoranda)

776-1. Finger Print Slips and Court Disposal Forms (conviction memoranda), after they have been tested will be made over by the Tester (Expert) to the Superintendent of Police, who will send the slips with their relative Court Disposal Forms (conviction memoranda) to the State Bureau, provided that the time of appeal is over or the appeal (if any) has been decided.

2. Every finger print slip sent for record in the State Bureau shall be accompanied by its relative Court Disposal Form (conviction memoranda). The State Bureau will return the Court Disposal Form (conviction memorandum) duly signed by the Director, Finger Print Bureau, with the Finger Print Bureau serial number and Regular Criminal Number noted in the space provided for the purpose. On receipt of the Court Disposal Form (conviction memorandum) from the State Bureau, the Superintendent of Police will send it to the Station House Officer, who will enter the Bureau serial number and Regular Criminal Number in the concerned Station records and keep the

conviction memo in connected file. In subsequent references to the State Bureau, this serial number shall invariably be quoted.

Number of copies of slips required for record

777-1. Of ordinary convicts convicted in their home State, two copies will be taken, one for record in the State Bureau and one in the District Finger Print Unit of the concerned district.

2. Of all convicts, who;

A. are wanderers, unidentified or whose operations are known to extend beyond the limits of their home State, or

B. though residents of the State of conviction are really outsiders, and are thus likely to have relations with criminals of other States, or

C. have been notified under the Andhra Pradesh Habitual Offenders Act, 1962, and are known or believed to be connected with organised gangs in other States, or

D. have been convicted of theft of firearms and ammunition or under Arms, NDPS or Excise Acts, in circumstances which render it likely that they are illicit inter State dealers in arms & ammunition, opium, cocaine, drugs or psychotropic substances, or members of an organised crime syndicate or a terrorist.

E. who have been convicted under Section 328 of the Indian Penal Code, if the offence was of a professional type or under Sections 231 to 253 of the Indian Penal Code, and Sections 489 A to 489 D and who are believed to be operating in other States, as many copies will be taken as are required for record in (i) the State Bureau, (ii) District Finger Print Unit (iii) the Bureau of the State of which the convicts are alleged to be residents or to which their operations are known to have extended, and (iv) the Central Finger Print Bureau, NCRB, New Delhi.

3. Of a foreigner convicted of an offence of the type in which finger prints would ordinarily be taken for record under the rules, the finger prints and photographs should be taken in duplicate and sent by the Superintendent of Police of the district in which the case was registered, one for record in the State Bureau and the other for transmission to the Central Finger Print Bureau.

Escape to be immediately reported to the Bureau

778. When a prisoner escapes from police or jail custody and his finger prints have been taken previous to his escape, the finger print slip, whether it would otherwise be forwarded to the State Bureau or not under the rules, should be forwarded to the State Bureau at once with particulars of the circumstances of the escape, so that it may be placed on record. When the slip has already been forwarded, it will be necessary to inform the State Bureau of the escape, in order that the slip may be suitably marked in accordance with Order 781 below.

Action on finger printed ex convicts absconding

779-1. If any person whose finger print slip has been sent for record is subsequently declared a proclaimed offender, or escapes from jail or police custody, or absconds after committing some offence, the Station House Officer will immediately send information in Form 147 to the Superintendent of Police for transmission to the State FP Bureau. The same procedure will be followed when a criminal for whom a History Sheet is maintained in a station goes out of view.

2. On receipt of the report referred to in sub order (1) above, a red slip in Form 151 will be attached to the slip so that immediate information may be given to the police by whom the absconder is wanted, in the event of the absconder's finger prints being subsequently traced. In such cases, a copy of the finger print slip, if available, or the absconder's classification number will be sent by the Bureau receiving the report to the other Bureaux in which the absconder's fingerprints are on record.

Report of deaths

780. If a convict whose fingerprints have been taken dies in the jail, the Superintendent of Police of the district in which the deceased was convicted, will forward a death report in Form 152 to the State FP Bureau. Should such convict die in jail after transfer, the Superintendent of Police of the district in which the jail is situated, will forward the death report to the SP of the district in which the deceased was convicted, who will forward the same to the State FP Bureau.

Maintenance and scrutiny of Finger Print Slips by the State Bureau

781-1. All classifications and arrangements of slips will be done in the State Bureau in accordance with the instructions contained in the book 'classification and uses of Finger Prints' by Sir E.R. Henry.

2. Punctual disposal of search slips: All slips received for search will be returned by the State Bureau, after due search, to the Station House Officers concerned within 24 hours of receipt, as far as possible.

3. Slips received for record to be carefully scrutinised: Every slip received for record shall be carefully scrutinised before being classified, checked and recorded. If found deficient in any respect, it will be returned with an objection memorandum in Form 153 for the submission of amended or fresh slip. If the prints in a slip are found to be smudged or otherwise unfit for comparison, a fresh slip has to be taken by the Finger Print Head Constable in the Jail before it was tested by the Tester (Expert).

4. Removal of slips on receipt of death report: The slips of a person reported to have died in jail will be removed from the record and destroyed at once. In case of the reported death of a person other than in jail, the date of death will be marked in red ink across the slip, which will remain in the record for another two years when it will be removed and destroyed.

5. Periodical Elimination of Finger Print Slips: All slips should be examined annually and, in the absence of any special reasons to the contrary, those enumerated below shall be withdrawn from the record and also from the data entered in the computers.

A. In the case of a person who is a professional poisoner, note forger, coiner, arms smuggler, organized crime syndicate or gang members or leader or a habitual offender notified under the Andhra Pradesh Habitual Offenders Act, 1962, on his attaining the age of 80 years or on his death whichever is earlier.

B. In the case of any other person:

- If he has not more than two convictions in his native district (not having been convicted outside his native district) and has not, subsequent to his conviction or last conviction, as the case may be, been suspected of crime or convicted, on the expiry of ten years from the date of his release or last release from jail, as the case may be; or
- if he has been convicted outside his native district or has more than two convictions in his native district and has not more than two convictions in his native district and has not subsequent to his conviction or last conviction, as the case may be, been suspected of crime or convicted, on the expiry of 15 years from the date of his release or last release from jail, as the case may be; or
- on his attaining the age of 80 years; or
- on his death, whichever is the earlier.

6. To prevent the possibility of wrong destruction of a finger print slip in the Bureau, slips withdrawn from record will be sent to the Superintendent of Police concerned for information and destruction. The SP will pass them on to the Sub divisional Officer concerned for necessary action. If the Sub divisional Officer has any objection to the destruction of any particular slip, he should return it to the Bureau through the Superintendent of Police explaining fully why he wants it to be retained.

7. Distribution of slips by Bureau of State of conviction: All copies of slips taken for record shall be forwarded by District Crime Records Bureaux to the State Bureau, which in turn will transmit the slips intended for other State Bureaux, noting on all copies the names of the other Bureaux in which the finger prints are on record.

8. The destruction of finger print slips, which are on record in other Bureaux, will be intimated to those Bureaux by the State Bureau.

District Finger Print Units

782. District Finger Print (DFP) Units have been created and established in all the districts and cities to provide means for rapid identification and expeditious comparison of chance prints left by criminals at the scene of crime with the finger print records maintained by such DFP units. To ensure this objective and to provide means for rapid identification and expeditious comparison of chance prints left by criminals, the SP/DCP shall take steps to arrange for adequate staff to be with in the reach of Detective Police Station.

Single digit fingerprint system

783. Single digit FP System was devised by Harry Battley who was the in-charge of Fingerprint Bureau, Scotland Yard. The object of single digit fingerprint collections is to provide a means for the rapid identification of fingerprints left at the scene of crime in cases where the culprits are not known. In this system all the ten fingers are classified and recorded digit-wise thus providing 10 sub-collections each containing the prints of a particular digit only. This arrangement enables identification from the fingerprint of a single finger found at the scene. The DFP unit staff are required to perform the following functions:

Functions of the SDFP Unit staff

1. To visit the scene of crime along with investigating officer if possible or separately for detection and development of chance prints whenever requisitioned.
2. To visit the Police Stations and investigating teams within the District for collection of finger print slips of all ex convicts concerned in property and other grave offences for building of single digit records for the efficient functioning of the DFP unit.
3. Comparison of chance prints and search slips received from Police Stations and investigating teams with DFP record and communicate results thereof to sender.
4. To scrutinize all fingerprint records slips of the convicts received by DCRB from SHOs and Investigation Units/DPS for transmission to the Main Bureau and advise whether they are correctly taken and fit for record; or to return them with suggestions if they are not suitable.
5. To visit the District/Central jails once a month to test the FP slips of those convicts received by DCRB who are undergoing imprisonment, and to prepare fresh slips for record if the slips are not properly taken on the earlier occasion or worn out.
6. To testify in the courts in cases where chance prints are identified with the FP records of the District Finger Print section.
7. When the chance prints are not identified, to forward them to neighbouring districts and Main Bureau for comparison. The SHO and IOs may utilize the services of the Experts from the SD FP Units to visit scenes of crime for development of chance prints and obtain their guidance on various aspects of fingerprint work.
8. The DFP units shall function under the technical control of the Director, FPB and over all control of State Crime Records Bureau, AP, Hyderabad.
9. The DFP sections will, however, work under the immediate administrative supervision and control of the Superintendent of Police/Commissioners of Police/ DCP Crimes concerned. The Finger Print Inspectors in charge of the units shall be responsible for the day to day functioning of their units.

Procedure for submission of FP slips for record in the SDFP Unit's collection

784-1. Immediately after the conviction of criminals concerned in crimes listed in order No. 769, the Station House Officer, (Investigating Officer) who is in charge of the team should take the finger impressions of the ten fingers of the convict on the prescribed form in duplicate (Form 145) and send it to the District Finger Print Unit of the district along with two sets of palm and foot prints of the convict, taken on plain white paper of reasonably thick quality.

2. The sets of palm and footprints should also contain respective plain thumb impressions. These should be obtained independently in the respective sets at the right bottom of the form, as shown in Foot Print Form 154 and Palm Print Form 155.
3. The finger impression forms and foot and palm impression forms of the convict should contain the name, parentage, place of residence, address etc, of the convict and invariably with the signature of the Station House Officer. Care should be taken to see that the prints are very distinct and show the whole contour of the bulb of the fingers. The fingerprints, palm and foot impressions, which are meant for record in the DFP unit, should invariably be sent to the Inspector, SDFP unit through a name cover and marked as "Meant for SD Collection". Care should also be taken to see that the prints are not damaged in folding the paper containing the prints.
4. The success of the District Finger Print units depends on the quality of record that it builds up. Criminals belonging not only to towns but also those residing or operating in the entire District should be brought on to the record in the District Finger Print Collection. Inter district and inter city criminals must also be included.
5. The services of district Finger Print Unit staff concerned must invariably be requisitioned by SHOs for the development of chance prints left by the criminals at the scenes of crime.
6. Every Police Station, (CCS, DPS, District investigation squads) in the district should submit to the district Finger Print Unit, a list of all history sheeted criminals along with their fingerprint slips. When finger print slips are not available, the Finger Print Bureau, Hyderabad, should be intimated of the FPB serial numbers or Regular Criminal Numbers (RCN) of the criminals, with a request to forward the FP slips to the Single Digit Finger Print Unit concerned. If even this method fails, the concerned criminals should be physically located; their fingerprints secured and sent to the district Finger Print Units.
7. The Single Digit serial numbers assigned to the classified prints of the criminals by the single digit unit should be recorded against corresponding entries in Station Crime History part III (GCR) in the Police Stations and

Investigating Units.

8. The SHOs and IOs must ensure the preservation of the scenes of crime and safe custody of suspected articles, in as is where is condition. The scene of crime (SOC) articles should not be disturbed, touched or tampered with by any body until the development of chance prints by the DFP unit staff or the expert attached to the team is complete.

9. SHOs and all IOs in the districts should visit the district Finger Print Unit regularly during their visits to DCRB (at least once in a quarter) to review:

- A. the stage of all such cases in which the services of the SDFP unit staff were requisitioned.
- B. whether all the FP slips of the persons sent by the SHO were received in the DFP unit.
- C. whether the photo chance prints were compared with the FP slips and if so, the results of comparisons, thereof.
- D. any new orders or instructions received from the Director, SCRB, and/or DCRB for compliance for greater co ordination between the DFP unit and SHOs to update their knowledge of the latest changes, if any, made.
- E. any other reconciliation.

10. Station House Officers should requisition the services of the DFP Unit staff and facilitate their visit to crime scenes in all cases where finger print clues are likely to be available.

11. The Station House Officers should promptly furnish to the DFP Unit full details of the case in which chance prints were developed, whenever they are finally detected.

12. SHOs should send the finger print slips of all persons arrested in specific cases or under preventive sections, on day to day basis, to district Finger Print Unit for comparison with the collection of unsolved scene of crime chance prints.

13. The Station House Officers of Railway Police Stations will comply with the above instructions treating the district Finger Print Unit having jurisdiction over the locality in which the offences occurred, as their own district Finger Print Unit concerned.

Finger printing the dead

785-1. In every case of murder or other unnatural death of an unidentified person or recovery of an unidentified dead body the fingerprints of the dead body must be taken for comparison with the prints on record in the Finger Print Bureau or elsewhere.

2. In taking fingerprints from a dead body, it is a wise precaution to wear gloves.

3. The technique to be employed in taking the fingerprints of a dead body will greatly depend on the state of the body.

4. If the body is fresh and its fingers flexible, fingerprints can be taken on a standard finger print form through the usual inking and rolling process. The fingers of the corpse should be carefully cleaned and all moisture removed. A piece of clean cloth soaked in turpentine oil may be used for the purpose.

5. When rigor mortis has set in, the usual inking and rolling process will not succeed and ink has to be directly applied to the finger with a rubber roller and the print taken by holding the paper in the palm of the hand and pressing it against the finger. A curved metal or wooden spoon cut to fit the fingers and provided with a slot to hold the paper is best used for the purpose. If the fingers are clenched, they will have to be forcibly straightened either by bending the hand forward or backward at the wrist or forcibly stretching out the fingers. In extreme cases, a surgeon should cut the controlling tendons in order to straighten the fingers.

6. When the skin of the fingers is shrunken or wrinkled due to submersion in water etc., the surface of the fingers can be rounded out and smoothened by injecting glycerine or melted paraffin or hot water or air into the tissues.

7. In case of any difficulty in obtaining inked impressions from the fingers of dead bodies by above methods, the services of district Finger Print Unit staff may be obtained.

8. When putrefaction has started, the skin of each fingertip should be carefully cut and placed in a labeled bottle or tube containing formaldehyde solution. A separate container should be used for the skin of each finger and properly labeled.

9. Points to be noted for forwarding the amputated fingers of unknown dead body for identification:

A. The skin (upper layer Epidermis portion) of each finger should be carefully cut up to the end of the first phalange and placed in an unbreakable screw type bottle with wide mouth with a preservative (solution). A separate container should be used for the skin of each finger and properly labelled indicating the name/digit of each finger and hand.

B. All the bottles containing the skins of the fingers should be carefully packed in a carton and sent to the District Finger Print Unit through a special messenger for examination and obtaining of inked finger impressions.

Photographs and Videographs – Instructions for Recording

786-1. The District Police may have photographs taken.

A. of any object concerned in investigations for examination by the concerned experts and for evidence in courts.

B. of persons who are convicted of offences falling under chapter XII or XVII of Indian Penal Code and punishable with rigorous imprisonment for a term of one year or upwards or who are habitual criminals;

C. when photographs are necessary for purposes of investigation, and in case of persons during investigation under the orders of a First Class Magistrate, and

D. of foreigners when convicted for offences punishable with rigorous imprisonment for a term of one year or upwards under the Indian Penal Code.

2. Videographer should observe following instructions and the instructions contained in Chapter 22 for Videographing the scene of offence.

A. The Video should be taken as it is with out adding or deleting any thing to the existing and should contain the time and date and programmed accordingly.

B. The approach to the scene from all possible directions.

C. The general view of surroundings.

D. The overall scene of occurrence.

E. Details of the scene and objects, materials, blood stains, trails, weapon, dead bodies in cases of homicides, their position and close up from different directions to facilitate identification of dead body and injuries.

F. Object materials or matters found in surrounding area or vicinity or when discovered subsequently.

3. For the Suspects, History Sheeted persons, Convicts, still photographs giving a profile or front view and full length of the person should be taken, including the dress they wear. Video clippings should contain their movements and audio recording of speech etc., but the clipping should not be too lengthy. The persons or the places, which can be photographed, are given below.

A. Unidentified Dead bodies.

B. Movements of persons suspected to have designed to commit an offence.

C. House or premises or persons who are suspected to be sheltering persons who are either wanted or absconding or designing to commit offences.

4. The photograph of a person should be taken with his ordinary every day attire.

5. In the case of persons whose history sheets are on record or are proposed to be recorded, in the State Crime Records Bureau, Criminal Investigation Department, one set of the photographs shall be kept in the District Crime Records Bureau concerned and another set sent to the State Crime Records Bureau.

Photographs and Videographs Periodical Elimination

787. All photographs or Videographs will be examined annually and in the absence of special reasons to the contrary those enumerated below will be withdrawn from record.

G.O. 548, Pub. (Pol.), dated 20.10.1963.

1. In the case of a person who is a professional poisoner, note forger, coiner, arms smuggler, or a member of organised criminal syndicate, terrorist, on his attaining the age of 80 years or on his death whichever is earlier; and
2. In the case of any other person,
 - A. If he has not more than two convictions in his native district (not having been convicted outside his native district) and has not, subsequent to his conviction or last conviction, as the case may be, been suspected of crime or convicted, on the expiry of 10 years from the date of his release or last release from jail, as the case may be, or
 - B. If he has been convicted outside his native district or has more than two convictions in his native district and has not, subsequent to his conviction or last conviction, as the case may be, been suspected of crime or convicted on the expiry of 15 years from the date of his release or last release from jail, as the case may be, or on his attaining the age of 80 years, or on his death whichever is the earliest.

Computerization of Finger Prints and Photographs

Need for computerisation

788-1. Use of Computer Technology in storing and retrieval of data will ensure availability of required information to the IOs in the field with speed and accuracy.

- A. The voluminous increase in fingerprint records has become laborious and time consuming. It is also difficult to identify chance prints developed at the scene of crime in the manual system.
 - B. Several days are required before a search slip can be identified and the result communicated to the field officers.
 - C. The record slips, which are subjected, to frequent handling, are liable to wear and tear and damaged soon.
 - D. Diligence and continuous concentration and very careful maintenance is required to prevent mismatch and wrong identification.
 - E. Updating of records is a serious problem, as classification formula or serial number furnished by the police is not always correct.
 - F. Every incoming FP slip has to be searched with reference to the main records to avoid duplication.
 - G. FP slips bearing smudged prints, missing prints, and gradational type prints consume a great deal of time in the main bureau collections.
2. To overcome handicaps in manual searching, computerization of fingerprint records and introduction of computerised search is necessary.
3. In the manual system fingerprint slips sent to FPB for record as prescribed are scrutinised first, registered under a serial number known as FPB serial number. A thorough search of the previous records is done to verify whether a duplicate FP slip is available. If available, the duplicate will be taken out and the new slip is placed in the records. The duplicate slip is sent to the assembly bureau after comparing it with all the conviction particulars, etc. The computerised system assigns a serial number (Regular Criminal Number, RCN) to each convicted person instead of to the slip based on first crime number. This number consists of 12 digits, the first five indicating the police station in which the criminal was first convicted, the next two the year of conviction and last five digits for the serial number. This RCN once given to a convict will remain constant throughout his criminal career, irrespective of the number of convictions he may accumulate.
4. Fingerprint slip of a suspected person is sent to the FPB to trace previous convictions, a provisional criminal number consisting of 11 digits and an alphabet is given by the concerned police station. The first three digits indicate the district, the next two indicate the police station where the individual is arrested, the next two the year of arrest and the next four digits are the crime number in which the person is arrested. The provisional criminal number of the suspected person has to be noted on the conviction memo and FP slip and then it is sent for record.
5. To derive maximum advantage from the system the SHOs should ensure that every FP slip sent to FPB for search or record must contain clear and fully rolled fingerprints. The services of fingerprint staff, SDFB or FP trained officer attached to each Investigating Unit should be taken.
6. With increase in the volume of finger print records, due to increasing crime rate and criminals, the pressure of expectations of IO's is to provide instant answers to their urgent queries. All these factors necessitated the application of computer technology in the application of finger print science.

40 Digit (finger print pattern) System (Semi Automatic)

7. Each impression of ten-digit fingerprint slip is classified in 4 digit numeric characters. All the ten patterns of the fingers of both hands in their conventional order from right thumb to left little finger are classified in a 4 digit code each and then arriving at a 40 digit code for the FP impressions of the slip. This 4-digit code consists of 2-digit code for the type of fingerprint followed by 2-digit count code of the pattern. This information of 40-digit code is stored in the computer database. Information like Regular Criminal Number, Provisional No., Henry classification etc. of the slip is also considered for the storage in the computer.

8. Provisional Criminal Number (PCN): It is again 12 digit number which is given to the arrested person by the Investigating officer. The first 5 digits represent the code of the District and the Police Station where the FIR for the crime is registered. The next 2 digits represent the year of the FIR followed by FIR Number in 4 digits. The last digit, which is an alphabetic character, identifies the arrested person under the FIR from other arrested persons, if any, under the same FIR.

9. Manual search is time consuming and tedious. A program for using the computers for this purpose and transmit the data to the IO promptly is developed. Whenever this is implemented the IO should utilise fax facilities or the nearest computer terminal (DCRB) to ask and receive replies to the queries. If a computer terminal is provided or available in the Headquarters of the Investigation Unit, it should be utilised for transmission of data and receiving reply. The format devised and communicated should be scrupulously observed for filling up the data and transmitting the same. All Officers of the Investigation Unit should train themselves in using the computers when they visit DCRB.

Computerised fingerprint identification systems

10. For recording, classifying, coding, searching, and retrieving the ever-increasing fingerprint records, Automated Fingerprint Identification Systems have been developed by the British Home Office, FBI, Royal Canadian Mounted Police, and the West German BunderKriminalat during the past decade. AFIS is an effective response to the problems of fingerprint search and comparison. Fingerprint matching problems are of two types. Ten print identification involves matching the subject's entire set of rolled impressions against a file of a known ten print impressions. Identification through latent fingerprints involves matching fragments of fingerprint impressions developed at a crime scene against a file of rolled impressions. AFIS can provide speed and accuracy in ten print searches and is the only answer to the problem encountered in search through available latent prints.

11. AFIS also improves the effectiveness of latent searches. Where there is no text of possible suspects, latent searches become nearly impossible to conduct by manual methods. Even after spending several man-hours the fingerprint expert cannot ensure the inclusion of the actual offender within a subset of known files small enough to be manually searched. Consequently, much latent evidence remains unused. It is never compared against a known file and does not lead to the identification of a criminal. To conduct these "cold" searches, where a single AFIS matching processor can execute hundreds of comparisons each second, it is possible to search even the largest of files.

12. All the computerised systems incorporate automatic scanning devices that can read and code fingerprint characteristics directly from standard fingerprint cards. One of the latest versions of such a system developed in USA, known as the Remote Point Booking System electronically scans fingerprints at a remote site of ink, latent or live sources, enhances them and then transmits them to a central site, for lightning-speed computerized matching. Operating across 58 remote sites the California remote access network (RAN) is the largest in the world. Such computerized networks will save each police officer hundreds of investigative hours, by identifying criminals or suspects through latent fingerprints without having to first develop a list of suspects. Latent prints, or even a partial print, or a chance print "lifted" from the scene of a crime can help identify a suspect the very same day. The system can also quickly provide positive identification of wanted suspects who happen to be in custody before they return to crime thereby eliminating the possibility of further criminal activity. This swift response to fingerprint queries will substantially increase the rate of apprehension of criminals in the coming years. AFIS dramatically accelerates the law enforcement process, comparing one latent print with millions on file in minutes, compared to searches of sub-files, which take very long time, and quite often without success.

13. The automatic fingerprint reader system, known as FINDER (Fingerprint Reader) used by FBI of USA, records FP data in an average processing time of 1/2 second per FP. Two types of digital information are generated, data on the minute (ridge endings and bifurcations) and ridge direction (average direction of ridge flow at regular selected intervals across a fingerprint), and a basic description of the general pattern of the FP.

14. Evidence of Finger Print Experts: The evidence of a Fingerprint expert, a person especially skilled in fingerprints is considered relevant evidence by virtue of Sec. 45 of the Indian Evidence Act. In view of the general recognition of the individuality of fingerprints the CrPC recognises the report of Director FPB as evidence without being examined as a witness. The expert can however be called for evidence under clause (2) of 293 Cr.P.C.

Comphotofit

15. A major part of the forensic scientist's work involves identification. If fingerprints are found at the scene of crime and if matching FP's are available in the records of the Fingerprint Bureau, identification is easily achieved. If no chance prints are found there or if no records of fingerprints of suspects are on file, or the police have not identified any suspect, the other methods of identifying the suspect have to be used.

17. The most common way of identifying a person is by his appearance, i.e., and his face profiles. If the IO secures a fairly accurate picture of the suspect's physical appearance through careful examination of witnesses it will render the search easier. With the help of Identikit process, line drawings of the suspect's likeness can be made on a paper or transparent sheet. Improvements, modifications, touch ups, etc. to achieve a near likeness of the suspect can be drawn on the basis of descriptions given by the victim or witnesses.

18. An improvement of this method described above is called Photo-Fit which makes use of numerous photographs of facial features of several subjects. The features most resembling those described by the witness are assembled to make the portrait. Before assembling the portrait the individual elements of the subject's face, i.e. pair of eyes, nose, mouth, chin, cheek, forehead, hairline, moustache, beard, spectacles, headwear and all the face contours and features are separately taken from original photograph files to facilitate assembly of a portrait which most nearly resembles the description given by the victim or eyewitness.

18. A recent innovation in the field of personal identification is Comphotofit. This is a computerised facial identification system that allows an operator to quickly and easily develop a facial composite feature of an unknown suspect from a description given by a witness or victim of a crime. To accomplish this task the system utilizes a database of images taken from subjects of known origin, comprising forehead, eyes, nose, mouth and chin sections. All these images are used to build the facial composite by a selection from the keyboard of a computer. In addition to the above images there are accessory images, which include moustaches, beard, eyeglasses and headwear, which are also provided in the database, again taken from the same people. All the above images are referenced from an image index provided in the system. The index is provided so that the witness may select the image selections he or she feels most closely resemble the suspect by mixing, combining, or interchanging various features. The original system images are all derived from actual photographs or from people themselves through a video camera interface. The database consists of a fairly large volume of images enabling the victim or the IO to select the right features by permutations and combinations. It is even possible to manipulate the skin tones, addition of moles, scars, wrinkles and complexion and change the hair line, darken or lighten the hair, or add or delete colours, recheck each improvement and recall the previous improvement, by means of a simple mouse mechanism attached to the computer. It is capable of producing millions of facial combinations. It is also possible to simulate hand sketching with computers. The latest models are capable of producing copies on paper for circulation of the photographic likeness pictures of suspects. These facilities, wherever available, should be fully utilised by the Investigating Officers.

Footprints and Track Marks

789-1-A. A large percentage of people still walk barefoot in the country and almost so inside the homes. The criminal perhaps finds it convenient to operate barefoot as it gives him a better hold to climb or slide, walk or run and also it does not make any sound, which might draw the attention of people during his operations.

B. The human foot is unique in its structure and is therefore readily distinguishable from the foot of other animals. There are 28 bones in the human foot of which seven are tarsal bones; five are metatarsals, fourteen phalanges and two small bean size sesamoid bones. The two sesamoid bones are located below the head of the first metatarsal bone. The heel bone (calcaneum) and other tarsal bones bear most of the body weight while the metatarsal bones and the phalanges articulate with the tarsal bones in the process of locomotion. The bones and other soft tissues like ligaments, muscles, padding material and skin on an applied pressure of the body produce a foot print that is proportional to the build and other characteristics of the foot.

2. The shapes of foot impressions differ from individual to individual. Broadly the shapes can be categorised into:

A. (i) Normal type foot, (ii) Club shaped foot, (iii) Bow type foot, (iv) Flat foot, (v) Broken bridge type foot and (vi) Accidental foot or Abnormal foot.

B. Depending on the surface on which the prints are made, footprints can be classified into (i) Surface footprints and (ii) Sunken footprints.

3-A. Surface prints: Surface prints are formed on hard surfaces like cement/stone floorings, tables, chairs, walls, etc. They are formed when the surface of the foot is coated with dust, dirt, oil, ink, blood, etc. Surface prints do not undergo any distortion and they register the distinguishing characteristics of the foot better than sunken prints. Surface prints have two dimensions, viz., length and breadth.

B. Sunken Prints: Sunken prints are those that are found on pliable surfaces like soft clay, mud, loose soil, etc. Slightly sunken prints are usually formed on a small quantity of accumulated mud or soil on hard surfaces, e.g. a verandah. Moderately sunken prints are formed on slightly loose soils and deeply sunken prints are formed on mud, wet loose soils, clay, etc. The less sunken footprints offer a more definite clue for comparison than moderately sunken or deeply sunken footprints. The sunken footprints have an extra dimension in addition to surface print, i.e.; the depth (or height).

Location of footprints

4-A. At the scene of crime: The scene of crime is often a good source for the location of footprints as this is where the criminal primarily operates. The place should be properly searched for footprints from the focal point of the crime scene. Focal point in a murder case is the dead body at the scene of crime, and in a burglary the almirah, cash chest or cupboard from where the cash, jewelry or other valuables have been stolen. The search may be extended to the entire crime scene, from the focal point.

B. Along the route: The route taken by the criminal both at the time of entry and exit should be thoroughly searched for his footprints. Entrance points like doors, windows, ventilators, and roofs could contain the footprints of the criminal, which should be properly collected.

C. Sometimes the criminals may assemble together at some secluded place near the scene of crime to plan before the crime or to share the booty after the crime. Such assembly sites if identified after the reconstruction of the crime should be searched for footprints.

5. Collection of footprints: The methods commonly used for collecting footprints are:

A. By preserving the original impression intact: If the foot print is found on a portable object such as a mat, slab, plank, card board, etc. it is convenient to carry the object bearing the print to the laboratory for photography and further analysis. It is advisable to take the photograph of the print even in such cases before removing them, as there is always the risk of the original impression being damaged in packing or transit.

B. Photography: All foot prints, whether sunken or surface or any other track marks should first be photographed by keeping the lens of the camera parallel to the surface on which the marks or impression is found. The aperture of the diaphragm should be adjusted to get a proper depth of field. At least three photographs are to be taken, one direct view from the top and the other two from either side at an angle of 45°.

C. Before taking the photograph place an identification slip or card (containing crime number, section of law, date, police station, district etc. with initials of the IO) close to one side of the print and a foot rule on the other side to record the actual size of the footprint.

6-A. Tracing: Tracing is a rough method to record surface prints. A glass (or preferably a celluloid sheet) is held over the print as close as possible. Care should be taken to ensure that it does not come in contact with the print. Then a sketch pen draws the contours along the print line. Details such as the characters of the toes, ball of the foot, instep and heel together with crease; cracks, warts, etc. should carefully be traced on the sheet. After the tracing is complete the sheet is removed and all the particulars of the case should be written on the glass together with the signature of the investigating officer and the witnesses. On the basis of such prints on glass any number of tracings can be obtained on tracing paper. The glass sheet and a tracing paper should be packed in between two cardboards for transport to the court. The value of a traced print depends upon the personal observation skills of the person who is tracing the print and therefore is highly subjective and not very reliable. Other methods of recording like lifting and casting are preferred to tracing.

B. Lifting: When the print is formed on a surface that is of a similar colour to the print, for instance, a blood stained print formed on a red surface, dusty (white) print formed on a white surface, dark (black) print formed on a black surface, it becomes difficult to photograph the print because of the similar colour of the background. In such conditions the print could be collected using an appropriate photographic paper, like black photo bromide paper for a dusty or light coloured print and white photobromide paper for a blood stained or black print.

C. This black or white photobromide paper can be obtained by exposing the photo sensitive paper to light before development to get black paper and directly developing it to obtain white bromide paper.

D. The processed paper so obtained should be moistened for few minutes in water, preferably with a few drops of ammonia added. When all the excess water is removed it is placed over the print with the emulsion side of the paper in contact with the print and beaten firmly with a cloth taking care to prevent slipping or sliding of the paper over the print. The paper is lifted after few minutes and allowed to dry. The foot print particles get attached to the surface of the photo bromide paper forming a clear and visible print. The side should write particulars of the case with signature of IO and witnesses without disturbing the print.

E. Footprints can also be lifted using photographic film or transparent adhesive tape. The fixed photographic film is moistened in water for few minutes until the emulsion side becomes tacky and then placed over the print with the

sensitive side in contact with the print. A uniform pressure is applied over the film for few seconds and it is then lifted carefully. The print is transferred on to the film, which can then be used as a negative to make copies from.

7. Casting: Casts are prepared from foot impressions (sunken foot prints), tyre impressions or other impressions left behind by the criminal. A variety of materials are used to prepare the cast, e.g., plaster of paris, wax, resins, plastic powders, modelling clay, sulphur, lead, wood metal, plasticine, moulage material, silicone, etc. However plaster of paris is most commonly used.

Guidelines for obtaining prints of good quality

8-A. Carefully remove extraneous matter (grass, twigs, stone, etc.) from the impression without disturbing it.

B. Place a metallic or a wooden frame around the impression to prevent wastage of plaster of paris. Do not apply pressure on the frame as it will damage the print.

C. Spray shellac solution (about 250gm of shellac dissolved in one litre of alcohol or a thinner solution) from a distance over the impression. Spray enough solution to get a thin film of shellac over the impression and allow the shellac to dry for 10-15 minutes.

D. A thin layer of talcum powder is sprinkled on the layer of shellac to separate the shellac from the cast. Mineral oil or sewing machine oil is also employed for this purpose.

E. Take a container with 3 mugs of water and slowly pour 3 mugs of plaster of paris into the water. Gently mix till it reaches a thick creamy consistency. The water and plaster of paris are taken in a 1:1 ratio. Pour the solution into the impression at an unimportant place e.g. a corner of the frame to avoid damage to the impression due to pouring. It should be allowed to flow slowly till it fills the impression to a uniform thickness of about 1/2 an inch.

F. Reinforce the cast at this stage with wire gauze pieces and pour the remaining solution till it acquires a thickness of about one inch.

G. The cast is allowed to set for 10-15 minutes. With the copying pencil engrave the details of the case on the mould including case number, date, police station, location, right or left foot, time of recording, person responsible for recording, signature of the investigating officer and signature of the witnesses. A sample of the plaster of paris and soil should be preserved for obtaining test prints of the suspect under similar conditions.

H. Remove the retaining walls (wooden frame) by digging away the surrounding earth and gently slip your fingers under the cast to lift it very carefully. Pour water over it to remove any adhering earth particles. Care should be taken not to brush it to prevent obliteration of the details of the footprint.

◆ 2015 Police Computer Services & Standardisation, AP Police Department.



Andhra Pradesh Police Department

CHAPTERs

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CHAPTER 42

State and District Reserve Police

District Reserve Police

790. Reserve Police is stationed in the Headquarters of every district and in some important towns in a district and in cities having Commissionerate system. The SP of the district will be in charge of the district Reserve assisted by DSP/Addl.SP. The City Reserve is under the overall control of C.P. with the Joint CP/DCP as in charge assisted by Addl. DCP/ACsP. If the strength of City Reserve is more than that of one battalion, the Joint Commissioner of Police will be in overall charge. The State Special Armed Reserve, Central Police Lines (SAR-CPL) Amberpet, Hyderabad will be in the charge of an officer of the rank of SP subject to the overall control of the C.P. Hyderabad. The functions of the above reserve police are intended to:

1. supplement the local police strength where it is not adequate to deal with law and order disturbances;
2. provide specially trained personnel to deal with terrorist and other organized gangs;
3. provide security to authorized persons or places;
4. guard vital installations, arms and ammunition and other important places;
5. escort the prisoners;
6. participate in ceremonial parades and guards of honour;
7. help in rescue operations in the event of natural calamities and other disasters;
8. to man armed outposts and conduct armed patrolling where called for;
9. to provide outdoor training for the personnel of the district and Home Guards;
10. to provide striking forces or mobile squads for special bandobusts including elections;
11. Management of arms and ammunition in the district;
12. Maintenance of motor transport of the district;

Movement of the Reserve Police

791-1. The SsP in the districts and the CsP in the Cities shall have powers to deploy the Reserve anywhere in their jurisdiction for any of the purposes stated in the preceding Order.

2. In case of emergency the SP or CP may apply through Zonal IG/DIGP to the DGP for reinforcements.
3. The Zonal IG/DIGP, Addl. DGP L&O and DGP should be kept informed by radio/Fax of the mobilisation and demobilisation of the Reserve whether for emergency or for annual training.
4. The deployment for the purpose of riots and serious disturbances shall not exceed one week and shall be withdrawn thereafter. The deployment for festivals shall be limited to the duration of the festival. In all other cases rotation should be provided with intervals for rest.

Arms and Ammunition for public order duties

792. When called out for the maintenance of peace, the RIs, RSIs and ARSIs shall be armed with pistols/revolvers and the HCs and PCs besides lathies with muskets or rifles with 20 rounds of ball ammunition unless ordered otherwise. Other weapons like SLR, AK 47 and Carbines are also issued. In case of SLRs and AK 47, 60 rounds of ammunition may be carried. The tear-gas squad will be armed with its equipment. When detailed for other duties connected with anti-terrorist or anti-criminal gang operations or special tasks requiring superior fire power, they should be armed with SLR, AK 47 and carbines and other weapons with sufficient ammunition provided the personnel detailed for the duty are trained in the handling of the weapons.

Organisation of District Reserve Police

793-1. District Reserve Police is organised on the administrative pattern of a Battalion. The City or State Reserve Police may have more than one Battalion. The District Reserve Police shall have 4 to 8 companies. Ordinarily there shall be three platoons in an active company and three sections in a platoon. A section consists of 4 HCs and 12 PCs.

2. Functionally the Reserve shall consist of General, Special operations, Security and Logistics groups.

3. An officer of the rank of DSP/Addl. SP shall assist the SP and be in charge of District Reserve Police. A Deputy Superintendent of Police / RI shall be in charge of 2 or more Companies or in charge of Administration. Reserve Inspector (RI) / RSI will be the Company Commander. A platoon shall be commanded by a Reserve Sub-Inspector (RSI) / ARSI assisted by HCs and PCs. Each section will function under the command of the senior-most Head Constable of that section designated as Section Commander.

4. The ARSI of the platoon will be the staff officer of that platoon. He will be under the immediate control, and at the disposal of the platoon commander, and may not ordinarily be available for personal command of platoons or sections in the field.

5. One Reserve Inspector each will be in charge of Administration and operations, motor transport, quarter master duties, and welfare and training. They will be assisted by such staff consisting of RSIs, including technical staff as indicated in this Chapter.

Ordinary duties of the Reserve Police

794-1. The duties to be performed by each Reserve will be classified as “fixed”, “special” and “general” duties besides the functional classifications mentioned above. “Fixed” duties are those where the personnel performing those duties cannot be withdrawn in times of emergency, e.g., armoury and motor transport staff. Personnel for “fixed” duties will be provided from the headquarters company. “General” duties consist of guards, escorts and other miscellaneous duties. The personnel for “general” duties are provided from the active companies. The company or platoons employed at any given time on general duties are called Duty Company or platoons.

2. The duty platoons will be employed as such for a month at a time in rotation, the others being mobilized and exclusively engaged in training when not called out for any definite or emergent duty.

3. Emergency strength $\frac{3}{4}$ (a) A minimum “emergency strength” as laid down below for each Reserve Police must always be available and ready for immediate action.

4. The active strength of the reserve minus the headquarter wing.

A Of the active strength, the sections meant for duties, such as guards and escorts, should be deducted, and the remaining sections, is the emergency strength. The emergency strength once fixed as above shall not be changed without the prior sanction of the Director General of Police in writing.

B. The emergency strength shall be deputed in complete sub-formations, i.e., platoons, sections or half sections, as the situation requires. The purpose and duties to be performed should be specifically spelt out briefed and understood by each person on each occasion.

Utilisation and Briefing of the Reserve Contingents

5-A. The Reserve Police shall normally be deputed to assist the local police to meet the exigencies for bandobust, preserving order at festivals, large public assemblies and when disturbance to peace is anticipated. The deployment of force for this purpose is fully at the discretion of the SP, on the assessment of the situation. The L&O police can only requisition but not deploying according to their requisition cannot be pleaded as an excuse for their failures, if any.

B. Whenever such reserve is deputed, a thorough briefing should be done by ARSI/Head of the section/Platoon Commander concerned with respect to their specific duties, topography, discretion of the task, reporting mechanism likely difficulties to be encountered and the way to overcome them. The DSP of the reserve police is responsible for the performance of the force.

Off-duty and relief

6-A. All Head Constables and Constables in the Reserve should have a clear day off every week. Ordinarily, the whole Reserve, except those employed on such duties as stand-to, motor transport and guards should have their "off duty" on Sunday. The stand-to motor transport men who are on duty on a Sunday should be given "off duty" the next Thursday. Each Company Commander should display such a list of Head Constables and Constables.

B. The personnel of mobilized platoon or platoons will have Sundays free, but they shall not leave their places without permission. Whenever permission is given the platoon Commander shall see that 50% of the force is available on Sundays.

C. All those on fixed duties shall attend morning parades at the Headquarters on Mondays and Fridays.

D. Those who are on off duty should attend the Roll call and failure to do so without valid reason will entail disciplinary action.

E. Normally it must be seen that policemen avail their weekly holiday undisturbed but they can be deprived only in exceptional circumstances and unavoidable circumstances.

F. Other instructions in Order 617 will apply to the Reserve Police also.

Use of the Reserve by the Railway Police

795. Whenever the reserve police is required by the Railway Police the SP of the District in consultation with the SP Railway Police District deploys necessary force. Those given for fixed duties at Government Railway Police District Hqrs. are those permanently required for organising violent crime control measures and shall be paid for by the Railways in the agreed proportion of 50:50. Such reserve shall work under the SRP during their deployment. Such permanent service should be rotated at periodical intervals.

Duties of the Personnel of Reserve Police

796-1. The departmental status of Reserve Inspector is equivalent to that of an Inspector of the civil police.

2. The Reserve Inspector in charge of active Company shall check the platoon-wise duty rosters of his company daily and on that basis prepare the daily morning statement (Form 156) and submit it to the concerned Addl. SP through the DSP recording his own arrival and departure at Company Headquarters. He shall personally maintain all other records of the Company he is in charge as contemplated in Order 797. He shall hand over his sealed duplicate keys to the Reserve Sub-Inspector when he leaves headquarters. He shall assign, by specific written orders every week, for the checking of all Reserve Police guards of his Company. In case he is outside district Headquarters with the deployed company, the daily report will be submitted by the Addl. SP/DSP in charge of AR. A consolidated statement of deployment shall be submitted daily to SP.

3. Reserve Inspector - Operations: One Reserve Inspector will be earmarked for all operational functions of the district/city reserves. He will report to the DSP Reserve Police in the districts and to the ACP in the cities. He will be assisted by 3 RSIs, 3 ARSIs, 6 HCs and a specified number of PCs apart from the required ministerial staff. His functions and responsibilities are -

A. In charge of Police Control Room, if any,

B. Dispatch and receipt of Reserve Police Contingents, deputing personnel for guards, escorts, bandobust duties as per orders, issue of passports and inspection of personnel being deputed on duty and on their return, checking arms and equipment and other material and stores issued to them or brought by them, and making entries accordingly in the General Diary.

C. Safe custody of Railway and bus warrant books.

D. Preparation of day-to-day schedule of duty and deployment.

E. Custody of all working keys and of all the Duplicate keys in sealed covers.

F. He should be available at Headquarters and not leave his residence without prior permission of the DSP.

G. Reception of all sick personnel from platoons recording their names in the sick register, dispatch to hospital in charge of an officer along with their medical history sheets, to enable the Medical Officer to make entries in the case of the discharged men. The Medical History sheets of the discharged personnel shall be returned to the Platoon Commander.

Quarter Master

4. The Quarter Master RI/RSI will be in charge of the armoury, arms and ammunition, web the equipment, Tentage, Stores, Government property, sports and duty meet and band. He is responsible for the distribution, maintenance, upkeep of arms and ammunition to the reserve police as well as to the local police of the district. He will be in charge of tear gas and other riot control equipment, other accoutrements for the Reserve and District Police. In respect of State Armed Reserve, Central Police Lines (SAR-CPL) Amberpet, he is also in charge of the arms ammunition break up Centre. Armourers and other staff for the discharge of these duties assist him.

Reserve Inspector - Motor Transport

5. The functions and responsibilities are -

A. In charge of Motor Transport of the district and maintenance of records of all motor vehicles of the Reserve Police as well as the Civil Police.

B. Maintenance, timely repairs and good upkeep of all vehicles

C. Efficient upkeep of all repair facilities, workshop equipment, P.O.L. outlets and spares and stores.

D. Ensure economy in fuel, Tyre and other expensive items.

E. The efficient performance of duties by the drivers of the Reserve Police and other vehicle users.

F. Ensure availability of vehicles for various duties including requisitioning, hiring of vehicles for police bandobusts.

Reserve Inspector in charge of Training and Welfare and Home Guards

6. His duties are as follows -

A. In charge of the District Training Centre and its management.

B. Training courses both in-service, on-job and outdoor for the Reserve Police as well as the civil police of the district.

C. Training of Home Guards.

D. Assistance in recruitment of policemen and Home Guards.

E. Police welfare and line discipline. He will be welfare officer for the district and will also be overseeing the cooperative stores, societies etc.

F. Target practice of Reserve and local police.

G. Designing and running of special courses on various tasks for Reserve and L&O Police suited for the district.

Reserve Sub-Inspectors

7. The departmental status of Reserve Sub-Inspector is equivalent to that of a Sub-Inspector of the civil police.

Headquarters Reserve Sub-Inspectors

8-A. The Headquarters Reserve Sub-Inspectors, will be assisting the RI Operations in the running of the Reserve Police Control Room and assist him in all his duties. One RSI will always be on duty in the Headquarters of the Reserve Police which would also function as a Reserve Police Control Room.

B. Whenever the Headquarters RSI leaves the control room or the armoury, he shall hand over charge to the ARSI by an entry in the general diary.

C. Personally keeps armoury clock right daily

D. Maintenance of the general diary in which everything that happens in the armoury as well as in the Control Room all events that are reported to the Reserve Police, the incidents and information given should be recorded. He shall exchange charge under record and signature in general diary, whenever he leaves the Control Room/armoury and returns to it.

E. Despatch of all escorts and parties of men and issue passports noting the same in the general diary the departure and arrival of all escorts including escorts and parties of men from other districts. He shall inspect all men going out on escort and other duty and also after they return from, such duty including check of all equipment or stores or other material issued to them or brought by them and record it in the general diary.

F. Mounting and relief of armoury, magazine and District Police Office Guards.

G. Assisting RI in reception of sick personnel and sending them to Medical Officer.

H. Management of the Control Room, prompt despatch of messages and keep the senior officers informed of the happenings, reported in the Control Room.

I. Ensure security of all equipment and other property, arms and ammunition, personnel who are in the premises during his spell of duty.

J. Keep in close touch with the District Police Control Room and other Control Rooms of the town/city.

Duties of Platoon Commander/Reserve Sub-Inspector

9-A. The efficiency of his platoon and the Reserve depends on his capacity, commitment and professionalism.

B. Maintenance of the duty roster of his platoon and compliance of orders of Reserve Inspector/Company Commander regarding deputation of personnel.

C. Receiving of all sick reports of his platoon and their production before the Reserve Inspector Operations for passporting to hospital. He shall form up his men on parade each morning and evening and present to the Reserve Inspector of the Company a parade statement (Form 156) showing the details of the Head Constables and Constables who are present, those absent, and those on sick leave etc.

D. Nomination of HCs and PCs of his platoon for duties as may be required

E. Inspection of the personnel before sending them to the Reserve Inspector Operations for passporting on duty.

F. Production of Head Constables and Constables who have misbehaved at the orderly room.

G. Implementation of orders awarding extra drill or guard to personnel of his platoon.

H. Service of orders on the personnel, received from the Reserve Inspector of the Company and obtain their explanations, taking personal care of their health, welfare and other difficulties.

I. To know all about each Constable and Head Constable and prepare an inventory of their skills and achievements and qualities and make entries in the small service books.

J. Enhance his own skill by constant training and self effort and his capacity for bold action in times of crisis.

RSI - Motor Transport (Technical)

10. One technical RSI will assist the Reserve Inspector in charge of the Motor Transport Wing of the Reserve. This Wing will consist of drivers both PCs and HCs as well as maintenance staff. The upkeep, maintenance and deployment of vehicles of Reserve Police of the district will be his main function. The vehicles of the district other than those of Reserve Police will also be in his charge for repairs and servicing vehicles. Day-to-day upkeep will be the responsibility of the Units to which they are attached. His duties and responsibilities are -

- A. Check the kilometres done for every day for each vehicle and POL used and make entries in the Vehicle diary each day;
- B. Maintenance of all records relating to vehicles viz, MT Registers, MT returns, petrol/diesel Registers separately, hired vehicles Register;
- C. Servicing of vehicles as per norms laid down.
- D. Implementation of maintenance schedules for all vehicles directly or through the concerned officers if vehicle is not at Headquarters.
- E. Prompt carrying out of minor repairs and arrangements for major repair as per prescribed procedure.
- F. Hold charge of stock of essential accessories and spares.
- G. To be in charge of Motorcycles, Scooters or other vehicles at Headquarters including cycles, get them cleaned weekly on every Thursday, inspect them and enter in the Diary the condition of each and get necessary repairs done.
- H. Framing of guidelines and procedure of pre-maintenance and repair of vehicles, motorcycles, cycles etc., which are outside Headquarters and transmitting them through Addl. SP/SP to all SDPOs outside Headquarters. Such action in respect of those outside district Headquarters should be done by concerned SDPOs on the basis of instructions sent from Headquarters.
- I. He shall be responsible for training the drivers and maintenance staff with particular reference to fuel efficiency, condition of the engine and tyres, electrical fittings, brakes, lights, tail and indicator lamps, wipers, traffic rules, use of siren etc. He will also be responsible to see that all those who drive vehicles are in possession of valid driving licences. He should bring all violations to the notice of SP through proper channel promptly.

11. His duties further consist of assisting the RI in the following responsibilities:

- A. Safe custody of the Railway and Bus Warrant books
- B. Custodian of all working keys. Duplicate keys in sealed covers shall be in custody of Reserve Inspector
- C. In charge of all arms and ammunition in armoury
- D. Not to leave lines without prior permission and relief by RI or another RSI.

Assistant Reserve Sub-Inspector

12. The Assistant Reserve Sub-Inspector assists the Reserve Sub-Inspector in the scriptory and general work of the platoon and such other work entrusted to him by the RSI. The ARSI attached to RI Training shall also be responsible for the state of the lines and other District Reserve buildings and the parade ground. He shall report any irregularity or misconduct in the lines to the platoon and company commanders and correct it on the spot. He will attend parade and hold charge of the platoon or sections, if required. One ASI or HC from each colony of police quarters will be attached to the RSI for making comprehensive maintenance of quarters located in the district headquarters and the city.

Records in the District Reserve Police

797. The SP/Addl. SP of the District will check these records frequently and record his comments with signature and ensure compliance of instructions, if any.

Long Leave Register

1. Applications for leave will be entered in a register in Form 157 as and when they are received. Leave should be granted in that order except in the case of emergencies. Each platoon will have a register which along with the leave rolls, with leave eligibility noted therein by the DPO is placed before the SP/Addl. SP to enable him to know the number on leave in the platoon, and assess feasibility to grant the leave. It is desirable to grant leave at the Orderly Room, as it enables personal interaction and counselling and better judgement as to duration and need for leave. The leave granted should be sufficient for the purpose for which it is applied and should not be refused except in emergencies.

Casual Leave Register

2. This will be maintained for each platoon in the same Form 157 as the Long Leave Register. The Reserve Inspector of the Company shall record his orders granting or refusing leave in the register. All cases of refusal shall be placed before the SP/Addl. SP. It is desirable that long or casual leave is granted according to eligibility. The availability of adequate strength in a given situation, whether the leave is a ploy for malingering or avoid a particular duty should be the factors to be borne in mind. While casual leave or any leave is subject to exigencies of administration, there should be no room for favouritism or vindictiveness in this matter.

Duty Roster

3. This has to be maintained by each Platoon Commander in his own hand, checked and initialed by the concerned RI at least once a month. The nature of the Shramdan, if performed, should be clearly recorded.

Family Quarters Register

4. This Register should be maintained in Form 158, indicating the names of the personnel in occupation of the quarters and the names of persons in the waiting list. The names should be entered in the waiting list in the chronological order and the allotment of quarters made in the same order.

Transfer Seniority List

5. Applications meant for transfer of constables from Reserve Police to Civil Police shall be strictly in accordance with rules. The seniority list in Form 159 for transfers will be maintained and effected by the competent authority.

Seniority lists (also showing eligibility to promotion)

6. Up-to-date seniority lists and promotion panels if any, in Form 160 for promotion and automatic advancement scheme should be kept with SP/Addl. SP and DSPs concerned. Every entry or removal or alteration must be by a District Order. For promotion, each District, Commissionerate, CAR Hqrs. and SAR-CPL Amberpet should be treated as separate Units. Separate and similar seniority lists with eligibility criteria noted must be maintained for the motor transport staff. Special rules have been laid down for all the above categories.

Counselling / Orderly Room

7. At the ceremonial and other weekly parades the SP shall ask the men whether they have any representation to make. If it is possible he shall take on the spot decision or otherwise announce his decision later. He shall also hold orderly room treating such situation as personal interview/Counselling. In the absence of SP, Addl. SP/DSP should hold orderly room once a week at about 10-30 AM. It can also be held on working days by the RIs except Thursday. Platoon Commanders should personally march in their men and be present in the orderly room. Representation and Counselling including the sanction of leave, grant of PF advances, request for transfer, allocation of quarter and such other matter shall be dealt with. The particulars shall be entered in two registers (Form 161 and 162). The request for orderly room by HCs and PCs shall be complied with. It should be treated as personal interview cum Counselling. The following instructions shall be kept in mind in conducting orderly room.

- A. The officer while holding orderly room shall be dignified, firm, fair, understanding and sympathetic.
- B. The decision should be swift but not hasty.
- C. Patient hearing is necessary. Insulting, belittling or abusing or shouting or losing temper should be avoided.
- D. If the request cannot be considered, the current position should be explained in clear terms.

Pay Disbursement Register

8. Pay and travelling allowance and all other monies due, if the same is not paid through the banks, should be promptly disbursed by platoon commanders under the supervision of RI / DSP.

Scale of Arms and Ammunition of the District Reserve Police

798. The following are the scale of arms and ammunition for the District Reserve fixed by the Government of India.

G.O. Ms. 63, 18-1-1954.

1. Arms for service:

- B. One rifle or SLR per Head Constable and Constable
- C. 4 Carbines for each 100 rifles authorised
- D. One revolver/pistol per officer of and above the rank of Assistant Sub-Inspector
- E. 4 V.L. Pistols for Reserve
- F. One Bren Gun per 100 members
- G. One E.Y. Rifle with discharger cup per platoon
- H. Special arms
- Self-loading rifles @ 1 per HC/PC
- Carbine machine gun @ 1 per section
- AK 47 assault rifle @ 1 per section

2. Arms for training:

- A. .22 rifles - one per 20 trainees
- B. .303 rifles/410 muskets/SLRs - one for each trainee
- C. .455/.38 revolver - one per 10 trainees
- D. Carbines Machine Thompson - one per 10 trainees
- E. One Bren Gun per district
- F. One AK 47 per platoon

3. Ammunition for service:

- A. 100 rounds per rifle
- B. 30 rounds per revolver
- C. 192 rounds per CMT
- D. 500 rounds per Bren Gun
- E. 19 rounds per V.L Pistol - illuminating 12, red 4, and green 3
- F. 20 grenades per E.Y. Rifle
- G. 27 ballistic cartridges per E.Y. Rifle
- H. 40 rounds .303 cartridge tracer S.G. per platoon of Armed Reserve

4. Ammunition for practice: (per annum)

- A. .303 rifle / 60 rounds per capita
- B. .38/.455 Revolver - 60 rounds per capita
- C. Carbine Machine Thompson - 15 rounds per capita
- D. Bren Gun - 360 rounds per weapon
- E. E.Y. Rifle - 10 grenades, 6 Dummy grenades, 50 Ballistite cartridges - per weapon

5. Ammunition for training: (per annum)

- A. .303 / 100 rounds per trainee
- B. .38/.455 Revolver - 70 rounds per trainee
- C. Carbine Machine Thompson - 50 rounds per trainee
- D. .22 rifle ball - 10 rounds per trainee
- E. Bren Gun - 300 rounds per weapon
- F. V.L. Pistols, illuminating 1 round per 15 men, red/green 1 round per 20 men
- G. E.Y. rifles - 10 grenades and 20 ballistite cartridges per E.Y. Rifle

Note: Blank ammunition will be supplied @ 10 rounds per weapon per annum.

Care and Custody of Arms

799-1. History of Arms: All SHOs and other designated Officers of other Units to which arms and ammunition are issued shall maintain histories of the fire-arms supplied to each in Form 163. The Quarter master/RI shall also maintain a similar register for all weapons on the charge of the district/city. He shall scrutinise this register and ensure that each fire-arm is rebrowned in due time and also produced for AIA's inspection in accordance with the orders on the subject.

Inspection of Arms in Sub-Divisions by District Armourers

2. During the course of a month, preferably in the first and the last week, the armourer of the Reserve shall inspect the arms of two sub-divisions including Detective and Traffic in the district. He shall inspect every weapon borne on the strength of the L&O Police Station, Detective PS, Traffic Police Stations etc. including scabbards and bayonets. The Sub-Divisional Officers shall arrange to get all the weapons including those of Railway police stations of the area, to the sub-divisional headquarters and get them examined and repaired by the armourer. The armourer will attend to only minor repairs at the sub-divisional headquarters. He will make out a list of arms requiring major repairs and the SDPO concerned shall send such arms to the district headquarters, where repairs shall be undertaken at the police armoury. This procedure should strictly be followed to enable the district armourer to test every weapon twice a year.

3. Store day generally falls in the third week of every month. The weapons brought from a sub-division would have been repaired by then by the armourers. They should send all of them back to the sub-divisional Headquarters through the store Constable of the sub-division.

4. During the course of the second week of a month, the armourer shall inspect the arms and automatic weapons of the Reserve police and point out the defects, if any, to the concerned Platoon Commanders. He shall also attend to the half-yearly lubrication of arms.

5. When weapons are taken out, the policemen shall dry clean them and before returning them to the armoury, they shall apply oil to all the metallic portions. All RSIs shall inspect weapons of their respective platoons after every parade and see whether any parts are missing and whether they are cleaned properly. Any neglect in the care of arms shall not be permitted and such instances should be promptly brought to the notice of the senior officers concerned for suitable action.

6. If any musket or rifle is found rusty or any barrel bulged or neglected, the PC or HC to whom the weapon has been issued shall be dealt with in a disciplinary case. All RSIs shall maintain a book wherein details of inspection done and action taken against any Constable or Head Constable for missing parts or causing damages to his weapon should be entered. The RI/RSI, Quarter Master should effectively supervise the work of armourers and more so, the work of the Platoon Commanders in this regard. Reports of the armourer, after his inspection of arms, regarding losses of and damages to arms due to neglect shall be promptly attended to by the concerned.

7. The following are the special instructions to armourers going out to inspect weapons of the Sub-Division.

A. Thorough inspection of each and every arm including bayonets and scabbards that are produced for inspection. He must be supplied with a complete list of arms held by each sub-division.

B. The armourer on the spot shall carry out all minor repairs to weapons.

C. The armourer shall maintain a separate general diary in triplicate indicating the work done by him on each day. He shall send a copy of his general diary to the SDPO concerned and get his acknowledgement and another copy to the Addl. SP/SP through the Quarter Master, Headquarters.

D. He shall ensure that linseed oil is applied to the wooden portion of all muskets/rifles.

E. He shall take with him his tools and a few spares for the weapons to be inspected. Those arms that need attention in the armourer's shop shall be marked separately and brought to the District Headquarters.

F. It is neither the work nor the duty of the armourer to clean weapons but only to repair them. SDPOs shall, therefore, ensure that all arms are cleaned thoroughly before the district armourer inspects them.

G. A small table and two Constables shall be provided by the SDPO to enable the armourer to carry on with his work at the Sub-Division.

H. The armourer shall on his return to headquarters, submit a report in duplicate to the SP through the RI Headquarters on the work turned out by him and the condition of the arms in the Sub-Division. A copy of the report will be sent to the SDPO concerned.

Annual Mobilisation

800-1. All personnel of District Reserve Police have to be mobilised for training for 15 days once a year preferably, during the months of January or February. One third of the SDPOs shall be present on parade every day and take an active part in the mobilisation. It is important that officers should not permit themselves to become so rusty in their drill and out-door work as to be unable to efficiently command the Reserve Police when necessary. The Addl. SP and the DSP AR and concerned Reserve Inspectors and SDPO should attend the annual Mobilisation at least on one of the working days. The Reserve Inspectors and DSP of AR whose company Units are mobilised must attend all days the different sessions of the training throughout the day. Addl. SP should be present every day at one or the other sessions throughout mobilisation.

2. The SP should personally supervise the organisation of the mobilised Reserve and should ensure that Addl. SP is present throughout at Headquarters. SP should also keep himself in touch with the progress of training and attend parades regularly during the mobilisation unless he is away from Headquarters.

3. During the annual Mobilisation, Sundays should be totally free. The full Mobilisation routine will be carried out during the other days. If, however, a public holiday intervenes, it should be treated as a holiday without parades, classes or fatigues. The SP should so schedule mobilisation of each company for training that there is a minimum of 12 or 13 training days for each company in a fortnight. The programme should be drawn up in such a manner that the specific requirement of the district are taken into consideration and the stress is more on practical demonstration and actual field situations and specific standards to be achieved in various spells.

4. During the annual Mobilisation, the personnel in training shall not be deputed for other duties.

Mobilisation Orders

801-1. During the Mobilisation of the Reserve, all standing duties of the company under mobilisation shall be taken over by the civil police and in some instances by Home Guards. Standing orders for this purpose shall be drawn up for each district, city and State Reserve, containing the details of the duties; L&O P.Ss shall send their personnel to perform these duties.

2. Instructions on the following points shall be conveyed in respect of the personnel to be drafted from the district for the purpose.

- A. the number of police officers of each rank to be sent;
- B. the officer and place where they should report;
- C. their likely duties and
- D. the arms and ammunition to be taken by them.

3. The following instructions shall be followed.

- A. The policemen shall carry their full kits.
- B. If a mobilisation is to last for more than 15 days, they should be relieved by substitutes from the same sub-division once in ten days.
- C. Care should be taken, when drawing up Mobilisation orders, not to unduly weaken important L&O Police Stations.
- D. None of the staff of Detective Police Stations, CCS or DCRB or any Unit of Investigation Branch shall be drawn for mobilisation duty.

Reserve Police on detachment duty

802-1. A General Diary shall be maintained by the officer in charge of detachment, in which the movements of the officer in charge and of all personnel, the duties for which they are employed, any incident and all particulars such as discipline, presence or absence of any personnel, sickness, injuries, use of fire arms or other events shall be entered.

2. A copy of the General Diary should be sent to RI of the Company and to the SP of the district, if deployed outside the district, to which the detachment belongs.

3. The officer in charge of the detachment should equip himself with the briefing documents and instructions on the task to be performed and brief the personnel thoroughly before proceeding and after arrival. The requisitioning officer is responsible for making available all material in advance and any additional material on arrival.

Curriculum for intensive training of the District Reserve

803. The training shall be done on the following lines:

1. From March to October, the weekly programme of work should provide for parades of one and half hours duration in the morning and 45 minutes in the evening except on Sundays, Thursdays and other holidays. Lectures and demonstrations by officers from Addl. SP to RSI should be arranged between 9:30 and 10:15 a.m. three times a week. The prescribed firing practices should be completed before onset of monsoon. Hours of work for those on rifle firing practice at the range shall be specially detailed. Due provision shall be made for regular instructions and practical training in-

- A. Squad, Company and arms drill, P.T., B.T. and lathi drill, Skirmishing (instructions),
- B. Route marches and small tactical schemes,
- C. Mob operations (drill and practicals),
- D. Surround and search (instructional and practical),
- E. Elements of bomb disposal,
- F. Picket duties in disturbed conditions (including temporary, stay in localities),
- G. Patrolling (riot affected, crime-prone, terrorist affected areas and highways)
- H. Road bandobusts on VVIP security,
- I. Election duty (mobile force or striking force),
- J. Disaster and natural calamities,
- K. Anti-terrorist operations (ambush, Counter-ambush and reaction),
- L. First aid and Life saving
- M. Camp layout discipline and routine
- N. Field firing
- O. Construction of bivouac shelters (instructional and practical)
- P. Tent-pitching
- Q. Musketry (instructional)
- R. Care of arms
- S. Anti-malarial measures and sanitation
- T. Care of clothing and equipment
- U. Leadership
- V. Night marching by compass
- W. Cooking (selected men) and games

2. November - Preparation for and performance of the reserve, area tours by all Reserves.

3. December, January and February - specially intensified training in the selected subjects indicated above should be given to the mobilised portion of the Reserve in each of these months. The SP and Addl. SP should carefully identify the specific problems of the district/city and have clearly defined training modules for this period and ensure compliance. The ordinary parade programme in December, January and February, excepting holidays, should provide for two hours work in the mornings and one hour work in the evenings, instead of the one and half hours and 45 minutes prescribed in (1) above and for practical and lectures on five days of the week. The SP/Addl. SP must attend all parades during mobilisation and as many as possible during other days. The SP should be present for all mobilisation parades if at Headquarters. SDPOs should also be brought into headquarters at this time for a week each as convenient and should attend parades daily, unless prevented by other really urgent work.

4. During the month the SP/Addl. SP should attend parades at least twice a week, the Headquarters SDPO at least once a week, and other SDPOs whenever they visit district headquarters.

Remote Area Tours

804-1. To accustom the District Reserves of conditions prevailing in forest, hilly, inaccessible tracts on coast or other areas (to be specifically identified) the SP/Addl. SP of all districts should tour once a year with the non-duty platoons for fourteen days in such areas within their respective districts. During these tours, the Special Reserve shall be trained specially in tactical work and anti-guerilla terrorist operations in the field and other duties, which they might be called upon to perform in the forest areas, hilly and inaccessible areas.

2. The boarding arrangements shall be at the cost of the Government, apart from their entitlement to DA as per rules. Medical arrangements shall be made to look after the health of the personnel. Commissariat and medical arrangements are part of the camp training.

3. The Superintendent of Police will fix the date for the tour in consultation with the Zonal Inspector-Generals/DIGP concerned.

4. The camp site selected should vary from year to year and should be deep inside the forest, hilly areas, or remote areas and not in a village or hamlet or any habitation.

Proficiency Tests

805-1. In order to motivate for a higher standard of individual efficiency in Reserves, the Government have approved the holding of annual proficiency tests for Head Constables and Constables and to grant proficiency pay to those who passed the Test at the Rate of Rs.60/- per month for Head Constable and Rs.40/- per month for a Constable.

2. The proficiency test mentioned in sub-order (1) above is open to personnel who obtain 50 per cent or more of the possible score in the prescribed musketry (Rifle/SLR/revolver/carbine) practices held in the presence of SP/Addl. SP/DSP during the preceding year and who during the same period are not awarded a recorded punishment or three orderly room minor punishments. The test is not open to those who have not completed probation. The personnel satisfying these conditions shall be selected by the SP / Addl. SP of the District. Such personnel shall appear for tests given below:

A. Head Constables - Personal handling of arms issued and in the control and drill of all kinds including PT and BT and in mob dispersal exercises, and the special training given in Riot control or Commando etc. given to him.

B. Constables - An examination in the handling of arms issued and in drill of all kinds including special skills imparted.

C. MT Staff - An examination held by the Motor Vehicle Inspector in motor driving, maintenance, mechanism and running repairs (under the personal supervision of the SP/Addl. SP).

D. Armourers - An examination held by the Reserve Inspector in armourer's work (under the personal supervision of SP/Addl. SP).

E. Those who obtain 50 per cent of the total marks in the tests will be granted proficiency pay for one year at the rates mentioned above. The Superintendent of Police, who will sanction the grant of proficiency pay to successful personnel, will conduct these tests in January each year. The sanction will run for one year from the date of passing the test and its continuance will depend on passing the next annual test. Proficiency pay will be forfeited for serious misconduct or if the PC/HC becomes physically unfit for duty.

3. The qualifying standards for the proficiency pay should be applied very strictly. Zonal Inspectors-General/DIGP will pay special attention to this matter during their inspections and ensure that the above orders regarding the qualifying standards and grant of proficiency pay are complied strictly.

Target Practices and Good Shooting Badges

806-1. Target practices shall be held as laid down in the Drill Manual and the scores noted in Form 164.

2. Badges for good shooting shall be awarded to the men as follows on the completion of the annual individual practices.

A. Silver badges to "Marksmen" that is, those who obtain 79 points and above out of 100, and silk badges to "First Class Shots", that is those who obtain 63 to 78 points out of 100. A gold badge will be awarded to the person who obtains the highest marks in the Reserve, provided the marks obtained do not fall below the minimum required for a silver badge.

B. The entitlement to wear the badges shall be for a year after it is awarded and can be continued only if he obtains required score in the succeeding year.

3. Money prizes of the following values may be awarded to the best shots in the Reserve Police in different types of weapons and practices.

Gold badge - Rs.500

Silver badge - Rs. 400, 300 and 200 respectively for the first three.

District Reserve Police Annual Shooting Competition

807-1. The competition shall be compulsory for all personnel of the Reserve police irrespective of their deployment.

2. The competition should be completed by the end of the second quarter of each year and results communicated to the IGP Training who is the Honorary Secretary for this competition. The IGP Training should bring to the notice of the Addl. DGP (R&T) and DGP the results giving a critical appraisal of the standards and type of weapons and practices after the competitions are completed and suggestions for improvement.

3-A. The strength of the teams shall be the multiple of ten nearest to the 50% of the sanctioned strength of HCs and PCs. For the purpose of this competition, ARSIs shall be reckoned as HCs. Not less than 50% of the sanctioned strength of HCs shall take

part in the competition. A gazetted officer, who will accompany it either on a bicycle or vehicle, shall command the team. The orders to "Fire" for each section will be given by a HC.

B. If the 50% of the strength of PCs and HCs is, say 95, the number of men that have to take part in the competition shall be 10 and not 9. The RIs and RSIs fit for duty shall form part of the teams and shall, if less than 40 years of age, march with it and if over 40 years, may accompany on a bicycle or foot or vehicle as he chooses.

4-A. The team shall march 16 kilometers and fire 5 rounds by sections of not less than 7 and not more than 10 in single rank, in kneeling position, from a range of 200 yards. Then the sections will double up 10 yards forward and fire 5 rounds in standing position on the same target. The firing shall be without fixing bayonets.

B. The time allowed for the march is 2 hours and 40 minutes. The additional time allowed for firing is calculated at 6 minutes for each section. The time allowed for 5 rounds for each section shall be 23 seconds. The time shall be calculated from the word of command "Five rounds fire". The command "Fire" shall be given by the section Commander when the section has loaded the ammunition. At the 20th second the umpire will caution the section by calling the time and blow the whistle on completion of time i.e., 23 seconds when the section shall Cease Fire. As soon as the section has completed firing 5 rounds at 200 yards the section commander will give word of command "Unload Ease Spring" (Hindi word). As soon as the section has eased spring at 200 yards the section commander will give word of command "Prepare to advance". As soon as the personnel are ready, he will give the word of command "Advance", when the section will double up 100 yards in the walk up position. On arrival at 100 yards firing point, section commander will give word of command "5 rounds standing load at the target in front fire". The time allowed to complete 5 rounds at this point will also be 23 seconds from the command "Five rounds fire". Words of command shall be in Hindi.

5. Official target No. 3 (service target 4' x 4') will be used in case of 303. For SLR and AK 47 rifles figure 1 & 2 targets should be used. The scores will be counted as per ring value or place value in case of figures as shown below:

DIMENSIONS AND SCORING

Circle	Diameter in inches	Scoring
Bull Circle	12"	10 Points
Inner Circle	24"	8 Points
Mag Pie Circle	36"	6 Points
Outer Circle	48"	4 Points

Note:- To obtain the result, the number of HCs and PCs who commenced the march, excluding the Section Commanders who give the fire orders, will divide the total points scored. HCs other than Section Commanders will fire. Gazetted Officers, RSIs will not fire.

6. If the RIs or RSIs fail to complete the march within the prescribed time, 10% will be deducted from the total number of points scored for each RI or RSI. The penalty for firing after the umpire sounds the 'Cease fire' will be 20% of the highest possible score obtainable by the section.

7. The personnel who have fired should not be allowed to mix up with those in other sections, which have not fired. To ensure this, the men who have fired should march 100 yards off the firing point and stand away from the men who have not fired. As soon as firing is completed, the target should be brought from the butt to the 100 yards firing line in the immediate presence of the judges. The target should, however, be away from the firing line.

8. The following dress will be worn:

A. Gazetted Officers and RSIs:¾ Working dress, revolver in holster and 12 rounds of ammunition in pouch.

B. HCs and PCs:¾ Working dress, beret, haversack containing full water bottle, rifle belt, pouch with 10 rounds ammunition and bayonet in the scabbard. Jungle boots must be worn.

9. Each competing team shall be judged by a committee consisting of the following:

A. Zonal Inspector-General/DIGP or the Commandant of an APSP Bn / SAR CPL or the SP of a neighbouring district.

B. A Local District Officer (not a Police Officer)

10. The results of the competition shall be reported to the Secretary in the following form. Failure to comply with these instructions will render the district liable for disqualification.

Competition for District Reserve Police

Reserve Inspectors	Reserve Sub-Inspectors	Head Constables including Asst. Reserve Sub- Inspectors	Constables
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Sanctioned strength
Number competing
Number firing

Scores:

First and Second practices

HITS

10
8
6
4

Total of the scores of the two practices
Total number of men who fired
Average score per head
Time taken for marching
Date of competition

X
Y
X/Y

Judge: 1. Judge: 2.

Tear Gas Squads

808-1. In every district Reserve Police, there should be one squad for each company attached to the headquarters company consisting of 1 RSI/ARSI, 2 HCs and 12 PCs. The strength of the squad should be drawn equally from each active company and attached to the headquarters company by rotation. The personnel should be replaced once a quarter by fresh batches drawn in a similar manner. This is to ensure that every person in the Reserve is trained in the use of tear smoke.

2-A. The following is the scale of equipment for each squad -

• Riot Guns	7
• Truncheons	1
• Shell carriers	7
• Grenade carriers	7
• Gun carriers	7
• Fliterite shell carriers	1

B. The following is the scale of auxiliary equipment for each squad -

• Rag "E" type container for the squad	15
• Rag "E" type container for armed protective squad	20
• Rag DP	36
• Shoulder pad	7
• Torch holder apparatus grenades	1
• Disinfectant (Joyes Fluid)	1 bottle
• Sponges for cleaning of respirators	2
• Capsules heating apparatus	1
• Spirit lamp	1
• Bottle of spirit	1
• File small	1

- Pliers, with wire cutting Fixture 1
- Wire binding 11” 16
- Cleaning rods for guns 1
- Grenades (dummy) 24
- Sacks (for grenade practice) 2
- Almirah (for increased munitions) 2
- Respirator almirah 1
- Win indicator 1
- Medical First Aid Outfit 1

C. The following is the initial supply of tear gas ammunition for each squad -

- Spedeheat Grenade C.N. 63
- Three way Grenades C.N. 63
- Shells Long Range C.N. 84
- Shells Short Range C.N. 84
- Truncheon Cartridges C.N. 12
- Fliterite Shells C.N. 8
- Spedeheat Grenades D.M. 12
- Shells Long Range D.M. 12
- Shells Short Range D.M. 12

D. The following are the scale of tear gas ammunition for practice and service for each squad -

FOR SERVICE QUARTERLY

- Spedeheat Grenades C.N. 5
- Three way Grenades C.N. 5
- Spedeheat Grenade D.M. ... 1
- Fliterite Shell C.N. ... 1
- Long Range Shell ... 1
- Short Range Shell D.M. ... 1
- Truncheon Cartridge C.N. ... 1

FOR PRACTICE ANNUALLY

- Caps for practice shells ... 400
- Refills for practice shells ... 150
- Gas pellets ... 120
- Firing Mechanism ... 130
- Tuncheon cartridge C.N. ... 12
- Practice shells with 4 refills each ... 50
- Two-second firing Mechanism ... 12
- Practice Grenades (excluding delay ... 14
firing mechanism and gas pellets)

Housing

809. All ranks of the District Reserve shall reside, so far as accommodation permits, in the lines provided for them at the Reserve Headquarters.

Kit and arms inspection

810. The RI of each company will hold a kit and arms inspection for each mobilised platoon and the RIs of Headquarters company on the first Monday of every month. Platoon Commanders will make lists of deficiencies and see that they are made good during the month.

Roll calls

811-1. Roll calls of HCs and PCs will be held daily at 8 pm, on working days and at 8 am, on holidays. No officer, HC or PC shall leave his lines or his notified residence after the evening roll call without the previous permission of his Campus Commander or Platoon Commander or the Duty Reserve Sub-Inspector.

2. The ARSI or, in his absence, the senior HC of each platoon shall call the morning roll of his men at the lines in the immediate presence of the Platoon Commander, who shall thereby check his parade statement. Bandsmen will also fall in for the roll call.

Motor Vehicle Maintenance and duties of Personnel

812-1. All motor transport of the District Reserve shall be in the charge of the Motor Transport Reserve Inspector/RSI assisted by RSI/ARSI, Motor Transport (Technical) and at least 3 HC mechanics with 3 PCs as per norms one set for 15 to 20 vehicles. They will be responsible for keeping the vehicles in readiness at all times either for the transport of prisoners or a police force in emergencies.

2. The RSI (MT) shall ensure that the vehicles are kept greased, oiled, clean and in perfect order, and will bring any defects promptly to the notice of the higher officers.

3. He is directly responsible for all trips.

4. He shall exercise supervision over the daily diary maintained by the drivers under his control and scrutinize all expenditure on account of the vehicles.

5. All requisitions for the use of vehicles shall be made to him and he shall comply with them if the vehicle is not otherwise engaged at the time, after obtaining the orders of the superior officers.

6. In case of any breakdown or damage or any incident affecting the running of the vehicles reported by the drivers, he shall take such necessary steps for their repair and submit a detailed report through the RI to higher officers immediately, as to the circumstances, the cause of breakdown or damage, and the steps taken for their repair.

7. The prior sanction of the SP should be obtained for all purchases in connection with the vehicles, except oil and petrol, and for repairs except those urgently necessary. The details of the repairs required should be reported to the sanctioning authority immediately after they are noticed.

8. He will issue petrol and oil as necessary, care being taken that requisitions are not in excess of probable requirements. Spare petrol may be carried in cans at the discretion of the Headquarters RSI. The driver will be supplied with a two 10 litre tins for oil and will be responsible for ensuring that he has sufficient oil for any journey. One 10 litre can of petrol shall always be carried in the vehicle as a spare.

9. A stock of 150 litres of petrol, 10 litres of oil and one tin of grease will always be kept on hand with the RI/RSI (MT) in case there is no petrol/diesel outlet exclusively to the police.

10. The RI (MT) or RSI (Technical/MT) shall inspect the vehicles every morning before they go out and check the petrol on hand and in tanks, both before and after each trip, and shall record the fact in the daily diary submitted by drivers.

11. He will periodically inspect the vehicles and ensure that the drivers and cleaners keep them in good and clean condition and report any neglect to higher officers for suitable action.

12. He will submit a report through proper channel to the Addl. SP/SP regarding major repairs required giving details.

Duties of Driver HC and Constable Assistant

13. Each vehicle will be in the immediate charge of a driver of the rank of HC, assisted by a Constable in the case of vehicles other than Jeeps, Land Rovers, pickup vans and cars. The Driver and his assistant will jointly and severally responsible for the clean and efficient condition of the vehicle. Both of them and Constable Assistant shall clean the vehicle personally and go through all daily maintenance schedules. The HC should see that the Constable Assistant does his work well including cleaning the vehicle and thoroughly understands his job, and also brings to the notice of the RI/RSI (MT) any neglect or misdemeanour on the part of the Constable. He will report to his superior for any repairs and replacements that he considers necessary.

The Other Duties are

14. They must be always available for duty. Ordinarily, when not on actual driving duty they should be at the vehicle between 7 am and 11 am and again between 2 pm and 6 pm and not leave the lines without the special permission of the RI or RSI Hq. and when they leave, they should leave word as to where they will be found.

15. Under no circumstances both should be absent at one and the same time.

16. Permission given for any absence from the lines must be for a definite period.

17. HC and PC Assistant, when at headquarters, will attend morning parades daily unless they return from duty after 10 pm the previous night, in which case they may attend for duty at 10 am.

18. The Driver HC will be held responsible for the consumption of oil, petrol and grease according to norms set for each vehicle. Any wastage or unusual consumption should be accounted for by him and should be recorded in vehicle diary daily.

19. Before starting the vehicle, he should carefully examine and see if the vehicle is in running order and properly equipped.

20. Immediately on return from a trip, the vehicle should be properly cleaned by both and left in the garage under lock and key.

21. The Driver HC of a heavy vehicle will not make a journey without the PC Assistant who may be dispensed with only when one of the police constables travelling in the vehicle is detailed to be with the Driver HC.

22. They will always be in uniform and will take rifles/muskets (without bayonets) or other prescribed weapons and the quantity of ammunition with them when out on duty with the vehicle except when the Reserve games team are being carried within the town.

23. The rifles/muskets will be carried in clips provided for the purpose. They should be secured by a chain and padlock, the key

of which will be carried by the driver attached to his vehicle ignition key. Ammunition will be carried in pouches on the belt in the usual way.

24. The fact of taking arms and ammunition should be noted in the attendance register.

25. In the event of any accident or breakdown immediate communication to the nearest police station should be sent for necessary action and assistance to get the vehicle to headquarters.

26. Any accident resulting in damage to any other vehicle or injury to any person or animal should be similarly reported to the SHO of the nearest station and detailed report to Hqrs RI giving details of damage or defect and cause. The report should be placed for SP's perusal. First Aid to injured persons should be rendered and all assistance to send them promptly to nearest hospital.

27. They will be responsible for any damage to the vehicle or loss of any component or spare parts attracting suitable disciplinary action unless the preliminary enquiry shows that they were not at fault.

28. The driver, before proceeding out of headquarters on duty will sign the attendance register-indicating destination and nature of duty and report his return to Hqrs.

29. The attendance register in the General Diary format will be in the charge of the Hqrs. RSI. A copy of this will be attached to drivers daily report.

30. The Constable Assistant will be responsible for the maintenance of the vehicle in a clean and good condition and will assist the driver in carrying out repairs and adjustments. He will, unless deputed on other duty accompany the driver HC whenever the vehicle is taken out. The RI may provide a substitute.

31. During every ordinary run, the PC Assistant should practise driving under the supervision of the driver. Every Constable Assistant should possess a driving license or learners' license.

32. No unauthorized person will at any time be carried in the vehicle and nobody other than the regular driver or his Assistant will drive, except with the express permission of the SP.

33-A. Every police vehicle should be examined at least once a quarter by the Motor Vehicle Inspector in order to ensure that it is mechanically and structurally fit and safe. Motor vehicles belonging to the Special Police Battalions should be inspected every quarter by the MVI having jurisdiction. The Technical Officers of the Police Transport Organisation or Reserve Inspector and above will inspect the vehicles in the Hyderabad City and RR district, including those of the SAR CPL and the APSP battalion in the City.

B. The mechanic HC under supervision of RSI/RI will be responsible for the proper upkeep and sound mechanical condition of all Police Vehicles including Jeeps, cars, land rovers, and motorcycles. He will be present each day for the daily check of the vehicles by respective drivers. He will test check their reports and attend to any defect noticed on an inspection of the vehicle including the starting of the engine. Mechanics should immediately report in writing through proper channel the existence of any defects, which require the issue of spares or other parts on stock in the Reserve or attention in the workshop. He should acknowledge receipt of spares issued and see to their being fixed properly and immediately. The road-worthiness of vehicles will, to a great extent, depend on the thoroughness and efficiency with which the mechanic HC attends to his duties. He will also ensure that orders relating to the schedule of maintenance drawn for care of vehicles are meticulously followed.

C. The SP/Addl. SP should make it a point to inspect all the vehicles at headquarters once a month preferably on the first Monday of the month, and see that they are properly maintained. The Commandants, State Reserve and Special Police Battalions, should conduct weekly inspection of motor vehicles available at headquarters.

34. When a vehicle is not out on duty or being cleaned, it will be kept in the garage, which will be secured with a lock.

35. One key of the garage will be with the RI/RSI or other officer-in-charge of the Reserve, and the second key with the Duty RSI. The key will be issued to the driver under acknowledgement.

36. No work will be done in the garage between sunset and sunrise, except under the special order of the RI.

37. No naked lights will be allowed in the garage at any time and smoking when at work on the vehicles or in the garage is strictly forbidden.

38. Before the vehicle is taken out in the morning, the speedometer reading will be noted and the petrol in the tank measured. The tank should always be kept full. It should be refilled whenever the fuel comes down to half the tank capacity, and metre reading taken and the kmpl calculated and noted in the diary. The DSP AR should securely seal the metre.

39. For authorised private trips a special and additional reading of the meter shall be taken at the commencement and termination of the trip.

40. The speedometer reading will be taken also when the vehicle is secured in the garage.

41. The daily reading of the meter shall be checked by the RI Hqrs or RSI Hqrs if specially deputed. The Superintendent of Police/Addl. SP and RI Hqrs will be responsible to see that meters are repaired immediately whenever they go out of order.

42. The vehicle should be cleaned daily. All washing/cleaning of vehicles will be done on the platform outside the garage.

43. The inside portion of all mudguards and the engine tray will be cleaned regularly and will be painted every six months with an approved paint. The under-carriage and chassis shall also be cleaned regularly. The tie-rods, brake-rods and all exposed moving joints should be touched up once a week with a mixture of kerosene and engine oil.

44. The issue of paint will be entered in the register of accessories and spare parts.

45. Lubricating and greasing must be done according to the charts supplied and displayed in the garage and the fact entered in the maintenance register.

46. Lubrication will be carried out once a week and as soon as the vehicle has completed the minimum number of kilometers after which lubrication is recommended by the manufacturers and oil changed as laid down in the Instruction Book.

47. The petrol tap must be shut whenever the vehicle is locked in the garage.

48. The engine should be periodically decarbonized.

49. The radiator must be filled with clean pipe water.

50. The vehicle must never be driven faster than 60 kmph if they are heavy or medium range and 80 kmph if they are light vehicles unless in a grave emergency. In cities and inhabited areas the speed limits prescribed by police for public should be followed.

51. The battery must be examined every week and distilled water added when necessary. The level must never be allowed to fall below the level of the top of the plates. The battery terminals should be greased.

52. The tyres must be maintained at the correct pressure recommended by the manufacturers for the different types of vehicles.

53. The driver will see that he has a serviceable spare tyre and tube ready for substitution as well as a complete repair outfit whenever the vehicle is taken out. A list of the items of the outfit, which should be maintained and carried in the vehicle, is given below:^{3/4}

- Hammer (medium) ... 1
- Screw driver large ... 1
- Brush engine cleaning ... 1
- Oil can ... 1
- Tyre pressure gauge ... 1
- Lubricating gun ... 1
- Jack (complete) ... 1
- Insulating tape roll ... 1
- Tyre lever ... 1
- Pliers ... 2
- Screw driver small ... 1
- Tyre valve tool ... 1
- Handle wheel nut wrench ... 1
- Range of spanner set of 6 ... 1 set
- Wheel nut wrench ... 1
- Pad locks with keys ... 1
- Starting handle ... 1
- Water can ... 1
- Tool kit box ... 1
- Wrench (adjusting) ... 1
- Air line (if supplied) ... 1
- Vehicle log book ... 1
- Block wood for jack ... 1

54. Should a tyre be punctured or changed with the spare, the meter reading should be recorded in tyre maintenance register. The tyres should be examined daily for cuts and for foreign bodies and nails, which may be embedded in the outer cover and likely to work through and cause punctures. When vulcanization is necessary, a report must be made to the Reserve Inspector/RSI, who will immediately attend to the matter.

55. A driver who has to drive a vehicle for long hours at night should be given rest the following morning. If the vehicle is required to be driven in the morning, another driver should be detailed.

Registers to be maintained by RI/RSI (MT)

56-A. Register of accessories and spare parts in C.F. No. 268 (A) with appropriate titles. This will show receipt from and return to stores of all equipment, tyres, accessories and spare parts. The balance should, at any time, correspond with a list maintained by the driver. This will be balanced quarterly and a return submitted to stores for check.

B. A monthly motor transport return in Form 165. This return should be maintained for the month and all items of expenditure on the vehicle including petrol, oil and grease should be recorded. The return should be totaled each month. It should be got verified by the Office Superintendent of the District Police Office and checked by the Superintendent of Police monthly. A separate return should be kept for each vehicle. When a journey is performed for which hire is charged a reference should be made to the daily diary in the registers of petrol, oil and grease in the return. The Reserve Inspector, Headquarters at the end of the year will work out the all-in cost of running per mile with reference to the following particulars ^{3/4}

- Capital cost
- Renewals and repairs
- Maintenance charges, petrol, oil, etc. including the driver's and cleaner's pay
- Depreciation at 20 per cent of original cost to be written off each year
- Amount of tax under the Motor Vehicle Taxation Act
- Cost of registration fees
- Cost of driving licence fees

Note:- The result should be reported to the District Police Office as the vehicle completes each year.

C. A register of receipts and issues of petrol, oil and grease in C.F. No. 268-A.

D. Hire Account Register in Form 166. This will show the name of the Officer who hired the vehicle, the journeys for which the hire is charged, the amount of the hire and the dates of its receipt and credit into the treasury.

- E. A Log Book for each vehicle in Form 167.
- F. Stock Register of Motor Vehicles in Form 168.

57. The Reserve Inspector/RSI will also maintain a rough register showing all purchases (petrol, oil, tyres, grease, cotton waste, etc.) and issues and obtain the driver's signature for the latter.

58. The Reserve Inspector/RSI will also maintain a list of the tools and articles of outfit supplied to each vehicle.

59. The driver will maintain a diary in the prescribed form (driver's daily diary, Form 169). In this will be entered all supplies of petrol, oil, etc. and the mileage covered on all trips. This diary will be submitted daily by the driver through the Headquarters Reserve Sub-Inspector to the Reserve Inspector, who will forward it to the Superintendent of Police with his ordinary diary after entering the details in his records. When no journey is performed a "Nil" diary will be submitted on plain paper.

60. He will maintain a list of accessories, equipment, spare parts and tools supplied to him, giving full particulars of the articles supplied, including the numbers or other marks, if any, on them. This list will be hung up in the garage.

61. He will maintain a note book showing work done by him with or to the vehicle, and submit it daily to the Reserve Inspector through the Headquarters Reserve Sub-Inspector.

Use of vehicle

62. The vehicle will be used.

- A. for the transport of police parties called out on public duty;
- B. for the conveyance of under-trial and other prisoners at the district headquarters;
- C. for the conveyance of reserve games teams within the town, and
- D. for taking reserve and other local police men to the parade grounds for holding combined parade. (This should be an exception rather than rule).

63. Cases of the use of Government vehicles by officers or Government departments may be classified as follows for the purpose of levying charges for their use:

- A. where the vehicle is used solely for the conveyance of officers and men of the department on duty and for the material, records, etc. of the department and its detention is necessary in order that such Government servants and material may be conveyed when the necessity arises;
- B. where it is used solely for the conveyance of an officer's personal servants and effects and is detained in order that it may be available for the same purpose when a necessity arises; and
- C. where it is used partly for Government purposes and partly for the conveyance of an officer's personal servants and effects.

64. When a vehicle is used for the purpose mentioned in (A) above, no charge should be levied. In the case of uses specified in (B) and (C) above, the charges as prescribed by the Government should be levied;

65-A. Vehicle hire charges should be recovered ordinarily by deduction from pay bills in the case of non-gazetted officers. The recoveries affected from bills should be treated as receipts of the department owning the vehicle and the department, which owns the vehicle, will watch the realisation of credit as in the case of other departmental revenues.

- B. The above rules will apply to all cases in which an officer on tour uses a Government vehicle and no exception is made on the ground that the purchase of Government vehicle may have been or may be declared necessary for the use of a particular officer. When such an order is passed, its effect will merely be to give the officer referred to a first call on the vehicle in preference to others and to vest in him the authority to allot the vehicle at his discretion to other officers who may require it for use on tours, when it is not required for his own touring, subject, of course, to the payment of the prescribed hire charges.

66. In order that the vehicle may be available when required, it will ordinarily be necessary for it to return to headquarters at once after taking out an officer's kit.

67. As soon as the journey for which hire is charged is finished, the Reserve Inspector will submit a report to the District Police Office showing the distance run and the amount of hire due so that a bill may be sent to the party concerned.

68. The office will then take steps to collect the amount from the party concerned, credit it into the treasury and intimate the fact to the Reserve Inspector for entry in the Hire Account Register. If, however, hire charges are recovered by deduction in the pay bill of the officer concerned as required by sub-order (812-65-A), the fact will be noted in the last column of Form 166. In the case of Government servants not belonging to this department, the requisition should pass through his pay drawing officer, who should certify that the cost of conveyance will be deducted from the Government servants' salary and remitted to this department.

69. All Reserve Sub-Inspectors and Armed Reserve men, at a minimum number of three men per vehicle including motor cycles, should be taught to drive and be licensed under the Motor Vehicles Act after they have been passed by the Superintendent of Police.

70. For details of maintenance, care and upkeep of vehicles, reference should be made to the "Vehicle Maintenance Guide" issued by the Police Transport Officer. The procedures laid down therein should be strictly complied with.

Cash-Book in Armed Reserves - Maintenance - Instructions

813-1. A cashbook in C.F. No. 119 shall be maintained in all District Reserves. It will be a record of all cash transactions of the Reserve. All moneys received on Government account, whether in cash, cheques, cash orders, DDs remittance transfer receipts or passed bills, which are convertible into cash, shall be brought to account in it.

2. The book shall be in the custody of and maintained by the DSP/RI AR personally. It shall be closed at the end of each day on which there is a transaction and signed by the DSP/RI concerned. The amount of cash on hand should be shown as the last entry for the day on the credit side and brought forward as the first entry of the next day on the debit side.

3. The Company Commanders and Platoon Commanders should render accounts to the concerned DSP/RI every evening for the amounts entrusted to them. When a platoon goes out on duty for a long spell, a temporary cash book will be maintained by the Platoon Commander. The DSP/RI concerned should indicate in the cash book the amounts entrusted to the Platoon Commander and make entries showing the expenditure and balance returned as soon as the platoon returns to headquarters, or within a month, whichever is earlier.

4. On the last working day of the week, one of the Office Superintendents of the DPO, selected by the SP shall check the cash balance and audit the entries in the cash book for the week with reference to the vouchers. The DSP Reserve Police shall scrutinize the cash book and initial it every week.

5. At the end of the month, a detailed balance sheet in Form 34 shall be made out in the cash book. Office Superintendent of the DPO shall check and countersign it. The SP/Addl. SP or AO shall also scrutinize the balance sheet in the course of their examination of the cash book.

6. The instructions in Chapter 13 shall generally apply mutatis mutandis to the maintenance of the cashbook in the District Reserve Police.

Rules Governing the Police Bands in the State

814. The following are the rules regarding the formation and maintenance of bands in the Reserves and elsewhere in the police department.

1. There will be a pipe or brass band in every District Reserve, Special Police Battalion, consisting of at least 16 persons excluding one RSI BM and one ARSI. The ratio of HC to PC in the band should be 1:3. The larger reserves should have a full band of 30 men including bandmaster RI and ARSIs. This strength is provided separately in the Headquarters wing of the Reserve and not as Unit of active company. A Committee of SP and Addl SP shall make the recruitment for this. SP and one officer expert should be nominated by Addl. DGP, Recruitment and Training, to select from open market persons with necessary skills subject to minimum qualification of 10th Standard pass. The relaxations may be given in height and chest and PE test by the DGP after he is found suitable in the specific items of band for which recruitment is made provided he is medically fit as per standards laid down for Reserve Constables. The existing band personnel should be transferred to the Headquarters as and when the sanction for separate band strength is given. They shall undergo full training as reserve Police Constables and subject to all other conditions attached to police force. Non-gazetted officers and Constables of the Units concerned will man it. Units having 12 or more platoons may have both pipe and brass bands.

2. The strength of the band for the District Reserves having more than one active company should not exceed PCs and HCs (16 men), an RSI and one ARSI. The District Reserves having more than two companies may increase the strength proportionately. The bandsmen will be members of the police force and will be governed by the rules applicable to other members of the police force.

3. The band is primarily intended for use at parades, and during police sports and other ceremonial functions of the Government. However private engagements may be accepted from persons, institutions or associations on application to the head of the office, provided it does not interfere with the Government duties, and subject to the conditions that the fees prescribed in sub-order (12) are paid in advance and that the band shall not march on foot in processions.

4. The head of the office will be the sole administrator of the police band and the Band Fund.

5. The RI or RSI/Band Master in charge of the band will act under the orders of the Head of the office in all matters connected with the band and the Fund. The band and the bandsmen will be under his supervision. Where an RSI is in charge of the band it will work under RI Hqrs.

6. The band shall not be detailed for any private engagement without obtaining written orders of the SP. The fees will be paid to the Audit Office Superintendent of the district or unit office, as the case may be, who will make out a voucher showing the name of the person or institution engaging the band, the purpose, the period and the amount collected.

7-A. The Audit Office Superintendent of the District Police Office Unit office shall be the ex-officio Treasurer of the Band Fund. He will maintain a separate cashbook for the Band Fund, wherein all receipts and disbursements of money shall be regularly entered. [He will credit all receipts, as and when received, to the Band Fund Account in any of the nationalised banks in terms of Article 269, APFC, and Vol. I].

B. He shall not withdraw any amount from the Personal Deposit Account or spend any amount available with him in cash without the definite orders in writing of the SP/DCP. He will be responsible for the correct maintenance of the accounts, and shall produce the account books for check by the head of the office or anyone authorised by them whenever there is a transaction and also when the general cashbook of the office is produced.

8. The bandsmen are solely responsible for the proper maintenance and upkeep of their instruments. If an instrument is lost or damaged owing to the carelessness of any bandsmen, he will be held responsible for its replacement or repairs.

9. The Reserve Inspector (QM)/RSI/Band Master is responsible to see that the bandsmen have regular practice. He will inspect the instruments once a week and report any defect or damage immediately to the head of the office.

10. All instruments and spare parts required for the band should ordinarily be purchased from the Band Fund under the orders of the head of the office. In exceptional cases, when there is no amount in the Band Fund, the Zonal IG/DIGP may be addressed for the purchase of any essential instruments or spare parts.

11. A register of band equipment will be maintained, wherein a separate sheet will be set apart for each instrument. The date of purchase, cost, date and cost of repairs and other particulars will be entered in respect of each instrument in the sheet.

12. Private persons, institutions and associations shall be charged at the following rates for the engagement of the band. These fees shall be collected in advance as laid down in sub-order (3). However the Zonal IG/DIGP may use his discretion in granting exemption or half concession in payment of the above fees to Government institutions and bona fide public bodies. In case of private parties no exemption from payment of fees is permissible except that the Zonal IG/DIGP or Commissioner of Police, Hyderabad City or IGP APSP or IGP Training may in certain deserving cases grant 50% concession to the personnel of the Police Department.

A. Brass Band (full band)

- For 3 hours or less Rs.2500
- Each additional hour Rs. 500
- Transport Rs. 300

B. Brass Band (half band)

- For 3 hours or less Rs.1500
- Each additional hour Rs. 300
- Transport Rs. 300

C. Pipe Band (full band)

- For 3 hours or less Rs.1200
- Each additional hour Rs. 300
- Transport Rs. 300

D. Pipe Band (half)

- For 3 hours or less Rs. 800
- Each Rs. 200
- Transport Rs. 300

13-A. "A Band whose strength is not more than 8 may be treated as half band and one whose strength is more than 8 may be treated as full band for the purpose of levying the band charges prescribed above".

B. If the Band is utilized at two points (bride and bridegrooms residence etc.) in the same function the engagement should be treated as one for the collection of Band charges from the parties engaging the Band.

14. The full amounts collected from private parties/institutions/associations shall be remitted by the Audit Office Superintendent to Band Fund, immediately.

15-A. At the end of each month, the Reserve Inspector/RSI (QM) will prepare a list of the bandsmen who rendered service at private engagements during the month and the collections made for these engagements. The list should show the names and full particulars of the bandsmen the number of hours for which each man rendered service on each occasion, the total amount collected for each engagement and the amount recommended by him to each man for each engagement. This should be submitted to the head of the office through the Audit Office Superintendent, who will scrutinize it and make a note regarding the availability of funds in the Band Fund.

B. The head of the office will sanction a suitable share out of these collections for each bandsman. The total of this sanction for each month shall not exceed 50 per cent of the total collections from private engagements during the month. The following shall be the uniform pattern of allotting the amount of 50% of total collections among the various ranks of bandsmen.

Band Master (Inspector rank) 3 shares
ARSI/HC 2 shares
PCs 1 share

16. The Audit Office Superintendent will draw the amount from the bank and deliver to the Reserve Inspector/RSI Hqrs, who will pay the amount to the men on proper acquittance. The acquittance roll will be sent to the Audit Office Superintendent after disbursement. This shall be a voucher for the Band Fund cash book.

17. A register showing the details of all engagements of the band will be maintained in the Form 170 by the Reserve Inspector / Subedar / Band Master and shall be checked at least once a month by the head of the Office.

18-A. A Personal Deposit Account in State Bank of Hyderabad or State Bank of India shall be opened. The head of the office shall sign all cheques.

B. The concerned head of the office shall be the administrator of the Personal Deposit Account and he shall follow the relevant subsidiary rules and instructions under Treasury Rules 10 and 16, APTC, Vol. I governing the personal deposit accounts.

19. The Administrative Officer of the District Police Office or the Unit Office, as the case may be shall audit the Band Fund account every half-year ending 30th September and 31st March and submit a report to the head of the office.

815. The following further instructions in regard to bands should be complied with.

1. The brass bands of Special Reserve/State Reserve Police or CPL and City Police Reserve should cater to all the Government functions in the City.
2. The pipe bands of all districts and the Special Police Battalions will cater to the respective local needs.
3. 50 per cent of the fee collected should be spent on the maintenance of the bands.
4. The cost of the maintenance of the band is also allowed to be met from the police budget.
5. The Police Training College Bands are provided with an annual grant of Rs.10,000 for their maintenance.
6. The Government have authorised the delegation of powers mentioned in column (2) of the table given below to the police officer specified in column (3) thereof, in regard to the purchase and repairs of band equipment.

Description of powers (1)	Limit (2)	Officer to whom the power is delegated (3)
Purchase and repair of band equipment	Full powers subject to availability of funds	SsP, Commandants, SAR CPL and APSP, Principal, PTC and DCP CAR

State Reserve Police - Central Police Lines (SAR-CPL) Amberpet, Hyderabad

816. The provisions of this chapter apply mutatis mutandis to the Special Armed Reserve, Amberpet, but the entire force here will be divided into companies.

1. The State Reserve Police is located at Central Police Lines Amberpet Hyderabad. This Unit is organised on Battalion pattern. Its functions and responsibilities are similar to the District Reserves (refer Order 790) except that this force can be deployed anywhere in the state or outside on the orders of DGP. The control of this force rests with an officer of the rank of an SP/DIGP as determined, who will report to the C.P. Hyderabad.
2. The Unit has certain special features, which include duties connected with arms and ammunition for the state, special bands which include pipe as well as brass band, specially trained staff for protected person's escorts out of the city. This Unit is expected to set a model of organisation, training and functioning of all district reserves. It shall be manned and officered on the same lines as district reserves (with 4 Reserve Inspectors each in charge of Operations, Motor Transport, Quarter Master and Training and Regimental duties. One Addl. Commandant will assist the Superintendent of Police).
3. For the purposes of recruitment this Unit is statewide cadre. The promotion of Constables to Head Constables of this Unit shall be 3:1 to ensure high level of efficiency and professionalism and guidance. However for promotion of HC to ARSI, and above upto the level of RI, this limit is clubbed with City Armed Reserve (CAR-Hqrs.) of Hyderabad City.
4. Special training courses and demonstrations shall be designed and practiced with reference to all important duties of the Reserve in coordination with IGP Training. Training courses will be structured as a basis for the training in the Districts.
5. A special Riot group will be formed, which is trained on the model of Rapid Action Force of Government of India.

Duties of RSIs When Posted outside Special Reserve

817-1. Reserve Sub-Inspectors, besides being employed in Reserves, are also employed in certain towns and at important railway stations.

2. The duties of RSIs employed in towns are, principally, to teach drill and PT, check highway patrols and to assist in keeping order on roads and regulating traffic. An RSI so employed should receive his orders from the SDPO or SHO Inspector but is bound to assist the Station House Officer, when he requests his aid. He shall send a daily report of duty done to the Inspector through the Station House Officer, who will attach it to the general diary of the station.

3. The duties of RSIs at railway stations are to supervise the platform police and assist in preserving order. Here also, the Reserve Sub-Inspector works under the direct orders of the DSRP, and assists the Station House Officer or platform Head Constable when his help is required.

4. He will submit a daily report of duty performed to the Inspector through the Station House Officer, who will attach it to the general diary of the station.

◆ 2015 Police Computer Services & Standardisation, AP Police Department.



Andhra Pradesh Police Department

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CHAPTER 43

RAILWAY POLICE – ORGANIZATION

General Organisation

818. The Railway Police is a branch of the general Police and hence the orders in the Police Manual equally apply to them. Railway Police is organised into 3 districts each headed by a Superintendent of Police. The Inspector General of Police, Railways is the head of the organization in the State and has the same position in respect of Railway Police as that of DIGP/Inspector General of Police of a Zone. The IGP, Railways will report to Additional DGP, CID. Each Railway Police District has Sub-Divisions, Circles, Police Stations and Outposts and is generally organized on the lines of district police subject to such modifications and special provisions in this Chapter.

Role, Functions and Duties

819-1. The role of the Railway Police is to prevent and detect crimes, maintain order, communicate intelligence on criminals, apprehend wanted persons within the Railway limits.

2. The duties of Railway Police are summarized below:

Crime Prevention and Investigation

- A. Arrest, detection and investigation of cognizable offences within the jurisdiction of the railway police;
- B. inquiry and report under Section 132 of the Indian Railways Act;
- C. the prosecution of cognizable offences under IPC, Railway Act and other Acts wherever applicable;
- D. the reporting of all instances of illegal activities including fraud on the part of railway subordinates and others;
- E. traveling in trains where VIPs and other selected officers travel to watch out for suspicious persons,
- F. the entry in prescribed registers and books of offences, reports and complaints of all descriptions brought to the notice of the police;
- G. collection, communication of criminal intelligence, interception and arrest of wanted persons.

Maintenance of Order

- 3-A. control of passenger traffic inside the station premises, more particularly on the platforms, in the booking offices, waiting halls and at the entrance and exit gates, and wherever specially required on emergencies by the station officials;
- B. the control of vehicular and other traffic in the station compound;
- C. the maintenance of order in standing passenger trains, prevention of overcrowding, etc.;
- D. watching loaded passenger trains when standing in stations;

- E. the arrest of those found committing nuisances or suffering from infectious diseases and keeping the station premises clear of idlers and beggars;
- F. the examination of all empty carriages on arrival at terminal stations for property left behind by passengers, and
- G. the removal of bodies of persons dying in the trains and in station premises and conveyance of sick passengers to hospital.
- H. Communicate information of any agitation likely to obstruct movement of trains, destruction of Railway property or installations, to local police and help them to maintain law and order.

820. The jurisdiction of Railway Police extends over the area included within the boundary of the Railway line and covered by Stations, Station Yards, Goods Sheds and Booking Offices (excluding City Booking Offices). This area is called Railway limits. This jurisdiction does not extend to the areas occupied by the residences of the railway staff, parking areas of cycles, cycle rickshaws, animal drawn carriages, and automobiles in and outside the railway limits.

Order of Command during combined operations

821. When the Railway Police and the District Police are on duty together within Railway Police jurisdiction, the senior Police Officer present, whether belonging to the Railway Police or the District Police, will take command of all the police present. If, however, any doubt arises about the relative seniority of the Railway and the District Police Officer, the officer of the Railway Police having jurisdiction will take command.

Organization of Railway Police District

822-1. The RP district has a specified number of sub-divisions, circles and RP stations and outposts. A separate investigation Unit may be organised with its headquarters at the RP district headquarters consisting of investigating teams located at convenient stations. Around seven Police Stations are grouped into a sub-division. A Sub-Inspector is the SHO of the Railway Police Stations. Inspectors as SHOs head the Secunderabad, Vijayawada, Guntakal and Visakhapatnam Police Stations. The Investigating Units located at these four places and Inspectors head other convenient stations. Each Unit has 2 or more teams and other personnel on the pattern of the District Police. The Investigating Teams may, at the discretion of the IGP Railways be located at places other than the headquarters of the Unit. These Units unlike the District Police shall be located in the Railway Police Station Buildings with clearly earmarked space. The Units will have all the facilities and logistic support which an Investigation Unit in the District Police has.

2. The Railway Crime Records Bureau, the District Investigation Squads for special cases will be located at the Headquarters of the RP district and work under the supervision of SRP. The RP districts should utilize the forensic lab and sniffer dog squad located at Hyderabad, Vijayawada and Anantapur whichever is convenient. The bomb disposal squads of the concerned District Police or City Police or CID may be requisitioned when required.

3. Each RP district is provided with one Company of Reserve Police for dealing with emergent duties to maintain order and also for guards and escorts. One Reserve Inspector shall be in charge of these reserves. They are organized as a Company in the manner of a District Reserve. The Motor Transport of the RP District is attached to this Reserve for maintenance as well as for administrative purposes.

4. The Railway Special Branch (RSB) with an Inspector is located in the concerned Headquarters and shall work directly under the SRP.

5. The Railway Police Office with an Administrative Officer as its ministerial head on the same pattern of the DPO, is located in each RP district.

Working of the Railway Police Stations & Investigation Units

823-1. The Railway Police Station staff is divided into two sections, viz., the travelling and detective staff, and the platform staff excluding those required for Police Station duty HC and PCs. There should be rotation of duties every month between the platform staff and the travelling staff. The detective duty personnel in the Police Station are intended to assist the SHO in the investigation of such cases, which the Police Station is authorized to investigate in terms of the Orders below. All other duties shall be performed and records maintained in the same manner as are prescribed for law and order Police Stations of the district including those specifically prescribed for Railway Police in this Chapter.

2. The Investigating Units headed by Inspector and such number of Sub-Inspectors and Head Constables as determined will be responsible for investigation of the cases as contained in the Orders below. The duties connected with investigation of any case

are the same as prescribed for the police in this Manual and shall be complied with in toto.

The Role and Functions of Officers of the Railway Police

824-1. The IGP, Railways, is the head of the Railway Police in the State. His main function is to supervise, monitor and coordinate the functioning of the Railway Police and ensure the efficient performance of duties by them.

2. It shall be his duty to establish close cooperation between the Railway administration, Railway Protection Force State Police and the Railway Police to maintain order, prevent and detect crime on the Railways. He shall have the same powers and duties like inspections and disciplinary powers, which the Zonal IG/DIGP has, in respect of the Railway Police in the State. He should, by constant liaison with his counter parts in other States, work out and implement the schemes for Inter state coordination in matters relating to service of beats, exchange of information and surveillance over wanted persons and investigative assistance wherever required. He should constantly review the facilities, the state of training and the problems of the personnel and take suitable steps. He should be in close touch with SRPs and personally guide them in the matter of maintenance of order and prevention of crime. Liaison shall be maintained with Chief Security Commissioners of the concerned Railways.

Superintendent of Railway Police

3. The SP Railway Police will perform the role, functions and duties including those relating to supervision, Investigation, coordination and management in respect of the Railway Police District as the SP of a District. He shall report to the IGP Railways. He is mainly responsible for prevention of crime in the Railways. He must also ensure for the application of professional methods of investigation besides utilizing scientific aids.

Deputy Superintendent of Railway Police

4. The duties of the DSRPs in respect of the Sub-Divisions are the same as that of DSPs/SDPOs of District.

Inspectors

5. The duties of Inspectors in the Railway Police are similar to those of Inspectors in the District Police. They should maintain good relations with railway officials and local police. They shall take up Investigation in serious crime or accidents and in other cases guide the subordinates by visiting the scenes. They should attend half yearly meeting of District Police Officers.

Sub-Inspectors

6-A. The position and duties of a Railway Police Sub-Inspector correspond to those of a Sub-Inspector of the District Police. He is the Investigating Officer for the specified cases and is responsible for the efficient performance of duties by the personnel of his Police Station.

B. He must acquire local knowledge not only of the employees of the Railway, but also of the criminals residing in his jurisdiction and also those who operate in Railway Limits.

C. He shall personally move on the railway platform at the time of the arrival, halt and departure of Express and Mail and other important trains. This should be done not only at his headquarters, but also at the places of his halt in his jurisdiction outside his headquarters.

D. He shall travel throughout his jurisdiction in the train when the Governor and persons of high position travel in trains/ special trains.

Platform Staff – Reserve Sub-Inspectors

825-1. The duty of Reserve Sub-Inspectors at railway stations is to supervise the platform staff, assist in preserving order and teach PT and drill.

2. Reserve Sub-Inspectors will receive their orders for normal day-to-day duties from the SHO or SDPO and assist the Station House Officer when required. They shall submit a daily report of duty performed. The report should be attached to the general diary.

3. He is responsible for arranging escorts to VIPs according to the instructions received from the Railway Police Office from time to time and to attend all trains in which the VIPs travel.

4. He is responsible for rounding up unauthorized vendors, ticket less travellers and beggars in the station premises.

ASIs and Head Constables

826-1. The platform ASI or Head Constable has to supervise the police personnel on duty on the platform. He should not leave the neighbourhood of the railway station without orders. His duty should be so arranged as to enable him to have three nights off in the week. In his absence, another ASI or Head Constable shall invariably be deputed to work in his place. He is responsible for informing by quickest means any important occurrence to the Sub-Inspector during his absence, unless already done by the Station Writer. He shall be present at the arrival and departure of all important trains.

In-Charge Constable

2. At railway stations where three or more Constables are employed and to which no Head Constable is allotted, a senior Constable shall be appointed to be in-charge and he shall perform the duties of a platform Head Constable. When two Constables are posted to a railway station, the senior will be considered as in-charge.

Duties of the Platform Staff

827-1. The main duties of the platform staff are:-

- A. Maintenance of order at the station and;
- B. watching passenger trains standing at the station;
- C. watch on suspects and wanted criminals;
- D. collection of intelligence on crime and other aspects; and
- E. prevention of thefts and maintenance of order on the platform.

2. Where sufficient platform staff exists, the Inspector into sections shall divide the platform, called posts, which will be numbered. Men will be detailed to these posts and their numbers entered against them in the Duty Roster (Form 171). Men shall move about within the limits of their posts. A plan shall be displayed in the police station showing the limits of each post and specifying the posts to be manned and the timings with duration. The Inspector with reference to train timings will fix the hours of duty. At Railway Police Outposts, a Duty Roster in Form 172 shall be maintained.

Railway Stations with two Constables

828. At railway stations where two Constables are employed, one shall stand near the entrance gate and observe the passengers going out/coming in. the other shall stand on the platform where the rear brake van will halt and, after the arrival of the train, shall move slowly up and down looking into carriages. He shall also watch the offside of the train, crossing the railway line from behind the rear brake van of the train.

Train Beats

829-1. A train beat consists of the train by which a Head Constable or Constable travels. The numbers of the trains which form a beat shall be entered in the duty Roster.

2. Beat Constables shall report themselves at the railway police stations and outposts en route and at the termination of their beats. In all the railway police stations and outposts, there will be a point book and the Beat Constables should sign in this book soon after their reporting at the station or outpost noting therein the train number, the date and also their numbers.

3-A. Relief of beat Constables on trains proceeding beyond the State is done in the manner indicated in the following Table.

Station furnishing beat	Train proceeding towards	Relieved at	Relieved by
(1)	(2)	(3)	(4)
1.Chirala	Chennai	Gudur	GRP, Tamil Nadu
2. Guntur	Hubli	Guntakal	GRP, Karnataka
3. Guntakal	Banglore	Hindupur	GRP, Karnataka

4. Guntakal	Raichur	Raichur	GRP, Karnataka
5. Guntakal	Arkonam/Katpadi	Renigunta	GRP, Tamil Nadu
6. Hyderabad	Mumbai	Wadi	GRP, Karnataka
7. Hyderabad	Manmad (Via Parli)	Bidar	GRP, Karnataka
8. Hyderabad	Manmad (Via Nanded)	Mudhked	GRP, Maharashtra
9. Kazipet	Nagpur	Balarshah	GRP, Maharashtra
10. Visakhapatnam	Howrah (Kolkata)	Barahampur	GRP, Orissa
11. Vizianagaram	Bokaro/Raipur	Rayaghad	GRP, Orissa
12. Noupada	Gunupur	Parlakimidi	GRP, Orissa

B. The policemen so relieved will, in turn, relieve the beats of the bordering Railway Police on the returning trains at the points noted in column (3) of the above table.

C. For Superfast Trains which do not stop between Vijayawada and Chennai and Secunderabad and Bangalore, the RP Stations of Vijayawada and Secunderabad will provide beats from Vijayawada and Secunderabad respectively. The Tamilnadu and Karnataka GRP will provide escorts from Chennai to Vijayawada and Bangalore to Secunderabad respectively. For superfast Trains going to Kerala the relieving point shall be Renigunta.

4. The IGP Railways and Superintendents of Railway Police concerned should, during their meetings with their counterparts, ensure that reciprocal arrangements as made in the Table for the trains or any other New Trains are strictly adhered to by all concerned.

Organization of Train Beats and Station Patrols – Instructions

830-1. There are certain obvious handicaps in the detection of Railway crime. Offences committed in trains are, generally, discovered by victims many kilometres from the place of occurrence and the investigator, too, has generally no means of ascertaining the exact scene. That is why many of the cases end in detection only when they are caught red-handed. It is therefore necessary that preventive methods like efficient beats and patrols are undertaken.

2. The SsRP during their monthly visits to station must ensure that the beats are well organised to cover most crime prone trains and they are checked frequently by SHOs, Inspectors and SDPOs.

3. The bulk of the crime on railways consists of:-

- A. thefts in running passenger trains
- B. thefts on platforms, in passenger sheds and stationary trains
- C. thefts on running goods trains
- D. thefts from goods sheds and stationary wagons, and
- E. thefts of railway materials

4. Thefts in passenger trains are committed either by individuals or by organised gangs. Individuals escape by committing theft of bag and baggage. Organised gangs board the trains at station during nights, rob the passenger by show of force and get down with the booty by pulling the chains. Some times culprits stand waiting at the windows for the train to move and snatch chains from the necks of ladies sitting by the side of window. The following instructions should be complied with for prevention and detection:

A. Acquaint thoroughly with details including identification particulars, modus operandi of the old offenders and look for them in the train or platform.

B. Some of the indicators to identify an unknown person, whether local or non-local, who is likely to commit offences are given below. While any one of these may not by itself be sufficient always to spot old or likely offenders, these coupled with proper observation will enable the police to nab suspicious persons, thereby preventing platform or passenger train thefts.

- Persons loitering on the platforms and trains under suspicious circumstances,
- Not having any hand baggage or a ticket,
- Having a ticket without reservation,
- A person unaccompanied by family or others,
- A person observing other passengers or avoiding police or Railway staff,
- Inability to answer normal queries and prevarication,

- Resemblance to photographs of wanted persons circulated in CIG, press or media;
- A person answering the description of wanted persons

C. When the doubts entertained about such persons are confirmed or not fully cleared they may be arrested under section 41 or 42 Cr.P.C.

D. The locking of reserved compartments is the responsibility of Railway staff, Ensure that they discharge this important duty.

E. Enlist cooperation of traveling Railway staff particularly TTE, Attendants, Catering staff and others in reporting of any suspicion on any one.

F. Beat constables should be moving about on platforms and waiting rooms watching out for suspicious persons.

5. There should be a beat in the station premises half an hour before and after the arrival and departure of a passenger train. Patrolling on the platform through out night where passengers sleep should be organised. Platform beats should be intense on crime prone railway stations.

6. Thefts can be prevented effectively from running goods trains, goods sheds and stationary wagons by studying crime prone areas and by GRP combinedly working with RPF in guarding, patrolling the above places. Where there is likelihood of armed attack, co-ordinated action by Local Police, Railway Police and RPF is necessary.

831-1. Railway PCs shall be detailed for travelling duty by rotation and kept on that duty for a calendar month at a time. The travelling staff must be kept up to required strength even at the expense if necessary, of the platform staff. Transfers from the travelling staff will be by a District Order. The police have a duty to watch Railway Stations for suspicious strangers. Where the Railway Police is unable to spare a Constable or two to a Railway Station, which is likely to be crime prone, or rendezvous of criminals, arrangements should be specifically made with local police by SHO and SDPO.

2. Personnel of the traveling staff are as a rule, to be exempted from travelling every third day. On such days they shall perform platform duty, if they are not otherwise detailed.

Duties of Beat Constables

832-1. Beat Constables while on beat duty shall be in uniform. At every station they should contact the station master and ascertain from him whether he wishes to make any report or complaint and whenever time permits they shall patrol from one end to the other of the train watching out for suspicious persons carefully all along. At important specified stations where there are point books, the beat Constables should sign these point books recording therein the train number, the date and also their names, numbers and station. They should also note in their beat book (Form 173) the page number and the serial number of the point book wherein they have signed. On returning from the beat, they shall return the beat book to the officer in charge of the station.

2. As an additional precaution, the railway Guard should be required to inform the travelling Beat Constable by writing in his Beat Book, the train number, the date and the number of each carriage in which accommodation is reserved only for women. The Beat Constable will be required to keep a watch on the compartment reserved for women. He should maintain a watch at each halting place, particularly to ensure that no one is travelling on foot boards or couplings of such carriages. Whether these duties would require an increase in the strength will be determined by the circumstances existing from time to time. Both the train guard and travelling beat Constable shall be jointly held responsible for compliance of this Order.

Plain Clothes Officers

3. In addition to Beat Constables, Police Officers in plain clothes may be employed to travel by train on detective duty, such as shadowing suspects. The SHO or IO should brief them clearly and personally.

Railway Protection Force

833. The Railway Police are not responsible for watch and ward duties, but they should patrol station yards and goods shed. The Railway Protection Force is intended to safeguard all railway property and property carried by railways excluding the passengers' luggage. All watch and ward duties are performed by RPF.

Urgent Communication of Important Offences

834-1. All cognizable cases, serious losses of property, all offences falling under Section 150 of the Railways Act, and other important occurrences reported outside Railway Stations but within railway premises shall be telegraphed, informed by

telephone or by Radio communication at once by the senior member of the platform staff or the Beat Constable to the Station House Officer of the Railway Police Station of the section and also to the nearest L&O Police Station House Officer and to the Superintendent, Railway Police. The descriptive particulars of the property should also be telegraphed and informed to all Railway Police Stations on the line and connecting lines.

2. When the SHO is absent from his headquarters, all reports of the above nature received in the station shall be telegraphed or informed over telephone or by Radio communication to him.

3-A. SHOs shall inform by telegram, fax or RM serious cases and occurrences to the Inspector, Sub-divisional Officer concerned and Superintendent, Railway Police.

B. All grave crimes and offences under sections 150 and 151 of the Railways Act and strikes including hunger strikes, bundhs or attempted strikes of Railway employees shall also be reported by telegram, fax/RM, telephone or express report to the CP/SP of their district and District Magistrate having jurisdiction.

C. The offences under section 152 of the Railways Act, may be treated as minor offences and no report need be sent. However, offences u/s 151 and 152 of the Railways Act committed by any political party or in an organized manner with a motive to wreck the train and causing damage to a train or hurt a person should be reported to DGP and all officers as in cases of specially grave nature immediately by wireless/fax followed by detailed reports.

4. Telegrams concerning railway cases shall be sent "On Railway Service" and other telegrams as "State messages". Where there is a police radio station, reports should be sent by police radio and not as State telegrams.

Investigation of Cases

835. The Railway Police shall investigate cases like local police under Chapter 12 of Cr.P.C.

1. When a passenger sends a report or a telegram to the en-route railway police station after reaching his destination, SHO on finding its authenticity, should register a case without insisting on the presence of the complainant if the contents of the report/telegram reveal the commission of a cognizable offence.

2. The sub divisional police officer (DSRP) will transfer important cases registered at the Railway Police Station to the investigation units, there by the Inspector or investigation unit will take up investigation of such cases in the same way as if they are reported to them directly. Besides this, the investigation unit also shall register cases independently when they are directly reported to them and investigate. He is directly responsible to the DSRP of the jurisdiction for his investigation.

Case diaries

836. The writing and maintenance of case diaries for the investigation of cases is the same as provided under chapter 12 of Cr.P.C. The investigating officers whether of Railway Police Station or of investigation unit shall maintain the case diaries and send them regularly to the inspectors and SDPOs for their perusal, guidance and supervision.

Personal Investigation by DSRP

837-1. The DSRP shall at once proceed to the scene of occurrence of crime and conduct the investigation on receiving the report of any case coming under Section 150 of the Railways Act, which involves danger to human life.

G.O.519, Judl. 22-3-1902, G.O.221, Pub. (Pol) 20-4-1932

2. He shall also send a copy of the grave crime report of his investigation to the concerned District Magistrate besides to the SRP/IGP Railways.

3. Such cases shall be thoroughly investigated from all angles with the cooperation of the District Police and others.

4. The instructions relating to investigation of any case given in this Manual in various Chapters apply to the investigations by Railways. In the case of Railway Accidents accompanied by loss of human life the steps and measures should be taken as given in Order No. 854-1.

838 For efficient discharge of duties, the Railway Police require the following facilities:-

1. Police Stations, Outposts, Investigation Units should be located on the platform of the main Railway Station building at a convenient spot.
2. For on the spot registration of cases, arrests of accused, and for taking up investigation immediately where possible mobile police stations are arranged. In the absence of such arrangements, facility must be provided to receive reports and pass on to the nearest Railway Police Station. Mobile Police station is being arranged in all important passenger trains with sufficient staff including beat. Accommodation should be earmarked accordingly.
3. The office accommodation for supervisory officers should be provided near the Railway Stations.
4. The Police Stations, Investigation Units and supervisory officers should be linked with the Railway Communication Network.
5. The number of duty passes should be calculated in such a manner as to enable travel of the staff of Police Stations and Investigation Units without inconvenience.
6. These facilities, which are the minimum to be laid down by the government provided by the Railway authorities without fail. SsRP and IGP Railways should prevail on Railway authorities to provide these.

Telegraphic Complaints by Railway Officials

839. In the matter of complaints or information reported by railway officials by telegram, the telegram shall be confirmed by a further report in writing.

Complaints by Railway Officials

840-1. Separate entries either in separate registers or in different parts of the same register (Form 174) will be made for

- A. shortages of goods or parcels
- B. shortages or loss of railway materials, and
- C. loss of property of passengers

2. Entries in classification (i) will clearly distinguish whether the shortage or loss occurred in a stationary wagon, a wagon in transit or from a transshipment shed or platform. When making entries in the register, care should be taken to note in column 10 whether a report against any railway official was sent to the railway authorities and the action taken by them thereon.

3. The Station House Officer can himself dispose of any case of shortage or loss amounting to a maximum of Rs.500/-. The orders of the Sub-divisional Officer should be taken where the value exceeds Rs.500/-.

4. Particular attention will be paid by inspecting officers with regard to the action taken and enquiries made by the SHO in regard to such shortages and losses.

5. The register will include reports which the Station House Officer transfers to another jurisdiction. He should state his reason for such action and the Inspector must ratify this.

Nuisances

841. All nuisances committed within railway limits and all violations of Special and Local Laws including relevant Police Acts occurring in Railway Police Limits should be handled by the Railway Police in the same manner as law and order Police.

Petty Thefts

842. Care must be exercised in the matter of refusing to investigate petty thefts on the ground of the small value of the articles stolen. The theft of an important piece of mechanism, though of small intrinsic value, may amount to a grave offence under the Railways Act.

Custody of Prisoners

843. At Railway Police stations where there is no lock-up, prisoners who are not immediately sent for remand shall be sent to the nearest district or city police station for custody. The hour at which a prisoner is thus sent shall be entered in column 6 of the Search Register. The latter will provide the guard for the Railway Police prisoners in district police lock-up.

Copy of Inquest Report to be sent to Railway Officials

844. In cases of death within railway limits, whether by a railway accident or otherwise, in which an investigation is held under Section 174 of the Code of Criminal Procedure, an extract of the investigation report in Form 175, 176 and 177 shall be forwarded to the Divisional Engineer in all cases, and the Divisional Operating Manager, in cases occurring within the limits of a railway station, if requested by him. In the event of the investigation having been held by the district police, a copy of the report shall be obtained from them.

Disposal of Bodies

845. The Railway Police shall take steps to hand over the body of any person who has been killed or who died within

G.O.Ms.No. 2547, Home (Pol-C), dt. 23-9-1955

the Railway limits to his relatives or if for any reason that is not possible, to any friend of the deceased, or to the member of any society or institution willing to perform the last rites for such persons. If none of these agencies undertake the task, the railway police shall be responsible for the burial or cremation in a proper manner and in accordance with the nationality and religion of the deceased and the cost defrayed by the Superintendent, Railway Police, from contingent charges under appropriate head.

Station Crime History

846. To facilitate the study of crime and criminals, the Station Crime History will be maintained in all stations in five parts as prescribed below. The Station Crime History is a confidential record.

Part-1: Crime, Occurrence and Classification Register

1. All true crimes and attempts coming within the classification given below shall be entered in Part I (Form 178) of Station Crime History chronologically. Additional classes of crime will be included only with the sanction of the Addl. DGP CID.

Classes of Crime

I. Thefts in running passenger trains

- (a) Pocket picking
- (b) Jewel snatching
- (c) Personal effects, in upper class
- (d) Personal effects, in lower class
- (e) Mails
- (f) Luggage van

II. Thefts in passenger sheds, stationary trains and on platforms.

- (a) Pocket picking
- (b) Jewel snatching
- (c) Luggage
- (d) From stationary trains, upper class
- (e) From stationary trains, lower class

III. Thefts from running goods trains

- (a) Of whole consignments
- (b) By extraction

IV. Thefts in yards and stationary wagons

- (a) Of unshipped consignments
- (b) During loading
- (c) By extraction
- (d) From sealed wagons

V. Thefts in goods shed and parcel offices

- (a) Of whole consignments
- (b) By extraction

VI. Thefts of railway material

- (a) Iron material from the track and yard
- (b) Stationery stores
- (c) Coal thefts
- (d) Carriage fittings
- (e) Dynamo belts
- (f) Electric Bulbs
- (g) Miscellaneous

VII. Miscellaneous thefts

- (a) Bicycles
- (b) Other articles

VIII. Murder for gain, dacoity and robbery

IX. Drugging or poisoning for the purpose of committing theft, looting, robbery and dacoity.

X. House - breaking

XI. Receiving stolen property

- (a) Consignments
- (b) Personal effects
- (c) Railway materials

XII. Cheating

- (a) By sale of tickets
- (b) Confidence trick
- (c) False personation

XIII. Counterfeit coin and currency notes

XIV. Indian Railways Act

- (a) Section 150
- (b) Section 151
- (c) Section 152

2. Entry in column 4 should be brief, clear and include all classifications that are covered by the offence.

3. In column 7 all the useful information and facts discovered during the investigation, including the names of the known or suspected, accused with grounds for suspicion, peculiarities in the commission of the offence, and the result of the investigation shall be entered. The names of old offenders in railway offences shall be underlined quoting the relevant records.

4. At the close of each year, the Inspector shall enter an analytical review of crime and formulate a programme for prevention and detection during the ensuing year. The Sub-divisional Officer will approve this review before the end of January of the next year and before it is entered in Part-I of the Station Crime History.

5. A FIR Index (Form 96) will be kept. In the remarks column cross reference to all other records should be given.

Part II – Crime Charts

847. A Crime chart will be maintained in every Railway Police Station in the same way as in local police station. Figures and letters as shown in Order 846 will chart the modus operandi classification of crime. For example, a case of pocket picking in a running train on 5th March, 2002 will be shown as 1(a) on the crime chart for 2002 at the place where it has occurred, or believed to have occurred.

Station Crime History – Part III

848-1. Part III of the Station Crime History shall be in Form 77. The names of the following persons shall be entered in

G.O.Ms. 2133, Home, 1-9-1943.

the register, provided the offence is in connection with the railway or in railway premises and also those persons listed in order No.848-1-G in whose case orders for the retention of finger prints have been passed by the Superintendent of police.

- A. Persons convicted of offences under Chapters XII and XVII of the Indian Penal Code of which a punishment of three years or upwards is prescribed.
- B. Persons convicted of offences under sections 498-A to 498-D of the Indian Penal Code (forgery of currency notes and bank notes).
- C. Persons notified under the Habitual Offenders Act, 1948, convicted under section 12 of the Act and of any of the offences narrated in the schedule to the said Act.
- D. Persons bound over under Sections 109 or 110 Cr.P.C.
- E. Persons convicted under Sections 150, 151 and 152 of the IR Act.
- F. Persons convicted under the Railway Stores (Unlawful Possession) Act, 1955, and Telegraph Wires (Unlawful Possession) Act, 1950.
- G. Unconvicted persons reasonably suspected to have committed offences with particulars of offence, selected for inclusion with the approval of a gazetted officer. These shall be retained only so long as reasonable suspicion exists against them.

2. This register will contain convictions in cases registered at the station and of persons living in the station local area convicted of offences on the railways elsewhere. If a conviction is reversed on appeal, the entry should be crossed out unless the person is brought under clause (g) of sub-order (I). In the "Remarks" column of the form shall be entered a broad classification (as specified in Order 846) of the crime committed by the criminal.

3. The names of persons registered in Part-III shall be struck off after a period of ten years from the expiry of their last sentence undergone, or if History Sheets opened for any one of them have been discontinued. Inspectors may effect the removal. A gazetted officer may, however, sanction the removal of names at any time within the period mentioned above, if the retention of such names is considered unnecessary.

4. Convicted and unconvicted persons not removed from Part III shall be enquired about frequently. The Station House Officer must make detailed enquiries about them at least once a year.

Part IV – General Information

849-1. The Station Crime History, Part-IV, will contain general information. It will be kept in loose sheet forms, with appropriate headings, as detailed below.

- A. Extent of station jurisdiction, quoting actual distance and a list of railway stations in the jurisdiction, giving actual mileage and code name of each station.
- B. Plan of the railway line in the station jurisdiction showing railway stations and important bridges with distance in each case.
- C. Local police station and district in which each railway station lays.
- D. Magistrates, noting against each his headquarters and his jurisdiction as far as the railway police are concerned.

E. List of festivals, their probable dates and duration, and the strength required for each, and any special precautions necessary.

F. List of weekly markets, commodities sold, the nearest railway station and the average number of passengers alighting there.

G. A note on the Railway Protection Force staff.

H. Notes on important disputes which may cause interference with the running of the railway. These should include all labour disputes and special note on any friction or dispute among the subordinates of the railway.

I. A register of ex-convicts containing the names of all railway criminals residing within eight KM radius of the railway police station jurisdiction will also be maintained by every railway police station.

J. A list of dismissed railway employees and members of political parties and criminal gangs likely to indulge in acts of sabotage.

2. This register should in fact contain a summary of such information as will be useful to a new Sub-Inspector taking charge of the station.

3. All entries in this record should be edited, signed and dated by the Inspector. Only the station copy of the record is to be maintained. The Inspector will not maintain a copy with his circle records but will summarise all important points in his Circle Information Book as is done by the Circle Inspectors in districts.

Part V – History Sheets

850-1. Part V consists of history sheets (Form 79) of persons residing permanently or temporarily in the station local area, who are known or believed to be addicted to or to aid or abet the commission of crime on the railway, whether convicted or not, or who are believed to be habitual receivers of property stolen in offences committed on the railway.

2. The opening and closing of history sheets will be governed by the orders for the local Police contained in the Chapter 33.

3-A. The Railway Crime Records Bureau will maintain dossiers for selected criminals of special importance who operate over an extended area. These persons will be known as railway dossier criminals. The SRP, will decide as to who should be registered as Railway Dossier Criminals.

B. The instructions regarding the reporting of the activities and movements of District Dossier Criminals apply equally to Railway Dossier Criminals. The SHO is responsible for reporting to the RCRB particulars of arrest, conviction, release from jail, passing out of view, conduct and movements and any other information likely to be of use or of general interest, in respect of every RDC for whom a history sheet is maintained in his station and any other RDC about whom he may obtain information on the points specified.

4. For a criminal, who has a history sheet in a railway police station, a history sheet will also be maintained in the L&O Police Station in the jurisdiction of which he resides. Such sheets will be marked with a red “R” and below it will be noted the name of the Railway Police Station and history sheet number -

R
Kazipet – 11

The Railway Police Station sheet will be marked similarly with a letter “L”, e.g.

L
Kazipet – 15

Local and Railway Police SHOs will report to each other information of arrest, conviction and all other matters of interest in respect of such persons.

5. A list of ex-convicts and KDs shall be maintained in every RPS.

Volume and page number of	Name, Father's name, Village Police Station of the convict or suspect	Crime Number
Part – I Part – III		

(1)

(2)

(3)

(4)

6. Name index of criminals: An alphabetical name index of persons entered in Part III.

Cooperation and Coordination

851. For prevention and detection of crime and for maintenance of order in Railways the co-operation and co-ordination between Railway police, local police, Railway protection force, Railway administration and State Government is necessary. The following are some of the guidelines to achieve such co-operation.

Cooperation with the District Police

1-A. There should be the closest cooperation between the District and Railway Police.

B. The Railway Police should assist the local police in arresting escaping offenders, and also informing the movements of criminals.

C. In matters of placing obstructions on the line, tearing lines, stone throwing at trains, and the like, the help of the local Police should be promptly sought.

D. In the event of crime being committed in the limits of the local Police, but in the close neighbourhood of the Railway, the Railway Police shall take the necessary legal action pending the arrival of the local Police.

E. The SRP may require the local Police to take over the entire responsibility for the investigation of a grave crime, such as murder or dacoity, the circumstances of which are of a local nature quite unconnected with the railway, even though the case occurred within the jurisdiction of the Railway Police. On his requisition, the local Police shall at once take over the investigation.

F. In the event of a strike on the railway the local police will deal with the offence arising out of strike while the Railway police will be performing their normal duties dealing with ordinary offences.

G. The Sub-Divisional Police Officers of the local Police should call on the SRP if he is camping in the district and when the DSsRP are on tour they should call on the SsP.

H. When a cognizable crime outside the jurisdiction is reported to the SHO of RP Station, he should register and transfer to the local police and take such steps as necessary pending arrival of the local police.

Procedure in cases of Theft of Materials from Railway Track

2-A. As soon as theft takes place from the railway track or premises, the railway authorities will send immediate intimation not only to the RPS having jurisdiction but also to the local Police. This is necessary because very often such thefts occur at considerable distances from the RPS. It is necessary that immediate local enquiries should be made in the area, pending the arrival of the Railway Police Officers on the scene.

B. When the cases are reported or come to the notice, the Railway Police shall register and investigate such cases and shall be wholly responsible for all further action in the matter.

C. The local Police SHO or Investigation Unit, on receipt of the intimation from the railway authorities, shall enter it in their respective Station General Diaries and cause local enquiries to be made in their jurisdiction regarding the possible culprits and the disposal of the property. They shall also render the Railway Police such assistance as may be necessary from time to time in the investigation of the case.

D. Thefts of materials in railway station yards and goods yards will be reported to the RPS having jurisdiction. The Railway Police can always call on the local police for such assistance as may be necessary, from time to time, in respect of these cases.

E. A complaint of theft or loss may be accepted for registration and investigation at the first RPS at which a theft on a running train or from railway premises is reported and then if the scene of offence is definitely located to be under the jurisdiction of some other police station, the case may be transferred promptly to that police station. Otherwise, the police station at which the case is first registered shall pursue the case to its end.

Steps to minimize thefts on the Railways

3-A. Frequent surprise checks of local criminals and receivers of stolen property and constant watch by the Railway Police over their movements, especially in the vicinity of railway premises. The help of local Police who may have a better knowledge of local criminals should be obtained.

B. The local police in whose limits a criminal resides should open a history sheet if one is opened for such person in RP station. If he is absent from his residence, all RP stations where he is likely to operate should be informed and the local SHO should be in touch with those RP stations by communication and personal meetings.

C. Meetings between SP of a District/CP attended by all RP officers having jurisdiction should be held once in six months. At these meetings, every offence reported subsequent to the previous meeting, ways and means of improving the prevention and detection of crime, with particular reference to crime-prone areas should be discussed.

D. In crimes suspected to be the work of habitual criminals, a crime card shall be sent to all neighbouring police stations, Inspector, Investigation Unit, the SDPO and the Railway Crime Records Bureau. If offenders are outsiders information by quickest available means should also be sent to the neighbouring local Police Stations, Investigation Units, and RP SIs. SHOs and Investigation Units, who receive information, whether by crime card or by other means, should immediately institute necessary enquiries and promptly report the result. SHOs are responsible for the prompt circulation of lists of property lost and description of absconding offenders to stations where they are likely to be found.

E. Offences on railway lines, such as thefts of sleepers, fishplates, and dog spikes, are common. Most of these materials are useful in preparing agricultural implements or for sale to scrap dealers. Contact with local blacksmiths and close touch with village police, Beat Police and good set of informants will help in detection of these offences. Some of the cases of this type might be the mischief committed by cattle boys or others, not knowing their seriousness. The local people should be made aware of consequences of such incidences by proper publicity and education by both local Police and Railway Police together.

F. Thieves may get down with the stolen property from the running train en route and try to dispose of the property with known receiver in the nearest town. Information giving the details and description of the property lost should be sent to the Railway police station and local police stations to look out for such persons.

Coordination with Railway Protection Force

4-A. The SHO of every Railway Police Station shall hold every month a coordination meeting with the officers in charge of the RPF Posts in his jurisdiction to review crime situation and to exchange information for effective control, prevention and detection of crimes and maintenance of law and order in the railway limits. Minutes containing the summary of discussions, information exchanged, decisions taken and follow up action taken on the last meeting shall be drawn up and submitted to the Sub-Divisional Officer with copies to the concerned officers in charge of the RPF Posts.

B. The SRP and the SDPOs should hold once in two months such meetings with their counterparts in RPF and draw proceedings and send them to the IGP Railways.

Coordination with Railway Administration

5-A. Coordination meetings should be held at the Railway Divisional level with Divisional Railway Managers and other officers in the manner indicated in the Order 57 of Chapter 3 of this Manual.

92-Sec. Spl./ 200/96, dated 13.7.93 of Railway Board.

B. A zonal level coordination meeting has to be held once in 6 months under the Chairmanship of the General Manager, South Central Railway in which Addl. DGP CID, Addl. DGP L&O IGP Railways, Superintendents of Railway Police, Chief Security Commissioner, Divisional Railway Managers and Divisional Security Commissioners should participate. All matters concerning crime, law and order as also the difficulties and problems may be discussed and appropriate decisions taken. The Chief Security Commissioner of South Central Railway is the convener of this meeting.

Coordination with State Government

G.O.Ms. No. 558, dated 27.9.84 of Home (Pol.D), A.P.

6. A Standing Committee with the Chief Secretary to Government as Chairman has been formed to ensure coordinated working of the Railways and the State Government for prevention of crime in Railways. The Committee consists of the Chairman, the Home Secretary, DGP, IGP Railways (Convener), General Managers and Chief Security Commissioners of SCR, SER and SR as members. The Committee meets once in a year preferably in the first quarter of the year. The IGP, Railways shall prepare all items of the agenda and after approval by the Director General of Police circulate the minutes of the meeting and also take follow up action.

Coordination with neighbouring States

7. The Railway Police Officers from SHO up to the IGP level in Railways shall meet their counterparts in the neighbouring states as often as possible with a view to sort out all problems particularly in relation to prevention and detection of crime and movement of criminals and a relief of beats, escorts and patrols at mutually convenient points.

Stopping of Trains at non-stopping Stations

G.Os 19, Rlys. P.W. 14.3.1932 & 593, Pub. (Pol.) 31.10.1932

8. In special and urgent cases, a police officer of the gazetted rank may, by written requisition to the concerned local railway official, cause a train to be stopped at a station at which it is not scheduled to stop either to effect an arrest or to safeguard the public peace and safety.

Accidents on Railways Notice of accidents to the Police

852-1. Under Section 113 of the Railways Act 1989 and the rules made by the Government of India under Section 122, the station master nearest to the place at which the accident has occurred, or where, there is no station master, the railway servant in-charge of the section of the railway on which the accident has occurred, is bound to give information about the following accidents without unnecessary delay to the Station House Officer, in whose limits the accident occurred, and to the District Magistrate, the Superintendent of Police and the Superintendent of Railway Police. Government of India has made rules in this regard and circulated it widely.

- A. Any accident attended with loss of human life, or with grievous hurt as defined in the Indian Penal Code, or with serious injury to property;
- B. any collision between trains of which one is a train carrying passengers;
- C. the derailment of any train carrying passengers or of any part of such a train;
- D. any accident of a description usually attended with loss of human life or with such grievous hurt as aforesaid or with serious injury to property; and
- E. any accident of any other description, which the Central Government may notify in this behalf in the Official Gazette.

Accidents on private sidings:

2. Section 113 of the Indian Railways Act and the rules framed under Section 122 of the Act apply also to accidents on private sidings. Accidents occurring on such sidings should be reported in the same way as accidents occurring on main lines.

Duties of Police in connection with accidents on the railways

853-1. The duties of the Police in connection with accidents on the railways are laid down in rules 28 to 33 of the Rules made by the Government of India under Section 122 of the Railways Act 1989.

Mobilization in cases of accidents

2. On the occurrence of a serious accident, the SHO of the Railway Police shall mobilize staff of the station and take them to the spot with utmost expedition. If the staff of one station is insufficient, the SDPO shall mobilize the strength from other stations also. The Railway Police shall guard property and help injured persons. The local Police shall send police parties to the spot to assist the Railway Police in guarding property and helping the injured. Both the Railway Police and the local Police should send as many Head Constables as possible to the accident spot to assist the DSRP particularly for holding inquests in cases where there are large numbers of deaths.

Reports of accidents, injury and death

3. All cases of accident, injury and death occurring on the railway shall be recorded by the SHO in the general diary and by the DSRP in their diary.

Investigation and Prosecution in Railway Accidents

Scene of Occurrence

854-1. A close examination of the scene gives clues to the cause of accident. The scene must be guarded as far as possible undisturbed to protect from offenders concealing evidence of negligence or other defects. Steps must be taken to restore the track, moving the injured to hospital, completion of inquests on dead bodies. Following steps are necessary to secure the scene undisturbed during investigation.

- A. Make arrangements to see that as many Head Constables, ASIs and SIs are available at the spot.
- B. Assign holding of Inquest to as many SIs, HCs, as possible including L&O Police or Local Investigating Units.
- C. Direct Local Police and RP Station to shift injured to hospital if already not done by others. If they are already sent to hospital send either the local Police SI or HC to examine the injured in the hospital and report.
- D. Ask the photographer attached to the Investigating Team to take photographs and videograph in the prescribed manner indicating additional points if any.
- E. Depute a small team particularly those who are good at observation to examine the track on both ends of the scene and sides for some distance and locate the possible exact spot from where the derailment started. Photograph and collect all material observed and available. If, for example, nuts and bolts are found lying, collect them and also collect the other nuts and bolts still remaining unfastened or partially unfastened or damaged from near the place where the earlier ones are collected. Also collect control sample of earth. Any pieces of the Engine, wheels, fittings or any object for that matter including ballast pieces, which have any clue, should be collected. It may not be possible to list all items, which may be collected, as it depends on the circumstances of each case.
- F. Personally go over the whole scene and study the reports being given from time to time by the staff deputed. Set up a camp office near the scene or a convenient place from where Investigation can be directed. The spot should be near the same spot where other senior officers like SRP or IGP, Zonal IGP/DIGP etc. have set up a control center for directing operations.
- G. Requisition and ensure Inspection by expert from Forensic Science Laboratory or other expert body through the Director, FSL.
- H. Examine all witnesses including Railway officials and informant of the accident at the spot by detailing teams if number is too large. The entire Railway staff on the train including the driver and of the neighbouring stations should be examined. The local people who first come to the spot should also be examined besides any other relevant witness.
- I. The damages caused to the track, carriages and the exact scene as it looks from its observation giving distances etc. should be noted.
- J. A sketch should be drawn up containing IO's observations.
- K. After the staff deputed on various assignments have given their reports, the scene has been completely examined, Inquests completed, injured sent to hospital and available witnesses examined, clearance should be given for track restoration and clearing of debris. Unlike other cases where there may be some time available, Railway accidents do not admit of any delay in the matter of track restoration except to the extent absolutely necessary. The officers who have been given different assignments may be returned to their other work after they have submitted their reports.

Enquiry by Chief Commissioner/Commissioner of Railway Safety

2-A. The Commissioner of Railway Safety is the statutory authority according to Chapter 12 of the Railway Act to inquire into the cause of accident. His opinion is in the nature of an expert on the cause of accident just as a PM certificate or MVIs certificate in Motor accidents. It is therefore necessary that SRP/DSRP should furnish full and correct details. The SRP may seek any clarification from the enquiry report since the opinion in the report is vital. Prosecution may be launched only after receiving the Commissioner report.

B. A copy of the findings of the Commissioner for Safety will be sent to the Superintendent, Railway Police, within seven days of its receipt by the General Manager. The Superintendent Railway Police, will consider the report and inform the General Manager, within seven days, whether or not a prosecution is to be launched. In considering the report the SP, Railways or SP CID concerned who is entrusted with investigation should ask the team of investigators to go through the report and take their opinion into consideration.

C. After investigation is completed the process of consultation with APP/LA should be started and decision taken.

D. The Addl. DGP CID is the authority to pass final orders on the cases of Railway Accidents with loss of life.

Miscellaneous Instructions

Unclaimed Property

855-1. Unclaimed property should be made over to the stationmaster for disposal. If, however, the unclaimed property consists of arms, ammunition, explosives, intoxicating liquor, opium and its preparations or hemp drugs, the sale of which by unlicensed persons is prohibited by law, it should not be made over to the station master for disposal, but should be disposed off by the Railway Police themselves in the manner provided in the Relevant Acts and Rules.

Railway Servants as Witnesses

2. When railway subordinates are bound over by the police to appear as witnesses, the Divisional Officer of the department concerned should be informed so that he could arrange for their relief.

Railway Police not to purchase tickets for passengers

3. The Railway Police are strictly prohibited from purchasing or selling tickets, collection of excess fare or checking ticket less travellers.

Watching of Criminals

4. It is the duty of the Railway Police to carefully watch the travelling public and spot out suspects, anti social elements, terrorists, criminals, and pass on information about their movement to the concerned police station or department for appropriate action. In case of need they may go to the extent of arresting these people and handing them over to the concerned. Professionalism and skill is required in performing such jobs.

Festivals

5. As laid down in Order 849, a list of festivals held near the railway line, with details of the police arrangements to be made should be kept in every Railway Police Station. In the event of any festival or large gathering not included in the list being held, the SHO should give timely information to the Superintendent, Railway Police.

Railway Strike

6. In the event of a railway strike, the whole or part of the Railway Protection Scheme should be put into operation by the Superintendent Railway Police, after obtaining the orders of the Director General of Police.

Drill and Instructions

856-1. Platform Constables at outstations should be changed at least once a week.

2. Hours of drill and instruction, which should necessarily depend upon train timings, should be specified by the SHO and displayed in each Police Station. The instructions, catechism and on-job training of the personnel should be imparted in the same manner as specified for the law and order Police.

Rules for the use and custody of arms

857-1. The arms in the Police Stations will be kept secured to an arms rack by means of a chain fastened with a lock, and be under the charge of the Sub-Inspector or other officer in-charge of the Station in his absence. Station sentries or those posted for Station watch will keep the key and be responsible for the arms during their respective spell of duty. The ammunition will be kept in a locked ammunition box, with the key being kept by the station sentry. The Sub-Inspector or the officer in charge of the Station, in his absence, will be responsible for the correctness of ammunition. The ammunition may be issued as per the need and requirements by the SHO.

2. HCs and PCs will be armed with rifles on such occasions as may be prescribed by the SRP, but the SHO may direct rifles to be used in any emergency or for the following purpose:

- A. patrolling station yards, goods sheds, transship sheds and yards,
- B. escorting running goods train, and
- C. escorting prisoners.

Journeys by train of the Governor and persons of high position

858-1. When the Governor of this State or any other State or the wife of a Governor travels by train, the crowding of people should be prevented on the platforms in between stations.

2. The SRP need not travel in the same train as the Governor, but the DSRP having jurisdiction should do so.

3-A. A guard of one SI or RSI armed with revolver or pistol and four PCs suitably armed shall travel with the Governor. At all train halts, two out of the four Constables will station themselves on either side of the Governor's saloon/Compartment, as near as possible to the windows of the compartment occupied by the VIP. When the train stops at a place where the halt is short, one Constable each will get down on each side and keep a watch along the train particularly the compartment in which the VIP is traveling.

B. The Officer in charge of the party will maintain a Sentry Relief Book showing the hours of duty for each pair of Constables.

C. When the wife of a Governor travels by train, a guard of two HCs/PCs of the Railway Police suitably armed shall be provided for protection.

Journey by Ministers

859. The following security arrangements will be made for the Ministers of Andhra Pradesh and other State Governments and for the Ministers of the Government of India when they travel by rail:

Government Memo 93982/57-10, Home Police (C) 30.4.1958

1. A Railway Police guard armed suitably of the strength indicated in Order 365 should be provided as escort party whenever a dignitary travels by train. The members of the guard will travel as nearly as possible to the compartment in which the high personage is travelling. Where the train halts for any length of time one Constable will immediately take his position on the platform at such a distance or at entrance of the compartment in which the VIP is travelling to enable a careful watch and effective access control. The second Constable will be posted on the off-side of the compartment for the same purpose. The Constable will guard against any unauthorized person gaining access to the compartment. Particular care should be taken to avoid unnecessary interference with the travelling public. It is important that the Constables perform their tasks unobtrusively.

When the train is about to start, the Constables shall board their compartment. If the halt is only for two or three minutes, or if the train stops outside a station, the Constables will get down on either side of that compartment and watch along the train towards the dignitary's compartment to ensure that nothing untoward happens. If he observes anything that is likely to jeopardize the security of the person he should rush to his aid summoning such help as is available.

2. In all other respects, the Constables will function as a regular guard; the only difference being that they will be armed with lathies and not with firearms.

3. If the journey is a short one during the daytime, it is enough if two Constables under a Head Constable are detailed for this duty.

4. When a Minister arrives at or departs from a railway station, the senior most railway police officer present at the railway station at the time should receive or see him off.

Relief of Escorts of High Personages

860. Escorts of High Personages will be relieved by the respective Railway Police escorts at the centers specified below:

Line (1)	Centre of Relief (2)	Remarks (3)
1. Chennai – Vijayawada	Gudur	Guntakal Railway Police will take over from and hand over to the Tamilnadu State Police
2.(a) Chennai – Raichur (b) Katpadi - Gudur Police.	Renigunta	Guntakal Railway Police will take over from the Tamilnadu State
3. Raichur – Chennai	Arkonam	Guntakal Railway Police will hand over to the Tamilnadu State Police
4. Gudur – Katpadi	Katpadi	Guntakal Railway Police will hand over to the Tamilnadu State Police
5. Mumbai – Hyderabad (Via Wadi)	Wadi	Secunderabad Railway Police will take over from and hand over to the Karnataka State Police
6. Mumbai – Chennai (Via Wadi)	Raichur	Guntakal Railway Police will take over from and hand over to the Karnataka State Police
7. Bangalore – Guntakal	Hindupur	Guntakal Railway Police will take over from and hand over to the Karnataka State Police
8. Guntakal – Hubli	Guntakal	Guntakal Railway Police will take over from and hand over to the Karnataka State Police
9. Secunderabad – Parli	Vikarabad	Secunderabad Railway Police will take over and hand over to the Karnataka State Police
10. Secunderabad - Parli – Manmad	Nizamabad	Secunderabad Railway Police will take over from and hand over to the Maharashtra State Police
11. Vijayawada – Sec'Bad Nagpur/Delhi/Varanasi/Gorakhpur/Patna	Balharshah	Secunderabad Railway Police will take over from and hand over to the Maharashtra State Police
12. Vijayawada – Kolkata	Berhampur	Vijayawada Railway Police will take over from and hand over to the Orissa State Police
13. Visakhapatnam – Raipur	Rayagada	Vijayawada Railway Police will take over from and hand over to the Orissa State Police

Note: In case of Superfast trains not stopping at the centers mentioned in column (2) above, the relief shall be at the next immediate halt of the Super fast train.



Andhra Pradesh Police Department

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CHAPTER 44

Crime Investigation Department

861-1. Functions of Crime Investigation Department are:

- A. Investigation of specified cases and cases entrusted by the Government and DGP
- B. Maintenance, up-dating and use of crime-criminal information system, crime and criminal records, planning and implementation of criminal intelligence and crime analysis to improve prevention, investigation and prosecution.
- C. Coordination of investigation in the State and with other States and National Institutions/Organisations dealing with crime investigation.
- D. Efficient, professional and independent functioning of SCRB, FPB and their modernisation.
- E. Advise, assist and report to DGP and Government on matters concerning investigation and prosecution.

G.O.Ms.No 438 Home(Police D) Dept dated 5-10-1986.

2. The control, supervision and responsibility for efficient functioning of CID vests in Addl. DGP, CID. His functions and responsibilities are detailed in Order No. 35-3. The categories of officers in the CID, their functions and responsibilities are given below:

Police Officers

- A. Inspectors General of Police,
- B. Dy Inspectors General of Police
- C. Superintendents of Police
- D. Dy Superintendents of Police, Inspectors and Sub-Inspectors
- E. Head Constables and Constables

Civilian Staff

F. Technical experts, Specialists in Finger Prints, Accounts, Audit, Banking, Revenue, Taxation, Engineering, Computer professionals, Crime analysts and Research Assistants (both police and civilian). G. Ministerial staff

Officers of CID

862-1. Inspectors General of Police CID: - There will be Inspectors General of Police in CID who assist the Addl. DGP CID. Their general role and functions will be same as detailed in Order 42. The responsibility of supervision, direction and powers will be similar to those exercised by Zonal IsGP to the extent of the charge they are entrusted in CID. The main functions of IGP CID is supervision of crimes investigated by the CID, Co-ordination of investigation with local police/city police, building up and maintaining an efficient and up to date, crime and criminal information system.

One IGP each will be in charge of (i) PCR cases and Telangana; (ii) Administration, Legal matters and Rayalaseema (iii) Economic offences and Coastal Area and (iv) Gender offences and Hyderabad City. One IGP will be in charge of Railways.

2. One IGP will be specifically in charge of State Crime Records Bureau (SCRB), Police Research Center (PRC) and Cyber Crime Cell exercising overall supervision of Crime Records Bureaux in districts and cities. He will be

competent to conduct inspections of DCRBs and CCRBs. He will also be in charge of Co-ordination of Crime investigation, investigative assistance with other States, Countries and liaise with national agencies.

3. Under the CID, there will be a Director for Finger Print Bureau who will report to the Addl. DGP, CID through the IGP, SCRB.

4. All the IsGP, including IGP, SCRB, the Director FPB shall assist the Addl. DG CID and through him the DGP in the functioning of CID and Crime investigation. The IsGP of CID shall have personal staff of two PAs/CCs, trained or familiar with Computer functioning and data entry. The PAs/CCs should be drawn from the ministerial staff of CID.

5. Deputy Inspectors General of Police: - One DIGP each will be in charge for (i) Organised crime and Narcotic cell. (ii) Property offences. (iii) PCR and Social Justice and (iv) Human Rights. The DIsG in CID will be either in direct charge of supervision of the investigating squads/teams or the regions. They should ordinarily be kept in charge of investigating squads of CID dealing with specific subjects.

6. The Addl. DGP CID, shall allocate subjects to the IsGP and DIsG where subjects are not allocated hitherto and shall also give directions to the DIsG as to which IGP they have to report to in case where subjects are not specifically and exclusively allotted to them.

7. Superintendents of Police: The first supervisor in all cases of CID shall be Superintendent of Police. They will be in charge of one or more squads. They will be responsible for ensuring investigation in accordance with procedure and method prescribed, as are applicable to each case. The submission of case diaries, their scrutiny, timely steps to be taken for prompt investigation of cases taken up by CID, preparation of report for legal opinion, and liaison with local police for assistance to Investigation teams are some of their more important functions.

8. Superintendents of Police: The first supervisor in all cases of CID shall be Superintendent of Police. They will be in charge of one or more squads. They will be responsible for ensuring investigation in accordance with procedure and method prescribed, as are applicable to each case. The submission of case diaries, their scrutiny, timely steps to be taken for prompt investigation of cases taken up by CID, preparation of report for legal opinion, and liaison with local police for assistance to Investigation teams are some of their more important functions.

9. The Deputy Superintendents of Police and Inspectors of Police will be Investigating Officers of cases entrusted of CID. In more important cases the DSP will be in charge of investigation directly. Both Inspectors and DSP will report to SP directly. If the DIGP is in-charge of his squad, they will report directly to him.

10. The Ministerial staff shall be responsible for maintenance of crime files and the office administration. One of the IsGP CID will be in charge of administration.

11. The experts drawn from other branches are responsible for scrutinising the documents and records and giving advice and opinion on matters of their specialisation and aid in the investigation. They shall report to IGP CID, concerned and IGP, SCRB.

12. The Chief Legal Advisor and other Legal Advisors will be mainly rendering legal advise and opinion in all cases investigated by CID. In all cases the written opinion of the Legal Advisor or Chief Legal Advisor shall be taken before any orders of disposal are passed by the concerned officer. The procedure and format as prescribed for disposal of cases should be adopted in CID for reports of Investigating Officer and Legal Advisor.

13. Except on ceremonial occasions and other occasions as may be specified, the Officers in CID should not wear uniform and should not, except when in uniform, salute their senior Officials but instead observe other informal form of salutation. All correspondence intended for the CID shall be addressed to the Addl. Director General of Police CID, Saifabad, Hyderabad - 500 004.

863. The CID consists of -(1) the Investigation Teams of conventional crimes including murder, robbery, thefts etc.; (2) the

G.O.Ms.No. 438 Home (Police D) Dept, dated 5-10-1988.

SCRB which includes the Criminal Intelligence, crime analysis and research centre (PRC) and a coordination cell (3) Protection of Civil Rights Cell (SC/ST Cell); (4) Anti Dacoity Cell; (5) Finger Print Bureau; (6) Women Protection Cell (Dowry Deaths Investigation Special Cell); (7) Financial Crimes Cell; (8) Organised Crime Cell; (9) Anti-Drug Squads; (10) Terrorist Investigation Cell; (11) Counterfeit Currency, Forged Travel Documents Squad; (12) Regional Investigation Squads; (13) Police Sniffer Dog Squads; (14) Legal Branch (15) Civilian Expert Group and (16) Cyber Crime Cell.

864-1. CID will assist and support the district or city police either by taking up the entire investigation of a case, or by sending one or more of the specialist investigating officers or civilian experts to the Superintendent of Police or Commissioner of Police; by providing technical support, criminal intelligence and information, crime analysis and specific advice on investigation or coordination within the state and other states, securing investigative assistance from other states and countries. The

Superintendents of Police and the Commissioners of Police will act in a similar manner and furnish all necessary information and assistance to the CID. Further, they are responsible to inform all occurrences of offences of specially grave nature (Order 55-2) and the apprehension of important gangs, criminals etc., promptly to CID and coordinate CID in the investigations.

2. There should be specific authorisation from Inspector or higher officers when SIs are deputed to investigate a case, but such an authorisation is not necessary for officers of the rank of Inspector and above. Only officers of rank of SIs and above should be utilised for investigation duties. All Investigating Officers and Investigating Assistants shall carry photo identification cards always with them.

3. The Crime Investigation Department in no way relieves the district/ city police of their responsibility for the prevention, investigation and detection of crime.

Furnishing Information - Responsibility of Districts, City and other Organisations

865-1. All criminal information as prescribed shall be gathered and recorded by all Police Units in the state and furnished to the SCRB in CID.

2. All departments of the State Government particularly Excise, Forest, Revenue, Social Welfare, Women and Child Welfare, Anti-corruption Bureau, all Vigilance and Security organisations, Prisons, Fire Services, APTRANSCO and others who are authorised to deal with offences under State and Central Acts, either cognizable or non-cognizable, should furnish the crime information to the SCRB in CID in the proforma prescribed by SCRB.

3. The Central Government departments and organisations including Railway Protection Force are to furnish criminal information relating to offences reported and dealt by them to National Crime Records Bureau, New Delhi. They should furnish copies of such reports, to the SCRB in CID. The SCRB need not include the information so furnished by Central agencies in the reports sent to NCRB.

4. The CID will assist all these organisations in their investigations in the State and furnish copies of the information and analysis reports if any.

Sharing of information and concerted action

5. A comprehensive view of crimes and criminals of all description, the links between various types of crime and violation of any law is necessary to tackle effectively the lawbreakers, particularly networked and organised crime syndicates. Sharing of information and coordination between all concerned agencies is therefore essential. The information indicated in paras 2, 3, 4 in this Order are intended to serve this purpose.

6. Some departments of the State Government and Central Government have law enforcement functions. The police have to function in close cooperation with these agencies in the matter of investigations of cases for which, they are, by law the main agency or have concurrent powers. Sharing of information without prejudice to investigations by each is necessary for a comprehensive and effective enforcement of all laws, to prevent, detect offences and bring offenders to justice, particularly in the area of organised mafia crimes, drug related offences, terrorism, bio-terrorism, economic offences, offences against environment, flora and fauna, crimes relating to antiquities, art pieces and cultural properties, counterfeiting and many conventional crimes where it will be advantageous for the enforcement agencies to share relevant information with each other and act in furtherance of common objective of bringing offenders to justice even if each agency alone is competent to deal with them. While in specific cases the information sharing can be limited by, the need to know basis, in other cases the information shared should be with a view to identify offences, the offenders, their identity, the areas of their operation, the methods they employ and the disposal of proceeds of crime etc.

7. One to one meetings between Addl. DGP, CID or one of the concerned IGP, CID should be conducted periodically with other departments with a view to ensure sharing of information between the two and secondly to render mutual assistance in cases requiring such help. The agencies and departments include both state and central governments.

Class of crime to be investigated by the CID and procedure

866-1. The Crime Investigation Department, will ordinarily, deal with crimes of the following classes. Request for taking up of investigation by CID can be made by any Unit Officer, but without the orders of Addl. DGP CID or DGP no enquiry or investigation shall be taken up by CID.

A. Counterfeit currency and important thefts of currency notes.

B. Counterfeit coining when the counterfeits are struck from dies and other cognate offences in respect of coining by dies.

- C. Professional poisoning
- D. Theft of Government arms and ammunition
- E. Illicit manufacture, transport, sale, possession of firearms, ammunition, explosives and explosive substances
- F. Important cases in which foreigners are concerned (including cases of international criminals and trafficking in women by foreigners).
- G. Frauds by means of advertisements, bogus funds and companies / societies, impersonation of public servants, and swindling.
- H. Specially important cases of murder, all important and inter-State dacoities, robbery and housebreaking.
- I. Frauds, thefts or cheating of a peculiar nature affecting more than one district.
- J. Stock market and Bank frauds
- K. Important terrorist cases and cases of bio terrorism
- L. Important defalcations of public money and theft of public property.
- M. Smuggling of narcotics and psychotropic substances, drug trafficking and serious offences under NDPS Act.
- N. Financial and Economic crimes i.e., money laundering, bank frauds, forgeries, misappropriations, cheating, breach of trust.
- O. Organized crime (Mafia type) and gang cases
- P. Important conspiracy cases whose ramifications extend to several districts.
- Q. Organised offences relating to environment, flora and fauna
- R. Trafficking in women, girls and children
- S. Important cases of rape and dowry deaths
- T. Pornography
- U. Any serious crime, which appears to have a political motive, including all offences, connected with arms and explosives, which are suspected to be of a political nature.
- V. Organised thefts of motor vehicles
- W. Other cases of Inter-State or International nature requiring specialized investigation and coordination.
- X. Organised cases of atrocities against Scheduled Castes or Scheduled Tribes and important communal or caste riots accompanied by murders and arson
- Y. Cases of such a nature as, in the opinion of the DGP, the Addl DGP CID or district authorities, call for investigation by an officer of the CID.
- Z. Cases of bringing fraudulent civil suits.

2. The decision of the Addl. DGP CID and DGP as to which case falling in the above categories should be or need not be taken up shall be final.

G.O. Ms. No. 438 Home (Police-D) Dept., dated 5-10-1988.

3. Government of Andhra Pradesh have declared the Office of the CID as a Police Station for the entire state of Andhra Pradesh under Section 2(s) of CrPC 1973 and directed that one of the Dy. Supdt. of Police (DSP) working in the said Office nominated for this purpose by the Head of the said Office shall be the Station House Officer within the meaning of Section 2(s) CrPC 1973 for the said Police Station.

4. Scientific experts trained in the examination of counterfeit currency and other security and valuable documents are stationed in APFSL for giving expert advice and evidence in respect of counterfeiting of currency and other valuable documents like stamps excise labels, postal covers and stamps etc. Experts in computer forensic are also available in APFSL for assisting in computer related crimes/frauds.

5. Whenever it is intended to launch a prosecution in a case in which apparatus or materials for counterfeiting coins or forged currency notes are seized, the FSL's expert opinion should be sought and obtained before the case is put up in court.

Radio/Fax reports to the CID in certain serious cases

6. If, in any case specified in Order 866 taken up for investigation by CID, the local police discover any concrete fact or information of importance, and the CID officer is not actually present at the time, such a fact should be promptly reported by fastest means to the CID and to the SP of the district.

Reports from SsP and CsP for CID Investigation

867-1. In all the cases detailed above where CID is to take up investigation fax/radio messages should be sent to the Addl. DGP, CID under information to the Zonal Inspector-General/DIGP in three parts as shown below.

- A. All relevant facts of the occurrence
- B. Action already taken and ordered
- C. Suggestions for further action as indicated by City/District Officers.

2. On receipt of the report, the Addl. DGP, CID, will decide whether the CID should investigate the case or not.

3. Weekly progress reports in Form 5 should be sent in all such cases investigated by the district police where CID has not taken up investigation to the Zonal IG/DIGP till they lay the charge sheets or the case is otherwise disposed off. A final report shall also be sent after the disposal of the case to Zonal IG/DIGP.

Classes of crime and information to be reported to NCRB

868-1. The information on crime and criminals may be communicated to NCRB in the format prescribed by them. For every prescribed return to be sent by the CID (SCRB) to NCRB, specific approval of DGP should be taken. Once approval is accorded for sending a periodical return, there is no need to take further approval unless the Addl. DGP CID feels that it is necessary.

2-A. Whenever a foreigner is convicted of an offence of the type in which finger prints would ordinarily be taken for record under the rules, the finger prints and photographs of the convict as well as the details of the offence described in words (and not merely referred to by their Indian Penal Code section numbers) should be sent to the State Intelligence Branch and CID for transmission to the IB, NCRB and Interpol, New Delhi. They will make arrangements to forward the information to the head of the police of the country of which the prisoner is a resident/citizen.

B. Before the release of such a prisoner, a report in the same manner as above should be sent to the above agencies furnishing information regarding the date, route, flight/boat, etc., on or by which the prisoner will be travelling, to enable transmission of the information to the country of the prisoner's origin.

C. In counterfeit coins and currency cases, in which a foreigner is convicted and there is reason to believe that the counterfeit coins or notes have been manufactured abroad, a report should be forwarded to the CID by the Unit Officer. In such cases the help of Interpol, New Delhi should be requisitioned for investigative assistance abroad if any.

D. If any foreign criminal is convicted in a counterfeit coin or currency case, which may arouse international interest, a similar report should be sent by the SP/CP to the CID and State Intelligence as well as NCRB, IB and Interpol, New Delhi.

Organisation of CID squads

869-1. The investigating squads of CID each headed by either an Inspector or a DSP are located in various districts with the area of their jurisdiction determined by Addl. DGP CID. These squads are intended to take up cases which are ordered to be investigated by the CID in that area and also to maintain general liaison with the local police and state intelligence branch units. The cases to be investigated by the regional squads are of all types, which can be locally handled. The collection of criminal intelligence is one of the important duties of the squad. Preliminary enquiries and verification of investigation are also entrusted to these squads. They shall send case diaries and such other reports on cases to their immediate superior in CID.

2. Each regional squad is provided with vehicle and necessary communication equipment as well as secretarial assistance. A personal computer with a printer, fax and a photocopier are also provided to the regional squads. The officer in charge of the

regional squad should be provided with a permanent advance of Rs.10,000/- and necessary bus/railway warrants. In urgent cases he is permitted to hire more vehicles after obtaining orders from the Superintendent of Police in CID concerned.

Officers of the CID - relations with District/City Police

870-1. The cases in which the services of an officer of the CID are requisitioned or whenever an officer is deputed to conduct an investigation / enquiry of any kind, the officer deputed should take with him an authorisation addressed to the SP / CP indicating the purpose of his deputation. The authorisation can be sent by fax/radio message in advance.

2. If the SP is on tour, the officer deputed should hand over the authorisation to the Addl. SP or his immediate subordinate at the District Police Headquarters and should soon thereafter call on the SP if the enquiry is likely to be spread over a longer period.

3. In the absence of special orders from the Addl DGP, CID, to the contrary, if the case or enquiry exclusively concerns only one district, the officer concerned shall work under the supervision of SP or DCP concerned who will then be responsible for the enquiry. In such cases, copies of case diaries should be submitted to the SP concerned.

4. If, however, the enquiry extends over more than one district, the case diaries need be submitted only to the CID, but the officer should keep the SsP or if authorised by them, the Addl. SP of the district, in which he is working, fully informed of the investigation, consult them, take their instructions on matters relating to their jurisdiction, and inform them the results of the enquiry.

5. The SP, Addl. SP and SDPOs of L&O Police or Crime Investigation or Traffic, or Railway should give the Officers of the CID every facility, support and help, for conducting investigation in their jurisdictions and should share all information and make available for their assistance the Officers or staff with local knowledge. The CID staff should not think that, once they take up a case, the L&O Police or Detective Police Station have nothing to do with it. Officers of the CID should realise that the CID is to assist the district police by taking up investigation in cases where local police may not have the time, wherewithal to pursue clues to a successful end. Investigating CID officers should meet the concerned SP, SDPO as often as necessary and take the needed help from the L&O police or Investigation Branch of the District or City.

Crime Investigation Department³/₄Gazetted Officers Reports

6. Officers of the CID of and above the rank of Inspector should send copies of the reports of investigation to the SP/CP concerned, and communicate to these officers information of matters of interest or importance which comes to their notice pertaining to crime and criminals of the district.

Case diaries and other CID records

871. Case diaries of CID officers are subject to the same rules as those of the district police. All other records of the branch are confidential. The officers of the CID have the same authority to inspect records as the district police.

Criminal Intelligence Section

872-1. Criminal information and intelligence is vital for controlling and detection of crime. The nature of information to be gathered, the records and files in which it has to be stored, whether in a computerised or a manual system are dealt in Chapters relating to functioning of the police stations and the district crime records bureau. As the main investigating agency of the state and responsible for SCRB, the CID has an important and necessary responsibility in this respect. The criminal information and data is available from various sources like criminal records, periodical and special reports received on crime and criminals, interrogation reports, intelligence gathered from sources, surveillance, open information from the media and the official statistics. The specific items on which information has to be gathered and the priorities should be determined from time to time. New patterns of crime require suitable methods of prevention and detection. Once information or intelligence is gathered on standard items as well as on special priority items, its analytical assessment, evaluation, collation, integration, interpretation and dissemination has to be undertaken. Only then the purpose of collecting the data will be of any use. This function has to be performed in the CID by the SCRB and its special units. The state crime records bureau, the district crime records bureau and all detective police stations are expected to undertake this function within their respective spheres. The analysis and generation of the required output in the desired format by use of appropriate computer system on the priority as well as standard subjects has to be planned and implemented.

2. The general items on which information to be gathered are given below.

A. Serious crime of all categories including series of crimes of same nature or outbreak of crime of a particular nature in a geographical area; terrorist crime; important crimes against women, children, Scheduled Castes and Tribes; crime relating to environment and financial offences.

B. Property stolen, lost, or detained as suspicious especially automobiles, Fire Arms, Explosives, works of Art, Antiquities, art treasures;

C. Persons wanted by the police or persons arrested by the police, who are suspected of being professional inter-district criminals/Inter State/International Criminals. This should be done in the prescribed form;

D. Foreigners involved in offences, suspicious characters and strangers;

E. Criminal gangs;

F. Organized Crime Syndicates;

G. Specific information about wanted offenders, suspects;

H. Missing persons and un-identified dead bodies;

3. The information to be gathered on the targeted subjects or persons is secured by prescribed periodical reports from the district crime bureau, the crime-criminal information system which is entered in computers, reports from the district/city officers on certain types of crimes and criminal activity, source intelligence or other information secured by at the police stations and the district levels.

The CID for its part should organise its own intelligence gathering mechanism through the various squads that work on specific cases or areas. The data relating to the specialisation of various officers in the department from police station to the state level and available in the Units has to be classified and kept for use when required. This information particularly relating to various skills of officers should be fed into the computer system and be available in the CID. The sources recruited and the handlers of the sources in the CID should follow the same method as prescribed for the police stations in the districts. The register of informants with necessary precautions regarding secrecy and security will be maintained by the Head of the CID and the utility of each informant determined from time to time. It is important that the analysis of crime based on various parameters and generating the required statements, graphs, charts, statistics and specific guidelines for detection is done by the special group in the SCRB as prescribed in Orders 880 to 884.

4. Criminal Intelligence Gazette

5.

6. 873-1. Information on the lines indicated in 872-2 should be published in the Criminal Intelligence Gazette. Matter intended for publication should be sent by all Unit Officers or Investigating Officers of CID through their superiors, carefully drafted and written or typed on one side of the paper only. Attention must be paid to the proper spelling of names.

7.

2. Advertisements regarding the missing of persons when foul play is not suspected, the loss of currency or promissory notes or other property when they are not the subjects of a criminal case, which are sent to the Criminal Intelligence Gazette, and published in the interests of private persons, shall be charged for in advance. If the persons are white ration cardholders charge shall not be levied. In forwarding such notices for publication, the Unit Officers, particularly the CCRB and DCRB shall report whether the person advertising has paid the cost in advance.

8.

3. Notices regarding loss and recovery of arms and ammunition, explosives, motor vehicles, travel documents shall be published free of cost.

9.

4. The following scales of charges are laid down for advertisement in the Criminal Intelligence Gazette $\frac{3}{4}$ First insertion Rs.10 per line; Second insertion Rs.7.50 per line, and Third and subsequent insertions Rs. 5 per line.

10.

5. The CIG must be published promptly and should reach all the concerned unit officers in the department by 15th and 31st of every month. The gazette should be despatched directly to all the recipients in the state within time, if it has to be of any value. The unit officers will in turn send copies of the CIG to all SIs / CIs and SDPOs within 2 days of its receipt.

11.

12. Language Extracts from the Criminal Gazette

13.

6. The Criminal Intelligence Gazette will be issued in English and Telugu only. The English copies will be sent to all States and National agencies authorised to receive and Telugu copies for circulation in the State. When any Unit Officer considers that any information contained in it should be circulated in Telugu or Urdu, he can do so by publishing it in the District Crime and Occurrence Sheet. Any information of a confidential or sensitive nature, should not be so disseminated, but be communicated to the concerned officers only.

14.

15. Criminal Intelligence Gazette $\frac{3}{4}$ Distribution

16.

7. The Criminal Intelligence Gazette will be supplied to all Superintendents of Police bordering the State of Andhra Pradesh including Superintendents of Railway Police of the neighbouring states, the Commissioners of Police of all cities in India, all the Directors General of Police of states and all the heads of the CID of all the states, the NCRB, National Narcotics Control Bureau, CBI and the Intelligence Bureau, New Delhi.

17.

18. Instructions for Reporting Information

19.

20.

874. The following instructions for reporting information in the prescribed format should be complied with:

21.

22. 1. Serious crimes:¾ These will include cases in which special reports have been prescribed in Order 866 and any other cases possessing special and instructive features, which should be made generally known to police officers all over.

23.

24. 2. Property:¾ List of stolen or lost properties should be confined to articles capable of identification, numbered items and rare and highly valuable articles. Arms and ammunition, explosives, automobiles should also be mentioned. The numbered items are those, which carry a number or make or such other letters or figures or specific markings.

25.

26. 3. Wanted persons:¾ Descriptive rolls, for persons wanted should be sent for publication only when there is good reason to believe that the individual will travel beyond the districts to which the District Crime and Occurrence Sheet is circulated.

27.

28. Release Notice of Dangerous Criminals

29.

30. 875-1. The CID should publish a release notice of all dangerous criminals shortly before their release from the jails. This is intended to alert the concerned police authorities.

31.

2. The release notice will contain description and a concise history of the criminal with a photograph.

32.

3. These notices will be published for the following classes of criminals. (A) members of gangs, particularly dacoit, organized crime syndicates who move over large areas or through different States, (B) any particular criminal who is likely to commit crime over a large area.

33.

4. The notices will be printed on separate sheets and sent along with the CIG;

34.

5. All police officers, who receive the CIG, should place, in a separate file for reference, the release notices of criminals who are likely to operate within their jurisdiction and brief the personnel in the weekly classes.

35.

36. Report of Conviction of Criminals whose Release Notice is to be Published by SP

37.

38. 876. The DCRB or CCRB after approval of SP/CP should report to the CID directly the conviction of any criminal included in the preceding order or of any other criminal whose release notice, he considers, should be published. The report should contain (a) full personal description and colour photograph, (b) a brief history of the individual detailing his criminal career and criminal propensities, whether member of a gang or not, and (c) the probable date of release and the jail in which confined.

39.

40. Surveillance over certain History sheeted criminals by CID

41.

42. 877. One of the important duties of the CID is to keep a watch or arrange to keep a watch over the movements of the notorious, dangerous and professional criminals, and members of organised crime and syndicates and disseminate the information to concerned DCRB after it is fed into SCRB records. This will be of great help to districts and must, therefore, receive close attention. Similarly the SP shall arrange collection of such information, collate it and communicate to (SCRB) CID. The CID shall organise the system of collecting intelligence and information through District/city Units and through their own sources so that accurate and up-to-date information is available, to be acted upon to prevent crime and apprehend dangerous criminals in time. A detailed scheme for this should be prepared in the CID and implemented, which should include specially trained surveillance teams and properly organised intelligence gathering.

43.

44. 878-1. The duties and functions of the gazetted and non-gazetted officers of CID are similar to the corresponding ranks detailed in Chapter 3 and 5 in so far as their work in CID is concerned. The weekly diaries and monthly reports as contemplated in the above Chapters should be submitted to their superior officers regularly.

45.

2. The pay, allowances and other establishment matters in respect of all CID personnel shall be done in headquarters i.e., in the office of Addl. DGP, CID. The service books and all other personnel matters and the office establishment shall be managed in the same manner as done in the office of Head of the Department.

3. Since CID is declared as a police station for the whole State, the Addl DGP, CID should earmark one DSP as the SHO, who shall be responsible for the running of the CID Control Room, maintenance of General diary and all other necessary records prescribed for a police station and control room.

Finger Print Bureau

879. The Finger Print Bureau of the State shall function under a Director, who reports to IGP SCRB. Instructions regarding finger print work and the working of the Bureau are given in the Chapter 41 of this Manual.

State Crime Records Bureau (SCRB)

880-1. The State Crime Records Bureau is an integral part of State Crime Investigation Department. Its primary role is collection, storage and retrieval and dissemination of all information relating to crimes and criminals, to analyse and formulate conclusions on crime trends, modus operandi, areas of operation so as to help in the prevention and detention of all types of crime. Specific clues and information in cases on the basis of recorded information, analysis and intelligence available is a part of its vital pro-active role in the entire crime investigation system of the state. The functions and responsibilities of the Bureau are as detailed below:

- A. Building, up dating, maintenance and usage of computerised crime-criminal information system in the state. The format and guidelines of NCRB should generally be used. The circumstances, requirements and the day-to-day needs of the state police and investigating units should be the main objective.
- B. Maintenance of all other criminal records and files using computerised system.
- C. Assist and guide City and District Crime Records Bureau in similar functions.
- D. Issue guidelines and devise training modules for recording, maintenance and use of computerised system including communication of data to Detective Police Stations.
- E. Conduct studies and crime analysis to provide investigative leads to CID and other Investigating Officers in the State.
- F. Record, store and analyse all crime information and intelligence and disseminate in appropriate format to the state police units and other users.
- G. Generating and sending periodical reports to NCRB as required by them.
- H. To undertake research studies, crime analysis on relevant crime issues and emerging patterns of crime with a view to provide useful leads to Investigating Officers and police officers in prevention and detection of crime. The Research Centre and Crime Analysis Group are to be organised on these lines.
- I. Assist Addl. DGP, CID in the coordination of investigation within the state and outside and with Interpol, New Delhi.
- J. Supervision of FPB, and liaison with national agencies.
- K. Any other related functions that may be entrusted from time to time.

Organisation

881. The SCRB is headed by one of the IsGP of CID. The Bureau has (1) Criminal Records Wing; (2) Criminal Intelligence Wing; (3) Research Centre; (4) Crime Analysis Unit; (5) Coordination Wing; (6) Technical Wing and (7) Civilian Experts Group. The IGP, CID (SCRB) is assisted by police officers of rank of DIGP, SP, DSP, Inspector, SI and HC apart from civilian staff of various levels.

Records to be maintained in SCRB

882-1. Dossiers for active professional and dangerous criminals who are addicted to the commission of dacoities, robberies, burglaries, those who operate or have the potential to operate in more than one district or state, professional poisoners, kidnappers, cheats and members and leaders of organised criminal gangs. The dossiers shall be updated on the basis of information furnished by the Detective and L&O Police Stations, and intelligence gathered from various sources or agencies. The information in Finger Print Bureau is also a valuable input.

- 2. Indices for the criminals mentioned above in the following manner:

- name (alphabetical) index
- modus operandi index
- sphere of operations index, and
- physical peculiarity and criminal characteristics index
- All indices are to be kept updated using the flow of information from the DCRB, Police Station, other sources and the FPB.

3. Criminal organisation files in respect of organisations of inter-district nature, particularly the organised crime gangs, syndicates, financial companies that indulge in offences of cheating, forgery and misappropriation, habitual criminals or groups committing crimes against Scheduled Castes and Scheduled Tribes, women and children.

4. General subjects files dealing with the conventional and emerging forms of crimes.

5. Photo and videograph albums; Identity Kits, and an index of photographs and videographs.

6. Indices and reports regarding missing kidnapped and abducted persons and unidentified dead bodies.

7. Index of persons both male and female who are not available at their known addresses and suspected to have gone astray i.e., victim of organised trafficking in women, or drawn into life of crime or terrorism.

The crime-criminal information system; the information is to be stored in a computer system following the NCRB format.

Research Centre (SCRB)

883-1. The Centre will collect the required data from the SCRB's system and also obtain detailed reports, case files etc. from any officer of the state police on the required subject of study. The functions of the Research Centre and Crime Analysis Unit are as follows:

A. Undertake case studies of important forms of crime and specific cases and bring out such aspects as legal problems, lapses and handicaps in investigation if any, the areas affected, social, psychological factors, specific strategy to be followed for handling, prevention and detection of cases.

B. Provide clear investigative leads and advice in specific cases.

C. Study important judgements of trial courts and higher courts in cases investigated by state police and suggest specific guidelines for improvement of investigation and prosecution.

D. Comparative studies of crime area-wise and crime-wise.

E. Conduct studies on involvement of community and community policing (maithri) as a preventive and detective strategy.

F. Identify training needs of investigating officers and assistants and prepare handouts, brochures in intelligible language for distribution and prepare course content for recommendation to training branch.

G. Identification of crime trends.

H. Prepare guidelines and check points for each type of case for guidance of Investigating Officers.

I. Subscribe and maintaining all police journals published in India, literature on crime prevention and detection publications of NCRB, ICPO, journals from other countries and build an up-to-date library on crime investigation.

J. Prepare visual presentations on different case studies for use in the field.

K. The Research Centre should be headed by an officer of the rank of Addl SP/DSP who has the requisite faculty to direct its activities.

2. Reports will be received by the Centre from districts by radio or fax about the absence or movements of criminals or criminal gangs and the occurrence of important crimes, together with the details of the modus operandi employed in the commission of each crime. The Centre will, on receipt of such information, make an analysis of important crime with the help of the Crime Analysis Group and also making use of information available in the SCRB. Any clue so obtained on the result of the analysis should be communicated to the concerned Investigating Officer. A critical study of the District and City Crime and Occurrence Sheets and Monthly Crime Reviews and other periodical reports generated by SCRB/NCRB help to know the general trend of crime. It will function as a nerve centre for all the Investigating Officers in the State.

Crime Analysis Unit

884. The crime analysis unit is a part of research centre and shall function with a view to conduct a systematic and scientific analysis of crime and criminals and formulate advice to the Investigating Officers. The crime analysis unit should adhere to the following guidelines.

1. The object of crime analysis is to identify the connection between crimes, criminals and associations, the relationship between crime and other factors such as the scene of occurrence, communications and many other variable factors. It introduces a structured method such as assessment of the scale and nature of high rate of crime like dacoities, robberies, burglaries etc. and the activities of organised gangs including mafia type, or the identification of a lone serial killer. The crime analysis is fully dependent on the intelligence and information available and hence the different data collected and stored and the information gathered should be utilised properly for crime analysis.
2. The crime analysis can be done in two ways; one is to meet the immediate requirements of a particular case or a situation and another is a long-term analysis to enable preventive intervention. Both analysis should take into consideration, the crime, the criminal, the crime patterns, comparative case analysis including series of crimes, and the methods of controlling crime. The crime pattern analysis relate to the types of crime that occurs in a particular area and the timing. A comparative case analysis relates to identifying connection between similar incidents and to know if it is by the same offender or different offender of a group.
3. The analysis in respect of criminals should include the previous history of the offender if known, their profile as indicated by witnesses or other information, the modus operandi, the timing, the dress and other peculiar features.
4. Crime control methods emerge from an analysis based on file research, statistics, structured reports, interviews etc.
5. The personnel of the Research Centre should be a mix of civilian and police officers. The civilians should include social scientists particularly those from disciplines of sociology, psychology, history who can introduce research methods. The information technology and particularly the computers technology is an essential ingredient of research and crime analysis. Appropriate software applications should be chosen. The research and analysis group will be the nodal agency for similar exercises eventually in districts and cities.
6. A complete manual dealing with the work, functions and methods of the SCRB including the police research centre and the crime analysis group should be drawn up taking into consideration the NCRB's guidelines and also the research and experience conducted on the use of criminal information system made available by the ICPO.

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CHAPTER 45

AP State Forensic Science Laboratory

885-1. The A. P. Forensic Science Laboratory which is an ISO 9002 Certified Laboratory, is primarily intended to see that all possible help that modern science can render in crime detection is made available to investigating officers. The Laboratory thus renders scientific analytical services to the police in the matters of investigation; besides tendering expert scientific opinion to prosecution and judiciary during prosecution and trial of criminal offences, respectively. The Laboratory, equipped with modern sophisticated instruments and tools, is headed by a Director, who is assisted by technical / scientific experts of various ranks, in the examination of different types of physical evidences in 13 different sections of APFSL Hyderabad and Regional FSLs located at Zonal / Range HQs. Besides the main laboratory at Hyderabad and RFSLs situated at Zonal / Range HQs., there are crime scene processing teams called Mobile Scientific Investigation Units (CLUES Team) at all District / City HQs., under the operational and functional control of the concerned unit officers, to scientifically process the physical evidence and initiate crime scene investigations by scientific means. The Director FSL works under the direct supervision of the Director General of Police (DGP).

2. The various analytical activities that are carried out in the 13 sections of the main FSL (only 4 sections in RFSLs) or grouped in four divisions viz., Biology Division, Chemistry Division, General Division and Physics Division. The functions of the sections, division wise, are as follows.

A. Biology Division

- (1). Biology Section deals with examination of Hair and Fibres for their origin, individualization and comparison; diatoms to confirm drowning by death; Insects, flies and maggots for ascertaining time and place of death and other biological materials of plant origin for determining the origin and species etc.
- (2). Bio-Medical section deals with superimposition of skull with photograph of the deceased for identification of unknown persons and also examines skeletal remains to determine origin and sex etc.
- (3). DNA Fingerprinting section examines blood, blood stains, seminal swabs, skeletal remains, hair and saliva etc., to identify and individualize persons and also materials of animal and plant origin for identification of species.
- (4). Serology section undertakes examination of blood, semen, saliva and other body fluids on clothes and other surfaces to ascertain origin and group of blood.

B. Chemistry Division

- (1). Chemistry section deals with examination of remnants of explosives to ascertain the nature of explosives; petrol, diesel etc. to detect adulteration and its extent and other chemical products for qualitative and quantitative analysis.
- (2). Narcotics section deals with analysis of suspected powders, liquids and unknown substances for identification of narcotic substances which come under the purview of NDPS Act; toddy / liquor to establish adulteration and its quantity and to detect poisonous substances and its quantity in adulterated toddy / liquor.
- (3). Toxicology section deals with analysis of viscera and body fluids to determine the nature, composition and quantity of poisons, and bone ash, vomit and exhumed material and any other substances and objects like needles and syringes, powders etc., for detection and estimation of poisonous substances.

C. General Division

- (1). Computer Forensics section deals with examination of computers and its components to restore erased information and also to ascertain the authenticity of software and other computer products, and deals with examination of cases of computer crimes enlisted in Cyber Act.

(2). Documents section undertakes examination of various kinds of questioned documents to ascertain whether they are genuine or forged, by analysis of signatures, initials, handwriting and also to establish authorship of writings and signatures. The section also establishes the nature of tampering in documents viz., alterations, erasures and obliteration. Type writing is also examined for identification of typewriter.

(3). Polygraph section examines subjects viz., suspects, witnesses and complainants to ascertain whether the statements given by them are true or false in order to establish or eliminate the involvement of accused in criminal offences. Polygraph or Lie – Detector instrument is used for this purpose.

D. Physics Division

(1). Ballistics section deals with examination of firearms, cartridges, cartridge cases, bullets and other discharged firearm materials and affected surfaces to ascertain the nature of firearm, caliber and also to establish the range, direction of firing, number of shots in cases of shooting by firearms and conducts examination of cases under Arms Act.

(2). Physics section undertakes examination of counterfeit coins, currency, erased numbers in stolen vehicles for restoration, glass, paint chips etc. in hit and run accident cases and of spurious articles to establish infringement of trade mark Act. The section also undertakes voice analysis to link suspects to crime.

(3). Forensic Engineering section undertakes examination of building materials such as bricks, cement, mortar, steel etc. for their strength and specifications, and also mechanical, electrical and electronic products for their authenticity.

The detailed examinations carried out by the above sections of APFSL/RFSLs and functions of CLUES Team as well as detailed procedures and instructions for utilization of services rendered by FSL / RFSLs are given in Chapter 31 of this Manual. The rules made by the Government regulating application and payment for the services of the Director, FSL and given in Annexure XI.

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CHAPTER 46

Police Radio/Communications Organization

General Functions and Control of the Organization

886. The Andhra Pradesh Police Communications Organization, headed by the Director Police Communications (DPC), who is an officer of the rank of IGP (Non-cadre), is part of the State Police and serves the communication needs and thereby provides a vital logistic support in all Police functions. The Communication facilities provided are meant for exchange of information related to Law & Order, Prevention and Detection of Crime, Intelligence, Public order and VVIP security. The Communication networks are also used for the clearance of messages of other departments in times of emergencies subject to the approval of the Government of India. There are five modes of Communications, which are under operation throughout the State, as enumerated below.

High Frequency Radio Communication Network on continuous wave (Morse code)

1. The HF communication on CW is provided from Hyderabad to the Police Circles, Investigation Unit and some important Police Stations. All district headquarters and APSP, Bn. Hqrs., are directly linked to Hyderabad and are arranged in six convenient groups for technical reasons. To ensure Radio communication security, 'Cryptography' has been introduced on HF CW network. The control stations are located in the Master Communication Control of Police Headquarters in Hyderabad. A sub-control station is installed along side the district headquarters Radio Station in each district, which links the various sub-divisions/circles and some Police Stations within the district. Mobile HF stations are located at the cyclone prone coastal district headquarters to meet emergency communication needs of the SP of the district during cyclones.

HF Radio Communication Network on voice

2. Static HF Radio sets, capable of voice communication are established at each district headquarters and at a few strategic places like Tirupati and Rajahmundry for long distance voice communication. These can be shifted anywhere in the State temporarily in emergencies. The main control station is located at Hyderabad. HF Radio sets are installed additionally as and when required during elections, VVIP visits and natural calamities like floods, cyclone, earthquake etc.

VHF/UHF Radio Telephony Network on Voice

3. Each district and Commissionerate cities are provided with their own captive VHF/UHF communication networks for communication within their district/city. All the L&O, Traffic, Railway Police Stations and all Investigating Units/CCS in the state are provided with static VHF stations. Mobile and hand held VHF sets are also provided to the Officers of the rank of Inspector and above. In addition to the intra-district communication, inter-district communication between bordering districts as well as States is provided for quick exchange of intelligence / information related to various police matters and to ensure coordination in all aspects.

Teleprinter (TP) Network

4. Teleprinter (TP) terminals are provided to each district headquarters and a few strategic places like Rajahmundry, Tirupathi and at the State Intelligence at Hyderabad. All the lines are terminated on a microprocessor based Automatic Message Switching System at Hyderabad. This network works round-the-clock. Point to point & point to multi point TP communication is provided

between the district Police headquarters and the APSP Bn. Hqrs. located in the district. One Teleprinter terminal is earmarked for use in Secretariat during Elections and Natural calamities. During normal times this terminal is kept as reserve.

Hot Line communication network

5. Hot line communication network connected to EPABXs is established between Hyderabad and all the district headquarters and at Tirupati, with extension phones to all the senior Police Officers and selected dignitaries of the Government at Hyderabad. At the district, the CP, SP, District Collector and Zonal IG/DIGP are provided with extension phones from the Hot line exchange.

Organisational and Administrative set-up

887-1. The Police Communications Organization functions under the Director, Police Communications Hyderabad, who reports to Addl. DGP (Technical Services). He is assisted by Addl Director, Police communications (DIGP rank, non-cadre), three SsP (C) and 12 DSsP (C). Its technical staff consists of Inspector of Police (Communications), SI(C), ASI(C), HC Operators, PC Operators and HC/PC Electricians. This organization is a statewide unit and not a Zonal unit in terms of the Presidential Order 1975 under articles 371 D of the Constitution of India.

2. The Director, Police Communications (DPC) has jurisdiction throughout the State. The Addl. DPC assists him. The SP (C) is in charge of one of the three regions of the State. The DSsP(C) is in charge of Zones consisting of two or three districts. If at headquarters, he is in charge of two or more sections. The Inspector (C) is in charge of district communications and if at headquarters he will be in charge of a section. The SI, ASI, HC (Communications), HC (Electrician), HC (Black-smith), HC (Painter), HC (Carpenter), PC (Communications), PC (Electricians) are posted to various districts and sections at headquarters depending on scale to each district/section.

3. The territorial jurisdiction of the SsP (C) and DSsP (C) shall be as indicated in the table below: All SsP will be stationed at Hyderabad.

S.No.	SP Communications	DSP Communications	Functional Unit	Territorial Jurisdiction
1.	Supdt. of Police (Commns), Hyd'bad Region Hyderabad	1) DSP (Commns) Hyd City Hyderabad	Hyderabad City	Hyderabad City
		2) DSP (Commns) Hyd Zone Hyderabad	Hyderabad Zone	R.R Dist. Medak Dist. Mahabubnagar District.
		3) DSP (Commns) WRL Zone Warangal	Warangal Zone	Warangal Dist. Khammam Dist. Nalgonda Dist.
		4) DSP (Commns) KNR Zone Karimnagar	Karimnagar Zone	Karimnagar Dist. Adilabad Dist. Nizamabad Dist. Cuddapah Dist.
2.	Supdt. of Police (Communications) Tirupathi Region Hyderabad	1) DSP (Commns) TPT Zone Tirupathi	Tirupathi Zone	Ananthapur Dist. Chittoor Dist. Kurnool Dist. Guntur Dist.
		2) DSP (Commns) GTR Zone Guntur	Guntur Zone	Nellore Dist. Prakasam Dist.
		3) DSP (Commns) Installation	Installation	G.M.W. P & D Section
		4) DSP (Commns) Stores, Hyd.	Technical Stores	Technical Stores Quarter Master M.T.Section
3.	Supdt. of Police (Commns) Vijayawada Region, Hyd.	1) DSP (Commns) VZA Zone Vijayawada	Vijayawada Zone	Vijayawada (u) Krishna Dist W/Godavari Dist. E/Godavari Dist.
		2) DSP (Commns) VSP Zone Visakhapatnam	Visakhapatnam Zone	Visakhapatnam (U), Visakhapatnam (R) Dist.,

3) DSP (Commns) Hqrs. Section	Hqrs. Section	Vizianagaram & Srikakulam Dist. Master Control Hqrs. Section Cryp to Section D4 Section
4) DSP (Commns) Training	Training Section	Training Section

4. The Administration of Office of AP Police Communications Organization is headed by one Administrative Officer assisted by the Office Superintendents, Senior / Junior Assistants, Typists, Record Assistants and Attenders as per the scale laid down. The office functions on the pattern of a District Police Office.

Recruitment, Promotions & Service Conditions

888. The AP Police (Communications) service rules are applicable to the Gazetted Officers of the Police Communications

G.O.Ms.No.319 Home (Pol - G) Dept., dated 16-10-1995

Organization. The AP Police Sub-ordinate service rules and the special rules for promotion are applicable to the Non-Gazetted executive personnel of the Police Communications Organization. The Gazetted and non Gazetted posts in the Communication wing are as follows.

G.O.Ms.No.14 Home (Pol – G) Dept., dated 20-01-1995

1. Gazetted

- A. Director, Police Communications (IGP rank, non-Cadre)
- B. Addl. Director, Police Communications (DIGP rank, non-Cadre)
- C. Superintendent of Police (Communications)
- D. DSP (Communications)
- E. Inspector of Police (Communications)

2. Non-Gazetted

- A. Sub-Inspector of Police Communications (Men & Women)
- B. Sub-Inspector of Police Communications (Crypto)
- C. Sub-Inspector of Police Communications (Draftsmen)
- D. Assistant Sub-Inspector of Police Communications (Men & Women)
- E. Head Constable Communications
- F. Head Constable Communications Electrician
- G. Head Constable Communications Black smith
- H. Head Constable Communications Carpenter
- I. Head Constable Communications Painter
- J. Police Constables Communications (Men & Women)
- K. Police Constables Communications Electricians

Disciplinary Rules

3. The AP CCA rules are applicable as in the case of the non-Gazetted Officers of the Police department in the State to Police Communications Organization.

Powers, Duties & Responsibilities of Director Police Communications (DPC)

889-1. The DPC shall be the Unit Head of the Police Communications Organization and all correspondence shall be made

GO Ms No. 217 Home (Police-E) Dept., Dt 14.7.95.

under his designation. The DPC may allocate any sections at Hyderabad to the Officers in addition to the work assigned to them as per the table shown in the Order 887-3 above.

2. The Powers & Responsibilities of the Director, Police Communications, shall be as follows:

- A. He exercises the same powers as that of Inspector General of Police, APSP.
- B. He exercises general superintendence over the work of all Officers in the Police Communications Organization.
- C. He is the appointing authority of the directly recruited SIs of Police (Communications) (Men & Women)
- D. He initiates the transfer proposals of Deputy Superintendents of Police (Communications)
- E. He is competent to transfer Inspectors of Police (Communications & Crypto) and SIs of Police (Communications & Crypto)
- F. He shall periodically visit Offices of the Sub-Ordinate Officers and also Radio stations in the State, and check up their functioning.
- G. He submits monthly reports through Addl. DGP (Technical Services) to the Director General of Police, AP, Hyderabad.

Procedure for the Purchases of Stores and Financial Powers for Purchase

890-1. For the purpose of maintenance and replacement of communications equipment, the Officers mentioned below shall have the financial powers as indicated herein:

Director General of Police/ Addl. DGP (Technical Services)	Rs.1, 00,000
Director, Police Communications	Rs. 50,000
Addl. Director/SP Communications	Rs. 10,000

2. Addl.DGP Technical Services or any other Addl.DGP nominated by DGP shall be the Chairman of the Purchase Committee and the Director, Police Communications is the Vice-Chairman and Convenor of the Stores Purchase Committee with Additional Director, Police Communications, SP(C) in-charge of Stores, DSP(C) of Technical stores; Chief Accounts Officer of Chief Office, nominee from Commissioner of Industries as members. For any reason if the Chairman is not available, Vice-Chairman will chair the Stores purchase Committee. The Quorum for the Stores purchase Committee shall be the Chairman and four members. Since all items are technical in nature the opinion of the Director and Additional Director (Communications) regarding testing, and quality of items shall be given due weight and not be rejected by the Committee without recording reasons. The acceptance of items supplied as per procedure prescribed above and finalisation of purchase of technical items under DGS & D Rate contract and APTS Rate contract shall be decided by the technical committee of Director Police Communication, Addl. Director, Police Communication and two technical members nominated by Director, Police Communication.

3-A. All purchases above Rs. 1, 00,000/- shall be decided by the Purchase Committee headed by the Chairman viz. Addl. DGP (Technical Services).

B. All purchases above Rs.50, 000 and up to Rs. 1, 00,000/- shall be decided by the Purchase Committee chaired by the Vice-Chairman viz. DPC.

C. All purchases up to Rs.50, 000/- shall be decided by the Director, Police Communications.

D. All purchases up to Rs.10, 000 shall be decided by the Addl. Director Police Communications/SP (Communications).

Powers and Responsibilities of Additional Director, Police Communications

891. The Addl. Director, Police Communications shall have jurisdiction throughout the State, in addition to all the sections at headquarters including City VHF, Hyderabad. He shall also be in charge of the office establishment of Director Police Communications (DPC), AP, Hyderabad. His duties shall be as follows.

- 1. Exercise Financial and Disciplinary powers of a DIG of Police, as enumerated in the Financial code and CCA rules.
- 2. General superintendence over the work of all Subordinate Officers in the Police Communications Organization for efficient management and up-keep of Radio equipment and maintenance of communication networks in the State.

3. Preparation of the promotion panel of SIs (Communications) and SIs (Crypto) Men & Women fit to act as Inspector of Police (Communications) following the procedure laid down in G.O. Ms. No. 14 Home (Police-G) Department, Dated 20.1.95.
4. Preparation of the promotional panel of ASIs (Communications) and ASIs (Crypto) fit to act as SIs (Communications) and SIs (Crypto) as per the procedure laid down in GO Ms No. 14 Home (Police-G) Department Dated 20.1.95.
5. Transfer of Officers of the Rank of ASI Police Communications and transfer of all the Ministerial staff.
6. Condemnation of Radio equipment, Generators and other major items as per powers delegated in AP Financial Code volume I & II.
7. Conducting of Auctions of Condemned articles as per powers delegated.
8. Maintain original personal files of Inspectors of Police (Communications)
9. Maintain Original Personal files of all Ministerial staff of the Head Office.
10. Sanction Rewards
11. Inspect/visit the offices of the SP(C) once in a year. Offices of the Zonal DSP(C) and workshop of Inspectors of Police (Communications) and all District Headquarters Radio stations once in 3 years by rotation.
12. Inspect/visit rest of the HF Radio stations in the state once in 5 years.
13. Submit monthly reports to the DGP, through the DPC.
14. Attend to such other duties as may be assigned by the DPC.

Powers and responsibilities of SP (Communications)

892-1 The SP(C) shall exercise all Administrative and Disciplinary powers in accordance with various rules in respect of his charge.

2. As head of the Police Communications within his jurisdiction he shall be responsible for Supervision of work of the Officers and staff, management and functioning of all Police Radio stations both HF and VHF, Repeater Stations, Workshops etc., within his jurisdiction. He is also responsible for ensuring efficient and technical management of the Radio equipment and communication networks within his jurisdiction. He shall examine and ensure security of the installation and information handled by the units under his charge.
3. Preparation of promotion panel of HC(C) and HC (Electricians) fit to act as ASI(C) following the procedure laid down in G.O. Ms. No. 14 Home (Police - G) Department, dated 20.1.95.
4. Preparation of promotion panel of PC(C) and PC (Electricians) fit to act as HC(C) and HC (Electricians) following the procedure laid down in G.O. referred above.
5. Transfer of HCs and PCs(C), (Electricians) within his jurisdiction. Additional Director, Police Communications, shall do transfer from the jurisdiction of one SP(C) to the jurisdiction of another SP(C).
6. Condemnation of the un-serviceable kit articles of the staff and un-serviceable Radio spares within his jurisdiction subject to monetary limits prescribed in Appendix - VII of the AP Financial code Volume - II.
7. Verification of the stores of Deputy Superintendents of Police Communications and carry out the test check of stores of Inspectors of Police Communications at the time of Inspection.
8. Maintenance of duplicate personal files of Inspectors of Police Communications and Original personal files of SIs of Police Communications and Crypto.
9. Sanction of rewards as per rules.
10. Sanction of EL., sick leave etc., to all ranks from police constable communications to SI (Communications) and Crypto except Inspectors of Police Communications and DSP(C) within his jurisdiction. Sanction of Casual Leave to the DSP(C) marking a copy to the Addl. Director, Police Communications and Director, Police Communications.

11. Allotment of Government quarters to the Communications staff working at places other than Headquarters, Hyderabad.
12. Verification of all the Service Rolls/Books under their charge.
13. Inspection of the Offices of the DSP (C) in his jurisdiction once in a year, inspection of the office and workshop of Inspectors of Police (Communications) and all HF Radio Stations once in 2 years, and visit to all the VHF Radio Stations under his jurisdiction by rotation once in 3 years. The inspection shall be programmed in such a manner that all districts in his jurisdiction are visited during the year. Inspection notes in the proforma prescribed shall be submitted to the DPC through the Addl. DPC.
14. Send monthly itineration reports to the Director Police Communications through the Addl. DPC.
15. Organize and ensure efficient management of Communications system and coordination with local police during all important occasions like VVIP visits and other occasions like cyclones, floods, pushkarams etc.
16. Attend to such other duties assigned by the Addl. Director, Police Communications and Director, Police Communications from time to time.

Duties and responsibilities of DSP (Communications)

893-1. Sanction CL. to Inspectors of Police (Communications) working under him.

2. Exercise the Disciplinary, Financial and other powers as enumerated in the Rules/Powers vested with the post of DSP.
3. Be responsible for the efficient administration, security of all establishments and information handled and efficient and smooth functioning of all Communication Networks, Repeater stations, Radio workshops and Head quarters sections under his charge. He shall also deal with the Communication irregularities of stations under his charge.
4. Be responsible for ensuring efficient maintenance of equipment in the Radio stations and Head quarters section under his jurisdiction, he shall scrutinize the District job extracts and dispose them promptly.
5. Supervise over the work of Inspectors of Police (Communications) and other staff working in his jurisdiction.
6. Inspect all HF Radio stations and connected Head quarters VHF Radio stations, Repeater stations, Radio workshops and Offices of the Inspectors of Police (Communications) in his jurisdiction once in a year.
7. Visit as many VHF stations as possible in his jurisdiction during the Inspection tours.
8. Physically verify all Government Property. and Stores transactions at various Radio stations and Head quarters section under his jurisdiction during their Inspections.
9. Attend to Stores audit work as ordered by Director, Police Communications.
10. Maintain good liaison with the Local Police Officers and BSNL officials.
11. Submit monthly report to the Director, Police Communications through the concerned SP(C) and the Addl. Director, Police Communications.
12. Attend to such other duties as may be assigned by the SP(C), Addl. Director, Police Communications and Director Police Communications.

Duties of Inspector of Police (Communications)

894-1. These categories, irrespective of the speciality to which he may belong have powers, duties and responsibilities that are common, besides specific duties indicated separately. The common functions, powers and responsibilities are as below:

- A. He has the same disciplinary and financial powers in respect of their charge, which Inspectors of Police in Civil Police exercise.
- B. Grant of Casual leave to all subordinates working in his charge.

- C. He shall submit weekly diary of work done to the DSP concerned.
- D. Be in charge and responsible for efficient management, secure and smooth functioning of all communications networks, equipments, stores all connected installations in his charge.
- E. Supervision, guidance and corrective action on the work of the staff attached or working in his charge.
- F. Keep the senior officers informed of all matters pertaining to communications, conduct, discipline and any irregularities, which come to notice along with corrective action taken through DSP (C).
- G. Maintenance of all records and registers connected with his charge as prescribed and ensuring such maintenance by his sub-ordinates.
- H. Responsible for Government property in his charge.
- I. Periodical overhaul of equipment and maintenance of their History sheets.
- J. Perform such other duties as may be ordered by his Superiors.

Inspector of Police (Communications) in charge of District/Cities shall be responsible for

- 2-A. The efficient administration and better functioning of Communications networks including Hotlines and CRYPTOGRAPHY, Repeater stations and Radio Maintenance Centres in his jurisdiction.
- B. To keep the DSP(C) concerned informed of his movements and that of the staff working under him and the functioning of all the Communication networks in his jurisdiction, including irregularities if any, and also disciplinary matters.
- C. The efficient maintenance and proper up-keep of the equipment in his jurisdiction prompt submission of job extracts, supervision of repairs and maintenance of equipment by the technical staff.
- D. Daily scrutiny of Traffic records and logs while at Head quarters including for days he was away from Headquarters on his return.
- E. Scrutiny of logs received every fortnight and initiate reports when necessary.
- F. Hold weekly parade for the staff at the Headquarters.
- G. Allotment of residential quarters earmarked for Communications by SP/CP.
- H. Inspection of all Radio stations once in a year and submission of inspection reports in prescribed proforma to DSP(C).
- I. Implementation of instructions issued on the working of the Police Communication networks.
- J. Liaison with the CPs/SsP.

Inspector of Police (Communications) (Technical Stores) shall

- 3-A. Be in charge of all classes of Stores stocked in the Police Communication Department and ensure that all the Stores is properly arranged and properly secured against loss, pilferage, damage or destruction by insects, or moths, maintain correct account of all items of stores and ensure that all transactions of stores are made according to rules and departmental orders and are duly entered in the appropriate ledgers.
- B. Work out the annual requirement of technical spares, stationery and clothing items and takes further action.
- C. Assist with the Stores purchase section in the preparation of Tender, Tender schedules, cost comparative statements and also procurement of store items, clothing and stationary.
- D. Scrutinise the periodical GP returns received from the Sub-Ordinate officers for further action.
- E. Correspondence and follow up action on the audit reports of the DSsPC.

Inspector Police (Communications)(State Radio Maintenance Centre) shall

4-A. Be in charge of State Radio Maintenance centre, transmitting station, Battery charging section, carpentry, painting and black smith sections and responsible for close supervision over the work of Technical staff in the State Radio Maintenance centre, Battery charging section, Carpentry, Painting, Blacksmith sections.

B. Carrying out repairs to all the defective Radio and allied equipments received.

C. Monitoring the progress of the periodical overhaul of all communication equipment of various Radio stations and keep SsPC informed for further action.

D. Maintaining of job register.

E. Testing and evaluation of all sample articles received and acceptance testing of all technical stores purchases, before they are taken to stock by the Central technical stores.

F. The testing of all unserviceable equipment, spare parts etc., and their condemnation by the competent authority.

G. Assist SsPC in scrutiny of reports on Job extracts from Zonal DSsPC and follow up action on pending jobs.

Inspector of Police (Communications) (Master Communications Control) shall

5-A. Be in charge and responsible for the secure, efficient and smooth functioning of all H.F. (Main link), T.P. and HOTLINE Communication Networks at state Hqrs. Hyderabad. Shall enforce strict security arrangements for this area.

B. Ensure that all the Communication links are working on authorised frequencies and that there are no infringements of the frequencies and no breakdown of communications due to faulty equipment.

C. Ensure no breaches of security are committed in Radio Communications.

D. Ensure that there are no delays either in transmission or delivery of Radio Messages to the addressees.

E. Personally supervise the clearance of traffic over the communication networks during emergencies and visits of VVIPs to the state.

F. Ensure that the receiving aerials including the multi couplers are kept in proper working condition and the Radio and allied equipments are in good working order.

G. Scrutinize the daily traffic and submit the scrutiny report to the SP(C) concerned through DSP(C) Hq.

H. Ensure that the Central monitoring station at Hyderabad functions efficiently.

The Inspector of Police (Communications) (Crypto) shall be responsible for

6-A. The efficient functioning of Crypto cell at Head quarters Hyderabad and responsible for maintaining related correspondence with DCPW and with districts.

B. Proper functioning of all Crypto centres working in the State and inspect them once in a year as per DCPW, guidelines.

C. The Collection of classified documents from DCPW, New Delhi and their distribution to all Crypto centres in the State.

D. The proper accounting of the classified documents by maintaining prescribed Registers.

E. The destruction of obsolete documents.

F. Imparting training to PRO personnel on various Cipher/PWCC systems.

G. Preparing the team for competing in the CRYPTOGRAPHY competition in All India Police Duty Meet.

H. Correspondence pertaining to Communication irregularities, breaches in Radio Communication security, infringements in the operation of Wireless circuits, Radio licenses and other subjects pertaining to DCPW, DOT, WPC wing, Ministry of Communications Government of India and other Departments concerned.

The Inspector of Police (Communications) (Headquarters) shall be responsible for

7-A. the maintenance and up-keep of all Government buildings including residential quarters under the control of Police Communications Department. He will pursue with the concerned sections in Chief Office as well as A.P.Police Housing Corporation (APPHC) and ensure prompt and timely repairs.

B. maintaining a Register of all the buildings including the residential quarters allotted to Police Communications Department in various locations at Hyderabad, which will include the inventory of Civil and Electrical fittings for each one and ensure their proper accounting while HO/TO.

C. processing the applications for allotment of quarters to Police Communications Department staff posted to Hyderabad by maintaining waiting lists for the different types of quarters and take prompt action for allotment whenever any quarter falls vacant.

D. the PC assistant and Foot Messengers at Hq., including attached personnel and supervision of their day to day work.

The Inspector of Police (Communications) (Training) shall

8-A. Be in charge of the Police Radio Signal school and Library and responsible for the efficient training of men in the training school and exercise disciplinary and administrative control over the trainees under him.

B. Conduct weekly tests to the trainees and submit the results to the Addl. Director, Police Communications through proper channel.

C. Ensure boarding, lodging and sanitary arrangements of trainees.

D. Maintain personal sheets for each trainee and enter the weekly results in the sheet.

E. Assist in preparation of yearly programme for in service refresher courses and other familiarization courses for the technical as well as operating staff and preparation of list of relevant courses being conducted by other Departments/Organizations/Institutions like DCPW, ATI, etc., and prepare list of personnel eligible to under go such courses.

F. Organise intensive training for the teams selected for participating in the State Police Duty meet and All India Police Duty Meet.

G. Arrange conduct of weekly parades and drills as per rules in force at State headquarters.

Inspector of Police (Communications) (Planning & Development) shall be responsible for

9-A. Studying the circuitry of all Communications and allied equipment available in the Police Communication Department, undertake appropriate changes / modifications in the circuitry, wherever needed to suit operational needs for better performance and maximum utility of various systems / equipments.

B. Keeping himself as well as the staff working under him abreast with the latest developments in the field of Telecommunications and suggest adaptation of such techniques/technologies which are useful to the Organization/Department for its efficient functioning.

C. Thorough testing of all new types of communication and Electronic test equipment offered by the suppliers for purchase to the Department and submits his evaluation report to the Director, Police Communications through concerned superior officers.

D. Suggesting replacements for the obsolete parts which are out of production and are not available in the market with the substitutes, readily available and also cost effective.

E. Planning the distribution of allotted Frequency spots (HF, VHF & UHF) for optimum utilization and operation without infringement or interference.

F. Planning and installation of VHF Repeater stations to achieve full coverage of VHF communication in the districts.

G. Suggesting methods to improve the functioning of Communication networks in the State.

H. Preparing schemes for large-scale communication arrangements during special occasions like Elections, visits of VVIPs to the state, large scale rallies and public meetings, Pushkarams and other important fairs and festivals in the State.

The Inspectors of Police (Communications) (City) shall be responsible for

10-A. Efficient, reliable and smooth functioning of Communication networks including the EPABXs, in their jurisdiction.

B. For the efficient functioning of Repeater stations functioning in their jurisdiction.

C. Maintenance of close liaison with the City Police Administration and DOT authorities concerned.

D. Providing Communication facilities as ordered from time to time during special occasions like Elections, Visits of VVIPs to the City, serious Law & Order problems and other important fairs and Festivals in the City.

Duties and responsibilities of Non-Gazetted Officers in Communication wing

895-1. The Sub-Inspectors of Police both Communications and Crypto and Assistant Sub-Inspector of Police (Communications) generally assist the Inspector of Police (Communications) concerned. In that capacity they shall be responsible for the work entrusted to them by Inspector of Police (Communications) inter-alia, the following duties shall be performed:

A. Attend to the repairs and maintenance of the equipment in the district/section. In addition to this, Crypto trained SI (Communications) shall attend to Crypto work.

B. Attend to Operating duties in the link and other related duties during emergencies.

C. Maintain security and upkeep of Government property and connected records.

D. Maintain prescribed records, Registers, Files and related correspondence.

E. Disbursement of cash, maintenance of cashbook and connected records.

F. Supervise functioning of Communication channels, take immediate suitable action for restoration of communication during times of breakdown, if any.

G. Establishment of Communication during emergencies, such as VVIP/VIP visits, Elections, Special operations and Natural calamities etc.

H. Ensure discipline among the staff working in Districts/sections and maintain cordial relations with their subordinate staff ensuring their welfare.

I. Maintain liaison with the Police officers to ensure proper functioning of HF/VHF sets provided to them.

J. Submit weekly diary of the work done to the DSsPC through Inspectors concerned.

2. The duties and responsibilities of the Radio Station Officer are as follows:

A. Be responsible for the efficient functioning of the Radio Stations and also its cleanliness.

B. Maintain prescribed records and submit returns.

C. See that all instructions in regard to the Working of the Radio stations and clearance of Messages issued from time to time are strictly implemented.

D. Be responsible for all Government property in the Radio station and take such measures as are necessary for their safety.

E. Attend to all correspondence relating to the working of the Radio station.

F. Keep in touches with the Local Police Officers and maintain cordial relation ship with them.

- G. Scrutinise the daily logs with the messages and the traffic records every day.
- H. Attend to the operating work as per instructions.
- I. Attend to the routine maintenance of all the equipment and accessories in the Radio station.
- J. Maintain a High standard of security and guard against leakage of secret messages and sabotage by subversive and hostile elements:
- K. Maintain close supervision over the working of all static and mobile VHF stations, functioning in the jurisdiction of concerned sub-division/circle and ensure their efficient functioning.
- L. Attend to recharging of batteries of all VHF stations falling under his sub-division/circle.
- M. Under take monitoring or any other work whenever ordered.
- N. Attend to any other duties as assigned by the concerned Superior Officers.
- O. Attend to weekly parades regularly if working at Head Quarters.

3. The PC (Communications) will:

- A. Attend to the Operating work of the Radio station and maintain log books (Form 179)
- B. Attend to the proper up-keep of the equipment and cleanliness of the Radio station.
- C. Do Monitoring or any other duties assigned to them by Radio Station Officer and concerned Superior Officers.
- D. Have a joint responsibility for the safe custody of the equipment in the station and
- E. Maintain strict secrecy over the information of intelligence passing through the Radio network.
- F. Attend weekly parades

4. The Black Smith/Carpenter/Painter and Electricians will:

- A. Carry out the work in their concerned sections under direction and control of the Inspector of Police (Communications).
- B. Proceed to various stations in the State and attend the jobs assigned to them
- C. Do any other work that may be assigned to them by Inspector of Police (Communications) and other Superior Officers concerned, from time to time.
- D. Attend to weekly parades at State/district headquarters.

Officers authorized to use Police Radio Grid

896 -1. The officers and the department shown in Annexure-17A (Enclosed) are authorised to send messages on the police communication network provided they relate to the subjects specified in Annexure-17B.

Message writing instructions

2. The Officers entitled to use Police Communications Network should send only the messages pertaining to Law & Order, crime prevention, investigation, prosecution and all connected matters therewith. Messages about natural calamities, accidents and missing of persons, women or children, dissemination of information or criminal intelligence also come within the purview of Law & Order, for the purposes of use of the Radio Grid. The communication staff have instructions not to accept any messages which does not relate to the above. A detailed list of subjects, pertaining to L&O, semi Law & Order etc. on which messages are to be originated is given in Annexure 17-B.

3. Radio messages should be treated on a par with telegrams, and messages conveying information, which could normally go by post, should be avoided. Messages must be written legibly/type written in the standard Police message Form 180, oral and casual instructions to operators (for transmitting messages) to frame and transmit message should be avoided.

4. Messages should not be communicated by telephone to the operating staff for transmission over the grid as telephones are apt to cause phonetic errors, and unreliable from the security point of view. The communication of messages over telephone will also result in the telephone at the Radio station being kept unnecessarily engaged. However, messages may be conveyed over telephone in case of any emergency followed by a written confirmation.

5. Normally each message should be sent in duplicate to the Radio station, one copy of which will be retained in the Radio station and the other returned to the sender with acknowledgement and THI Particulars. In case of messages addressed to more than one authority the number of copies required will be the number of nets on which the messages have to be transmitted plus an office copy to be returned to the sender with acknowledgement and THI particulars. The officer-in-charge of the Radio station should be consulted as to the number of copies required for transmission to multiple addressees. This will avoid delay, in as much as no time would be wasted in the Radio station in making out copies of the messages for transmission by different nets.

The following instructions should be borne in mind while writing up messages in Form 180.

6. Address to: Designation of the official and/or name of the department along with the name of the Station should be inserted here. If approved abbreviated addresses are available, they should invariably be used. Under no circumstances should titles, prefix or suffix be used.

7. Address for information (Info): If the message is also required to be sent to any authority other than the addressee for information only, the name or designation of the official or the name of department together with the name of the station should be inserted in this space. Approved abbreviated addressees, if available should be used.

8. Address from (FROM): Name and / or Designation of the official or name of the Department of the Originator along with the name of the station should be entered here. If approved abbreviation is available it should be used.

9. Originator's Number: The Originator should enter his reference number of the correspondence.

10. Date: The date on which the message is originated should be entered in this space. The date may be written in figures separated by slashes only for example the 23rd of March 2002 will be written as 23/03/2002.

11. In Reply to: The reference of the correspondence to which the message is in reply should be entered in this space. This eliminates use of common preamble in a letter. Example: "Reference is invited to your No.:....." or "With reference to (abbreviated designation) No. :....."

12. Dated: The Date of the reference shown in (6) above namely "IN REPLY TO" should be entered in this space. It should be written only in figures as mentioned above under "date".

13. Text: owing to the large volume of traffic handled in a Radio station an unnecessarily lengthy message may cause delay and hold up other messages in the grid. It is essential to combine brevity with intelligibility. Before writing a message, consideration should be given to the contents carefully. The text should then be couched as briefly as possible in telegraphic language. The use of words like "Please", "Kindly", "Would be grateful" must be eliminated. Omission of these words in a Radio message does not imply lack of courtesy.

14. The following punctuation signs only must be used: Full stop should be written within a circle, whether by hand or by type written, e.g. (.). No full stop is required at the end of the text. While Comma (,); Inverted Commas (" "); Hyphen (-); Oblique or Stroke or bar (/); Brackets (); Decimal point (.) and Apostrophe (') should be written in the same way as in ordinary writing. Apart from the above signs, no punctuation or mathematical signs should be written and care must be taken to ensure that their omission does not alter the sense of the message. On no account should the text contain tabular statements, as they cannot be transmitted by Radio.

15. Priority: If it is desired that a message should be transmitted more expeditiously than as ordinary message the degree of priority should be entered in this space. The categories of priority available and their use are given in the succeeding order.

16. Originator's signature and designation: The originator should affix his signature and designation in this space signifying that he has approved the contents of the message including the priority classification, if any, and authorized its transmission by Radio. Messages not signed by an authorized person will not be accepted for transmission by Radio.

17. Time of origin (TOO): The time (in figures) at which the Originator signs a message should be inserted in this space. The first two figures indicate the hours and the next two, the minutes. Thus, five minute past six O' clock in the morning is written as 0605. The Abbreviation Hrs., should not be used. In all cases "Time Of Origin" (TOO) must be entered by the Originator.

18. The remaining spaces in the message form are for the use of the wireless staff only and the Originator should write nothing.

Instructions on Classified Messages

897-1. Security: As all Radio transmissions are subject to interception by any person possessing a receiver, there is no security attached to the transmission of a message by Radio. Originators must therefore ensure that, if the contents of a message are of classified nature, the procedure elaborated in the succeeding paragraphs is followed.

2. Security Classification of Messages: Following will be security classifications:

classification	Abbreviated form
(a) Top Secret	Top Sec
(b) Secret	Secret
(c) Confidential	Conf.

Note:- Originator of a message is personally responsible for its correct security grading according to information contained therein. To grade a message correctly and uniformly, particular attention shall be bestowed on the definition of various security classifications as given below:

3. Top Secret: Messages containing information of such vital nature that, for reasons of national security, it must not be disclosed to any one for whom it is not essential to have knowledge of it for the performance of his duty, and unauthorized disclosure of which would cause "Exceptionally grave damage to the Nation". This category is reserved for the Nation's closest Secrets and is used with great reserve.

4. Secret: Messages, the unauthorized disclosure of which would endanger national or internal security, cause serious injury to the interests or prestige of the nation or serious embarrassment to the Government, or would be of great advantage to a foreign nation. This classification should be used for highly important matters and is the highest classification ordinarily used.

5. Confidential: Messages, the unauthorized disclosure of which, while not endangering the national security, would be prejudicial to the interests of the nation, any Government activity or individual or would cause administrative embarrassment or difficulty or be of advantage to a foreign nation. Most matters will on popular analysis be not higher than "Confidential".

6. All Top Secret/Secret and Confidential messages will have to be encrypted and as such they should be sent in double envelopes to the signal office/Radio station. The inner envelope containing the classified message should be properly sealed, and should invariably be a new one while the outer envelope may bear an economy slip. The inner envelope should be marked with the Security classification i.e., Top Secret/Secret/Confidential together with appropriate priority. The Outer envelope should bear only the address of the signal office/Radio station and will not have the Security classification of the contents marked on it. However, the outer envelope should clearly indicate that, it is a message for transmission by Police Radio and should also bear its priority.

7. The Security classification should invariably be entered at the proper space in the Message form, before it is sealed.

8. Two skeleton copies of the message should also be attached to the sealed envelope containing a classified message. The skeleton copies will contain all details except the text of the message.

9. The person on duty in the Radio station will give a receipt of the message to the originator on one of the Skeleton copies with 'Paraphrase warning stamp' or 'OTP stamp' the paraphrase warning stamp makes it incumbent on the originator not to transmit the message without being paraphrased or to distribute the copies of the same to any unauthorized person. OTP stamp imposes no such restriction on the Originator.

10. A classified message should be sent to the Signal office through dependable couriers with utmost care and caution.

11. While originating a classified message, the Originator has the responsibility of determining whether a Radiogram is necessary or a letter or other form of communication would serve the purpose. He should grade the message appropriately. A Radiogram is given security classification according to the subject matter contained therein. It must be remembered that over grading of message is as harmful to security as under grading. Priority should be determined by the subject matter and the time factor involved in transmission and for action required to be taken by the addressee. Priority higher than what is absolutely necessary should not be given. Judicious use of priorities will assist the clearance of really urgent messages in time. The text and the address should be expressed correctly avoiding verbosity.

12. A Message, which has to be converted into a Cryptogram, has to be edited carefully, the principles involved being clarity, brevity, accuracy and security.

13. Conversion of Radiogram into Cryptogram and transmission is a very tedious process. It also takes considerable time to handle such messages. It is, therefore, imperative that, only such classified messages should be sent over Police Radio for transmission, which cannot be cleared by other means of communication. The Originators should also be prepared for the consequent delays that take place in the process of encryption/decryption.

Use of Priorities

898-1. Normally, messages are cleared according to the serial order of their receipt at a Radio station, i.e., according to the time handed in. However, to ensure faster clearance, the messages are given priorities (a) CRASH (b) MOST IMMEDIATE (c) IMMEDIATE (d) ORDINARY, according to the Urgency and importance of the message.

A. Crash: When a message of this priority is received, communication on all concerned channels is suspended forthwith, to clear message. This priority is restricted to extreme emergencies and should, therefore, be resorted to, only in very exceptional circumstances. This priority must be used when interruption of other urgent traffic is justified. This priority is to be used where the recipient has to take immediate action to save human lives or to prevent damage to valuable property or immediate apprehension of criminals.

B. Most Immediate: This priority is restricted to messages conveying information or instructions relating to natural calamities, disturbances, (Communal, anti-social and political), Strikes, accidents, riots, murder security measures, criminal information and important movements of the police, which in the opinion of the Originator, should reach the addressee immediately.

C. Immediate: This is restricted to messages conveying important information relating to Law & Order and Crime for immediate attention and action, for instance, information regarding probability of strikes, disturbances or any other upheaval, movements of high Government officials dealing with Law & Order, Political leaders, Agitators and Dangerous criminals.

D. Ordinary: This category is used for messages of Routine nature which do not come under any of the above categories but are connected with Law & Order and Crime, which are urgent enough to justify the use of Radio network.

2. The instances mentioned are not exhaustive but only illustrative. The Originator should consider each case and assign the minimum priority compatible with the requirement. However, with a view to ensure the correct priorities, the following Officers are authorized to use the priorities noted against them.

A. Crash: All Persons authorized to use the grid may use this Priority - only in very grave emergencies.

B. Most Immediate: The Director General of Police, Addl. D.G.P., Inspectors General of Police, Commissioner of Police, D.I.G of Police, Superintendents of Police, and other Police Officers of equivalent rank.

C. Immediate: Assistant Superintendents and Officers of equivalent rank, Inspectors and Sub-Inspectors, besides those entitled to send 'MOST IMMEDIATE' messages.

3. Only the minimum priority compatible with the circumstances of the case should be used, and if an Officer is authorized to use a particular priority, it does not imply, he should use that priority in respect of all messages originated by him. Officers may use higher priorities, which they are not normally permitted in exceptional cases, if it justifies such use.

4. The working schedule of District H.F link is limited and also the reliability of communication depends upon the climatic conditions. Further only two operators to work one at a time man all the Radio stations in the District link. Hence

A. all Unit Officers shall ensure that messages of routine, Office administration, reminders and non-law and order messages are not originated to clear on this grid. Like wise SDPOs and CIs shall be strictly instructed not to originate messages on routine traffic etc.

B. All Unit Officers should see that there is no mechanical repetition of messages received from Chief Office or DGP or other Senior Officers. They should study the messages and take appropriate action and communicate only those required.

5. The Unit Officers and all Senior Officers of Police Department shall ensure strict implementation of these instructions. The DPC should bring to the notice of Addl. DGP Technical services, every fortnight instances of wrong use of priority. Addl. DGP shall ensure suitable action on such reports to eliminate such wrong use.

Schedule of Working Hours

899. The Main Police Communication Network, linking various district headquarters to the State Police Head quarters Hyderabad, work from 0800 to 2200 hours on all days of the week. The Communication networks linking sub-divisional and Circle Hqrs., stations to the concerned District Head Quarters work from 0700 to 1200 Hrs and 1500 to 2000 Hrs, on all days of the week. All the Communications Networks will work extended hours whenever required. They will also work round-the-clock, in times of emergency.

Radio Telephony

900-1. All Police stations and Officers up to the rank of Inspectors have been provided with VHF communication facility for quick exchange of information related to Law & Order, crime prevention and investigation, extremist activities and anti-smuggling operations etc., with the following Radio equipment.

A. VHF Static Station: Consists of VHF set, 12 V battery, float charger and G.P. antenna supported by a mast.

B. Mobile Station: Consists of VHF set, 12V battery and a whip antenna

C. Handheld set: Consists of a VHF Transreceiver with Ni-Cd battery and helical antenna.

2. Safe custody: The S.H.O. of PS is responsible for the safe custody of the static station equipment. The officer to whom a mobile station or a hand held set is provided is responsible for their safe custody. The Inspector of Police Communications is responsible for accounting and or carrying out repairs to the equipment.

3. Working Schedule: The working schedule for VHF station is from 0600 hrs to 2200 Hrs continuously. Depending on local requirements they may work extended hours or round-the-clock.

Handling and Maintenance of the Equipment

901-1. The static station should be operated by the Constables provided by the SHO. The SHO should respond to the calls whenever he is present in the station. Officer should only respond from the mobile/handheld set whenever they are called. They should be well conversant with the handling and maintenance of equipment, i.e., to check :

A. Condition of aerial, Radial Rods, Guy ropes & aerial cable.

B. Switches and channel controls of the set are in correct position and the indicator lamps are glowing.

C. The Mains and Charge indicators of Charger are glowing.

D. Correct level of Electrolyte by adding distilled water to Battery and tighten brass clamps to have firm contact with battery terminals.

2. They have to ensure daily maintenance of equipment. If any defect is noticed, they should inform to the Control station as well as Inspector Communications. They should pursue the matter with Inspector Communications till the Technical staff rectifies the defect.

3. Officers provided with Mobile/Handheld VHF sets should send their batteries to the nearby HF station for charging and ensure that no communication breakdown occurs due to discharged battery.

4. Every care should be taken to protect the VHF equipment. In case it is lost or damaged it should be immediately reported to the concerned Communication Officer.

5. Equipment should always be safeguarded from drenching in rainy season.

6. Untrained and un-authorized persons should not be allowed to handle the set and set should be used only for official conversation.

Radio Telephony Procedure

902-1. The following procedure should be followed while making conversation.

A. Should listen carefully before transmission

B. Should ensure prompt and intelligent reply to the calls.

C. Should observe grid discipline and obtain permission from the Control station to contact any other station in the grid.

D. Pressal switch should not be pressed more than one minute and hand set should not be pulled too far.

E. Calls should be constructed in the sequence i.e. call sign of the station called phrase 'From' and call sign of the station calling exmaple : Tenali from Guntur.

2. While transmitting operator should always bear in mind the Rhythm, speed, volume and pitch (RSVP) to ensure maximum intelligibility and Figures and difficult words should be repeated using phrase I say again. Phonic alphabets must be used to spell out a word-using phrase I spell.

3-A. Phonetic Alphabets

A	Alfa	B	Bravo	C	Charlie
D	Delta	E	Echo	F	Foxtrot
G	Golf	H	Hotel	I	India
J	Juliett	K	Kilo	L	Lima
M	Mike	N	November	O	Oscar
P	Papa	Q	Quebec	R	Romeo
S	Sierra	T	Tango	U	Uniform
V	Victor	W	Whisky	X	X-Ray
Y	Yankee	Z	Zulu		

B. Standard Phrases

O.K	Correct / Agreed
Out	My Transmission Ended
Out To You	Finished With You And No Reply Expected From You
Over	Ended My Transmission and expect Transmission From You
Report Signals	Report My Signal Strength /Readability
Roger	Message Received.
Wait Out	Wait For Next Transmission To Respond
Wilco	Message Received, Will Be Complied With

Location and Protection of Radio Stations

903-1. All the fixed Radio stations should be located in the DPO, Reserve Police Hqrs., or in Police stations, establishments where guards are available. The Mobile Radio Stations, when taken by Officers on tour, should also be located at such places where guard is available and if not possible, in the building premises where the officer using the Mobile station, is camping. No other locations are permissible.

2. Radio installations should be treated as vital and protected areas and their security is the responsibility of the SP and CPs concerned.

Movements of Radio Stations

3. A fixed Radio Station cannot be shifted normally. In case of any emergency it can be shifted on the orders of the Director, Police Communications/Director General of Police. This requires the approval of Ministry of Communications, Government of India as per the Licencing conditions.

Delivery of Radio Messages

904-1. At the State Police Head Quarters, Hyderabad, Radio Messages intended for Officers located near the Master Communication Control station will be delivered by cycle or foot messengers. Motorcycle messengers will deliver messages meant for Officers, who are far away.

2. In the districts, the District Superintendents of Police/ Commissioners of Police, will provide motor cycle/cycle/foot messengers, preferably 3 or 4 for Zonal Head quarters, 2 or 3 for District Head quarters and one for

each sub division/Circle Head Quarters station, at all fixed Police communication Radio Stations, in their jurisdiction to enable prompt delivery of messages. They will also provide messengers for Mobile radio stations installed in their jurisdictions.

Use of Police Communication Network in Emergencies

905. The Police Communication Network should be normally employed only for the transmission of messages pertaining to matters as defined in Order 895. In times of anticipated emergencies, the prior approval of the Ministry of Communication, Government of India, should be obtained through the Directorate of Coordination, Police Wireless, New Delhi, for the use of Police Communication network for the purposes other than those, for which the Police Radio station are licenced. But in times of sudden emergency, like floods, Cyclones and other such Natural calamities the Chief Secretary to the State Government can authorize the use of Police Communication network for passing messages pertaining to those events in anticipation of the sanction of the Government of India. The post-facto sanction of the Ministry of Communication, Government of India should however be obtained, as quickly as possible, preferably within 24 hours. Such sanction may even be obtained over the Police Wireless in case the Posts and Telegraph channels go out of commission, due to disturbances.

Inter-State Police Radio Network

906. This service will be utilized by all Police Officers, District Collectors and Secretaries to the Government, for the transmission of messages pertaining to all Police matters particularly crime prevention, investigation, Law & Order and Security to New Delhi and other State capitals. Through the State capitals the messages could be passed to all places provided with Radio Stations in the various states. The Police Communications networks in other states and the National capital are to be utilized for fast, reliable and secure communication and interchange of information including that relating to crime and criminals.

Drawl and Disbursement of Pay and Allowances to the Staff

907-1. The General rules regarding the drawl of Pay and Allowances as are applicable to Police Department, apply to the personnel of this Organization also. The Pay and Allowances of all the staff in the State will be drawn at the Police Communication Directorate, Hyderabad and credited to the bank account of the staff concerned every month.

Housing of the Staff

2. All members of and below the rank of Inspector of Police (Communications) are entitled to rent free accommodation. Quarters will be provided to all Ranks of Police Communications in the districts as well as at State Head quarters by the concerned SP or CP. Preference should be given to the Communication personnel in the allotment of quarters as the communication personnel often work extended hours and as such should not be made to reside far away from the Radio stations. Those who are not provided with Government quarters will be paid enhanced House rent allowance at the sanctioned rates.

Rewards

3. Personnel of this Organization are eligible for Rewards in accordance with the rules governing the grant of Rewards given in Chapter 11.

Musketry and Drill

4. SP/CP in the districts will arrange for Musketry practice for all HCs and PCs Communications according to the Civil police scale, Inspectors of Police (communications), SIs (communications), ASIs (communications) will be given revolver practice according to the scale prescribed for their counter parts in the civil police. The concerned SP may indent for the ammunition required for this purpose. In the case of personnel working in the Hyderabad city, the DCP CAR, Hyderabad will arrange for the practice.

Uniform

5. Officers and staff will be in uniform while on duty. The dress regulations are reproduced in Annexure - 17.

Training and Refresher Courses

6. A Training centre for the Police Communications Organization/the Radio Signal School is attached to Police Communications Organization. Specified induction, in-service and on job courses shall be conducted by this centre. The course content and duration, the type of courses and the personnel for whom they are intended shall be drawn up by the Director of Police Communications in consultation with the I.G.P., Training. A detailed training manual shall be drawn up for the training centre sent through Addl. DGP (Recruitment and Training) and approved by the Director General of Police. The courses shall be conducted and training centre in accordance with that manual. The DPC assisted by Addl. DPC shall directly over see the functioning of the Training centre. Specified in-service courses shall be held periodically for the technical as well as operating staff to improve and update their professional skills. Senior officers, Inspectors, Sub-Inspectors of Police and other staff shall also be sent for the courses held under the auspices of the Directorate of co-ordination Police wireless, MHA, New Delhi or other Organizations in the field of Communications.

Central Technical Stores

7. All types of technical, stationery and clothing items required for the working of the Police Communications network are procured and stocked at the Central Technical stores in the Directorate at Hyderabad. The Indents from the Inspectors of Police Communications concerned are scrutinized and bulk supplies are effected periodically once in six months, regularly. Emergent requirements are met by monthly indents or whenever required. The Inspector of Police Communications in charge shall supply the stationery and clothing articles to the staff working under them. Adequate stock of stores is kept by the district Inspector of Police Communications and Radio station Officers for their day-to-day working of the Radio Stations and Radio Maintenance centres.

Library

8. The Library attached to Police Communications Directorate at Hyderabad is intended to improve the professional and technical knowledge and efficiency of the staff. It contains up to date publications on Communication Engineering, Computers and latest Technologies available in the field of Telecommunications. Newspapers and technical journals are also kept in the Library.

Liaison with other Government Departments/Organizations

908. Close liaison should be maintained between the Police Communication organization of this State and Police Communications Organization of the Defence Services, Department of Telecommunications, Civil Aviation and Railways, specially during national emergencies. Standing reciprocal arrangements for the transmission of messages to destinations covered by any one of the Organizations will be made from time to time by the representatives of these organizations meeting in conference. The DPC should maintain close liaison with Director, Police Telecom., DCPW, GOI, WPC wing, Ministry of Communications, Government of India and his counter parts in other states and Union Territories in the Country.

Records to be Maintained in Radio Station and by Inspectors of Police (Communications)

909. The following are some of the Important Registers to be maintained in the Radio Stations and by the Inspectors of Police Communications. In addition, the files will be maintained separately for circulars on each subject that is for instructions on the maintenance of the sets Radio Procedure, natural calamities, VVIP visits, administrative matters and other relevant matters as per the instructions issued from time to time.

1. At Radio Stations:

- A. In and Out message Registers (Form 181 & 182)
- B. Gazetted Officer's visiting book
- C. Non-Gazetted Officer's book
- D. Message Delivery book
- E. Duty roster
- F. Government property Register
- G. Attendance Register
- H. History sheets for Batteries, Battery chargers, Clock etc.
- I. Tappal (Despatch) Book
- J. List of Fixed Police Radio stations in India (to be kept under lock and key)
- K. Registers for Petrol, Oil, distilled water, kerosene etc.
- L. Radio Station log (Form 180)
- M. Any other Registers, Files and charts as ordered by the Director, Police communications, from time to time.

2. By Inspectors of Police (Communications):

- A. Cash book
- B. Government property Register and Distribution Register
- C. Casual leave Register
- D. Communication irregularity Register
- E. VHF Communication breakdown Register
- F. Hot line Break down Register
- G. Minor Punishment Register
- H. Railway and Bus warrant books
- I. Long Leave Register
- J. Stock Registers for Technical stores, Stationery etc.
- K. Personal Records of Operators
- L. Distribution Register for Distilled Water
- M. Tappal Book
- N. Job Register
- O. Police Gazette file
- P. Contingent Bill Book
- Q. History sheet of all equipments in his charge
- R. Any other Registers, files and charts as prescribed by the Director, Police Communications from time to time.

910. The abbreviated Telegraphic address of the Director, Police Communications is “ANDRAD”. The un-registered telegraphic addresses of Inspector of Police Communications and Radio stations will be “Inspector Communication” and “Police Radio Station” respectively.

Source of Power

911. All Fixed stations will be operated on local commercial Electric supply. The Superintendent of Police in the Districts and the SP(C) concerned at Hyderabad will be in touch with the local Electrical Engineers and ensure advance information of any temporary shut down or break-down of Electric supply, particularly during Emergencies.

Annexure 17-A

Officers authorized to use Police Radio Grid

1. All Ministers
2. Chief Secretary to the Government
3. Home Secretary to the Government.
4. Secretary (Political) G.A.D
5. All Revenue Officers of & above the rank of MRO.
6. All Police Officers of & above the rank of SIs and AOs.
7. Director, Finger Print Bureau and Officers of and above the rank of S.Is. (on Law & Order subjects only)
8. Director, Police Transport Organization.
9. S.P. and above the staff of Vigilance cell of Civil supplies Department.
10. Officers of and above the rank of SIs of Central Police Battalions and RPF.
11. Officers of State Forensic Science Laboratory (Director, Joint Director, Assistant Directors, Hand writing experts, Fire arms and ballistic experts).
12. Police Prosecuting Officers including APPOs.
13. Public Prosecutors of Districts (to contact Police Officers at Mandal level only on urgent matters).
14. Director of Prosecutions and his sub-ordinate Officers (Urgent & important matters pertaining to Court matters only)
15. Legal Advisers of Police Department :
16. Central Intelligence Officers : DCIOs, ACIOs of the Ministry of Home affairs, GOI.

17. Gazetted officers of Chief Labour Commissioner Organization , GOI.
18. Government examiner of Questioned documents, IB (MHA), GOI.
19. Chairman, Regional ,Planning & development committees.
20. Director General of Revenue, Intelligence and Investigation, GOI Officers of the Central excise and customs in emergent cases where other channels are not easily available or where due to needs of secrecy.
21. Superintendents of Central , District jails (on the following subjects for which they are authorized).
 - (a) Messages relating to Escape of Prisoners and Riots in jails.
 - (b) Messages relating to admission, release and transfer of Detenues.
 - (c) Messages relating to Escort parole: Parole: Furlough: Deaths: Production of UT prisoners before court: escape of/absence of the convicts or surrender on due date, the services of Police required to bring them back in respect of inmates of Juvenile Homes of Nizamabad, Hyderabad, Anantapur and Visakhapatnam by Police.
22. Collector, Central Excise Guntur (in emergent cases when other media of Communication fail)
23. Leaders of Opposition in Legislative Assembly and Legislative Council if all other available means of communications fail and in extraordinary cases.
24. Commissioner for Relief AP
25. Director General Forensic Science Laboratory, GOI.
26. Secretary Revenue, Government of AP, Hyderabad (Messages relating to cyclones, floods and droughts).
27. Controller of Explosives (GOI).
28. Dy. Speaker, Legislative Assembly (Tour Programmes and Law & Order)
29. Chief whip to Government of AP (Tour programmes only)
30. Director General, Vigilance & Enforcement/District Vigilance & Enforcement Officers.
31. Deputy Chairman, State Development Board (Tour programmes only)
32. Director General of Fire services, Divisional Fire services, Assistant Divisional Fire officer and Regional Fire service Officers in AP on the matters relating to Natural calamities, Cyclone, Serious Fire accidents & VVIP visits only.

Note: In case of emergency, the Director General of Police may authorize Officers of other Departments to use the Police Communication Net work to clear messages subject to the licence regulations.

Annexure 17-B

Messages on the subjects noted below will be accepted for transmission

Law and Order

1. Court attendance - Summons, Warrants, Trials
2. Information relating to arrests, Movements of suspects, History sheeted persons dangerous criminals, Jail releasers.
3. Dacoities, Robberies
4. All grave crimes (Order 52-7) and Crimes of specially grave nature (Order 55-2)
5. Theft cases - Arrests and Proceedings relating there to,
6. Searches, Recoveries and possession of Stolen properties

7. Look out of absconding warranties, wanted offenders and look out for stolen properties.
8. Escort by Police personnel
9. Corruption cases
10. Information regarding accused persons in Custody
11. Verification of allegations against suspected persons
12. Descriptive rolls of deserters: Military / Police
13. Foreign Nationals - Passport verification
14. Verification of Deportation of foreigners
15. 'Crime' statistics
16. Identification parade
17. Failure of Static W/T Stations
18. Election duties and incidents relating to elections
19. Demand for Police personnel in emergencies and movement of forces during election.
20. Tour programmes of VIPs. (for example Minister, Convoy)
21. Information relating to missing persons such as children/disabled persons: Efforts of Police to trace
22. Movement of Police Officers on duty
23. Verification of antecedents in respect of ex-convicts, movements of history sheeted persons and matters relating to surveillance.
24. Death reports regarding Police Personnel.
25. Communal incidents where violence is threatened or has actually taken place.
26. Strikes: Hunger strikes and strike by labourers and workers etc.
27. Movement of personnel under C.I.D. Vigilance.
28. Offences under N.D. P.S. Act 1985 and preventive measures under the Act.
29. Opening of fire on mobs by Government servants in the discharge of their duties.
30. Escape of prisoners and stay of execution of condemned prisoners.
31. Out break of riots in prisons.
32. Hunger strike of prisoners
33. Movements of prisoners having a special background
34. Public meetings
35. Prosecutions
36. Demonstrations, anti-Government demonstration or proposed demonstrations at the time of visit of VIPs and during other important functions.
37. Emergency cases of Breach of peace or disturbances of public order and agitation affecting Law and Order.
38. Natural Disasters / Calamities.
39. Information about death, serious injury, due to any offence, accident or illness where no other means is available to the public:

Semi Law and Order Messages, Police Administration

1. Appointments and postings in the police Ranks and Statistics relating to strength, promotions, demotions etc., of Police personnel.
 2. Police courses, training etc.,
 3. Character rolls, service Books etc. of Police personnel.
 4. Police officers conference Inter-State and Intra-State.
 5. Police business indirectly related to law and order.
 6. Service to the public to communicate information regarding serious illness, death, missing persons, children, women etc.
 7. Messages relating to Communication and Technical maintenance of the Police Wireless Grids (including Inter-State Police Wireless such as daily equipment reports etc.,) and other technical service matters.
- ◆ 2015 Police Computer Services & Standardisation, AP Police Department.



Andhra Pradesh Police Department

CHAPTERs

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CHAPTER 47

Control and Co-ordination

Police Control Room

912. Police Control Rooms function in large towns where two or more Town Police Stations exist, for a District as a whole, for cities having commissionerate system and at the police headquarters of the State. Control rooms are also set up on special occasions, for specific operations and large-scale bandobusts. Special units like CID, Intelligence, Traffic Police, APSP, District Reserve Police, Special Groups, Railway Police etc. have their own control rooms. These constitute an important part of the coordination, control and response mechanism. It is a vital instrument for the convenience and benefit of public, a source of immediate information to the Police and a nerve centre of varied police operations. They are intended to enable public to contact the Police in urgent cases and obtain assistance immediately. The functions of the Police Control Room are:

1. To be an information centre to receive calls and rush help or to send appropriate police assistance;
2. To keep the concerned police officers informed of all-important incidents/information.
3. To despatch, L&O Police or Detective teams to deal with crimes like theft, burglary, murder, dacoity, rioting, arson, accident, kidnapping or abduction, missing children or persons, terrorist crimes, list and new cases etc.
4. To aid the public during fire accidents, floods and other natural calamities;
5. To coordinate the operations for maintenance of peace and public order in times of large-scale riots, strikes, processions and other situations when the peace of the city or town or of the district or State is likely to be disturbed;
6. Record all incidents, information in a given format and intimate the concerned officers so as to enable them to take decision;
7. Maintain prescribed records;
8. To alert concerned police stations for interception, seizure or search or arrest;
9. To provide necessary information to public.
10. Any other function to save life and property or rescue persons in danger.

Location

913. A Police Control Room should generally be located in a central place in the town and city and in premises other than a police station. Sufficient space should be available for parking vehicles and to accommodate the staff as well as striking forces, communication equipment and other related facilities. They shall be located in the DPO, Zonal/Range office and DGP's office. Railway Police control should be located for each Railway district in the concerned Railway police office. The state control rooms at Hyderabad will also serve the requirements of Railway Police and traffic and highway police for the entire state. In Hyderabad city each L&O Police Zone will have control room functioning under the DCP concerned. The city's main control room will serve the requirements of traffic police in Hyderabad city.

Communications

914. The control room communications on the lines indicated above should be organised in all district and major cities. The guidelines to be followed in setting up the control room communication in small towns are given below. These are to be implemented and upgraded on lines of major cities and districts where resources permit and trained personnel are inducted.

1. At least two direct lines should be provided for the telephones.
2. A minimum of two direct lines with dial '100' facility reserved for police emergency should be installed at Police Control Room (PCR). However emergency telephones with 100 number need not be installed in District or State police headquarters Control Rooms (DGP Control Room).
3. Wherever feasible direct hot lines to Fire Services, Ambulance, District Control Room, Reserve Police Headquarters, local Army, Navy or Air Force stations, Railway Control Room should be provided.
4. A fax facility with a separate line, e-mail (internet) connection, a PC with a monitor, printer and one photocopier should be installed, to be integrated with a regular system in due course.
5. Arrangements to record all calls and every reply and response on telephones and wireless should be installed to work on 24-hour basis to enable communication to be activated at any moment.
6. The relevant useful information recorded should be transferred to the concerned either for working out clues or evidence in cases. The data should be erased only after expiry of the period prescribed for destruction of general diaries.
7. Communications constitute the most vital part of an efficient coordination and control mechanism apart from ensuring better service to the public. The following communication systems should be installed in every city/district control rooms.

A. Wireless communications: Radio telephone facility linking all mobiles, police stations, supervisory officers and their offices with separate channels for each zone in Hyderabad City or sub-divisions or groups of sub-divisions in districts should be provided. Separate channels should be reserved for traffic, security and one spare channel, for radio alarms or mobile data systems. The requirements for Hyderabad city and districts are to be planned to suit local topography and conditions. In other control room at State Hqrs the channels required should be to connect the supervisory officers of each Branch with facility of listening all channels of Hyderabad city and Ranga Reddy District. Hand held wireless sets are provided for local communication in a limited area particularly when field officers or those in charge of mobiles are required to leave the vehicles and yet remain in touch with the vehicle or the control room.

B. HF Voice Communication stations particularly for district control rooms and state control rooms are necessary for distant communication and linking district to district and district to State Hqrs.

C. Telephone Communications: Where exclusive central police telephone exchange operates particularly in large towns and Hyderabad city, the lines should connect all desks to enable easy access to public. A separate EPABX with necessary lines on well-publicised numbers is to be positioned in such control centres. Direct dialing is yet another facility connecting the duty officers and Information Officer. The free one way call number 100 should be provided in the operating desks with sufficient lines assessing the load at peak times.

D. The Internal Communication in the control room is essential and the EPABX should provide for it.

E. The computerised equipment that records all calls from all sources is an important part, where the incoming and outgoing calls are recorded for an incident and a report in a prescribed form is automatically generated with a printout facility to enable assessment and further action in matters like the volume, duration, time, originator, deployment of patrol vehicle or otherwise, disposal, cost effectiveness etc. This system enables effective use of information.

F. Answering machines to record messages at every desk provide standardised voice forms to ascertain information. The voice mails provide notices and alert messages and also a secure message facility.

G. All computers in the control room are networked and connected to police station and other unit computers through telephone wires (telecom dept.) giving a dynamic access to needed information and deployment of forces.

H. All calls on all systems and communications voice messages are to be recorded on taped digital recording on 24-hour basis, so that they are available for evaluation and subsequent use. If necessary they may even be used in courts as evidence. There have to be sufficient and separate channels of recording equipment for various applications. Tapes/disks may be reused after 3 months by which time the necessary data would have been transferred to concern files and original required for evidence preserved.

I. If a burglar alarm system is installed to activate automatically the police response, there should be complete control and management of these to ensure proper use and prevent false calls.

J. For all grave crimes a grave crime incident room is activated and all the data received and transmitted is stored for pursuing investigation by the Detective Units concerned. The Chief IO or the superior in such incidents operates from the grave crime incident room until investigations reach particular stage.

Wireless fitted Cars, Motorbikes, Vehicles, Equipment and staff

915-1. Wireless-fitted cars, vehicles or motorbikes are sanctioned for the Police Control Room, the number of each being fixed with reference to the needs of each town or city or district. These mobiles, shall be used for responding to calls from the public or information from other sources. They will be utilised for planned patrolling, crime incident control, grave crime investigation, security duties, bandobust for festivals, strikes, processions, public meetings and for conducting raids, searches or seizures or arrests in pursuance of a case which require immediate attention. The mobiles should not be used as conveyance to the officers save in, very exceptional circumstances.

2. They should carry first-aid kit so that the Police during traffic accidents or other cases could render first aid to the injured persons.
3. Effective public address system and searchlight should be installed to all mobiles, besides siren and lights. Siren should be used only when proceeding to meet an emergency only to have precedence in traffic. If traffic conditions do not warrant there is no need to use the siren.
4. They may pick up L&O Police or Detective staff if it is in pursuance of case investigation or follow up of incidents.
5. Those earmarked exclusively for patrolling should resume their normal duty after the other resources to deal with the incident or crime are in place.

Working of the Control Room and Wireless fitted Cars/Vehicles

916-1. When a telephone call for Police help is received in cases like petty theft, loud-speaker nuisance, minor quarrels, missing children and persons, etc., which do not require immediate action by the Control Room staff, the Officer in-charge of the Control Room (Chief Controller) should advise the person to contact the concerned Police Station. At the same time he should telephone to the concerned Police Station regarding the call and make entries in the General Diary and the Telephone Message Register to that effect. Where recording facility is installed naturally all details in the prescribed proforma get recorded. He should telephone to the Police Station subsequently and check regarding action taken and record it in the same registers and indicate a completion report of that incident. The completion report on incident is when control room requires no further action.

2. On receipt of telephone call requiring immediate Police help in cases like drunken brawls, the criminal trespass, traffic accidents involving injuries or death to persons, apprehension of criminals or suspicious persons in residential areas, misbehaviour by rowdy elements in residential areas, etc., the Radio Car/Vehicle on patrol duty or the police station or other nearest mobiles, beat area constables at the time when the call is received, should be immediately directed to the place of trouble. Simultaneously with the despatch of the Wireless fitted car, the concerned police station should be contacted by phone or Radio Telephone and the SHO present in the police station should be informed of the incident and directed to proceed to the spot to take appropriate action. Where automatic message facility is available the police station would be following the conversation between the caller and control and take action intimating control room. This avoids duplication and economic use of resources. If the police station staff is on the way to the place of incident already by foot, the Wireless fitted Car may pick up the SHO, SI or the HC from the Police Station, on its way ensuring that there is no delay in responding to the call. The Police Control Room will be in-charge of the situation till such time as the concerned Police Station staff arrives at the spot and commences action. The Wireless fitted Car should then return to the Police Control Room or continue patrolling.

3. In cases of serious disturbances, riots, serious crimes like murder, dacoity, kidnapping robbery or emergencies like out-break of fire or when there is likelihood of the staff of the concerned Police Station not being able to reach the spot promptly, the Chief Controller should rush an officer to the spot in the Wireless fitted car, who will take action and be in-charge of the situation till the arrival of the concerned police station or DPS.

4. The Wireless fitted vehicle should patrol the area according to a prepared programme from 0900 to 1100 and 1600 to 2100 hours daily. The patrol should cover important places where people gather like bazars, schools, colleges, bus terminals, banks, sports stadia, residential areas, etc. Night patrolling may be done as and when necessary. While patrolling no siren should be sounded and vehicle should move at a slow pace, stopping at places to afford opportunity for observation and watch. A detailed working plan for day to day should be prepared and be available with the officer in charge of the Wireless fitted car.

5. The Control Room shall function under the Joint/Additional Commissioner of Police in-charge of Coordination in the case of Hyderabad City and the SP of the district in the case of District Control Rooms. In other towns including district Hqrs town the DSP or Addl. SP having jurisdiction shall be in charge of the Control Room. Superintendent of Police, the Addl. DGP L&O and

Addl. DGP CID shall visit the Control Room as often as possible and ensure that it (Control Room) works efficiently, that their equipment and recording system are in proper use and condition and that the response time to genuine calls is prompt and effective. There should be on the spot correction of any distortions, wastage or delay. Those in charge, as and when necessary, shall issue suitable instructions, from time to time. The Control Rooms are meant for all branches of the police, e.g. Investigation, Traffic, Railway Police, Armed Police, Intelligence, CID etc. As such the officers in charge should assist and provide all facilities to them and notify any information that is meant for them. But it should be remembered that the Chief Controller's decision on priorities is binding on all as he has the authority of police chief of the district and city.

6-A. The staff conversant in Telugu and English and preferably having working knowledge in Hindi/Urdu should be posted to Control Room. They should be trained to converse properly in Telugu or English and if possible in Hindi or Urdu.

B. The staff should have thorough knowledge of the working of the City, Town and District Police as the case may be, topography of the city or town and suburbs location and jurisdiction of the Police Stations, Detective Police Stations, Railway Police Stations etc. location of hospitals, Fire Stations and residential addresses of all officers of police of and above the rank of SI in smaller towns and Inspectors in bigger towns.

C. The staff should be polite and courteous while dealing with the public directly or over the phone. They should be capable of getting maximum information from the callers by a helpful and understanding approach, in quick time, as information determines the type of help to be given.

D. They should always be helpful to the public should they desire any assistance or information regarding L&O Police Station, Detective Police Station, Traffic, Women Police Station etc.

E. They should be always alert and fully alive to the proceedings in the Control Room and keenly follow the movements of wireless fitted cars and other mobile resources.

F. They should be smartly dressed. The S.I. in-charge of the Control Room or in his absence, Officer in-charge should maintain the General Diary of the Control Room and other prescribed records and equipment. They should be trained in operating wireless telephones and know driving. The computer, designed to store data and all calls and incidents should be maintained and used. Till the system is firmly established both manual and computer aided automated system should be used.

Striking forces

917-1. A striking force contingents of such strength and number as earmarked for emergency should be at the Police Control Room with the required wireless fitted vehicles. Three or four constables of the striking force besides the radio operator should be present with the wireless fitted car. They need normally carry only lathies but firearms must be carried by some of them as determined by SP/CP. These men should be instructed in advance by the Chief Controller what they should do on reaching the spot. One or two of the police party going in the wireless fitted car should be trained in first-aid and also know driving.

2. All policemen posted to police control room should go through a course of training designed for the purpose. The Striking Force personnel should be briefed every morning on the likely nature of duties for that day.

Dissemination of information

918. The Police Control Room should serve as "Information Room" and "clearing house" to disseminate information to various functionaries so that they are fully posted with the information received in the Control Room in the town or city from time to time. The dissemination of information to public or officers or press should be strictly on need to know basis. The police officers using the Control Room should realise that it is only meant to respond to emergencies and pass on information and is not a substitute for police station. Control Room is meant only to receive and convey information and urgent instructions from concerned police officer.

Records to be maintained

919-1. The following records should be maintained in the Police Control Room by the Sub-Inspector or, in his absence by the whoever is in-charge:

- A. The Police Control Room General Diary
- B. Incoming Telephone Message Register
- C. Out-going Telephone Message Register

- D. Wireless fitted Cars working Evaluation Register
- E. Data entry, storage, retrieval in the computers provided

2. The General Diary should be maintained from 8 a.m. to 8 a.m. of the next day. In this, the details of telephone calls received from the public, details of telephone calls made to the Police Stations or DPS and Police Officers and instructions received from them and their compliance should be recorded. Information received from wireless fitted cars, should be recorded from time to time. It shall be the responsibility of the Duty Officer being relieved at 8 a.m. to note the various pending matters, instructions received from officers, etc., close the diary for the day, open a new diary and hand it over to his reliever. The incoming Duty Officer should despatch the previous days diary to the DSP concerned or to the Superintendent of Police of the district in case of District Control Room or the Addl./Joint Commissioner of Police(Coordination) in the case of Hyderabad City by 10 a.m. The concerned after perusal and taking action where necessary should return them for record in the Control Room.

3. The Incoming Telephone Calls Register shall be of foolscap size, and shall contain the following columns:^{3/4}

- A. Date
- B. Monthly Sl. No.
- C. Time of receipt of message
- D. From whom received (with telephone number and address etc.)
- E. Details of message
- F. Nature of the action taken with time including to whom informed
- G. Signature

There should be sufficient space for recording details in column Nos. D, E and F. Only messages received for emergency help or action should be recorded in this book.

4. The out-going telephone message register shall also be of foolscap size and shall contain the following columns:^{3/4}

- A. Date
- B. Monthly Sl. No.
- C. Time when the message is given number.
- D. To whom message is given (with name rank and number)
- E. Details of message given
- F. Serial No. of in-coming message to which this message relates
- G. Signature

Only message given to the Police Station and Police Officers in connection with calls received from the public for emergency Police help should be recorded in this register.

5. The Wireless fitted car/vehicle working Evaluation Register should contain the following columns:

- A. Date
- B. Monthly Serial No.
- C. Time of receipt of call for Police help
- D. Time of despatch of Wireless fitted Car
- E. Time of Wireless fitted Car reaching the spot
- F. Time of Wireless fitted Car leaving the spot after completion of work
- G. Time of arrival of the Wireless fitted Car back at the Police Control Room or resuming patrol duty
- H. Remarks

Note:- In the remarks column the reasons for delay at any particular stage of attending to the call should be mentioned. An extract of entries in this register each day should be made out and forwarded to the Superintendent of Police of the District or the Deputy Commissioner of Police, concerned in the case of Hyderabad City and other Cities along with the General Diary.

Maps and charts

920-1. There should be a big size map of Town, City, Zone, District as the case may be and of neighbouring areas marked with important Roads, Buildings, Hotels, Markets, Offices, Schools, Hospitals, Colleges, Police Stations, District Reserve Police, Police Units etc., displayed in the Police Control Room. This map will help the Duty Officer to know the locality from where a call has come, its distance from the Control Room and the journey to be made by the Wireless fitted car. GPS/computer aided electronic map showing the locations, important feature, place of incidents or trouble, location of mobiles should be designed and used to deal with traffic jams or other hold ups, scenes of offences in the last 24 hours till the police left the place after containing the situation.

2. The following charts should be maintained in the Control Room:

- A. Deployment of striking forces at the Police Control Room and other places
 - B. A list of all Police Stations of the district (divisions), Investigating Units, Traffic PSs, Railway Police Stations, RPF posts with their telephone numbers.
 - C. A list of Senior Police Officers, their official and residential addresses together with their telephone numbers.
 - D. A list of all Inspectors of police in the district together with their residential addresses and their telephone numbers.
 - E. A list of all Senior and important Government Officers in the town with their residential addresses and telephone numbers.
 - F. Police residential quarters and the details of those residing in each colony.
 - G. A list of all important hotels, with location and telephone numbers.
 - H. A list of all important Government and Private Hospitals with their location and telephone numbers.
 - I. A list of all important Railway and Bus stations and their location and telephone numbers.
 - J. A list of all Fire Stations with their location and telephone numbers.
 - K. A list of taxi stands with telephone numbers, if any.
 - L. A list of Ministers, M.Ps, M.L.As, M.L.Cs with their residential addresses and their telephone numbers.
 - M. A list of Courts having jurisdictions over the Divisions together with their location and telephone numbers.
 - N. A list of all important State and Central government establishments with their location and telephone numbers.
- Note: These should be constantly updated and new chart or list prepared every year.

Opening of Temporary Control Rooms on important Occasions

3. Temporary Control Rooms should be opened where very heavy crowds are expected such as

Govt. Memo. No. 1334/Pol-D/74-1, dated 1st July 1974. No.903/R1/72
(IX List. 31st December, 1974).

big fairs and festivals, Pushkarams, visits of VIPs, etc. The working of this Control Room will be similar to that of the regular Control Room in towns and cities. A scheme should be prepared regarding the working of the temporary Control Room and circulated among all officers well in advance.

4. The number of Radio Vehicles to be provided on each occasion depends on actual needs, nature and volume of the crowds.
5. These instructions are in addition to those contained in Chapter 15 in regard to festival bandobust.

The Orgnisation and functioning of District, Zonal and State Control Rooms

921-1. District Control Room: The Control Room in every District shall be located in the District Police Office with an Inspector of Police in charge. A staff of one SI and two ASIs/HCs in each shift shall be present in the Control Room. The staff of the police communication organisation will man the wireless communication, which will be the part of the Control Room. The hotline connections to Reserve Police Hqrs, the Town Control Room, Fire Services should be provided. The movement of all the mobiles in the district and any information, which is passed on, should be recorded and communicated to the concerned officers for necessary and immediate action. The emergency public telephone '100' number with as many lines as necessary should be manned and answered and every call recorded as already indicated in the foregoing orders. A reserve contingent meant for the entire district with necessary transport should be maintained as a striking force at all times. If any direct information of any crime or incident is reported it should be informed to the concerned police station and the officers without delay. Even if it relates to the Headquarters town it should be communicated to the police station as also to the headquarters town control room except in major towns where separate control rooms are provided. The police stations will be in direct contact with the district control room for any information or help. The district control room shall work directly under the SP. He may instruct Addl. SP to be present in the control room on any occasion where he considers an officer's presence necessary to direct operations if any. The control room shall be common for all branches in the district.

2. Zonal / Range Control Room: The Zonal/Range control room will be located in the office of the Zonal IG/DIGP and functions under the charge of an Inspector of Police. This control room is intended for departmental coordination and not intended for direct action as in the case of the district control rooms. All district control rooms will be in touch with the Zonal/Range control room and vice-versa. The Zonal IG/DIGP shall be kept informed of all developments in the Zone/Range by the control room. They should maintain regular contact with the state control room.

3. State Control Room: This will be located in the office of the Director General of Police and shall work under the control of Addl. DGP L&O. It shall be manned round the clock by a DSP assisted by adequate number of officers and other civilian employees. The entire communication network shall be located in such a manner that the control room is at all times aware of every happening in the State. It shall also be responsible for receiving and communicating information to concerned authorities and for conveying any instructions to any officer or any police station in the State. The contacts with the other state police headquarters and also the control rooms at Delhi both in MHA and other organisations should be maintained round the clock. Complete record of every communication and telephone calls should be maintained in the control room. All information from the public from anywhere should be recorded and action initiated as per the orders of the concerned officers. The despatch of fax messages and other communications will however be the responsibility of the police communication organisation and not that of the control room. The hotline connections to all district and city police control rooms, intelligence control room, APSP, Greyhounds units in the State, the Railways, the Army sub-area, Fire Services and Commissioner of Relief should be maintained efficiently. It will also obtain and maintain a record of all the arrests made in the state as per the Supreme Court guidelines on arrest.

Coordination

Coordination within the District and with the neighbouring Districts

922-1. Coordination of police work within the district comprises of the following:

- A. The communications made from one Police station to the other, from one officer to the other and the replies and information to be sent.
- B. Collection and entry of data through correspondence, messages in the records system as prescribed.
- C. When specific enquiry is made or assistance requested by any police authority, the action initiated on receipt of such requisition.
- D. The holding of border meetings, and entries made in concerned files and records on the data collected in such meetings.
- E. The nature of contact between police stations within the district and the neighbouring districts and communication links.
- F. The SDPOs in respect of their charge and SP/CP should monitor the above through a structured management information system. The system should generate information on various items of coordination and mutual help to enable monitoring daily, weekly and at monthly intervals.
- G. The control room should be utilised for coordination of on-going situations and to ensure coordination between different agencies of the police whenever an incident is reported.
- H. During the periodical visits and inspection the officers should verify the correctness of requests and response attended to in the Control Room and their suggestions if any.
- I. The networked computer system is the best means of ensuring prompt replies and initiating action at various levels to improve co-ordination.
- J. Monthly crime meetings of SP/CP should be utilised for a scrutiny of some of the items mentioned above.

Coordination within Zone/Range and other Zones/Ranges

2-A. The instructions regarding border meetings and other coordinating measures contained in Chapter 3 should be perused and complied with. The Zonal IG/DIGP will maintain a check register to monitor whether all the prescribed meetings are being held and also to alert the concerned to keep to the schedule.

B. The contents of the proceedings of all meetings should be analysed and implementation watched with the help of the information and reports generated in the normal process. A specific review on the subject of coordination based on all recorded information should be prepared in each district to give an accurate account of requests, responses, alert messages, meetings and results in an organised method or proforma.

C. The Zonal/Range control room and coordination centre should be the main media of ensuring day-to-day monitoring.

Coordination within State and with neighbouring States, other States and at National level.

3-A. The State control and coordination centre shall be one of the instruments through which Intra- and Inter-state coordination is ensured. The computerised system in the State control room shall have an automatic message transfer facility as also for monitoring action. One separate desk for inter-state and international matters should be earmarked to handle all messages, calls and information. This desk should transfer the information to the concerned district, branch or unit recording the timings. The replies to other States should similarly be sent by the desk. The activating of the concerned unit for action and report to the requesting party shall be the responsibility of the concerned desk.

B. All inter-District, inter-Zonal or inter-Branch matters within the State will be handled by another desk in the State control room. The same desk will handle all emergency situations in the State.

C. A separate desk will be maintained for coordination with other departments and also with other agencies outside the police.

D. Close contact through the communication network available shall at all times be maintained with all the control rooms in the State.

E. The responsibility of keeping the concerned senior officers posted with matters with which they are concerned, shall rest with the State control room.

F. The Addl. DGP L&O shall be in overall charge of the State control room. He shall, besides ensuring effective operational efficiency of the control room, deal with all matters of coordination in assistance to the DGP.

G. For coordination work an officer of the rank of AIGP or DIGP shall function under the direct supervision of the Addl. DGP L&O.

Procedure for securing assistance from other States

4. The law and procedures prescribed permit direct contact with the other State police authorities to obtain assistance. Similarly, assistance from this State also has to be extended to other States as well. The senior officers should be kept informed of any problems or any permanent arrangements to be made regarding communications, reports, data transfer etc. The orders of the Director General of Police should be obtained in this regard.

National Organisations

5. The State Intelligence Branch is the nodal agency for liaison with the Intelligence Bureau and the CID for liaison with CBI and National Crime Records Bureau and other Investigation Agencies of the Union Government. In all internal security matters where specific case investigation is not involved the Intelligence Branch will deal with the situation. In all investigation matters including investigation of cases involving security, the CID will be the coordinating agency. In most situations which require coordination with a central agency both CID and Intelligence require to be in close touch with each other under the direct supervision of the DGP.

Coordination with other countries and Interpol

6. All requests for investigative or other assistance from other countries has to be routed through Interpol, New Delhi. The CID is the nodal agency to take up such matter. All Units in the State who require help in accordance with the law should route their requests through the CID as indicated in Chapter 44.

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CHAPTER 48

Women Police

923-1. Police officers whether men or women have the same role, functions and duties to perform and exercise the same powers under the law. They are also subject to same service rules, conditions, discipline, status and obligations as are attached to each post and rank they hold. There will be no separate cadres for men or women police officers. The seniority is common to each rank or category or class in accordance with relevant rules. There will be no separate duties as such, except as provided under law or other wise specifically entrusted.

2. All postings and ranks in the police department are common; both to women and men police officers. They can be posted to any position and are liable to serve wherever posted. Where exclusive women police stations are established for specific purpose on problems of women it is desirable that the SHO is also a women police officer. They are eligible to be posted to Sub-divisions, CID, Intelligence, L&O, Traffic, Detective and Railway police stations. There shall be common seniority and promotion panels of all ranks for all police officers irrespective of sex. There shall be no separate list for men or women. Except the physical measurements and physical efficiency tests which are separately prescribed for women, the recruitment procedures, qualifications, age are the same for all. There is no limit on Women police officers for recruitment against vacancies in the posts in any category on the basis of merit.

3. There are certain duties which men police officers are not expected to perform, or which women police officers can perform better. The special protection available to women and children and the gender bias that denies or deprives the women of their rights, require women police to be deployed for such police duties. The communication and confidence levels of women victims of crime would be substantially higher and more effective if women police officers handle their problems. It is in this context that definition of functions and duties of women police officers are indicated below.

924-1. The functions to be exclusively entrusted ordinarily to women police officers are detailed below:

- A. Arrest, search, guard and escort of women accused and convicts.
- B. Work relating to women passengers, including security checks at airports, railway stations and bus stations;
- C. Conduct of enquiries in connection with passport applications of women who observe "purdah" and family investigations;
- D. Keeping order in women's meetings, processions and women's enclosures in public meetings.
- E. Looking after the arrangements to help women and children in fairs, festivals, places of pilgrimage etc.
- F. Guidance and help to women passengers at railway/bus stations;
- G. Evacuation of and assistance to women and children during natural calamities and in troubled areas.
- H. Interrogation of female juveniles, women offenders, under trials, witnesses and victims of sexual offences, cruelty and dowry harassment;
- I. Interrogation of male offenders, suspects and witnesses in cases of cruelty, assaults, outraging modesty and other offences committed against women.
- J. Security duties to protected persons (Women).

2. It will be advantageous to deploy women police officers separately or along with male police officers for following police duties.

- A. Investigation of offences involving women and children and crimes against women, particularly dowry harassment and deaths, cruelty and rapes.
- B. Tracing of missing women and children, keeping watch over places of ill repute, recovery and rescue of women and girls from prostitution, escorting them to rescue, protective homes, hospitals and to courts, rescue of women and girls who are victims in abduction and kidnapping cases.
- C. VIP and other security duties; Collection of intelligence;
- D. Dealing with agitations in which women are also involved.

925-1. Notwithstanding anything contained in the above order, women police officers are liable to be employed or posted to any police duty. Where it is not possible to find women police officers to the extent required for the above duties, they may be performed by male police officers, taking such precautions as are required by law, rules and procedures. Those responsible for posting or allotment of duties, must consider all police officers as equal irrespective of whether one is a male or a female. Women police officers are bound to work in any police post or duty entrusted and shall not be entitled to claim any exemptions. They should not be discriminated in the matter of posting to mainstream police positions.

Service Conditions for Women Police Officers

- 2. Women police officers are eligible for leave, medical facilities and all other amenities to which women employees of Government are entitled. They are however bound by the legal requirement of being considered to be always on duty like other police officer.
- 3. The following guidelines should be observed in posting of women police officers in mainstream positions, particularly in L&O, Railway, Traffic and Detective police stations.
 - A. When posting to any L&O, Traffic or Railway police station it should be ensured that there is a contingent of at least four women police officers in a police station. In other posts there need not be any such requirement.
 - B. Whenever posted to a beat area the SHO should ensure that there are at least two women PCs in the beat area i.e. single women police should not be posted.
 - C. Sentry duty may be allotted, if the entire guard consists of women police officers.
 - D. On bandobust duties, or while dealing with agitations and processions women and men police contingents should be sent together.
 - E. At least two women police officers should be present when women prisoners are being escorted. If the number of women police officers is not adequate to escort as per scale the shortage may be made good by other policemen.
 - F. Where police is deployed on festival bandobust duty a separate camp for women police should be provided, though boarding arrangements may be common.
 - G. A separate facility for rest and other amenities is provided for women police officers in L&O Police Stations or other places of duty.

Women Police Stations and Women Protection Cell

926-1. Special arrangements are made for effective investigation of crimes against women and protection of women. Women police stations are established to focus on this aspect and to inspire confidence. The women protection cell in CID is intended to monitor the crimes against women and take up serious cases for investigation as detailed in Chapter 44. The safeguards and steps to be taken for protection of women and children by the police and treatment of women offenders are contained in Chapter 18 as also in Chapter 25 on Arrests. The existence of women police stations or women protection cell does not absolve the police as a whole of its duties in this respect. There is no bar either to post men police officers to women police stations or to the protection cell, except that it is necessary that more women police officers than men are posted in those units.

Duties and Powers of Women Police Officers

- 2-A. The duties of women police officers are the same as are assigned to all police officers, as are attached to the post to which they are posted. All instructions and obligations, code of conduct, discipline, recruitment and training procedures, as are -

contained in this Manual, are applicable to them.

B. The uniform rules as are applicable to men, are also applicable to women police officers except for those who complete sixteen weeks of pregnancy. In such cases separate uniform as prescribed for IPS officers (women) or Khaki colour Saree and Blouse or Khaki colour Salwar – Kameez can be worn.

C. The privacy and other personal inconveniences peculiar to women shall be respected and necessary relief and amenities provided by the officers in charge. Malingering shall be discouraged and dealt in the same manner as done for other Police Officers.

D. In the exercise of powers, the women police officers shall strictly observe the precautions, limitations and other procedures prescribed particularly in relation to arrests, seizures, searches and investigation, handling of agitations and remain at all times impartial, honest and dedicated in the discharge of their duties.

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CHAPTER 49

Intelligence and Security

927-1. One of the principal duties of the police is collection and communication of intelligence with a view to maintain peace and order and prevention and detection of crimes. The Intelligence Branch of the police is intended to collect and disseminate intelligence in all matters of police interest. However the criminal intelligence is the responsibility of the L&O Police and Criminal Investigation Department. The L&O Police in addition to criminal intelligence has also the responsibility of gathering and communicating intelligence on all matters. The SP and CP have Special Branches to concentrate on intelligence work. At the state level, the Intelligence Branch is organised to maintain the records and disseminate timely information to avert breach of peace, threats to security, public order and serious disturbances. The Addl. DGP (Intelligence and Security) is the Head of the Intelligence Branch of the State subject to the control of DGP. He is assisted by such number of Inspectors General of Police / DIsGP and other officers as determined. The organisation and functions of the Intelligence Branch are contained in the Manual on District Special Branches and the State Intelligence Branch.

2. Under the Control of Addl. DGP (Int. & Security), there is a Special Intelligence Branch (SIB) under the charge of an officer of the rank of DIGP, to deal with all the intelligence matters relating to left wing extremism and to coordinate all the anti-extremist operations within the state. This branch keeps liaison with the concerned officers and units of other extremist affected states, dealing with the intelligence in the field of left-wing extremism and the anti-extremist operations.
3. Under Addl. DGP (Int. & Security), an officer of the rank of DIGP, called DIGP Operations will be in-charge of Counter Intelligence Wing of intelligence.
4. The Intelligence Branch of the State shall send information and reports to the Government subject to orders of the Director General of Police.
5. The Addl. DGP (Int. & Security) shall be responsible for the efficient and professional working of the Branch. He shall exercise such control and direction to ensure effective functioning of the District Special Branches. The collection, analysis, recording and dissemination of information, provision of the necessary training inputs and keeping an alert watch on the public order and security in the State shall be his main functions. Towards this end he is competent to assign duties and set tasks to officers of the Branch and the District Special Branches.
6. The Hyderabad city Special Branch works under the Commissioner of Police who is assisted by Joint/Deputy Commissioner of Police and other officers. The State Intelligence Wing will maintain close coordination with the city Special Branch at Hyderabad and vice-versa. The work of the City Special Branch may be reviewed by the DGP.
7. The executive personnel of the Intelligence Branch are drawn mostly by deputation from the state police according to a quota fixed by the DGP. A percentage of posts of SIs are set apart for direct recruitment. ID Assistants are recruited from amongst type knowledge Jr. Assts./Typists who are graduates.
8. Closest liaison shall be maintained with the neighbouring state organisations and the MHA. The reports to MHA and other places shall be governed by instructions of the Government and DGP from time to time.

Security

928-1. The security wing is a part of the intelligence branch. It is headed by an officer of the rank of an IG/DIGP. The functions of the security branch are connected mainly with proximate security of VIPs and VVIPs and also to plan, coordinate and direct security measures for the protection of those persons who face threat to their personal security. Though the security wing provides proximate security to the VIPs/VVIPs, the responsibility for their protection rests with the District/City police. The branch also assesses threat perception of various protected persons, issues guidelines to the various Units in the State for ensuring their security. The other important function is to monitor the programmes and tours of the protected persons, assess information gathered and issue suitable and timely instructions to the concerned, from time to time.

2. The security wing has specially trained personnel drawn by deputation from other branches of police and trained for the purpose of providing proximate security to VVIPs located in Hyderabad or those who visit the State. In the districts and the city plain-clothes personnel who are trained in security duties provide security cover when the protected persons tour the State and also to those who require protection in the district. A special group in the various reserve police Units of the State is formed for providing guards as well as uniformed gunmen.

3. The State security wing draws up the training programmes specifically in respect of personal security of the VVIPs. These programmes are carried out either in the AP Police Academy or in the other training institutions. The specialist support units like the bomb disposal squads and sniffer dogs' squads are also attached to the wing. The detailed instructions and guidelines to be followed by the various personnel providing security are drawn up and circulated by the security wing.

4. The responsibility of the wing as detailed above is carried out through its own personnel as well as through the district and city police. They are responsible for coordination of all security arrangements in the State. This wing shall issue the instructions and training for L&O police personnel and their role in making security arrangements from time to time. The Unit officers are responsible to carry out all the instructions issued and to keep the personnel fully trained and alert in carrying out the security duties.

5. The Addl. DGP (Intelligence & Security) is responsible for the effective functioning and supervision of the security wing at the State headquarters. Elsewhere in Districts/Cities, security matters are handled by the Unit officers.

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CHAPTER 50

Greyhounds

929-1. The Greyhounds is an elite force headed by an IGP who works directly under the DGP. This force was raised as a vital organ of the State police as it had been found necessary to keep a specially trained force as separate entity to provide for flexibility in operations. The main object of the scheme is to ensure that this force is not engaged on routine duties, which may detract from its high level of efficiency. The main objectives of this force are:

G.O.Ms.No. 320 Home (SC.A), Dated 12-6-1989, G.O.Ms.No.437 Home (Pol-G) Dept., dt.16-12-95,
G.O.Ms.No. 30, Home (Pol-D) ?Dept., dt.9-2-99

- A. To combat left wing extremism
- B. To deal with certain emergent situations arising out of unlawful activities of certain groups of lawless persons, terrorists and desperadoes;
- C. To combat terrorist activities and to assist local police in this regard.
- D. To deal with emergencies arising in the wake of natural calamities.

Organisational Structure

2. The I.G.P. Greyhounds is assisted by Group Commanders of the rank of Superintendent of Police. The Group Commanders will be in charge of such functions like Operations, Administration and Training. The Squadron Commanders, of the rank of Addl. Superintendent of Police assist the Group Commanders. The force discharges its functions through Operational Units and Headquarters Units, the number of which will be determined from time to time. The following ranks of Police Officers constitute each Operational Unit.

Assault Commander (ASP / Dy. SP / Asst. Commandant)
Dy. Assault Commander (RI / Inspector)
Asst. Assault Commander (RSI / SI)
Senior Commandos (HC)
Junior Commandos (PC)

The Squadron Commander will be in charge of specified number of Operational/Hq. Units. The Headquarters Unit consists of Communications Wing, Sniffer/Tracker Dog Squad, Intelligence group, Motor Transport and Quarter Master Wings. A Consultant, with sufficient experience in the field (preferably a retired officer of the rank of DIGP) will look after training of Greyhounds, which is non-conventional in nature. A Medical Unit with adequate number of Doctors will be part of this force. Organisational Chart of the Greyhounds is appended to this Chapter.

Weaponry and Equipment

3. The Force shall be provided with such modern weaponry, equipment, transport, communications and other facilities that are necessary for efficient and expert handling of the tasks for which it is intended.

Dress Regulations

4. The Greyhounds force shall use grey dungaree as working dress while Jungle Patch (JP) / Overall dress as operational dress with out badges of ranks. IGP will decide details of other dress for different occasions from time to time.

Selection and Training

930-1. The executive force will be drawn on deputation from all the cadres of police services in the state including IPS according to a quota fixed for each Unit by DGP as proposed by IGP. The selection is made by the IGP or on his behalf by the officers nominated by him from the eligible members of the various units in the State. On selection to the force, every member will undergo such training as per the programme determined by the IGP Greyhounds from time to time. The IGP Greyhounds will have the powers to repatriate any member to his parent unit if he considers him unsuitable for continuation in the force at any time.

Service and Working Conditions

2. The service conditions, Conduct Rules etc. and other connected matters applicable to the State Police Force are also equally applicable to the personnel working in Greyhounds except to the extent specifically provided.

3. There shall be rotation of the members of the Force in all ranks to maintain the youthfulness and effectiveness of the Force. The IGP should take all steps that may be necessary to ensure this.

4. The IGP may, with the approval of DGP, allow any member beyond the normal tenure, if in his opinion he is suitable and fit enough to continue provided that no one shall be continued beyond 10 years or as determined from time to time.

5. All the police officers working in this force are eligible for special pay, allowances and other incentives as determined by the government from time to time.

6. A detailed manual of instructions containing the training for the tasks prescribed, specific duties, responsibilities of various ranks, working of the force and other connected matters should be drawn up by the IGP and issued after approval by the Director General of Police.

7. The movement and operation of the force shall be task oriented under specific orders of the IGP with the approval of DGP. The force deployed shall return to the Hqrs. as soon as the task is completed or with the approval of the IGP when it appears to the Commander that the deployment is no longer desirable. Under no circumstances the force will stay once the operation or purpose for which it is sent is completed.

Training of State Police and Other State Police Personnel

931-1. Greyhounds will undertake training of every directly recruited SIs/RSIs, Dy. Ss.P. and Asst. SsP of A.P. as decided from time to time.

2. The Greyhounds Regional Training Centre, Premavatipet (Ranga Reddy District) will organize training of Police personnel of Andhra Pradesh and other States affected with the problem of left wing extremism as decided from time to time.

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Andhra Pradesh Special Police (APSP) Organisation of Force

932-1. There are (13) APSP. (Including 4 (IR) Bns) in the State headed by an Officer of the rank of IGP. All the Battalions are grouped into four Ranges, each headed by an Officer of the Rank of DIGP. The IGP assisted by (4) DIsGP of APSP exercises the administrative control over all the Battalions, under the over all supervision and control of the Addl. DGP (Armed Police) and DGP.

2. Each Bn. will be under the command of an Officer who will be of the rank of Superintendent of Police, designated as Commandant.

3. Each Bn. will consist of one Hqrs. Coy and six or more active companies. In the Administration of the Battalion, an Addl. Commandant of the rank of Addl. Superintendent of Police and three or four Asst. Commandants will assist the Commandant. The Addl. Commandant will supervise the administration, discipline and training of Hqr. Coy: and all groups there of, besides assisting the Commandant in the routine administration of the Battalion. The Asst. Commandants will be in-charge of two or three active companies each, for their administration, discipline and training. Each Coy is headed by an OC of the rank of Reserve Inspector (R.I.) who in turn will be assisted by RSIs who are platoon commanders.

933-1. The Andhra Pradesh Special Police, is a para-military force of the State with in the organisation of Andhra Pradesh Police. Its main role is to assist the local police in times of emergencies.

2. It may be used to prevent organised crimes, to curb the activities of subversive and terrorist elements, or as deterrent against possible outbreaks of mob and communal violence.

3. It may also be assigned any other duties by the State Government, such as guarding of vulnerable points, manning of punitive Police posts, anti-smuggling duties and rescue and relief operations during serious natural calamities.

4. It may also be called upon to maintain Law & Order within the Country in close Co-operation with other State Police or the Armed Forces of the Union.

5. In the discharge of the above duties, the force may be deployed by the Director-General of Police, in any part of the State or out side the state.

Deployment of A.P.S.P.

934- 1. The operational deployment of APSP shall be on the specific orders of Director General and Inspector General of Police.

2. When called out, the Andhra Pradesh Special Police will function under the operational control of the Superintendent of Police, or the Senior Officer under whom they are assigned, but for all matters of administration, discipline and the actual tactical handling of the force, they will be under their own officers and there should be no interference in these matters by local police authorities.

3. Superintendent of Police of the district in which the force is deployed is responsible to arrange for the basic amenities before the deployment is ordered. These include providing reasonable accommodation with adequate camp security, cooking and water facilities, lighting etc and the vehicles or POL to APSP vehicles for duties in the district.

4. The APSP should normally be deployed in platoon formation as there are neither administrative or logistical facilities available for formation of less than platoon strength nor the force is trained and equipped for the deployment in twos and threes. In emergency circumstances where it is inevitable to deploy in strength less than a platoon, the arrangements should be worked out by the Superintendent of Police of the district where the force is

deployed in consultation with the Commandant of the Battalion concerned and that too for a short period keeping in view the logistic requirements. In any circumstances the APSP force should not be deployed in less than one section strength, as it conflicts with the basic charter of duties and training imparted to the force.

5. The Hqrs. of each APSP company should be located in such a manner that communication facilities are available with the OC so that he will be in a position to exercise effective control over the platoons deployed away from company Hqrs. At least one platoon should be available where the Head Quarters is located. The location of Coy Head Quarters should be done by the Asst. Commandant concerned in consultation with a senior officer of the Civil Police of the area where the force is deployed.

6. The Andhra Pradesh Special Police is complementary to the civil police and it should ordinarily be called upon to assist the civil police only when the situation goes beyond the control of the Civil/Armed Reserve force of the district.

7. In case where a combined force consisting of elements of the Andhra Pradesh Special Police and the Civil Police embark on an operation, the senior most Officer will be in-charge irrespective of whether he is from the Andhra Pradesh Special Police or the civil police.

8. In deploying the APSP forces for operational functions or in assigning them a particular task, clear indication of the objective, terrain, communication and other relevant particulars should be given to the Commander of the Andhra Pradesh Special Police forces and there should be no room for doubt or ambiguity. It should be clearly settled between the APSP Commander and the Local Civil Police, as to what is required to be done by the APSP so that there is no scope for any ambiguity or misunderstanding on this score. While assigning the task to the APSP the civil police should also give APSP officers benefit of their knowledge of local conditions and make what ever suggestions they think would be helpful. However, it has to be clearly understood that the APSP's role is not to be regarded as replacement for Civil Police role. The Civil Police must therefore refrain from interfering with the APSP operations and leave decisions as to the strength, composition and equipment of the force and the method of carrying out the operations entirely to the APSP officers and men, once they are given a specific task by the Civil Police.

9. A civil police officer of or above the rank of a Head constable will invariably be attached to the APSP platoons and this civil police officer will accompany the APSP force when moved for raids and combing operations in the field area and also for controlling the unruly mobs.

When APSP is deployed outside the State

10. The Special Police on deputation should proceed to the borrowing State with its full complements of Officers and men, transport, equipments, stores, tents and Arms and Ammunition etc. as per the scale

11. The borrowing State should provide suitable accommodation for the borrowed force in proper police lines or other suitable place away from congested public localities, whereby close contact with the public can be avoided. It will be the responsibility of the borrowing state to ensure that the borrowed forces are provided good facilities for water, messing arrangements at the place of stay, and facilities for the procuring of rations and other essential provisions etc.

12. The borrowed force is responsible for the security of their camp including the mounting of guards, posting of sentries and preventing the un-authorized persons from entering the camp area. To enable the borrowed force to enforce proper security measures in their camp, the intelligence input by the local police and the co-operation and assistance of the local authorities of the borrowing state will be sought for.

The APSP is having separate manual called "APSP Manual" in terms of G.O.Ms.No. 516 Home (Police-D) department dated: 11-11-1983, which should be referred to, for detailed instructions and standing orders.

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Home Guards Organisation

935-1 The Home Guards Organisation is intended to provide trained volunteers to help, assist, supplement and handle essential services like electricity, transport, fire services, water works, nursing and first aid through its functional units, as an auxiliary to the police. Home guards will perform the duties and tasks assigned by the organisation to which they are deputed and are subject to all responsibilities and obligations attached to that post or duty. They will exercise the powers and enjoy the protections attached to the organisation by which they are employed.

2. The organisation consists of volunteers who are called Home Guards. All volunteers with prescribed qualifications are given initial training of such nature and duration as laid down. The membership of Home Guards organisation is open to all fit persons whether employed or unemployed. The employers whether of Government or private have instructions to relieve the employees who are home guards, when they are drafted for any duty with full pay. Besides their normal pay, they are entitled, for the period they are employed on any duty as home guards, for such remuneration as prescribed by the Government from time to time. Membership of the Home Guards organisation is not an employment, but is a volunteer service. They offer to receive training during peacetime and place their services at the disposal of the Nation during the country's hour of need in peace or wartime. While discharging the duty as home guards, they are deemed to be public servants as defined both in the Indian Penal Code and the Prevention of Corruption Act.

3. There is no special enactment for Home Guards and therefore they are guided by the instructions issued by the Government of India from time to time. These instructions / guidelines are contained in the Compendium of Instructions on Home Guards of the Government of India published by the Ministry of Home Affairs in 1994 and thereafter. All police officers and the officers in charge of Home Guards should be familiar with these instructions.

4. The home guards organisation has two categories. The first category is those who are volunteers and work only occasionally or when required in emergencies. They are employed in several capacities including gazetted ranks in Government, public sector and private organisations. The second category is those who have no particular employment or avocation but volunteered to work continuously.

5. The control administration and deployment of home guards throughout the State shall vest with DGP who is designated as the Commandant General of Home Guards. The Inspector General of Police Home Guards, the CP Hyderabad City and the Zonal IsG/DIsGP are designated as Additional Commandants General. The DIGP Home Guards at the State Headquarters for the entire State, the Commissioners of Police of other cities and SsP of the districts are designated as Deputy Commandants General for their jurisdiction. One SP/Addl. SP or DCP/Addl. DCP shall be Commandant Home Guards of that Unit and work under the supervision of the SP or CP. Civilians drawn from the first category may be appointed as platoon, company commanders and also as Additional Commandants Home Guards at district/city level or as Deputy Commandant General at State level. At the state level, the DIG Home Guards is assisted by one senior staff officer of the rank of Addl. Superintendent of Police and one junior staff officer of the rank of Deputy Superintendent of Police and other staff. At the district level one officer of the rank of DSP designated as Deputy District Commandant assisted by such staff as are authorised shall be in charge of the Home Guards in the district. The other staff, vehicles, equipment, uniform and other accoutrements shall be as per scale laid down in Chapter 2 and 3 of the Compendium.

6. The civilian office holders of the rank of Additional Commandant and above will have powers of supervision of work of Home Guards who are deployed on duties and assist the Commandant and Deputy Commandant General in maintaining discipline, skills and satisfactory performance of duties. They are to be associated with all the activities of Home Guards. Only those who attend the parades regularly or other duties should be chosen and appointed to those posts by the Commandant General. The ranks are purely honorary and do not carry any salary or perks except the remuneration permissible. They will be eligible for TA and DA if called upon to perform duties, admissible to those of the corresponding ranks drawn from police or the posts in which they are employed, whichever is advantageous. They should be provided with office accommodation in the office of Commandant Home Guards and at the State level in the office of the Commandant General.

Strength and Enrollment

7. The strength of Home Guards shall be as determined by the Government from time to time. The relative strength of the two categories also shall be as determined by the Government. The scale recommended for raising the home guards is one Company of 110 persons for two or three mandals. It is advisable to draw volunteers from each Panchayat. In urban areas a company of 110 may be raised for every 25000 population. However, since the cost of Home Guards is borne by the Government of India, they have allotted certain practical targets for the home guards in each state. The IG Home Guards should in consultation with the Unit officers assess the practical needs of the State in the light of the situations that have to be faced and forward proposals for enhancement of the strength after approval by the Director General of Police and the Commandant General of Home Guards.

8. The Home Guards is a voluntary organisation and almost all ranks up to company level are volunteers. A small number of full time paid staff for training, command and control is authorised at city/town, district and state levels. After completion of their prescribed tenure they are eligible for re-enrolment. Retention of home guards over a long period erodes the voluntary character of the organisation. As far as possible, unemployed persons should not be retained as home guards over a long period so as to preserve the voluntary character of the organisation.

Enrolment and Training

936-1. The home guards are recruited by the Committee consisting of SP/CP and two other members as per G.O.Ms.No.99 Dt.15-4-99 of Home (Police-H) Dept., for their respective areas. They are trained by police officers at the district training centres or any of the other training institutions where facilities are available. The training will be of 2 months duration in PT, elementary foot and arms drill and other modules consisting of work in electricity, transport, communications, fire fighting, rescue, medical and health, civil defence, police and such other essential services as may be prescribed for the functional units. In every district and city Home Guards should have adequate number of functional units based on an assessment of requirement in emergencies.

2. The eligibility for recruitment as a home guard is given below:

- Should be a citizen of India
- He or she should have completed 18 years on the date of enrolment.
- Those who are above 50 years are not eligible
- He/she should have passed VII Class
- Should possess 165 cm in height in case of men. In case of women 150 cm height and 40 kg of weight. The measurements are relaxable in case of Scheduled Tribes and technically qualified persons such as drivers, wireless operators, telephone operators, and those who can handle electrical equipment, water works, fire fighting, first aid etc.
- Should be of satisfactory character and antecedents. While verifying the character and antecedents the criteria to be adopted should be that persons belonging to or associated with any objectionable activity or programme should be considered undesirable for enrolment. The objectionable activities consist of those organisations which are unlawful, aimed at subversion of the Constitution, violent activity, promoting enmity on grounds of religion, caste etc. and those prejudicial to sovereignty, integrity and security of India.
- Should be medically fit

3. The recruitment will be done by the Committee mentioned above in January and July every year. The recruitment procedure is not similar to the normal procedures of recruitment for Government employment. Since the home guards service is of a voluntary nature and persons who are capable of handling certain specialist jobs and operations are required to be enrolled, the SP/CP should give wide publicity to various Government and private organisations to sponsor volunteers from different trades and levels, working in their organisations. The departments, which directly run essential services, need not be approached. Regarding persons who are not employed anywhere suitable announcement locally may be made so that volunteers may approach the designated officer for enrollment. The Commandant/DSP home guards should maintain a list of persons who approach them for enrollment and call them whenever vacancies are to be filled. Every announcement made should clearly indicate that it is a voluntary service and not an employment.

Training

4-A. The volunteers who are enrolled are trained for 2 months initially. The course content of the induction training shall be as determined by the Commandant General Home Guards. It shall specifically include physical training, elementary drill including arms drill and other subjects, which would be necessary for the discharge of allotted duties. The training in special skills of different categories for functional units should be arranged with those institutions or establishments on a continuous basis. The attendance at weekly parades is also intended to update the home guards and should not be confined only to exercises and drill.

B. The venue for initial training will be the district/Unit training centres or other training establishments. There shall be a Central Training Institute for Home Guards for training of trainers and orientation courses for various honorary rank holders and officers of the organisation. The District Training Centre and the Central Training Institute shall be organised and run on the lines indicated in the Compendium.

Discipline and Administration

5. Every member of the home guard is bound by a Code of Conduct for rendering public service honestly, impartially and with competence and to conduct himself in a disciplined manner respecting and complying with the rules and regulations of the organisation to which he is deputed. The officers of the police who are in charge of home guards and the civilians who hold ranks in the home guards organisation should treat the home guards as volunteers and not as subordinates. They should maintain discipline in the organisation, keep the home guards fully trained, guide and supervise them in the performance of the assigned tasks.
 6. The home guard is bound to serve anywhere in the state for a minimum period of 3 years and eligible for extension of service up to the age of 60 years if he is willing. The Commandant Home Guards for good and sufficient reason accept the resignation of a home guard or discharge him at any time before the expiry of the term. An appeal is however permissible in case of discharge to the Deputy Commandant General, Addl. Commandant General or Commandant General.
 7. The Commandant, the SP or the CP as the case may be and those officers superior to them are empowered to suspend or remove or impose a fine not exceeding a sum prescribed as daily allowance on any home guard under his control for neglect or refusal to discharge the duties and responsibilities entrusted to him or fails to obey any lawful order. An appeal against any such order lies to the Commandant General or the State Government within a period of 2 months.
 8. Refusal to perform a duty assigned or desertion from the duty for any reason without proper intimation may entail prosecution as per the laws governing the organisation to which he is deputed.
 9. The Home Guards should function as per the orders of the officers of the department to which they are attached and in case of police department they should work as per the orders of the officers of the rank of Sub-Inspector and above to whom they are attached.
 10. The sanction of the Commandant General shall be necessary for the prosecution of any home guards in a court of law.
- 937-1. The Home Guards organisation is a voluntary organisation and the employees of both Central and State Government or private organisation are free to join and enroll as home guards. Hence they have to be permitted to call up duty in the home guards up to 60 days in a year with full pay. The remuneration paid if any for service as home guard is exclusive of the pay he gets as a regular employee of the organisation where he is employed.

2. Members of home guards are public servants and exercise all the powers and functions entrusted to them including the powers and functions of a police officer if deputed to work in the police organisation.
3. Members of the home guards are not disqualified from being members of local bodies. The service in home guards is not an office of profit and is not a disqualification for contesting and being elected to any of the local bodies including the State Legislature. It should be noted that this does not apply to those home guards who are regularly employed with the Government and are serving as Home Guards.

The powers and functions of supervisory officers

4. Commandant, Home Guards: Every district/Unit shall have an officer of the rank of Addl. SP designated as Commandant, Home Guards. The Addl. SP or Addl. DCP who hold charge of the reserve police may be designated as Commandant, Home Guards for that district/Unit. The duties of the Commandant, Home Guards are $\frac{3}{4}$

- A. Enrollment and training
- B. Deployment as per need
- C. Supervision, guidance and disciplinary control
- D. Weeding out of absentee home guards
- E. Ensure that the strength of home guards of the Unit is always kept full maintaining due proportion between employee volunteers and others
- F. Liaison with the organisations utilising the services of home guards and briefing on the capabilities of those deployed as also the treatment i.e., expected of them in dealing with the home guards.

- G. Prompt payment of remuneration and other allowances due to each home guard or officer.
- H. Control, supervision and direction of the police officers earmarked for training and deployment of the home guards.
- I. All correspondence, registers, accounts, stores and other matters connected with the home guards should be done under his supervision.
- J. He should report to the SP/CP on all matters concerning home guards organisation and keep him fully informed and work under his direction.

Deputy Superintendent of Police

5. One Deputy Superintendent of Police or more are posted on a full time basis as per need to every Unit to look after matters connected with the home guards of the Unit. The DSP is designated as Addl. Commandant, Home Guards and should assist the Commandant and be responsible for the work of enrollment, training, deployment and other matters including office administration. He should supervise the work of Reserve Inspectors and other staff posted under him for training of the Home Guards. He should ensure that the training is imparted according to the course content finalised by the Commandant General.
6. The other police officers who are posted for work relating to home guards in every Unit consist of Reserve Inspectors or Inspectors, RSIs/ SIs, HCs and PCs either of Reserve or Civil Police. They shall perform the duties as are entrusted to them by the Commandant, Home Guards. The duties inter alia include training, deployment, maintaining contact with the home guards while on deployment and ensuring that the facilities that are required for proper performance of duties are provided to them. They will be subject to disciplinary control by the DSP and Addl. Commandant, the Commandant and the Unit Officers as per the rules.
7. The officers of other departments like electricity, medical and health, fire services, etc. who are drafted for training shall work under the supervision of the DSP or the Commandant Home Guards as the case may be. The Commandant home guards and the Unit officer are responsible for proper liaison and coordination between the police officers who train and deploy the home guards and the other officers who utilise their services.
8. The Commandant home guards should maintain a register, which should reflect the full particulars of each home guard including his skills and the special training which has been imparted to him as well as the departments where he would be useful. This register should be updated from time to time. He should assess the requirements in emergencies of various essential services departments in emergencies and ensure that a proper proportion in each skill is maintained on the roles of the home guards organisation.

Utilisation of Home Guards in Police Department

938-1. Home guards are deployed on a large scale in the police department for assistance in various duties that the police is called upon to perform. The deployment of home guards in police is usually for a long duration and hence the number mostly consists of the unemployed volunteers. In fact these volunteers consider the remuneration that they receive for the service as a source of employment even though it is not an appointment in the service of the police. The following guidelines and directions are issued for compliance in the matter of deployment and utilisation of home guards in the police department.

- A. The home guards may be utilised as guards, station watch, assistance to station writer, in bandobust of fairs and festivals, traffic regulation, patrolling etc. Those home guards who are utilised for these duties, if not accompanied or commanded by police officers will not derive any of the police powers unless they are appointed as special police officers or additional police officers in terms of the relevant provisions of the Police Act. The Unit officers should be aware of this and take action suitably to ensure that the home guards if deployed on their own, do not suffer from this handicap in dealing with the task, which is assigned to them.
- B. When deployed on any of the duties and above they should be treated in the same manner as any other police officer and should be given all facilities that they are entitled.
- C. No deployment of home guards on the above duties should be done unless they are properly trained. The initial training of 2 months is not adequate for deploying them on regular police duties. Hence whenever such duties are to be performed, particularly those relating to guards dealing with agitations or bandobusts, an orientation course should be conducted before deployment apart from briefing.
- D. Firearms should be issued, only after they have gone through the training and the range firing practice in that weapon prescribed for a Civil Police Constable.

E. No deployment for mob dispersal duty should be made unless they have been trained even for a short duration, in mob control and lathi drill and briefed on the implication of use of force and the need for use of minimum force and also about the right to private defence. It is not desirable to utilise home guards for such purposes as far as possible.

F. The observation and picket duties and assistance in patrolling are the proper methods of utilisation of home guards.

G. Trained drivers in the home guards organisation may be utilised for driving of police vehicles. Similarly the home guards who are trained in wireless telephone may be utilised to man the control room as also the mobiles which carry police parties.

H. They should not be utilised for any menial or orderly duties such as personal service or at the residences of police officers or others.

I. Arrangements for feeding and transport at Government cost should be made for the Home Guards along with the Police while being deployed on police duty for bandobust.

J. Women home guards should be utilised for searches and other occasions when the presence of women is necessary or mandatory. They may also be utilised to guard women prisoners in custody or escorting women prisoners. While escorting there should be at least one police officer man or woman with the home guards.

K. The uniform and other dress articles should be provided without delay. The officers in charge should inspect and make sure that the supply of uniform and distribution is done regularly.

L. Home guards should not be utilised for investigation duty. They should also not be utilised to assist in the maintenance of police registers. They may however, if trained or have the skill of typewriting or shorthand or computer handling may be utilised for assisting in the maintenance of records or drafting of reports by officers occasionally and not as a substitute for the ministerial establishment. It should be remembered that clerical jobs are not part of essential service and do not strictly come within the purview of police duties. It should be ensured that it is only to assist in police duties that the home guards should be deployed in the department and not for those duties for which the police officers themselves are not employed.

Fixation of the Strength of Home Guards of each Unit

939-1. The strength of home guards is fixed by the Government from time to time. The SP or the CP in consultation with the requisitioning departments and proposals sent to the Government should make the assessment as to the actual need for home guards in each unit. The factors that should be considered for determining the strength of each Unit are briefly stated below:

A. The needs of each department and the nature of emergency that arises normally, the number required to maintain minimum level of service should be prepared in consultation with the concerned department. For example, in respect of electricity, the services required to maintain the supply in times of strikes or emergencies which cause breakdown of supply, the exact number of skilled and trained persons needed for the assistance of the Technical Managers should be assessed. Similar assessment for other departments including police should be made.

B. The duration of emergencies, their frequency, the exact positions to be manned should be a relevant factor.

C. The nature of natural calamities and other disasters particularly those occurring frequently like floods, cyclones and fire in a particular area should be one of the factors in determining the strength.

D. The entire strength of home guards is not intended to be deployed all the time. Based on the above considerations the average man hours should be calculated and a figure arrived at. Since the maximum deployment of an employed person is limited to 60 days in a year, a suitable additionality will have to be built in to the calculation before the final figure is arrived at in respect of each department.

Awards and Recognition

2. The members of the organisation are eligible for President's Home Guards and Civil Defence Medal and Home Guards and Civil Defence Medal for conspicuous acts of gallantry, outstanding devotion to duty and distinguished/ meritorious service. They are also eligible for cash awards and Director General, Civil Defence Commendation Certificates. The recommendation for these awards is made as per guidelines mentioned in Chapter XII of the Compendium.

Welfare

3. The members of the organisation are eligible for compensation for injuries during training/duty. Home Guard volunteers who suffer death/ injury during training/duty are to be provided death/injury benefits on the same basis as applicable to the police personnel engaged in similar operations in terms of instructions contained in MHA Letter No. VI-14021/15/79-DGCD (HG), dated 4.4.1981. The payment in respect of death-cum-injury benefits is to be made by the agency for which the Home Guards are working.
4. Ex-gratia grant for funeral expenses: An amount of Rs.1000/- may be sanctioned as ex-gratia grant for funeral expenses in case of death.
5. Group Insurance: A group insurance scheme to cover death-cum-injury will be implemented by the Government on the lines of the scheme already in existence for the police personnel.
6. All India Home Guards and Civil Defence Professional and Sports Meet: With a view to improve the professional standards of performance of home guards and civil defence organisations and to foster esprit-de-corps among their members. All India Home Guards and Civil Defence Professional and Sports Meets are held every year in rotation in different States or Union Territories.

Civil Defence

940-1. Civil defence is to be organised as integral part of the defence of the country. It is an organisation intended to prepare the people and build up an organisation which can take care of the civil defence before, during and after enemy attacks either by land, air or sea. Aims of the civil defence are to save life, to minimise damage to property and to maintain continuity of production. The civil defence arrangements should be confined to selected places, vital plants and installations which should be reviewed from time to time. Civil defence is to be organised primarily on a voluntary basis and should plan out such measures as are necessary. The Civil Defence Act 1968 provides for the formation of Civil Defence Corps and for making rules and regulations. The Act provides legal status for all measures connected with civil defence. The rules and regulations framed under the Act along with the amendments should be thoroughly read and understood by the Unit Officers.

2. At the State level there is a Controller of Civil Defence and Deputy Controllers located at various places. The Home Guards organisation is complementary to the civil defence organisation. The civil defence corp as distinct from home guards is raised at the State. The Commissioner of Police in Hyderabad City and the District Magistrate in the districts are responsible for implementing civil defence programmes. The deputy controllers are provided on a full time basis for this work in the city and in the district. The organisation, functioning and the schemes to be prepared and implemented transport, equipment, training etc. are covered in detail in the compendium of instructions on civil defence published by the Government of India, Ministry of Home Affairs, by the Directorate General, Civil Defence in 1993. The instructions are communicated from time to time to all the officers.

3. The training programme of the police officers of all levels should include the subjects of civil defence and home guards in the induction courses. The IGP Home Guards should ensure that these modules are incorporated in the course content of training in all the Training Institutions. The police officers in the field at various levels should actively associate in planning and implementation of the civil defence measures as also in inculcating awareness about civil defence programmes in the course of their normal duties.

◆ 2015 Police Computer Services & Standardisation, AP Police Department.



Andhra Pradesh Police Department

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CHAPTER 53

Andhra Pradesh Police Transport Organisation (PTO)

Functions and Organisation

941. The Andhra Pradesh Police Transport Organisation (PTO) is responsible for purchase of new vehicles, their maintenance, routine and major repairs, procurement of quality spare parts at economic cost as well as the condemnation and auction of vehicles/spare parts and other related items.

Important functions of PTO

942-1. Assessment of requirement of different types of vehicles for various police units and lay down a scale of vehicles taking into account various parameters such as strength of a unit, nature of duties performed by a unit, utility of a particular kind of vehicle etc.

2. To standardise the vehicle fleet and constantly update the same by reviewing the type of vehicles required by various units by taking into account the new vehicles introduced in the market, their utility for the police work, running cost etc.
3. Procurement of the vehicles and allotment to the various units as per the approved yardstick.
4. Enforce prescribed preventive and regular maintenance schedules for vehicles, timely servicing and undertaking minor repairs in District/Unit Maintenance Units (DMUs) and major repairs in regional and central workshop and their prompt and economic completion.
5. Establishment and efficient management of Central Workshop, regional workshops, district maintenance units as well as Driving Maintenance, Repair and Transport Training Institute. (DMRTTI)
6. Provide technical supervision for efficient fleet and fuel management in various Police Units.
7. Procurement and supply of quality major aggregates and critical items (automobile spare parts) at economic cost for Central Workshops, regional workshops and all DMUs.
8. Procurement and dispensation of fuel (Petrol and Diesel), Oils, Lubricants etc. at various units.
9. Condemnation and auction of unserviceable vehicles, spare parts and other related items.
10. Recruit and impart induction as well as in-service training to newly recruited Assistant Directors, Supervisor (Technical), Supervisor (Systems), Supervisor (Materials), Junior Mechanics, Junior Material Assistants, Junior System Assistants, Police Constable (Drivers) and Helpers and other technical staff of PTO, Central and regional workshops as well as DMUs.

Organisational Structure of PTO

943. The following establishments constitute the Andhra Pradesh Police Transport Organisation.

1. Central Workshop located at Hyderabad.
2. Regional workshops at Vijayawada, Visakhapatnam and Tirupati

3. Driving, Maintenance, Repair and Transport Training Institute (DMRTTI) at Hyderabad.

4. The district/unit maintenance units are also part of the PTO for technical supervision of the staff posted by the DPTO under administrative control of the unit officer

(The organisational structure chart is appended at Annexure 'A')

Organisational Set-up of PTO

944. Director PTO, who would be assisted by different ranks of technical and non-technical police officers, will head the PTO. The technical personnel of the organisation are equated with police ranks and are of the designations given below.

Gazetted

1-A. Director, PTO of the rank of Inspector General of Police (Cadre Post of IPS).

- B. Additional Director (Technical) of the rank of DIG (Non-Cadre).
- C. Senior Joint Director (Administration) of the rank of Superintendent of Police (Non-cadre).
- D. Senior Joint Director (Technical) of the rank of Superintendent of Police.
- E. Joint Director (Administration) of the rank of Addl. SP (Non-Cadre)
- F. Joint Director (Technical) of the rank of Addl. S.P.
- G. Assistant Director (Administration) of the rank of Deputy Superintendent of Police.
- H. Assistant Director (Technical) of the rank of Deputy Superintendent of Police.
- I. Assistant Director (Material) of the rank of Deputy Superintendent of Police.
- J. Assistant Director (Systems) of the rank of Deputy Superintendent of Police.
- K. Senior Supervisor (Technical) of the rank of Inspector.
- L. Senior Supervisor (Materials) of the rank of Inspector.
- M. Senior Supervisor (Systems) of the rank of Inspector.
- N. Senior Supervisor (Transport) of the rank of Inspector.

Non-Gazetted

2.A. Supervisor (Transport) of the rank of Sub-inspector.

- B. Supervisor (Technical)* of the rank of Sub-inspector.
- C. Supervisor (Materials) of the rank of Sub-inspector.
- D. Supervisor (Systems) of the rank of Sub-inspector.
- E. Assistant Supervisor (Transport) of the rank of Assistant Sub-inspector.
- F. Assistant Supervisor (Technical)* of the rank of Assistant Sub-inspector.
- G. Assistant Supervisor (Materials) of the rank of Assistant Sub-inspector.
- H. Assistant Supervisor (Systems) of the rank of Assistant Sub-inspector.
- I. Head Constable (Driver)
- J. Senior Mechanic* of the rank of Head constable.
- K. Senior Material Assistant of the rank of Head constable.
- L. Senior Systems Assistant of the rank of Head constable.
- M. Police Constable (Driver).
- N. Junior Mechanic* of the rank of Constable.
- O. Junior Material Assistant of the rank of constable.
- P. Junior Systems Assistant of the rank of constable.
- Q. Helpers*.

*These posts will further be divided into specialised trades, the details of which are available in the section related to Central & Regional Workshops.

Ministerial Staff

3-A. Administrative Officer.

- B. Assistant Administrative Officer.
- C. Executive Office Assistant.

- D. Supervisor (Systems)
- E. Assistant.
- F. Assistant Supervisor (Systems).
- G. Junior Systems Assistant.
- H. Senior Stenographer cum Junior Assistants.

(The organisational chart is available at Annexure 'B'.)

Recruitment, Promotions and Service Conditions

4-A. The Andhra Pradesh Police Transport Organisation is state wide unit in terms of the Presidential Order issued under Article 371 D of the Constitution of India. The recruitment and service conditions of gazetted officers is governed by the Andhra Pradesh State Service Rules, 1996 read with any special rules or amendment made therein for Police Department or Police Transport Organisation. The recruitment, training and promotions in the ranks of Constables to Sub-Inspectors as well as all equivalent ranks to the Sub-Inspector/ equivalent ranks is governed by the AP Police (Stipendiary Cadet Trainee) Rules, 1999 and the AP Police (Transport Organisation) Subordinate Service Rules 1997, as amended from time to time. The recruitment and service conditions of helpers are governed by the Andhra Pradesh Last Grade Service Rules, 1992.

B. There will be direct recruitment for Supervisor (Technical), Supervisor (Material), Supervisor (Systems), Junior Mechanic (Diesel), Junior Mechanic (Tailor), Junior Mechanic (Carpenter), Junior Mechanic (Blacksmith), Junior Material Assistant, Junior System Assistants, Helpers only.

C. The posts of Additional Director (Technical), Senior Joint Director (Technical), Joint Director (Technical), Assistant Director (Technical), Assistant Director (Material), Assistant Director (Systems), Senior Supervisor (Systems) and Supervisor (Transport) will be filled either on promotion or on deputation from departments/organisations like APSRTC.

D. Similarly the posts of Assistant Supervisor (Technical), Assistant Supervisor (Material), Assistant Supervisor (Technical), Assistant Supervisor (Transport), Senior Mechanics, Senior material Assistants, Senior System Assistants may be filled by promotions only.

The remaining posts such as Assistant Director (Administration), Senior Supervisor (Transport), Supervisor (Transport) etc. in various ranks will be filled by deputation only from other units on tenure basis.

E. The staff of the A.P Police Transport Organisation will wear the prescribed uniform as per A.P Police Dress Regulations.

5. Jurisdiction

A. The Director, PTO would be in the rank of Inspector General of Police, which will be a cadre post of Indian Police Service. He would be the head of the PTO and report to the Director General of Police through Addl. Director General of Police (Technical Services). Director PTO will have statewide jurisdiction and the Central Workshop, regional workshops; DMUs and Transport Wings of all the units will function under his technical control and supervision.

B. Additional Director (Technical) and Senior Joint Director (Administration) work under the direct control of Director, PTO with statewide jurisdiction.

C. Senior Joint Director (Technical) assisted by two Joint Directors (Technical) will be in charge of Central Workshop.

D. Joint Director (Administration) will be in charge of various administrative functions at Headquarters and Central Workshop.

E. Joint Directors (Technical) will be in-charge of various wings of Central Workshop and also of the Regional Workshops.

F. Assistant Director (Administration) at PTO will assist Joint Director (Administration) and will ensure optimal deployment of vehicles available in the central pool. Senior Supervisor (Transport) will assist him.

G. Assistant Director (Materials) will be in charge of central stores at PTO and will report to Additional Director (Technical). Senior Supervisor (Materials) will assist him.

H. Assistant Director (Systems) will be in charge of Computer Cell of entire PTO and will report to Additional Director (Technical). Senior Supervisor (Systems) will assist him.

I. Assistant Directors (Technical) will in be charge of each section of Central Workshop, Regional Workshops, and Training Centre etc.

J. The Senior Supervisors (Technical), Senior Supervisor (Materials), Senior Supervisor (Systems) will mainly hold posts in the Central and Regional Workshops and DMRTTIS of the PTO.

K. Senior Supervisor (Transport) / Reserve Inspector (Transport) shall be in charge of all District/Unit Transport wings including the specialised units like Greyhounds, APSP Battalions, CID, Intelligence, Police Communications, FSL etc. They will work under the administrative control of the Deputy Superintendent of Police (Reserve Police) or any other officer in charge of Transport in the unit and technical supervision of the Assistant Director (Technical) of the concerned regional workshops.

L. The Assistant Supervisor (Technical), Assistant Supervisor (Transport), Assistant Supervisor (Materials), Assistant Supervisor (Systems), Senior Mechanics, Senior Material Assistant, Senior Systems Assistants, Junior Mechanics, Junior Material Assistants, Junior Systems Assistants, HC and PC drivers are to be posted to the Central and regional workshops, Transport Wings and DMUs and also other establishments of PTO like DMRTTIS, petrol/oil/lubricants dispensing units.

M. The Senior and Junior Mechanics, HC and PC Drivers and Helpers of District reserve police or other units are part of the unit administration and will work under the technical supervision of the technical officer posted by the Director Police Transport Organisation to the unit. The administrative control will rest with the district/unit officer.

N. Administrative Officer is incharge of the office of the PTO. He works under the direct supervision of Assistant Director (Administration). The Assistant Administration Officers and Assistants will assist him in day-to-day work. The Administrative Officer is also assisted by Assistant Supervisor (Systems) and Junior System Assistants.

Note: (1) The number of posts indicated against each post is tentative and could vary as per workload for which the government may issue order from time to time.

(2) The posts which carry \$ mark are given in absolute number and include 10% deputation reserve and 10% leave & training reserve.

Functions, Duties, Responsibilities and Powers of Officers of PTO

Gazetted

Director Police Transport Organisation: (One)

945-1-A. Heads the organisation and is overall in-charge of functions related to fleet and fuel management such as purchase of new vehicles, purchase of spare parts and other allied items, maintenance and repair of vehicles in police department.

B. Exercises financial and disciplinary powers of the Inspector General of Police.

C. Exercises over-all superintendence over the work of all technical and non-technical officers in the PTO.

D. Appointing authority of the directly recruited Supervisor (Technical), Supervisor (Materials), Supervisors (Systems), Supervisors (Transport) and other corresponding posts.

E. Initiation of transfer and posting proposals of various Assistant Directors.

F. Posting and transfers of the Senior Supervisors in PTO, Central and Regional Workshops as well as those working in DMUs.

G. Maintenance of Personal Files of Gazetted staff up to the rank of Senior Joint Director.

H. Prescribes various periodical reports for ensuring the efficient functioning of officers working under his control.

I. Periodical inspection of offices of subordinate officers, central workshop, regional workshops, DMRTTIS and DMUs.

J. Chairs the Purchase Committee constituted for purchase of spare parts and other allied items.

K. Responsible for codification of a purchase manual, which may be updated from time to time.

L. Responsible for introduction and implementation of latest and appropriate managerial, financial, purchase and technical practices for maintaining an efficient police fleet.

M. Sanction of rewards for outstanding work to personnel working under his administrative control.

N. Fixes the condemnation norms / yardstick for vehicles, parts. Final authority for condemnation of vehicles, premature condemnation as well as auction of condemned vehicles and spare parts

O. Shall compile the Andhra Pradesh State Police Transport Manual incorporating details of maintenance schedules, preventive maintenance practices, workshop management, service station management, management of POL dispersing units, duties of officers/drivers who use to drive the vehicles and all other establishments including stores and issue it after approval of the Director General & Inspector General of Police. He shall update the transport Manual from time to time and at least once in two years.

P. He shall introduce and implement computerised system for vehicle management, accounts, inventory control, records, training etc.

Q. Submit a monthly report to the Director General of Police through Additional Director General (Support Services) regarding functioning of PTO, the central and regional workshops and the status of the fleet.

Additional Director (Technical) (One)

2- A. Has state-wide jurisdiction and performs the following duties under the supervision of Director PTO.

B. Monitoring of maintenance, repair schedules of the fleet in the State.

C. Overall Technical Supervision of various on-going repairs, maintenance in central workshop and other workshops.

D. Ensures prompt and quality repair of the vehicle at Central and Regional Workshops.

E. Inventory Management of the Main technical stores of PTO.

F. Overall Supervision of the Motor Transport Wings, POL dispensing units and Driving Maintenance, Repair and Transport Training Institute.

G. Exercises disciplinary powers of DIG of Police pertaining to technical personnel.

H. Responsible for efficient management of the fleet and its proper upkeep.

I. Responsible for conducting the tender-cum-auction of condemned vehicles and old automobile spare parts.

J. Preparation for maintenance and repair manual for each kind of vehicle maintenance in the department, which will form part of the State Police Transport Manual.

K. Maintenance of PFs of Non-Gazetted technical staff of the rank of Assistant supervisor and above.

L. Sanction of rewards for outstanding work to technical personnel as per prevalent orders.

M. Inspections and visits of the offices of the Joint Director (Technical) once in a year and Assistant Directors (Technical) once in two years, at least two Motor Transport Wings under each regional workshop and other officers under his supervision once a year.

N. Submit monthly reports to Director Police Transport Organisation as prescribed from time to time.

O. Perform such other duties as may be assigned by the Director Police Transport Organisation.

Senior Joint Director (Administration) (One)

3-A. Responsible for personnel administration and office administration in the Police Transport Organisation, Central Workshop and Regional Workshops.

B. Appointing and disciplinary authority for Assistant Sub-Inspectors, Head Constables and Helpers and all other equivalent ranks.

C. Maintenance of personnel files of all non-gazetted staff of various officers under the control of DPTO.

D. Sanction of rewards for outstanding work to each non-technical personnel working under the control of DPTO as per prevalent orders

E. To conduct regular inspections of various offices under his control and submit reports to DPTO through Additional Director (T)

F. Exercise financial and disciplinary powers as that of the Superintendent of Police for efficient functioning of the day to day functioning of office.

G. Performs any other administrative duties assigned by the Director, Police Transport Organisation.

Senior Joint Director (Technical) (One)

4- A. Responsible for efficient functioning, prompt and economic repair of motor vehicles as Overall in-charge of Central Workshop at Hyderabad & various Motor Transport units at Hyderabad.

B. Responsible for Central Workshops at Hyderabad and in various MT units at Hyderabad.

C. In-charge of main technical stores of the PTO and is responsible for various inventory control functions.

D. Exercises financial powers equal to that of Superintendent of Police as regards emergency purchase of items for technical stores as laid down in the procedure of the purchase manual.

E. Assists Additional Director (Technical) for effective functioning of motor transport wings of Hyderabad City based units, POL units and driving, maintenance, repair and transport training institute situated at Hyderabad.

F. Conducts periodical inspections of the motor vehicle maintenance units in the city.

G. Performs any other administrative duties assigned by the Director, Police Transport Organisation.

Joint Director (Administration) (One)

5- A. Responsible for personnel administration and office administration in Police Transport Organisation and Central Workshop at Hyderabad.

- B. Asst. Sr. Joint Director (Administration) in various administrative functions.
- C. Supervises the functioning of administrative functions performed by the ministerial staff.
- D. Exercise financial and disciplinary powers as that of the Addl. Superintendent of Police for efficient day-to-day functioning.
- E. Performs any other administrative duties assigned by the Director, Police Transport Organisation or any other Sr. Police Officer.

Joint Director (Technical): (2 for Central Workshop)

6-A. Overall in charge of certain wings of Central Workshop e.g. Preventive Maintenance Wing, Minor Repairs Wing, Engine Repair Wing, Electrical Repair Wing, Accessories Wing etc and DMRTTI.

- B. Ensure prompt and economic repair. To reduce off road time to minimum if necessary, by co-ordinating repair activities with other wings of the workshop.
- C. Maintain records in the prescribed pro-forma for the repairs, spare parts and allied items and expenditure thereon.
- D. Impart regular training to the staff on repair of vehicles especially newly introduced vehicles as well as latest techniques of repair.
- E. Exercise disciplinary powers of the rank of Additional Superintendent of Police.
- F. Carry out any other duty assigned by Additional Director (T) or Director PTO.

Joint Director (Technical)-Regional Workshop: (3:1 each)

7-A. Over all in charge of regional workshop.

- B. Responsible for efficient functioning, prompt and economic repairs of motor vehicles.
- C. In-charge of regional technical stores and responsible for inventory control functions.
- D. Exercises financial powers equal to that of Additional Superintendent of Police as regards emergency purchase of items for technical stores as per laid down procedure given in the purchase manual.
- E. Conduct periodical inspections of the unit transport wings falling under the jurisdiction of regional workshop.
- F. Exercises disciplinary control on the staff working under his control as per rules in force and also sanctions rewards as per laid down norms.
- G. Exercise administrative power of Additional Superintendent of Police.
- H. Submits various prescribed periodical reports to the Additional Director (Technical).
- I. Co-ordinate activities of regional workshop with the Units so as to ensure best fleet and fuel management.
- J. Transfers and postings of Head Constables/ Police Constables (Mechanics and drivers) in his jurisdiction. Over-all incharge of the Regional Stores.
- K. To carry out test check of stores of Motor Transport wings of the units during inspections.
- L. Maintenance of DPFs of Assistant Supervisors.
- M. Sanction of rewards.
- N. Sanction of Earned Leave and medical leave up to Assistant Supervisors level.
- O. Sanction of casual leave to Assistant Director under intimation to Director Police Transport.
- P. Allotment of Government quarters.
- Q. Verification of 10% of Service Books of the staff every year.
- R. Submission of monthly report to the Director Police Transport through proper channel.
- S. Efficient management of the fleet in his area maintaining close co-ordination with the unit officers especially during such occasions as large-scale bandobust, like VVIP security, floods, festivals etc. and such other duties assigned by the Director Police Transport.
- T. Administrative and disciplinary powers of Superintendent of Police as per rules in respect of personnel in his charge.

Assistant Director (Administration) (One for PTO)

8-A. Responsible for management and upkeep of Central Vehicle Pool maintained by Police Transport Organisation at Hyderabad.

B. Responsible for managing the POL dispersing units in Hyderabad City and maintenance of records.

C. Supervises the functioning of Senior Supervisor (Transport), Supervisor (Transport), Asst. Supervisor (Transport), Head Constable (Driver), Police Constable (Driver).

Assistant Director (Technical) (5): (2 for Central Workshop and 3 for regional workshop @ 1 Each)

9-A. Sanction of casual leave to Inspectors and Earned Leave to Senior, Junior Mechanics (HCs and PCs).

B. Exercise disciplinary and financial powers as Deputy Superintendent of Police (Civil).

C. To ensure efficient management of the fleet and supervision of the work of Inspectors (Technical).

D. Visit every Motor Transport wing of units/districts once in two months and inspect once a year and submit notes.

E. Strict implementation of preventive maintenance schedules and ensures that no vehicles are off road for more than a week. Report should be sent if any vehicle is off road for a longer time and comply with orders thereon.

F. Despatch of vehicles, which cannot be locally repaired, to the workshop.

G. Up to date maintenance of all records such as Stock Ledger, POL indents, General Diaries, Motor Transport Returns, etc. concerning maintenance and as well as returns.

H. Liaison with the local police officers and will ensure that problems of transport are attended to promptly.

I. Submission of monthly reports through proper channel.

J. Any other duties assigned by the superior officers.

Assistant Director (Material) (One for Central Workshop Stores)

10-A. Purchase of spare parts and accessories at economic rates from reliable and reputed sources of supply

B. Ensure identification of reliable and reputed manufacturers of various items and ensures timely procurement of these items for maintenance and upkeep of the police vehicles.

C. Maintenance of stores, inventory management, issuing of purchase orders, monitoring delivery schedules, regular staff taking up stores.

D. Will assist the Joint Director (Technical) in preparing police transport, stores and purchase manuals and updating the same.

E. Shall be responsible for disposal of items and serviceable material as per provisions of the stores and purchase manuals.

Assistant Director (Systems) (One for Central Workshop and PTO)

11-A. Automation of various functions such as workshop management, stores management, inventory control, fuel dispensing, administrative aspects.

B. Ensure system requirement study, requirement of hardware and software, computerisation of various units and sub-units in consultation with Central Computerisation Section of Andhra Pradesh Police.

C. Shall be responsible for laying down data entry procedures, data validation procedures, security parameters for maintaining and preserving the integrity of the data.

D. Make necessary changes in the software in order to upgrade the functioning of various aspects of Police Transport Organisation and also provide the necessary inputs for the top management for facilitating better and quick decision-making.

E. Supervise the functioning and exercise administrative control for the staff working under his control.

Senior Supervisor (Technical) (5 for Central Workshop & 2 each for regional workshop)

12-A. Exercise control on the concerned wing of the central workshop or regional workshop as the case may be.

B. Ensure effective supervision for optimal performance of assigned duties by the personnel under his charge.

C. Shall receive the vehicles coming to the section for repair; prepare the estimates of repair and requirement of spare parts and accessories.

D. Shall ascertain the cost of repairs both in terms of material as well as the labour component.

E. Ensure that the personnel working under his control carry out the repairs as per the practices laid down in the Police Transport Manual or as prescribed by the manufacturer.

- F. Shall ensure that all standard workshop and shop floor practices are followed strictly.
- G. Maintain the required records of repairs carried down on each vehicle by the section under his control.
- H. Assist the Asst. Director (Technical) in all aspects relating to maintenance / repairs of vehicles.

Senior Supervisor (Materials)\$ (2 for Central Workshop)

13-A. In-charge of designated wing of Central Stores or stores of the Regional workshop

- B. Responsible for proper receipt and accounting of all the articles received in the stores.
- C. Ensure that all the items are secured against lost, pilferage, damage or destruction by any means.
- D. Ensure proper upkeep of items like batteries, tyres and other items, which are inflammable in nature.
- E. Ensure proper fire fighting equipment is installed in the stores.
- F. Responsible for all the transactions of stores that will include receipt and issue of various items as per the purchase order or requisition.
- G. Responsible for timely procurement and maintaining adequate inventory of various spare parts and accessories.
- H. Ensure that no obsolete items are requisitioned
- I. Will be responsible for timely disposal of obsolete and unserviceable material
- J. Supervise the functioning of staff working under him.

Senior Supervisor (Systems)\$ (2 for Central Workshop)

14-A. Ensure proper functioning of computer system and feeding of necessary data as well as generation of reports

- B. Shall be responsible for upkeep of hardware, software and ensure feeding of duly validated data.
- C. Assist the Asst. Director (Systems) in various tasks relating to computerised maintenance of various functionalities of Police Transport Organisation, Central and Regional workshop, Central and Regional stores.

Senior Supervisor (Transport)\$ (One for PTO)

15-A. Shall be responsible for keeping the vehicles of pool in readiness all the time.

- B. Detail the vehicles to officers on official duties as and when directed by the senior authorities.
- C. Ensure that the drivers of vehicle maintain their daily diary properly and all records relating to running of vehicle are maintained as well as updated.
- D. Shall be responsible for ensuring that the medical examination of drivers is carried out on regular intervals as laid down in Police Transport manual and fitness certified by the Medical Officer.
- E. Ensure that all drivers possess duly valid driving license for driving a particular vehicle.
- F. Maintain duty roster for drivers working under his control and ensure proper rotation of duties.
- G. Ensure that the consumption of POL remains within control and proper record of the POL issued and consumed is maintained.
- H. Provide each vehicle with the first aid kit tools and other necessary items required for proper running of the vehicle.
- I. Ensure that all vehicles possess the necessary certificates issued by the concerned authorities such as vehicle fitness certificate, pollution control certificate etc.

Non-Gazetted

Supervisor (Technical)\$ (15:9 for Central Workshop & 2 each for regional workshops)

946-1-A. Shall be second in-charge for the concerned wing of the workshop and carries out all duties relating to maintenance and repair of vehicles as per norms laid down in Police Transport manual or the manual of vehicle manufacturer.

- B. Ensure that only required spares / accessories are requisitioned and duly fitted to the vehicle.
- C. Maintain proper accounting of the spare parts used on a vehicle and also unserviceable items removed.
- D. Shall get unserviceable items destroyed/condemned under his personal supervision, which are likely to be reused / misused.
- E. Prepare the necessary requisition for spares from central / regional stores
- F. Carry out all other duties assigned by his superiors.

Supervisor (Materials)\$ (5:2 for Central Workshop & 1 each for regional workshops)

2-A. Assist the Senior Supervisor and Asst. Director (Materials) in proper maintenance of stores, its cleanliness, storage, safety, issue and receipt of spare parts / accessories, maintenance of proper accounting etc.

B. Any other duty assigned by his superiors.

Supervisor (Systems)\$ (6:2 for Central Workshop, 1 for administrative section & 1 each for regional workshops)

3-A. Ensure proper maintenance of hardware, software, entry of duly validated data and generation of various reports.

B. Maintenance of backup data in a secured place and also restrict the access to the systems to unauthorised persons as per security policy laid down.

C. Any other duty assigned by his superiors.

Supervisor (Transport)\$ (2 for PTO)

4-A. Assist Senior Supervisor (Transport) in discharge of various duties shall be responsible for the efficient functioning of any sub-unit of Transport wing.

B. Liaison with central workshop / regional workshop for the proper maintenance and upkeep of central pool vehicle.

C. Any other duty assigned by his superiors.

Asst. Supervisor (Technical)\$ (8)5 for Central Workshop & 1 each for regional workshops)

5-A. Shall assist Supervisor (Technical) and other senior officers in proper repair and preventive maintenance of vehicles.

B. Responsible for ensuring compliance to laid down workshop practices.

Asst. Supervisor (Materials)\$ (3 for Central Workshop Stores)

6-A. Shall assist Supervisor (Materials) and other senior officers in discharge of various functions of the central / regional stores.

B. Carry out and perform various duties assigned to him in professional manner.

Asst. Supervisor (Transport)\$ (3)1 each for regional Workshops)

7-A. Shall assist Supervisor (Transport) in discharge of various duties.

B. Maintain various records prescribed in the Police Transport manual especially those relating to deployment of vehicle, consumption of fuel and preventive maintenance.

C. Ensure that all accessories and tools available in the vehicle are kept in working condition in the vehicle.

Asst. Supervisor (Systems)\$ (2)1 for Central Workshop and one for administrative section of PTO)

8-A. Supervise the feeding of validated data, generation of reports

B. Maintenance of back up data as per the prescribed schedule

C. Any other duties assigned by his superiors

Head Constable (Driver) (36)30* for PTO & 2 each for regional workshops)

9-A. Shall be responsible for the proper driving and regular preventive maintenance of the vehicle.

* The number could vary as per the strength of the vehicles deployed in Hyderabad in DGP office and units whose vehicles are maintained by PTO.

- B. Ensure proper accounting is kept for consumption of fuel, kilometer run and maintenance of vehicle diary.
- C. He shall always carry driving license and necessary registration papers.
- D. Observe traffic rules and regulations and shall report any accident involving the vehicle to his superior immediately.
- E. Shall drive the vehicle in prescribed uniform unless otherwise permitted by specific orders.

Senior Mechanic\$ (50 for Central Workshops & 2 for each DMU)

10-A. Will carry out the necessary stripping up the vehicle, detailed examination of defects; correctly work out the requirement of spare parts and accessories for the repair.

- B. Carry out repairs as stipulated in the State Police Transport manual or as prescribed by the manufacturer.
- C. Will be responsible for the cleanliness of the workshop area.

Senior Material Assistant \$ (5)2 for Central Workshop and 1 each for regional workshop)

11-A. Shall be responsible for maintaining the records and storage of spare parts.

- B. Shall receive the indents and issue the spare parts after taking due acknowledgement as per prescribed procedure in the Stores manual.
- C. Will assist the Asst. Supervisor (Materials) and seniors in proper maintenance of stores.

Senior Systems Assistant \$ (6)3 for Central Workshop and 1 each for regional workshop)

12-A. Shall be responsible for feeding all data, generation of reports, upkeep of the hardware and software.

- B. Shall ensure that no unauthorised access is given to the systems.

Police Constable (Driver) (115) 100* for PTO & 5 each for regional workshops)

13. The duties of the Police Constables will be as given above that of Head Constable (Drivers).

Junior Mechanic\$ (Total -) (48 for PTO & 11 each for regional workshops & 2 each for DMU)

14. Will perform the same duties as that of Senior Mechanic and may assist Senior Mechanic wherever repairs are to be carried by a team of mechanics.

* The number could vary as per the strength of the vehicles deployed in Hyderabad in DGP office and units whose vehicles are maintained by PTO.

Junior Material Assistant \$ (7) 4 for Central Workshop and 1 each for regional workshops)

15. Will be responsible for storage of spare parts, receipt and issue of spare parts.

Junior Systems Assistant \$ (3 for Central Workshop)

16. Will be basically responsible for feeding the data pertaining to various sections of Police Transport Organisation.

Helpers\$ (16:10 for Central Workshop: 2 each for regional workshops)

17-A. Will be responsible for cleanliness of the workshop area and assist the Junior Mechanics and Senior Mechanics in shifting the parts.

B. May also attend to other works assigned to them.

Central Workshop

947-1. Central workshop is situated at Hyderabad and work under the overall control of Additional Director (Technical). Senior Joint Director (Technical) will be in-charge for the Central Workshop. He will be assisted by 2 Joint Directors (Technical), 2 Asst. Directors (Technical), Asst. Director (Materials), Asst. Director (Systems), 5 Senior Supervisors (Technical), 2 Senior Supervisors (Materials), 2 Senior Supervisors (Systems). This staff will be assisted by 9 Supervisors (Technical), 2 Supervisors (Materials), 2 Supervisors (Systems), 5 Asst. Supervisors (Technical), 3 Asst. Supervisors (Materials), 1 Asst. Supervisors (Systems), 48 Senior Mechanics, 2 Senior Material Assistants, 3 Senior System Assistants, 93 Junior Mechanics, 4 Junior Material Assistants, 3 Junior System Assistants, and 18 helpers will assist the workshop staff. (The central workshop structure is shown in Annexure-C)

2. The Central Workshop is responsible for carrying out major repairs to vehicles especially those located with the units situated at Hyderabad and near by districts such as Warangal, Karimnagar, Mahaboobnagar, Nalgonda, Nizamabad, Adilabad, Medak and Ranga Reddy. The Central Workshop carries out major repairs to vehicles received from other units of the State. The Central Workshop will also be responsible for carrying out preventive maintenance and minor repairs to the vehicles of all the units located in Hyderabad and surrounding areas.

3. Depending upon the need, the Central Workshop may deploy a small sub-unit for preventive maintenance and minor repairs to the units located in Hyderabad, which have large number of vehicles on their strength. Such staff will continue to work directly under the supervision of Central Workshop only.

4. The Central Workshop will have the following sections:

Engine Section:

A. The Engine Section will be working under the direct supervision of 1 Senior Supervisor, who shall be assisted by 2 Supervisors. The following are the various sub-units of Engine Section:

Engine Repair Sub Unit

B. The Engine Repair Section would be manned by 1 Assistant Supervisor (Technical), 4 Senior Mechanics and 8 Junior Mechanics and 2 Helpers. The job of the Engine Repair Section would be to dismantle, clean, ascertain the requirement of parts and repairs needed, rectifying the defect, re-assembling and testing of the engines.

Machine Shop Sub Unit

C. 4 Senior Mechanics, 6 Junior Mechanics and 1 Helper would man the Machine Shop Section. The Machine Shop Section would carry out the following works:

- Engine block liners replacement;
- Cam Shaft bushes reaming and fixing, dummies
- fixing;
- Crank shaft grinding
- Gudgeon pin bushes, rocker shaft bushes reaming & fixing;
- Cylinder Head, Valve seat cutting & grinding;
- Miscellaneous work like

- Wheel Drums cutting
- Brake liners riveting
- Pedal shaft bushes reaming and fitting
- Steering rod bushes

- Pressure plate / Fly wheel facing
- Suspension bushes reaming & fitting

Fuel Injection Pump Sub Unit

D. The Fuel Injection Pump Section will be manned by 1 Senior Mechanic (Diesel), 2 Junior Mechanics (Diesel) and 1 Helper. The FIP Section will handle dismantling, cleaning, requisition of spare parts and re-assembling of the fuel injection pump.

Gear Box and fitting Sections

5. These two sections will work under the supervision of 1 Senior Supervisor.

Gear Box sub-unit

A. 2 Senior Mechanics, 2 Assistant Mechanics and 1 Helper will man it. The following work will be attended by Gear Box Section:

- Gear box dismantling, cleaning, demand of spare parts and assembling;
- Differential dismantling, cleaning, demanding of spare parts & assembling;

Fitting sub-unit

B. 2 senior mechanics, 4 junior mechanics and 1 helper will man fitting section. The following work will be attended by fitting section:

- Bumpers
- Doors
- Bonnets
- Other miscellaneous fitting

Preventive Maintenance & Minor Repair Section

6. It will function under the supervision of one Senior Supervisor:

Preventive maintenance sub-unit

A. It will be manned by 1 Assistant Supervisor (Technical), 4 senior mechanics, 8 junior mechanics and 1 helper. The nature of work to be attended by preventive maintenance section would be as follows.

- Carrying out of preventive maintenance of all vehicles as per prescribed norms given in the Police Transport Manual or Manual of maintenance issued by the manufacturers.
- Carry out regular service, replacement of engine and transmission oil on prescribed intervals.

Wheel alignment & balancing sub-section

B. Wheel alignment section would be manned by 2 junior mechanics. The section will carry out wheel alignment and balancing work for the vehicles on a regular basis.

Electrical Section

C. It will function under the supervision of one Senior Supervisor and will be manned by 5 Senior Mechanics (Electrical) and 8 Junior Mechanics (Electrical) and 1 Helper. The nature of work to be attended by the Electrical Section would be as follows:

- Dynamo/Alternator and Self Starter dismantling, cleaning, demand of spare parts and assembling
- Battery charging (new and old) and condemnation of batteries

- Attending to all other electrical works like wiring, verification of head lights, tail lights & other electrical equipment
- Attending to air-conditioner fitted in the vehicles

Main Line & two-wheeler Section

7-A. The Main Line sub-unit will be manned by 1 Senior Supervisor (Mechanic), 3 Supervisors (Mechanic), 1 Assistant Supervisor (Mechanic), 8 Senior Mechanics, 18 Junior Mechanics and 3 Helpers. The work to be attended by this Section would be as given below:

- Engine / Gear Box dismantling
- Differential / Leaf Springs dismantling
- Steering Dismantling, Demanding of spare parts for steering system, brakes, clutches, and springs.
- Fitment of leaf springs / Shock Absorbers, Front & Rear Axles Mounting Brakes
- Engine / Clutch / Gear Box Mounting
- Steering Box Overhauling
- Final Works and Road Test

Two Wheeler sub-unit

B. 2 Senior Mechanics assisted by 4 Junior Mechanics and 1 Helper will man this sub-unit. The following jobs will be attended by the sub-unit:

- Engine Dismantling, Cleaning, Demand of spare parts and Assembling
- Clutch overhaul
- Gear Box overhaul
- Shock Absorber Replacement
- Chain sprocket replacement

Painting & Miscellaneous support Section

8. The various sub-units will work under the overall supervision of one Senior Supervisor

Painting sub-unit

A. This sub-unit will be manned by 2 Senior Mechanics (Painter), 6 Junior Mechanics (Painter) and 1 Helper. The work attended by the Painting Section would be as follows:

- Cleaning & Applying of NC Putty
- Applying of paint

Upholstery sub-unit

B. This sub-unit would be manned by 1 Assistant Supervisor (Tailor), 3 Senior Mechanics (Tailor), 6 Junior Mechanics (Tailor) and 1 Helper. The Upholstery sub-unit will handle the work relating to the seat preparation for various vehicles, renovation of seats, preparation of roof and fixing and its renovation.

Blacksmith sub-unit

C. The Blacksmith Section will be manned by 1 Assistant Supervisor (Blacksmith), 6 Senior Mechanics (Blacksmith), 12 Junior Mechanics and 2 Helpers. The work attended by the section will be as follows:

- Leaf Spring – Cambering (A/Car)
- Leaf spring – Cambering (Jeep)
- Moulding of starts / flag rods etc.
- Radiator Overhauling
- Welding/Denting

Carpentry sub-unit

D. The Carpentry Section will be manned by 2 Senior Mechanics (Carpenter), 3 Junior Mechanics (Carpenter) and 1 Helper. The job attended by the Carpentry sub-unit would be preparation of various fittings in the vehicles.

Main Technical Stores (Central Stores)

948-1. The Central Stores will function as per A.P. Police Transport Stores and Purchase Manual, which will be compiled by the Senior Joint Director (Technical) keeping in view the latest practices in material management including total automation. The Stores and Purchase Manual will be regularly updated – at least once in two years. He will be assisted by 1 Assistant Director (Material), 2 senior Supervisor (Material), 2 Supervisor (Material), 3 Assistant Supervisors (Material), 2 Senior Material Assistants, 4 Junior Material Assistants and Helper. Central Stores situated at Hyderabad will function under the direct control of Addl. Director (Technical) who shall be assisted by Senior Joint Director (Technical). Asst. Director (Materials) will be the officer in-charge for the Central Stores. The Central Stores shall be divided into following sub-sections:

- A. Inventory Control Section
- B. Purchase Section
- C. Receipts Section
- D. Stock and Distribution Section
- E. Tyres and Batteries Section
- F. Unserviceable and Disposable Material Section
- G. Audit Section

The Central Stores shall identify the suppliers based on the quality and economic factors. The stores shall procure major items for distribution to the units all over the state. For small items the stores shall identify the supplier located in various parts of the state and enter into regular rate contract on which the units could purchase items of day-to-day necessity and spare parts of small values. The Audit Section will undertake annual stocktaking and also ensure the disposal of obsolete and non-moving items from time to time.

Purchase Procedure for Vehicles, Spare Parts & Other Items

2-A. The PTO forms a very important function of purchase of new vehicles, purchase of spare parts and allied items as well as disposal of condemned spare parts, condemned vehicles and other items. The PTO is responsible for purchase of suitably identified vehicles for the use of various units of police force. The PTO will be responsible for standardising the fleet. The standardisation of vehicles will be reviewed continuously so as to induct suitable vehicles for fuel efficiency. The fewer the types of vehicles, the less will be the need to maintain a limited inventory of spare parts. PTO would be in a better position to maintain timely repairs to these vehicles. Normally the vehicles will be purchased directly from the manufacturers on Government approved rates. In case, a vehicle has to be purchased which is not available on Government approved rates, PTO will evaluate similar type of vehicles available in the market and after trial, decide to purchase vehicles which are the most useful and economic. The purchase shall invariably be made from the manufacturers through a local dealer so as to ensure the benefits of warranty through the dealer.

B. The PTO will continuously evaluate the economic life of various vehicles and fix the running life, so as to condemn and fix the yardstick for condemnation. The vehicles, which have lived the prescribed life, would be taken off the fleet and sold by auction-cum-tender process. The old spare parts and unserviceable items would also be disposed off through auction-cum-tender method periodically.

C. PTO is responsible for keeping optimal inventory of spare parts. Every effort shall be made to ensure that money is not blocked in the form of large and excessive inventory. The spare parts and replacement items like tyres and batteries shall be purchased directly from the manufacturer (unless needed in very small quantities - which could be procured from authorised dealer) either on Government approved rates or through open tender procedure. The PTO shall continuously evaluate and ensure that only quality spare parts of reliable and reputed manufacturers are purchased. Since some of the standard items including the vehicles, which are available on DGS & D rates, the Purchase Committee need not approve such items. The experience of organisations like APSRTC may be taken into account while identifying manufacturers of various spare parts.

D. A purchase committee under the Chairmanship of Director, Police Transport Organisation will function and shall consist of the following members: -

- Additional Director (Technical), PTO -- Vice Chairman
- Joint Director (Technical) (nominated by the Director, PTO)—Member
- Assistant Director (Technical) – Member

- Assistant Director (Material, PTO) – Member Secretary
- An officer nominated by the A. P. State Road Transport Organisation, Hyderabad – Member

If for any reason the chairman is not available, the vice chairman will chair the Stores Purchase Committee. The Quorum of the Stores Purchase Committee shall be Chairman and three members.

Systems Wing

3-A. The Systems wing will look after the entire computerisation / automation work of the Central Workshop, Central Stores, Administrative Section and Regional Workshops. The Wing will be headed by Assistant Director (Systems), who shall report to Senior Joint Director (Technical). He shall be assisted by 2 Senior Supervisors (Systems), 2 Supervisors (Systems), 2 Assistant Supervisors (Systems), 3 Senior System Assistants and 3 Junior System Assistants.

B. The Systems Wing will be responsible for coordinating various computerisation activities with the A.P State Police Computerisation Wing, so that the data stored in the Police Transport Organisation is also accessible by the units and senior officers on need-to-know basis. The wing will also prepare software programmes and update these from time to time especially for maintaining the vehicle history sheets, amount spent on each vehicle on repairs, repair history, POL dispensing etc. The various administrative tasks will also be computerised. The wing will also be responsible for upgrading the software programmes and devising new programmes as and when the need is felt.

Administrative Section

4-A. The Administrative Section will work directly under Senior Joint Director (Administration) who shall be assisted by one Asst. Director (Admn.). The section will be manned by 1 Administrative Officer, 1 Asst. Administrative Officer, 3 Executive Office Assistants, 3 Assistants and 2 Junior Assistants-cum-Stenographers. The Administrative Section will also have 1 Supervisor (Systems) and 1 Asst. Supervisor (Systems).

B. The Administrative Section will look after the entire administrative work and also human resource management and drawl of pay and allowances. The Administrative Section will have nothing to do with various purchases made for the workshop, which will be exclusively dealt by Asst. Director (Materials).

Security Wing of Police Transport Organisation

5. The security wing will function under the direct supervision of Senior Joint Director (Administration) assisted by Assistant Director (Administration). The security wing will consist of one Reserve Sub-inspector assisted by 2 head constables and 8 constables who will be drawn from various APSP Battalions and deployed on rotation basis so that none of them are on this duty, more than a month in a year.

Medical Dispensary

6. The Central Workshop will have a medical dispensary for attending to any medical emergencies in the workshop. It will have strength of 1 Pharmacist and 2 Nursing Attendants. Their task will be to attend to any medical exigencies in the workshop and also to provide first aid. They will also ensure that first aid kit boxes are available and kept updated in various sections of the workshop.

Central Motor Vehicle Pool

7. The Police Transport Organization shall maintain a vehicle pool, which may consist of vehicles necessary for VIP movement like escort and pilot vehicles, spare vehicles for senior officers and visiting officers from other states. The Central Motor Vehicle Pool will work under the direct supervision of Senior Joint Director (Admn.). He shall be assisted by Asst. Director (Admn.), 1 Senior Supervisor (Transport), 2 Supervisors (Transport) and 2 Asst. Supervisors (Transport). The Asst. Director (Transport) shall ensure that the vehicles are kept in readiness in a short notice as per the orders of the superiors. He shall ensure that no vehicle is deployed without proper authorisation and records are maintained for the itineration undertaken by each vehicle and POL consumed on each one of them.

Driving, Maintenance, Repair and Transport Training Institute (DMRTTI)

8. The institute will work under the overall supervision of 1 Joint Director (Technical). 1 Assistant Director (Technical), 4 Supervisors (Technical) will be in direct charge of the institute. The institute will have 2 Senior Mechanics (Diesel), 2 Senior Mechanics and 2 Head Constable Drivers. The institute will conduct courses for the staff of Central and Regional Workshops as well as districts and other units in preventive maintenance, minor repairs etc. The institute will also conduct training of drivers, especially in techniques like evasive driving, safe driving, traffic rules and regulations etc. The institute will also conduct the training of newly recruited Constable Drivers, Junior Mechanics after they have gone through 3 months foundation course at Police Training Colleges. The Supervisor (Technical), Supervisor (Materials) will also undergo the professional training at the institute.

Regional Workshop

9-A. Each Regional Workshop will be headed by Asst. Director (Technical), who will work under the direct control of Joint Director (Technical). He shall be assisted by 2 Senior Supervisors (Technical), 4 Supervisors (Technical), 8 Asst. Supervisors (Technical), 10 Senior Mechanics, 4 Junior Mechanics and 2 Helpers.

B. The Regional Workshop will attend to major and minor repairs to the vehicles of the respective units falling under their jurisdiction. However any vehicle which requires major repairs, and the repair of which cannot be carried out at Regional Workshop shall be referred to Central Workshop at Hyderabad.

C. The Regional Workshop will also have Regional Stores where important and fast moving spare parts and accessories would be maintained for use of the Regional Workshop as well as for issue to the units within its jurisdiction.

D. The regional stores shall be headed by 1 Senior Supervisor (Materials), who shall be assisted by 1 Supervisor (Materials), 1 Asst. Supervisor (Materials), 2 Senior Material Assistants and 2 Junior Material Assistants.

E. The functioning of various sub-units of the Regional Workshop shall be computerised. 1 Supervisor (Systems) assisted by 1 Asst. Supervisor (Systems), 1 Senior Systems Assistant and 2 Junior Systems Assistants. They shall be responsible for attending the automation work of the Regional Workshop. The Regional Workshop will also have 1 Assistant Administrative Officer, who shall be assisted by 2 Assistants and 1 Senior Stenographer for attending to the various administrative functions.

Motor Transport Wings of Districts / Units

10-A. All Motor Transports of Districts / Units shall be under the charge of Senior Supervisor (Technical). He will be responsible for keeping all the vehicles in readiness. He shall be assisted by 2 Supervisors (Technical), 2 Senior Mechanics and 4 Junior Mechanics.

B. The State will have 3 Regional Workshops. The District Maintenance Units will attend to all the minor repairs and regular servicing of the vehicles. In case the District Maintenance Unit does not have the necessary facilities, a suitable reputed and reliable workshop will be identified, which shall be approved by the Assistant Director (Technical) and vehicles got repaired from the workshop on standard pre-agreed labours charges. The Senior Supervisor (Technical) shall be responsible to ensure the quality of repair and also take care that only reputed spare parts are used for the repair.

C. The District / Unit Pool of the Vehicle will be under in-charge of Senior Supervisor (Transport), who shall be responsible for detailing of vehicles to various offices, units, sub-units. He will also ensure that all the records pertaining to the use of the vehicle, consumption of POL are maintained properly. The concerned Unit Head will exercise control to ensure that there is no misuse of vehicles and vehicles are always kept in readiness to meet any exigency. The Head Constable and Constable Drivers of the District / Unit will work under the control of Senior Supervisor (Transport).

◆ 2015 Police Computer Services & Standardisation, AP Police Department.



Andhra Pradesh Police Department

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CHAPTER 54

Human Rights and Police Responsibilities

949. “Human Rights” means the right to life, liberty, equality and dignity as guaranteed by the Indian Constitution.

1. Every human being is entitled to certain natural rights by virtue of his being a member of human society. These rights are called human rights. The supreme court while interpreting Article 21 of the Constitution of India emphasised that a human being has not only a right to live but has a fundamental right to live with dignity and it is the duty of every other human being to respect that right.

2. As a founder member of United Nations Organisation, India is a party to “the Universal declaration of Human Rights 1948”. India also ratified the two international conventions on, (a) civil and political rights and (b) economic, social and cultural rights. These Universal declarations of rights (1948) were incorporated as fundamental rights in the Indian Constitution listed in Articles 14 to 32. Some of the important among them are;

- i. Right to every citizen, of equality before law and equal protection of laws.
- ii. Right to freedom of speech
- iii. Right to assemble peacefully and without Arms.
- iv. Right to form Unions.
- v. Right not to be prosecuted and convicted for any offence except for violation of law in force at the time of committing the offence.
- vi. Right not to be compelled to be a witness against himself.
- vii. Right not to be deprived of his life and liberty except according to procedure established by law.
- viii. Right not to be arrested with out informing the grounds and to be produced before a magistrate as early as possible but not later than 24 hours.
- ix. Right to consult any one of his choice on his arrest.
- x. Right to defend himself against any allegation, and
- xi. Right to seek redressal by way of writs for any of the above violations made against him.

3. Our Criminal Justice system is based on “due process of law”, i.e. every act of the individual, Executive, Legislature or Judiciary is with in the framework of law. Police as law enforcement authority are also part of this law. Police in their duties to maintain law and order or in detection, investigation, prosecution of cases directly deals with the public and with out public co-operation they cannot discharge their duties effectively. Powers are given to them for effective discharge of duties but not to misuse them, either for their selfish aggrandizement or to exhibit their power and vanity. There is also a misconception that results cannot be achieved unless third degree methods are used and it is not possible to deal with same hard core criminals and suspects with in the framework of strict law. It is not correct. There is no conflict between strict law enforcement, relentless pursuit of offenders, punishment of offenders on one side and observance of human rights on the other. The police officer should understand that he cannot take law into his own hand and he is not expected to be over anxious to achieve results with the means that is not legally allowed.

4. Various forms of custodial violence, torture, ill treatment of women and children, fabricating false cases against innocent persons and attempts to save real culprits, lockup deaths, custodial rapes, acts of omission or commission against weaker section, poor and less-privileged, unwarranted arrests, unlawful searches and excessive use of force are some of the manifestations of human rights violations by police. The general complaint is that police officers

who are to uphold the law should not and cannot themselves indulge in illegal acts. It, undermines human dignity, brutalises the police system, forfeits the trust of people and the judiciary and above all affects the image of the police organisation as a whole. It also exposes the police officers to the risk of criminal liability and punishment. Custodial violence and tortures do not act as short cuts in any significant way to achieve the goals and objectives. In fact they are the tools of an unprofessional and unscientific police officer.

5. The other practices to be strongly put down are rude and discourteous behaviour, refusal to entertain complaint, over bearing attitude, minimising the gravity of offence, delayed or poor or biased investigation, taking sides, perverse enquiries into complaints, unjustified searches and arrests. Such practices will assume complex dimensions if victims are women or belonging to other weaker sections.

Reasons for violation of human rights by police

950-1. Some of the reasons for violation of human rights by police can be attributed to the following,

- A. Lack of interrogation techniques.
- B. Lack of scientific temper and professionalism.
- C. Lack of knowledge of criminal law and procedures for investigation.
- D. Unrealistic public expectation for results.
- E. Political and official pressures for quick results.
- F. Misconception that laws are not sufficient to achieve results legally.
- G. Sadistic pleasure on the part of some police officers.

1. As on today it is felt that much is desired from police and there is much needed change required in their attitude from age old and conventional methods. Many of the police interrogations are crude, devoid of scientific techniques. Scientific temper in the investigation is becoming a casualty due to lack of aptitude in acquiring professionalism. The entire investigation of a criminal case is inter-woven with the law and procedure and the evidence is to be gathered in tune with the law of evidence, acceptable in criminal courts. The investigation in a criminal case is to be placed for the test of criminal courts of law, challenged by the legal experts on behalf of the accused. But, the present legal knowledge of an investigating officer is limited to the knowledge he acquired during his induction training. If alone, he gets equipped with sufficient legal knowledge during his training in refresher courses relating to interrogation and investigation, much of these crude methods could be avoided. Sufficient knowledge of law, will remove his misconception, that law is not sufficient to achieve results legally. A well trained police officer with an aptitude to learn interrogation techniques, acquiring professionalism, taking advantage of the latest scientific aids at his command, need not turn to brutal measures to achieve results.

2. Police officer as one directly dealing with public, should constantly bear it in mind that he needs the assistance of the public either to maintain law and order or to gather evidence from witnesses or in obtaining clues during investigation. He can get such co-operation from the public only when he is polite and courteous in his dealings. Even, in dealing with the accused, there is no scope for vindictivity as he does every thing ordained by his duties. He should understand that his act is with in the framework of law and should not exceed legal limits in his undue anxiety to get results.

Human Rights of different sections of public

951. Every police officer must be aware of the legal rights of various individuals to enable him to respect such rights, not only statutory but also to earn the good-will of the public.

Human Rights of Victim

1-A. When a cognizable case is presented, it should be registered forth-with by the SHO, furnishing a copy free of cost.

- B. Render immediate medical aid by moving him to hospital if he is injured.
- C. Protect him from further danger if necessary.
- D. Inform the stages of investigation from time to time as a duty.
- E. Do not make the complainant go round the police station but he feels that he is being harassed more by the police than the accused.
- F. Furnish the necessary documents to victim or his legal heirs of accident cases free of cost to enable them to claim compensation in tribunals.
- G. Do not ask the complainant to go to the jurisdictional police station if they approach the wrong police station. Register the case and transfer it.
- H. Let the complainant feel free when he represents his case and do not frighten him to give a wrong impression that police are not his friends but masters.

Human Rights of Witnesses

- 2-A. Examine witnesses at their place and do not call them to police station unless it is difficult or impractical.
- B. Examine women and children at their places of residence.
 - C. Remember witnesses are there to help investigation. Therefore deal with them courteously.
 - D. Child witnesses should be handled with special care.

Human rights of suspects or Accused

3-A. While surveillance as prescribed in the police regulations, authorised by law and approved by the Supreme Court in AIR SC 1975 page 1378, is permissible, unnecessary intrusion into the privacy of persons is forbidden. Therefore a margin on the right lines should be drawn to avoid any interference with the right to privacy.

B. Interrogation of suspect is a power vested with the police. But, interrogation should be within the legal framework. Prolonged detention in the name of interrogation may amount to harassment and ultimately turn out as wrongful confinement.

C. Searches of places and more so dwelling houses have to be made strictly in accordance with procedures laid down U/s 100 Cr.P.C. Police officer entering dwelling houses for searches should observe decency and decorum respecting the sentiments of women while discharging their duty. The assistance of women constable or women witness should be taken while searching the person of a woman. Any unlawful search, not only vitiates the purpose but gives opportunity to the accused to use the right of private defence.

D. Attempts to torture accused or suspects to obtain confessions are not only an offence under Section 330 or 331 IPC but it is useless as such evidence is not admissible under law. Besides there is a danger of the suspects or accused confessing falsely in order to escape physical torture, in which case, one is likely to be misled in his investigation.

E. No accused should be forced physically or psychologically to say any thing which is likely to be self-incriminating. Such evidence is prohibited under article 20 clause (3) of the constitution but voluntary disclosures of their own free will, while in police custody and discovery of a fact in consequence to that information is not barred under Section 27 I.E. Act.

F. There should be no arbitrary arrest. All arrests must strictly conform to the requirements of law and procedure. Arrests need not be made just because a police officer has a power to arrest. The necessity to confine is the principle behind the law. The person to be arrested is entitled to know the grounds for arrest as per Article 22 of the Constitution and Section 50 of Cr.P.C.

G. Every person arrested should be informed that he has right to go on bail, if it is a bailable offence and he should be informed that he may arrange for sureties (Article 22 of Constitution and Section 50(2) of Cr.P.C.)

H. The arrested person shall not be subjected to more restraint than is necessary to prevent his escape (Section 49 Cr.P.C.). Handcuffs should not be used without the orders of the court.

I. An accused person arrested shall have the right to be examined by a medical practitioner. (Section 54 Cr.P.C.).

J. The arrested person shall not be detained unnecessarily for a longer period than is necessary and at any cost should be produced before a magistrate within 24 hours excluding journey time. (Section 57 Cr.P.C.)

K. The arrested person is entitled to consult any one of his choice and it shall not be denied (Article 22 of the Constitution).

L. The accused charged of any offence has a right to be defended by an advocate of his choice. (Section 303 Cr.P.C.).

M. During custody, the arrested person is entitled for fair treatment and no custodial torture or ill treatment is permissible.

N. Most of the custodial deaths take place during illegal detention. Produce the accused within 24 hours of arrest and obtain police custody from court for interrogation if necessary. This will increase the responsibility of police and minimise irresponsible custodial tortures.

Human rights of Women

4. A national policy for custodial Justice to women was recommended by an expert committee on custodial Justice to women, Government of India (1983). Following are some of the important guidelines for police officers dealing with women.

- A. Women shall be shown special treatment wherever they interfere with the system whether as complainants, victims, accused, witnesses or inmates of institution, giving respect for gender dignity and habitative concern for women.
- B. Separate prisons and police lockups, correctional centres and separate courts shall be set up exclusively to deal with women.
- C. Recognizing the children of custodialised women as innocent, the State shall conscientiously respect the rights and privileges of the children accompanying the women in custody.
- D. The police, prison, correctional, judicial personnel dealing with women shall be specially trained.
- E. Women shall be arrested only in case of absolute necessity and only between sun rise and sunset except in exceptional cases.
- F. Arrests and search of women including interrogation shall be conducted according to strict standards of decency. Women police officers shall search women and escort women prisoners.
- G. Basic amenities and privacy shall be provided to women prisoners.

Human rights of Juveniles

5. Juvenile Justice (Care and protection of children) Act 2000 is a human rights legislation and is enacted to lay down procedures while dealing with neglected and delinquent juveniles. Every police officer should be acquainted with the provisions of this Act while dealing with delinquent juveniles. The following are some of the important points relating to juveniles.

- A. When a delinquent juvenile (Juvenile in conflict with law) if arrested for committing any offence, shall not be kept in lockup nor handcuffed. He shall be released on bail whether the offence is bailable or non-bailable provided an undertaking is given by his parents or guardians to take care of him and for production in court. If any body does not offer surety, he shall be forwarded to observation home pending enquiry.
- B. Interrogate a juvenile delinquent with sympathy, care and caution.
- C. Question the juvenile in isolation and never be authoritative. Be kind but firm.
- D. Whenever a statement is to be recorded from a juvenile witness keep him at ease and make him to speak the truth away from influences.
- E. Do not launch security proceedings against a juvenile.

The Protection of Human Rights Act 1993

952. Important provisions of the Act:-

- 1. It is applicable to the whole of India.
- 2. Human rights are, the rights relating to liberty, equality and dignity of the individual guaranteed by the Constitution.

The National Human Rights Commission – Constitution

953-1. The National Human Rights Commission has been formed comprising a Chairman and four members.

- 2. In addition to this, the Chairperson of National Commission for Minorities and the Chairperson of National Commission for Women will also be the members of the National Human Rights Commission.
- 3. The headquarters of the Commission is at Delhi and the Commission functions through the Secretary General, who is also the chief executive officer of the Commission.

4. The members of the Commission will hold office for five (5) years.

Functions of the Commission

5-A. The National Human rights Commission can suo-moto under take enquiries on information or on a petition into the components of violation of human rights or abetment thereon or against officials not preventing such violation.

B. The Commission can intervene in any proceeding involving such violation pending before a court.

C. The Commission can visit any jail or any other place for retention where persons are allegedly confined. The commission can also summon any person and examine on oath.

D. The commission can also receive any document or affidavit, petition etc.

E. The Commission can ask for investigation by any Central or State government agency.

F. After enquiry the Commission has the power to direct the State or Central Government to initiate prosecution.

G. The Commission will submit an annual report to Central Government and to State Government concerned about violation of human rights that were brought to its notice.

State Human Rights Commission

6. State Government, can constitute a State Human Rights Commission with a Chairman and four (4) members. The head quarters will be situated at a place as indicated by the State Government. The State Human Rights Commission will have the same powers as that of National Human Rights Commission. As per Section 36, the National Human Rights Commission does not enquire into a matter which is already pending with State Human Rights Commission. The National Human Rights Commission or the State Human Rights Commission does not enquire into any matter after the expiry of one year from the date of commission of violation.

Code of conduct for the police to avoid allegations of violation of human rights:

954-1-A. Police are expected to work with in the framework of law and are not expected to take law into their own hands on the plea that the existing law is not sufficient. They cannot play that role of lawmakers and judiciary. It is for the other wings to take care on the point of sufficiency or insufficiency of law. Police are only expected to play the role of an enforcing agency.

B. The police in establishing and enforcing law must as far as practicable, use the methods of persuasion, advice and warning. When use of force is inevitable, it must be as per the procedure and to be the bare minimum.

C. The police officers must remember that they are also members of civilized society.

D. They should remember that their efficiency depends upon the ready co-operation of the public.

E. They should always be courteous and well mannered and they should be dependable, predictable and impartial.

F. They should remember their own limitation and shall not usurp the functions of judiciary.

Awareness

2. The human rights awareness includes awareness about the rights of the accused, victim and the rights of the general citizens. A growing awareness will reduce these violations. This is also possible by educating the law enforcing authorities. They should be trained about the rights of the citizens. Accessibility to the public and prompt response to their grievances goes a long way in protecting the human rights. Enactment of laws or making amendments in laws may help to a certain extent but what is really needed is a change in attitude and proper understanding of human rights.

Duties of Human Rights Cell in the Office of the DGP

955. The Human Rights Cell in the Office of DGP is headed by an Officer of the rank of IGP, designated as IGP (Coordination). The role and duties of this Cell shall be as follows:

1. The Human Rights Cell will act as the main link between the NHRC and the State Police agencies.
2. All important cases/complaints referred by the Commission to the State Human Rights Cell wherever specifically indicated, would be got enquired into by an officer of appropriate level. Thereafter, the recommendations made by the Commission are to be followed up to ensure appropriate action against the delinquent officials is initiated and remedial measures taken, wherever required. However, in cases where the Human Rights Cell feels that an impartial enquiry may not be possible due to extraneous considerations, then it may recommend investigation by the State CID or even the CBI.
3. To keep a close watch on the alleged violations of Human Rights by police personnel which come to light through the newspapers, publications/other sources including complaints to different functionaries.
4. All enquiries/cases relating to police atrocities/harassment/abuse of authority, being sent by the Commission to the District Supdt. of Police for ascertaining facts and verification, may be monitored by the Cell. A copy of all such references will be sent to the Cell, to enable them to monitor timely response from the SPs. They will also ensure follow up action wherever specific directions have been passed by the Commission by way of compliance.
5. Human Rights Cell to regularly interact with the District SsP on human rights petitions/complaints and issue instructions/guidelines, so as to minimize and prevent violations of human rights by the police.
6. To conduct surprise visits to Police Stations, to check cases of illegal detention and abuse of authority.
7. To take such other steps as may be necessary for preventing violations and protecting and respecting the Human Rights of the citizenry who come in contact with the police functionaries.
8. To ensure that all Police Stations in the State display the Guidelines given by the Supreme Court in WP No.539 of 1986, in the case of D.K. Basu Vs. State of West Bengal. These requirements are in addition to the constitutional and statutory safeguards and directions given by the courts from time to time in connection with the safeguarding of the rights and dignity of the arrestee vis-à-vis the duties of the police. Special care has to be taken to see that women, children and the vulnerable sections of the society, are not harassed by the police by calling them to the police station in avoidable circumstances.
9. To coordinate with State Police Academy & Training Centres to ensure that their in-service training curriculum have sufficient elements of human rights jurisprudence for the trainees of all ranks. Such a module would aim at educating and sensitizing on the following matters:
 - A. Constitutional provisions relating to rights of citizens.
 - B. Key provisions in the substantive law that provide explicit “do’s” and “don’ts” in matters of arrest, interrogation, search and seizure etc.
 - C. Landmark judgements of the Supreme Court on human rights matters; and
 - D. The implications of fall-outs and non-observance of the human rights guidelines/instructions/laws, while discharging their duties and responsibilities.
10. Organise inter-active sessions/capsule courses of appropriate duration in all training institutions where prominent personalities, lawyers, NGOs are called for participation.
11. Compilation of the departmental circulars and directions on the human rights mandate issued by the PHQ from time to time and see that these are recirculated for recapitulation.
12. To identify specific areas of societal human rights violations in the State and to plan out preventive and rehabilitative schemes in conjunction with the concerned Departments (for instance in the field of Child Rights-child sexual abuse, child-labour Gender Justice, Juvenile Justice, non-criminal mentally ill lodged in prisons, discrimination towards the under-privileged, Backward/SC/ST in specific areas etc.)
13. To organize one-day seminars/workshops on human rights in different cities in association with the State Human Rights Commissions (wherever they are constituted), local University or colleges, philanthropic organizations like Rotary/Lion Clubs.
14. Personally monitor investigation of cases relating to custodial deaths, rape and torture/illegal detentions in police custody and take remedial measures/follow up departmental action.
15. Actively promote human rights literacy and awareness through publications and media programmes.
16. Publication of quarterly Newsletter on “Human Rights in Law Enforcement” for circulation amongst police officers.